

International Law and the Arab-Israeli Conflict

ROBBIE SABEL

INTERNATIONAL LAW AND THE ARAB-ISRAELI CONFLICT

Drawing upon Robbie Sabel's first-hand involvement with many legal negotiations in the Arab-Israeli conflict, *International Law and the Arab-Israeli Conflict* examines international law in relation to the conflict by analysing its major events and agreements, both historical and contemporary. Outlining the role of international law from the collapse of the Ottoman Empire until the present day, it considers the legal elements of relevant documents and the various peace treaties that Israel has signed with its neighbouring Arab States. Using his expertise as a professor, practitioner and ambassador, Sabel endeavours to represent both sides of the conflict, offering a wealth of counter-arguments and adding his own legal interpretations. With this valuable resource, students and researchers working within a range of disciplines can fully appreciate the role of international law in the Arab-Israeli conflict.

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ABBREVIATIONS

AJIL	<i>American Journal of International Law</i>
BYIL	<i>British Yearbook of International Law</i>
Cmd.	(British) <i>Command Papers</i>
EJIL	<i>European Journal of International Law</i>
EU	European Union
FO	(British) Foreign Office
GAOR	General Assembly Official Records
HMSO	His Majesty's Stationary Office
ICC	International Criminal Court
ICJ	International Court of Justice
ICLQ	<i>International and Comparative Law Quarterly</i>
ICRC	International Committee of the Red Cross
ILA	International Law Association
ILC	International Law Commission
ILM	<i>International Legal Materials</i>
INSS	Institute of National Security Studies
Isr. L. Rev.	<i>Israel Law Review</i>
LNTS	League of Nations Treaty Series
MFO	Multinational Force and Observers
N.Y.U. J. Int'l L. & Pol.	<i>New York University Journal of International Law and Politics</i>
PCIJ	Permanent Court of International Justice
PD	(British Parliamentary) Political Declaration
PLO	Palestine Liberation Organisation
PRO	(British) Public Records Office
PRO (CAB)	Public Records Office, Cabinet
RAF	Royal Air Force
SCOR	Security Council Official Records
UN	United Nations
UN Doc.	United Nations Document
UNEF	United Nations Emergency Force
UNGA	United Nations General Assembly

UNSC	United Nations Security Council
UNSCOP	United Nations Special Committee on Palestine
UNTS	United Nations Treaty Series
UNTSO	United Nations Truce Supervision Organisation
UNWRA	United Nations Relief and Works Agency for Palestine Refugees in the Near East
Yale J. Int'l L.	<i>Yale Journal of International Law</i>



Introduction

On ne doit jamais écrire que de ce qu'on aime.

Joseph Ernest Renan

It is, I believe, legitimate to ask whether there is a substantial role for international law in international relations in general and in the Arab-Israeli conflict in particular. The Arab-Israeli conflict is a conflict rooted in historical, national, geographic, ethnic and religious elements, and the actors rarely consult international law books before taking action. In Chapter 1 of the book, I attempt to answer this question by stating that, although international law is not a dominant factor, nevertheless, it has played a major and, at times, a crucial part in the development of the narratives of the parties and in attempts to solve the disputes. Another problem is that some politicians feel that law is an inhibiting factor. Former Israel Defence Minister Ezer Weizman writes, concerning the negotiations at Camp David 1978, 'I was also perturbed by the large number of jurists in the Egyptian delegation – as in the Israeli and American groups, there are lawyers who find a solution to every problem, I observed, and there are those who find a problem for every solution. Camp David teemed with the second kind'.¹

Writing this book entailed a number of dilemmas. Should one assume that all readers are experts in international law; if not should the book include a precis of international law? The problem is that an average international law library nowadays contains over a thousand books. A leading condensed textbook used by students and practitioners has over a thousand pages.² Another dilemma faced was whether one should assume that all readers are aware of the history of the Arab-Israeli conflict and the attempts to solve it? Here again the problem is volume. In 1974, the American Society of International Law produced a study of

¹ Ezer Weizman, *The Battle for Peace* (1981), p. 350.

² Malcolm Shaw, *International Law* (9th ed. 2021), 1200 pages.

the documents and law articles on the Arab-Israeli conflict.³ It ran to 3 volumes and 1,300 pages, and that was before Camp-David, the Egypt-Israel Peace Treaty and the Oslo agreements. Of course, the solution was a compromise. In an attempt to deal only with legal issues, in the chapter on water resources, for example, I have omitted enumerating the quantities of water in dispute. This, although the numerous academic articles on water resources in the area view, perhaps correctly, the quantities as the major factor in dispute. I have tried to introduce each issue with a very concise explanation of the historical background and the legal issues involved and hope that readers who are interested will do further reading. As a general introduction to the political background to the dispute, I would recommend Dowty's book, *Israel/Palestine*.⁴

Another dilemma faced was whether to enumerate the multitude of suggestions and proposals for settling the Arab-Israeli disputes. The compromise I have chosen is only to examine those proposals coming from official sources that contained legal elements and were evaluated by the parties. This means that I have had to ignore important private initiatives such as the 'Geneva initiative'⁵ even though politically prominent persons were involved, but they were acting in their private capacity.

The first seventeen chapters deal with legal issues chronologically, the remaining chapters deal with specific issues such as the status of Jerusalem and navigation through international watercourses.

A major issue faced was whether to write a dispassionate anodyne description of the legal issues or to promote my personal views. I served for nearly thirty years in the Israel Foreign Service, so any claim that I am a completely disinterested objective observer might well be met with incredulity. The path I have chosen is to try to give an objective description of the different views on each subject, quoting proponents of Arab and Israel legal positions. This, I believe, allows readers to make their own assessment, though in many cases, I then add my own assessment of the legal situation.

³ John Norton Moore, ed., *The Arab-Israeli Conflict* (1974).

⁴ Alan Dowty, *Israel/Palestine* (4th ed. 2017).

⁵ <https://geneva-accord.org/projects/>. The principal drafters were Yossi Beilin from Israel and the Yasser Abed Rabbo from Palestine.

Is International Law Relevant?

It is, I believe, legitimate to ask whether there is a substantive role for international law in international relations. It is axiomatic that States act out of their own self-interest, dictated by political, military and economic considerations. Furthermore, international law lacks the elements one normally associates with a legal system. There is no international sovereign; there is no international legislative body; there is, in most cases, no compulsory adjudication and no enforcement body. There are scholars who argue that international law plays only a minor role in international relations, if at all. Werner Levy argues that international law is relevant 'in justification, not initiation of a foreign policy', adding that

references to law are virtually absent in papers of statesmen responsible for the shaping of foreign policy, whether they be official correspondence with diplomats abroad, intra-office notes and messages, or personal writings in diaries and memoirs. International law usually occurs as an afterthought, when for a number of reasons the formulation of a policy decision in legal language appears desirable before its public appearance.¹

The late American political columnist Krauthammer echoed the same theme, writing that 'turning foreign policy over to the lawyers is the laziest, the most brainless way to make policy, the law – international law – is an ass. It has nothing to offer. Foreign policy is best made without it. Go in, do what you have to do and *then* call in the lawyer to find some retroactive justification for what you've done'.² Textbooks on international relations and diplomacy often ignore international law completely; Kissinger's seminal book on diplomacy does not have a single entry on international law.³ In the United States, we also may be seeing a revisionist reaction to the role of international law. For example, the

¹ W. Levi, *Law and Politics in the International Society* (1976), p. 187.

² C. Krauthammer, 'The Curse of Legalism', *The New Republic* 201 (1989), p. 44.

³ Henry Kissinger, *Diplomacy* (1994).

nuclear understanding with Iran was termed a 'Joint Comprehensive Plan of Action' and not a treaty, although the prime motive in using such a definition presumably was to avoid the need for congressional approval.

Despite the predominance of *realpolitik* in policy discussions, it remains the case, as Henkin put it, that 'almost all nations observe almost all principles of international law and almost all of their obligations almost all of the time'.⁴ The cynical comments of Levy and Krauthammer may reflect the outlook of the realist school of international relations, but the reality of diplomatic life shows that international law is an integral part of the nitty-gritty of international relations. In most negotiations, there is a desire to garner third-party support for the positions advanced by the parties involved in the negotiations. Even where the third party may have political sympathy for the position of one of the sides, it is important that such third party also be assured that it is supporting a position that is legally correct. Neutral and disinterested States who follow the negotiations will find it easier to support a claim they consider legal; conversely, they will be reluctant, at least openly, to support a claim they consider illegal. Bowie writes, as regards the 1956 Suez crisis, 'by resting its access to the Straits of Tiran on the general right under international law, Israel enabled the U.S. to commit itself to vindicating that right before Israel's withdrawal without seeming to undercut Hammarskjöld or the United Nations'.⁵ An act or claim that is seen to be in violation of international law will seldom obtain international support. Establishing a position based on claimed rights under international law is important not only *vis-à-vis* third parties but as a basis for negotiations with the opposite party. Particularly in territorial disputes, it is normally only possible to negotiate a compromise after a party has established a claim of right. Another factor lending to the relevance of international law is that the aim of all international negotiations is, normally, to reach an agreement that obligates the negotiators – in other words, to reach a binding international agreement or treaty. Henkin writes 'all international relations and all foreign policies depend in particular on a legal instrument – the international agreement – and on a legal principle – that agreements must be

⁴ L. Henkin, *How Nations Behave* (2nd ed. 1979), p. 47.

⁵ R. R. Bowie, *Suez 1956 – International Crises and the Role of Law* (1974), p. 110. Robert Bowie was founder of Harvard University's Centre for International Affairs and former US State Department director of Policy Planning Staff.

carried out'.⁶ The criteria whereby it will be judged whether an agreement reached is binding on the parties will be the criteria of international law. International law lays down substantive conditions for classifying a document as a treaty. The language of agreements is the language of international law, and international lawyers will interpret the terms of any agreement using the tools of international law.

Although precedents are not binding in international law,⁷ they play a very useful role in international negotiations or in the form of State practice, when one side makes a claim that a particular precedent reflects customary international law. Following precedents also means following a well-trodden path, which has already been subjected to public and legal scrutiny. Governments, political leaders and negotiators are inherently cautious. Every young bureaucrat is, with good reason, instructed to abide by the old platitudes of 'don't reinvent the wheel', and 'if it ain't broke don't fix it'. If a legal formula has been used and accepted by States, preferably, the States involved in the negotiations, then it should not be changed.

1.1 Is International Law Relevant to the Arab-Israeli Conflict?

It could be argued that cynicism towards the importance of international law is all the more relevant in relation to the Arab-Israeli conflict where many of the States involved are totalitarian regimes that have little regard for legal norms. In the armed conflicts in Syria and Iraq, *realpolitik*, not law, has dominated discussions on how to deal with the chaos. Violent non-State armed groups have been active participants in the fighting in Iraq and Syria. Clearly, ISIS, Al Qaida, Hamas and Hezbollah have paid no attention to the humanitarian law applicable in armed conflict. Syria, a State member of the United Nations, has, under the leadership of Bashar al-Assad, flaunted all the basic norms of the laws of war. Even the Russian air force has apparently not been particular in applying the rules of distinction to its aerial attacks. On its borders, Israel faces Hezbollah in the North and Hamas in Gaza, two organisations classified internationally as terrorist organisations. Said postulated that, in the Middle East, international law was a tool of imperialism that served only

⁶ Henkin, *How Nations Behave*, p. 319.

⁷ Lord Denning stated that the 'international law knows no rule of *stare decisis*'. *Trendtex Trading Corporation v. Central Bank of Nigeria*, [1977] QB at 554.

to turn the Orient 'from alien into colonial space'.⁸ Allain writes that international law in the Middle East was 'simply another political tool of statecraft used by the strong against the weak'.⁹ Mazzawi writes, about the Arab-Israeli conflict, 'very many aspects of this problem, if not all, had a distinctly legal character. But law has not had a role in this dispute, and neither the United Nations nor the League of Nations before it have seen fit to resort to legal principles in their quest for a solution to the problem'.¹⁰ Kurtzer's book on negotiating Arab-Israeli peace recommends that a future mediator's team should include 'legal expertise', however, the writers of the book did not include a lawyer among the many persons interviewed.¹¹

Nevertheless, international law has played a role in the Arab-Israeli conflict. The Crown Prince of Jordan writes, perhaps unduly optimistically, 'analysis of those legal issues which are considered central to the current Arab-Israeli dispute can play a useful role in any attempt to move towards reconciliation of the disputants, the preparation of a dialogue between them and other interested parties and preparing the foundations of the proposals for future peaceful relations in the area'.¹²

A particularly salient factor in establishing the relevance of international law in the ongoing Arab-Israeli dispute has been the search by both parties to establish legitimacy. Fisher writes, correctly I believe, 'legitimacy and lawful authority are key components of political power'.¹³ Kattan writes, interestingly, 'international law was pivotal to the development of the Jewish national home',¹⁴ public international law 'was the very vehicle through which the Zionist project was brought to fruition'.¹⁵

⁸ Edward Said, *Orientalism: Western Conceptions of the Orient* (1995), p. 211.

⁹ Jean Allain, 'Orientalism and International Law: The Middle East as the Underclass of the International Legal Order', *Leiden Journal of International Law* 17 (2004), pp. 391–404, 392.

¹⁰ Musa Mazzawi, 'Book Review, Henry Cattán. *Palestine in International Law – The Legal Aspects of the Arab Israeli Conflict* (1973)', *Journal of Palestine Studies* 3, no. 4 (Summer 1974), pp. 141, 143.

¹¹ Daniel C. Kurtzer and Scott B. Lasensky, *Negotiating Arab-Israeli Peace* (2008), p. 63.

¹² Hassan bin Talal, *Palestinian Self Determination: A Study of the West Bank and Gaza Strip* (1981), p. 21.

¹³ R. Fisher, *International Crises and the Role of Law: Points of Choice* (1978), p. 12.

¹⁴ V. Kattan, *From Coexistence to Conquest: International Law and the Origins of the Arab-Israeli Conflict, 1891–1949* (2009), p. 22.

¹⁵ *Ibid.*, p. 21.

There are also specific historical reasons as to why international law is particularly relevant to the Arab-Israeli conflict. The Allies in the World War I, in their attempts to rearrange the former Ottoman Empire, were, perhaps, the first to introduce international legal elements to the Middle East. In the nineteenth century, the allies might have been able to annex unilaterally the territories of the Ottoman Empire as French or British colonies, but by 1918, this was no longer the case. Thus, we find the Allies negotiating with Turkey the formal renunciation of Turkish territory outside Asia Minor,¹⁶ and the introduction of the Mandate system as a compromise between colonialism and the right of self-determination. Although in 1918 the principle of self-determination was not a legal principle, nevertheless the Allies felt obliged to take it into their consideration. They granted self-determination to all the Arabs in the former Ottoman Empire but, as regards Palestine, they treated it as a special case, delaying the application of self-determination until the displaced Jews could return to their country and eventually become a majority.

World public opinion continues to address the dispute between Israel and the Palestinians in the terminology of international law. Many legal arguments addressed to the other side during negotiations, in conferences or in political speeches are often intended for third parties and for world public opinion. International law has become the lexicon of international legitimacy. This would explain why all sides invoke it. As the lingua franca of the Arab-Israeli conflict, international law is a common language that everyone understands and invokes, usually, to criticise the other side.

Both the Zionist movement and, later, the Palestinian national movement made strenuous efforts to obtain international legitimacy based on international law. Herzl, in his book about the proposed Jewish State, wrote, 'the land which the Society of Jews will have [*sic*] secured by international law'.¹⁷ This search for legitimacy was considered vital in the early years of the Zionist movement as, at the time, it had no territorial jurisdiction and depended on the good will of the Western States and

¹⁶ 'The Treaty of Peace between the Allied Powers and Turkey (Treaty Sèvres), 10 August 1920', AJIL 15 (Supp. 1921) (not ratified), p. 179; 'Treaty of Peace between the Allied Powers and Turkey (Treaty of Lausanne), 24 Jul. 1923', AJIL 18 (Supp. 1924), p. 1.

¹⁷ T. Herzl, *The Jewish State der Judenstaat* (1896), p. 18, translated from the German by S. D'Avigdor, and adapted from the edition published in 1946 by the American Zionist Emergency Council, www.mideastweb.org/jewishstate.pd.

world public opinion. The Zionist movement worked to transfer the political promise of a 'national home in Palestine' contained in the 1917 Balfour Declaration¹⁸ into 'hard' international law. The Zionist movement persuaded the British and French governments to incorporate the text of the Balfour Declaration into the treaty whereby the two powers divided the Middle East between them¹⁹ and later to get the unanimous approval of the Council of the League of Nations for the text to be included in the 1922 Mandate for Palestine.²⁰ The British 1922 'White Paper' confirmed again that the Jewish People were in Palestine 'as of right and not on the [*sic*] sufferance. That is the reason why it is necessary that the existence of a Jewish National Home in Palestine should be internationally guaranteed, and that it should be formally recognized to rest upon ancient historic connection'.²¹

Since 1948, and particularly since 1967, the Palestinian national movement, regarding itself as the weaker partner in its dispute with Israel, has also sought to buttress its position by reliance on rights that it claims under international law. The Palestinian legal emphasis is largely based on the premise that they were the indigenous population entitled to self-determination and that the Jewish settlers are colonialists. Israel's position is that the creation of the State of Israel was based on the right of self-determination of the Jewish people. The Third World, to a great extent, has voted against Israel at the United Nations where the Palestinian position has been buttressed by a wealth of General Assembly resolutions. The Palestinian contention is that these resolutions reflect the view of the international community as to the legal issues involved. A factor lending relevance to such resolutions is that the League of Nations and later the UN have been deeply involved in the Arab-Israeli conflict and the International Court of Justice has relied upon these various United Nations resolutions.²² A feature of the Palestinian position is their demand that any future agreement between them and Israel must reflect 'international legitimacy' as expressed in such UN resolutions. Ziad Abu-Amr writes, 'the UN participation [in

¹⁸ Balfour Declaration (1917), http://avalon.law.yale.edu/20th_century/balfourasp.

¹⁹ Resolution of the 1920 San Remo Conference, November 1917, www.cfr.org/Israel/san-remo-resolution/p15248.

²⁰ 1922 League of Nations Mandate for Palestine, http://avalon.law.yale.edu/20th_century/palmanda.asp.

²¹ The 1922 British White Paper on Palestine, http://avalon.law.yale.edu/20th_century/brwh1922.as.

²² See ICJ Advisory Opinion *Construction of a Wall*, ICJ Reports 2004.

negotiations] is particularly important from the Palestinian point of view because the UN represents international legitimacy'.²³ Palestinian negotiators tend to regard it as vitally important to establish a right based on international law and not to be in a position where they have to negotiate such a right. This approach is reflected in the Palestinian insistence on Israel recognising the 'right of return' of the Palestinian refugees reflected in UNGA Resolution 194,²⁴ although stating that once the principle is accepted, the actual number of refugees to be returned can be negotiated.²⁵ The Palestinians hope that such a requirement can help to offset the perceived advantage that Israel has in any bilateral negotiations. The counter Israeli view is that UN General Assembly resolutions do not create international law. The drafters of the UN Charter knowingly refrained from granting the Assembly such power, and UN General Assembly resolutions do not necessarily even reflect existing law. This view is reflected in Weil's statement that 'neither is there any warrant for considering that by dint of repetition, non-normative resolutions can be transmuted into positive law through a sort of incantatory effect'.²⁶ Furthermore, the Israeli view is that parties to an agreement are free together to make their own decisions as to the relations between them, provided there is no violation of a *jus cogens* rule.

One explanation for this attention to international law is that a position that is seen to be in violation of international law will not obtain international support. The lack of such support can have real-life consequences. A salient example of this is the controversy over Israeli settlements in the West Bank, a controversy based nearly exclusively on the interpretation of an Article in one of the 1949 Geneva Conventions.²⁷ Based on this legal interpretation, Israel's settlement policy has been repeatedly condemned by Israel's allies in Europe and by the UN Security Council.

²³ Ziad Abu-Amr, 'Palestinian-Israeli Negotiations: A Palestinian Perspective' in Steven L. Spiegel, ed. *The Arab-Israeli Search for Peace* (1992), p. 29.

²⁴ UN Doc. A/RES/194 (III), 11 December 1948.

²⁵ See O. M. Dajani, 'Shadow or Shade? The Roles of International Law in Palestinian-Israeli Peace Talks', *Yale J. Int'l L.* 32 (2007), p. 61.

²⁶ P. Weil, 'Towards Relative Normativity in International Law', *AJIL* 77 (1983), pp. 413, 417.

²⁷ Art. 49, *Geneva Convention Relative to the Protection of Civilian Persons in Time of War* (Fourth Geneva Convention) (1949), 75 UNTS 287 (1949).

Terms used in the various agreements made between Israel and her neighbours, such as 'general armistice',²⁸ 'autonomy',²⁹ or 'freedom of navigation',³⁰ carry with them the interpretation and technical meaning of terms of international law. For example, the term 'autonomy' clearly implies non-independence. It is used when a State grants 'a group that differs from the majority. A means by which it can express its distinct identity'.³¹ The phrase appears in the Camp David Framework³² but not in the Oslo accords. The substance of the powers allocated to the Palestinian Authority under the Oslo Accords is very similar to that envisaged in the Camp David Framework. The omission of the term 'autonomy' from the Oslo Agreements was, presumably, to negate any Palestinian apprehension that they were agreeing to be an autonomous area under Israel sovereignty. The Oslo II (Interim Agreement) states, 'Israel shall continue to exercise powers and responsibilities not so transferred [to the Palestinian Authority]'.³³ This seemingly anodyne clause, in fact, could be interpreted as meaning that the West Bank continues to be under Israel military occupation as only some of the powers of the military government were being devolved to the Palestinian Authority.

Another example, the phrase 'equitable utilization of joint water resources', which appears in the Oslo accords,³⁴ may have seemed to the political negotiators as a banal euphemism for good neighbourly behaviour. The international lawyers involved, however, know that it can be interpreted as a technical term that carries with it the baggage of numerous rules and precedents of the international law relating to water resources.

²⁸ See, e.g., *Egypt-Israel General Armistice Agreement*, signed in Rhodes on 24 February 1949, www.usip.org/sites/default/files/file/resources/collections/peace_agreements/ie_armistice_1949.pdf.

²⁹ 'Camp David Accords; September 17, 1978', *Yale Law School Lillian Goldman Library The Avalon Project, Documents in Law, History and Diplomacy*, http://avalon.law.yale.edu/20th_century/campdav.asp ('Camp David Accords').

³⁰ 'Freedom of Navigation through International Waterways', UNSC Resolution 242, 22 November 1967, UN Doc. S/RES/242 (1967).

³¹ R. Lapidot, *Autonomy: Flexible Solutions to Ethnic Conflicts* (1997), p. 33.

³² 'Camp David Accords'.

³³ Article I(1) *Israeli-Palestinian Interim Agreement on the West Bank and the Gaza Strip*, 28 September 1995, Israel Ministry of Foreign Affairs, www.mfa.gov.il/mfa/%20foreign_policy/peace/guide/pages/the%20israeliPalestinian%20interim%20agreement.aspx.

³⁴ Annex II, Article 1, 1993 *Israel PLO Declaration of Principles on Interim Self-Government Arrangements*, http://avalon.law.yale.edu/20th_century/isrplo.asp.

The legal analysis of terms has also been applied to examining the text of UN Resolutions. The best-known controversy in this regard is, perhaps, regards UN Resolution 242. The preamble to this Resolution states: 'Emphasising the inadmissibility of the acquisition of territory by war.'³⁵ One interpretation of this phrase is that Israel 'could not gain any territory as a result of the recent conflict' and consequently had to withdraw from all the territory of the West Bank and Gaza.³⁶ Julius Stone objects to this interpretation, commenting that 'Arab state-favoured' interpretation 'would end with a rule encouraging aggressors by insuring them in advance against the main risks involved in case of defeat'.³⁷

Although precedents are not binding in international law, the Arab-Israeli peace process is replete with the use of precedents. The text of the Egypt-Israel Peace Treaty comprises, to a large extent, cut and paste quotations from the UN Charter, the 1970 Declaration of Principles on Friendly Relations between States³⁸ and UN Security Council Resolution 242.³⁹ The language of the Israel-Jordan Peace treaty was taken, nearly verbatim, from the text of the Egypt-Israel Peace Treaty even though both sides were aware that some of the earlier phrasings, such as the dispute settlement clause, had aroused problems of interpretation. The Jordanian position was that if it had worked, albeit imperfectly, for Egypt, then they preferred that to negotiating a new formula.⁴⁰ The language of the 1993 Israel-PLO Declaration of Principles⁴¹ closely followed the language of the 1978 Camp David Accords.⁴² In each case, it might quite well have been possible to negotiate language that was more appropriate, but it would have extended negotiations considerably. When both sides

³⁵ Preamble, UN Security Council Resolution 242 concerning the Establishment of Peace in the Middle East, adopted 22 November 1967, UN Doc. S/RES/242 (1967).

³⁶ J. McHugo, 'Resolution 242: A Legal Reappraisal of the Right-Wing Israeli Interpretation of the Withdrawal Phrase with Reference to the Conflict between Israel and the Palestinians', ICLQ 51 (2002), pp. 851, 865.

³⁷ Julius Stone, *Israel and Palestine: Assault on the Law of Nations* (1981, 1982), p. 54. The different interpretations of UNSC Resolution 242 are dealt with in Chapter 11.

³⁸ Declaration of Principles of International Law concerning Friendly Relations and Cooperation among States in Accordance with the Charter of the United Nations, Annex to UNGA. Resolution 2625 XXV (1970).

³⁹ UN Security Council Resolution 242 concerning the Establishment of Peace in the Middle East, adopted 22 November 1967, UN Doc. S/RES/242 (1967).

⁴⁰ D. Reisner, 'Peace on the Jordan', *Justice* 4 (1995), pp. 3, 4.

⁴¹ 1993 Israel PLO *Declaration of Principles on Interim Self-Government Arrangements*, http://avalon.law.yale.edu/20th_century/isrplo.asp.

⁴² 'Camp David Accords'.

reported home to their governments, one can assume that they would not have been subject to criticism for agreeing to a text that was taken verbatim from previous agreements and from basic UN documents. For this reason, one will find references to UN Security Council Resolution 242 and quotations from it in every major agreement signed between Israel and the Arabs. Not that Resolution 242 is a panacea but rather because the negotiators were aware that it is a formula that has been accepted by all parties concerned and hence can be quoted or referred to without fear of incurring the wrath of one's home government or parliament. A similar logic is also reflected in the way Palestinian diplomats craft UN resolutions. In order to obtain as much support as possible, they follow language either that has been used in previous UN resolutions or that is aligned with US and European positions.

Finding a legal procedure for administering a crisis can, at times, be as important as the actual outcome of the procedure. It can be an event such as the Madrid Conference, which although only a platform for set speeches, nevertheless, provided the opening for the Arab States and for the Palestinians to commence direct negotiations with Israel. In the Taba dispute between Israel and Egypt, Israel insisted on a process of conciliation and Egypt demanded immediate arbitration. A convoluted legal formula was worked out whereby the arbitration was to commence, then be suspended to enable a conciliation commission to function, and should conciliation fail, arbitration would automatically continue. Both sides claimed a legal victory.⁴³ When negotiating the Oslo Declaration of Principles with the Palestinians, the question arose as to whether the result would be a legally binding treaty, which would then require registration with the UN. The problem was that only agreements signed by sovereign States, or intergovernmental international organisations, can be registered with the UN, and Israel was not about to acknowledge the PLO as a sovereign State. On the other hand, both Israel and the PLO intended the declaration of principles to be a binding legal instrument. The legal formula found was to have the document attested to, as witnesses, by the leaders of the United States, Russia and the EU and then request the Secretary General of the UN to circulate the accord to all members of the UN. Thus, there was no formal act implying that it was an international agreement but a very effective declaration by the parties that they intended to abide by what they had signed.

⁴³ See, *inter alia*, E. Lauterpacht, 'The Taba Case: Some Recollections and Reflections', *Isr. L. Rev.* 23 (1989), p. 443.

The elements shaping the Arab-Israeli conflict undoubtedly are military, political, religious and economic interests. International law cannot, in and of itself, solve disputes as to these issues nor can it provide security nor produce friendships between nations. Nevertheless, international law can make and has made a serious contribution. Perhaps the major contribution of international law is that it enables States to reach agreements that delimit boundaries. Good fences make for good neighbours. The permanent nature of boundaries is one of the major contributions of international law to the international community. The automatic adoption by Egypt, Jordan and Israel of the old Mandatory boundaries as the boundaries between them was a clear manifestation of this principle. The Mandatory boundary with Egypt was, furthermore, adopted from the Ottoman era boundary delimited in 1906. Israel and the Palestinians eventually will also have to reach an agreement on a boundary.

1.2 Concluding Remarks

International law is relevant to the Arab-Israeli conflict; it has played an important role and will continue to do so. All parties desire that their positions be seen to be legally legitimate, such legitimacy is a political asset as regards both the other party and vis-à-vis third parties. The international language of international relations is, largely, the language of international law, this is particularly true as regards the United Nations and international organisations. Israel and the Palestinians are engaged in an intensive campaign to persuade world public opinion of the legitimacy of their respective cases. Legal precedents, although not binding, play a highly useful role in assisting the parties to reach agreement. The same is true for dispute settlement mechanisms of international law. Finally, the object of negotiations is to reach agreement. The principle that international agreements are binding is a principle of international law and lawyers, based on international law, will examine their validity and context.

Although international law undoubtedly has a role to play in the Arab-Israeli conflict, nevertheless one should always caution oneself with Brierly's aphorism 'the law of nations is neither a chimera nor a panacea'.⁴⁴

⁴⁴ J. L. Brierly, 'Preface to the First Edition', Andrew Clapham, ed. *Brierly's Law of Nations* (7th ed. 2012–2014), p. v.

The World War I

2.1 Developments during the World War I, 1914–1918

World War I (1914–1918) brought a sea change to the Middle East. Ottoman Turkey had been regarded for many years as the ‘sick man of Europe’.¹ From the outset of the war, it was clear to the British and French allies that whatever their situation facing Germany on the Western front was, they would nevertheless be able to defeat the Ottoman forces in the Middle East. From 1915, the British and French began planning what the Middle East would be like after the anticipated defeat of Ottoman Turkey. This planning included dividing the Middle East into respective spheres of control with Britain making, what some regarded as, conflicting promises to the Jews and to the Arabs. This was combined with American calls for self-determination of peoples and American objection to attempts to enlarge the British or French empires. All these factors combined to drastically change the political and legal face of the area. The British Middle East analyst Jon Kimche wrote, in 1950:

It therefore did not matter what Sir Henry McMahon wrote to the Sherif Hussein in 1915 or what private arrangements were made in 1916 between Sir Mark Sykes and M. Georges Picot, or what was the precise wording of the letter sent by Lord Balfour to Lord Rothschild in 1917. These were agreements and promises which were to be kept if they fitted into the larger plan, and to be forgotten or explained away if they did not.²

History has, I believe, proved Kimche wrong, and these ‘arrangements’ still influence the borders and political disputes of today’s Middle East.

¹ The phrase apparently appeared for the first time in print in the *New York Times* of 12 May 1860.

² Jon Kimche, *Seven Fallen Pillars: The Middle East, 1915–1950* (1950), p. 25.

2.2 McMahon–Sharif Hussein Correspondence

The McMahon–Hussein correspondence was an exchange of letters, secret at the time, between Sir Henry McMahon, the British high commissioner in Egypt, and Hussein, the Sharif of Mecca.³ The British wanted Hussein's support in their war with the Ottomans. Sharif Hussein was the guardian of the Muslim Holy Places and as such was seen by Britain as a potential leader of the Arab world; Hussein claimed he could speak on behalf of the whole 'Arab Nation'. In exchange for Hussein's promise to rebel against the Ottomans, Britain provided financial support, military advice, given by T. H. Lawrence (Lawrence of Arabia),⁴ and, most important in the context of this study, a promise to support Arab independence. McMahon and Hussein exchanged correspondence on this issue over a number of months. The McMahon letter to Hussein of 24 October 1915 is usually regarded as the key document in this correspondence. In this letter McMahon writes to Hussein:

I have received your letter of the 29th Shawal, 1333, with much pleasure and your expression of friendliness and sincerity have given me the greatest satisfaction.

I regret that you should have received from my last letter the impression that I regarded the question of limits and boundaries with coldness and hesitation; such was not the case, but it appeared to me that the time had not yet come when that question could be discussed in a conclusive manner.

I have realised, however, from your last letter that you regard this question as one of vital and urgent importance. I have, therefore, lost no time in informing the Government of Great Britain of the contents of your letter, and it is with great pleasure that I communicate to you on their behalf the following statement, which I am confident you will receive with satisfaction. -

The two districts of Mersina and Alexandretta and portions of Syria lying to the west of the districts of Damascus, Homs, Hama and Aleppo cannot

³ Correspondence between Sir Henry McMahon, His Majesty's High Commissioner at Cairo and the Sharif Hussein of Mecca, July 1915–March 1916, 1939. Cmd. 5957. For the historical background, see Timothy J. Parris, *Britain, the Hashemites and Arab Rule 1920–1925: The Sherifian Solution* (2003), pp. 19–26. The full text was never officially published. For an explanation, see Isaiah Friedman, *The Question of Palestine: British-Jewish-Arab Relations: 1914–1918* (2nd ed. 1992), p. 65.

⁴ Described in T. E. Lawrence, *Seven Pillars of Wisdom a Triumph* (1935).

be said to be purely Arab, and should be excluded from the limits demanded. With the above modification, and without prejudice to our existing treaties with Arab chiefs, we accept those limits.

As for those regions lying within those frontiers wherein Great Britain is free to act without detriment to the interests of her ally, France, I am empowered in the name of the Government of Great Britain to give the following assurances and make the following assurances and make the following reply to your letter:

- (1) Subject to the above modifications, Great Britain is prepared to recognise and support the independence of the Arabs in all the regions within the limits demanded by the Sharif of Mecca.
- (2) Great Britain will guarantee the Holy Places against all external aggression and will recognise their inviolability.
- (3) When the situation admits, Great Britain will give to the Arabs her advice and will assist them to establish what may appear to be the most suitable forms of government in those various territories.

Hussein subsequently initiated an insurrection against the Ottoman Empire consisting mainly of guerrilla-type attacks against the Damascus–Hedjaz railway, the railway being used to ferry Ottoman troops.

2.2.1 *Was the McMahon–Hussein Correspondence Binding in International Law?*

International law regards treaties and, in certain circumstances, unilateral undertakings as the method whereby States make legally binding undertakings. At the beginning of the twentieth century, a treaty would normally be between sovereign States;⁵ Britain clearly was a sovereign State, but it is extremely doubtful whether, at the time of the correspondence, the Hejaz fulfilled the conditions of being an independent State. In October 1915, Hejaz was still part of the Ottoman Empire. In December 1916, Britain, France and Russia recognised Hussein as king of the Hejaz;⁶ however, even if such recognition granted Hejaz the status of statehood, it would not be effective retroactively.

Could an agreement between a non-sovereign entity and a State be a treaty? Hussein had a certain amount of autonomy and aspired to be king of an Arab kingdom, and Britain never attempted to deny that it had

⁵ See J. L. Brierly, *The Law of Nations* (1928), p. 165.

⁶ Division of Near Eastern Affairs, 'Mandate for Palestine' (1931) US State Department (Report), p. 7. http://education.mei.edu/sites/d-efault/files/mei_library/pdf/6855.pdf.

made promises of independence to Hussein. Agreements between States and indigenous peoples were often termed treaties: for example, agreements between the US government and Native American tribes.⁷ Kattan cites a number of treaties signed in the nineteenth century between Britain and Gulf sheiks.⁸ In his letter to Hussein, McMahon refers to 'our existing treaties with Arab chiefs',⁹ although when the Ottoman Empire seized control of the area, Britain began designating the subsequent agreements as 'agreements' and not 'treaties'.¹⁰ A 1937 treatise on international law states categorically: 'The law of nations is concerned only with States. Only such states as are civilised, sovereign and independent are subject to that law',¹¹ though adding, 'quasi-sovereign States, when they possess the treaty-making powers at all, may make treaties on only a limited number of subjects and those of minor importance'.¹² As late as 1961, McNair wrote 'native chiefs and tribes are neither States nor international organizations and thus possess no treaty-making capacity'.¹³ There were also doubts as to how far Hussein represented the Arab world. Austen Chamberlain, British secretary of state for India, is quoted as saying that Hussein was 'a nonentity without power to carry out his proposals'.¹⁴ The historian Friedman is of the opinion that 'the Correspondence had no contractual validity',¹⁵ and the historian Tauber comments, 'a series of events occurred which forced Husayn to open the Arab revolt before the two sides [Britain and Hussein] had reached an official agreement'.¹⁶ Nevertheless, it is clear from their subsequent behaviour that Britain and Hussein regarded the correspondence as mutual commitments. British prime minister Lloyd George described the correspondence as a 'treaty' in his conversation with the French foreign minister at the Peace Conference in Paris in 1919.¹⁷

⁷ See, for example *Worcester v. Georgia*, 31 U.S. (6 Pet.) 515 (1832).

⁸ Victor Kattan, *From Coexistence to Conquest: International Law and the Origins of the Arab-Israeli Conflict 1891–1949* (2009), p. 103.

⁹ The letter of 24 October 1915 quoted above.

¹⁰ *Maritime Delimitation and Territorial Questions between Qatar and Bahrain*, Merits, Judgment, 1. C. J. Reports 2001, p. 40, para. 44.

¹¹ Marcellus Donald A. R. von Redlich, *The Law of Nations* (1937), p. 14.

¹² *Ibid.*, p. 113.

¹³ Lord McNair, *The Law of Treaties* (1961), p. 52.

¹⁴ Quoted from Friedman, *The Question of Palestine*, p. 73.

¹⁵ *Ibid.*, pp. 67, 75.

¹⁶ Eliezer Tauber, *The Arab Movements in World War I* (1993), p. 77.

¹⁷ See The Council of Four: Minutes of Meetings, 20 March to 24 May 1919, Notes of a Conference Held in the Prime Minister's Flat at 23 Rue Nitot, Paris, on Thursday, 20 March 1919 at 3 p.m., Paris Peace Conf. 180.03401/101, IC-163A in *Foreign*

The twentieth century saw instances of States making binding agreements with non-State entities aspiring to be States. Fenwick, an international lawyer writing originally in 1924, notes, 'there are cases in which political communities struggling to attain a condition of separate statehood have been recognized by international law as possessing a *de facto* as opposed to a *de jure* status';¹⁸ for example, Britain's agreement with Ireland before it was independent.¹⁹ Fenwick commented on this agreement that the Irish Sin Fein 'having at international law no *de jure* standing until the negotiations preceding the treaty'.²⁰ The Vienna Convention on Treaties recognises that there can be agreements 'between a state and other subject of international law'.²¹

The fact that it was an exchange of letters and not one unitary document would not affect its validity. It has always been diplomatic practice to reach agreement by way of exchange of diplomatic notes, which are formalised letters.²² International law has never demanded that agreements be in a particular form.²³ Modern international law has codified this previous customary norm.²⁴

Relations of the United States: The Paris Peace Conference 1919, Volume V (1946), pp. 1–14.

¹⁸ Charles G. Fenwick, *International Law* (3rd ed. 1948), p. 128.

¹⁹ 1921 *Anglo-Irish Articles of Agreement*, 26 LNTS 10.

²⁰ Fenwick, *International Law*, p. 123.

²¹ 1969 *Vienna Convention on the Law of Treaties*, 1155 UNTS 331, Article 3. See also Anthony Aust, *Modern Treaty Law and Practice* (2nd ed. 2007), p. 18.

²² 'Exchange of Notes: Not infrequently agreements are concluded between States by means of such exchange of notes.' Melquiades J. Gamboa, *A Dictionary of International Law and Diplomacy* (1973), p. 114.

²³ ICJ *Case Concerning the Temple of Preah Vihear (Cambodia v. Thailand) Preliminary Judgment of 26 May 1961*, p. 31.

From the standpoint of the obligatory character of international engagements, it is well known that such engagements may be taken in the form of treaties, conventions, declarations, agreements, protocols, or exchanges of notes. As is generally the case in international law, which places the principal emphasis on the intentions of the parties, the law prescribes no particular form, parties are free to choose what form they please provided their intention clearly results from it.

²⁴ "Treaty" means an international agreement concluded between States in written form and governed by international law, whether embodied in a single instrument or in two or more related instruments and whatever its particular designation.' Vienna Convention on the Law of Treaties 1969, Article 2(a).

It could be argued that the correspondence was a unilateral undertaking by Britain. International law recognises that a State can make a binding unilateral undertaking to another State or States;²⁵ it is, however, doubtful that this was international law at the time. Such an undertaking needs to be addressed to an individual State or to the international community as a whole. In this case, it was addressed only to Sharif Hussein and in secret.

It is unlikely that the McMahon–Hussein correspondence was regarded, at the time, as a treaty; however, whether Hejaz was at the time an independent State and whether the correspondence amounted to a treaty is secondary to the sage international law rule that regards the intention of the parties as the paramount criterion. It is clear that both sides regarded the correspondence as a mutual exchange of commitments. Kattan's comment, that 'it would seem that at the very least, it [The correspondence] amounted to a series of mutually agreed commitments',²⁶ is, I believe, the correct legal conclusion. The agreement, like all agreements, was conditional on Hussein fulfilling his promise to revolt against the Ottomans. It has been argued that he failed to do so effectively.²⁷ Kedourie described it as 'a hasty and ill-organized affair'.²⁸ It nevertheless was an attempt to fulfil Hussein's part of the agreement. Moreover, Britain did not raise this as a possible reason not to fulfil its commitments.

2.2.2 *Did the McMahon–Hussein Correspondence Promise Independence?*

The McMahon letter refers to the 'independence of the Arabs'. There is controversy whether the reference to 'independence' was intended to create an independent new State or States or only to promise to deliver the Arabs from Turkish rule. The first British promise to Hussein stated that Britain 'will guarantee the independence, rights and privileges of the Sharifate against all external foreign aggression, in particular that of the

²⁵ See ILC Guiding Principles applicable to unilateral declarations of States capable of creating legal obligations, with commentaries thereto 2006, UN Doc. A/61/10.

²⁶ Kattan, *From Coexistence to Conquest*, p. 98.

²⁷ F.O. 371/2776/42233, Grey to Bertie, 22 November 1916. Dis.no. 779, quoted from Friedman, *The Question of Palestine*, p. 79 n. 70.

²⁸ Eli Kedourie, *In the Anglo-Arab Labyrinth: The McMahon–Husayn Correspondence and Its Interpretations 1914–1939* (1976), p. 143.

Ottomans'.²⁹ Hogarth, the director of the Arab Bureau in Cairo, commented that 'neither to the Sharif nor to any other Arab did the British ever explicitly guarantee or even promise any-thing beyond liberation from the Turks'.³⁰ Clayton, the director of British Military Intelligence in Cairo, commented that the British intention was 'merely eliminating Turkish domination from Arabia'.³¹ 'In November 1922, the Amir Abdullah, in London to regulate the affairs of Transjordan, referred to unification of the Hijaz, Iraq and Transjordan, only to be told that the British government had never promised to work for 'the establishment of a great Arab kingdom'.³² Lawrence (of Arabia) writes, 'I longed to tell him [Abdullah son of Hussein] that the half-witted old man [Hussein] had obtained from us no concrete or unqualified undertaking of any sort'.³³ The historian Friedman concluded that Arab independence was at the time understood to be 'liberation from their supposed adversaries, not necessarily independence'.³⁴ Bâli comments that Arab demands were for a 'united and independent greater Syria' at the time 'there was little to no local support for according independence to smaller units based on communal identities'.³⁵

On 7 November 1918, the British and French governments issued a joint Declaration. The essential passage was as follows:

The object aimed at by France and Great Britain in prosecuting in the East the war let loose by German ambition is the complete and definite emancipation of the peoples so long oppressed by the Turks, and the establishment of National Governments and administrations deriving their authority from the initiative and free choice of the indigenous populations. In order to carry out these intentions France and Great Britain are at one in encouraging and assisting the establishment of indigenous Governments and administrations in Syria and Mesopotamia, now liberated by the Allies, and in territories the liberation

²⁹ Letter from McMahon to Hussein 31 October 1914.

³⁰ Quoted from Friedman, *The Question of Palestine*, p. 67.

³¹ *Ibid.*, p. 68.

³² Memo of Amir Abdullah of 13 November 1922 and FO letter of 11 January 1923, quoted from Suleiman Mousa, 'A Matter of Principle: King Hussein of The Hijaz and the Arabs of Palestine', *International Journal of Middle East Studies*, 9 (1978), 183–194, p. 191.

³³ Lawrence, *Seven Pillars of Wisdom*, p. 212.

³⁴ Friedman, *The Question of Palestine*, p. 67.

³⁵ Asli Bâli, 'Sykes–Picot and "Artificial" States, Symposium on the Many Lives and Legacies of Sykes–Picot', *AJIL Unbound*, 110 (2016), p. 118. www.cambridge.org/core/journals/american-journal-of-international-law/ajil-unbound-by-symposium/many-lives-and-legacies-of-sykes-picot.

of which they are engaged in securing, and in recognizing these as soon as they are established. Far from wishing to impose on the populations of these regions any particular institutions, they are only concerned to secure by their support and by adequate assistance the regular working of Governments and administrations freely chosen by the populations themselves.³⁶

This 1918 Anglo-French declaration would seem to imply that the intention was indeed to create independent States. US President Wilson, however, in his 'Fourteen Points' stated 'the other [non-Turkish] nationalities which are now under Turkish rule should be assured an undoubted security of life and an absolutely unmolested opportunity of autonomous development'.³⁷ In reference to other situations, President Wilson explicitly referred to 'sovereignty'; but in this context, only the phrase 'autonomous development' was used. Britain and France in fact did allow the Arabs to create independent States in Hejaz, Lebanon, Syria, Iraq, Saudi-Arabia and later in Jordan.

2.2.3 *The Issue of the Secrecy of the McMahon–Hussein Correspondence*

The fact that the agreement was secret did not affect its legality at the time. 'International law also imposed no requirement of publication'.³⁸ The Covenant of the League of Nations subsequently changed this situation by ruling that 'no such treaty or international engagement shall be binding until so registered [with the Secretariat of the League]'.³⁹ This rule, however, was interpreted as meaning only that the League would not take formal cognizance of non-registered treaties.⁴⁰ The UN Charter follows this interpretative precedent and states only that non-registered agreements may not be invoked 'before any organ of the UN'.⁴¹

³⁶ Anglo French Declaration, 7 November 1918 (Iraq and Syria) Annex I, to the report contained in Command Paper No. 5974.

³⁷ President Woodrow Wilson's Fourteen Points, 8 January 1918, Point No. XII. https://avalon.law.yale.edu/20th_century/wilson14.asp.

³⁸ Megan, Donaldson, 'Textual Settlements: The Sykes–Picot Agreement and Secret Treaty-Making, Symposium on the Many Lives and Legacies of Sykes–Picot', *AJIL Unbound*, 110 (2016), p. 120, 127. www.cambridge.org/core/journals/american-journal-of-international-law/ajil-unbound-by-symposium/many-lives-and-legacies-of-sykes-picot.

³⁹ Article 18 of the Covenant of the League of Nations.

⁴⁰ Donaldson, 'Textual Settlements', p. 130.

⁴¹ Article 103, the UN Charter. Aust comments that even this stipulation is 'more honoured in the breach than the observance'. Aust, *Modern Treaty Law and Practice*, p. 346.

2.2.4 *Was Palestine Included in the McMahon–Hussein Correspondence?*

The British reservation in the McMahon–Hussein correspondence was that the promise of independence given to Hussein did not include ‘the two districts of Mersina and Alexandretta and portions of Syria lying to the west of the districts of Damascus’, and only applied to areas ‘within those frontiers wherein Great Britain is free to act without detriment to the interests of her ally France’. In the correspondence, neither Hussein nor McMahon refer explicitly to Palestine. This has led to continuing disagreement as to whether the promise made to Hussein included Palestine and what Hussein’s understanding was of the British intention. The disagreement centres largely on what was the understanding at the time of the phrase ‘portions of Syria lying to the west of the districts of Damascus’ and areas where France had an interest.

2.2.5 *Support for the Proposition That Palestine Was Included in McMahon’s Pledge*

The historian Toynbee was of the opinion that ‘with regard to Palestine’ the McMahon letter is committed ‘to its inclusion in the boundaries of Arab independence’.⁴² Kattan argues that, as McMahon wrote later that he was only excluding ‘districts on the Northern coast of Syria’, ‘McMahon clearly did not intend to exclude Palestine from his pledge’⁴³ since, ‘at no point in the 20th Century, was Palestine situated on the northern coast of Syria’.⁴⁴ Kattan also quotes a British Foreign Office intelligence memorandum from 1919 that Palestine was included ‘in the boundaries of Arab independence’ and an internal large-scale Foreign Office map, undated, but apparently from 1919, that showed Palestine as included in the area pledged to Hussein.⁴⁵ A slightly ambiguous message

⁴² British CAB 27/36, E.C. 2201 quoted from Friedman, *The Question of Palestine*, p. 88 n. 126.

⁴³ Kattan, *From Coexistence to Conquest*, p. 106.

⁴⁴ Victor Kattan, ‘Palestine and International Law: An Historical Overview’ in Victor Kattan, ed. *The Palestine Question in International Law* (2008), p. xxvi.

⁴⁵ Kattan, *From Coexistence to Conquest*, Map. No. 2. However, a Canadian cartographer comments ‘this map’s reordering of the area was fleeting, and interpretations of it varied’. Karen Culcasi, ‘Disordered Ordering: Mapping the Divisions of the Ottoman Empire’, *Cartographica: The International Journal for Geographic Information and Geovisualization*, 49, no. 1 (Spring 2014), pp. 2–17. No exact page numbers in online version.

by British Commander Hogarth to Sharif Husain stated that ‘the Entente Powers are determined that the Arab race shall be given full opportunity of once again forming a nation in the world. So far as Palestine is concerned, we are determined that no people shall be subject to another’.⁴⁶ Hogarth’s message should perhaps be read in the context of his contemporary statement that ‘what the British were asked was simply to promote independence of the Arabs from their present over-Lord, the Turk’.⁴⁷ The issue was discussed by a joint Arab–British Committee in 1939.⁴⁸ The Arab members of the committee held that since the reservation did not mention Palestine, the only area that had been excluded from the limits of Arab independence were the coastal regions of northern Syria. The Arab view was that if Britain had intended to exclude Palestine, they would have referred to the Ottoman designation of Palestine, the *Sanjak* (sub-province) of Jerusalem, which Britain did not do.⁴⁹ Thus, according to the Arab position, Palestine was included in the pledge. Sir Michael McDonnell, who had served as chief justice in Palestine and was present at the committee meetings as a supporter of the Arab view, supported their position.⁵⁰ As the 1937 Peel Report commented, ‘the Arabs had always regarded Palestine as included in Syria. Even if they had interpreted the [McMahon] Pledge as meaning that Palestine would not be independent but reserved for French or British or international control, they could not have foreseen that such control might cover the establishment of a Jewish National Home’.⁵¹ Kattan notes that the Arabs continue to believe that Palestine was included in the pledge; and in October 1947, the Arab States even submitted a draft resolution to the UN General Assembly to request an Advisory Opinion from the ICJ. The draft resolution asked whether the pledges given by Great Britain to the Sharif of Mecca in 1915–1916 and

⁴⁶ ‘Report of a Committee on Correspondence between Sir Henry McMahon and the Sherif of Mecca’, *Parliamentary Papers – Cmd. 5974* (1939), p. 48.

⁴⁷ F.O. 882/2, ‘Note on the “Arab Question” by Cdr. Hogarth, dated 16 April 1916’. Quoted from Friedman, *The Question of Palestine*, p. 67 n. 10.

⁴⁸ Report of a Commission Set up to Consider Certain Correspondence between Sir Henry McMahon and the Sharif of Mecca in 1915 and 1916. Presented by the Secretary of State for the Colonies to Parliament by Command of His Majesty, 16 March 1969, XIV *Parliamentary Papers* (1938–1939), Cmd. 5974. Quoted from Kattan, *From Coexistence to Conquest*, p. 107 n. 73.

⁴⁹ *Ibid.*, para. 14.

⁵⁰ Quoted in Kattan, *From Coexistence to Conquest*, p. 107.

⁵¹ Peel Commission Report, Chapter II Article 23, commenting on the Hogarth message concerning Palestine. <https://unispal.un.org/pdfs/Cmd5479.pdf>.

her subsequent declarations and assurances to the Arabs included Palestine.⁵² The draft was not adopted.

2.2.6 *Support for the Proposition That Palestine Was Not Included in McMahon's Pledge*

McMahon wrote, in 1922, in a confidential letter to the Colonial Office: 'It was as fully my intention to exclude Palestine as it was to exclude the more Northern coastal tracts of Syria. I have no recollection of ever having anything from the Sharif of Mecca, by letter or message, to make me suppose that he did not understand Palestine to be excluded from independent Arabia.'⁵³ British Prime Minister Lloyd George was of the opinion that 'Palestine did not seem to give them [The Arabs] much anxiety. For reasons which were obvious to them they realised that there were genuine international interests in Palestine'.⁵⁴ In 1918, Sir Gilbert Clayton, the Head of British Intelligence in Cairo, wrote that Hussein 'is quite prepared to leave Palestine alone provided he can secure what he wants in Syria'.⁵⁵ The report of Faisal's presentation at the Versailles Peace Conference states that Faisal presented the Arab territorial claims but, the report adds, 'Palestine, for its universal character he left on one side for the mutual consideration of all parties interested. With this exception, he asked for the independence of all the Arabic areas enumerated in his memorandum'.⁵⁶ The official 1922 British White Paper on Palestine affirmed:

It is not the case, as has been represented by the Arab Delegation that during the war His Majesty's Government gave an undertaking that an independent national government should be at once established in Palestine. This representation mainly rests upon a letter dated the 24th October, 1915, from Sir Henry McMahon, then His Majesty's High Commissioner in Egypt, to the Sharif of Mecca, now King Hussein of the Kingdom of the Hejaz. That letter is quoted as conveying the promise

⁵² See the questions formulated by Iraq, Egypt and Syria in *UN Yearbook 1947-8*, pp. 237-241.

⁵³ F.O. 371/7797/ (1922) E 2821/65, McMahon to Shuckburgh, 12 March 1922, encl. in Shuckburgh to Forbes-Adam, 13 March, quoted from Isaiah Friedman, *The Question of Palestine*, p. 84.

⁵⁴ Lloyd George, *The Truth about the Peace Treaties* (1918), vol. 2, p. 1032.

⁵⁵ Clayton in a letter to the Gertrude Bell 17 June 1918, Clayton Papers quoted from Friedman, *The Question of Palestine*, p. 91 n. 154.

⁵⁶ *Papers Relating to the Foreign Relations of the United States*, vol. III, p. 891.

to the Sharif of Mecca to recognise and support the independence of the Arabs within the territories proposed by him. But this promise was given subject to a reservation made in the same letter, which excluded from its scope, among other territories, the portions of Syria lying to the west of the District of Damascus. This reservation has always been regarded by His Majesty's Government as covering the *vilayet* of Beirut and the independent Sanjak of Jerusalem. The whole of Palestine west of the Jordan was thus excluded from Sir. Henry McMahon's pledge.⁵⁷

In a letter to High Commissioner Samuel, of 12 April 1923, Clayton who had been McMahon's principal assistant in the negotiations with Hussein, wrote 'it was never the intention that Palestine should be included in the general pledge given to the Sherif; the introductory words of Sir Henry's letter were thought at the time-perhaps erroneously-clearly to cover that point'.⁵⁸ Lord Milner, the British Secretary of State for War, declared in the House of Lords in 1923, 'in the promise which we made to King Hussein a distinct reservation was made of [Palestine]'.⁵⁹ A recent study by a Canadian cartographer concluded, 'Hussein and his son Feisal, who were both involved in the negotiations, were willing to concede parts of Palestine and the south-eastern coast'.⁶⁰ In the view expressed by the British government representatives during the Arab-British Committee of 1939,⁶¹ Palestine was not a 'purely Arab country'⁶² and the reservation 'should reasonably have been understood to exclude, the part of southern Syria, consisting or portions of the former Vilayet of Beirut and the former independent Sanjak of Jerusalem, now known as Palestine'.⁶³ One author, who believes Palestine was promised, nevertheless adds in this context: 'There is little doubt that the British intended to reserve it [Palestine] for

⁵⁷ British White Paper of June 1922, *The Israel-Arab Reader: A Documentary History of the Middle East Conflict*, Walter Laqueur and Dan Schueftan, eds. (8th ed. 2016), p. 25.

⁵⁸ Viscount Samuel, *Memoirs* (1945), p. 173.

⁵⁹ Quoted from Friedman, *The Question of Palestine*, p. 88.

⁶⁰ Culcasi, 'Disordered Ordering', pp. 2–17. Exact page numbers don't appear in online version.

⁶¹ Report of a Commission Set up to Consider Certain Correspondence between Sir Henry McMahon and the Sharif of Mecca in 1915 and 1916. Presented by the Secretary of State for the Colonies to Parliament by Command of His Majesty, 16 March 1969, XIV Parliamentary Papers (1938–39), Cmd. 5974. Quoted from Kattan, *Coexistence to Conquest*, p. 107 n. 73.

⁶² *Ibid.*

⁶³ *Ibid.*, n. 73.7, para. 13(b).

disposal, in agreement with France if necessary.’⁶⁴ The British ‘reservation’ clause in the correspondence refers explicitly to ‘those regions lying within those frontiers wherein Great Britain is free to act without detriment to the interests of her ally, France’. During the negotiations of the Sykes–Picot agreement France had strongly expressed its traditional interests in Palestine. The Sykes–Picot Agreement promised an international regime for Palestine, which presumably would include France and granted France a free trade port in Haifa. It would seem to reinforce the fact that McMahon was informing Hussein that Palestine was not being promised as a part of an Arab Kingdom. The American-Palestinian historian Rashid Khalidi describes the McMahon promise of independence to the Arabs as referring to ‘an ill-defined area as part of an ambiguous correspondence’.⁶⁵ The British representative to the 1939 Conference agreed that the language of the reservation ‘was not so specific and unmistakable as it was thought to be’, but added, ‘on proper construction of the Correspondence, Palestine was in fact excluded’.⁶⁶

2.2.7 *Concluding Remarks regarding McMahon–Hussein Correspondence*

It is doubtful that the correspondence was regarded as a treaty at the time, nevertheless, it was a binding international commitment by Britain. The fact that it was secret and conditional on Britain defeating the Ottomans does not detract from its legal validity. Britain promised independence but apparently intended the area to be under British control or influence. The British intended to exclude Palestine from the area promised to Hussein and Hussein apparently acquiesced at the time to such exclusion. It would seem to be extremely doubtful that Britain intended to include Palestine in the future kingdom of Hussein. Britain saw the need for control of Haifa as a vital interest. It is also highly unlikely that Britain intended to place the Christian holy places in Jerusalem under Muslim rule. Britain was also aware of the French interests in Jerusalem and of the Jewish Zionist aspirations.

The correct conclusion would appear to be that although Hussein originally demanded that Palestine be included in his Arab Kingdom,

⁶⁴ Charles D. Smith, ‘The Invention of a Tradition: The Question of the Arab Acceptance of the Zionist Right to Palestine during World War I’, *Journal of Palestine Studies*, 22, no. 2 (Winter 1993), pp. 48–61, 52.

⁶⁵ Rashid Khalidi, ‘International Law and Legitimacy and the Palestine Question’, *Hastings International & Comparative Law Review*, 30, no. 2 (2007), pp. 173–180, 175.

⁶⁶ British Cmd. 5974 (1939), pp. 10, 24, 46, quoted from Friedman, *The Question of Palestine*, p. 82 n. 97.

Britain excluded Palestine from their promise of supporting Hussein's claim but, for political reasons, used ambiguous language that did not make an explicit reference to excluding Palestine. Hussein, aware of the special position of Palestine, apparently acquiesced in its exclusion.

2.3 Sykes–Picot Agreement Background and Text

On 16 May 1916, Great Britain and France, with the knowledge of Russia, concluded a secret agreement, the Sykes–Picot Agreement, named after the two negotiators, Sir Mark Sykes of Britain and Charles Georges-Picot of France. The British objectives were summarised by Sykes: 'Our task is to get Arabs to concede as much as possible to the French and to get our Haifa outlet and Palestine included in our sphere of influence in the form of French concession to us.'⁶⁷ The subsequent agreement provided:

France and Great Britain are prepared to recognize and protect an independent Arab state or a confederation of Arab states (a) and (b) marked on the annexed map, under the suzerainty of an Arab chief. That in area (a) France, and in area (b) Great Britain, shall have priority of right of enterprise and local loans. That in area (a) France, and in area (b) Great Britain, shall alone supply advisers or foreign functionaries at the request of the Arab state or confederation of Arab states.

That in the blue area France, and in the red area Great Britain, shall be allowed to establish such direct or indirect administration or control as they desire and as they may think fit to arrange with the Arab state or confederation of Arab states.

That in the brown area [Palestine] there shall be established an international administration, the form of which is to be decided upon after consultation with Russia, and subsequently in consultation with the other allies, and the representatives of the Shereef of Mecca.⁶⁸

France and Britain, with Russian acquiescence, thus divided the provinces of the Ottoman Empire into respective British (Area B) and French (Area A) zones of influence, which would take effect after the defeat of

⁶⁷ F.O. 371/2490/108253, Sykes to Calwell, 14 July 1915, encl. in W.O. to F.O., 6 August 1915; F.O. 371/24982, Sykes to D.M.O. (W.O.) 15, 19, 20, 21, 28 November, 2 December 1915, encls. in McMahon's tells to F.O. Quoted from Friedman, *The Question of Palestine*, p. 104.

⁶⁸ 'Sykes–Picot Agreement', in J. N Moore, ed. *The Arab-Israeli Conflict* (1974), vol. III, pp. 25–28.

the Ottomans. The Agreement would give Britain control over much of Mesopotamia, northern Arabia, Trans-Jordan and Gaza, while France would receive Cilicia, the Syrian coast, Mosul, Aleppo and Damascus. Palestine (Brown area) would come under a vaguely defined 'international administration'. The Agreement was an imperial era division of spheres of influence. 'At that point of time, all the actors were necessarily talking in the language of imperial rule.'⁶⁹ Kattan describes it as 'the foremost example of Western double-dealing in the Middle East since the discovery of oil',⁷⁰ and Philby writes that the agreement sought 'to modify the promises made to the Arabs in the McMahon correspondence'.⁷¹ Antonius comments that the Agreement was 'a shocking document, a startling piece of double dealing'.⁷² The British diplomat Nicholson commented, however, that he saw 'no incompatibility between Picot's proposals and the British understanding with Hussein'.⁷³

One historian comments: 'The agreement on the ultimate status of these territories was left ambiguous possibly to enable the eventual reconciling of this map with British promises to Hussein.'⁷⁴ The borders were drawn on a very large scale map and Law Professor Bâli comments that 'if there is one thing historians of the modern Middle East can agree on, it is that the borders of the region were not set by the Sykes Picot agreement'.⁷⁵ The agreement did not define in detail the borders of the areas concerned and the British deemed the map only a 'useful guide' for negotiations.⁷⁶ The French apparently considered the Sykes-Picot map definitive; but later, the British and the French in a series of agreements signed in 1922 and 1923 defined the borders of Palestine (including what is now Jordan), Lebanon, Syria, and Iraq. These agreements reflected to

⁶⁹ Karin Loevy, 'The Sykes-Picot Agreement's Regional Moment; Drawing Lines of Development in a New and Open Space, Symposium on the Many Lives and Legacies of Sykes-Picot', *AJIL Unbound*, 110 (2016), pp. 120, 121. www.cambridge.org/core/journals/american-journal-of-international-law/ajil-unbound-by-symposium/many-lives-and-legacies-of-sykes-picot.

⁷⁰ Victor Kattan, 'Palestine and the Secret Treaties', *AJIL Unbound*, 110 (2016), p. 116.

⁷¹ H. St. J. B. Philby, 'The Arabs and the Future of Palestine', *Foreign Affairs*, 16 (1937), pp. 156-166, 158.

⁷² George Antonius, *The Arab Awakening* (1938), p. 248.

⁷³ F.O. 371/4180/2117, Note prepared by the British delegation to the Peace Conference (undated), encl. in Mallet to Curzon, 26 May 1919, dis. No. 809. Quoted from Friedman, *The Question of Palestine*, p. 106.

⁷⁴ Bâli, 'Sykes-Picot and "Artificial" States', p. 116.

⁷⁵ *Ibid.*

⁷⁶ 'Memorandum of Syria', from the British Delegation in 1919, Yale University Archives, House Collection, box 207 2/823, quoted from Culcasi, 'Disordered Ordering', pp. 2-17.

some extent the broad agreement reached in Sykes–Picot. Notwithstanding this ambiguity, ‘the agreement became one of the cornerstones of the region, and gave the core area of the Middle East the shape it has assumed since the end of World War I’.⁷⁷

2.3.1 *The Legal Validity of the Sykes–Picot Agreement*

As with the McMahon–Hussein correspondence, the fact that the agreement was secret did not affect its legality at the time. Britain and France were not at the time in control of the areas and the Director of British Military Intelligence commented, ‘we are rather in the position of the hunters who divided the skin of the bear before they had killed it’.⁷⁸ However, this also would not have affected the legal validity of the Agreement since conditional agreements are valid in both national and international law. One legal analyst commented on the Sykes–Picot agreement that it ‘probably represents the most legitimate disposition of whatever expectancy rights or authority Britain had in Palestine’.⁷⁹ As to a possible conflict with the Hussein–McMahon correspondence, Harold Nicolson commented France ‘could not release Great Britain from the terms of a solemn agreement merely because these terms conflicted with previous obligations entered into with a third party, of which obligations France had not been informed at the time’.⁸⁰

2.3.2 *The Sykes–Picot Agreement and the Principle of Self-Determination*

Harold Nicolson writes that President Wilson

was much exercised how to reconcile, on the one hand, the doctrine of self-determination, and, on the other hand, the undoubted fact that

⁷⁷ Itamar Rabinovich, Robbie Sabel and Oded Eran, ‘A Century Since the Sykes–Picot Agreement: Current Challenges’, *INSS Insight*, 822 (16 May 2016), pp. 1–4.

⁷⁸ F.O. 371/2767/938. Note by Sir A. Hirtzel, dated 10 January 1916, encl. in Holderness to Nicholson, 13 January; Macdonogh to Nicolson, 6 January 1916. War Dept. Secret Series. Quoted from Friedman, *The Question of Palestine*, p. 110.

⁷⁹ Peter A. Schuller, ‘Jurisdiction over Palestine – An Analysis of the Conflicting Arab-Israeli Claims of Legal Title’, *Vanderbilt Journal of Transnational Law*, 11 (1978), pp. 271–297, 285.

⁸⁰ Harold Nicolson, *Peacemaking 1919* (1933) (1944), p. 143.

France and Great Britain had pledged themselves by treaty to a solution by which that doctrine would be flagrantly violated. President Wilson (and it was almost the last occasion on which he stood by his principles) said that it was a matter of complete indifference to him what France and Great Britain had decided in the form of Secret Treaty: they had since then accepted the Fourteen Points: they were thus obliged, whatever their previous engagements, to consider only the wishes of the populations concerned.⁸¹

A study by the UN Division of Palestinian Rights concluded ‘the Sykes–Picot agreement specified recognition of an “independent Arab State” or “confederation of Arab States”’.⁸² Friedman, however, is of the opinion that the Arabs had not envisaged a unitary ‘coherent Arab State’ in the region.⁸³ William Reginald Hall, Head of Naval Intelligence at the time, commented that the Jewish interest in Palestine had been ignored and that ‘the Jews have a strong material and a very strong political interest in the future of the country’.⁸⁴

2.3.3 *Concluding Remarks Regarding the Sykes–Picot Agreement*

The 1916 Sykes–Picot Agreement was an agreement between Britain and France to divide the Middle East into respective areas of influence. The agreement was conditional on Britain and France defeating the Ottoman Empire. The Agreement ignored national interests of both Arabs and Jews. It was, however, a binding agreement between two sovereign States. The fact that it was a secret agreement and ignored rights of self-determination did not affect its legality at the time. The Agreement was never implemented, and the borders contemplated in the agreement were never realised.⁸⁵ However, the broad division of spheres of influence between France and Britain agreed to in the Sykes–Picot Agreement was reflected to a large extent in the 1920 San Remo Conference which superseded Sykes–Picot and in the subsequent delimitation of the borders of Palestine Lebanon and Syria.

⁸¹ *Ibid.*, pp. 142, 143.

⁸² UN Division of Palestinian Rights, *The Origin and Evolution of the Palestine Problem 1917–1988* (1990), p. 4.

⁸³ Friedman, *The Question of Palestine*, p. 107.

⁸⁴ *Ibid.*, p. 111.

⁸⁵ See Bâli, ‘Sykes–Picot and “Artificial” States’, p. 115.

2.4 Attempts at Zionist-Arab Understanding

From the beginning of the twentieth century, there were attempts to reach Zionist-Arab understanding concerning Palestine. There were meetings in 1911 between Zionist representatives and Arab members of the Turkish parliament where, in consideration for Jewish support for Arab independence, the Arabs would support Jewish autonomy in Palestine.⁸⁶ A Zionist representative was accredited as an observer at the 1913 All Arab Congress in Paris.⁸⁷ In 1915, the Turkish commander in Jerusalem was dismissed because he supported an Arab-Jewish gathering in Jerusalem.⁸⁸ Nevertheless, the majority of Arabs in Palestine saw Zionism as a threat and Zionism served as a catalyst to the development of a separate Arab Palestinian nationalism.

⁸⁶ Aharon Cohen, *Israel and the Arab World* (1970), pp. 116–117.

⁸⁷ *Ibid.*, pp. 96–97.

⁸⁸ *Ibid.*, pp. 116–117.

The Zionist Movement and the 1917 Balfour Declaration

3.1 Defining Zionism

This is the 1936 British Peel Commission description of Zionism:

While the Jews had thus been dispersed over the world, they had never forgotten Palestine. If Christians have become familiar through the Bible with the physiognomy of the country and its place-names and events that happened thousands of years ago, the link which binds the Jews to Palestine and its past history is to them far closer and more intimate. Judaism and its ritual are rooted in those memories. Among countless illustrations it is enough to cite the fact that Jews, wherever they may be, still pray for rain at the season it is needed in Palestine.¹

The British Commission called the history of the Jews in Palestine, ‘one of the great chapters in the story of mankind’.²

3.2 Are Jews a Nation?

The issue of whether the Jews are a nation or just a race or religion became relevant only at the beginning of the twentieth century when the issue became linked with the burgeoning idea of Zionism as an expression of the principle of self-determination of peoples.

The constitutive elements of a ‘people’ have been defined as ‘a history of independence or self-rule in an identifiable territory, a distinct culture, and a will and capability to regain self-governance’.³ The Jews share a distinct identity, which includes the Hebrew language, the Jewish

¹ 1936–37 [Cmd. 5479] Palestine Royal Commission Report (Royal Commission), p. 11.

² Ibid., p. 4.

³ Aureliu Critescu, Special Rapporteur of the Sub-Commission on Prevention of Discrimination and Protection of Minorities, *The Right To Self-Determination*, UN Doc. E/CN.4/Sub.2/404/Rev.1 (UN Publications, sales No. E.80.XIV.3, 1980); Hector Gros Espiell, *The Right To Self-Determination*, UN Doc. E/CN.4/Sub.2/405/Rev.1. (UN. sales No. E.79.XIV.5, 1980).

religion, a complex legal code, national and religious holidays, common cultural icons, a body of literature, a shared historical narrative and a continuing sense of common destiny and peoplehood. The Bible was written in Hebrew and is mostly set in the territory of modern-day Israel. The Jews have a history of independence and self-rule in the land of Israel going back thousands of years. During long periods of time, the territory was subjugated by various empires, but no people, other than the Jewish people, has ever had an independent state in the area. Jewish independence continued until 135 AD, when the Roman Empire suppressed the Jewish revolt, exiled most of the Jewish population and renamed the area Palestine.⁴

As the jurist Nathan Feinberg wrote, ‘an entirely new concept was introduced into international law during the World War I, namely that of the recognition of Nations’. Feinberg goes on to quote Fauchille that the Balfour Declaration and similar declarations ‘undoubtedly constituted the recognition of the Jewish people as a nation’. To the recognition of the Czechoslovaks and the Poles was thus added ‘the official recognition as a nation of yet another oppressed people’.⁵

On the other hand, there were those who considered the Jewish people only as a religious group. The jurist Mallison, for example, was of the opinion that Judaism is only a religion and that the phrase ‘Jewish people’ was invented for political reasons by the Zionist movement.⁶ Mallison buttresses his position by quoting a number of Rabbis who state that Judaism denotes ‘Englishmen or Frenchmen or Germans as the case may be’ practicing a religion.⁷ According to Mallison, ‘one of the features of the “Jewish people” nationality entity claim which requires its rejection in international law is that it does not comprise the nationality of a national state’.⁸ In support of his position Mallison quotes from a 1964 US Department of State letter to the American Council for Judaism (an

⁴ The area has been known alternately as ‘Canaan’, ‘Judea’, ‘The Land of Israel’, ‘Israel’, ‘Eretz Yisrael’ and ‘The Holy Land’. After suppressing the Jewish revolt of 135 CE, the Romans renamed the area as ‘Palestine’ after the previous coastal inhabitants, the Philistines. See Benny Morris, *1948: A History of the First Arab-Israeli War* (2008), p. 1.

⁵ Nathan Feinberg, ‘The Recognition of the Jewish People in International Law’, in John Norton Moore, ed. *The Arab-Israeli Conflict. Volume I: Readings* (1974), p. 74.

⁶ W. T. Mallison Jr., ‘Zionist-Israel Juridical Claims to Constitute “The Jewish People” Nationality Entity and to Confer Membership in It: Appraisal’, in John Norton Moore, ed. *The Arab-Israeli Conflict. Volume I: Readings* (1974), p. 88.

⁷ *Ibid.*, p. 91.

⁸ *Ibid.*, p. 156.

anti-Zionist group) that ‘the Department of State does not regard the “Jewish people” concept as a concept of international law’.⁹ A seminar of Arab Jurists on Palestine published a study in which they stated that the Jews have no common language, history or roots and ‘religion is all that links the Jews together’.¹⁰

The League of Nations, however, in the 1922 Mandate Resolution¹¹ unanimously accepted the Jews as a nation, and there has been no subsequent international denial of that status. The historian Frankenstein comments that the acceptance of the term by the Council of the League of Nations assured that the term ‘Jewish people’ would be recognised by international law as an internationally recognised political and ethnical entity.¹²

3.3 A Right of Self-Determination to the Jewish People as a Whole

US Supreme Court Justice Louis Brandeis is quoted as saying, ‘Jews collectively should likewise enjoy the same right and opportunity to live and develop as do other groups of people. They could not do so, he maintained, without a homeland, as other groups had’.¹³ At the 1920 San Remo Conference, the British Secretary of State for Foreign affairs, Lord Curzon stated, ‘Palestine was in future to be the National Home of the Jews throughout the world’.¹⁴ Feinberg writes, ‘the right to the National Home is granted to the Jewish people as a whole, and not to any part of it; it is granted not to Zionists or to Jews who have settled in Palestine or who will settle there but to all Jews wherever they may be’.¹⁵ British

⁹ Letter from Phillip Talbot, Assistant Secretary of State to Elmer Berger, Executive Vice President, American Council for Judaism, *ibid.*, p. 178.

¹⁰ *Seminar of Arab Jurists on Palestine, Algiers, 22–27 July 1967 – The Palestine Question* (1968), quoted from ‘The Recognition of the Jewish People in International Law’, *ibid.*, p. 262.

¹¹ ‘Palestine Mandate’, in Walter Laqueur and Dan Schueftan, eds. *The Israel-Arab Reader, a Documentary History of the Middle East Conflict* (8th ed. 2016), p. 30.

¹² Ernst Frankenstein, ‘Meaning of the Term National Home for the Jewish People’, *Jewish Year Book of International Law*, 27, no. 1 (1948), p. 39.

¹³ Leonard Baker, *Brandeis and Frankfurter: A Dual Biography* (1984), p. 80.

¹⁴ Minutes of Palestine Meeting of the Supreme Council of the Allied Powers held in San Remo at the villa Devachan, 24 April 1920 (Minutes prepared by the British Secretary), www.israellegalfoundation.com/sanremominutes.htm.

¹⁵ Nathan Feinberg, ‘The Recognition of the Jewish People in International Law’, in John Norton Moore, ed. *The Arab-Israeli Conflict. Volume I: Readings* (1974), p. 76; Nathan Feinberg, *Studies in International Law, with Special Reference to the Arab-Israel Conflict* (1979), p. 249.

Prime Minister Ramsay MacDonald speaking in 1931, stated, ‘the undertaking of the Mandate is an undertaking to the Jewish people and not only to the Jewish population of Palestine’.¹⁶ The 1947 UNSCOP Reports the Jewish position on this issue:

Both the Balfour Declaration and the Mandate involved international commitments to the Jewish people as a whole. It was obvious that these commitments were not limited only to the Jewish population of Palestine, since at the time there were only some 80,000 Jews there.¹⁷

3.4 Is the Jewish Nation Indigenous to Palestine?

There is no agreed international law definition of the term ‘indigenous people’. The Office of the UN High Commissioner for Human Rights gives the following statement as to the definition:

The main criterion is the criterion of self-identification: Historical continuity with pre-invasion and/or pre-colonial societies that developed on their territories; Distinctiveness; Non-dominance; and a determination to preserve, develop and transmit to future generations their ancestral territories and identity as peoples in accordance with their own cultural patterns, social institutions and legal system. The United Nations Permanent Forum on Indigenous Peoples has stressed, in addition to the above: A strong link to territories and surrounding natural resources; distinct social, economic or political systems; and distinct language, culture and beliefs.¹⁸

A recent judicial definition of ‘indigenous people’ is the following:

Indigenous communities, peoples and nations which having a historical continuity with pre-invasion and pre-colonial societies that developed on their territories, consider themselves distinct from other sectors of societies now prevailing in those territories, or parts of them.¹⁹

¹⁶ Letter from Prime Minister J. Ramsay Macdonald to Weizmann, 13 February 1931, quoted from Max M. Laserson, *On the Mandate, Documents, Statements, Laws and Judgments Relating to and Arising from the Mandate for Palestine* (1937), p. 130.

¹⁷ UNGA Resolution 181 (II), 29 November 1947. UNSCOP Report, para. 146.

¹⁸ Office of the UN High Commissioner for Human Rights, *Indigenous Peoples and the United Nations Human Rights System* Fact Sheet No. 9/Rev.2 (2013), p. 2, www.ohchr.org/Documents/Publications/fs9Rev.2.pdf.

¹⁹ African Court on Human and Peoples’ Rights, *African Commission On Human And Peoples’ Rights V. Republic of Kenya* Application No. 006/2012, Judgment of 26 May 2017, available at <http://en.african-court.org/images/Cases/Judgment/Application%20006->

The British 1937 Peel Commission wrote that even after the exile of the Jewish population from Palestine 'a number of them had clung throughout the centuries of Moslem occupation to what had once been their national soil; but the vast majority of the race had spread themselves over the rest of the world'.²⁰ The Preamble to the 1922 League of Nations Mandate for Palestine states: 'Whereas recognition has thereby been given to the historical connection of the Jewish people with Palestine and to the grounds for reconstituting their national home in that country'.²¹ The Jewish population of Palestine considered that they fulfilled the conditions of being indigenous.

The Palestinian position has been set out as follows: 'Essentially, the Palestinians regard themselves as the rightful indigenous inheritors of all the Arab communities that have settled in the region since time immemorial'.²²

The legal conclusion may be that both Arabs and Jews should be considered as indigenous people in Palestine.

3.5 The Zionist Movement and the Local Arab Population

The historian Schneer writes: 'Like two ships headed for a collision in the dark of night, the Arab and Jewish nationalist movements pushed relentlessly forward, oblivious to each other, fated nonetheless to coincide eventually'.²³ The 1947 UNSCOP commented, 'the desire of the Arab people of Palestine to safeguard their national existence is a very natural desire. However, Palestinian nationalism, as distinct from Arab nationalism, is itself a relatively new phenomenon, which appeared only after the division of the 'Arab rectangle' by the settlement of the World War I'.²⁴

2012%20-%20African%20Commission%20on%20Human%20and%20Peoples'%20Rights%20v.%20the%20Repub.

²⁰ 'Report of the Palestine Royal Commission', 1937, Cmd.5479, UNISPAL, <http://unispal.un.org/pdfs/Cmd5479.pdf>, Chapter I, para. 14.

²¹ 'League of Nations Mandate for Palestine', p. 30.

²² Sari Nusseibeh, 'Personal Statement' in Mark A. Heller and Sari Nusseibeh, *No Trumpets. No Drums, A Two-State Settlement of the Israeli-Palestinian Conflict* (1991), p. 32.

²³ Jonathan Schneer, *The Balfour Declaration, The Origins of the Arab-Israeli Conflict* (2011), p. 178.

²⁴ *United Nations Special Committee on Palestine Report to the General Assembly*, vol. 1, para. 179, UN Doc. A/364, 3 September 1947, para. 166. <https://unispal.un.org/DPA/DPR/unispal.nsf/0/07175DE9FA2DE563852568D3006E10F3>.

The Algiers seminar of Arab Jurists on Palestine commented, 'since 1850 there have been manifestations of Arab nationalism against Zionist colonialism'.²⁵ The Arab Executive Committee, in a memorandum on the 1930 British White Paper, commented 'Palestine is an Arab country and must remain as such'.²⁶ A survey of the British Royal Institute of International Affairs reports that the 1947 UN Special Committee on Palestine 'heard an intransigent expression of the views of the Arab League that the Zionists had no rights in Palestine beyond those of a minority within an independent Arab State'.²⁷

From the outset of the Zionist movement, elements of the Arab population in Palestine were worried that Zionism would be to the detriment of the existing Arab population. The historian Walid Khalidi writes, 'every Jewish immigrant who entered Palestine between 1917 and 1948, incrementally eroding the country's majoritarian demography, did so against the wishes of the Palestinians, for the most part with the help of British bayonets'.²⁸ General Gilbert Clayton, Allenby's Chief Political Officer (stationed in Cairo) reported to the British Foreign Office in 1918, 'local Arabs still evince some uneasiness at Zionist activity and fear a Jewish government of Palestine as eventual result'.²⁹ In 1937, the British Peel Commission concluded, 'the story of the last seventeen years is proof that this; Arab nationalism with its anti-Jewish spearhead is not a new or transient phenomenon. It was there at the beginning: its strength and range have steadily increased; and it seems evident to us from what we saw and heard that it has not yet reached its climax'.³⁰ The British 1948 official statement at the end of the Mandate noted, 'although the

²⁵ Seminar of Arab Jurists on Palestine, Algiers, 22–27 July 1967 – The Palestine Question (1968), quoted from Nathan Feinberg, *The Arab-Israel Conflict in International Law, A Critical Analysis of the Colloquium of Arab Jurists in Algiers* (1970), p. 7; Feinberg, *Studies in International Law, with special Reference to the Arab-Israel Conflict*, p. 449.

²⁶ Memorandum on the Palestine White Paper of October 1930 by the Arab Executive Committee quoted from Laserson, *On the Mandate, Documents, Statements, Laws and Judgments Relating to and Arising from the Mandate for Palestine*, p. 135.

²⁷ George Kirk, *Survey of International Affairs, The Middle East 1945–1950, Issued under the Auspices of the Royal Institute of International Affairs* (1954), p. 208, quoting members of the Committee Crum and Crossman.

²⁸ Walid Khalidi, 'The Hebrew Reconquista of Palestine: From the 1947 United Nations Partition Resolution to the First Zionist Congress of 1897', *Journal of Palestine Studies* 39, no. 1 (2009/2010), p. 25, www.palestine-studies.org/jps/fulltext/42231.

²⁹ PRO.FO. 371/3391, quoted from Doreen Ingrams, *Palestine Papers 1917–1922, Seeds of Conflict* (1972), p. 20.

³⁰ 1936–37 [Cmd. 5479] Palestine Royal Commission Report (Royal Commission), p. 132. <https://palestinianmandate.files.wordpress.com/2014/04/cm-5479.pdf>.

impetus given to the economic development of Palestine by these [Jewish] immigrants and the capital they brought, conferred certain benefits on the Arab community, also the growth in the Jewish population was bitterly resented by the Arabs'.³¹

There were, however, other Arab voices. Faisal was sent to the Versailles Peace Conference by his father King Hussein of Hejaz, the leader of the Arab nationalist movement. In his speech to the Conference Faisal stated, 'on account of its universal character, I shall leave Palestine on one side for the mutual consideration of all parties interested. With this exception I ask for the independence of the Arabic areas enumerated in the memorandum'.³² The Syrian delegate claimed that Palestine was part of Syria but added, 'all those [Zionists] who are oppressed in certain retrograde countries are welcome. Let them settle in Palestine. If they form the majority there, they will be the rulers. If they are in the minority, they will be represented in the government in proportion to their numbers'.³³ When these statements were made, the Balfour Declaration had been public knowledge for over two years.

3.6 Attempts at Zionist–Arab Cooperation

The Zionist movement was concerned from the outset with the possibility of Arab opposition. At a meeting of the Zionist Congress, the supreme governing body of the Zionist Organisation, held at Carlsbad in September 1921, a resolution was passed expressing the official statement of Zionist aims: 'The determination of the Jewish people to live with the Arab people on terms of unity and mutual respect, and together with them to make the common home into a flourishing community, the up building of which may assure to each of its peoples an undisturbed national development'.³⁴ The historian Loeffler writes:

³¹ *Palestine, Termination of the Mandate, 15th May, 1948, Statement prepared for Public Information by the Colonial Office and Foreign Office*, HM Stationery Office, 1948, 50-9999, p. 6.

³² David Hunter Miller, *My Diary at the Peace Conference with Documents* (1928), vol. XIV, p. 230, quoted from Nathan Feinberg, *Some Problems of the Palestine Mandate* (1936), p. 26. David Hunter Miller was the legal advisor to the US delegation to the Conference.

³³ *Ibid.*, p. 44.

³⁴ Mahdi Abdul Hadi, ed. *Documents on Palestine Volume I, 1900–1947* (2007), quoted from David Gerald Fincham, 'Resolution of the 1921 World Zionist Congress' (2014), www.religion-science-peace.org/2014/08/27/resolution-of-the-1921-world-zionist-congress.

Jews and Arabs could each be accommodated by the League's mandate system, which would 'erect the independent Arab State of Mesopotamia and ... a Jewish national home in Palestine'. Events on the ground frustrated this tidy vision of political order. Throughout the early 1920s, the French repressed Arab democratic aspirations in Lebanon and Syria. The Palestinian Arabs, who feared becoming a minority – in both numerical and political senses – in a Jewish-dominated country, asserted their own claims to sovereignty.³⁵

In many cases, the Zionist movement made efforts to ensure that purchasing land would not cause Arab distress. The 1930 British Simpson Report states, 'the Jewish authorities have nothing with which to reproach themselves in the matter of the Sursock [The absentee Arab owner of most of the Esdraelon valley land] lands. They paid high prices for the land and in addition they paid to certain of the occupants of those lands a considerable amount of money which they were not legally bound to pay'.³⁶ The vast majority of the land sold to the Jewish settlers was infested with malaria and only became inhabitable after the Jewish settlers managed to eliminate malaria.³⁷

3.7 The Faisal–Weizmann Agreement

Within the framework of the Paris Peace Conference, the following political accord was signed on 3 January 1919, by Weizmann in the name of the Zionist Organisation and by the Emir Feisal, son of Hussein Sherif of Mecca:

Mindful of the racial kindship and ancient bonds existing between the Arabs and the Jewish people, and realising that the surest means of working out the consummation of their national aspirations, is through the closest possible, collaboration in the development of the Arab State and Palestine, and being desirous further of confirming the good understanding which exists between them, have agreed upon the following Articles:

³⁵ James Loeffler, *Rooted Cosmopolitans: Jews And Human Rights in the Twentieth Century* (2018), p. 27.

³⁶ Report on Immigration, Land Settlement and Development. By Sir John Hope Simpson, C.I.E. 1930, <https://unispal.un.org/UNISPAL.NSF/0/E3ED8720F8707C9385256D19004F057C>.

³⁷ Florence V. Dunkel and Anton Alexander, 'Three Stepping Stones Leading to Malaria Elimination, Changing World Maps on the Way', *Malaria World Journal* 11, no. 4 (2020), https://malariaworld.org/sites/default/files/mwjjournal/article/Dunkel%20&%20Alexander%202020_11_final_0.pdf.

Article I

The Arab State and Palestine in all their relations and undertakings shall be controlled by the most cordial goodwill and understanding and to this end Arab and Jewish duly accredited agents shall be established and maintained in their respective territories.

Article II

Immediately following the completion of the deliberations of the Peace Conference, the definite boundaries between the Arab State and Palestine shall be determined by a Commission to be agreed upon by the parties hereto.

Article III

In the establishment of the Constitution and Administration of Palestine all such measures shall be adopted as will afford the fullest guarantees for carrying into effect the British Government's [Balfour] Declaration of the 2nd of November, 1917.

Article IV

All necessary measures shall be taken to encourage and stimulate immigration of Jews into Palestine on a large scale, and as quickly as possible to settle Jewish immigrants upon the land through closer settlement and intensive cultivation of the soil. In taking such measures the Arab peasant and tenant farmers shall be protected in their rights, and shall be assisted in forwarding their economic development.

Article VI

The Mohammedan Holy Places shall be under Mohammedan control

Faisal added a proviso

Provided the Arabs obtain their independence as demanded in my Memorandum dated the 4th of January, 1919, to the Foreign Office of the Government of Great Britain, I shall concur in the above articles. But if the slightest modification or departure were to be made [in relation to the demands in the Memorandum] I shall not be bound by a single word of the present Agreement which shall be deemed void and of no account or validity, and I shall not be answerable in any way whatsoever.³⁸

It would appear that Faisal did not consult with the Arabs of Palestine before reaching this agreement. Cattani writes, 'Emir Faisal possessed no

³⁸ 'The Faisal-Weizmann Agreement', in Walter Laqueur and Dan Schueftan, eds. *The Israel-Arab Reader, a Documentary History of the Middle East Conflict* (8th ed. 2016), p. 17.

representative capacity that entitled him to speak on behalf of the Arabs of Palestine or of the Arabs generally'.³⁹ Faisal, however, was acting on behalf of his father, Sherif Hussein of Mecca who was seen by many to represent the Arabs generally, particularly in the McMahon-Hussein correspondence.

3.8 British Attitudes to Zionism Prior to World War I

There were gentile elements in British society who were supporters of the Zionist ideal. This support was based, to a large extent, on the central part that the Bible played in British culture and education. 'Memoranda and pamphlets proposing the restoration of the Jews to their ancient homeland abounded in England in the eighteenth and nineteenth centuries.'⁴⁰ In a speech to Parliament in the late eighteenth century, the British philosopher Burke summarised what became the *raison d'être* of Zionism: 'If Dutchmen are injured and attacked, the Dutch have a nation, a Government and armies to redress or revenge their cause. If Britons are injured, Britains have armies and laws, the laws of nation to fly to for protection and justice. But the Jews have no such power and no such friend to depend on.'⁴¹ Lord Shaftesbury, the great British reformer who helped abolish the slave trade, saw the Jews return to the holy land as a prerequisite for the Second Advent.⁴² Lord Palmerston wrote, in 1840, a letter to the British Ambassador in Istanbul to recommend to the Turkish government 'to hold out every just encouragement to the Jews of Europe to return to Palestine'.⁴³ The British poet Lord Byron lamented,

And where shall Israel lave her bleeding feet?
And when shall Zion's song again seem sweet?
And Judah's melody once more rejoice
The hearts that leaped before its heavenly voice?
Tribes of the wandering foot and weary breast,

³⁹ Henry Cattán, 'Sovereignty over Palestine' (excerpt of pages 242–275, Appendix XI, from Palestine, *The Arab & Israel* by Henry Cattán) in John Norton Moore, ed. *The Arab-Israeli Conflict. Volume I: Readings* (1974), p. 208.

⁴⁰ Walter Laqueur, *A History of Zionism* (2nd ed., 1972), p. 42.

⁴¹ *The Parliamentary History of England from the Earliest Period to the Year 1803* (1814), vol. XXII, cols. 223–224, quoted from Feinberg, 'The Recognition of the Jewish People in International Law', p. 59.

⁴² Barbara W. Tuchman, *Bible and Sword: England and Palestine from the Bronze Age to Balfour* (1956), p. 178.

⁴³ *Ibid.*, p. 175.

How shall ye flee away and be at rest!
 The wild-dove hath her nest, the fox his cave,
 Mankind their country – Israel but the grave!⁴⁴

Samuel, the first British High Commissioner in Palestine, when describing the background to the 1917 Balfour Declaration, writes that in the British Cabinet there was ‘a genuine sympathy with the aspirations of Jews for a restoration in Palestine, as a factor of spiritual and moral value to them, and indirectly in some degree to the world’.⁴⁵ There was, however, also an element of anti-Semitism in a desire by some that the Jews might thus be encouraged to leave Britain, and there was hostility to the idea of Zionism from the senior echelons of the British Foreign Office. After failed attempts to negotiate with Germany and the Ottoman Empire, in October 1902, the Zionist Executive entered into negotiations with the British government to obtain portions of the Sinai Peninsula for immigration and settlement. These negotiations broke down, but in 1903, the British government offered the Zionist Organisation the opportunity to settle in a portion of Uganda, which is known as the East Africa Scheme.⁴⁶ Nothing came of these proposals.

3.9 Was Zionism a Colonial Enterprise?

Allain writes that the Western powers ‘paid little heed to the dictates of international law, preferring instead to impose an imperial policy, which included Zionism, through political expediency. They imposed what amounted to the last European colonial venture’.⁴⁷ James Zogby writes that ‘the Zionist plan was to establish a European Jewish colony – that would bring civilization to the “savage world”. The Zionist colonial scheme in Palestine is a unique form of “settler colonialism”. The Zionists did not wish to merely administer the colony and exploit the native people of Palestine. They sought to replace them’.⁴⁸ ‘It has been

⁴⁴ Lord Byron, ‘Oh Weep for Those’, *Hebrew Melodies* (1815), p. 11.

⁴⁵ Viscount Samuel, *Memoirs* (1945), p. 147.

⁴⁶ W. T. Mallison Jr., ‘Zionist-Israel Juridical Claims to Constitute “The Jewish People” Nationality Entity and to Confer Membership in It’, p. 103; Oskar K. Rabinowicz, ‘New Light on the East Africa Scheme’ in Israel Cohen, ed. *The Rebirth of Israel: A Memorial Tribute to Paul Goodman* (1952), pp. 77–78.

⁴⁷ Jean Allain, *International Law in the Middle East, Closer to Power Than Justice* (2004), p. 73.

⁴⁸ James Zogby, *Palestinian Human Rights in the Context of the Historical Development of the Zionist Movement, Question of Palestine: Legal Aspects, a Compilation of Papers*

claimed that by boycotting the use of Arab labour the Zionist movement indirectly caused the displacement of the indigenous native population.⁴⁹ The Egyptian ambassador to the UN told the UN Security Council in 1967, 'we have always believed, and we still do, that Israel was planted in the Middle East by colonialism to serve colonial interests'.⁵⁰

In response, it can be argued that colonialism involves using natural resources and an indigenous population for the benefit of the colonialists. Zionism lacked major elements that constitute colonialism. The Jewish immigrants to Palestine were imbued and motivated by the belief that they were returning to their ancestral home, not by a belief that they were discovering and developing a new land. The Jewish immigrants to Palestine did not come from a colonial power, the overwhelming number of immigrants were refugees, almost half of them from Arab countries. There was no colonial mother State supplying resources and to which they could return. The Zionist movement paid full market price, and sometimes higher than market price, for the land they purchased. Most of the land they purchased was malaria stricken and uninhabitable at the time.

The Zionist movement began settling in Palestine in the latter half of the nineteenth century, when the area was part of the Ottoman Empire. Although there were British gentile supporters of Zionism in the nineteenth century, Britain, which is often charged with being the colonial power behind the Zionist movement, had no part in the Zionist enterprise at that time. For example, Petach Tikva, one of the early Zionist settlements, was founded in 1887, forty years before the British came out in favour of Zionism. In 1917, the British government issued a declaration supporting Zionism and implemented it for about five years but then began opposing Zionism. In the thirties and forties of the twentieth century, as Jews were trying to escape fascist anti-Semitism in Europe, the British Navy and the Royal Air Force were actively involved in trying to prevent Jewish immigration into Palestine. The British 1937 Royal Commission (The Peel Commission) commented: 'And, if one thing stands out clear from the record of the Mandatory administration, it is

Presented at the United Nations Seminars on the Question of Palestine in 1960–1986 (1992), p. 123.

⁴⁹ See Fayez Sayegh, 'Zionist Colonialism in Palestine (1965)', *Settler Colonial Studies* 2 (2012), pp. 206–225, 295.

⁵⁰ Ambassador El-Kony, UN Doc. S/PV 1343, 29 May 1967, para. 53.55.

the leniency with which Arab political agitation, even when carried to the point of violence and murder, has been treated.’⁵¹

The Zionist movement had to contend with the opposition of the foreign policy establishments in both Britain and the United States. In the United States, Dean Acheson’s biography refers to the State Department’s ‘almost overwhelming opposition to American support for a Jewish state’.⁵² Arthur Koestler writes, ‘for the Jews, Zionism was a messianic inspiration. For the British Administration it was simply a damned nuisance’.⁵³ During the 1948 War, the ‘Colonial Power’ Britain actively aided the Arab armies that were fighting the new State of Israel. The Egyptian army and air force were organised and equipped by the British. The Jordanian Arab Legion was funded by Britain and commanded by a British officer.⁵⁴ During the early years, the State of Israel received political support and military supplies from the Soviet Block precisely because the Soviets saw Israel as a force against British imperialism in the Middle East.

Unlike the situation in the colonies, Jewish immigrants to Palestine did not wish to exploit local labour but, on the contrary, made it a matter of principle to carry out their own physical labour. Unlike colonial enterprises, Jewish immigrants did not seek to exploit local natural resources (there were hardly any) but invested large sums of money contributed by Jews from outside Palestine. Arthur Koestler writes, ‘the two main continuous stretches of territory, the coastal plain and the valley of Jezreel, which became the material foundations of the Jewish State, had been, before the arrival of the Jews, mostly a wilderness of sand-dunes, marshes and stony desert, with here and there a malaria-infested warren of mud huts or a village in ruins, whose population had died of disease’.⁵⁵ The historian Troen argues, ‘Zionism was the repatriation of a long displaced indigenous population to their historic homeland’ and that ‘Zionists did not see themselves as foreigners or conquerors, for centuries in the Diaspora they had been strangers’. Troen further argues that there are several differences between European colonialism and the Zionist

⁵¹ 1936–37 [Cmd. 5479] Palestine Royal Commission Report (Royal Commission), <https://palestinianmandate.files.wordpress.com/2014/04/cm-5479.pdf>.

⁵² James Chase, Acheson, *The Secretary of State Who Created the American World* (1998), p. 132.

⁵³ Arthur Koestler, *Promise and Fulfilment, Palestine 1917–1949* (1949), p. 10.

⁵⁴ Lieutenant-General Sir John Bagot Glubb.

⁵⁵ Koestler, *Promise and Fulfilment, Palestine 1917–1949*, p. 26.

movement, including that 'there is no New Vilna, New Bialystock, New Warsaw, New England, New York, and so on' in Israel. He writes:

Mandates were intended to nurture the formation of new states until independence and this instrument was to be applied to Jews, even as it was for the Arab peoples of Syria and Iraq. In this view, Jews were a people not only entitled to a state but that polity was naturally located in a part of the world in which they had originated, had been resident since the ancient world, and still constituted a vital presence in many areas of the region, including Palestine

and that 'perhaps the most manifest or visible evidence – for those who would be willing to acknowledge – were found in the revival of Hebrew into a living language; the marking the landscape with a Jewish identity; and the development of an indigenous culture with roots in the ancient past'. He concludes that 'casting Zionists as colonizers serves to present them as occupiers in a land to which, by definition, they do not belong'.⁵⁶ It should be noted that, in any case, colonialism was not considered to be in violation of international law until after the World War II.

At the instigation of the Soviet Union and the Arab States, in 1975, the UN General Assembly adopted a resolution that Zionism was a form of racism and racial discrimination.⁵⁷ In 1991, the General Assembly revoked this resolution.⁵⁸ It was the only time that the UN General Assembly has ever explicitly revoked a resolution.

3.10 Was International Law Relevant to the Early Zionist Movement?

Although Herzl had used the word 'State' in his 1897 pamphlet, he understood that the Ottoman government was not going to agree to an independent Jewish State in Palestine. So long as the Ottoman Empire ruled Palestine, the Zionist Movement therefore was reluctant to refer to international law or to call for the creation of an independent state. There was a proposal at the first Zionist Congress to use a phrase, 'the aim of Zionism is to create for the Jewish people a home in Eretz Israel secured by international law'. It was, however, decided to adopt the formula, 'Zionism aims at the creation of a home for the Jewish people in Palestine

⁵⁶ Ilan S. Troen, 'De-Judaizing the Homeland: Academic Politics in Rewriting the History of Palestine', *Israel Affairs* 13, no. 4 (2007), pp. 872–888.

⁵⁷ UN General Assembly Resolution A/RES/3379, 10 November 1975.

⁵⁸ UN General Assembly Resolution A/RES/46/86, adopted 16 December 1991.

to be secured by 'public law'.⁵⁹ This goal was to be achieved by the settlement of Palestine with Jewish farmers, artisans and tradesmen. However, the obvious obstacle to Zionist settlement, even on a small scale, was the attitude of the Ottoman government. The Kaiser added, in his talk with Herzl on 2 November 1898, that Jewish agricultural experiments must be conducted 'in a spirit of absolute respect for the Sultan's sovereignty'.⁶⁰

3.11 The 1917 Balfour Declaration

The 1917 Balfour Declaration was a British government statement of support for the establishment of a 'Jewish national home' in Palestine. The declaration was issued by Britain during the course of the World War I, with the support of the United States and France. Britain's motives in issuing the Declaration were a combination of Christian ideological support for the recreation of a Jewish national home, a wish to garner the support of the Jewish communities in the United States, Russia and Germany for the Allied cause and the assumed British strategic interest in Palestine. The historian Johnson comments that it 'was one of the post-dated cheques Britain signed to win the Great War'.⁶¹ Britain also hoped that the Jewish community in Palestine would serve as a future ally for Britain. The text was a compromise between the demands of the Zionist movement led by Chaim Weizmann and the anti-Zionists in the Anglo Jewish community.⁶² The Declaration was a conditional promise as, although at the time Britain had occupied Southern Palestine, Jerusalem and Northern Palestine were still under Ottoman control.

⁵⁹ 'The Basle Declaration', in Walter Laqueur and Dan Schueftan, eds. *The Israel-Arab Reader, a Documentary History of the Middle East Conflict* (8th ed. 2016), p. 9.

⁶⁰ Quoted from Martin Gilbert, *Exile and Return, the Emergence of Jewish Statehood* (1978), p. 51.

⁶¹ Paul Johnson, *Modern Times, The World from the Twenties to the Eighties* (1985), p. 481.

⁶² For a detailed analysis of the background to the Balfour Declaration, see Chaim Weizmann, *Trial and Error* (1949); Leonard Stein, *The Balfour Declaration* (1961); Isaiah Friedman, *The Question of Palestine: British-Jewish-Arab Relations 1914-1918* (2nd ed. 1992); Victor Kattan, *From Coexistence to Conquest, International Law and the Origins of the Arab-Israeli Conflict, 1891-1949* (2009); Schneer, *The Balfour Declaration, the Origins of the Arab-Israeli Conflict*.

3.11.1 *The Text of the 1917 Balfour Declaration*

2 November 1917

Dear Lord Rothschild,

I have much pleasure in conveying to you, on behalf of His Majesty's Government, the following declaration of sympathy with Jewish Zionist aspirations which has been submitted to, and approved by, the Cabinet.

'His Majesty's Government view with favour the establishment in Palestine of a national home for the Jewish people, and will use their best endeavours to facilitate the achievement of this object, it being clearly understood that nothing shall be done which may prejudice the civil and religious rights of existing non-Jewish communities in Palestine, or the rights and political status enjoyed by Jews in any other country.'

I should be grateful if you would bring this declaration to the knowledge of the Zionist Federation.

Yours sincerely,
Arthur James Balfour⁶³

The text proposed by the Zionist Federation had suggested 'His Majesty's Government accepts the principle that Palestine should be reconstituted as the National Home of the Jewish people'.⁶⁴ However, the War Cabinet Minister Sir Alfred Milner removed the word 'reconstituted' from the statement and instead of calling Palestine 'the National Home of the Jewish people' the phrase was changed to 'a National Home for the Jewish people'.⁶⁵ The phrase was subsequently changed to read 'in Palestine', Weizmann attributes the change to the 'vehemence' of the opposition by the Jewish anti-Zionist member of the Cabinet, Edwin Montagu.⁶⁶

3.11.2 *International Support for the Balfour Declaration*

Britain issued the Balfour Declaration only after it was assured of the support of the other Allies. Storrs writes: 'Mere promulgation by the British Cabinet of such a pronouncement would have been useless

⁶³ 'The Balfour Declaration', in Walter Laqueur and Dan Schueftan, eds. *The Israel-Arab Reader, a Documentary History of the Middle East Conflict* (8th ed. 2016), p. 16.

⁶⁴ Schneer, *The Balfour Declaration, The Origins of the Arab-Israeli Conflict*, p. 335.

⁶⁵ Ibid., pp. 335, 336.

⁶⁶ Weizmann, *Trial and Error*, p. 206; Stein, *The Balfour Declaration* (1961), p. 547.

without the support of the principal Allies.’⁶⁷ The French Foreign Minister Cambon had written regarding the proposed Balfour Declaration, ‘it would be a deed of justice and of reparation to assist, by the protection of the Allied Powers, in the renaissance of the Jewish nationality [*nationalité juive*] in that land from which the people of Israel were exiled so many centuries ago. The French government, which entered this present war to defend a people wrongly attacked, and which continues the struggle to assure the victory of right over might, can but feel sympathy for your cause’.⁶⁸

President Wilson secretly approved the Balfour Declaration in advance.⁶⁹ The British 1937 Peel Commission reported that ‘the text of the [Balfour] Declaration had been submitted to President Wilson and had been approved by him before its publication. On the 14th February, and the 9th May 1918, the French and Italian Governments publicly endorsed it’.⁷⁰ In 1922, the US Congress formally approved the 1922 Mandate with its inclusion of the Balfour declaration.⁷¹ In January 1919, Japan informed Weizmann that ‘the Japanese Government gladly take note of the Zionist aspirations to establish in Palestine a national home for the Jewish people and they look forward with a sympathetic interest to the realization of such desire’.⁷²

3.11.3 *Meaning of the Phrase ‘National Home’ in the Balfour Declaration*

The 1937 British Peel Commission gave its interpretation of the phrase ‘National Home’.

⁶⁷ Ronald Storrs, *Orientalism* (1937) (1943), p. 344. Storrs was the governor of Jerusalem during the first few years of the Mandate.

⁶⁸ Letter to Nahum Sokolow, quoted in Friedman, *The Question of Palestine*, p. 162. See also Martin Kramer, ‘The Forgotten Truth about the Balfour Declaration’, *Mosaic Magazine* 5 June 2007, <https://mosaicmagazine.com/essay/israel-zionism/2017/06/the-forgotten-truth-about-the-balfour-declaration>.

⁶⁹ Friedman, *The Question of Palestine*, p. 62: ‘The President assured [Brandeis] that he was entirely sympathetic to the aims of the Zionist movement. Further, the President expressed himself in agreement with the policy, under England’s protectorate, for a Jewish homeland.’ M. Urofsky, et al., *The Letters of Louis D. Brandeis* (1975), vol. 4, p. 286.

⁷⁰ Peel Commission Chapter 11 article 14. <https://unispal.un.org/pdfs/Cmd5479.pdf>.

⁷¹ Joint Resolution Favoring the establishment in Palestine of a national home for the Jewish People, 21 September 1922, Sixty-Seventh Congress, Sess. II. Cas. 371, 372, 399, 400.

⁷² Ben Ami Shilony, *Jews and the Japanese: The Successful Outsiders* (2012), p. 153.

The phrase ‘the establishment in Palestine of a National Home’ was the outcome of a compromise between those Ministers who contemplated the ultimate establishment of a Jewish State and those who did not. It is obvious in any case, that His Majesty’s Government could not commit itself to the establishment of a Jewish State. It could only undertake to facilitate the growth of a Home. It would depend mainly on the zeal and enterprise of the Jews whether the Home would grow big enough to become a State. Mr. Lloyd George, who was Prime Minister at the time, informed us in evidence that: The idea was, and this was the interpretation put upon it at the time, that a Jewish State was not to be set up immediately by the Peace Treaty without reference to the wishes of the majority of the inhabitants. On the other hand, it was contemplated that when the time arrived for according representative institutions to Palestine, if the Jews had meanwhile responded to the opportunity afforded them by the idea of a national home and had become a definite majority of the inhabitants, then Palestine would thus become a Jewish Commonwealth. Thus His Majesty’s Government evidently realized that a Jewish State might in course of time be established, but it was not in a position to say that this would happen, still less to bring it about of its own motion. The Zionist leaders, for their part, recognised that an ultimate Jewish State was not precluded by the terms of the Declaration, and so it was understood elsewhere.⁷³

But, though the phraseology was clearly intended to conciliate, as far as might be, Arab antagonism to the National Home, there is nothing in it to prohibit the ultimate establishment of a Jewish State, and Mr. Churchill himself has told us in evidence that no such prohibition was intended.⁷⁴

3.11.4 *The Legal Status of the Balfour Declaration in International Law*

The Declaration was an official statement of policy on behalf of the British government. This is emphasised by the use of the phrases ‘on behalf of His Majesty’s Government’ and ‘approved by the Cabinet’. However, it was addressed to a private British citizen and cannot, therefore, be considered as binding under international law. The Crown Prince of Jordan writes, I believe correctly, that ‘the letter was no more than a unilateral statement of British foreign policy’.⁷⁵ It is relevant that

⁷³ Peel Commission Article 20, <https://unispal.un.org/pdfs/Cmd5479.pdf>.

⁷⁴ Peel Commission Chapter II Article 39, <https://unispal.un.org/pdfs/Cmd5479.pdf>.

⁷⁵ Hassan Bin Talal, Crown Prince of Jordan, *Palestinian Self-Determination, A Study of the West Bank and Gaza Strip* (1981), p. 28.

the Declaration is not even addressed to the Zionist Federation but just requests that the declaration be brought 'to the knowledge' of the Federation. The Zionist leader Sokolow made light of this at a dinner on 15 November 1917, at which Lord Rothschild read the Balfour Declaration. Sokolow quipped that it had been 'sent to the Lord and not to the Jewish people because they had no address, whereas the Lord had a very fine one'.⁷⁶ The fact, however, that it was not addressed to the Zionist Federation negates a possible argument that the Declaration was an agreement between the British government and the Federation. In any event, the Zionist Federation at the time was a British non-government organisation and could not have been party to an international agreement.

When the Balfour Declaration was later incorporated into the 1920 San Remo Resolutions, which was an international agreement, it became a binding international commitment of Britain. The Balfour Declaration was further confirmed as a binding international undertaking when it was incorporated into the 1922 Mandate Agreement between the League of Nations and Britain. This 1922 Mandate was approved unanimously by the Council of the League of Nations.

3.11.5 *Did the Balfour Declaration Contradict the McMahon–Hussein Correspondence?*

It has been argued that the Balfour Declaration was invalid as it contradicted the earlier correspondence between Sir Henry McMahon, acting on behalf of Britain, and the Sherif of Mecca. Shaw, in referring to the various pledges made by Britain comments that 'these promises sat uneasily with each other'.⁷⁷ Quigley writes that 'the disagreement as to the meaning of the McMahon letter related to the character of the state once Britain began, as it did, to promote a Jewish 'national home' in Palestine'.⁷⁸ It is still a matter of debate whether the McMahon letter was intended to apply to Palestine, the British public position has always been that the letter did not apply to Palestine. If the McMahon–Hussein

⁷⁶ <https://mosaicmagazine.com/essay/israel-zionism/2017/06/the-forgotten-truth-about-the-balfour-declaration>.

⁷⁷ Malcolm Shaw, 'The League of Nations Mandate System and the Palestine Mandate: What Did It Say about International Law and What Did It Say about Palestine?', *Isr. L. Rev.* 49, no. 3 (2016), pp. 287, 299.

⁷⁸ John Quigley, *The Statehood of Palestine, International Law in the Middle East Conflict* (2010), p. 12.

correspondence had indeed promised an independent Arab State that included Palestine, then it would seem that the Balfour Declaration was in contradiction to that promise. Such a contradiction would not legally invalidate either of the two promises as they were made to two separate entities. The legal result would be that Britain would have to choose with which of the two contradictory promises it intended to comply. If the promise was only for freedom from Ottoman rule, then there would appear to be no contradiction. If the promise to Hussein did not include Palestine, then, again, there would appear to be no contradiction.

3.11.6 *Did the Balfour Declaration Contradict the Sykes–Picot Agreement?*

It could also be contended that the Balfour Declaration was inconsistent with the 1916 Sykes–Picot Agreement between France and Britain, which included an international regime for most of Palestine. However, by accepting the later 1917 Balfour Declaration, France waived any claim that the Declaration violated the earlier Sykes–Picot Agreement. Moreover, the Sykes–Picot Agreement was superseded by the 1920 San Remo Resolution, whereby France and Britain agreed explicitly to a British Mandate over Palestine which would include the application of the 1917 Balfour Declaration. France could not, therefore, claim that the Balfour Declaration was in violation of the 1916 Sykes–Picot Agreement. The Arabs, as well as the Zionist movement,⁷⁹ were not parties to the Sykes–Picot Agreement and could not base any claim on it.

3.11.7 *Was the Balfour Declaration a Binding ‘Unilateral Undertaking’?*

Under certain circumstances, a unilateral undertaking can be binding in international law.⁸⁰ It might be argued that the Balfour Declaration was such a binding unilateral undertaking. Watson writes, ‘the formality of the Balfour Declaration and its endorsement by the War Cabinet suggest

⁷⁹ ‘What we did not know in the early stages of our practical negotiations was that a secret tentative agreement which was a later revealed as the “Sykes–Picot Treaty” already existed between France and England.’ Weizmann, *Trial and Error*, p. 188.

⁸⁰ See Malcolm Shaw, *International Law* (9th ed. 2021), pp. 103.

intent to be bound'.⁸¹ Mallison, quotes the judgment of the Permanent Court of International Justice: 'The oral *Ihlen Declaration* was binding upon the Norwegian Government.'⁸² Mallison then continues, 'there is, a *fortiori*, ample authority for the juridical validity of a more formal written instrument such as the Balfour Declaration'.⁸³ Dinstein refers to the Eastern Greenland Case and the Nuclear Tests Cases⁸⁴ and reaches the conclusion that the Balfour Declaration 'had a binding force'.⁸⁵ Fineberg quotes the Eastern Greenland case and adds, as to the Balfour Declaration, 'even more binding therefore is a written declaration following upon negotiations with the prospective beneficiaries and issued as the considered decision of the Cabinet as a whole'.⁸⁶

This argument is extremely doubtful since one of the conditions required for a unilateral undertaking to be binding is that it must be addressed to the international community as a whole or to individual States.⁸⁷ The Balfour Declaration was addressed to Lord Rothschild, a private British citizen. Furthermore, it is doubtful whether international law, in 1917, recognised the binding nature of unilateral undertakings.

3.11.8 *The Balfour Declaration and the Right of Self-Determination*

'There always remained a Jewish population in Palestine and the majority of the population of Jerusalem has been Jewish for the last 200 years',⁸⁸

⁸¹ Geoffrey R. Watson, *The Oslo Accords, International Law and the Israeli-Palestinian Peace Agreements* (2000), p. 7.

⁸² *Legal Status of Eastern Greenland*, PCIJ, Series A/B, No. 53 (1933), pp. 151, 192–194.

⁸³ W. T. Mallison Jr., 'Zionist-Israel Juridical Claims to Constitute the Jewish People Nationality Entity and to Confer Membership in It: Appraisal in Public International Law', *Geo. Wash. L. Rev.* 32 (1964), pp. 983, 1000; John Norton Moore, ed. *The Arab-Israeli Conflict. Volume I: Readings* (1974), p. 112.

⁸⁴ Nuclear Tests Case ICJ Reports 1974, pp. 253, 267, 457, 472; *Legal Status of Eastern Greenland* (1933) PCIJ, Series A/B, No. 53 (1933), pp. 151, 192–194.

⁸⁵ Yoram Dinstein, 'Israel among the Nations' in Alfred E. Kellerman et al. eds. *The International Legal Dimensions of the Arab-Israeli Conflict* (1998), p. 139.

⁸⁶ Fineberg, 'The Recognition of the Jewish People in International Law'; Nathan Fineberg, *Studies in International Law with special reference to the Arab-Israel Conflict* (1979), p. 239.

⁸⁷ ILC Guiding Principles applicable to unilateral declarations of States capable of creating legal obligations, with commentaries thereto 2006, UN Doc. A/61/10, http://legal.un.org/ilc/texts/instruments/english/commentaries/9_9_2006.pdf.

⁸⁸ Israel Central Bureau of Statistics Jerusalem's Population, www.jewishvirtual%20library.org/jsourcel; History/jerupop.html; J. Oesterreicher and A. Sinai, eds. *Jerusalem* (1974), p. 1.

nevertheless, in 1917, the overwhelming majority of the population of Palestine were Arabs. This raises the issue of whether the Balfour Declaration was in violation of the principle of self-determination of peoples. When General Allenby entered Jerusalem in 1917, he declared that the war objectives of Britain against Turkey in the East included 'the establishment of national governments and administrations in those countries deriving authority from the initiative and free will of those people themselves'.⁸⁹ This declaration would seem to imply recognition of a right of self-determination. In an attempt to assuage Arab apprehensions about British intentions, the British government, in June 1918, issued a declaratory clarification. This British clarification declared that Hejaz and areas 'emancipated from Turkish control by the actions of the Arabs themselves' would enjoy 'complete and sovereign independence of the Arabs inhabiting these areas', and as regards Palestine the future government 'should be based upon the principle of the consent of the governed'.⁹⁰ In a message to King Hussein of Hejaz in January 1918, delivered by Hogarth, the head of the British Arab Bureau in Cairo, the British government while stating its support for the 'return of Jews to Palestine', declared that that it should be done in a way 'compatible with the freedom of the existing population', and 'no people shall be subject to another'.⁹¹ A joint declaration by Britain and France in November 1918 stated their war aims to include 'the emancipation of the peoples so long oppressed by the Turks and the establishment of national governments and administrations deriving their authority from the initiative and free choice of the indigenous populations, and Governments and administrations freely chosen by the populations themselves'.⁹²

In internal discussions, the British government felt it had to deal with the issue of self-determination. In a 1919 letter from Balfour to British Prime Minister Lloyd George, Balfour wrote:

The weak point of our position of course is that in the case of Palestine we deliberately and rightly decline to accept the principle of self-determination. If the present inhabitants were consulted they would

⁸⁹ Hansard, 21 June 1922, quoted from Ingrams, *Palestine Papers 1917-1922, Seeds of Conflict*, p. 20.

⁹⁰ 'British Government Declaration to the Seven, June 1918' in John Norton Moore, ed. *The Arab-Israeli Conflict. Volume III: Documents* (1974), p. 36.

⁹¹ 'The Hogarth Message, January 1918', in John Norton Moore, ed. *The Arab-Israeli Conflict. Volume III: Documents* (1974), p. 34.

⁹² 'The Anglo-French Declaration of November 7, 1918' in John Norton Moore, ed. *The Arab-Israeli Conflict. Volume III: Documents* (1974), p. 38.

unquestionably give an anti-Jewish verdict. Our justification for our policy is that we regard Palestine as being absolutely exceptional; that we consider the question of the Jews outside Palestine as one of world importance and that we conceive the Jews to have an historic claim to a home in their ancient land; provided that home can be given them without either dispossessing or oppressing the present inhabitants.⁹³

In another letter, Balfour wrote:

In Palestine we do not propose even to go through the form of consulting the wishes of the present inhabitants of the country . . . The Four Great Powers are committed to Zionism. And Zionism be it right or wrong, good or bad, is rooted in age-long traditions, in present needs, in future hopes, of far profounder import than the desires and prejudices of the 700,000 Arabs who now inhabit that ancient land. 'I do not think Zionism will hurt the Arabs, but they will never say they want it.'⁹⁴

In a 1920 speech, Balfour stated, 'the underlying principle of self-determination really points to a Zionist policy, however little in its strict technical interpretation it may seem to favour it'.⁹⁵ An interesting summary of the British position was in a 1923 Memorandum by the British Secretary of State for the Colonies:

What we promised was to promote Arab independence throughout a wide area. That promise we have substantially fulfilled. The Arabs as a whole have acquired freedom undreamed of before the war. Considering what they owe to us, they may surely let us have our way in one small area, which we do not admit to be covered by our pledges, and which in any case, for historical and other reasons, stands on a wholly different footing from the rest of the Arab countries. It may be too much to hope that we can ever satisfy the Palestinian Arabs; but so long as the general body of Arab opinion is not against us, the dangers arising from local dissatisfaction ought not to be serious.⁹⁶

Leonard Stein, the British Liberal politician who was the honorary legal advisor to the Jewish Agency, wrote in 1923, 'both in Europe and outside it there are cases in which the interests of the world at large require the

⁹³ PRO.FO.371/4179 quoted from Ingrams, *Palestine Papers 1917-1922, Seeds of Conflict*, p. 61.

⁹⁴ PRO.FO. 800/217. Ibid., p. 73.

⁹⁵ Address by Balfour, 12 July 1920 Royal Albert Hall London, quoted from John B. Quigley, *The Case for Palestine: An International Law Perspective* (2005), p. 13.

⁹⁶ Memorandum to the British Cabinet by Duke of Devonshire, secretary of State for the Colonies, PRO.CAB. 24/159 quoted from Ingrams, *Palestine Papers 1917-1922, Seeds of Conflict*, p. 174.

abstract right of self-government to be reconciled with considerations of a different order, but of at least equal validity'.⁹⁷ In reference to US President Wilson's propagation of the principle of self-determination, the historian Kramer writes 'but how could facilitating the Jewish "national home" violate Wilson's principle, if Wilson himself (as Lloyd George put it) was fully committed to the Balfour Declaration and was, in fact, an enthusiastic supporter of the project it involved? Wilson's endorsement eased any Allied doubt as to whether the Balfour Declaration conformed to the new rule of the international order'.⁹⁸

3.11.9 *In 1917, Did Britain Have Any Rights in Palestine to Give to the Jewish People?*

The 1917 Balfour Declaration was a conditional promise by the British government. The implied premise was that when Britain would be in a position to prescribe the policy of government for Palestine, British policy would be that of the Balfour Declaration. The argument has been made, however, that 'at no time did the British Government as the author of such [Balfour] declaration possess any right of sovereignty over Palestine which could have enabled it to recognize any rights in favour of the Jewish people in or over Palestine. A donor cannot give away what does not belong to him'.⁹⁹ 'Great Britain had, at that time no sovereignty, no title of ownership, and no right on the basis of which it could offer Palestine to the Zionist Movement without consultation of its population.'¹⁰⁰

A response to this argument would be that the Balfour Declaration was a conditional promise. Britain was in fact promising that should it acquire rights in Palestine, it would behave in accordance with the Declaration. All legal systems recognise conditional undertakings. The

⁹⁷ Leonard Stein, 'The Problem of Self Government', Leon Simon and Leonard Stein, eds. *Awakening Palestine* (1923), p. 238.

⁹⁸ Kramer, 'The Forgotten Truth about the Balfour Declaration'.

⁹⁹ Henry Cattán, 'Sovereignty over Palestine'; Cattán, *Palestine the Arabs & Israel*, 242–275, Appendix XI (1969); Moore, *The Arab-Israeli Conflict. Volume I*, p. 204.

¹⁰⁰ Mohammed Akbar Kherad, *The National Identity and the Inalienable Rights of the Palestinian People, Question of Palestine: Legal Aspects, A Compilation of Papers Presented at the United Nations Seminars on the Question of Palestine in 1960–1986* (1992), Third United Nations Seminar on the Question of Palestine (10–14 August 1981, Colombo, Sri Lanka), p. 165, www.un.org/unispal/document/auto-insert-195186/.

Promise in the McMahon–Sherif of Mecca correspondence was, of course, of a similar nature.

3.11.10 *The Clause in the Balfour Declaration Safeguarding Arab Rights*

The Balfour Declaration included the phrase, ‘it being clearly understood that nothing shall be done which may prejudice the civil and religious rights of existing non-Jewish communities in Palestine’. The drafters of the Declaration were clearly aware of the presence in Palestine of an existing local Arab population; there is, however, no reference to the Arabs of Palestine being recognised as a ‘people’ whereas there is a reference to the Jewish ‘people’. In regard to the Arab population, there is also no reference to ‘national’ rights, whereas, in reference to the Jewish people, the reference is to a Jewish ‘national home’. The drafting of the clause reserves the individual rights of the local Arab population but does not grant them national rights. Khalidi comments, ‘the Palestinians were both explicitly and by omission denied the same national recognition and institutional framework [as the Jewish people]’.¹⁰¹ Mallison holds that the phrase refers to ‘rights actually enjoyed by the Arabs [In Palestine] under Ottoman rule, which included, among others, such basic ones as freedom of religion and the right to own land’.¹⁰² The San Remo Conference approved the Mandate ‘on the understanding that there was inserted in the *procès-verbal* an undertaking by the Mandatory Power that this would not involve the surrender of the rights hitherto enjoyed by the non-Jewish communities in Palestine’.¹⁰³ The Ottoman Empire had in fact granted limited voting rights to Ottoman citizens in Palestine. There is no reference to political rights, however, a reasonable interpretation of the phrase ‘civil rights’ would be that it included individual political rights such as the right to vote and the right to be elected. In practice, during the British Mandate, there were no elections and consequently neither Jews nor Arabs enjoyed electoral rights.

¹⁰¹ Rashid Khalidi, ‘The Palestinians and 1948: The Underlying Causes of Failure’ in Eugene L. Rogan and Avi Shlaim, *The War for Palestine* (2nd ed. 2007), p. 19.

¹⁰² Mallison, ‘The Zionist-Israel Juridical Claims to Constitute “The Jewish People” Nationality Entity and to Confer Membership in It’, pp. 983–1075; Moore, *The Arab-Israeli Conflict. Volume I*, p. 122.

¹⁰³ File 763.72119/9869, document I.C.P. 10, 25 April 1920, <https://history.state.gov/historicaldocuments/frus1919Parisv13/ch10subch1>.

A 1920 British explanation for the absence of reference to Arab national rights in Palestine was that 'the people west of the Jordan are not Arabs, but only Arabic-speaking, they have little or no national sentiment'.¹⁰⁴ The British also explained that the Arabs were promised national independence in all of the vast former Turkish Empire except in Palestine.

By 1937, the British recognised that the Arab population of Palestine were entitled to national rights in addition to individual rights. British Colonial Secretary Malcolm MacDonald remarked:

There has sometimes been controversy as to what these phrases [civil rights] were intended to mean. Some exponents have sought to minimise the significance of the words and to suggest, for instance, that 'civil rights' meant little more than civic rights. This is an untenable position. The provisions in the mandate must be regarded as giving effect, not only to the Balfour Declaration, but also to the spirit of Article 22 of the Covenant. The Arabs were a people whose well-being and development was to form a sacred trust of civilization. They were a people who had been settled in a country for many centuries, but in whose land there was to be created a home for another people. There can be no doubt that the rights of the Arabs which were to be safeguarded including all those political and social rights which a free people in such circumstances were entitled to retain.¹⁰⁵

3.11.11 *The Clause in the Balfour Declaration Safeguarding Jewish Rights in Other Countries*

The Balfour Declaration contains a safeguard clause concerning 'the rights and political status enjoyed by Jews in any other country'. This clause was inserted to placate the non-Zionist Jewish community in England. Leon Simon, one of the authors of the Balfour Declaration, explains that for non-Zionists the Jewish claim to national rights 'sends them into a shiver of apprehension and suggests to them only the loss of their dearly-prized civic rights in the countries in which they live, and which they have no intention of exchanging for Palestine'.¹⁰⁶

¹⁰⁴ Handbooks Prepared under the Direction of the Historical Section of the Foreign Office, No. 60 (London, 1920), p. 56, quoted from Stein, 'The Problem of Self Government', p. 234.

¹⁰⁵ See minutes of the Permanent Mandates Commission 8–29 June 1939, C.170.M.100. 1939. VI., p. 97.

¹⁰⁶ Leon Simon, 'The Significance of Palestine for the Jews' in Leon Simon and Leonard Stein, eds. *Awakening Palestine* (1923), p. 254.

3.11.12 Arab Reaction to the Balfour Declaration

The British government was apprehensive from the start as to Arab reaction to the Balfour Declaration. Arabs in Palestine were aware, of course, of the Declaration, but it was only published officially in Palestine in 1920, two years after the end of World War I.¹⁰⁷ From the outset, the Balfour Declaration caused widespread anger amongst Palestinian Arabs.¹⁰⁸ Hussein, who was at the time the self-proclaimed king of the Arab world, did not, however, issue an objection or opposition to the Declaration. Hussein even initiated a newspaper article that Palestine was a sacred and beloved homeland of 'its original sons the Jews'.¹⁰⁹ Hussein informed Hogarth, then acting head of the British Arab Bureau in Cairo, that 'no obstacle should be put in the way of the realization of the Zionist ideal'.¹¹⁰ Hussein, however, did not consult with Arabs from Palestine before making his statement and later also expressed objection to the Balfour Declaration. In 1920, when explaining why Hussein objected to signing the Sevres Treaty, Allenby wrote to Curzon that Hussein 'could not be expected to "affix his name to a document assigning Palestine to the Zionists and Syria to foreigners"'.¹¹¹

3.12 Concluding Remarks

Although not legally binding in 1917, the Balfour Declaration was of cardinal importance in providing international political support for the idea of recreating a Jewish national home in Palestine. In 1917, Britain was a major international power and the context of the Balfour Declaration had the support of its allies, notably the United States and France. The Declaration was at first a conditional promise, but subsequent to the Declaration, Turkey renounced its claim to Palestine and Britain took control of the whole of Palestine and was in a position to implement it. The Declaration subsequently obtained binding

¹⁰⁷ Norman Rose, *A Senseless Squalid War, Voices from Palestine 1890s–1948* (2010), p. 18.

¹⁰⁸ See Kattan, *From Coexistence to Conquest, International Law and the Origins of the Arab-Israeli Conflict, 1891–1949*, p. 43.

¹⁰⁹ *Al-Qibla*. 23 March 1918, referred to by George Antonius, *The Arab Awakening* (1918), p. 269.

¹¹⁰ British Cmd. 5964 (1939) quoted from Friedman, *The Question of Palestine*, p. 91 n. 151.

¹¹¹ 3 PRO, FO 686/27, Jeddah Report, 20 February 1921, quoted from Suleiman Mousa, 'A Matter of Principle: King Hussein of The Hijaz and the Arabs of Palestine', *Int. J. Middle East Stud.* 9 (1978), pp. 183–194, 185.

international legal status in the San Remo Resolution and in the 1922 League of Nations Mandate for Palestine.

The Balfour Declaration obliged the British government to preserve the individual rights of the Arab population of Palestine but did not recognise them as a people nor promise them national rights, although they constituted a majority of the population at the time.

Prior to the creation of the United Nations in 1945, the political principle of self-determination of peoples was not a legal rule. Furthermore, the Arabs of Palestine did not, at the time, see themselves as a separate people but rather as part of Syria. Britain argued that it would later grant self-determination to the Arabs in all of the former Ottoman Empire and that Palestine was a special case in allowing the Jews to return to their country.

The Balfour Declaration contradicted the Arab interpretation of the McMahon–Hussein correspondence, whereby Palestine was to be part of an independent Arab state. Such a contradiction, if it existed, does not, in itself, invalidate either of the two promises.

By agreeing, in 1917, to the Balfour Declaration and its later incorporation into the 1920 San Remo Resolution, France waived any claim that the Balfour Declaration violated the earlier 1916 Anglo-French Sykes–Picot Agreement that had designated parts of Palestine as being under international control.

Post–World War I and the 1922 League of Nations Mandate for Palestine, 1920–1947

4.1 Palestine as Occupied Military Territory

Prior to the occupation of Palestine by the British Army in the World War I, 'Palestine formed an integral part of Turkey',¹ and during the first two years of British rule in Palestine, after WWI, the area was considered occupied enemy territory. In accordance with the international law of belligerent occupation, the occupier was obliged to retain the existing legal system.² In this context, assistant secretary in the War Cabinet, Ormsbry Gore, reported in 1918 that 'the area occupied by us is being administered strictly in accordance with the law and usage of war (Hague Convention)'.³ The British Foreign Office also commented, 'Dr Weizmann took the view that it was impossible to effect any substantial change during the continuation of the military administration'.⁴

4.2 When, If at All, Did Britain Acquire Any Rights in Palestine?

By the turn of the twentieth century, belligerent occupation by itself no longer allowed the occupier to unilaterally annex occupied territory. Transfer of sovereignty required the agreement of the previous sovereign. Such agreement was valid even if it were achieved as a result of war. It has been argued, therefore, that Turkey remained sovereign over Palestine

¹ Henry Cattán, 'Sovereignty over Palestine' (excerpt of pages 242–275, Appendix XI, from Palestine, *The Arab & Israel* by Henry Cattán) in John Norton Moore, ed. *The Arab-Israeli Conflict. Volume I: Readings* (1974), p. 191.

² 'Article 43, Annex to the 1907 Hague Convention concerning the Laws and Customs of War on Land' in International Committee of the Red Cross, *International Red Cross Handbook* (12th ed. 1983), p. 323.

³ PRO.FO.406/40, quoted from Doreen Ingrams, *Palestine Papers 1917–1922: Seeds of Conflict* (1972), p. 32.

⁴ Ibid.

until Turkey formally renounced her rights to Palestine⁵ and that this was only done when Turkey ratified the Treaty of Lausanne in 1924.⁶ According to this theory, Britain remained a military occupier until 1924 and, therefore, had no legal authority to make any disposition regarding Palestine until 1924. This theory would claim to invalidate the legal validity of the 1922 League of Nations Mandate for Palestine adopted when, according to this theory, Turkey was still sovereign in Palestine.

In response, it can be argued that the Ottoman Empire signed an Armistice Agreement in October 1918 in which it, *de facto*, waived its rights to Palestine. Palestine was then already under complete British control.⁷ Furthermore, the 1918 armistice was followed by the 1920 San Remo Conference that allocated Palestine to a British Mandate. There is, apparently, no record of Turkey objecting to this allocation. In the 1920 Sèvres Treaty, Turkey formally waived its rights to Palestine in favour of the Allies. Turkey did not ratify the Sèvres Treaty but not for reasons connected to Palestine. There is no record of Turkey making any claim to Palestine subsequent to the 1918 armistice.

4.2.1 *The 1919 King–Crane Commission*

The King–Crane Commission, officially called the 1919 Inter-Allied Commission on Mandates in Turkey, was a basically a United States commission of inquiry concerning the disposition of areas within the former Ottoman Empire. The Commission reported that the Mandate clearly should go to America. ‘The Moslem and Christian population was practically unanimous against Zionism, usually expressing themselves with great emphasis. This question was closely connected with that of the unity of all Syria under one Government.’⁸ The commission recommended the following:

⁵ Victor Kattan, *From Coexistence to Conquest: International Law and the Origins of the Arab-Israeli Conflict, 1891–1949* (2009), p. 40.

⁶ Treaty of Peace with Turkey and Other Instruments signed at Lausanne on 24 July 1923 and Subsidiary Documents forming part of the Turkish Peace Settlement. Cmd. 1929.

⁷ The Armistice of Mudros, concluded on 30 October 1918, Great Britain, Parliamentary Papers, Cmd. 53, Terms of the Armistices concluded between the Allied Governments and the Governments of Germany, Austria-Hungary and Turkey (HMSO, 1919).

⁸ Report of the American Section of the International Commission on Mandates in Turkey, Paris, 28 August 1919, Para. 3. <https://history.state.gov/historicaldocuments/frus1919Parisv12/d380>.

It is a matter of justice to the Arabs, in the recognition of the Arab People and their desire for national expression, and of deep and lasting concern to the world, that an Arab State along modern political lines should be formed. We recommend, in the fourth place, that Emir Feisal be made the head of the new united Syrian State. Any policy adopted, therefore, for Syria should look to the establishment of a national government and administration deriving their authority from the initiative and free choice of the native populations. A national home for the Jewish people is not equivalent to making Palestine into a Jewish State; nor can the erection of such a Jewish State be accomplished without the gravest trespass upon the civil and religious rights of existing non-Jewish communities in Palestine. Jewish immigration should be definitely limited, and that the project for making Palestine distinctly a Jewish commonwealth should be given up.⁹

However, in a confidential appendix to the Report, the Commission envisaged the future possibility of a 'Jewish majority in Palestine'.¹⁰ The Report of the Commission was not published until 1922 when its findings were no longer relevant.¹¹ The Report of the Commission 'was not acted upon'¹² by the US government and 'had little impact at the time'.¹³

4.2.2 1920 San Remo Conference

In April 1920, the Principal Allied Powers, Britain, France, Italy and Japan met in San Remo, Italy, to decide on the future of Syria, Palestine and Iraq. As regards Palestine, the Resolution of the Conference stated:

The High Contracting Parties agree to entrust, by application of the provisions of Article 22, the administration of Palestine, within such boundaries as may be determined by the Principal Allied Powers, to a

⁹ Ibid., Para. 6.

¹⁰ *The Paris Peace Conference, 1919*, vol. XII (1947), p. 860, quoted from Nathan Fineberg, *Studies in International Law, with Special Reference to the Arab-Israel Conflict* (1979), p. 555.

¹¹ Letter from Undersecretary Henry Fletcher to Secretary of State Leland Harrison, 7 April 1922. Record Group 59, General Records of the Department of State, 763.72119/7161, Microfilm Publication 367, Reel 439, National Archives and Records Administration, quoted in Ken Grossi, Maren Milligan and Ted Waddelow, eds. *Restoring Lost Voices of Self-Determination*, King-Crane Commission Digital Archival Collection, Oberlin College Archives, August 2011.

¹² Walter Laqueur, *A History of Zionism* (1972), p. 451.

¹³ David Schoenbaum, *The United States and the State of Israel* (1993), p. 18.

Mandatory, to be selected by the said Powers. The Mandatory will be responsible for putting into effect the declaration originally made on November 8, 1917, by the British Government, and adopted by the other Allied Powers, in favour of the establishment in Palestine of a national home for the Jewish people, it being clearly understood that nothing shall be done which may prejudice the civil and religious rights of existing non-Jewish communities in Palestine, or the rights and political status enjoyed by Jews in any other country.¹⁴

According to the Resolution adopted by the Conference, 'Turkey hereby undertakes, in accordance with the provisions of Article [Left blank in the original], to accept any decisions which may be taken in this connection'.¹⁵ Although Turkey was not a party to the San Remo Conference, the Resolutions were public and there is no record that Turkey objected to the Resolution or to the reference to Turkey's agreement to accept the Resolution. In this context, Bentwich remarks, 'it was the Supreme Council of the Allies, and not the League of Nations, which actually conferred the Mandates, for the reason that the League did not exist at the moment when the transfer was made of the territories to be placed under the system'.¹⁶ During the negotiations, the French delegation raised the point that the rights guaranteed to the non-Jewish population should include political rights. The British response was that 'civil' rights included personal political rights.¹⁷ There apparently was no discussion on recognising national rights of the non-Jewish communities.

The historian Kramer points out there was no reference in the San Remo declaration to a Jewish State only to a Jewish national home in Palestine and that 'San Remo failed to produce an explicit declaration in favor of a Jewish state and Jewish sovereignty, it took almost 30 more years of struggle, and the Holocaust, to elicit that recognition'. This point is of course correct, but it is also true of the Balfour Declaration and the 1922 League of Nations Mandate.¹⁸

¹⁴ Minutes of Palestine Meeting of the Supreme Council of the Allied Powers Held in San Remo at the Villa Devachan – 24 April 1920, minutes of Meeting of the Supreme Council of the Allied Powers in San Remo at the Villa Devachan – 25 April 1920, minutes written by Maurice Hankey, *Documents of British Foreign Policy*, vol. 8, pp. 159–160.

¹⁵ Ibid.

¹⁶ Norman Bentwich, *The Mandates System* (1930), p. 10.

¹⁷ Hankey, *Documents of British Foreign Policy*, vol. 8, pp. 159–160.

¹⁸ Martin Kramer, 'Did the San Remo Conference Advance or Undermine the Prospects for a Jewish State?', *Mosaic*, 1 December 2020, mosaicmagazine.com.

4.2.3 *The 1920 Sèvres Treaty*

In August 1920, Turkey signed the Sèvres Treaty of Peace whereby it renounced in favour of the Allies all its rights to the Ottoman Empire in the Middle East.

Article 132

Outside her frontiers as fixed by the present Treaty Turkey hereby renounces in favour of the Principal Allied Powers all rights and title which she could claim on any ground over or concerning any territories outside Europe which are not otherwise disposed of by the present Treaty. Turkey undertakes to recognise and conform to the measures which may be taken now or in the future by the Principal Allied Powers, in agreement where necessary with third Powers, in order to carry the above stipulation into effect.¹⁹

The clause in the 1920 Sèvres Treaty relating to Palestine reads as follows:

Article 95

The High Contracting Parties agree to entrust, by application of the provisions of Article 22, the administration of Palestine, within such boundaries as may be determined by the Principal Allied Powers, to a Mandatory to be selected by the said Powers. The Mandatory will be responsible for putting into effect the declaration originally made on 2 November 1917 by the British Government, and adopted by the other Allied Powers, in favour of the establishment in Palestine of a national home for the Jewish people, it being clearly understood that nothing shall be done which may prejudice the civil and religious rights of existing non-Jewish communities in Palestine, or the rights and political status enjoyed by Jews in any other country.²⁰

The Sèvres Treaty provided that the terms of the mandates would be formulated by the Principal Allied Powers and submitted to the Council of the League of Nations for approval.²¹ The Treaty provided that Turkey was to accept any decisions taken that applied to Syria, Mesopotamia and Palestine.²² Turkey did not ratify the Sèvres treaty but for reasons not connected to Palestine. The accumulation of the evidence of the 1918 Armistice Agreement, the April 1920 San Remo Resolution and the August 1920 Sèvres Treaty would seem to point out that by 1920 at

¹⁹ *Treaty of Peace between the British Empire and Allied Powers and Turkey, UK Treaty Series No. 11 of 1920; Cmd.964.*

²⁰ *Ibid.*

²¹ Article 96 of the Sèvres Treaty,

²² Article 97 of the Sèvres Treaty.

the latest, Turkey had renounced in favour of Britain any claim to Palestine. In 1923, Turkey signed and ratified the Lausanne Treaty of Peace in which it ‘renounced all rights to the territories outside its frontiers’.²³ There was no reference there to Palestine, but as Fineberg explains, ‘since the decision as to Palestine was taken a year before the signing of the Treaty, there was absolutely no need for Palestine and the Balfour Declaration to be expressly mentioned in it’.²⁴

4.3 The Legal Basis for the Mandate

The Mandate system has been defined as territories that ‘were not in the ownership of any state, but were entrusted to certain states called “mandatory states” to administer on behalf of the League’.²⁵ The Mandate system was a compromise between classical international law, which granted sovereign rights over occupied territories, and the new ideas of self-determination. The ‘well-being and development’ of the peoples involved being ‘a sacred trust of civilisation’.²⁶ Under classical international law, Britain, as the successor to the Ottoman Empire, could have declared sovereignty over Palestine as a colony. ‘In terms of Realpolitik the British had conquered the country from the Turks and were entitled to do what they liked with it.’²⁷ ‘The British and the French continued to hold to the principle that the territories formerly governed by the Ottoman Empire should be treated as the spoils of war’²⁸ but, as Samuel comments, ‘the victorious Allies had renounced annexations’.²⁹ The Mandate was in fact an agreement between the Mandatory

²³ ‘Treaty of Peace between the Allied Powers and Turkey (Treaty of Lausanne), 24 July 1923’, AJIL 18, no. 1 (Supp. 1924), Article 16.

²⁴ Seminar of Arab Jurists on Palestine, Algiers, 22–27 July 1967 – The Palestine Question (1968) quoted from Nathan Fineberg, ‘The Arab-Israel Conflict in International Law (A Critical Analysis of the Colloquium of Arab Jurists in Algiers)’, in Nathan Fineberg, ed. *Studies in International Law* (1979), p. 453.

²⁵ Robert Jennings and Arthur Watts, eds. *Oppenheim’s International Law* (9th ed. 1996) (1997), vol. 1, p. 296.

²⁶ Article 22 of the Covenant of the League of Nations, http://avalon.law.yale.edu/20th_century/leagcov.asp#art22.

²⁷ 1936–37 [Cmd. 5479] Palestine Royal Commission Report (Royal Commission), p. 147. <https://palestinianmandate.files.wordpress.com/2014/04/cm-5479.pdf>.

²⁸ James L. Gelvin, *The Israel-Palestine Conflict: One Hundred Years of War* (3rd ed. 2014, reprinted 2017), p. 84.

²⁹ Viscount Samuel, *Memoirs* (1945), p. 148.

State – Britain, in the case of Palestine – and the League of Nations.³⁰ Britain was to administer Palestine but its administration was to be subject to the conditions agreed to by Britain and the League. In 1922, the Council of the League of Nations unanimously adopted the Mandate for Palestine.³¹

The 1947 UNSCOP, in its report to the UN General Assembly, set out a history of the Mandate and, to explain the legal nature of the mandatory system, it quoted Lord Balfour's speech to the Council of the League of Nations:

Remember that a mandate is a self-imposed limitation by the conquerors on the sovereignty which they obtained over conquered territories. It is imposed by the Allied and Associated Powers themselves in the interests of what they conceived to be the general welfare of mankind and they have asked the League of Nations to assist them in seeing that this policy should be carried into effect. But the League of Nations is not the author of the policy, but its instrument.³²

The special legal nature of the Mandate system whereby Britain administered Palestine but was not the sovereign of Palestine is illustrated by the following two clauses of the Palestine Mandate. They require Britain to make annual reports to the League and they prohibit Britain from transferring territory of Palestine to another State. 'The Mandatory shall be responsible for seeing that no Palestine territory shall be ceded or leased to, or in any way placed under the control of the Government of any foreign Power.'³³ 'The Mandatory shall make to the Council of the League of Nations an annual report to the satisfaction of the Council as to the measures taken during the year to carry out the provisions of the mandate. Copies of all laws and regulations promulgated or issued during the year shall be communicated with the report.'³⁴

³⁰ ICJ Reports 1962, pp. 319, 330. South West Africa Cases (Preliminary Objections): 'The Mandate, in fact and in law, is an international agreement having the character of a treaty or convention.'

³¹ 'Mandate for Palestine' in Walter Laqueur and Dan Schueftan, eds. *The Israel-Arab Reader: A Documentary History of the Middle East Conflict* (8th ed. 2016), p. 30.

³² United Nations Special Committee on Palestine, Report to the General Assembly, vol. 1, para. 180, UN Doc. A/364, 3 September 1947, <https://unispal.un.org/DPA/DPR/unispal.nsf/0/07175DE9FA2DE563852568D3%20006E10F3>.

³³ 'Article 5, Palestine Mandate' in Walter Laqueur and Dan Schueftan, eds. *The Israel-Arab Reader: A Documentary History of the Middle East Conflict* (8th ed. 2016), p. 30.

³⁴ Yale Law School, Avalon Project, The Palestine Mandate, https://avalon.law.yale.edu/20th_century/palmanda.asp.

Fineberg writes that the terms of the Mandate were binding on State members of the League of Nations, thus 'all members of the League [of Nations] without exception are internationally bound to assist in the establishment of the Jewish National Home'.³⁵

4.4 Sovereignty of Palestine during the Mandate

A cogent argument can be made that, by 1920, Turkey had renounced all its rights to Palestine in favour of Britain. According to international law, as it was at the time, Britain, who now occupied Palestine, could have turned it into a British colony. However, following an ideological shift away from colonialism and towards recognition of the rights of peoples to self-determination, and because of US pressure, Britain chose not to turn Palestine into a colony. The decision was to administer it as a mandated territory in accordance with an agreement to be reached with the League of Nations. France did the same in regard to Lebanon and Syria. Yannis writes, 'the Mandate system did not emerge as the result of the legal appreciation of the capacity of the local population for self-rule but rested on the power of disposition of the leading victor states of the World War I over the colonial territories of the defeated states'.³⁶ Britain administered Palestine but was not sovereign. The fact that Britain was not sovereign is illustrated by Article 5 of the Mandate

Article 5

The Mandatory shall be responsible for seeing that no Palestine territory shall be ceded or leased to, or in any way placed under the control of, the Government of any foreign Power.

It is not clear in international law who was sovereign over Palestine during the period of the Mandate. "There is strong support among jurists for the view that such sovereignty remains in abeyance or suspense during the period of the Mandate."³⁷ Judge McNair of the ICJ wrote, in a separate opinion: "The doctrine of sovereignty has no application to this new [Mandate] system. Sovereignty over a Mandated Territory is in

³⁵ Nathan Fineberg, *Some Problems of the Palestine Mandate* (1936), p. 113.

³⁶ Alexandros Yannis, 'The Concept of Suspended Sovereignty in International Law and Its Implications in International Politics', *EJIL* 13(2002), pp. 1037–1052, 1040.

³⁷ Hassan Bin Talal, Crown Prince of Jordan, *Palestinian Self-Determination: A Study of the West Bank and Gaza Strip* (1981), p. 30.

abeyance.³⁸ The League of Nations was not the sovereign of Palestine, as international organisations cannot be sovereign over territories.³⁹ President Wilson had in fact proposed giving the League of Nations the authority to be sovereign over territory but his proposal was not adopted.⁴⁰ Cattán writes that the title to Palestine belonged to the Palestinian Arabs from ‘time immemorial’.⁴¹ Cattán bases his argument on the premise that the peoples who were in the Ottoman Empire were held by the Covenant of the League of Nations to be at such a stage of development ‘where their existence as independent nations can be provisionally recognized’.⁴² ‘The [Arab] community which then inhabited Palestine thus became a subject of international law in which was vested the legal sovereignty over the territory in which it lived.’⁴³ Cattán writes, ‘Turks and Arabs therefore shared sovereignty over all the territories of the Turkish Empire’.⁴⁴ Fineberg responded to this statement, ‘is it really possible to contend, in all seriousness, that the Arabs shared with the Turks – in the time of Sultan Abdul Hamid, or under the Young Turks – sovereignty over the whole of the Ottoman Empire?’⁴⁵ The international lawyer Quincy Wright concluded, in 1923, that ‘it also seems impossible to attribute sovereignty to the mandated community, with the possible exception of Iraq’.⁴⁶

Quigley espouses the view that Palestine was a ‘State’ during the period of the British Mandate.⁴⁷ Although Palestine had its own government,

³⁸ ICJ Reports 1950, pp. 128, 150, International Status of South West Africa, Separate Opinion of Judge McNair.

³⁹ For a comprehensive survey of the various theories as to sovereignty in Mandates, see Mussa Mazzawi, *Palestine and the Law: Guidelines for the Resolution of the Arab-Israel Conflict* (1997), pp. 29–62.

⁴⁰ David Hunter Miller, *The Drafting of the Covenant*, vol. 2, doc.7 (1928) p. 87. <https://int.search.myway.com/search/GGmain.jhtml?p2=%5ECPX%5Exdm170%5ETTAB03%5Eil&ptb=9C993FD9-B463-4BC3-85DA-FB7ED72676CC&n=7849f463&cn=IL&ln=en&si=mapsonline-1>.

⁴¹ Cattán, ‘Sovereignty over Palestine’, p. 193.

⁴² Article 22 paragraph 4 of the Covenant of the League of Nations, http://avalon.law.yale.edu/20th_century/leagcov.asp#art22.

⁴³ Cattán, ‘Sovereignty over Palestine’, p. 195.

⁴⁴ *Ibid.*, p. 193.

⁴⁵ Nathan Fineberg, ‘Arab Jurist’s Approach to the State of Israel’ in Nathan Fineberg, ed. *Studies in International Law with special reference to the Arab-Israel Conflict* (1979), p. 519.

⁴⁶ Quincy Wright, ‘Sovereignty of the Mandates’, *AJIL* 17, no. 4 (October 1923), pp. 691–703, 696.

⁴⁷ John Quigley, *The Statehood of Palestine: International Law in the Middle East Conflict* (2010), p. 27.

police, currency and laws, it would seem difficult to characterise it as a State under international law. Palestine was governed by a High Commissioner appointed by Britain. Khalidi writes, 'in Palestine, the British high commissioner was the highest, indeed the sole source of authority in the land'.⁴⁸ The laws of Palestine were promulgated by Britain. The basic 'constitution' of Palestine was the Palestine Order in Council of 10 August 1922 and its amendments, and they were promulgated in London on the basis of the *British Foreign Jurisdiction Act of 1890*. The Palestine Supreme Court ruled in 1937 that the British sovereign had full powers to legislate for Palestine and his orders could not be challenged on grounds that they violated the terms of the 1922 Mandate.⁴⁹ In London, the affairs of Palestine, including its daily running, were the responsibility of the Colonial Secretary and the Colonial Office.

Britain conducted the foreign policy of Palestine, there was no local parliament or legislative body, and the flag of Palestine was the British Union Jack. Quigley points out that the San Remo Resolution 'omitted reference to any provisional recognition of Palestine as an independent State', although the phrase was used in regard to Syria and Mesopotamia (Iraq). The 1920 Treaty of Sèvres provisionally recognised Syria and Mesopotamia as 'independent States', but the provision on Palestine refrained from referring to Palestine as an independent State.⁵⁰ Stein points out that the Mandate for Syria refers to 'the progressive development of Syria and the Lebanon as independent States' and the identical phrase appears in the final draft Mandate for Mesopotamia, but 'in the Mandate for Palestine no corresponding provision is to be found'.⁵¹ Quigley summarises his supposition by stating that Palestine, although a State, was not yet independent and 'independence would follow at the termination of the Mandate'.⁵² Kattan also reaches the conclusion that 'during the British mandate (1922–1948) Palestine was not a sovereign nation'.⁵³ It would seem that during the period of the Mandate the issue of sovereignty was in abeyance.

⁴⁸ Rashid Khalidi, 'The Palestinians and 1948' in Eugene L. Rogan and Avi Shlaim, eds. *The War for Palestine: Rewriting the History of 1948* (2nd ed. 2007), p. 19.

⁴⁹ Case No.31, *Palestine Annual Digest, 1935–1937*.

⁵⁰ Articles 94 and 95 of the Sèvres Treaty.

⁵¹ Leonard Stein, 'The Problem of Self Government' in Leon Simon and Leonard Stein, eds. *Awakening Palestine* (1923), p. 233.

⁵² Quigley, *The Statehood of Palestine*, p. 28.

⁵³ Victor Kattan, 'The Nationality of Denationalized Palestinians' in Victor Kattan, ed. *The Palestine Question in International Law* (2008), p. 122.

4.5 Legal Aspects of the Boundaries of the Palestine Mandate

Under the Ottoman Empire, Palestine was not a distinct unit, the geographer Biger writes, ‘as far as the Ottoman regime was concerned, Palestine was an abstract concept that related to a general region, but did not define any clear territorial unit’.⁵⁴ The historian Lewis adds, ‘from the end of the Jewish state in antiquity to the beginning of British rule, the area now designated by the name Palestine was not a country and had no frontiers’.⁵⁵ The first delimitation of a Palestinian border was the 1906 Agreement between the Ottoman Empire and the Egyptian Khedivate (in reality the British government which ruled Egypt at the time). This agreement delimited the ‘separating administrative line between the Vilayet of Hejaz and Governorate of Jerusalem and the Sinai Peninsula’.⁵⁶ In 1916, during the World War I, Britain and France, later joined by Russia, secretly agreed in very broad terms to the boundary between the areas respectively to be under British and French control. According to this agreement – the Sykes–Picot Agreement⁵⁷ – part of Palestine was to be an Arab State under British ‘direct or indirect administration or control’, part under international control and the Haifa area of Palestine under direct British rule.⁵⁸ However, at the 1920 San Remo Conference, the Allies departed from the Sykes–Picot Agreement and determined that Palestine should be a separate entity ‘within such boundaries as may be determined by the Principal Allied Powers’.⁵⁹

The international law rule of *Usi Possidetis* stipulates ‘a new state has the boundaries of the previous entity’,⁶⁰ unless otherwise agreed. Although Palestine was not an independent State, nevertheless, it

⁵⁴ Gideon Biger, *The Boundaries of Modern Palestine, 1840–1947* (2004), p. 15.

⁵⁵ Bernard Lewis, ‘The Palestinians and the PLO, a Historical Approach’, *Commentary* (January 1975), pp. 32–48.

⁵⁶ Agreement signed and exchanged at Rafeh, 1 October 1906, between the commissioners of the Turkish Sultanate and the commissioners of the Egyptian Khedivate, concerning the fixing of a separating administrative line between the Vilayet of Hejaz and Governorate of Jerusalem and the Sinai Peninsula, *British and Foreign State Papers 1905–6*.

⁵⁷ See Chapter 2.

⁵⁸ ‘Sykes–Picot Agreement’ in Walter Laqueur and Dan Schueftan, eds. *The Israel-Arab Reader: A Documentary History of the Middle East Conflict* (8th ed. 2016), p. 13.

⁵⁹ Mesopotamia, Palestine mandates – San Remo conference (UK, France, Italy, Japan), <https://unispal.un.org/DPA/DPR/unispal.nsf/0/DB662E3B80797A9685257A130073F02E>.

⁶⁰ Malcolm Shaw, *International Law* (9th ed. 2021), p. 450.

inherited the agreed 1906 boundary with Egypt.⁶¹ Other than the boundary with Egypt, Palestine had no other agreed boundaries to inherit and these, therefore, had to be negotiated with its neighbours. When Britain carried out internal discussions as to the future borders of Palestine, they took into consideration *inter alia* the biblical description of the area as being from 'Dan to Beersheba'.⁶² However, the main considerations were strategic interests, water sources and private land ownership.⁶³ France, at the time, controlled the neighbouring areas of Syria and Lebanon, and, therefore, the British negotiations were concluded with France. These negotiations led to the 1920 Franco-British Boundary Convention.⁶⁴ The 1920 Agreement was later amended by the 1923 agreed delimitation agreement.⁶⁵ These agreements set out the boundaries between Palestine and Syria and Lebanon. The League of Nations approved the borders.⁶⁶

At the time of the inception of the Palestine Mandate in 1922,⁶⁷ the territorial limits of the Mandate for Palestine included Trans-Jordan, now the territory of the Hashemite Kingdom of Jordan. As Trans-Jordan was considered part of the Palestine Mandate, no international border was defined between it and Palestine.

⁶¹ Palestine and Transjordan, B.R.514, Geographical Handbook Series (December 1943) Naval Intelligence Division (Reproduced Annex 81, Vol. II, Annexes, Memorial of Israel, The Egypt Israel Arbitration Tribunal (1987): 'The line dividing the territories under Egyptian and Turkish administration was defined in 1906 by a boundary commission and has not since been modified.' British Minister of State in the House of Commons July 1925 (Quoted from Israel Memorial Annex 64, p. 304, the Egypt Israel Arbitration Tribunal (1987).

⁶² Letter of Vansittart to Curzon, *Documents on British Foreign Policy*, First Series, vol. XIII, no. 337, p. 387.

⁶³ Adam Garfinkle, *War, Water and Negotiations in the Middle East: The Case of the Palestine-Syria Border 1916-1923* (1994).

⁶⁴ Franco-British Agreement on Mandatory Borders (1920) <https://ecf.org.il/issues/issue/262>.

⁶⁵ Agreement Between Majesty's Government and the French Government Respecting the Boundary Between Syria and Palestine from the Mediterranean to El Hamme, 7 March 1923, 22 LNTS 364.

⁶⁶ Report by His Majesty's Government in the United Kingdom of Great Britain and Northern Ireland to the Council of the League of Nations on the Administration of Palestine and Trans-Jordan for the year 1920, December 1921, p. 23 (HM Stationary Office 1922).

⁶⁷ The US position was that the Mandate for Palestine only entered into force on 29 September 1923. US Department of State, *The Treaty of Versailles and After: Annotations of the Text of the Treaty* (1947), p. 102.

However, Article 25 of the Mandate stipulated the following:

In the territories lying between the Jordan and the eastern boundary of Palestine as ultimately determined, the Mandatory shall be entitled, with the consent of the Council of the League of Nations, to postpone or withhold application of such provisions of this mandate as he may consider inapplicable to the existing local conditions, and to make such provision for the administration of the territories as he may consider suitable to those conditions.⁶⁸

The British government subsequently sent notice to the Council of the League of Nations that, in accordance with Article 25 of the Mandate, it had decided that it was not going to apply to Trans-Jordan the terms of the Mandate relating to a Jewish National home. The British notice included the description of the administrative boundary between Palestine and Trans-Jordan. The Council of the League of Nations approved the British notice.⁶⁹ When Trans-Jordan became an independent kingdom, the administrative boundary became the international boundary with Palestine.

Fineberg writes, ‘thus, three-fourths of the territory of Mandated Palestine “was excluded from the Jewish national home”’.⁷⁰ It could be inferred, perhaps, from the British notice that, by excluding East Palestine, all the provisions relating to a Jewish National Home, including close settlement on the land, were to be applied to the remainder of Palestine that is the whole of Western Palestine, including the area now known as the West Bank.

The Mandatory Power was prohibited from transferring any part of Palestine to a foreign power.⁷¹ Barnidge writes on this issue that ‘might the exclusion of the Jewish national home provisions east of the Jordan and the creation of an Arab governing authority there, that had an alien pedigree, be seen as a constructive transfer of a part of Palestine to a foreign power?’⁷² This argument would not seem to be tenable, as the

⁶⁸ ‘Article 25 of the Palestine Mandate’ in Walter Laqueur and Dan Schueftan, eds. *The Israel-Arab Reader: A Documentary History of the Middle East Conflict* (8th ed. 2016), p. 30.

⁶⁹ Yale Law School, Avalon Project, The Palestine Mandate.

⁷⁰ Fineberg, ‘The Arab-Israel Conflict in International Law (A Critical Analysis of the Colloquium of Arab Jurists in Algiers)’, p. 467.

⁷¹ Yale Law School, Avalon Project, The Palestine Mandate.

⁷² Robert P. Barnidge Jr. *Self Determination, Statehood, and the Law of Negotiation: The Case of Palestine* (2016), p. 19.

Council of the League of Nations, the same body that had adopted the 1922 Mandate, approved the British declaration.

4.6 The Text of the Mandate

4.6.1 *Preamble to the Mandate*

The Mandate sets out the detailed terms under which Britain would administer Palestine. Particularly relevant clauses of the Mandate include the Preamble.

Preamble

Whereas the Principal Allied Powers have agreed, for the purpose of giving effect to the provisions of Article 22 of the Covenant of the League of Nations to entrust to a Mandatory selected by the said Powers the administration of the territory of Palestine, which formerly belonged to the Turkish Empire, within such boundaries as may be fixed by them; and

Whereas the Principal Allied Powers have also agreed that the Mandatory should be responsible for putting into effect the declaration originally made on November 2nd 1917, by the Government of His Britannic Majesty, and adopted by the said Powers, in favor of the establishment in Palestine of a national home for the Jewish people, it being clearly understood that nothing should be done which might prejudice the civil and religious rights of existing non-Jewish communities in Palestine, or the rights and political status enjoyed by Jews in any other country.⁷³

From an international law aspect, the preamble makes it clear that the power to determine the status of Palestine belonged to the Allied powers and not to the League of Nations. It was the Allied Powers who decided that the Mandatory, that is, Britain, administer Palestine in accordance with the agreement between them and the League.

The text of the 1917 Balfour Declaration had already become binding on Britain, under international law, by virtue of the San Remo Conference. Nevertheless, the Declaration received a further confirmation of its binding nature by being incorporated into the Mandate, which was an agreement between Britain and the League, thus receiving a seal of international approval.

The Preamble continues with a phrase that did not appear in the 1917 Balfour Declaration. 'Whereas recognition has thereby been given

⁷³ Yale Law School, Avalon Project, The Palestine Mandate.

to the historical connection of the Jewish people with Palestine and to the grounds for reconstituting their national home in that country.' The Zionist movement had proposed that a similar phrase be included in the Balfour Declaration, but their request was rejected. Here, it was inserted at the request of the Zionist movement, who regarded its inclusion as extremely important. The expressions 'are clearly intended to indicate that in establishing their national home in Palestine the Jews are to be regarded, not as an alien element, but as a people returning to the soil from which it sprang, there to rebuild the fabric of its national life'.⁷⁴ The phrase was intended to emphasise that the Zionist movement was not a European colonialist enterprise but rather an indigenous people returning to their homeland and reconstituting a national home. Senior officials in the British Foreign Office objected at the time to the inclusion of this phrase but were overruled.⁷⁵ However, at the insistence of the British Foreign Office, the words 'and the claim which this gives them [The Jewish People]' was omitted from the final text.⁷⁶

4.6.2 *Securing the Jewish National Home*

As the 1937 Peel Commission reported, 'unquestionably, however, the primary purpose of the Mandate, as expressed in its preamble and its articles, is to promote the establishment of the Jewish National Home'.⁷⁷ The Jordanian Crown prince commented, 'to the Arab Moslems and Christians it [the terms of the Mandate] meant an alien and permanent intrusion into their homelands after thirteen centuries of their history'.⁷⁸ Quigley comments that the Jewish population of Palestine welcomed the League of Nations Mandate, however, in perhaps an understatement, it 'found little favor with its Arab population'.⁷⁹

The League of Nations Mandate contained explicit instructions to Great Britain as to how it was to act in order to 'secure the Jewish National Home':

⁷⁴ Memorandum Submitted to the Palestine Royal Commission on Behalf of the Jewish Agency for Palestine (November 1936), p. 34.

⁷⁵ Comments of Lord Curzon, PRO.FO. 371/5245 quoted from Ingrams, *Palestine Papers 1917-1922*, p. 98.

⁷⁶ Minutes of the British Government 'Palestine Committee', PRO.FO. 371/5245 quoted from Ingrams, *Palestine Papers 1917-1922*, p. 98.

⁷⁷ 1936-37 [Cmd. 5479] Palestine Royal Commission Report (Royal Commission), p. 27.

⁷⁸ Talal, *Palestinian Self-Determination*, p. 31.

⁷⁹ Quigley, *The Statehood of Palestine*, p. 28.

Article 6

The Administration of Palestine, while ensuring that the rights and position of other sections of the population are not prejudiced, shall facilitate Jewish immigration under suitable conditions and shall encourage, in co-operation with the Jewish agency referred to in Article 4, close settlement by Jews on the land, including State lands and waste lands not required for public purposes.⁸⁰

Article 6 of the Mandate referred exclusively to encouraging 'Jewish' immigration and to encouraging Jewish settlement on State land and wasteland. Storrs, who served as governor of Jerusalem, wryly comments on this clause, 'the thinking Arab regarded Article 6 [of the Mandate] as Englishmen would regard instructions from a German conqueror for the settlement and development of the Duchy of Cornwall, not by Germans, but by Italians returning as Roman legionaries'.⁸¹ Kattan writes,

the reason why the Mandate contained so many provisions for Jewish settlement was precisely because the vast majority of Jews in the early 1920s were not resident in Palestine. There was no need to insert provisions in the Mandate facilitating the immigration of Arabs to Palestine, as they were already there.⁸²

In fact, there was considerable Arab immigration into Palestine during the Ottoman period and Arab immigration continued during the period of the British Mandate, although it usually went unrecorded.⁸³

Article 22 of the mandate provided that English, Arabic and Hebrew should be the official languages. In all official documents, stamps and currency of the Mandate, the Hebrew name of Palestine was followed by the Hebrew initials of 'LI', signifying Land of Israel.⁸⁴ This was a compromise reached with the Jewish community in Palestine who wanted the name of Palestine in Hebrew to be spelt out in full as 'Land of Israel'. Storrs, the British Governor of Jerusalem, commented that 'strong pressure was exerted upon the authorities to render Palestine, in the Hebrew title by *Eretz Yisrael*, the Land of Israel, the ancient and traditional Jewish

⁸⁰ 'Article 6, Palestine Mandate', in Walter Laqueur and Dan Schueftan, eds. *The Israel-Arab Reader: A Documentary History of the Middle East Conflict* (8th ed. 2016), p. 30.

⁸¹ Ronald Storrs, *Orientations* (1937) (1943), p. 356.

⁸² Kattan, *From Coexistence to Conquest*, p. 129.

⁸³ See Joan Peters, *From Time Immemorial: The Origins of the Arab-Jewish Conflict over Palestine* (1984), pp. 221–296.

⁸⁴ Yale Law School, Avalon Project, The Palestine Mandate.

The Hebrew Letters י"ל were for 'Eretz Israel' (Land of Israel).

name, Jews have never called the country Palestine, which was indeed a Roman name'.⁸⁵

4.7 Arab Reaction to the Mandate

In April 1920 and May 1921, Arab anti-Zionist riots took place. A British commission of enquiry blamed the Arabs for fomenting the riots but explained that the root cause was 'Jewish immigration' and Zionism.⁸⁶ In 1929, fighting flared up between the Jewish and Arab communities resulting in murder and expulsion of the Jewish community in Hebron. A British commission of enquiry, the Passfield Commission, issued a 'White Paper':

It is the difficult and delicate task of His Majesty's Government to devise means whereby, in the execution of its policy in Palestine, equal weight shall at all times be given to the obligations laid down with regard to the two sections of the population if immigration of Jews results in preventing the Arab population from obtaining the work necessary for its maintenance, or if Jewish unemployment unfavourably affects the general labour position, it is the duty of the Mandatory Power under the Mandate to reduce, or, if necessary, to suspend, such immigration until the unemployed portion of the 'other sections' is in a position to obtain work.⁸⁷

In 1933, further Arab riots broke out in response to increased Jewish immigration. A delegation of Palestinian Arabs presented a demand to the British High Commissioner calling for an end to Jewish immigration and prohibition of land sales to Jews. In 1936, an Arab general strike was proclaimed, and riots spread throughout the country. The British armed forces repressed the riots, using brutal force and at times cooperating with the Jewish Haganah forces. The 1937 British Peel Commission stated that 'by 1922, however, it was clear that the paramount community in Palestine was the Arab community, over half a million in number and all Arab in speech and Arab in their national aspirations'.⁸⁸ The Commission quotes the Arab case as follows: 'The Arabs were therefore indignant when Palestine, without any consultation of its inhabitants by the Allied Powers, was severed from Syria and placed under a British

⁸⁵ Storrs, *Orientations*, p. 384.

⁸⁶ The Haycroft Report into the Disturbances of May 1921, Cmd.1540 (October 1921).

⁸⁷ www.jewishvirtuallibrary.org/the-passfield-white-paper.

⁸⁸ 1936–37 [Cmd. 5479] Palestine Royal Commission Report (Royal Commission), p. 32.

Mandate in which the Balfour Declaration was enshrined. Again, though the Mandate was ostensibly based on Article 22 of the Covenant of the League of Nations, its positive injunctions were not directed to the well-being and development of the existing Arab population but to the promotion of Jewish interests.⁸⁹

In view of the fear of an approaching conflict with Nazi Germany, the military activities in Palestine became an increasing burden on Britain. Rose comments that ‘about forty percent of Britain’s total field force’ was ‘used to crush the Arab rebellion’.⁹⁰ The 1947 UN Special Committee on Palestine summarised the reasons for the Arab objection to the Mandate: Arab numerical majority in Palestine of two to one compared to the Jews, natural rights of the Arabs since Arab connection has ‘continued uninterruptedly from early historical times’, Palestine was promised to the Arabs during the World War I, the Mandate is illegal as it is inconsistent with Article 22 of the Covenant of the League of Nations, the Mandate did not provide for the independence of Palestine, the Mandate ignored the right of self-determination and the Arab States were not members of the League of Nations at the time and are therefore not bound by the Mandate.⁹¹

4.8 Legality of the Mandate: Did the Mandate Violate Article 22 of the Covenant of the League of Nations?

There have been claims that the League of Nations Mandate was invalid as it was not in accordance with the wish of the then majority population of Palestine and it was in violation of Article 22 of the Covenant of the League of Nations, which refers to ‘the well-being and development of such peoples form a sacred trust of civilization’.⁹² Mallison writes, ‘this provision of the Covenant [sacred trust], protecting territories “inhabited by peoples” is clearly inconsistent with “the Jewish people’s nationality claims based upon the religious identification of individuals who are the inhabitants of many territories”’.⁹³ Allain has argued that peoples’ nationality claims based upon religious identification violated ‘the sacred

⁸⁹ Ibid., p. 108.

⁹⁰ Norman Rose, *A Senseless Squalid War: Voices from Palestine 1890s–1948* (2010), p. 42.

⁹¹ UNGA Resolution 181 (II), 29 November 1947. UNSCOP Report para. 156–165.

⁹² Article 22, Covenant of the League of Nations, http://avalon.law.yale.edu/20th_century/leagcov.asp

⁹³ W. T. Mallison, ‘The Zionist–Israel Juridical Claims to Constitute “The Jewish People” Nationality Entity and to Confer Membership in It; Appraisal in Public International

trust'.⁹⁴ The Algiers Seminar of Arab Jurists declared the sole aim of the Mandate system was 'to guarantee the protection of the natives and safeguard their interests with a view to guiding them towards self-government'.⁹⁵ The Algiers Seminar of Arab Jurists concluded that 'the claims formulated by the Arabs immediately after the secession of Palestine from the Ottoman Empire are based upon the soundest principles of international law, particularly that of self-determination'.⁹⁶ The Jewish Agency responded to this issue, in 1936:

The draftsmen [of the Covenant] deliberately used the rather vague expression 'certain communities' because they had in mind the special considerations applicable to two of the ex-Turkish territories, namely Palestine and Armenia. It was well understood between the principal signatories of the Treaty [of Versailles] that in the Mandate for Palestine provision would be made for the Jewish National Home, and less than four months later a decision to that effect was formally recorded by the Supreme Council of the Allies at San Remo.⁹⁷

In a legal opinion, William Finlay, who was later to become a British Lord Justice of Appeal, wrote that there was no inconsistency between Article 22 and the Mandate merely because the Mandate, 'which may benefit Palestine, may also benefit one particular people, viz.: the Jews'.⁹⁸ The 1936 Jewish Agency memorandum also makes the point that the Preamble to the Palestine Mandate makes no reference to paragraph 4 of the Covenant which contains the phrase 'certain communities that have reached a stage of development where their existence as independent nations can be provisionally recognised'. The Preambles to the Mandates of Syria and Lebanon do make such a reference. The omission of such a reference in the Palestine Mandate, in the view of the Jewish Agency

Law', *The George Washington Law Review* 32 (1964), pp. 983–1075; John Norton Moore, ed. *The Arab-Israeli Conflict. Volume I: Readings* (1974), p. 134.

⁹⁴ Jean Allain, *International Law in the Middle East: Closer to Power Than Justice* (2004), p. 73.

⁹⁵ Seminar of Arab Jurists on Palestine, Algiers, 22–27 July; Fineberg, *Studies in International Law*, p. 456.

⁹⁶ Seminar of Arab Jurists on Palestine, Algiers, 22–27 July 1967, p. 258.

⁹⁷ Memorandum Submitted to the Palestine Royal Commission on Behalf of the Jewish Agency for Palestine (November 1936), pp. 59, 60.

⁹⁸ Ibid., Appendix II; Mallison, 'The Zionist-Israel Juridical Claims to Constitute "The Jewish People" Nationality Entity and to Confer Membership in It; Appraisal in Public International Law', pp. 983–1075; Moore, *The Arab-Israeli Conflict*, p. 134; Allain, *International Law in the Middle East*, p. 73; Seminar of Arab Jurists on Palestine, Algiers, 22–27 July 1967, p. 456.

memorandum, was ‘not accidental’.⁹⁹ Fineberg makes the point that the International Court of Justice Advisory Opinion on South West Africa stated that one of the purposes of the Mandate system was to serve ‘the interests . . . of humanity in general’.¹⁰⁰ The unanimous approval of the Mandate by the Council of the League of Nations could be evidence that it was their belief that providing a national home for the Jewish people in Palestine served that purpose. Lapidoth makes the point that

Article 22 does not grant this right to all former Turkish areas, but only to ‘Certain’ of them. Moreover, Article 22, paragraph 8 gave the Council the ultimate power of determining the terms of the mandates in accordance with the special circumstances of each case, and the Council had legitimately used those powers in laying down the Jewish national home clause of the Mandate.¹⁰¹

The 1937 British Peel Commission also commented on this issue:

The acceptance by the Allied Powers and the United States of the policy of the Balfour Declaration made it clear from the beginning that Palestine would have to be treated differently from Syria and Iraq, and that this difference of treatment was confirmed by the Supreme Council in the Treaty of Sevres and by the Council of the League in sanctioning the Mandate.¹⁰²

The text of Article 22, in this form, was included in the final report of the Commission on the League of Nations, which was approved on 28 April 1919, two months before the signing of the treaty of peace. It was, therefore, drafted without cognizance of the precise territories to which paragraphs 4, 5 and 6 would relate.¹⁰³

The Council of the League of Nations examined the Arab claim that the Mandate was in violation of Article 22 of the Covenant and passed a resolution that the Mandate ‘is in general administrated in accordance with the spirit and letter of Article 22 of the Covenant’.¹⁰⁴

⁹⁹ Ibid.

¹⁰⁰ *International Status of South-West Africa Advisory Opinion of July 11th, 1950*, ICJ Reports 1950, p. 132.

¹⁰¹ Ruth Lapidoth, ‘The Arab-Israel Conflict- Legal Aspects’ in Israel Stockman-Shomron, ed. *Israel the Middle East and the Great Powers* (1984), p. 178.

¹⁰² 1936–37 [Cmd. 5479] Palestine Royal Commission Report (Royal Commission), p. 38.

¹⁰³ Note to Article 22 of the Covenant, Papers Relating to the Foreign Relations of the United States, the Paris Peace Conference, 1919, vol. XIII, The Covenant of The League of Nations (Art. 1 to 26), <https://history.state.gov/historicaldocuments/frus1919Parisv13/ch10subch1>.

¹⁰⁴ Resolution of the Council of the League of Nations 10 December 1924.

The 1947 UN Special Committee on Palestine also looked into this claim and responded in its report:

There would seem to be no grounds for questioning the validity of the Mandate for the reason advanced by the Arab States. The terms of the Mandate for Palestine, formulated by the Supreme Council of the Principal Allied Powers as a part of the settlement of the First World War, were subsequently approved and confirmed by the Council of the League of Nations.¹⁰⁵

This report was approved, subsequently, by the General Assembly of the UN. The Permanent Court of International Justice dealt with a case dealing with a concession granted by the government of Palestine, and no claim was raised that the Mandate itself was illegal.¹⁰⁶ Moreover, Quigley writes, 'the provision on Palestine thus read differently from the provision on Syria and Mesopotamia and omitted reference to any provisional recognition of Palestine as an independent state'.¹⁰⁷

Notably the phrase 'self-determination' does not appear in the Covenant of the League of Nations. Dupuis wrote in 1931 that the Versailles Peace Conference regarded the principle of self-determination as 'a purely political factor and not as a legal principle'.¹⁰⁸ The idea of self-determination was applied in Europe, but Colonies in Africa and elsewhere were still regarded as legal, and even in Europe, Kissinger remarks about giving South Tirol to Italy and 'various other adjustments which, collectively, ran counter' to the principle of self-determination.¹⁰⁹ The 1920 League of Nations Committee of Jurists gave its opinion that, at the time, the precedents of applying the principle of self-determination 'cannot be considered as sufficient to put it upon the same footing as a positive rule of the Law of Nations'.¹¹⁰ It can also be argued that by deciding that the Jewish national home provisions of the Mandate were not to apply to Eastern Palestine (Trans-Jordan), the League of Nations was granting the Palestinian Arabs self-determination in part of Palestine.

¹⁰⁵ United Nations Special Committee on Palestine Report to the General Assembly, vol. 1, para. 179, UN Doc. A/364, 3 September 1947, <https://unispal.un.org/DPA/DPR/unispal.nsf/0/07175DE9FA2DE563852568D3006E10F3>.

¹⁰⁶ *The Mavrommatis Palestine Concessions, Greece v. Britain*, Judgment No.2, 30 August 1924, www.worldcourts.com/pcij/eng/decisions/1924.08.30_mavrommatis.htm.

¹⁰⁷ Quigley, *The Statehood of Palestine*, p. 30.

¹⁰⁸ Charles Dupuis, *Règles générales du droit de la paix* (1931), p. 37.

¹⁰⁹ Henry Kissinger, *Diplomacy* (1994), p. 231.

¹¹⁰ League of Nations, Official Journal, Special Supplement No.3, The Aaland Islands Questions, Report of the Committee of Jurists (1920), pp. 5–6.

4.9 Did Jewish Immigration to Palestine Prejudice the Rights of the Local Arab Population?

Article 6 of the Mandate stipulated that ‘the Administration of Palestine, while ensuring that the rights and position of other sections of the population are not prejudiced, shall facilitate Jewish immigration under suitable conditions’. It is necessary to examine whether such immigration did prejudice ‘other sections of the population’. As regards the local Arab population, the 1937 Peel Commission wrote that ‘in Arab as in Jewish Palestine the most striking fact is the growth of population. It has risen since 1920 from about 600,000 to about 950,000’. The shortfall of land is less due, we consider, to the amount of land acquired by Jews than to the increase in the Arab population’.¹¹¹

The British Labour MP Herbert Morrison, who was later deputy prime minister, spoke in the House of Commons about his impressions of a visit to Palestine. ‘Far from Jewish immigration having made it impossible for the Arabs to live in Palestine, far from it having damaged the Arabs socially and economically, Jewish immigration has made possible the existence of a much larger Arab population.’¹¹² Winston Churchill said, in 1939, ‘the Arabs have crowded into the country and multiplied till their population has increased more than even all world Jewry could lift up the Jewish population’.¹¹³

The UN Special Commission on Palestine reported in 1947:

Our conclusion, then, is that, broadly speaking, the Arabs have shared to a considerable degree in material benefits which Jewish immigration has brought to Palestine. The obligation of the Mandate in this respect has been observed. The economic position of the Arabs, regarded as a whole, has not so far been prejudiced by the establishment of the National Home. Ten years later the Government of Palestine has affirmed substantially the same conclusion.¹¹⁴

However, the pessimistic conclusion of the 1937 Peel Commission proved to be accurate. The Commission reported:

¹¹¹ 1936–37 [Cmd. 5479] Palestine Royal Commission Report (Royal Commission), pp. 125, 242; Henry Cattan, *The Palestine Question* (1988), p. 13.

¹¹² R. H. S. Crossman and Michael Foot, *A Palestine Munich?* (1946), p. 6.

¹¹³ Martin Gilbert, *Winston S. Churchill*. Vol. 5: *The Prophet of Truth* (1977), p. 1072; Peters, *From Time Immemorial*, pp. 221–233.

¹¹⁴ United Nations Special Committee on Palestine Report to the General Assembly, vol. 1, para. 179, UN Doc. A/364, 3 September 1947, para. 99, <https://unispal.un.org/DPA/DPR/unispal.nsf/0/07175DE9FA2DE563852568D3006E10F3>.

The application to Palestine of the Mandate System in general and of the specific Mandate in particular implies the belief that the obligations thus undertaken towards the Arabs and the Jews respectively would prove in course of time to be mutually compatible owing to the conciliatory effect on the Palestinian Arabs of the material prosperity which Jewish immigration would bring in Palestine as a whole. That belief has not been justified, and there seems to be no hope of its being justified in the future.¹¹⁵

4.10 British Response to Arab Objections to Zionism

In the wake of the 1921 Arab riots, the British authorities temporarily halted all Jewish immigration into Palestine.¹¹⁶ In June 1922, the House of Lords voted not to accept the Mandate,¹¹⁷ however, the House of Commons later voted to approve the Mandate.¹¹⁸ In 1922, the British issued a 'White Paper' on Palestine:

Unauthorized statements have been made to the effect that the purpose in view is to create a wholly Jewish Palestine. Phrases have been used such as that Palestine is to become 'as Jewish as England is English'. His Majesty's Government regard any such expectation as impracticable and have no such aim in view. Not the imposition of a Jewish nationality upon the inhabitants of Palestine as a whole, but the further development of the existing 'Jewish community'. The terms of the [Balfour] Declaration referred to do not contemplate that Palestine as a whole should be converted into a Jewish National Home, but that such a Home should be founded 'in Palestine'. Jewish 'immigration cannot be so great in volume as to exceed whatever may be the economic capacity of the country at the time to absorb new arrivals'.¹¹⁹

¹¹⁵ Plan of Partition – Summary of the UK Palestine Royal Commission (Peel Commission) Report – League of Nations/Non-UN Document, www.un.org/unispal/document/auto-insert-197740/.

¹¹⁶ Martin Gilbert, *Exile and Return: The Emergence of Jewish Statehood* (1978), pp. 135–136; Howard Sachar, *A History of Israel: From the Rise of Zionism to Our Time* (1979), p. 146.

¹¹⁷ PD, Lords, Fifth Series, vol. 50, c.994–1034, June 1922.

¹¹⁸ PD, Commons, Fifth Series, vol. 156, c.263–340, July 1922.

¹¹⁹ 'British White Paper of June 1922' in Walter Laqueur and Dan Schueftan, eds. *The Israel-Arab Reader: A Documentary History of the Middle East Conflict* (8th ed. 2016), p. 25.

4.11 The 1937 Peel Report

The 1936–1937 Peel Commission was perhaps the most comprehensive attempt by Britain to examine the relationship between the Arab and Jewish communities in Palestine.¹²⁰ The report, for the first time, recognised the Arab Palestinian population of Western Palestine as a separate people entitled to the right of self-determination and recommended the partition of Western Palestine into two separate States, one Jewish and one Arab. Two sovereign independent States would be established – the one an Arab State consisting of Trans-Jordan united with that part of Palestine which lies to the east and south of a frontier such as we suggest in Section 3; the other a Jewish State consisting of that part of Palestine which lies to the north and west of that frontier. The Commission recommended that delimiting the frontier between the Arab and Jewish States should be based on

the natural principle for the Partition of Palestine is to separate land and settled from the areas in which the Jews have acquired land and settled from those which are wholly or mainly occupied by Arabs. This offers a fair and practicable basis for Partition, provided that in accordance with the spirit of British obligations, (1) a reasonable allowance is made within the boundaries of the Jewish State for the growth of population and colonization, and (2) reasonable compensation is given to the Arab State for the loss of land and revenue.¹²¹

Jerusalem and all the holy places were to continue under a British Mandate. The Peel Report concluded, ‘partition offers a chance of ultimate peace. No other plan does’. Prior to adopting a plan of partition, the British administration had considered proposing that Palestine be divided into separate Jewish and Arab cantons. Golani writes about this British thinking and then describes the difference between the two plans: ‘Cantonization presupposed autonomous blocs without full sovereignty based on a regional demographic majority, whereas partition presupposes two separate territorial blocs, each sovereign in its territory and possessing a distinctive identity.’¹²² The Zionist Congress reluctantly

¹²⁰ 1936–37 [Cmd. 5479] Palestine Royal Commission Report (Royal Commission), p. 4.

¹²¹ Plan of Partition – Summary of the UK Palestine Royal Commission (Peel Commission) Report – League of Nations/Non-UN Document, 3. The Frontier, Chapter XX, Chapter XXII, www.un.org/unispal/document/auto-insert-197740.

¹²² Motti Golani, ‘The Meat and the Bones, Reassessing the Origins of the Partition of Palestine’ in Arie. M. Dubnov and Laura Robson, eds. *Partitions: A Transnational History of Twentieth-Century Territorial Separatism* (2019), p. 92.

agreed to enter into negotiations as regards partition,¹²³ however, the British government did not adopt the plan. As Chester writes, 'in late 1937, the British government began to move away from the Peel plan in large part because it was alienating increasingly crucial Arab allies'.¹²⁴ A pan-Arab congress convened in Syria rejected the proposal. In 1938, the British convened the Woodhead Commission to examine the possibility of implementing the Report of the Peel Commission but Benny Morris comments that in effect 'its mandate was to bury the Peel proposal and the idea of partition'.¹²⁵ Cynics termed it the Re-Peel Commission. The British government subsequently declared:

His Majesty's Government, after careful study of the Partition Commission's report, have reached the conclusion that this further examination has shown that the political, administrative and financial difficulties involved in the proposal to create independent Arab and Jewish States inside Palestine are so great that this solution of the problem is impracticable.¹²⁶

The 1937 British Royal Peel Commission reported that 'there was a time when Arab statesmen were willing to concede little Palestine to the Jews, provided that the rest of Arab Asia were free'. Despite these attempts, the British government concluded that

an irrepressible conflict has arisen between two national communities within the narrow bounds of one small country. There is no common ground between them. Their national aspirations are incompatible. The Arabs desire to revive the traditions of the Arab golden age. The Jews desire to show what they can achieve when restored to the land in which the Jewish nation was born.¹²⁷

It can be added that, in addition to the self-determination envisaged in Western Palestine, the Arabs of Eastern Palestine were granted full self-determination in Eastern Palestine (Trans-Jordan).

¹²³ Laqueur, *A History of Zionism*, p. 520.

¹²⁴ Lucy Chester, 'Close Parallels? Interrelated Discussions of Partition in South Asia and the Palestine Mandate (1936–1948)' in Arie. M. Dubnov and Laura Robson, eds. *Partitions: A Transnational History of Twentieth-Century Territorial Separatism* (2019), p. 135.

¹²⁵ Benny Morris, 'Revisiting the Palestinian Exodus of 1948' in Eugene L. Rogan and Avi Shlaim, eds. *The War for Palestine: Rewriting the History of 1948* (2nd ed. 2007), p. 44.

¹²⁶ Cmd. 5893, November 1938.

¹²⁷ Plan of Partition – Summary of the UK Palestine Royal Commission (Peel Commission) Report – League of Nations/Non-UN Document.

4.12 The 1939 British White Paper

By the late thirties of the twentieth century, the British Foreign Office became increasingly apprehensive that Zionist activity in Palestine was alienating the Arab world. The British were particularly worried about 'repercussions of events in Palestine upon Ibn Saud, ruler of Saudi Arabia'¹²⁸ and as a counter to the growing influence of Nazi Germany among the Arab Palestinians.¹²⁹ The British Minister for the Colonies, Michael Macdonald, admitted to the British Cabinet that the change in policy was designed 'to placate the Arabs'.¹³⁰ In February 1939, Britain convened a Round Table Conference of Arab and Jewish delegations (The St James Conference). The Conference did not reach an agreement and the British government announced their plan to end the Mandate unilaterally and to create, within ten years, an independent Palestinian State with a Jewish minority. During these first ten years, Britain would continue to administer Palestine. According to the White Paper, the British policy as regards Jewish immigration was as follows:

It is not part of their policy that Palestine should become a Jewish State. For each of the next five years a quota of 10,000 Jewish immigrants will be allowed. After the period of five years, no further Jewish immigration will be permitted unless the Arabs of Palestine are prepared to acquiesce in it. His Majesty's Government are determined to check illegal immigration, and further preventive measures are being adopted. His Majesty's Government are satisfied that, when the immigration over five years which is now contemplated has taken place, they will not be justified in facilitating, nor will they be under any obligation to facilitate, the further development of the Jewish National Home by immigration regardless of the wishes of the Arab population.¹³¹

Consequently, the British government in Palestine employed the Royal Navy and the RAF to prevent Jewish (illegal) immigration into Palestine beyond the allotted quota. The Nazi Anschluss into Austria took place in March 1938, and Kristallnacht in November 1938, destroying Jewish

¹²⁸ Michel J. Cohen, *Palestine: Retreat from the Mandate: The Making of British Policy 1936–45* (1978), p. 16, relying on Foreign Office, Minute of 18 June 1936, in FO 371/20021.

¹²⁹ Yaakov Lappin, 'Mandate 100/The Year 1939: Why Did Britain Abandon the Two-State Solution on the Eve of World War Two?', *Fathom*, June 2020, fathomjournal@bicom.org.uk.

¹³⁰ PRO.CAB 104/10 Meeting of Cabinet 10.4.38 quoted from *ibid.*, p. 5.

¹³¹ 'British White Paper of 1939' in Walter Laqueur and Dan Schueftan, eds. *The Israel-Arab Reader: A Documentary History of the Middle East Conflict* (8th ed. 2016), p. 44.

property, imprisoning many Jews and murdering others. Many, if not most, of the 'illegal immigrants' were Jews trying to flee Nazi Germany; this British policy aroused vehement anger among Jewish communities.

As regards land purchase by Jews, the 1939 White Paper stated, 'there is now in certain areas no room for further transfers of Arab land, the High Commissioner will be given general powers to prohibit and regulate transfers of land'.¹³² Consequently, the High Commissioner issued orders that Jews would be forbidden from purchasing land in the hills of Judea and Samaria (the area, to a large extent, referred to nowadays as 'the West Bank').¹³³ The British 1947 report to the UN on the Mandate summarised these regulations as follows:

In February 1940, the government promulgated land Transfers Regulations under which the country was divided into three zones. In the largest of these zones, all transfers of land to persons other than Palestinian Arabs were prohibited, except, where certain specific conditions obtain, with the permission of the High Commissioner. In the second zone, Palestinian Arabs were forbidden to transfer their land except to another Palestinian Arab or with the specific approval of the High commissioner. No restrictions were placed upon the transfer of land in a third and smaller zone, including a considerable part of the coastal plain.¹³⁴

The Jewish community in Palestine vehemently objected to the White Paper, demonstrations were held in Jerusalem and Tel Aviv. 'Illegal' immigration was stepped up and twelve new 'tower and stockade' settlements were established in what is now the territory of Israel.

4.13 The Legality of the 1939 British White Paper

Ben-Gurion stated that the 1939 British White Paper 'in effect abrogated the Balfour Declaration and the obligations assumed by Britain under the Mandate'.¹³⁵ Winston Churchill referred to the paper as 'a breach and

¹³² Ibid.

¹³³ Ibid.; Land Transfer Regulations, 1940, *Palestine Gazette*, Extraordinary No. 988, 28 February 1940, Supplement II 327.

¹³⁴ Ad Hoc Committee on The Palestinian Question Communication from the United Kingdom Delegation to the United Nations, UN Doc. A/AC.14/8, 2 October 1947, para. 113, <https://unispal.un.org/UNISPAL.NSF/0/16B8C7CC809B7E5B8525694B0071F3BD>.

¹³⁵ David Ben-Gurion, *Israel: A Personal History* (1972), p. 53.

repudiation of the Balfour Declaration'.¹³⁶ Two prominent British Labour Members of Parliament pithily described the issue as follows:

The Mandate, under which we administer Palestine, has never been accepted by the Arabs, who have demanded since 1917 that all Jewish immigration should cease, that the British should withdraw and that the country should be granted independence as an Arab State. We have never accepted this Arab claim and, from 1922 until 1939, every Government administered the country according to the terms of the Mandate which expressly states that it is the duty of Great Britain to facilitate Jewish immigration and close settlement of the land.¹³⁷

The two members of Parliament described the White Paper Land Regulations as 'nothing less than racial legislation' and that 'the White Paper was issued as a bribe to the Arabs in order to prevent them from falling into the arms of Germany'.¹³⁸ Philip Noel Baker, later British Minister of State, declared, 'in the present situation, the Secretary of State's proposition is a euphemism for giving way to lawless force. It is a polite way of saying that we will surrender to the Mufti and his gang, that, in the hope of getting peace, we must do another Munich on the Jews'. Herbert Morrison stated, 'I think it ought to be known by the House that this breach of faith, which we regret, this breach of British honour, with its policy with which we have no sympathy'.¹³⁹

The British government justified the 1939 White Paper on the grounds that the terms of the Mandate referring to encouragement of Jewish immigration and settlement were subject to the proviso that it 'should not prejudice the rights and position of other sections of the population'. In the view of Britain, increasing Jewish immigration prejudiced the rights of the Arab population.¹⁴⁰

The legality of the 1939 White Paper could not be challenged in the courts since, throughout the period of the British Mandate in Palestine, the British government, although it accepted that it was bound by the Mandate, refrained from incorporating the terms of the Mandate into the law applicable to Palestine. The source of the law applied in Palestine was the British *Foreign Jurisdiction Act of 1890*. The British courts ruled that the terms of the Mandate are enforceable in the Courts only insofar as

¹³⁶ 23 May 1939, Parliamentary Debates, House of Commons, vol. 347, Nr.1 08, col. 2183.

¹³⁷ Crossman and Foot, *A Palestine Munich?*, p. 5.

¹³⁸ *Ibid.*, pp. 10, 28.

¹³⁹ *Ibid.*, p. 9.

¹⁴⁰ Yale Law School, Avalon Project, The Palestine Mandate.

they were incorporated into the *Palestine Order in Council 1922*. The clauses referring to a Jewish National Home were not so incorporated. Accordingly, the provisions of the Mandate had only the force of treaty obligations and Courts were not authorised to enforce them.¹⁴¹ Thus, the Courts in Palestine refrained from adjudicating any claim that the Palestine government was not implementing the terms of the Mandate.

The issue of the legality of the 1939 White Paper was, however, brought before the League of Nations Permanent Mandates Commission and the report states the following:

The policy set out in the White Paper was not in accordance with the interpretation which, in agreement with the mandatory Power and the Council, the Commission had always placed upon the Palestine mandate. Four of the seven [members of the commission] did not feel able to state that the policy of the White Paper was in conformity with the Mandate, any contrary conclusion appearing to them to be ruled out by the very terms of the mandate and by the fundamental intentions of its authors. The other members, three in number, were unable to share this opinion; they consider that existing circumstances would justify the policy of the White Paper, provided the Council did not oppose it.¹⁴²

4.14 World War II

The 1947 British report to the UN on the termination of the Mandate summarised the period of the World War II:

Acts of terrorism committed by Jews ceased altogether with the outbreak of war, and the armed Arab bands melted away before the end of the year. The Jewish Agency called on the Jewish community to offer its full assistance to the mandatory Power, and similar appeals were made in the Arabic press. In the course of the war the Jews provided 27,000 recruits for the British services, and the Arabs 12,000. A Jewish Brigade Group was formed in 1944.¹⁴³

¹⁴¹ *Bernard Rosenblatt v. Registrar of Lands Haifa*, Palestine Annotated Law Reports, High Court Case 19/47, p. 499.

¹⁴² League of Nations Permanent Mandates Commission, minutes of the thirty-sixth session held at Geneva from 8–29 June 1939, p. 275. Because of the outbreak of the Second World War, the issue was not brought to the Council, https://biblio-archive.unog.ch/Dateien/CouncilMSD/C-170-M-100-1939-VI_EN.pdf.

¹⁴³ Ad Hoc Committee on the Palestinian Question Communication from the United Kingdom Delegation to the United Nations, UN Doc. A/AC.14/8, 2 October 1947, para. 112, <https://unispal.un.org/UNISPAL.NSF/0/16B8C7CC809B7E5B8525694B0071F3BD>.

4.15 British 1947 Renunciation of the Mandate

The British Foreign Secretary announced in the House of Commons, on 18 February 1947, that Britain was handing the issue over to the UN as

the discussions of the last month have quite clearly shown that there is no prospect of resolving this conflict by any settlement negotiated between the parties. But if the conflict has to be resolved by an arbitrary decision, that is not a decision which His Majesty's Government are empowered, as Mandatory, to take. His Majesty's government have of themselves no power, under the terms of the Mandate, to award the country either to the Arabs or to the Jews, or even to partition it between them. We shall explain that the Mandate has proved to be unworkable in practice, and that the obligations undertaken to the two communities in Palestine have been shown to be irreconcilable. We shall then ask the United Nations to consider our report, and to recommend a settlement of the problem. We do not intend ourselves to recommend any particular solution.¹⁴⁴

One comment on this British decision was that Bevin, the British Foreign Minister 'expected that the United Nations, impressed by their difficulties, would alter the terms of the mandate so as to free Britain from the burden of the Jewish-national-home policy'.¹⁴⁵

4.16 Is the 1922 League of Nations Mandate Still Relevant?

Great Britain announced, in December 1947, that it was terminating the Mandate and an official British statement noted that the 'decision to end the Mandate was welcomed by Arabs and Jews alike, as well as by the United Nations'.¹⁴⁶ It has been argued, however, that in accordance with Article 80 of the Charter, the 1922 Mandate is still relevant. Article 80 of the UN Charter reads:

Except as may be agreed upon in individual trusteeship agreements, made under Articles 77, 79, and 81, placing each territory under the trusteeship system, and until such agreements have been concluded, nothing in this Chapter shall be construed in or of itself to alter in any manner the rights whatsoever of any states or any peoples or the terms of existing international instruments to which Members of the United Nations may respectively be parties.

¹⁴⁴ Ibid., para. 154.

¹⁴⁵ Dov Joseph, *The Faithful City: The Siege of Jerusalem 1948* (1960), p. 11.

¹⁴⁶ Palestine, Termination of the Mandate 15th May, statement prepared for public information by the Colonial Office and Foreign Office, 1948 London: His Majesty's Stationery Office 59-9999 (1948).

In reference to South West Africa, the International Court commented on Article 80:

But as far as mandated territories are concerned, to which paragraph 2 of this article refers-this provision presupposes that the rights of States and peoples shall not lapse automatically on the dissolution of the League of Nations. It obviously was the intention to safeguard the rights of States and peoples under all circumstances and in all respects, until each territory should be placed under the Trusteeship System.¹⁴⁷

In a dissenting opinion in the ICJ, Judge van Wyk wrote: 'Article 80(1) of the Charter of the United Nations applied as much to Palestine as it applied to South West Africa.'¹⁴⁸ Article 80 refers to 'peoples' thus, presumably, including the rights of the Jewish people under the Palestine Mandate. Article 80 was drafted with the future of the Palestine Mandate in mind¹⁴⁹ and, it has been argued, the reference to the rights of 'peoples' was inserted deliberately in order to encompass the reference to the rights of the Jewish people set out in the 1922 League of Nations Mandate for Palestine. No subsequent trusteeship agreement has been concluded, thus it can be argued that rights set out in the Mandates continue to be valid.¹⁵⁰ The delegates of the Arab States to the San Francisco Conference¹⁵¹ were aware that this was the intention and attempted, unsuccessfully, to change the wording. They suggested referring to 'the rights of the people of that territory',¹⁵² or 'the rights of the people of any territory'.¹⁵³

The seminal commentary on the Charter states that 'Article eighty of the UN Charter was cited with some frequency during the debates in the General Assembly over the future of Palestine, primarily by the Arab

¹⁴⁷ *International Status of South-West Africa Advisory Opinion of July 11th, 1950*, ICJ Reports 1950, p. 133.

¹⁴⁸ ICJ, *South West Africa Case (Ethiopia v. South Africa, Liberia v. South Africa) (Preliminary Objections)*, Judgment of 21 December 1962, p. 636.

¹⁴⁹ Ruth B. Russel, *A History of the United Nations Charter: The Role of the United States, 1940-1945* (1958), pp. 827-830.

¹⁵⁰ See Advisory Opinion, *Legal Consequences of the Continued Presence of South Africa in Namibia (South West Africa) Notwithstanding Security Council Resolution 276* (1970), ICJ Reports 1971, p. 16.

¹⁵¹ The UN Charter was drafted at a conference in San Francisco.

¹⁵² The Iraqi delegate, *Documents of the United Nations Conference on International Organization*, vol. X, pp. 515-516.

¹⁵³ The Egyptian delegate, *ibid.*, p. 477.

states in challenging the legality of the 1947 UN Partition Resolution'.¹⁵⁴ As the American diplomat and jurist Eugene Rostow writes:

In Palestine, the British Mandate ceased to be operative as to the territories of Israel and Jordan when those states were created and recognized by the international community. But its rules apply still to the West Bank and the Gaza Strip, which have not yet been allocated either to Israel or to Jordan or become an independent state.¹⁵⁵

Like the South West African Mandate, the Palestine Mandate survived the termination of the Mandate administration as a trust under Article 80. In Palestine, Israel and Jordan already exist as states, and only the Gaza Strip and the West Bank remain as unallocated parts of the Mandate. The reasoning of the Namibia decisions requires that the future of these two territories be arranged by peaceful international agreement in ways which fulfill the policies of the Mandate.¹⁵⁶

The terms of the Mandate made no distinction between the area that is now Israel and the area known as the West Bank as regards the Jewish National Home. Jewish settlement on state land was to be facilitated in all the territory of the Mandate. It has been claimed that, according to Article 80 of the UN Charter, these terms of the Mandate are still valid as regards the West Bank and Gaza.

It can be argued in response, however, that by being a party to the 1978 Camp David Accords¹⁵⁷ and to the 1993 'Oslo' agreements,¹⁵⁸ Israel has accepted that the 'West Bank' and Gaza are subject to a special and separate legal regime and that the terms of the 1922 Mandate are no longer relevant.

4.17 Concluding Remarks

The 1922 Mandate is still relevant in that the Mandate granted international recognition to 'the historical connection of the Jewish

¹⁵⁴ Leland M. Goodrich, Edward Hambro and Anne Patricia Simons, *Charter of the United Nations Commentary and Documents* (3rd ed. 1969), p. 495.

¹⁵⁵ Eugene W. Rostow, 'Historical Approach to the Issue of Legality of Jewish Settlement Activity', *The New Republic*, 23 April 1990.

¹⁵⁶ Eugene V. Rostow, 'Palestinian Self-Determination: Possible Futures for the Unallocated Territories of the Palestine Mandate', *Yale Studies in World Public Order* 5, no. 2 (1979), pp. 147, 158, 159.

¹⁵⁷ Camp David Accords, 17 September 1978, 17 *ILM* No. 6 (November 1978), pp. 1463–1474.

¹⁵⁸ Israel-Palestine Liberation Organization Agreement: 1993 Avalon Project, http://avalon.law.yale.edu/20th_century/isrplo.asp.

people with Palestine and to the grounds for reconstituting their national home in that country' while not prejudicing 'the civil and religious rights of existing non-Jewish communities in Palestine'.¹⁵⁹ The Mandatory borders of Palestine with Egypt and Trans-Jordan were adopted as the borders of Israel with Egypt and Jordan in the 1969 and 1994 Peace Treaties. It can be argued that the Mandate is still relevant as to the rights of Jews to settle in the West Bank, although an additional factor on this issue is the right of self-determination of the Palestinian Arabs in the West Bank and Gaza Strip, a right recognised by the international community.

¹⁵⁹ Yale Law Schoool, Avalon Project, The Palestine Mandate.

The 1947 Partition Plan

In February 1947, Britain announced its intent to terminate the Mandate for Palestine, referring the matter of the future of Palestine to the United Nations. The UN General Assembly formed a UN Special Committee on Palestine (UNSCOP).¹ The majority recommendation of the Report of UNSCOP was to divide Western Palestine into a federation of two independent States, one Jewish and one Arab and, for an initial period of ten years, to establish a Special International Regime for the city of Jerusalem under the control of the UN. The Plan called for Economic Union between the proposed states and unhindered access between the two States.² Subsequently, on the 29 November 1947, by a two-thirds majority, the UN General Assembly adopted the majority recommendation of the Report.

The UNSCOP report recommended boundaries of the two proposed States which were based on an attempt, as far as possible, to have Arab villages and towns assigned to the Arab State and Jewish towns and villages assigned to the Jewish State. Approximately 60 per cent of the area proposed for the Jewish State was the desert land of the Negev.³ Because of the geographical distribution of the Jewish and Arab settlements, the Committee was obliged to leave large numbers of Arab villages in the area of the proposed Jewish State and a smaller number of Jewish villages in the proposed Arab State.

¹ UNGA Resolution 106 (S-1), 15 May 1947, GAOR, First Special Session, Resolutions (A/310), p. 6.

² UNGA Resolution 181 (II), 29 November 1947. For a very comprehensive bibliography, see Victor Katan, 'The UN Partition Plan for Palestine and International Law', www.oxfordbibliographies.com/view/document/obo-9780199796953/obo-9780199796953-0221.xml.

³ Aharon Cohen, *Israel and the Arab World* (1976), p. 238.

5.1 The Legal Status of the 1947 Partition Plan

UN General Assembly Resolutions are not binding on States.⁴ Britain had asked the UN General Assembly 'to recommend a settlement of the problem'.⁵ The word 'recommend' and not 'decide' was presumably used deliberately. The UN General Assembly was, of course, also aware that its recommendations were not binding, and it proposed two ways that its recommendation of the Partition Plan could become binding. The UNGA Resolution '*calls upon* the inhabitants of Palestine to take such steps as may be necessary on their part to put this plan into effect'. If in fact the two communities in Palestine would have agreed to put the Partition Plan into effect, the plan would have become binding as a contractual agreement between the parties.

The other step taken by the General Assembly was to request the UN Security Council to take action under Chapter VII of the Charter. If the Security Council had taken such action, then all member States of the UN would have been obliged to comply with such a Security Council decision.⁶ The General Assembly cannot instruct the Security Council, it can only request it to take action,⁷ and this is reflected in the language of the Resolution.

Requests that

- (a) The Security Council take the necessary measures as provided for in the plan for its implementation;
- (b) The Security Council consider, if circumstances during the transitional period require such consideration, whether the situation in Palestine constitutes a threat to the peace. If it decides that such a threat exists, and in order to maintain international peace and security, the Security Council should supplement the authorization of the General Assembly by taking measures, under Articles 39 and 41 of the Charter, to empower the United Nations Commission, as provided in this resolution, to exercise in Palestine the functions which are assigned to it by this resolution.
- (c) The Security Council determine as a threat to the peace, breach of the peace or act of aggression, in accordance with Article 39 of the

⁴ With the exception of Resolutions dealing with procedure and budget. See Philippe Sands and Pierre Klein, *Bowett's Law of International Institutions* (5th ed. 2001), para. 2-011.

⁵ UN Doc. A/286, GAOR First Special Session, vol. I, p. 183.

⁶ Article 25, the UN Charter.

⁷ Article 10 of the UN Charter.

Charter, any attempt to alter by force the settlement envisaged by this resolution.

The Arab population of Palestine and the Arab States rejected the Partition Plan, as did the United Kingdom to whom the plan was addressed.⁸ The Partition Plan did not obtain contractual status. The UN Security Council did not take any action to enforce the Partition Resolution⁹ and the Partition Resolution consequently remained a recommendation and was not mandatory.

5.2 The Reaction of the Jewish Community in Palestine to the Partition Plan

The Jewish community in Palestine accepted the Partition Plan, albeit reluctantly. ‘The Jewish Agency accepted the resolution despite its dissatisfaction over such matters as Jewish emigration from Europe and the territorial limits set on the proposed Jewish State.’¹⁰ The impossibly convoluted boundaries and the exclusion of Jerusalem from the area of the Jewish State did not dampen the enthusiasm of the majority of the Jewish population at the first international recognition of the right to create an independent Jewish State in Palestine.

5.3 The Arab Reaction to the Partition Plan

The plan was not accepted by the Palestinian Arabs and Arab States on the ground that it violated the provisions of the United Nations Charter, which granted people the right to decide their own destiny. They said that the Assembly had endorsed the plan under circumstances unworthy of the United Nations and that the Arabs of Palestine would oppose any scheme that provided for the dissection, segregation or partition of their country, or which gave special and preferential rights and status to a minority.¹¹

⁸ UN Palestine Commission, First Monthly Progress Report to the Security Council, UN Doc. A/Ac.21/7 (29 January 1948), para. 8. iv.

⁹ UN Security Council Official Records, II, No. 106, pp. 2776–2789.

¹⁰ GAOR, 2nd session 1947, Ad Hoc Committee on the Palestine Question, pp. 12–19; United Nations, *The Question of Palestine and the United Nations* (2008), p. 9, <https://unispal.un.org/pdfs/DPI2499.pdf>.

¹¹ United Nations, *The Question of Palestine and the United Nations*, p. 9.

The UN Mediator reported to the UN Security Council that

the chain of unfortunate events which began in Palestine almost immediately after the adoption of the resolution of 29 November demonstrated conclusively not only that the necessary Arab willingness to co-operate was lacking, but that a dangerous antagonism existed which was provoking virtual civil war even before the termination of the Mandate on 15 May 1948.¹²

On 6 February 1948, the Arab Higher Committee (Representing the Arabs of Palestine) communicated to the UN Secretary General its position that the Partition Plan was 'contrary to the letter and spirit of the United Nations Charter'. The UN 'has no jurisdiction to order or recommend the partition of Palestine. There is nothing in the Charter to warrant such authority, consequently the recommendation of partition is ultra vires and therefore null and void'. The Arab Higher Committee declared that they would 'consider that any attempt by the Jews or any power or group of powers to establish a Jewish State in Arab territory is an act of aggression which will be resisted in self-defense by force'.¹³

The Palestine Conciliation Committee reported to the UN Secretary General the position of the Arab Higher Committee:

- (a) The Arabs of Palestine will never recognize the validity of the extorted partition recommendations or the authority of the United Nations to make them.
- (b) The Arabs of Palestine consider that any attempt by the Jews or any power or group of powers to establish a Jewish State in Arab territory is an act of aggression, which will be resisted in self-defense by force.
- (c) It is very unwise and fruitless to ask any commission to proceed to Palestine because not a single Arab will cooperate with the said commission.
- (d) The United Nations or its commission should not be misled to believe that its efforts in the partition plan will meet with any success. It will be far better for the eclipsed prestige of this organization not to start on this adventure.

¹² Progress Report of the United Nations Mediator, Transmission to the Members of the United Nations in pursuance of paragraph 2, part II, of Resolution 186 (S-2) of the General Assembly of 14 May 1948. GAOR: Third Session, Supplement No. 11 (A/648) Paris, 1948, para. 3.

¹³ First Special Report to the Security Council: The Problem of Security in Palestine, United Nations Palestine Commission, 16 February 1948, UN Doc. A/AC.21/9, S/676, 16 February 1948.

- (e) The United Nations prestige will be better served by abandoning, not enforcing such an injustice.
- (f) The determination of every Arab in Palestine is to oppose in every way the partition of that country.
- (g) The Arabs of Palestine made a solemn declaration before the United Nations, before God and history that they will never submit or yield to any power going to Palestine to enforce partition. The only way to establish partition is first to wipe them out – man women and child.¹⁴

Rabinovich describes the Arab position: 'For the Arabs this was an illegitimate act, giving birth to an illegitimate state, violating Arab rights, and creating an alien entity in a particularly significant part of the Arab homeland.'¹⁵

On 16 February 1948, the UN Palestine Commission reported to the UN Security Council that 'powerful Arab interests, both inside and outside Palestine, are defying the resolution of the General Assembly and are engaged in a deliberate effort to alter by force the settlement envisaged therein'.¹⁶ In protest against the partition of their country, the Palestinian Arab Higher Committee called for a general strike. The UN Mediator, Count Folke Bernadotte 'sadly' reported to the UN in September 1948 that the dispute with the Arabs was not about borders but 'the Arabs, including not only Palestinian Arabs, but those of the seven Arab States, find it extremely difficult to accept even the fact of a Jewish State in Palestine'.¹⁷

5.4 Reliance on the 1947 Partition Plan

Although the 1947 Partition Plan was not legally binding, nevertheless, it was often relied upon by the Jewish community in Palestine. Shabtai Rosenne, the first legal advisor to Israel's Foreign Ministry explained:

¹⁴ United Nations Palestine Commission First Special Report to the Security Council: The Problem of Security in Palestine.

¹⁵ Itamar Rabinovich, *The Brink of Peace: The Israeli-Syrian Negotiations* (1998), p. 16.

¹⁶ United Nations Palestine Commission, First Special Report to the Security Council: The Problem of Security in Palestine Para. I (3) (C), UN Doc. A/AC.21/9 S/676, 16 February 1948

¹⁷ Progress Report of the United Nations Mediator on Palestine Submitted to the Secretary-General for Transmission to the Members of the United Nations, 16 September 1948, in pursuance of paragraph 2, part II, of Resolution 186 (S-2) of the General Assembly of 14 May 1948 GAOR: Third Session Supplement No. 11 (A/648), para. 8.

I would say until after what we call the second truce, which was in July of 1948, my basic instruction was to remain within the framework of the partition resolution. This is probably not widely known but, all the initial planning of the preparatory commission which I have mentioned, both on its legal side and on the economic side and other sides was within the framework of the rather detailed partition resolution of 1947.¹⁸

A letter, of 5 July 1948, from the Israel Provisional Government to the UN Mediator states that the Jewish people had accepted the 1947 Partition Plan 'as a compromise entailing heavy sacrifices on its part, and the territory assigned to the Jewish state as an irreducible Minimum' and that the Arab aggression required improvement of the territorial provisions.¹⁹ Presumably, as a result of this letter, the UN Mediator reported to the UN Security Council:

The Provisional Government of Israel, according to recent pronouncements, has apparently modified its attitude to the [Partition] Resolution of 29 November. Although the general position of the Provisional Government of Israel rests broadly on the foundation of the Assembly resolution, it is now being urged that boundaries should be modified to take more fully into account both the present military situation and the necessity for more readily defensible frontiers.

The UN Mediator added his own comment that

adherence to the principle of geographical homogeneity and integration, which should be the major objective of the boundary arrangements, should apply equally to Arab and Jewish territories, whose frontiers should not therefore, be rigidly controlled by the territorial arrangements envisaged in the resolution of 29 November.²⁰

There is reference to the Partition Plan in Israel's Declaration of Independence, and the initial military plans of the Haganah were based on the need to protect the areas allocated to the Jewish State in the Partition Plan. Israel's application for membership in the UN states that it is 'in pursuance of the General Assembly resolution of

¹⁸ United Nations Oral History Project, Interview with Shabtai Rosenne, 12 June 1990, Charlottesville, Virginia, Interviewer Jean Krasno, UN Library (02) R.673, p. 21.

¹⁹ Quoted from Dov Joseph, *The Faithful City: The Siege of Jerusalem 1948* (1960), p. 295.

²⁰ Progress Report of the United Nations Mediator on Palestine Submitted to the Secretary-General for Transmission to the Members of the United Nations In pursuance of paragraph 2, part II, of resolution 186 (S-2) of the General Assembly of 14 May 1948, General Assembly Official Records: Third Session, Supplement No. 11 (A/648).

November 29, 1947'.²¹ On the 14 May 1948, the Agent of the Provisional Government of Israel in the United States sent a letter to the US President Truman requesting recognition of the new State. In the letter, he wrote that Israel was proclaimed 'within frontiers approved by the General Assembly of the United Nations in its Resolution of November 29, 1947'.²² The letter was sent without consultation with the Provisional Government because of pressure of time and the phrase was never repeated. Cattán is of the opinion that Israel 'gave to the General Assembly formal assurances concerning the implementation of resolutions of 29 November 1947 and 11 December 1948'.²³ The record of the discussions does not, however, record such an assurance.²⁴ When the British-officered Trans-Jordanian Arab Legion entered Palestine in the 1948 War, they refrained from seizing areas allocated to the Jewish State in the Partition Plan. During the discussions in the UN General Assembly in November 1948, the Israeli Foreign Minister declared that Israel supported 'the establishment of a separate independent Arab State corresponding, as far as practicable, to the provisions of the 29 November Resolution' and that Israel 'would be ready to negotiate it with it

²¹ Letter Dated 29 November 1948 from Israel's Foreign Minister to the Secretary-General, concerning Israel's Application for Admission to Membership of the United Nations and Declaration Accepting Obligations under the Charter, UN Doc. S/1093 29 November 1948.

²² Letter of Eliahu Epstein to President Truman, 14 May 1948, *USW Department of State Bulletin*, vol. XVIII, no. 464, 23 May 1948, p. 673.

²³ Henry Cattán, *Palestine and International Law: The Legal Aspects of the Arab-Israeli Conflict* (2nd ed. 1976), p. 103.

²⁴ Statement by representative of Israel in Application of Israel for admission to membership in the United Nations (A/818), 47th meeting of the Ad Hoc Committee, UN Doc. A/AC/24/SR.47, 6 May 1949, p. 278; Statement by representative of Israel in Application of Israel for admission to membership in the United Nations (A/818), 47th meeting of the Ad Hoc Committee, UN Doc. A/AC/24/SR.47, 6 May 1949, p. 278; Statement by representative of Israel in Application of Israel for admission to membership in the United Nations (A/818), 47th meeting of the Ad Hoc Committee, UN Doc. A/AC/24/SR.47, 6 May 1949, p. 286; Statement by representative of Israel in Application of Israel for admission to membership in the United Nations (A/818), 47th meeting of the Ad Hoc Committee, UN Doc. A/AC/24/SR.47, 6 May 1949, pp. 286–287; Statement by representative of Israel in Application of Israel for admission to membership in the United Nations (A/818), 48th meeting of the Ad Hoc Committee, UN Doc. A/AC/24/SR.48, 7 May 1949, p. 301. See, e.g., statement by representative of Israel in Application of Israel for admission to membership in the United Nations (A/818), 47th meeting of the Ad Hoc Committee, UN Doc. A/AC/24/SR.47, 6 May 1949, pp. 286–287.

[The Arab State] on mutual adjustment of boundaries, if such a State declared itself ready to enter into close alliance with Israel'.²⁵

No Arab State at that time expressed support in the UN for an independent Arab State in Palestine adjacent to Israel. In 1949, during the Lausanne Conference chaired by the Palestine Conciliation Commission, both parties agreed to a protocol to which was attached a map of the 1947 Partition Plan. 'The Arabs at once claimed that by signing this Protocol Israel had committed itself to acceptance of the partition frontiers. The Israel position was that neither Israel nor the Arabs ever accepted the Lausanne Protocol as anything but a basis for discussion with the Commission.'²⁶ Israel stated its position at the time that the borders of Israel should be the international borders of Mandatory Palestine and with Jordanian held West Bank the border should be the 1949 Armistice Line.²⁷ The most recent, rather ambiguous, reliance on the 1947 Partition Plan was in the 1988 PLO Declaration of Independence, which declared:

Despite the historical injustice done to the Palestinian Arab people in its displacement and in being deprived of the right to self-determination following the adoption of General Assembly resolution 181 (II) of 1947, which partitioned Palestine into an Arab and a Jewish State, that resolution nevertheless continues to attach conditions to international legitimacy that guarantee the Palestinian Arab people the right to sovereignty and national independence.²⁸

As recently as 2009, an international law book on the Arab-Israeli conflict argues that Israel 'cannot accept rights or title to part of Mandate Palestine while denying the obligation partition imposed on itself, namely the creation of an Arab State in the remainder of the Mandate territory'.²⁹ A response would be that the Palestinians and all the Arab States rejected the 1947 Partition Plan, used force to try and prevent its implementation and that Israel was created as a State by virtue

²⁵ UN GAOR, UN Doc. A/C.1/SR.2000, 15 November 1948, p. 645.

²⁶ Walter Eytan, *The First Ten Years* (1958), p. 61.

²⁷ The Palestine Conciliation Third Progress Report of the UN Conciliation Commission for Palestine, UN Doc. A/927, 21 June 1949, para. 25, Annex.

²⁸ Letter dated 16 November 1988 from the Deputy Permanent Observer of the Palestine Liberation Organisation to the United Nations addressed to the Secretary-General, UN Doc. A/43/827, S/20278, 18 November 1988.

²⁹ Ian Scobbie with Sarah Hibbin, *The Israel-Palestine Conflict in International Law: Territorial Issues* (2009), p. 112.

of the right of self-determination and not by virtue of a UN General Assembly recommendation.

5.5 Concluding Remarks

Palestine was sovereign Ottoman Turkish territory prior to the World War I. After Britain occupied Palestine during the war, Turkey acquiesced to continuing British rule over the territory and later formally agreed to waive its rights to the territory. Under international law, as it was at the time, Britain could have chosen to annex Palestine as a colony. Britain chose instead to reach an agreement with the other victorious Allies whereby Britain would administer Palestine in accordance with an agreement to be reached with the newly formed League of Nations. There is apparently no clear answer as to who was the sovereign of Palestine during the period of the Mandate. The unratified Sèvres agreement with Turkey, the San Remo agreement between the Allies and the British agreement with the League of Nations (The Mandate) all stipulated that Britain was to implement the Balfour Declaration, which called for setting up a Jewish National Home in Palestine while safeguarding the rights of the non-Jewish population. The argument has been made that the terms of the Mandate are still relevant as regards the West Bank. In the latter years of the Mandate, 1939–1947, Britain reached the conclusion that it was impossible for it to implement the terms of the Mandate because of the harm it was seen to be doing to the Arab population in Palestine. In 1947, the UN General Assembly recommended partitioning Western Palestine into two States, one Jewish and one Arab, with economic union. The recommendation was not implemented due to Arab rejection of the plan.

Israel's Declaration of Independence

6.1 Introduction

On the day the British Mandate in Palestine ended (14 May 1948), the Jewish People's Council gathered to declare the establishment of the State of Israel (hereinafter: 'the Declaration'). The Declaration was the first official document of the State of Israel.

6.2 The Text of the Declaration

The sections of the text of the Declaration that are relevant to international law are as follows:

ERETZ-ISRAEL (the Land of Israel) was the birthplace of the Jewish people. Here their spiritual, religious and political identity was shaped. Here they first attained to statehood, created cultural values of national and universal significance and gave to the world the eternal Book of Books.

After being forcibly exiled from their land, the people kept faith with it throughout their Dispersion and never ceased to pray and hope for their return to it and for the restoration in it of their political freedom.

Impelled by this historic and traditional attachment, Jews strove in every successive generation to re-establish themselves in their ancient homeland. In recent decades they returned in their masses. Pioneers, ma'pilim (immigrants coming to Eretz-Israel in defiance of restrictive legislation) and defenders, they made deserts bloom, revived the Hebrew language, built villages and towns, and created a thriving community controlling its own economy and culture, loving peace but knowing how to defend itself, bringing the blessings of progress to all the country's inhabitants, and aspiring towards independent nationhood.

In the year 5657 (1897), at the summons of the spiritual father of the Jewish State, Theodore Herzl, the First Zionist Congress convened and proclaimed the right of the Jewish people to national rebirth in its own country.

This right was recognized in the Balfour Declaration of the 2nd November, 1917, and re-affirmed in the Mandate of the League of Nations which, in particular, gave international sanction to the historic connection between the Jewish people and Eretz-Israel and to the right of the Jewish people to rebuild its National Home.

The catastrophe which recently befell the Jewish people – the massacre of millions of Jews in Europe – was another clear demonstration of the urgency of solving the problem of its homelessness by re-establishing in Eretz-Israel the Jewish State, which would open the gates of the homeland wide to every Jew and confer upon the Jewish people the status of a fully privileged member of the community of nations.

Survivors of the Nazi holocaust in Europe, as well as Jews from other parts of the world, continued to migrate to Eretz-Israel, undaunted by difficulties, restrictions and dangers, and never ceased to assert their right to a life of dignity, freedom and honest toil in their national homeland.

In the World War II, the Jewish community of this country contributed its full share to the struggle of the freedom- and peace-loving nations against the forces of Nazi wickedness and, by the blood of its soldiers and its war effort, gained the right to be reckoned among the peoples who founded the United Nations.

On the 29th November, 1947, the United Nations General Assembly passed a resolution calling for the establishment of a Jewish State in Eretz-Israel; the General Assembly required the inhabitants of Eretz-Israel to take such steps as were necessary on their part for the implementation of that resolution. This recognition by the United Nations of the right of the Jewish people to establish their State is irrevocable.

This right is the natural right of the Jewish people to be masters of their own fate, like all other nations, in their own sovereign State.

ACCORDINGLY WE, MEMBERS OF THE PEOPLE'S COUNCIL, REPRESENTATIVES OF THE JEWISH COMMUNITY OF ERETZ-ISRAEL AND OF THE ZIONIST MOVEMENT, ARE HERE ASSEMBLED ON THE DAY OF THE TERMINATION OF THE BRITISH MANDATE OVER ERETZ-ISRAEL AND, BY VIRTUE OF OUR NATURAL AND HISTORIC RIGHT AND ON THE STRENGTH OF THE RESOLUTION OF THE UNITED NATIONS GENERAL ASSEMBLY, HEREBY DECLARE THE ESTABLISHMENT OF A JEWISH STATE IN ERETZ-ISRAEL, TO BE KNOWN AS THE STATE OF ISRAEL.

THE STATE OF ISRAEL will be faithful to the principles of the Charter of the United Nations.

THE STATE OF ISRAEL is prepared to cooperate with the agencies and representatives of the United Nations in implementing the resolution of the General Assembly of the 29th November, 1947, and will take steps to bring about the economic union of the whole of Eretz-Israel.

WE APPEAL to the United Nations to assist the Jewish people in the building-up of its State and to receive the State of Israel into the comity of nations.

WE APPEAL – in the very midst of the onslaught launched against us now for months – to the Arab inhabitants of the State of Israel to preserve peace and participate in the up building of the State on the basis of full and equal citizenship and due representation in all its provisional and permanent institutions.

WE EXTEND our hand to all neighbouring states and their peoples in an offer of peace and good neighbourliness, and appeal to them to establish bonds of cooperation and mutual help with the sovereign Jewish people settled in its own land. The State of Israel is prepared to do its share in a common effort for the advancement of the entire Middle East.

6.3 Drafting Background to the Declaration of Independence

A team of legal advisors was appointed to draft the Declaration. The Declaration follows the structure of the US Declaration of Independence. Shabtai Rosenne, one of the drafters, comments that it was 'a consummation of the mandate of the League of Nations rather than of the UN, and the United Nations was still working with League of Nations concepts rather than the quite new concept of self-determination and human rights which has emerged in the UN since'.¹ A draft was also received from Hersch Lauterpacht, perhaps the leading international lawyer of his generation. Ben-Gurion's influence of the phrasing of the Declaration caused it to be less 'legalistic' than that suggested by the legal team of advisors. It seems probable that the founders of the State and the designers of the document did not exactly know if or how the Declaration of Independence would become part of the state's legal foundation, and it is also doubtful whether they even considered the matter. However, they were very concerned over the young state's international obligations, based on the United Nations resolution of 29 November 1947. They were also careful to include the formula, 'our

¹ YUN Interview with Shabtai Rosenne, 12 June 1990, Charlottesville, Virginia, Interviewer Jean Krasno, UN Library (02) R.673, pp. 19, 31.

natural and historical right', as the major justification for the Jewish state.² Throughout the formulation of the Declaration, Ben-Gurion was of the opinion that due respect was to be given to international law, but political considerations were seen as being within the jurisdiction of democratically elected officials.³ The Declaration consists of seven sections that refers to six main issues:

- the natural right of the Jewish people to exercise self-determination in its sovereign State
- the establishment of 'the State of Israel'
- provisional institutions of state governance
- reference to elections, permanent institutions and formulation of a constitution
- the principles of the political rule of the newly formed State
- a call for peace and cooperation with the Arabs of Israel, and with the neighbouring countries

6.4 A Jewish State?

In the text of the Declaration, there is a reference to 'the establishment of a Jewish State'. The reference to a 'Jewish State' uses the language of the 1947 UN Partition Resolution.⁴ Among the legal consequences of Israel being declared a Jewish State and the phrase in the Declaration that Israel 'will be open for Jewish immigration and for the Ingathering of the Exiles' was the enactment of the Law of Return⁵ which grants the right of all Jews to immigrate to Israel and thus to automatically become citizens. Persons other than Jews can apply for citizenship under nationality laws similar to those of most democratic States. This Law has aroused controversy as it has been claimed that it 'constitutes a discriminatory practice resulting in the refusal of the benefits of such nationality to Arabs, whether they be Christians or Moslems'.⁶ In response, it can be argued that the *raison d'être* of creating a Jewish state was to have a

² Elyakim Rubinstein, 'The Declaration of Independence as a Basic Document of the State of Israel', *Israel Studies* 3, no. 1 (1998), pp. 195, 195–196.

³ *Ibid.*, pp. 195, 197.

⁴ E. Gutmann, 'Establishment of Israel: Analysis of Israel's Declaration of Establishment', www.jewishvirtuallibrary.org/analysis-of-israel-s-declaration-of-establishment.

⁵ The Law of Return 5710 (1950), www.knesset.gov.il/laws/special/eng/return.htm.

⁶ 'The Palestine Question: Seminar of Arab Jurists on Palestine, Algiers, 22–27 July 1967' in John Norton Moore, ed. *The Arab-Israeli Conflict. Volume I: Readings* (1974), p. 293, quoting Lehman, *Journal de Droit International* (1963), p. 694.

country where Jews could enter as of right. This was a reaction to the situation in World War II, where no country was willing to accept Jews fleeing Nazi Germany and, in some cases, the Jewish refugees were forced to return to Germany. In 1985, a revision was made to the *Basic Law on the Knesset* whereby no party would be allowed to run for elections if it rejected Israel's definition as a democratic State and the State of the Jewish people.⁷ Immigration laws of other States, such as Germany, Ireland and Italy also give preference to people of their national origin.

6.5 The Arabs of Israel

The Declaration includes appeals for the cooperation of Arabs in Israel to 'participate in the up building of the State on the basis of full and equal citizenship and due representation in all its provisional and permanent institutions'. The term 'Palestinian', as applying to the Arab inhabitants, had not yet become prevalent at that time. The freedom of language, assured in the Declaration, was understood to refer to the right of Israeli Arabs not only to speak and provide education in their language but also to use Arabic in all official contacts. Arabic was recognised as an official language, but the recent *Basic Law: Israel – the Nation State of the Jewish People* declares: 'The Arabic language has a special status in the State; arrangements regarding the use of Arabic in state institutions or vis-à-vis them will be set by law. Nothing in this article shall affect the status given to the Arabic language before this law came into force.'⁸ This may be seen as a downgrading of the status of Arabic in Israel.

6.6 Israel's Neighbours

The Declaration also refers to peace and good neighbourly relations with all neighbouring countries and peoples. The Declaration also refers to Israel's willingness to make its contribution toward development of the Middle East, despite the fact that prior to the Declaration, Israel had endured half a year of a very violent struggle against Arab armies.

⁷ *Basic Law*; The Knesset 1958: 'A person shall not be a candidate for election to the Knesset, if the objects or actions of the list or the actions of the person, expressly or by implication, include one of the following: negation of the existence of the State of Israel as a Jewish and democratic state', www.knesset.gov.il/laws/special/eng/basic2_eng.htm.

⁸ *Basic Law: Israel – The Nation State of the Jewish People* (Unofficial translation by Dr Susan Hattis Rolef). <https://knesset.gov.il/laws/special/eng/BasicLawNationState.pdf>.

6.7 The Declaration and International Law

In explaining an Israeli Court's power to apply international law, Justice Cheshin relied on the independence of the State of Israel: "The Declaration of Independence gave the new State access to the international laws and customs which all States enjoy by virtue of their sovereignty, and enriched its legal system by the accepted principles of the law of nations."⁹

6.8 Self-Determination

The principle of self-determination of peoples is enshrined in the United Nations Charter and is today undoubtedly a binding principle of international law.¹⁰ Israel's Declaration of independence bases itself on this right of the Jewish people. There is, however, no explicit reference in the Declaration to the term 'self-determination'. The phrases 'the right of the Jewish people to rebuild its National Home' and 'the right of the Jewish people to national rebirth in its own country' are, however, in this context, synonymous with the right of self-determination. In the draft prepared by Hersch Lauterpacht, he proposed writing explicitly, 'the inherent right of the Jewish people to national self-determination through statehood is independent of any express confirmation by an outside authority'.¹¹ Lauterpacht added that if the UN cannot provide this, then 'so far as the Jewish people is concerned, the right and duty to effect the assumption of sovereignty must now be brought about by the Jewish people itself'.¹²

There is no reference in the Declaration to the right of the Arabs in Palestine to self-determination. However, the Declaration expresses the willingness of Israel to 'cooperate with the agencies and representatives of the United Nations in implementing the resolution of the General Assembly of the 29th November, 1947, and will take steps to bring about the economic union of the whole of Eretz-Israel'. It can be argued that Israel thus implicitly recognised that the Arabs of Palestine also have the

⁹ Israel High Court Case *Stampfer v. Attorney General*, English translation, 23 *International Law Reports* 1956, p. 289.

¹⁰ See Malcolm Shaw, *International Law* (9th ed. 2021), pp. 182.

¹¹ Eliav Lieblich and Yoram Shachar 'Cosmopolitanism at a Crossroads: Hersch Lauterpacht and the Israeli Declaration of Independence' in *The British Yearbook of International Law* (2014), pp. 1–51, Annex p. 48.

¹² *Ibid.*, pp. 1–51, Annex p. 47.

right of self-determination. The Arab Palestinians refrained from declaring Statehood and Crown Prince Hassan of Jordan comments, 'no assertion of Arab statehood within Palestine was made at the time of the termination of the Mandate. The facts of the situation would not have supported any such claim'.¹³ The Crown Prince does not elaborate what facts he is referring to, but presumably, it was the Jordanian occupation of the West Bank.

6.9 The Declaration and the Role of the League of Nations and of the United Nations

The term 'United Nations' appears in the Declaration of Independence seven times and the 'United Nations General Assembly' is referred to four times. Such a strong emphasis on international bodies and legal instruments is apparently unparalleled in other declarations of independence. These repeated references illustrate the importance that the founding members ascribed to international recognition.¹⁴ The draft proposed by Hersch Lauterpacht in fact proposed the following: 'The legal title of the Jewish people to establish a state within the community of nations must be deemed to have been confirmed by the collective decision of the United Nations. It constitutes a valid measure of a high organ of the United Nations.'¹⁵ The text of the actual declaration, however, is more circumspect in that it states only that the League of Nations 'gave international sanction' to the inherent right and the UN gave 'recognition' to the right.

6.10 Creation of States in International Law and the Declaration of Independence

It has been claimed that Israel did not at the time of the Declaration fulfil the international law conditions of being a State.¹⁶ The 1923 Montevideo Convention is generally accepted as the customary definition of

¹³ Hassan Bin Talal, Crown Prince of Jordan, *Palestinian Self-Determination: A Study of the West Bank and Gaza Strip* (1981), p. 64.

¹⁴ Doron Shultziner, *Israel Studies, an Anthology: Between Basic Norms and Basic Laws: Human Rights and the Supreme Court in Israel*, www.jewishvirtuallibrary.org/israel-studies-an-anthology-human-rights-and-the-supreme-court-in-israel.

¹⁵ Liebllich and Shachar 'Cosmopolitanism at a Crossroads', pp. 1–51, Annex p. 49.

¹⁶ Israel did not fulfil the 'basic criteria' of an independent State. British Foreign Office, 'Recognition of the Jewish State', FO 374, Eastern Palestine (1948) quoted from Victor

Statehood in international law. Article 1 of the Convention determines that in order for an entity to be considered a 'State' under international law, such entity should possess the following qualifications: (a) a permanent population, (b) a defined territory, (c) government and (d) capacity to enter into relations with the other States.¹⁷ This convention is the most widely accepted formulation of the criteria of statehood in international law.¹⁸

6.10.1 *A Permanent Population*

States are an aggregation of individuals.¹⁹ This requirement is considered a natural criterion but has no definition or specification of a minimum number of inhabitants. However, there might be an importance to the minimum of inhabitants in the context of self-determination issues, specifically related to the decolonisation process.²⁰ In addition, this criterion requires States to have a permanent population; however, it is not a rule relating to the nationality of that population. 'Nationality depends upon statehood, not vice versa.'²¹ At the time of the Declaration, the new State of Israel had a permanent population.

6.10.2 *A Defined Territory*

This criterion focuses on what Shaw describes as 'a consistent band of territory which is undeniably controlled by the government of the alleged state'.²² Nevertheless, there is no necessity in international law for defined and settled boundaries as long as there a consistent mass of territory, which is controlled by the government of the potential state.²³ In addition, there is no requirement for contiguity of the territory of the State. Fragmentation can hinder achieving and maintaining

Kattan, 'Introduction' in Victor Kattan, ed. *The Palestine Question in International Law* (2008), p. xlv.

¹⁷ Convention on Rights and Duties of States adopted by the Seventh International Conference of American States, 165 UNTS 19 (1933).

¹⁸ Malcolm Shaw, *International Law* 9th ed. p.182.

¹⁹ James R. Crawford, *The Creation of States in International Law* (2nd ed. 2007), p. 52.

²⁰ Shaw, *International Law*, p. 158.

²¹ Crawford, *The Creation of States in International Law*, p. 183.

²² Malcolm Shaw, *International Law* (9th ed. 2021) p. 182.

²³ Ibid.

independence, but it is not in itself determinative against a claim of statehood.²⁴ 'A new State may exist despite claims to its territory, just as an existing State continues despite such claims.'²⁵ In his proposal for the Declaration, on the issue of boundaries, Hersch Lauterpacht proposed that 'the Resolution of the General Assembly of 29th November, 1947, provides machinery for the delimitation of the frontiers of the Jewish State by the Palestine Commission. The confirmation of the right of the Jewish people to independent statehood, is in no way dependent upon the actual use of the various instrumentalities of peaceful change as envisaged in the Resolution.'²⁶ At Ben-Gurion's insistence, the Declaration makes no reference to the boundaries of Israel. Ben-Gurion observed that the United States also did not have defined borders in its early history and that, in any case, the Arab countries refused to recognise any of the borders that were being offered at the time. Crawford puts forward the possible theory that Israel was only legitimately created with respect to the territory awarded to it in the UN General Assembly 1947 Partition Resolution. A response to this theory is that the 1947 UN Resolution was not binding.²⁷ Crawford adds that according to his theory, Israel was only effectively and lawfully established as a State by secession from Palestine when it signed the first of the 1949 Armistice Agreements, thus, according to Crawford, Israel's original territory was the territory defined by the 1949 Armistice agreements.²⁸

When Israel applied for membership in the UN, some of the representatives of Arab states objected, inter alia, on the grounds that Israel had no recognised borders. The representative of the United Kingdom objected to accepting Israel, and the United Kingdom expressed the view that the application was premature. This was on account of the fact that 'the frontiers of the Jewish State are at present quite unsettled not only in detail, but in large and important areas'.²⁹ The US representative, the international lawyer Philip Jessup, responded, 'there must be some portion of the earth's surface which its people inhabit and over which its

²⁴ Crawford, *The Creation of States in International Law*, p. 47.

²⁵ Ibid., p. 48.

²⁶ Lieblich and Shachar 'Cosmopolitanism at a Crossroads', pp. 1–51, Annex p. 48.

²⁷ See Chapter 4.

²⁸ Crawford, *The Creation of States in International Law*, p. 434.

²⁹ Security Council, Official Records, 384th meeting, 15 December 1948, UN Doc. S/PV.384, p. 15.

Government exercises control. No one can deny that the State of Israel responds to this requirement'.³⁰

6.10.3 *Government*

The requirement for a government or central control is needed for exercising political and social functions.³¹ Some scholars argue that this criterion is the most important single criterion of statehood, since all the others depend upon it.³² In contrast, other scholars argue that this criterion is not a precondition for recognition of a State, rather it is an indicator for the existence of a 'State'.³³ There are no specific requirements in international law as to the nature and extent of this control, except that it 'includes some degree of maintenance of law and order and the establishment of basic institutions'.³⁴ On 14 May 1948, there were still some British troops in Palestine; however, their task was limited to ensuring the safety of the British withdrawal and they made no effort to administer or police the country. The provisional government of Israel in May 1948 would seem to have fulfilled the condition of being a government.

6.10.4 *Capacity to Conduct Foreign Relations*

The Montevideo definition of statehood requires that a putative State be capable of conducting foreign relations. This capacity is usually deemed to be the capacity to have diplomatic relations with other States and the ability to be a party to treaties that are subject to ratification. The core of the capacity to create legal relations with other states is independence.³⁵ In the 1947 Partition Plan, the international community had recognised in principle the right of the Jewish population in Palestine to create an independent state.

The United States, followed by the USSR, recognised Israel immediately after it declared independence. Recognition by other States is not one of the conditions enumerated in the Montevideo Convention but,

³⁰ UN Security Council Official Records, Third Year, 383rd Meeting, 2 December 1948, No. 128, p. 11.

³¹ Shaw, *International Law*, p. 184.

³² Crawford, *The Creation of States in International Law*, p. 56.

³³ Shaw, *International Law*, p. 184.

³⁴ Crawford, *The Creation of States in International Law*, p. 59.

³⁵ Shaw, *International Law*, p. 185.

presumably, it is subsumed in the requirement that there be an ability to conduct foreign relations. There is no legal definition of relations with how many States are required to fulfil the condition of being able to conduct foreign relations. It might be argued that two States is an insufficient number of recognitions, however, where the two States concerned are the two superpowers, a good argument can be made that the State concerned can indeed conduct foreign relations. By the end of May 1948, twelve States had recognised Israel.³⁶ In September 1948, Folke Bernadotte, the UN Mediator, reported to the UN:

The most significant development in the Palestine scene since last November is the fact that the Jewish State is a living, solidly entrenched and vigorous reality. That it enjoys *de jure* or *de facto* recognition from an increasing number of States, two of which are permanent members of the Security Council, is an incidental but arresting fact. The Provisional Government of Israel is today exercising, without restrictions on its authority or power, all the attributes of full sovereignty.³⁷

However, in 1948, many States refrained from recognising Israel as a State. The British government explained that its non-recognition was due to the fact that, in the opinion of Britain, Israel did not, at the time, fulfil the 'basic criteria' of being an independent state.³⁸

6.11 Secession in International Law

Neither the League of Nations nor the United Nations has the authority or capacity of creating a new State. Since 1919, most new States have been created with the consent of the former sovereign, usually in the course of decolonisation. A question is this: Can a unilateral declaration,³⁹ on behalf of a people, legally establish a State, without the consent of the

³⁶ Jørgen Jensehaugen, Marte Heian-Engdal and Hilde Henriksen Waage, 'Securing the State: From Zionist Ideology to Israeli Statehood', *Diplomacy & Statecraft* 23, no. 2 (2012), p. 297.

³⁷ Progress Report of the United Nations Mediator on Palestine Submitted to the Secretary-General for Transmission to the Members of the United Nations, 16 September 1948, in pursuance of paragraph 2, part II, of Resolution 186 (S-2) of the General Assembly of 14 May 1948 GAOR: Third Session Supplement No. 11 (A/648), para. 5. Folke Bernadotte was soon afterwards assassinated by members of the Lehi Jewish irredentist movement, in response to other parts of his report.

³⁸ 'Recognition of the Jewish State'; FO 371, Eastern Palestine (1948) quoted from Kattan, 'Introduction', p. xlv.

³⁹ This issue differs from an existing State making a unilateral declaration. Report of the Working Group Conclusions of the International Law Commission relating to Unilateral

previous sovereign? In this context, the case of Israel is, arguably, exceptional because there was no previous sovereign and the creation of Israel occurred without the consent of the previous administration. The previous administration had been the British Mandate, which terminated on 14 May 1948. As the ICJ has ruled in the *Kosovo* case:

During the nineteenth and early twentieth centuries, there were numerous instances of declarations of independence, often strenuously opposed by the State from which independence was being declared. The practice as a whole, at that time, suggests that the act of declaration did not violate international law. On the contrary, international law contained no prohibition of declarations of independence. During the second half of the twentieth century, the concept of self-determination was developed, creating a right to independence for the peoples of non-self-governing territories and peoples subject to alien subjugation, domination and exploitation. There were, however, also instances of declarations of independence outside this context. The practice of States in these latter cases does not suggest a prohibition in international law regarding the making of a declaration of independence in such cases.⁴⁰

The Legal Advisor to the United States Department of State gave his opinion, on 13 May 1948:

The existence of this trust [The Balfour Declaration incorporated into the Mandate] together with the inherent right recognized in international law afford a legal basis for the formation of a State and government by the Jewish community in the areas of Palestine which that community occupies. Such action would also have the moral sanction of the partially implemented disposition of Palestine made by the mandatory and the United Nations General Assembly in the Partition Plan. Similarly, the Arab community would be entitled to organize a State and Government in the areas of Palestine that it occupies.⁴¹

Succession from an existing State is illegal if it stems from the unlawful use of force or other egregious violations of norms of general international law, in particular, those of a peremptory character (*jus cogens*).⁴²

Acts of States, A/CN.4/L.703, 20 July 2006, <http://legal.un.org/docs/?symbol=A/CN.4/L.703>.

⁴⁰ *Accordance with International Law of the Unilateral Declaration of Independence in Respect of Kosovo*, Advisory Opinion, ICJ Reports 2010, p. 403, at para. 79.

⁴¹ Memorandum by the Legal Advisor of the Department of State addressed to the Under-Secretary of State, 13 May 1948, *Whiteman Digest of United States Practice in International Law*, vol. I, pp. 225–227.

⁴² See *Accordance with International Law of the Unilateral Declaration of Independence in Respect of Kosovo*, Advisory Opinion, ICJ Reports 2010, p. 403, at para. 81.

Crawford writes, regarding the prohibition of the use of force, that it applies to 'any entity established as a State in a given territory, whether or not that territory formerly belonged to or is claimed by another State'.⁴³ There does not, however, appear to be a rule of international law that requires approval from a previous sovereign. In the absence of such approval, some States may, for political reasons, refrain from recognising the new State. The principle of self-determination is constrained in international law by the corresponding principle of territorial integrity, but this rule is only applicable in the relationship between States.⁴⁴ A declaration of independence based on the right of self-determination of the people concerned will, by its nature, be a unilateral declaration. If secession from an existing State does not necessarily violate international law, it can be argued that, a fortiori, there is no violation of international law when the independence is gained, as in the case of Israel, from a provisional Mandate that had been terminated.

6.12 The Declaration of Independence and the UN 1947 Partition Plan

The Declaration refers to the UN General Assembly Partition Resolution:

On the 29th November, 1947, the United Nations General Assembly passed a resolution calling for the establishment of a Jewish State in Eretz-Israel; the General Assembly required the inhabitants of Eretz-Israel to take such steps as were necessary on their part for the implementation of that resolution. This recognition by the United Nations of the right of the Jewish people to establish their State is irrevocable.

THE STATE OF ISRAEL is prepared to cooperate with the agencies and representatives of the United Nations in implementing the resolution of the General Assembly of the 29th November, 1947, and will take steps to bring about the economic union of the whole of Eretz-Israel.

Some scholars claim that by these references Israel officially accepted the boundaries of the Partition Resolution as the boundaries of Israel.⁴⁵

⁴³ James Crawford, 'The Criteria for Statehood in International Law', *British Yearbook of International Law* 48 (1977), p. 113.

⁴⁴ *Accordance with International Law of the Unilateral Declaration of Independence in Respect of Kosovo*, Advisory Opinion, ICJ Reports 2010, p. 403, at para. 80; UN Charter, Article 2(4).

⁴⁵ Francis A. Boyle, 'The Creation of the State of Palestine', *EJIL* 1 (1990), pp. 301, 304.

Others state that the Declaration of Independence can be interpreted as an instrument to implement the partition resolution.⁴⁶

In response to these claims, it can be argued that Hersch Lauterpacht in the draft he prepared for the Declaration had indeed suggested stating this explicitly: 'Now proclaim the Jewish Republic within the frontiers approved by the General Assembly.'⁴⁷ This proposal was not accepted by the team that drafted the Declaration. The Declaration of Independence enumerates various historical events from which Israel derives its legitimacy. It culminates in the UN Partition Plan as being the vindication of the Jewish nation's 'natural and historical right' to a State in its ancestral land. The Declaration referred to the 1947 Partition Plan only as international recognition of the right to create a State and not as the source of authority for such creation. The Declaration refers to the UN 1947 decision as a proof that the international community recognised the Jewish people's right to establish their own state. Elihu Lauterpacht writes, 'the [1947] Resolution was relied upon not as the legal basis for the creation of the State, but was mentioned primarily as a relevant historical element'.⁴⁸ Rosenne comments, 'nothing in the Declaration suggests that Israel undertook a unilateral obligation to adhere to the borders of the partition plan, On the contrary, it was decided not to include any reference to the borders'.⁴⁹ As mentioned above, a unilateral declaration refers to a formal declaration by a State with the intent to produce obligations under international law.⁵⁰ The first reference to the Partition Plan was drafted in a non-obligatory language, the text is 'on the strength of the resolution' and not 'in accordance with' the resolution.⁵¹ The only declaratory act with respect to the Partition Plan was the statement that Israel was prepared to 'cooperate in implementing the resolution', and only with regard to the economic union, rather than other obligations under the Partition Plan, such as the borders. Rosenne writes that the Declaration was 'an autonomous act of the Jews of

⁴⁶ John Strawson, *Partitioning Palestine: Legal Fundamentalism in the Palestinian-Israeli Conflict* (2010), p. 135.

⁴⁷ Liebllich and Shachar, 'Cosmopolitanism at a Crossroads', pp. 1–51, Annex p. 46.

⁴⁸ Elihu Lauterpacht, *Jerusalem and the Holy Places* (1968), p. 19 n. 2.

⁴⁹ Shabtai Rosenne 'The United Nations and Israel's War of Independence' in Shabtai Rosenne, ed. *An International Law Miscellany* (1993), pp. 630, 659–660.

⁵⁰ Report of the Working Group Conclusions of the International Law Commission relating to Unilateral Acts of States, A/CN.4/L.703, 20 July 2006, <http://legal.un.org/docs/?symbol=A/CN.4/L.703>.

⁵¹ Rosenne, 'The United Nations and Israel's War of Independence', p. 660.

Palestine and was not performed as an act of implementation of the partition resolution'.⁵² In addition, in reply to Bernadotte's plan to internationalise Jerusalem, Israel stated that the Partition Plan represented the irreducible minimum with respect to the territory assigned to the Jewish State. Israel also argued that in light of Arab aggression, the territorial provisions needed improvements.⁵³ While this position was delivered two months after the Declaration of Independence, it seems that Israel never saw itself as bound by the territorial definition in the Partition Plan; rather, it represented the starting point, the 'bare minimum' of the Jewish State.

6.13 Concluding Remarks

Secession from another State is not in itself a violation of international law; moreover, Israel declared its independence only when the British Mandate ended, so in this case undoubtedly there was no violation. Israel based its declaration on the right of self-determination and the fact that the League of Nations and the UN had recognised this right. Israel's legal position was not that these institutions had granted the right of self-determination of the Jewish people but that they had recognised an existing right. Whether the Declaration created an independent State as from 14 May 1948 depends on an examination of whether Israel, at the time, fulfilled the Montevideo criteria for statehood. The immediate recognition of Israel by the United States and the USSR would point to a conclusion that Israel fulfilled the Montevideo criteria.

If the Arab population of Western Palestine had, at the same time, declared independence, presumably the same standard would have applied to them, and the borders and relations between the two States would have been a matter of negotiations between them.

⁵² Ibid., pp. 630, 660.

⁵³ Shlomo Slonim, 'Israeli Policy on Jerusalem at the United Nations, 1948', *Middle Eastern Studies* 30, no. 3 (1994), pp. 579, 583.

The 1948 Arab-Israeli War

Israel refers to the 1948 War as the ‘War of Independence’ as it secured the existence and independence of the State of Israel. The Palestinians refer to the 1948 War as ‘*al Nakba*’ (the Catastrophe) not only because of the military results of the war but also because nearly 700,000 Arab Palestinians fled or were expelled from their homes.¹ The War is usually assumed to have commenced in November 1947 sparked by the United Nations Partition resolution and continued to April 1949 with the signing of the Jordan–Israel Armistice Agreement.² The following description of the war is limited to issues relevant to determining whether there was an act of aggression and if so, by whom.

7.1 The Arab Forces

During the first stage of the fighting, the Arab forces consisted mainly of villagers armed with small arms who, under the ‘Faza’ institution, could be mobilised by local sheikhs for a number of days.³ In addition, there was the Arab Liberation Army, which consisted of semiregular units of volunteers from various Arab countries. It was estimated that the total number of fighters in these units and contingents was no more than 7,700.⁴ To this

¹ A small number of Arabs were allowed to return under family reunification schemes. See Final Report of the UN Economic Survey Mission for the Middle East (January 1950) and United Nations Conciliation Commission for Palestine Final Report of the Economic Survey Mission for the Middle East, Part 1. The Final Report and Appendices (Lake Success, New York: United Nations), UN Doc. A/AC.25/6, 28 December 1949, p. 18.

² The Agreement with Egypt was signed in February 1949 and the last of the Armistice Agreements, with Syria was signed in July 1949.

³ Netanel Lorch, *The Edge of the Sword: Israel's War of Independence 1947–1949* (1961/1968), p. 21.

⁴ Report by General Ismail Safwat, general officer commanding, Arab League Military Committee, Damascus, dated 23 March 1948, in ‘Selected Documents of the 1948 Palestine War, Selected and Annotated by Walid Khalidi’, *Journal of Palestine Studies* XXVII (Spring 1998), pp. 60–105, 64, www.palestine-studies.org/sites/default/files/jps-articles/2537835.pdf.

should be added the well-trained Arab Legion (Trans-Jordanian) which was stationed in Palestine as part of the British Forces.⁵ With the beginning of hostilities, the Arab Legion was withdrawn from Palestine to Trans-Jordan but later returned to the West Bank area of Palestine concurrently with the intervention of the other Arab armies.⁶ Khalidi writes that at the early stages of the war, 'the Palestinians had superior numbers, but as we have seen, the Yishuv had more important advantages'.⁷

7.2 The Jewish Forces

The Jewish forces consisted of the Haganah under the control of the Jewish Agency with some 400 full-time salaried staff and commanders, the remainder being partially trained reservists. In addition, there were some 1,700 full-time members of the Jewish Settlement Police and some 2,000 members of the Palmach. The Palmach was composed of young men and women based on Kibbutzim (communal farming settlements) who spent half their time on agricultural work and the other half in military training. The dissident groups, the 'Irgun' (Etzel) and the 'Lehi' (Stern Gang according to the British nomenclature), numbered some 2,500. In April 1948, the total Jewish forces were 18,900.⁸ The armaments of the Jewish forces consisted of light arms they had managed to conceal during the time of the British Mandate when it was illegal to possess arms under pain of the death penalty. Until May 1948, the Haganah did not possess 'a single field gun, a single tank, a single fighter plane'.⁹ During later stages of the War, commencing May 1948, the Jewish population instituted a general conscription that enabled them to increase their forces considerably¹⁰ and purchase arms from Czechoslovakia, which acted with the approval of the Soviet Union.

⁵ Lorch, *The Edge of the Sword*, p. 38.

⁶ Units of the Arab Legion were in Palestine guarding British supply lines as Britain withdrew.

⁷ Rashid Khalidi, 'The Palestinians and 1948', in Eugene L. Rogan and Avi Shlaim, eds. *The War for Palestine: Rewriting the History of 1948* (2nd ed. 2007), p. 29.

⁸ David Ben-Gurion, *Israel: A Personal History* (1972), p. 84.

⁹ Lorch, *The Edge of the Sword*, p. 152.

¹⁰ By mid-July 1948, the Israel Defence Forces mobilised over 65,000 men, and by December 1948 they had 96,441 men under arms. See Avi Shlaim, 'Israel and the Arab Coalition in 1948' in Eugene Rogan and Avi Shlaim, eds. *The War for Palestine: Rewriting the History of 1948* (2001), p. 81.

7.3 The National Interests of the Arab States

All historians seem to agree that, in addition, perhaps, to wanting to help the Palestinian Arabs, 'the Arab states fought the Palestine war in strictly national terms, guided by domestic agendas and national interests'.¹¹ Shlaim writes, 'each Arab state was moved by its own dynasty or national interests'.¹² Abdullah of Trans-Jordan wanted to seize the area allocated to an Arab state in Palestine. 'Without Jerusalem he would remain the obscure ruler of a desert kingdom'.¹³ Egypt 'feared Abdullah's regional ambitions' and [King of Egypt] 'Faruq's main aim was to prevent Abdullah's territorial aggrandizement'.¹⁴ Herzog explains it as being 'related *inter alia* to Farouk's aspirations for the *Khalifat*, in rivalry with those of Abdullah of Transjordan'.¹⁵ Lorch writes, 'participation in the Palestine adventure was the price Farouk [King of Egypt] had to pay for leadership which otherwise would have been seized by his ambitious rival, King Abdullah of Transjordan'.¹⁶ As to Syria, Landis writes that Syria's main concern was that the war 'would allow the Hashemites to become the dominant power in the region' and 'Syria's policy towards the Palestine conflict grew directly out of its policy to contain Jordan'.¹⁷ Lorch writes, 'there is no doubt that the demand voiced by the Syrian delegate to the first Pan-Arab Convention on the Palestine problem in 1937, that Palestine should be returned to its "mother land" was not completely forgotten. As a minimum gain the Syrians were eager to annex the "finger" of eastern Galilee'.¹⁸

¹¹ Eugene L. Rogan and Avi Shlaim, eds., *The War for Palestine* (2nd ed. 2007), p. 5.

¹² Shlaim, 'Israel and the Arab Coalition in 1948', p. 82.

¹³ Lorch, *The Edge of the Sword*, p. 23.

¹⁴ Fawaz A. Gerges, 'Egypt and the 1948 War' in Eugene L. Rogan and Avi Shlaim, eds. *The War for Palestine* (2nd ed. 2007), pp. 153, 158.

¹⁵ Yaakov Herzog, 'Israel in the Middle East An Introduction' in Meir Verete, ed. *Jerusalem Papers on Peace Problem*, The Hebrew University of Jerusalem, The Leonard Davis Institute for International Relations, February 1975, p. 26. https://en.davis.huji.ac.il/sites/default/files/davisinsten/files/israel_in_the_middle_east_-_an_introduction.pdf.

¹⁶ Lorch, *The Edge of the Sword*, p. 23.

¹⁷ Joshua Landis, 'Syria and the Palestine War: Fighting King Abdullah's "Greater Syria Plan"' in Eugene L. Rogan and Avi Shlaim, eds. *The War for Palestine* (2nd ed. 2007), pp. 176, 185.

¹⁸ Lorch, *The Edge of the Sword*, p. 23.

7.4 The First Stage of the Fighting and the Prohibition of the Use of Force

The first stage of the fighting was a non-international armed conflict between Jews and Arabs in Palestine. In addition, there were Arab irregulars from neighbouring Arab countries. Glubb, the British commander of the Jordanian army, writes that 'early in January [1948] the first detachments of the Arab Liberation Army began to infiltrate into Palestine from Syria. Some came through Jordan and even through Amman'. 'They were in reality to strike the first blow in the ruin of the Arabs of Palestine.'¹⁹

The fighting in the first months of the war, up to June 1948, included mainly Arab attacks on outlying Jewish settlements and attacks on convoys between Jewish towns and villages that succeeded in disrupting the passage between them. 'The first four months of fighting, up to the end of March, saw the Jews chiefly on the defensive. The Arabs dominated the hill country and the main roads.'²⁰ 'The period December 1947–March 1948 was marked by Arab initiatives and attacks and Jewish defensiveness, increasingly punctuated by Jewish reprisals. The attackers never pretended to single out combatants: every Jew was a legitimate target.'²¹ Issa Nakhleh, who was the Permanent Representative of the Arab Higher Committee for Palestine in New York and Chairman of the Palestine Arab delegation, writes:

It is an historic fact that prior to the month of April 1948 Palestine Arabs were winning the fight against the Jews throughout the country, Arabs dominated more than 82% of the area of Palestine, Jews were unable to travel on highways between important cities. All Jewish quarters in Jerusalem were about to surrender. Jews lost every battle they fought against Palestine Arabs.²²

Jamal Bey Hussein, the representative of the Arab Higher Committee informed the UN Security Council, on 16 April 1948 that

the representative of the Jewish Agency tried to convince the Security Council that the few thousand Arabs who came over the borders, we cannot really say 'borders' since these segregations, in that part of the

¹⁹ John Bagot Glubb, *A Soldier with the Arabs* (1957), p. 79.

²⁰ Dov Joseph, *The Faithful City: The Siege of Jerusalem 1948* (1960), p. 32.

²¹ Benny Morris, *The Birth of The Palestinian Refugee Problem, Revisited* (2004), p. 65.

²² Issa Nakhleh, 'The Liberation of Palestine Is Supported by International Law and Justice' in J. N. Moore, ed. *The Arab-Israeli Conflict. Vol. I: Readings* (1974), p. 570.

Arab world at least, have never been agreed to by any Arab inhabitant—that the Arabs who came to the assistance of their own kith and kin and their own blood, and who came from places where they spoke the same language, had the same mentality and the same aspirations and formed one homogeneity, were invaders and intruders.

The representative of the Jewish Agency told us yesterday that they were not attackers, not aggressors; that the Arabs had begun the fight and that once the Arabs stopped shooting, they would stop shooting also. As a matter of fact, we do not deny this fact. We told the world, during the last session of the General Assembly, that we could not accept our country being torn to pieces, that we could not accept that little Palestine should be divided into three different States²³

The British Mandatory authorities informed the UN Palestine Commission, on 21 January 1948, that ‘the Government of Palestine fear that strife in Palestine will be greatly intensified when the Mandate is terminated, and that the international status of the United Nations Commission will mean little or nothing to the Arabs in Palestine, to whom the killing of Jews now transcends all other considerations’.²⁴ The British Chief Secretary of the Palestine Administration commented, regarding Jewish attacks on the Katamon quarter in Jerusalem, ‘the Arabs have only themselves to blame for this dismal result’, it is ‘a consequence of their use of this area as a sniper’s post for months past’.²⁵ Shlaim writes, ‘the first round of fighting, from 15 May until 11 June was a critical period during which the fate of the newly born Jewish state seemed to hang in the balance’. Gerges writes, ‘in the first round of fighting, Israel did not have heavy armaments and equipment’.²⁶ Sela writes, ‘the Haganah offensive in the last six weeks of the Mandate Government (Plan D) was intended to ensure its control of the area designated for the Jewish state according to the Partition plan’.²⁷ ‘During this period, the Jewish community suffered heavy casualties, civilian as

²³ Official Records of the UN Security Council, Third Year, No. 58, p. 19.

²⁴ United Nations Palestine Commission, First Monthly Progress Report to the Security Council, UN Doc. A/AC.21/7, 29 January 1948.

²⁵ Sir Henry Lovell Goldsworthy Gurney, *Gurney Diaries*, 1 and 3 May 1948, Middle East Centre at St Antony’s College Oxford, quoted from Norman Rose, *A Senseless Squalid War: Voices from Palestine 1890s–1948* (2010), p. 100.

²⁶ Gerges, ‘Egypt and the 1948 War’, p. 160.

²⁷ Avraham Sela, ‘Transjordan Israel and the 1948 War: Historiography and Reality’, *Middle Eastern Studies* 28, no. 4 (October 1992), p. 628.

well as military, it reeled from the shock of contact with regular Arab armies.²⁸ The situation of the Jewish population of Jerusalem was particularly grave: 'Jerusalem was the most isolated of all the large Jewish settlements in Palestine. Thirty miles of the road which joined it to Tel Aviv passed through Arab territory where the monotony of enmity was not broken by a single Jewish village.'²⁹

General Ismail Safwat, the general officer commanding the Arab League Military Committee wrote an internal assessment of the situation in Palestine up to March 1948. His report demonstrates how the Arab military leadership viewed events in Palestine in March 1948.

The Jews at present enjoy significant superiority over us in terms of manpower and arms. This being the case, the following question comes to mind: Why have not the Jews embarked on wide-scale operations and struck as hard as they could at the Arabs, considering that they have the forces necessary to do so? I believe the answer can be summarized as follows:

- (1) Despite the fact that skirmishes and battles have begun, the Jews at this stage are still trying to contain the fighting to as narrow a sphere as possible in the hope that partition will be implemented and a Jewish government formed; they hope that if the fighting remains limited, the Arabs will acquiesce in the fait accompli. This can be seen from the fact that the Jews have not so far attacked Arab villages unless the inhabitants of those villages attacked them or provoked them first.³⁰
- (2) Their fear of the intervention of British forces prevents them from using large forces or heavy arms on a wide scale.
- (3) The Jews expect that following the end of the Mandate, of course the Arab countries will mobilize large forces to wage major battles and significant operations. They therefore consider it to be in their interest to save the strength of their basic forces for the anticipated battles. In addition to the above considerations, the position of the Jews has not become critical yet, and their military position does not require resort to significant force.³¹

²⁸ Shlain, 'Israel and the Arab Coalition in 1948', p. 89.

²⁹ Joseph, *The Faithful City*, p. 36.

³⁰ However, the same report mentions battles that occurred prior to the report being written, such as the attack by the Haganah against Faluja, a village in southern Palestine, some 40 kilometers northeast of Gaza, killing thirty-seven villagers and demolishing a number of buildings, including the municipal building and post office. See Report by General Ismail Safwat, general officer commanding, Arab League Military Committee, Damascus, dated 23 March 1948, 'Selected Documents of the 1948 Palestine War, selected and annotated by Walid Khalidi', p. 66.

³¹ *Ibid.*, p. 70.

The Office of the Historian of the US Department of State summarized the situation as follows:

The United Nations resolution sparked conflict between Jewish and Arab groups within Palestine. Fighting began with attacks by irregular bands of Palestinian Arabs attached to local units of the Arab Liberation Army composed of volunteers from Palestine and neighboring Arab countries. These groups launched their attacks against Jewish cities, settlements, and armed forces. The goal of the Arabs was initially to block the Partition Resolution and to prevent the establishment of the Jewish state. The Jews, on the other hand, hoped to gain control over the territory allotted to them under the Partition Plan.³²

7.5 The Legality of the Intervention by Armies of Arab States?

The UN Charter prohibits the use of force ‘against the territorial integrity or political independence of any State, or in any other manner inconsistent with the purposes of the United Nations’.³³ The only exceptions allowed by the UN Charter are self-defence or with the authorisation of the UN Security Council.³⁴ The UN Charter came into force in 1945, three years before the 1948 war, and the stipulation as to non-use of force reflects customary international law.³⁵ The UN General Assembly called upon the inhabitants of Palestine to refrain ‘from the threat or use of force’³⁶ and the UN Security Council, on 17 April 1948, ‘called upon’ the parties to cease all military activities.³⁷ Notwithstanding these appeals, it would appear that the UN Charter prohibition of the use of force, which refers to inter-State behaviour, was not legally applicable to the first stage of fighting which was, largely, a non-international armed conflict.³⁸

³² US Department of State, Office of the Historian, *Milestones in the History of U.S. Foreign Relations Milestones: 1945–1952, The Arab-Israeli War of 1948*. <https://history.state.gov/milestones/1945-1952/arab-israeli-war>.

³³ Article 2(4) UN Charter.

³⁴ Articles 2(4), 42 and 51 of the UN Charter.

³⁵ Danish Institute of International Affairs, *Humanitarian Intervention: Legal and Political Aspects* (1999), p. 80.

³⁶ UNGA Resolution 106 (S-1), 15 May 1947, GAOR, First Special Session, Resolutions (A/310), p. 7.

³⁷ UN Security Resolution S/723, Security Council Official Records, III, Supp. for April 1948, pp. 7–8.

³⁸ Article 2(4) UN Charter.

7.5.1 *Self-Defence?*

In May 1948, Arab regular armies entered Palestine ostensibly to help the local Palestinian fighters but in many cases for their own national reasons. What had been a non-international armed conflict became an international armed conflict. The decision to send Arab armed forces into Palestine had been made in September 1947, even prior to the adoption of the 1947 Partition plan and the establishment of Israel.³⁹ The question arises of whether it was a legitimate exercise of self-defence by the Arab States. Victor Kattan writes, 'the Arab states should have refrained from undertaking military action in Palestine unless this was in lawful self-defence', and, in Kattan's opinion, 'it arguably was'.⁴⁰ The Arab Higher Committee, the representative of the Arabs of Palestine, declared, 'any attempt by the Jews or any other power or group of powers to establish a Jewish State in Arab territory is an act of aggression which will be resisted in self-defense by force'.⁴¹ The 2002 official website of the Arab League states, 'among the goals the League set for itself were winning independence for all Arabs still under alien rule, and to prevent the Jewish minority in Palestine (then governed by the British) from creating a Jewish state'.⁴² The Arab States did not claim that Israel had attacked them. The Arab claim was that 'the declaration, which was accompanied by violence and terrorism, of a Jewish State next door to Egypt and situated in the midst of Arab nations where feeling was already running high, undoubtedly constitutes a menace to the security of Egypt and other Arab States neighbouring to Palestine'.⁴³ This claim would not seem to justify use of force in accordance with Article 51 of the Charter, which refers to an 'armed attack'.⁴⁴

7.5.2 *An Act of Collective Regional Self-Defence?*

The Arab League also declared that they were acting as a 'regional arrangement' for dealing with matters 'relating to the maintenance of

³⁹ Decision of the Political Committee of the Arab League, 19 September 1947; Sofar Lebanon, B. Y. Boutros-Ghali, 'The Arab League 1945-1955', *International Conciliation*, no. 498 (1954), p. 411.

⁴⁰ Victor Kattan, *From Coexistence to Conquest: International Law and the Origins of the Arab Israeli Conflict 1891-1949* (2009), p. 187.

⁴¹ UN Palestine Commission, First Special Report to the Security Council. The Problem of Security in Palestine, UN Doc. A/AC.21/9, 16 February 1948, p. 5.

⁴² www.arabji.com/ArabGovt/ArabLeague.htm. The parenthesis is in the original text.

⁴³ Official Records of the Security Council, Third Year, No. 72, p. 8.

⁴⁴ Article 51, UN Charter.

international peace and security in their area' as set out in Chapter VIII of the UN Charter.⁴⁵ Egypt stated, 'the neighbouring Arab Governments which are members of the Arab League consider themselves responsible for the maintenance of security and order in this area as a regional organization in conformity with the provisions of the UN Charter'.⁴⁶ The Syrian delegate to the UN added that the Arab action had been in accordance with Article 52 of the Charter that refers to regional arrangements and 'I should think the Security Council would be grateful to the Arabs who have taken this task upon themselves'.⁴⁷ This would not seem to be valid, as Article 53 of the Charter only permits such regional action with 'the authorization of the Security Council'.⁴⁸ A regional arrangement is also permitted to use force as a collective measure of self-defence in accordance with Article 51 of the Charter,⁴⁹ however, only if an armed attack had occurred against a State that requested such collective help. This was not the situation in the 1948 War.

7.5.3 Humanitarian Intervention?

Humanitarian intervention has been defined as 'coercive action by states involving the use of armed force in another state without the consent of its government'.⁵⁰ The Arab states did not explicitly attempt to justify their use of force on the grounds of humanitarian intervention. However, it can be deduced from statements by Arab States that a possible justification for their actions could have been humanitarian intervention. The Arab States justified intervening in Palestine on the grounds that the Mandate had ended, 'leaving no legally constituted authority in order to administer law and order. The Arab Governments find themselves compelled to intervene for the sole purpose of restoring peace and security

⁴⁵ 'Statement Issued by the Governments of the Arab League States on the Occasion of the Entry of the Arab Armies into Palestine, May 15 1948', in Muhammed Khalil, ed. *The Arab States and the Arab League: A Documentary Record* (1962), p. 560.

⁴⁶ Official Records of the Security Council, Third Year, No. 72, p. 7.

⁴⁷ Official Records of the Security Council, Third Year, No. 71, p. 15.

⁴⁸ Article 53, the UN Charter. There is an exception applying to Axis States of the Second World War which is not relevant in this case.

⁴⁹ See Hans Kelsen, *The Law of the United Nations: A Critical Analysis of its Fundamental Problems* (1950), p. 328.

⁵⁰ Danish Institute of International Affairs, *Humanitarian Intervention*, p. 11.

and establishing law and order in Palestine'.⁵¹ Egypt declared that its 'operations in Palestine are just designed to discipline the Zionist gangs'.⁵² A memorandum submitted to the UN by the Arab Higher Committee, after the intervention of the Arab states, explained:

The Arab armies entered Palestine on the invitation of the native Arabs of Palestine who are 'resisting attempted subjugation by the armed (Jewish) minority and outside (Jewish) pressure'. In the same way, the British forces went into Greece at the invitation of the Greek people who were resisting subjugation by the armed Communist minority and outside pressure. Furthermore, the Arab States are part of the Arab league, established in order to safeguard the independence and sovereignty of the Arab states. Palestine is an integral part of the Arab world. It was recognised by the Charter of the Arab league as an independent country and was allowed the right of participation in the work of the Council of the League.⁵³

According to the statement published by the Arab League: 'These Governments view the events taking place in Palestine as a threat to peace and security as a whole and (also) in each of them taken separately.'⁵⁴

Security in Palestine is a sacred trust in the hands of the Arab States, and in order to put an end to this state of affairs and to prevent it from becoming aggravated or from turning into a state of chaos, the extent of which no one can foretell; in order to stop the spreading of disturbances and disorder in Palestine to the neighbouring Arab countries; in order to fill the gap brought about in the governmental machinery in Palestine as a result of the termination of the mandate and the non-establishment of a lawful successor authority, the Governments of the Arab States have found themselves compelled to intervene in Palestine solely in order to help its inhabitants restore peace and security and the rule of justice and law to their country, and in order to prevent bloodshed.⁵⁵

⁵¹ 'Statement Issued by the Governments of the Arab League States on the Occasion of the Entry of the Arab Armies into Palestine, UN Press Release S/745 15 May 1948'.

⁵² Arif, *al-Nakba*, vol. II, p. 381; Ali, *al Harb*, p. 108 quoted from Gerges, 'Egypt and the 1948 War', p. 158.

⁵³ See 'Why the Arab States Entered Palestine: Their Action Justified in Fact and in International Law. Memorandum to the United Nations Delegations submitted by The Arab Higher Committee Delegation for Palestine', 4512 Empire State Building, New York, NY, June 1948, pp. 7-8; Memoranda on Palestine, FO 371/68577.

⁵⁴ 'Statement Issued by the Governments of the Arab League States on the Occasion of the Entry of the Arab Armies into Palestine, May 15 1948', p. 560.

⁵⁵ Ibid.

Even if the circumstances would have justified humanitarian intervention, and they did not, 'under current international law there is no right for states to undertake humanitarian intervention in another state without prior authorization from the Security Council'.⁵⁶ Frank argues that in some circumstances, humanitarian intervention can be legitimate, although illegal.⁵⁷ A UN high-level commission on the 'responsibility to protect' reached the conclusion that, in all circumstances, humanitarian intervention required UN Security Council authorisation.⁵⁸

7.5.4 *Invitation to Intervene?*

A sovereign state can invite foreign armed forces to assist it in an internal armed conflict and, in so doing, the foreign State is not violating international law. Even if the Arab States had been invited to intervene by the local Arab Palestinians, and that is not clear, international law does not sanctify such military intervention as non-state entities have no authority to do so. A 'government of all Palestine' was set up in the Gaza Strip, under Egyptian patronage, in September 1948. This was four months after the establishment of the State of Israel and after the intervention of the Arab armies, so even if it had been a real government, they could not have invited such intervention.

7.5.5 *Palestine as Terra Nullius, a No Man's Land?*

Terra nullius has been defined as 'land which has not been claimed by a nation, but may be subject to such a claim'.⁵⁹ The Arab League in a cable to the UN wrote of the 'vacuum created by the termination of the mandate and the failure to replace it by any legally constituted authority'.⁶⁰ Crawford writes that a 'possible view is that British abandonment of Palestine and the termination of the Mandate left Palestine as *terra nullius*, this was one justification supposedly given for the Arab invasion

⁵⁶ Danish Institute of International Affairs, *Humanitarian Intervention*, p. 94.

⁵⁷ Thomas M. Frank, 'Interpretation and Change in the Law of Humanitarian Intervention' in J. L. Holzgefe and Robert O. Keohane, eds. *Humanitarian Intervention: Ethical, Legal and Political Dilemmas* (2003), p. 226.

⁵⁸ A More Secure World: Our Shared Responsibility Report of the High-Level Panel on Threats, Challenges and Change, UN Doc. A/59/565 (2005).

⁵⁹ James R. Fox, *Dictionary of International Law & Comparative Law* (1992), p. 431.

⁶⁰ UN Doc. S/745, 16 May 1948 (1948), p. 5.

after 15 May 1948'.⁶¹ However, under modern international law, a territory inhabited by a people or peoples is not *res nullius* and the peoples inhabiting the territory have a right of self-determination. Declaring Palestine as *res nullius* would have meant that any State could claim Palestine as its territory. Mandate Palestine, however, was clearly not *terra nullius* as it was inhabited by two peoples who both had a right of self-determination, Kattan discusses and, like Crawford, I believe correctly, dismisses the possibility that Palestine became no man's land, *res nullius*, at the end of the Mandate.⁶²

7.6 The Invasion of the Arab Armies and the Borders Proposed by the Partition Plan

There had been a covert understanding, although not a written agreement, between Jewish leaders and King Abdullah of Jordan that the Trans-Jordanian Arab Legion would content itself with entering and holding West Bank territory that had been proposed for an Arab State in the 1947 Partition Plan and would not enter the areas designated for the Jewish State.⁶³ The 1947 Partition plan had not assigned Jerusalem to either the Arab or Jewish States but had intended that it be under UN administration for an initial period of ten years. The Arab Legion did, by and large, refrain from attacking areas that the Partition Plan had destined for the Jewish State and limited itself to the objective described by its commander Glubb of only occupying 'the central and largest area of Palestine allocated to the Arabs by the 1947 partition'.⁶⁴ The Arab Legion, however, intervened in Jerusalem, captured the Jewish Quarter of the Old City, expelled the Jewish population from the Old City and unsuccessfully tried to enter the Jewish held Western Jerusalem.⁶⁵ The Jordan Arab Legion was able to rout Israel forces from the old city of

⁶¹ James Crawford, *The Creation of States in International Law* (2nd ed. 2007), p. 432. Crawford, himself, rejects the idea that Palestine was *terra nullius*.

⁶² Kattan, *From Coexistence to Conquest*, p. 187.

⁶³ Note by Haim Herzog (Then head of Israel Intelligence) to Golda Meyerson (Meir), 7 May 1948, Israel Diplomatic Documents December 1947–May 1948 (State of Israel Archives No. 482, p. 754. In Hebrew): Lorch, *The Edge of the Sword*, p. 164.

⁶⁴ Glubb, *A Soldier with the Arabs*, p. 96.

⁶⁵ See Avi Shlaim, *The Politics of Partition: King Abdullah, the Zionists and Palestine 1921–1951* (2004 reprint), pp. 178–182.

Jerusalem and keep possession of it.’⁶⁶ It is not clear how far the Arab Legion policy of refraining from entering the area designated for a Jewish State was a result of an agreed coordination with the Jewish authorities or was dictated by the British government.⁶⁷ Sela writes that the policy of the Trans-Jordanian army was not as a result of an agreement but ‘it derived from a military and political reality’.⁶⁸ The behaviour of the Arab Legion could perhaps be seen as only coming to the defence of the local Arabs. Crown Prince Hassan writes, ‘the Old City and West Bank were populated by Palestinian Arabs on whose behalf Jordan’s armed forces had entered Palestine and engaged in the conflict of 1948–9’.⁶⁹ However, the subsequent annexation of the West Bank by Trans-Jordan would seem to suggest a different motive. The annexation was approved by an assembly of Arab Palestinian notables from the West Bank but as Abouali writes, ‘many dispute the authenticity of the vote of support at the Jericho Conference, seeing it rather as the outcome of coercion by Jordanian forces’.⁷⁰ The coordinated plan of the Arab League moreover ‘envisaged the capture of Haifa’,⁷¹ and the armies of Egypt, Syria and Iraq all invaded areas allocated to the Jewish state under the Partition plan.

It could be argued that if the Arab armies had only entered the West Bank and Gaza, they would not have been committing aggression against the State of Israel. The armies of Egypt, Syria and Lebanon however did invade the area of the State of Israel.

The Jordanian Arab Legion, by seizing the West Bank, and later annexing it, prevented the Arabs of Palestine from achieving self-determination. Arguably, they were thus violating the UN Charter, which prohibits use of force in any manner ‘inconsistent with the purposes of the United Nations’.⁷² This might also apply to the Egyptian seizure of the Gaza Strip.

⁶⁶ Abdul Salem Majali, Jawad A. Anani and Munther J. Haddadin, *Peacemaking: The Inside Story of the 1994 Jordanian-Israeli Treaty* (2006), p. 4.

⁶⁷ Shlaim believes there was coordination, see Avi Shlaim, *Collusion across the Jordan: King Abdullah, the Zionist Movement and the Partition of Palestine* (1988). Sela refutes Shlaim’s thesis, see Sela, ‘Transjordan Israel and the 1948 War’.

⁶⁸ Sela, ‘Transjordan Israel and the 1948 War’, p. 676.

⁶⁹ Hassan Bin Talal, Crown Prince of Jordan, *Palestinian Self-Determination: A Study of the West Bank and Gaza Strip* (1981), p. 40.

⁷⁰ Gamal Abouali, ‘Natural Resources under Occupation: The Status of Palestinian Water under International Law’, *Pace International Law Review* 10 (Fall 1998), pp. 411, 450.

⁷¹ Charles Tripp, ‘Iraq and the 1948 War’ in Eugene L. Rogan and Avi Shlaim, *The War for Palestine* (2nd ed. 2007), p. 137.

⁷² Article 2(4) UN Charter.

7.6.1 *International Opinion on the Involvement of the Arab Armies*

The US representative to the UN Security Council, commenting on the Jordanian admission that the Arab Legion had invaded Palestine, stated, 'we have here the highest type of evidence of the international violation of the law: the admission by those who are committing the violation'.⁷³ The Russian representative to the Security Council, Gromyko, stated even more bluntly, 'what is happening in Palestine can only be described as a military operation organised by a group of States against the Jewish State'.⁷⁴ The then-Secretary General of the United Nations, Trygve Lie, writes 'the invasion of Palestine by the Arab States was the first armed aggression which the world had seen since the end of the [Second World] War'.⁷⁵

7.7 *The Laws of War, Jus in Bello*

Irrespective of whether a party to a conflict was the aggressor or the victim, the laws of war regulate what methods of warfare are legal or illegal. The first stage of the fighting was essentially an internal or civil war, although there were irregular fighters from neighbouring Arab countries. In 1948, there was no international treaty dealing with laws of armed conflict in internal wars. The Common Article 3 to the Geneva Conventions, which contains rules as to internal conflicts, was only adopted in 1949. Nevertheless, an International Red Cross Conference in 1947 approved a resolution stating, 'in case of civil war, in any part of the home or colonial territory of a Contracting Party, the principles of the Convention shall be equally applied by the said Party, subject to the adverse Party also conforming thereto'.⁷⁶ In the 1948 War, irregular fighters committed gross violations of the laws of war. Two well-known examples are Deir Yassin and the Hadassah Convoy. On the 9 April 1948, as part of the attempt to relieve the Jewish inhabitants of Jerusalem, members of the Etzel and Lehi Jewish dissident groups attacked the village of Deir Yassin near Jerusalem killing over 100 civilians, including young women and children. Reports of the killing, many of them

⁷³ UN Security Council Official Records, No. 72, 302nd meeting (1948), p. 43.

⁷⁴ UN Security Council Official Records, 309th meeting (1948).

⁷⁵ Trygve Lie, *In the Cause of Peace: Seven Years with the United Nations* (1954), p. 174.

⁷⁶ ICRC, Commentary of 2016 Article 3: Conflicts Not of an International Character, para. 369, https://ihl-databases.icrc.org/ihl/full/GCI-commentaryArt3#_Toc465169863.

exaggerated, were one of the causes of Arab villagers subsequently fleeing from their villages. On 13 April 1948, Arab irregular forces attacked a Jewish convoy on the way to Hadassah Hospital on Mount Scopus killing seventy-nine persons, mainly doctors and nurses including the Director of the hospital.

After Israel declared its independence in May 1948 and the Arab armies invaded, the conflict became an international conflict subject to the 1904 Hague Regulations and the Geneva Conventions. The regular armies of Israel and the Arab States agreed to apply the Geneva Conventions.⁷⁷ While, undoubtedly, there were violations, however, there was an agreed orderly exchange of POWs after the war.

7.7.1 *Expulsion of Civilian Populations*

Expulsion of civilians is a violation of the laws of war except if required by military necessity.⁷⁸ It has been claimed that there was an Israeli policy of deliberate expulsion of Arab civilians and commentators base the argument on the internal operational plans of the Haganah titled Plan 'Dalet' that at the time was secret.⁷⁹ The salient section of Plan Dalet dealing with Arab villages was as follows:

- (a) The objective of this plan is to gain control of the areas of the Hebrew state and defend its borders. It also aims at gaining control of the areas of Jewish settlement and concentration which are located outside the borders [of the Jewish state in the Partition Plan] against regular, semi-regular, and small forces operating from bases outside or inside the state.
- (b) Mounting operations against enemy population centers located inside or near our defensive system in order to prevent them from being used as bases by an active armed force. These operations can be divided into the following categories:

⁷⁷ Luis Lema, 'Quand le CICR sécurisait Jérusalem',

www.icrc.org/en/doc/resources/documents/article/other/5sthe6.htm.

⁷⁸ Telford Taylor, 'Charter of the International Military Tribunal' in *Nuremberg Trials: War Crimes and International Law* (1949); International Conciliation April 1949, No. 450, Appendix Article 6, pp. 238–239. Statute of the International Criminal Court, Article 8(2) (a)(vii), (e)(viii).

⁷⁹ See Walid Khalidi, 'Plan Dalet: Master Plan for the Conquest of Palestine', *Journal of Palestine Studies* 18, no. 1, Special Issue: Palestine 1948 (Autumn 1988), pp. 4–33. The Plan was titled 'Dalet', the fourth letter of the Hebrew alphabet, as it was the fourth version of the plan.

- (c) Destruction of villages (setting fire to, blowing up, and planting mines in the debris), especially those population centers which are difficult to control continuously.
 - (d) Mounting search and control operations according to the following guidelines: encirclement of the village and conducting a search inside it. In the event of resistance, the armed force must be destroyed and the population must be expelled outside the borders of the state.
 - (e) The villages which are emptied in the manner described above must be included in the fixed defensive system and must be fortified as necessary.
 - (f) In the absence of resistance, garrison troops will enter the village and take up positions in it or in locations which enable complete tactical control. The officer in command of the unit will confiscate all weapons, wireless devices, and motor vehicles in the village. In addition, he will detain all politically suspect individuals. After consultation with the [Jewish] political authorities, bodies will be appointed consisting of people from the village to administer the internal affairs of the village. In every region, a [Jewish] person will be appointed to be responsible for arranging the political and administrative affairs of all [Arab] villages and population centers which are occupied within that region.
- (2) Occupation and control of Arab villages which constitute a serious obstruction on any of the main transportation arteries. Operations against these villages will be carried out according to the specifications given under the item pertaining to the searching of villages.⁸⁰

Rose writes, 'there is no convincing evidence of a Zionist plot to ethically cleanse, or transfer, the Palestinians from their homeland, as has been argued by some'.⁸¹ Morris also reached the conclusion that there was no general policy of expelling Arab civilians,⁸² Morris writes in regard to Plan Dalet that 'most Arabs fled before and during battle, before the Israeli troops reached their homes'.⁸³ During the initial stages of the war, the principal thrust of attacks by Arab villagers had been on the roads connecting Jewish towns and villages. This is reflected in the Haganah directive to act against 'Arab villages which constitute a serious

⁸⁰ Ibid., pp. 4–33.

⁸¹ Rose, *A Senseless Squalid War*, p. 212.

⁸² Benny Morris, *1948: A History of the First Arab-Israeli War* (2008).

⁸³ Benny Morris, *The Birth of the Palestinian Refugee Problem Revisited* (2004), p. 592.

obstruction on any of the main transportation arteries'. The population of Arab villages that resisted with armed force were expelled as well as those hostile Arab villages situated on major roads where their presence threatened Jewish travel. Morris writes regarding Plan Dalet, 'the battle against the militias and foreign irregulars had first to be won if there was to be a chance of defeating the invading armies. To win the battle of the roads, The Haganah had to pacify the villages and towns that dominated them and served as bases of belligerency'.⁸⁴ The Arab inhabitants of the town of Ramla straddling the Jerusalem Tel-Aviv highway and Lod adjacent to Lydda international airport were expelled. However, some 150,000 Arabs remained in territory held by Israel including even villages on important highways where the population had not taken action against Israel, such as the Arab villages of Abu Ghosh which straddles the Jerusalem–Tel Aviv highway and the village of Faradis on the Haifa–Tel Aviv highway.

Where the Arab armies captured Jewish villages,⁸⁵ all the inhabitants either fled or were expelled. The Trans-Jordanian Arab Legion expelled all the Jewish inhabitants of the Old City of Jerusalem. There is no record of a claim that this was done for reasons of military necessity.

7.8 The Role of the United Nations in the 1948 War

The UN has traditionally seen itself as having a role in Palestinian affairs. From the beginning of the 1947–1948 conflict, the UN Security Council issued a number of resolutions calling upon the parties to the conflict to cease the use of violence, to refrain from obtaining armaments and to reach cease fire and truce arrangements.⁸⁶ In May 1948, the UN General Assembly appointed a mediator whose task, *inter alia*, was to 'promote a peaceful adjustment of the future situation of Palestine'.⁸⁷ Count Folke Bernadotte of Sweden was the chosen mediator. In July 1948, the Security

⁸⁴ *Ibid.*, p. 163.

⁸⁵ Amongst them, the Jewish villages of Gush Etzion, Yad Mordechai, Mishmar Hayarden, Ramat Rahel, Bet Haarava, Har Tuv, Neve Yaakov, Atarot, Shaar Hagolan.

⁸⁶ UN Security Council Resolutions 43, S/714I, 1 April 1948; Resolution 46, S/723, 17 April 1948; Resolution 48, S/727, 23 April 1948 appointing a Truce Commission; Resolution 49, S/773, 22 May 1948; Resolution 50, S/801, 29 May 1948.

⁸⁷ UN General Assembly Resolution 186 (S-2) Appointment and terms of reference of a United Nations Mediator in Palestine, A/RES/186 (S-2) 14 May 1948.

Council adopted a resolution under Chapter VII of the Charter that called for a permanent truce 'until a peaceful adjustment of the future situation in Palestine is reached'. The Resolution stated that Israel had accepted the 'prolongation of the truce' but that the States members of the Arab League rejected it.⁸⁸ The mediator sent a report to the UN General Assembly which included his recommendations that

the frontiers between the Arab and Jewish territories, in the absence of agreement between Arabs and Jews, should be established by the United Nations. Inclusion of the whole or part of the Negeb [*sic*] in Arab territory. The City of Jerusalem, which should be understood as covering the area defined in the resolution of the General Assembly of 29 November, should be treated separately and should be placed under effective United Nations control with maximum feasible local autonomy for its Arab and Jewish communities.⁸⁹ The right of these refugees to return to their homes at the earliest practical date should be established. The right of the Arab refugees to return to their homes in Jewish-controlled territory at the earliest possible date should be affirmed by the United Nations.⁹⁰

Soon after submitting his report to the UN, on 17 September 1948, Bernadotte was assassinated in Jerusalem by members of the Jewish Lehi group. The Israeli government condemned the assassination, disbanded the Lehi group and arrested many of its members; however, nobody was ever tried for the assassination. Bernadotte's successor, Ralph Bunche, later played a key role in helping the parties negotiate armistice agreements but did not attempt to make suggestions for a political settlement. In November 1948, the Security Council adopted a resolution that called upon the parties to negotiate an Armistice Agreement that would include 'the delineation of permanent armistice demarcation lines beyond which the armed forces of the respective parties shall not move'.⁹¹

⁸⁸ UN Security Council Resolution 54 (1948) 15 July 1948, UN Doc. S/902.

⁸⁹ The mediator's earlier recommendation of 28 June 1948 had been for the 'inclusion of the City of Jerusalem in Arab territory, with municipal autonomy for the Jewish community and special arrangements for the protection of the Holy Places'. Annex to the Report.

⁹⁰ Progress Report of the United Nations Mediator on Palestine Submitted to The Secretary-General for Transmission to the Members of the United Nations, 16 September 1948, in pursuance of paragraph 2, part II, of Resolution 186 (S-2) of the General Assembly of 14 May 1948 GAOR: Third Session Supplement, No. 11 (A/648).

⁹¹ UN Security Council Resolution 62, UN Doc. S/RES/62 (1948), S/1080, 16 November 1948.

7.9 The Situation on the Ground at the End of the Fighting

At the end of the fighting, Israel held all the areas designated for the Jewish State in accordance with the 1947 Partition plan, in addition some territories that had been allocated to the proposed Arab State. Israel also held Western Jerusalem that was supposed to form part of the corpus separatum in the UN Partition Plan and a narrow corridor of land connecting Jerusalem to the rest of Israeli held territory.

The Egyptians maintained control of the Gaza Strip, territory that had been designated in the Partition Plan as part of the Arab Palestinian State. The Jordanian Arab Legion maintained control of the West Bank, territory that had been designated in the UN Partition Plan as part of the Arab Palestinian State. The Arab Legion held East Jerusalem including the Old City and the Jewish Quarter of the Old City, which was supposed to form part of the *corpus separatum* in the UN Partition Plan. The Lebanese army had made limited incursions and was pushed back to the Mandated Palestine–Lebanon border. The Syrian army managed to hold on to some territory west of the Mandated Palestine–Syria border. Israel agreed to let the Arab Legion take over the Iraqi army's positions in the north of the West Bank. This was done as part of an agreement between Jordan's King Abdullah and Israel that allowed Israel to take Wadi Ara and the Triangle in exchange for allowing the Arab Legion to retain the area in the north of the West Bank that was vacated by the Iraqi army.⁹²

Israel had suffered heavy casualties including some 6,000 killed and 22,000 wounded out of a total population of 600,000. Palestinian losses were harder to estimate, but Palestinian sources claimed that as many as 12,000 died out of a total population of just over one million.⁹³ The 1948 War led to the Arab Refugee problem in which some 700,000 Arabs fled or were expelled from the area of the new State of Israel.⁹⁴ The 1948 Arab-Israeli war ended with all parties exhausted and prepared to sign Armistice Agreements.

⁹² Elad Ben-Dror, *Ralph Bunche and the Arab-Israeli Conflict: Mediation and the UN, 1947–1949* (2016), p. 203.

⁹³ See Morris, *1948: A History of the First Arab-Israeli War*, p. 406. For population statistics at the end of the mandate, see Supplement to the Survey of Palestine, Notes Compiled for the Information of the United Nations Special Committee on Palestine (June 1947), p. 10.

⁹⁴ See Chapter 9.

7.10 The Palestine Conciliation Commission

The UN Charter refers to the possibility of attempting to settle international disputes by conciliation.⁹⁵ Merrill writes, 'all conciliation commissions have the same functions: to investigate the dispute and to suggest the terms of a possible settlement'.⁹⁶ The International Law Institute definition is that the function of a commission of conciliation, set up by the parties to a dispute, is to attempt 'to define the terms of a settlement susceptible of being accepted by them'.⁹⁷

The Palestine Conciliation Commission (PCC) was set up by the UN General Assembly in December 1948.⁹⁸ It was composed of representatives from France, Turkey and the United States. Among its tasks was to 'take steps to assist the Government and authorities concerned to achieve a final settlement of all questions outstanding between them'.⁹⁹ Unlike classic conciliation commissions, the PCC was appointed by a UN General Assembly resolution and not by the parties. Furthermore, the UN General Assembly, in the same resolution that established the conciliation commission, also laid out the views of the Assembly on a number of key issues including return of refugees¹⁰⁰ and internationalisation of Jerusalem. The Arab States members of the UN voted against the Resolution, McDonald, the first US ambassador to Israel, who was present at the UN General Assembly meeting, comments that 'the Arab spokesmen refused to consider any resolution even implicitly recognizing the existence of Israel'.¹⁰¹ Israel, which was not a member of the UN at the time, expressed its objection to the Resolution. PCC policy was that it was bound by the views expressed in the Resolution of the General Assembly. The PCC convened a 1949 conference between Israel and the Arab states, in Lausanne. The PCC Report stated:

The attitude adopted by the Arab States during this series of visits was that they were not prepared to enter into general peace negotiations with Israel until the refugee question had been settled, at least in principle. The

⁹⁵ Article 33 of the UN Charter.

⁹⁶ J. G. Merrills, *International Dispute Settlement* (4th ed. 2005), p. 72.

⁹⁷ Article 1, 'Regulations on the Procedure of International Conciliation' adopted by the Institute of International Law. (1961) 49 (ii) *Annuaire*, pp. 385–391.

⁹⁸ UN General Assembly Resolution 94 (III). Palestine – Progress Report of the United Nations Mediator, UN Doc. A/RES/194 (III), 11 December 1948.

⁹⁹ *Ibid.*

¹⁰⁰ The issue of the Arab Refugees and UNGA Resolution 194 (iii) is discussed in Chapter 9.

¹⁰¹ James G. McDonald, *My Mission in Israel 1948–1951* (1951), p. 108.

Government of Israel, on the other hand, was not prepared to accept as a principle the injunction contained in paragraph 11[Dealing with the return of the refugees], and further, was not prepared to negotiate on any point separately and outside the framework of a general settlement.¹⁰²

The Arab States refused to meet directly with the Israeli representatives 'throughout the five months, representatives of Israel and the Arab States never met officially even once'.¹⁰³ The Arab States insisted that they negotiate as a single block, and Eytan comments that 'the appearance of the Arabs as a single party inevitably made them, individually and thus collectively, more intransigent'.¹⁰⁴ As a gesture, Israel agreed to unfreeze assets of Arab refugees held in Israel banks 'under this scheme, a total of \$10,000,000 was ultimately made available for payment and transfer to recipients in various Arab countries', and Israel also agreed to the return of up to one hundred thousand refugees. The Arab States refused Israel's offer to repatriate the hundred thousand.¹⁰⁵ On the territorial issue, the parties agreed to a protocol to which was attached a map of the 1947 Partition plan. The Israel delegation proposed that its frontiers with Egypt and the Lebanon should be those which had existed between the Mandated Territory of Palestine and these two countries respectively. With regard to Jordan, Israel proposed that the armistice lines should be taken as a basis for negotiations. 'The Arab delegations claimed on behalf of the Arabs all territories which under the Protocol were allotted to the Arabs and which were, under existing circumstances, under the authority of Israel, as well as the Negeb (*sic*) and Eastern Galilee.'¹⁰⁶ The PCC eventually ceased functioning without bringing the parties to any agreement.

7.11 Concluding Remarks

The 1948 war is regarded by Israel as its war of independence in which it managed to repel attacks by all the neighboring Arab States. The Arab

¹⁰² Chapter 1, paras. 3, 4, 16, 20; Chapter IV, para. 15 United Nations, General Progress Report and Supplementary Report of The United Nations Conciliation Commission for Palestine Covering the period from 11 December 1949 to 23 October 1950 A/1367/Rev. 1, 23 October 1950.

¹⁰³ Walter Eytan, *The First Ten Years* (1958), p. 54. Eytan, who headed the Israel delegation, writes that there were unofficial contacts.

¹⁰⁴ *Ibid.*, p. 52.

¹⁰⁵ *Ibid.*, pp. 56, 57.

¹⁰⁶ The Palestine Conciliation Commission, Third Progress Report of the UN Conciliation Commission for Palestine, UN Doc. A/927, 21 June 1949, paras. 25, 31, Annex.

population of Palestine regard the war as a catastrophe, *al Nakba*, that caused the exodus of some 700,000 Arabs from the areas held by Israel. As a result of the 1948 war, Israel occupied the Western Galilee and Beersheba, Jordan occupied the West Bank and Egypt occupied the Gaza strip, all territories allocated to the proposed Arab State. Israel and Jordan divided Jerusalem between them.

International law issues arising from the war include complaints from both sides of deliberate killing of civilians, clearly a violation of the laws of war. Expulsion of civilians, where it occurred, was justified by Israel as an act of legal military necessity; this is disputed by the Palestinians who viewed it as an illegal act.¹⁰⁷ A smaller number of Jewish civilians were expelled from areas held by Arab forces. A legal issue in dispute is whether the objection of the Arabs of Palestine to partition allowed them to use force and whether the intervention of the neighbouring Arab States was a legitimate exercise of the right of collective self-defence. Hostilities were terminated by armistice agreements.

¹⁰⁷ See Kattan, *From Coexistence to Conquest*, p. 173.

1949 Armistice Agreements

8.1 Introduction

On 16 November 1948, the UN Security Council, acting under Chapter VII of the UN Charter, called upon the parties to the 1948 war to establish an armistice ‘in all sectors of Palestine’.¹ The negotiations with Egypt and Jordan opened at the island of Rhodes in January 1949 and an Armistice Agreement with Egypt was signed on 24 February 1949,² and with Jordan on 3 April 1949.³ The agreement with Lebanon was signed on 1 March 1949,⁴ and with Syria on 29 July 1949.⁵ The negotiations were conducted separately between Israel and each of the Arab states concerned. Iraq, which had participated in the 1948 war, did not sign an Armistice Agreement with Israel but informed the UN mediator that ‘the terms of armistice which will be agreed upon by the Arab States neighbours of Palestine namely Egypt, Transjordan, Syria and Lebanon will be regarded as acceptable to my Government’.⁶ The Armistice Agreement between Egypt and Israel served as a model for the other agreements, although there are differences between the various agreements.⁷ Dr Ralph

¹ UN Doc. S/1070. The Resolution was adopted on the basis of a previous Resolution of 15 July 1948 UN Doc. S/902 which had been adopted explicitly under Chapter VII of the UN Charter.

² Egyptian–Israeli General Armistice Agreement, signed at Rhodes, on 24 February 1949, 252 UNTS 1949.

³ Israel and Jordan General Armistice Agreement, signed at Rhodes, on 3 April 1949, 304 UNTS 1949.

⁴ General Armistice Agreement between Lebanon and Israel, signed at Ras en Naqoura, on 23 March 1949, 42 UNTS 287.

⁵ Israel Syria General Armistice Agreement, signed at Hill 232, near Mahanayim, on 20 July 1949, 328 UNTS 1949.

⁶ UN Doc. S/1265, 24 February 1949.

⁷ Shabtai Rosenne, *Israel’s Armistice Agreements with the Arab States: A Juridical Interpretation* by Shabtai Rosenne, Legal Advisor to the Israel Ministry of Foreign Affairs (1951), p. 32.

Bunche, the UN Mediator, was subsequently awarded the Nobel Peace Prize for his role in mediating the Armistice Agreements.

8.2 Definition of Armistice Agreements

In his seminal work on the laws of war, Hersch Lauterpacht defines Armistice Agreements as ‘agreements between belligerent forces for a temporary cessation of hostilities’.⁸ As regards a ‘general armistice’, Lauterpacht remarks that such agreements are ‘of vital political importance’ and should be concluded by the government themselves or their commanders in chief.⁹

Lauterpacht adds, ‘the condition of war remains between the belligerents themselves’.¹⁰ Shabtai Rosenne, however, wrote that the UN Security Council refrained from recognising ‘the existence of a formal state of war between the parties’.¹¹ The modern US Law of War Manual states, ‘war as a legal state of hostilities between parties may continue, despite the conclusion of an Armistice Agreement. In some cases, Armistice Agreements may be intended to be a prelude to peace treaties. In some cases, armistice agreements may persist for a long time’.¹² Armistice agreements are not subject to ratification, a factor that would seem to point to their temporary military nature. Dinstein points out, however, that as opposed to the classical definition, ‘a modern armistice completely divests the Parties of the right to renew military operations and does not brook resumption of hostilities as an option’.¹³ In accordance with international law, international boundaries survive the demise of the treaties that established them, this is not, however, true for Armistice Agreements. Armistice demarcation lines are no longer valid if the Armistice Agreement that established them ceases to be in force.

⁸ Hersch Lauterpacht, ed., *Oppenheim’s International Law. Vol. II: Disputes, War and Neutrality* (7th ed. 1952), p. 546.

⁹ *Ibid.*, p. 550.

¹⁰ *Ibid.*, p. 547.

¹¹ Rosenne, *Israel’s Armistice Agreements with the Arab States*, p. 26.

¹² US Department of Defense, Law of War Manual, Office of General Counsel, Department of Defense (June 2015), p. 847.

¹³ Yoram Dinstein, *War, Aggression and Self-Defence* (6th ed. 2017), p. 44.

8.3 The Substance of the Armistice Agreements

Although there are differences between the four Armistice Agreements, there are a number of common elements. The agreements prohibit any 'aggressive action by the armed forces'.¹⁴ The armistice is described as 'an indispensable step towards the liquidation of armed conflict and the restoration of peace in Palestine'.¹⁵ The agreement declares that provisions of the agreements were 'dictated exclusively by military considerations' and that the agreement should not in any way 'prejudice the rights claims and positions of either party in the ultimate settlement of the Palestine question'.¹⁶

Subsequent to the agreements, a dispute arose between Egypt and Israel as to whether it was legal for Egypt to continue to exercise belligerent actions such as boycott and barring access to the Suez Canal. Israel claimed that 'there is a striking similarity between a modern armistice agreement and the "preliminaries of peace" of former times',¹⁷ and 'our Armistice agreements forbid absolutely the exercise of all belligerent rights'.¹⁸ Gross writes, 'the commission of hostile or warlike acts has been rendered illegal by the Armistice'.¹⁹ The 1951 UN Security Council Resolution dealing with passage through the Suez Canal stated, 'considering that since the armistice regime, which has been in existence for nearly two and a half years, is of a permanent character, neither party can reasonably assert that it is actively a belligerent'.²⁰ The United States position was set out by Cabot Lodge in 1957, after the Suez Crisis 'there is no basis for either party to the Armistice Agreement to assert or exercise any belligerent rights'.²¹ The Egyptian position, however, was that the state of war continued in spite of the General Armistice and 'that Egypt

¹⁴ Common Article I(2) of the Armistice Agreements.

¹⁵ Common Article I(4) of the Armistice Agreements between Israel, Egypt Jordan and Lebanon. Article I(1) of the Armistice Agreement between Israel and Syria.

¹⁶ Article IV(3) of the Israel-Egypt Armistice Agreement, Common Article II(2) of the Israel Lebanon, Israel Jordan and Israel Syria Armistice Agreements, with slight variations.

¹⁷ Rosenne, *Israel's Armistice Agreements with the Arab States*, p. 27.

¹⁸ *Ibid.*, p. 45.

¹⁹ Leo Gross, 'Passage through the Suez Canal of Israel-Bound Cargo and Israel Ships', quoted from John Norton Moore, ed., *The Arab-Israeli Conflict. Volume I: Readings* (1974), p. 869.

²⁰ UN Security Council Resolution of 1 September 1951, UN Doc. S/2322 (1951).

²¹ Statement by Henry Cabot Lodge, United States Representative to the UN General Assembly, 1 March 1957, 11 *UN General Assembly Official Records* 666th meeting (1957), pp. 1277-1278.

derived from this certain rights of belligerency'²² and that 'all acts of belligerency that were not expressly prohibited by the agreements were still allowed (e.g., the closing of the Strait of Tiran and of the Suez Canal)'.²³

8.4 Termination of Armistice Agreements

All the Armistice Agreements had a final clause stating that the agreement should remain in force until 'a peaceful settlement between the parties is achieved'.²⁴ Lauterpacht writes, "where an armistice has been concluded for an indefinite period, notice [of a serious violation] may be given at any time and hostilities commenced at once after notification".²⁵ The modern US Law of War Manual states that 'if the duration of an armistice is not prescribed, belligerents may resume operations at any time, provided always that the enemy is warned within the time agreed upon, in accordance with the terms of the armistice'.²⁶ 'Any serious violation of the armistice by one of the parties gives an opposing belligerent the right of denouncing the armistice, and even, in cases of urgency, of recommencing hostilities immediately'.²⁷

Israel's position was that the Armistice Agreement with Egypt terminated in 1956 and at the latest with the signing of the 1979 Egypt–Israel Peace Treaty. As regards Syria, Israel's position was that the Armistice Agreement terminated in 1967 with the commencement of the Six Days War and at the latest with the signing of the 1974 Israel–Syria Separation of Forces Agreement.²⁸ As regards Jordan, both parties were of the view that the Armistice Agreement terminated with the Six Days War²⁹ and,

²² Gross, 'Passage through the Suez Canal of Israel-Bound cargo and Israel Ships', p. 864.

²³ Ruth Lapidoth, 'The Arab–Israel Conflict: Legal Aspects' in Israel Stockman-Shomron, ed. *Israel the Middle East and the Great Powers* (1984), p. 194. Lapidoth attributes this position generally to 'the Arab States'.

²⁴ For example, Article XII of the Egypt–Israel Armistice Agreement.

²⁵ Lauterpacht, *Oppenheim's International Law*, p. 556.

²⁶ US Department of Defense, Law of War Manual, Office of General Counsel, Department of Defense (June 2015), p. 850.

²⁷ *Ibid.*, p. 856.

²⁸ 1974 Separation of Forces between Israel and Syria, peacemaker.un.org/sites/peacemaker.un.org/files/IL%20SY_740531_Separation%20of%20Forces%20between%20Israel%20and%20Syria.pdf.

²⁹ The General Armistice agreement of 1947 [*sic.*] Between Israel and Jordan had been dissolved by the resumption of hostilities in June 1967. Hassan Bin Talal, Crown Prince of Jordan, *Palestinian Self-Determination: A Study of the West Bank and Gaza Strip* (1981), p. 67.

at the latest, with the signing of the 1994 Peace Treaty. It is not clear whether the Armistice Agreement with Lebanon is still in force.

8.5 The Armistice Demarcation Lines

All the Armistice agreements set out Armistice Demarcation Lines. (ADL). The agreements with Egypt stipulated that ‘the basic purpose of the Armistice Demarcation Line is to delineate the line beyond which the armed forces of the respective Parties shall not move’.³⁰ Customary international law stipulates that ‘every State has the duty to refrain from the threat or use of force to violate international lines of demarcation, such as armistice lines’.³¹ The ADLs were marked in Green on the maps and hence they are colloquially referred to as ‘The Green Line’. They are also commonly known as the lines of 4 June 1967.³² With two exceptions, that of the Gaza Strip and that of the West Bank, these demarcation lines followed closely the boundaries of Mandatory Palestine.³³ Although not stated expressly, this referral to the previous international boundaries was an application of the international law principle of *uti possidetis*, whereby new States inherit previous boundaries, unless there is agreement with neighbouring States to change them.³⁴ Kontorovich advances the theory that ‘under the *uti possidetis* principle, then, Israel’s borders at the moment of independence are quite clear: the borders of Mandatory Palestine. Those borders include all of Jerusalem, and Judea and Samaria as well. The UN, in its thousands of resolutions to the contrary, flagrantly ignores that principle’.³⁵ The Israeli government has not endorsed Kontorovich’s theory which would include all of the West Bank in Israeli territory. Israel has not declared itself to be the successor

³⁰ Article V(3) Egypt–Israel Armistice Agreement.

³¹ Declaration on Principles of International Law Concerning Friendly Relations and Cooperation Among States in Accordance with the Charter of the United Nations, UNGA Resolution 26/25 (XXV).

³² The 1967 ‘Six Day War’ commenced on 6 June 1967 and changed the demarcation line between Israel and all its neighbours except Lebanon.

³³ See map published by Palestine remembered.com www.palestineremembered.com/Acre/Maps/Story582.html.

³⁴ On the principle of *Uti Possidetis*, see Malcolm Shaw, *International Law* (9th ed. 2021), p. 448.

³⁵ Eugene Kontorovich, ‘The Many Incoherences and Hypocrisies of International Law on Jerusalem’, *Mosaic*, July 2019.

to the British Mandated Territory of Palestine.³⁶ This Israeli government position was affirmed in a number of Israeli court cases: 'the State of Israel is not the successor of the former Government'.³⁷ Furthermore, application of the theory might entail the obligation to grant Israeli citizenship to all of the population of the West Bank and to all Arab refugees who had resided in Mandatory Palestine.

How then should a border between Israel and a future Palestinian entity in the West Bank and Gaza be determined? The West Bank and Gaza had been part of Mandatory Palestine and hence there was no international boundary to follow. Where, as in the case of the West Bank and Gaza, there was no previous international boundary, armistice demarcation lines were demarcated on the basis of strategic considerations, the position of the opposing forces at the end of hostilities and an attempt to have a maximum of Jewish settlements in Israel and a maximum of Arab settlements under Arab control. A former commander in the UN Truce Supervision Organisation wrote, 'the Armistice lines had been hastily marked without thought of existing village boundaries or water rights'.³⁸ Prior to 1967, Israel sometimes claimed that 'the Armistice demarcation line can be regarded as equivalent to international frontiers'.³⁹ In the 1949 Lausanne meetings, Israel proposed that the armistice lines with Jordan should be taken as a basis for negotiations.⁴⁰ In 1951, Rosenne wrote that apart from the Egypt–Israel armistice demarcation line 'in the other Agreements the armistice demarcation line is equivalent to an international frontier'.⁴¹ Dinstein is also of the opinion that 'when a line of demarcation between States is sanctioned in such a way that it can be revised only by mutual consent (and not by force) it becomes a political or territorial border'.⁴² As the political geographer Prescott writes, the distinction between military demarcation lines and boundaries established by international peace

³⁶ Materials on Succession of States, UN Legislative Series, Observations by Israel, UN Doc. ST/LEG/SER.B/14, p. 38 (1967).

³⁷ See *Shimshon Palestine Portland Cement Factory v. Attorney-General* 1950 17 ILR 72, 74.

³⁸ E. H. Hutchinson, *Violent Truce: A Military Observer Looks at the Arab-Israeli Conflict 1951–1955* (1956), p. xxv.

³⁹ Rosenne, *Israel's Armistice Agreements with the Arab States*, p. 48.

⁴⁰ Progress Report of the UN Conciliation Commission for Palestine, 11 December 1949–23 October 1950, UN Doc. A/1367/Rev.1, 5 UN GAOR, Supp. 18 (2 September 1950 Report), para. 16, <https://unispal.un.org/DPA/DPR/unispal.nsf/0/93037E3B939746DE8525610200567883>.

⁴¹ Rosenne, *Israel's Armistice Agreements with the Arab States*, p. 48.

⁴² Dinstein, *War, Aggression and Self-Defence*, p. 48.

conferences after armed conflict are 'more nominal than real'.⁴³ The Egyptian–Israel agreement however explicitly determines 'the Armistice Demarcation Line is not to be construed in any sense as a political or territorial boundary'.⁴⁴ Dinstein, who believes in the permanent nature of the ADL, dismisses this clause as 'lip service'.⁴⁵ Rosenne explains the existence of this clause in the agreement with Egypt and not in the other agreements by reference to the status of the Gaza which had been previously part of Mandated Palestine and under the Armistice Agreement was to be under Egyptian control. The Israel–Jordan Armistice Agreement stipulates that the Armistice Demarcation Line is 'agreed upon by the Parties without prejudice to future territorial settlements or boundary lines or to claims of either Party relating thereto'.⁴⁶

Until the 1967 Six Day War, all the Arab States disputed the claim that the Armistice Demarcation Lines were permanent boundaries, presumably because of their reluctance to formally accept the legitimacy of Israel even within the 1949 Armistice demarcation lines. In May 1967, the Jordanian ambassador to the UN objected to the use of the term 'territorial integrity' in relation to Israel. His objection was based on his claim that the 1949 Armistice Agreement did not fix boundaries, it fixed a demarcation line. He said, 'I know of no territory; I know of no boundary; I know of a situation frozen by an Armistice Agreement'.⁴⁷ Neither Israel nor Jordan ever designated the ADL as their international border.⁴⁸ Despite its official status as being only an Armistice Demarcation Line, during the period 1948–1967, the demarcation line, however, served as the *de facto* international boundary between Israel and the Hashemite Kingdom of Jordan. There was a border crossing at

⁴³ J. R. V. Prescott, *Map of Mainland Asia by Treaty* (1975), p. 486.

⁴⁴ Article V(2) Egypt–Israel Armistice Agreement.

⁴⁵ Dinstein, *War, Aggression and Self-Defence*, p. 48.

⁴⁶ Israel–Jordan Armistice Agreement, Article VI(9).

⁴⁷ UN Doc. S/PV1345, para. 84, 31 May 1967.

⁴⁸ The only border defined by Israeli domestic legislation is the border of East Jerusalem, which was incorporated into Israel in the 1967 Law and Administration Ordinance (Amendment No. 11) Law 5727-1967; Municipal Ordinance (Amendment No.6) Law 5727-1967. The Area of Jurisdiction and Powers Ordinance 5708-1948, which designates where Israel law applies, was enacted prior to the Armistice Agreements. In 1982, Knesset member Michael Bar-Zohar presented a private member's bill that would have amended the Area of Jurisdiction and Powers Ordinance 5708-1948 by adding a reference to the ADL. No action was taken on this bill, the issue is referred to by Amnon Rubinstein and Barak Medina, *Israel Constitutional Law* (5th ed. 1996), vol. II, p. 1181 (in Hebrew).

the Mandelbaum Gate in Jerusalem serving mainly UN personnel, foreign diplomats and certain third-party nationals. Although the Line was never officially demarcated on the ground during this period, there were barbed wire fences and markers in some places, placed either unilaterally by Israel or as a result of unofficial Jordanian–Israeli understandings. Parts of the Line remained in dispute throughout this period.⁴⁹ From 1948 until 1967, Israel treated the ADL as limiting the area of Israel sovereign territory. When Israeli military administration was declared in 1967, the borders of the West Bank and Gaza were not delineated in an official public document. Although it ceased to be marked on official Israeli maps, the Green Line served to delimit the jurisdiction of the Israel Military Administration in the West Bank (Judea and Samaria) with two exceptions. The first exception is East Jerusalem, which was incorporated into Israel by legislation.⁵⁰ The second exception is the small former no-man’s area near Latrun, through which the modern Jerusalem–Tel Aviv highway runs and which was incorporated de facto by administrative action. In all other areas, the Green Line continued to serve as the line dividing sovereign Israeli territory from areas under Israeli Military Administration.

When Israeli courts have to decide whether a site adjacent to the West Bank is in Israel territory or not, they follow the British procedure of accepting a certificate from the foreign minister as conclusive. Such certificates, again with the exception of East Jerusalem, treated the former ADL with Jordan as delimiting Israel sovereign territory.⁵¹ The 1993–1995 Oslo Accords refer to the territory of the West Bank without defining the boundary between it and Israel nor is such a boundary marked on the maps attached to the agreements.⁵²

The present status of the Armistice Demarcation Line between Jordan and Israel was an issue in the ICJ *Wall Case*. In its decision to build the barrier, the Israeli government stated: ‘The fence, like the other obstacles, is a security measure. Its construction does not mark a national border or

⁴⁹ See Moshe Brawer, *Israel’s Boundaries, Past, Present and Future: A Study in Political Geography* (1988), p. 145 (in Hebrew).

⁵⁰ Law and Administration Ordinance (Amendment No. 11) Law 5727-1967; Municipal Ordinance (Amendment No. 6) Law 5727-1967; Basic Law: Jerusalem, Capital of Israel (1980).

⁵¹ See, for example, Israel High Court, Civil Appeal 2561/09 *Ismail Omri et al v. Israel Lands Authority*, decision of 21 January 2010.

⁵² Declaration of Principles on Interim Self-Government Arrangements, Israel–PLO, 15 September 1993.

any other border.⁵³ In its written statement to the ICJ setting out its procedural objections to the hearings,⁵⁴ Israel stated:

The question put to the Court refers to the 'Occupied Palestinian Territory'. The underlying assumption appears to be that the so-called 'Green Line' or Armistice Demarcation Line ('ADL') is the presumptive and immutable border of a putative Palestinian State. This, however, is to prejudice the outcome of a settlement between the parties in a manner that has never before been accepted by the UN, by the parties themselves, or by the sponsors of the Roadmap. The sponsors of the request seek the imprimatur of the Court merely by having the Court accept the validity of the question itself. It is not the formula of Security Council resolution 242 (1967). It is not the formula of the 1993 Declaration of Principles on Interim Self-Government Arrangements signed by Israel and the PLO, which defers discussions on borders to the permanent status negotiations.⁵⁵

Palestine's written statement to the ICJ on the issue was as follows:

It has never been disputed that Israel in 1949 did not include areas of the West Bank, or East Jerusalem, or the Gaza Strip. That remains the situation. Nothing that has happened since 1949 has given any international recognition to any extension of Israeli territory to cover any of these areas. It results that Israel is in occupation of all the areas beyond the ceasefire line of 1949 (the so-called Green Line).⁵⁶

In their written statements to the ICJ, most states chose to ignore the question of the status of the Green Line. Some, such as Saudi Arabia, made non-committal statements as, 'In 1949 an armistice was declared, and a line formed, called the Green Line, separating Israel from Palestinian land. The Green Line was much less favourable to Palestine than what had been envisioned by the United Nations in 1947'.⁵⁷ The

⁵³ Quoted from HCJ 2056/04, paragraph 4.

⁵⁴ ICJ Opinion, paragraph 57. 'The Court notes in particular that Israel's Written Statement, although limited to issues of jurisdiction and judicial propriety, contained observations on other matters, including Israel's concerns in terms of security, and was accompanied by corresponding annexes.'

⁵⁵ Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory (Request for an Advisory Opinion), Written Statement of the Government of Israel on Jurisdiction and Propriety, 30 January 2004, paragraph 2.9.

⁵⁶ Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory (Request for an Advisory Opinion), Written Statement Submitted by Palestine, 30 January 2004, pp. 168–169, paras. 373 and 374.

⁵⁷ Written Statement of Saudi Arabia, 30 January 2004, paragraph 9. www.icj-cij.org/en/case/131/written-proceedings.

Written Statement to the ICJ of the League of Arab States refers to ‘the Armistice line that now marks the boundary between Palestine and Israel’.⁵⁸ The statement goes on, however, to observe, ‘the purpose of the armistice was not to establish or recognize any territorial, custodial or other rights, claims or interests of any party’. The carefully drafted Jordanian reference to the issue was as follows: ‘That agreement [The 1949 Armistice] following the cease-fire of June 1949 established a cease-fire line. Although that line was not initially conceived as an international boundary, it served in practice, confirmed by the passage of time, to circumscribe the limits of Israel’s land territory in the major part of the former mandated territory of Palestine.’⁵⁹

During the oral hearings, there was very little reference to the status of the Green Line. Professor James Crawford, on behalf of Palestine, informed the Court that the Wall was being built on Occupied Palestinian Territory but, ‘you are not asked to determine the boundaries of a future Palestinian state’.⁶⁰ Professor Michael Bothe, on behalf of the Arab League, stated, ‘Palestine is not a kind of no-man’s land subject to appropriation by Israel. It is a self-determination unit in the borders drawn by the armistice lines of 1949’.⁶¹ Sir Arthur Watts, on behalf of Jordan, stated:

The starting point has to be the line resulting from the 1949 Jordan–Israel Armistice Agreement, the ‘Green Line’. Two things about it are not in the slightest doubt. First, the land lying generally to the east of the Green Line is *not* part of Israel; second, ever since the 1967 war, those lands have been overwhelmingly regarded as ‘occupied territories’ in which Israel has only had the limited authority of an ‘Occupying Power’. It is in those Occupied Territories that the Wall is being built.⁶²

It is, in origin, the Armistice Demarcation Line, laid down in the Jordan–Israel General Armistice Agreement. But it was given additional significance by Security Council resolution 242 of 1967, which affirmed, unanimously, the principle of Israel’s withdrawal of its armed forces ‘from territories occupied in the recent conflict’ – and that meant, and could

⁵⁸ Written Statement of the League of Arab States, January 2004, paragraphs 1.2, 5.15, www.icj-cij.org/en/case/131/written-proceedings.

⁵⁹ Written statement of the Hashemite Kingdom of Jordan, 30 January 2004, para. 2.5, www.icj-cij.org/en/case/131/written-proceedings.

⁶⁰ Oral Statements, Verbatim Record /2004/01, www.icj-cij.org/en/case/131/oral-proceedings.

⁶¹ Ibid.

⁶² Ibid., paragraph 1.

only mean, territories on the non-Israeli side of the Green Line. Thus, the Green Line is the starting line from which is measured the extent of Israel's occupation of non-Israeli territory; originating in 1949 as an armistice line, it became in 1967 the line to the Israeli side of which Israel had to withdraw its forces, and on the non-Israeli side of which territory was 'occupied' by Israel. The terms of the General Assembly's request for an advisory opinion reflect that consistent United Nations position and involves no implication that the Green Line is to be a permanent frontier.⁶³

Professor Jean Salmon, on behalf of Palestine, stated:

Resolution 242 (1967) providing for the withdrawal from territories occupied in the then-recent conflict. Thus was defined the geographical expanse in which the Palestinian people enjoys the right to self-determination. This area consists of the territories occupied by Israel since 1967, which were delimited by the demarcation line arising under the General Armistice Agreement between the Hashemite Jordan Kingdom and Israel, and its application. This is what is commonly referred to as the 'Green Line'.⁶⁴

In its advisory opinion, the Court refrained from affirming the Green Line as a permanent boundary. However, the Opinion makes numerous references to the Green Line, stating *inter alia* that 'the Palestinian territories which, before the conflict, lay to the east of the Green Line'.⁶⁵ 'Some parts of the complex are being built, or are planned to be built, on the territory of Israel itself.'⁶⁶ and the Court refers to 'the Israeli side of the Green Line'.⁶⁷ The Court thus seems to be clearly using the Green Line to distinguish between the territories it considers 'Occupied Palestinian Territories' and 'Israel itself'. Judge Buergenthal, in his dissenting opinion, is perhaps more explicit as regards recognition of Israel sovereignty East of the Green Line. Buergenthal gave his opinion: 'For to the extent that the Green Line is accepted by the Court as delimiting the dividing line between Israel and the Occupied Palestinian Territory, to that extent the territory from which the attacks originate is not part of Israel proper.'⁶⁸ Judge Al-Khasawneh, in his Separate

⁶³ Ibid., paragraph 35 (emphasis in original).

⁶⁴ Ibid., paragraph 1.

⁶⁵ ICJ Opinion, paragraph 101, www.icj-cij.org/files/case-related/131/131-20040709-ADV-01-00-EN.pdf.

⁶⁶ Ibid., paragraph 67.

⁶⁷ Ibid., paragraph 83.

⁶⁸ ICJ Opinion Dissenting Opinion of Judge Buergenthal, paragraph 6. www.icj-cij.org/files/case-related/131/131-20040709-ADV-01-00-EN.pdf.

Opinion, may be raising conditionality to such recognition when he writes:

There is no doubt that the Green Line was initially no more than an armistice line. Whatever the true significance of that line today, two facts are indisputable:

- (1) The Green Line is the starting line from which is measured the extent of Israel's occupation of non-Israeli territory. There is no implication that the Green Line is to be a permanent frontier.
- (2) Attempts at denigrating the significance of the Green Line would in the nature of things work both ways. Israel cannot shed doubts upon the title of others without expecting its own title and the territorial expanse of that title beyond the partition resolution not to be called into question.⁶⁹

Dinstein observes that the ICJ took it for granted that the Green Line 'is the boundary between Israel and the West Bank'.⁷⁰ Some States have accorded recognition to the 'State of Palestine' on the basis of the borders of the 1949 ADL.⁷¹ Other States are of the belief that the ADL should serve as the basis for negotiations on an agreed boundary.⁷² Palestine's application for UN membership, and the UN General Assembly Resolution conferring observer State status both used the slightly ambiguous phrase 'on the basis' of the 4 June 1967 borders.⁷³

The conclusion would appear to be that the boundary between Israel and a future Palestinian State or entity can only be negotiated by the

⁶⁹ Separate Opinion, Judge Al-Khasawneh, paragraphs 10, 11. www.icj-cij.org/files/case-related/131/131-20040709-ADV-01-00-EN.pdf.

⁷⁰ Yoram Dinstein, 'Armistice' in *Max Planck Encyclopedia of Public International Law* (September 2015), para. 14.

⁷¹ Argentina, Brazil and Uruguay recognised the State of Palestine on its pre-1967 borders. See 'Argentina Recognizes Palestine Pre-1967 Borders', *Reuters*, 7 December 2010, www.reuters.com/article/us-argentina-palestine/argentina-recognizes-palestine-pre-1967-borders-idUSTRE6B61A720101207.

⁷² See Remarks by President Obama on the Middle East and North Africa, 19 May 2011, <https://obamawhitehouse.archives.gov/the-press-office/2011/05/19/remarks-president-middle-east-and-north-africa>. See also the recognition statement by the Swedish government, which referred to 'mutually recognized borders, with the 1967 borders as the basis and Jerusalem as the capital of two states, and where any land swaps will only be accepted if negotiated by the parties'. See Margot Wallström, 'Sweden Today Decides to Recognise the State of Palestine', *Dagens Nyheter*, 30 October 2014, at www.dn.se/debatt/sweden-today-decides-to-recognise-the-state-of-palestine/.

⁷³ See Application of Palestine for admission to membership in the United Nations, UN Doc. A/66/371, 23 September 2011. UN General Assembly Resolution 67/19, 29 November 2012, para. 4.

parties themselves. During such negotiations, the long existing *de facto* line based on the 1949 ADL will be a factor.

8.6 The Work of the Mixed Armistice Commissions

All the Armistice Agreements included clauses that appointed mixed armistice commissions to observe and supervise the implementation of the agreements. The commissions were composed of a military representative of the two parties and a UN officer as chairman. In the absence of unanimity, decisions were taken by vote. The casting vote was nearly always that of the chairman. The commissions heard complaints from the parties and then voted on the basis of the complaint and the evidence they had as to whether a party had violated the armistice. The system was not a success. General Burns, the former chief of staff of the UN Truce Supervision Organisation (UNTSO) writes:

The armistice agreements were drawn up envisaging that peace would be made after not too long a period of negotiations between the parties. When this did not happen, and hostility hardened as time went on and positions became less and less reconcilable, there was a break-down in many respects of the armistice machinery which had been set up on the assumption that there would be mutual goodwill and that the parties would move in the direction of peace.⁷⁴

Burns adds, on Israel's retaliation policy:

When Israeli troops blow up a police-post, killing and wounding many of the garrison, and the Arabs complained of it to the Security Council, the Council had to condemn the Israeli's action. On the other hand, when the Israelis tried to justify their retaliatory action, they could not prove that the Arab governments had ordered the marauders to perpetrate the outrage in Israel.⁷⁵

8.7 Demilitarised Zones

The Armistice Agreements with Egypt, Jordan and Syria provided that certain areas along the border be demilitarised zones (DMZ). These zones proved to be a continuous source of contention, particularly on the border with Syria. During the 1948 war, Syrian forces had occupied

⁷⁴ E. L. M. Burns, *Between Arab and Israeli* (1963), p. 28.

⁷⁵ *Ibid.*, p. 63.

areas along the Jordan River and the shore of the Sea of Galilee that had been part of Mandatory Palestine. As part of the Armistice Agreement, those areas were to be demilitarised zones. In addition, the Armistice Agreement contained stipulations about gradual restoration of civilian life in these zones, these stipulations caused controversy as to which party should administer civilian life. The Chief of the United Nations Treaty Supervision Organisation (UNTSO) presented a memorandum in which he expressed the view that 'neither party to the Armistice Agreement therefore enjoys rights of sovereignty within the demilitarized zone'.⁷⁶ The initial UN proposal was that 'the question of sovereignty be left open',⁷⁷ the Israel position was that the demilitarised zones, west of the old international boundary, 'would belong to Israel'. 'Israel law would apply and the only limitation would be a military limitation'.⁷⁸ 'The Syrian view was that the demilitarized zone would not belong to either Israel or Syria and that the United Nations would assume considerable power of control and administration including policing'.⁷⁹ The UN mediator resolved this issue by a compromise stating that 'civil administration, including policing, will be on a local basis, without raising general questions of administration, jurisdiction, citizenship and sovereignty'.⁸⁰ Shalev comments, that on this issue, Bunche, the UN mediator 'proposed formulations that were both highly impractical and ambivalently phrased. Thus he was silent on how civilian life would be conducted'.⁸¹ In 1951, the Israel minister for Foreign Affairs stated that it was not within the mandate of UNTSO to give legal opinions on international law and the DMZ was Israel sovereign territory subject to restrictions only as regards military matters.⁸² The chairman of the Syrian delegation to the UN responded, without going into the question of sovereignty, that it was within the mandate of UNTSO to ensure that Syrian civilians can return to the zone and continue with their normal civilian activities.⁸³ 'In

⁷⁶ Memorandum by General Riley, Chief of Staff of UNTSO, 7 March 1951, UN Doc. S/2049, part IV.

⁷⁷ Aryeh Shalev, *The Israel-Syria Armistice Regime 1949-1955* (1993), p. 40.

⁷⁸ N. Bar-Yaakov, *Israel-Syrian Armistice: Problems of Implementation, 1949-1966* (1967), p. 53.

⁷⁹ Ibid.

⁸⁰ Quoted in UN Security Council Resolution S/RES/93 (1951) – S/2157 18 May 1951.

⁸¹ Shalev, *The Israel-Syria Armistice Regime 1949-1955*, p. 44.

⁸² Letter from Israel Foreign Minister Abba Eban, 16 April 1951, UN Doc. S/2089.

⁸³ Letter of Faris el-Khouri Chairman of Syrian Delegation to the UN addressed to the UN Security Council, 26 April 1951, UN Doc. S/2105.

addition, on the Syrian border, Israel claimed that the Mixed Armistice Commission as such had no jurisdiction to deal with issues relating to the DMZ's and only the UN Chairman had authority on the issue.⁸⁴ As a result of the confusion caused as to the status of DMZs, Israel policy in all agreements subsequent to the 1949 Armistice Agreements was to have areas designated as areas of limited forces but clearly under the sovereignty of one of the parties. The subsequent 1974 Israel–Syria Separation of Forces Agreement did not set up demilitarised zones but rather 'areas of limitation in armament and forces'⁸⁵ and the 1979 Egypt–Israel Peace Treaty set up 'limited force zones'.⁸⁶

8.8 Israeli Water Projects and the Armistice Agreement

In 1951, an Israeli project to drain the Hula swamps entailed work in the demilitarised zone on the Israel–Syria ADL. The owners of the land were Arabs residing in Syria, so one of the issues was the willingness of the owners to receive the compensation that Israel offered. Syria claimed that the work would give Israel a military advantage as it removed an obstacle.⁸⁷ The UNTSO Chief of Staff General Riley decided that the advantage was applicable to both Syria and Israel but added that no side had sovereign rights in the demilitarised zone and that parties settle the question of compensation to the Arab landowner.⁸⁸ Israel objected to the finding claiming that the Mixed Armistice Commission had no authority to deal with civilian matters. The UN Security Council debated this issue and adopted a resolution calling upon Israel to comply with the requests of the UNTSO Chief of Staff as to compensation but did not call

⁸⁴ Report dated 6 January 1955 by the Chief of Staff of the United Nations Truce Supervision Organization in Palestine to the Secretary-General on complaints concerning the observance of the General Armistice Agreement between Israel and Syria. UN Doc. S/3343 11 January 1955, <https://unispal.un.org/DPA/DPR/unispal.nsf/0/A75451C1745D5941052567230071172F>.

⁸⁵ Separation of Forces Agreement Between Israel and Syria, 31 May 1974, https://peacemaker.un.org/sites/peacemaker.un.org/files/IL%20SY_740531_Separation%20of%20Forces%20between%20Israel%20and%20Syria.pdf.

⁸⁶ Article IV, Treaty of Peace Between the Arab Republic of Egypt and the State of Israel, https://peacemaker.un.org/sites/peacemaker.un.org/files/EG%20IL_790326_Egypt%20and%20Israel%20Treaty%20of%20Peace.pdf.

⁸⁷ UN Doc. S/2049, 21 March 1951.

⁸⁸ Ibid.

for stopping work in the demilitarised zone.⁸⁹ Israel continued with the work but not on Arab owned land.

In 1953, as part of an Israeli plan to divert water from the Jordan River to the South of the country, Israel began digging a canal in the demilitarised zone on the border with Syria. General Bennike, the then Chief of Staff of UNTSO, ordered the work to be stopped as, in his opinion, the canal could be used for defensive purposes and thus alter the military situation in the area.⁹⁰ The UN Security Council was unable to reach a substantive decision on the issue but recommended that Israel suspend working on the canal.⁹¹ Israel consequently abandoned its plan to build the canal and instead changed the plan to one for pumping water from Lake Tiberias and not directly from the Jordan River. The question of sovereignty over demilitarised zones remained an issue of dispute between Israel and Syria.

8.9 Concluding Remarks

The 1949 Armistice Agreements were a success to the extent that they terminated open hostilities, set out demarcation lines and enabled exchange of prisoners of war. The initial hope was that they would lead to peace treaties but it took another thirty years before the first peace treaty, with Egypt, was signed.

The institution of demilitarised zones proved to be problematic as it led to disagreements regarding sovereignty and civilian control of these areas.

The Mixed Armistice Commissions often found themselves acting as legal arbitrators on difficult international legal issues for which the chairman, a military officer seconded to the UN was not qualified. One commentator notes that 'The record of all Armistice Commissions shows that, in existing political conditions, they are only equipped to deal with minor violations of the Armistice Agreements'.⁹²

Armistice Demarcation Lines are normally temporary, but the 1949 Armistice Demarcation line between Israel and the West Bank

⁸⁹ UN Security Council Resolution S/2157 8 May 1951.

⁹⁰ UN Doc. S/3122, Annex I, 23 October 1953.

⁹¹ UN Doc. S/3128, 'The Council *deems* it desirable to that end that the works started in the Demilitarised Zone on 2 September 1953 should be suspended.' During the urgent examination of the question by the Security Council, UN Doc. S/3128, 27 October 1953.

⁹² N. Bar-Yakov, *Israel-Syrian Armistice: Problems of Implementation, 1949-1966* (1967), p. 314.

and Gaza has achieved a certain de facto status. Shaw comments, I believe correctly, that Israel's 'effective control of territory behind the 1949 Armistice lines matured by way of international acceptance over time'.⁹³ Most States consider the ADL should serve as a basis for negotiating a future border between Israel and the Palestinians.

⁹³ Malcolm Shaw, 'The League of Nations Mandate System and the Palestine Mandate: What Did It Say about International Law and What Did It Say about Palestine?', *Israel Law Review* 49(3) (2016), pp. 287, 304.

The Arab Refugee Problem

As a result of the 1947–1948 war, the most common estimate is that some 700,000 Arab Palestinians fled or were expelled from the area that is now the area of the State of Israel.¹ According to Arab sources, Israeli forces either destroyed or depopulated some 400 Arab villages during the 1948 war.² The legal issues surrounding the exodus of the Arab refugees have become pivotal in all attempts to resolve the Arab-Israeli conflict. Among the legal issues of disagreement are the following questions: Who was responsible for the plight of the refugees? Does the definition of who is a refugee apply to their descendants? Do the refugees have a ‘right of return’ to Israel? Is there a right to restitution or compensation? What is the relevance of the issue of the property of Jews who fled Arab States?

9.1 Responsibility for the Refugee Problem

Quigly writes, ‘Israel would seem to be responsible for wrongfully inducing the departure of those Palestinians who left under direct compulsion, or out of fear instilled by acts calculated to create fear’.³ Quigly summarises that there are two possible readings of the facts: ‘hostilities created powerful incentives for the Palestinian exodus’ or there was ‘a concerted Israeli effort to remove the Palestinians from their territory’.⁴ According to Tomeh, Palestinians fled Jaffa after the Irgun attacked the

¹ For a discussion on the discrepancies between the various estimates, see Deborah Kaplan, *The Arab Refugees an Abnormal Problem* (1959), pp. 150–155. See also various estimates in Benny Morris, *The Birth of The Palestinian Refugee Problem, Revisited* (2004), App. I, p. 601.

² Walid Khalidi, ed. *All That Remains: The Palestinian Villages Occupied and Depopulated by Israel in 1948* (1992), p. xx.

³ John Quigly, ‘Displaced Palestinians and a Right of Return’ in Victor Kattan, ed. *The Palestine Question in International Law* (2008), p. 95.

⁴ *Ibid.*, p. 52.

city on 25 April 1948, 'before any Arab soldier set foot on the soil of Palestine 400,000 Arabs had fled their Palestinian homeland in terror'.⁵ Palestinian negotiators have demanded that Israel 'must go beyond an expression of sorrow over what befell the Palestinian people as a result of the Arab Israeli war of 1948 and acknowledge its legal and moral obligations with regard to the refugees'.⁶ Kattan holds that 'Israel was largely responsible for their [the refugees'] flight and consequent plight'.⁷

The Israeli position is that the root cause of the fighting that caused such tragedy to the Palestinian Arabs, and such loss of lives to Israel, was the rejection by the Arab States of the proposal to partition Palestine into an Arab and a Jewish State.⁸ According to the Israel position, prior to the actions by armed Arab forces in 1947–1948, there were no Palestinian Arab refugees. Armed attacks against the Jewish population commenced with the adoption of the UN Partition on 29 November 1947, although the regular armies of the Arab States indeed did not invade Palestine until April 1948. The demand that Israel recognise responsibility for the creation of the Palestinian refugee problem is, presumably, in order to lay the foundations for a subsequent claim for compensation from Israel. There have been a number of attempts to find a formula that would avoid such legal implications. The unofficial understanding reached between Yossi Beilin from Israel and Abu Mazen of the PLO used language whereby 'the Israel side acknowledges the moral and material suffering caused to the Palestinian people as a result of the war of 1947–1949'.⁹ The Clinton plan, presented orally to Israel and to the Palestinians by President Clinton at the 2000 Camp David summit, suggested language whereby 'Israel is prepared to acknowledge the moral and material suffering caused to the Palestinian people as a result of the 1948

⁵ G. J. Tomeh, 'Legal Status of Arab Refugees' in John Norton Moore, ed. *The Arab-Israeli Conflict. Volume I: Readings* (1974), p. 691. Arab irregular forces had in fact entered Palestine before this date.

⁶ 'The Middle East Crisis: Camp David, the "Al Aqsa Intifada" and the Prospects for the Peace Process', *House of Commons Library Research Paper* 01/09, 24 January 2001.

⁷ Victor Kattan, *From Coexistence to Conquest: International Law and the Origins of the Arab-Israeli Conflict, 1891–1949* (2009), p. 210.

⁸ Emil Ghoury, Secretary of the (Palestinian) Arab Higher Committee, stated: 'The fact that there are those refugees is the direct consequence of the Arab States in opposing partition and the Jewish state', [London] *Daily Telegraph*, 6 September 1948.

⁹ Beilin Abu-Mazen Agreement, October 1995, www.mideastweb.org/beilinabumazen1.htm. The Palestinian side has denied there was an agreement.

War'.¹⁰ Rafael, former Israel ambassador to the UN puts the blame for the perpetuation of the refugee problem on the UN itself: 'Inexhaustible debates and repetitive resolutions dehumanized an essentially humanitarian and manageable problem.'¹¹

9.2 Who Is a Palestinian Refugee?

There is no recognised international law general definition of the term 'refugee'. The 1951 Convention Relating to the Status of Refugees (1951 Convention), which applies to 'political' refugees defines a refugee as a person who,

owing to well-founded fear of persecution for reasons of race, religion, nationality, membership of a particular social group or political opinion, is outside the country of his nationality and is unable or, owing to such fear, is unwilling to avail himself of the protection of that country.¹²

The 1951 Convention does not apply to 'persons who are at present receiving from organs or agencies of the United Nations other than the United Nations High Commissioner for Refugees protection or assistance'.¹³ The UN Relief and Works Agency for Palestine Refugees in the Near East (UNWRA) is the body set up by the UN General Assembly to carry out direct relief and works programmes for Palestine refugees, thus Palestinian refugees are excluded from being dealt with by the 1951 Convention or by the United Nations High Commissioner for Refugees.¹⁴ This exception was drafted explicitly to exclude Palestinian refugees from the ambit of the 1951 Convention. Goodwin-Gil writes, 'the primary consideration was the desire of the Arab States, concurred in by other States, to maintain the special status of Palestinian refugees'.¹⁵ The Arab States saw the Arab refugee issue as one of people wishing to return to their country and not being allowed to do so, in contrast to

¹⁰ Dennis Ross, *The Missing Peace: The Inside Story of the Fight for Middle East Peace* (2004), Appendix p. 804.

¹¹ Gideon Rafael, *Destination Peace: Three Decades of Israel Foreign Policy. A Personal Memoir* (1981), p. 176.

¹² Article 1(A)(2) Convention Relating to the Status of Refugees
1951, entered into force 22 April 1954, 189 UNTS 150.

¹³ *Ibid.*, Article 1(D).

¹⁴ UN General Assembly Resolution 302(IV). Assistance to Palestine Refugees, UN Doc. A/RES/302(IV), 8 December 1949.

¹⁵ Guy S. Goodwin-Gill and Jane McAdam, *The Refugee in International Law* (3rd ed. 2007), p. 154.

most refugees who wish to settle in the countries where they found asylum. The UN General Assembly did not define who is a Palestinian refugee. Orit Gal comments that defining a Palestinian refugee is not solely a legal-bureaucratic enigma but rather reflects 'fundamental tensions over narrative dominance, identity and cultural-political power relations'.¹⁶ For purposes of providing services, UNWRA defines a Palestine refugee as 'persons whose normal place of residence was Palestine during the period 1 June 1946 to 15 May 1948, and who lost both home and means of livelihood as a result of the 1948 conflict'.¹⁷ UNWRA furthermore decided that the descendants of Palestine refugee males, including legally adopted children, are also eligible for registration. 'Palestinian refugees need only to have been living in British Mandate Palestine for two years, between June 1946 and May 1948, to be eligible for UNRWA refugee status. They did not have to have nationality or even permanent residence in British Mandate Palestine to be considered UNRWA refugees'. In accordance with this definition, some five and a half million persons are registered with UNWRA.¹⁸ UNWRA itself does not define descendants of refugees as refugees but claims that it grants such assistance for humanitarian reasons. However, the Palestinian authorities regard all the descendants of refugees as being Palestinian refugees. A number of writers estimate that there are now some 'seven million Palestinian refugees'.¹⁹ This policy arouses a number of legal issues. Persons are not normally regarded as refugees if they have acquired the nationality or permanent residence status of another country.²⁰ Goodwin-Gil writes that a refugee loses his status as a refugee through the voluntary 'acquisition of new nationality and the protection

¹⁶ Orit Gal, 'Compensation for Palestinian Refugees: An Israeli Perspective' in Rex Brynen and Roula El-Rifai eds. *Compensation to Palestinian Refugees and the Search for Palestinian-Israeli Peace* (2013), p. 36.

¹⁷ www.unrwa.org/.

¹⁸ Ibid.

¹⁹ Victor Kattan, 'The Nationality of Denationalized Palestinians' in Victor Kattan, ed. *The Palestine Question in International Law* (2008), p. 149; Thierry J. Senechal and Leila Hilal, 'The Value of 1948 Palestinian Refugee Material Damages: An Estimate Based on International Standards'; Atif Kubursi, 'Palestinian Refugee Losses in 1948' in Rex Brynen and Roula El-Rifai, eds. *Compensation to Palestinian Refugees and the Search for Palestinian-Israeli Peace* (2013), pp. 133, 166.

²⁰ In accordance with the UN General Assembly Resolution dealing with the High Commissioner for Refugees, a person ceases to be a refugee if 'he has acquired a new nationality, and enjoys the protection of the country of his new nationality'. Statute of the Office of the United Nations High Commissioner for Refugees, UN General Assembly Resolution 428(v) of 14 December 1950, Chapter II(6) A(ii)(c).

which derives therefrom' and through such acquisition of an 'effective nationality'.²¹ Many of the Arab refugees have acquired such nationality or residence rights, notably in Jordan.²² Quigly, however, argues that as regards those Palestinian refugees with Jordanian nationality that the grant of nationality 'reflected no intent on the part of the Palestinians to renounce a connection with Palestine'.²³

Another legal issue is that some 65 per cent of the Arab refugees who fled to Arab held areas in Palestine thus in fact remained in their country, Palestine.²⁴ According to Kaplan,²⁵ if one deducts from the total who fled those who stayed in Arab held Palestine (West Bank and Gaza) and those who acquired Jordanian citizenship (West Bank and East Bank of Jordan), one is left only with those who fled in 1948 to Lebanon and Syria as bona fide refugees, namely, some 175,000.²⁶

Another legal issue is whether refugee status is inherited, as is claimed for the Palestinian refugees. There does not appear to be legal precedent for such a claim. It is believed that this extension of refugee status is unprecedented in international law. It has led to a situation where some seven million persons are now considered Palestinian refugees. Over 95 per cent of these persons have never lived in the territory that is now Israel.

9.3 'Right of Return'

Palestinian negotiators demand that 'Israel must recognize the right of the Palestinian refugees to return to their homes' in what is now Israel in accordance with 'a well-established norm in international law and practice, namely the right of return'.²⁷ Quigly writes, 'the displaced Palestinians bear an entitlement to return as a matter of right, one that

²¹ Goodwin-Gill and McAdam, *The Refugee in International Law*, pp. 136, 161.

²² Jordan, for example, granted Jordanian citizenship to the Palestinian refugees in its territory. Jordanian Additional Law to the Nationality Law No. 56 of 1949, Nationality Law, No. 6 of 4 February 1954.

²³ Quigly, 'Displaced Palestinians and a Right of Return', p. 87.

²⁴ First Interim Report of the United Nations Economic Survey Mission for the Middle East, 16 November 1949, Appendix C, <https://unispal.un.org/UNISPAL.NSF/0/648C3D9CF58AF088852575300746F31C>.

²⁵ Deborah Kaplan, *The Arab Refugees: An Abnormal Problem* (1959), pp. 150–155.

²⁶ Figures from First Interim Report of the United Nations Economic Survey Mission for the Middle East, 16 November 1949, Appendix C, <https://unispal.un.org/UNISPAL.NSF/0/648C3D9CF58AF088852575300746F31C>.

²⁷ Refugees Background, Palestine Liberation Organization, Negotiations Affairs Department, Permanent Status Issues, www.nad-plo.org/permanent/refugees.html.

rests on several alternate grounds, and one that withstands Israeli arguments to the contrary. The right exists irrespective of whether one adopts the Israeli factual assumptions of non-coerced exodus, or the Palestinian view of forced flight'.²⁸

Israel can argue that some one million of the Arab refugees who claim a right of return reside, at present, in the West Bank and Gaza. Their claim therefore is not to have a right of return to what was historically Palestine, for they already live there, but to that part of Palestine that is present-day Israel.²⁹

If a 'right of return' exists in international law, it would need to be based on one of the two accepted sources of international law, namely, an international treaty to which Israel is a party or a rule of customary international law.³⁰

9.3.1 *Does a 'Right of Return' Exist as a Treaty Obligation?*

In the UN treaty that deals specifically with refugees, and to which Israel is a party, there is no reference to a 'right of return'.³¹ Israel is a party, however, to two general human rights treaties that refer to a right to return. The Convention on the Elimination of All Forms of Racial Discrimination³² which refers to 'the right to leave any country, including one's own, and to return to one's country' and the 1966 International Covenant on Civil and Political Rights³³ which states: 'No one shall be arbitrarily deprived of the right to enter his own country.'

The question arises as to the meaning of the phrase 'one's country' or 'his own country' in the two treaties. State interpretation of a right to

²⁸ Quigly, 'Displaced Palestinians and a Right of Return', pp. 42, 97.

²⁹ See Robbie Sabel, 'The Legal Rights of the Palestinian Refugees under International Law' in Arie M. Kacowicz, Pawel Lutomski, eds. *Population Resettlement in International Conflicts: A Comparative Study* (2007), pp. 151–164.

³⁰ These sources of international law, together with 'the general principles of law recognized by civilized nations', to be applied by the ICJ, are set out in Article 38(1) of the Statute of the International Court of Justice.

³¹ Convention Relating to the Status of Refugees 1951, entered into force 22 April 1954, 189 UNTS 150. Protocol Relating to the Status of Refugees 1967, entered into force 4 October 1967, 606 UNTS 267. Israel is a party both to the Convention and to the Protocol.

³² Convention for the Elimination of All Forms of Racial Discrimination 1965, entered into force 4 January 1969, 660 UNTS 195. Article 5(d)(ii); Israel is a party.

³³ *International Convention on Civil and Political Rights* 1966, entered into force 23 March 1976, 999 UNTS 171. Article 12(4), Israel is a Party.

return appears to be applied only to nationals of the State.³⁴ The phrase used in the 1969 American Convention on Human Rights is as follows: 'No one can be expelled from the territory of the state of which he is a national or be deprived of the right to enter it.'³⁵ The word 'national' is also used in the 1950 European Human Rights Convention, Protocol No. 4: 'No one shall be deprived of the right to enter the territory of the State of which he is a national.'³⁶ Apparently, no government interprets the Conventions as meaning that the right applies to persons other than nationals or persons who were nationals. There are writers, however, who believe the phrases should be understood, in addition to applying to nationals, as applying to permanent residents of a country and other persons with ties to the country.³⁷

Israel would argue that the decision not to allow return is not arbitrary; as such, a mass return would negate the very nature of Israel as a State for the Jewish people. President Clinton declared that Israel should absorb some refugees but that 'you cannot expect Israel to acknowledge an unlimited right of return to present day Israel. We cannot expect Israel to make a decision that would threaten the very foundations of the State of Israel and would undermine the whole logic of peace'.³⁸

9.3.2 *The 'Right of Return' and Customary International Law*

Another source of obligation is customary international law (custom).³⁹ If a right of return is a rule of custom, then it would be binding on Israel, irrespective of Israeli agreement or recognition of the rule. The existence

³⁴ That the right of return is restricted to nationals is also reflected in the 'Declaration of Principles of International Law on Mass Expulsion', p. 62; International Law Association Conference Report 13 (ILA 1986), Articles 1, 2, 3, 7.

³⁵ American Convention on Human Rights 1969, entered into force 18 July 1978, 9 ILM 673 (1970), Article 22(5).

³⁶ European Convention for the Protection of Human Rights and Fundamental Freedoms 1950, entered into force 3 September 1953, 213 UNTS 221. Article 3(2), Protocol No. 4 to the European Convention for the Protection of Human Rights and Fundamental Freedoms 1963, entered into force 2 May 1968, ETS 46. Israel is a party to neither the Treaty nor the Protocol.

³⁷ Guy S. Goodwin-Gill, 'The Right to Leave, Return and Remain' in Vera Gowlland-Debbas, ed. *The Problem of the Refugees in Light of Contemporary International law Issues* (1996), p. 101.

³⁸ President Clinton's speech on Middle East peace at the Israel Policy Forum in New York, 7 January 2001, www.usembassy-israel.org.

³⁹ See, for example, Gail J. Boling, *The 1948 Palestinian Refugees and the Individual Right of Return: An International Law Analysis* (Badil Resource Center for Palestinian Residency and Refugee Rights, 2002), p. 10, www.badil.org/publications/legal%20papers/RoR48.pdf.

of a rule of custom requires both State practice⁴⁰ and *opinio juris*,⁴¹ namely, that the State practice was part of a general recognition that a legal obligation is involved. It has been claimed that such a customary rule can be ascertained from the 1948 Universal Declaration of Human Rights, which states in Article 13(2): 'Everyone has the right to leave any country, including his own, and to return to his country.' The Universal Declaration is a universally respected statement of ideals and it has inspired much human rights legislation, including legislation in Israel. It is not, however, binding law. Elements of the declaration have indeed been set out in various human rights treaties, and they are binding on the parties to those treaties. Those elements of the Universal Declaration that have not been incorporated into international treaties remain a lofty hortatory call to States; they are not, however, binding international law.

Article 13(2) of the Universal Declaration refers to 'his country'. Article 21 of the Universal Declaration uses the same phrase and refers to the fact that 'everyone has the right to take part in the government of his country'. The right to take part in the 'government of his country' is clearly attributable only to citizens and since the same phrase is used in Article 13(2), it is logical to deduce that Article 13(2) also refers to citizens.⁴²

State experience shows that States have indeed often allowed the return of persons who fled during wars. There does not, however, appear to be precedent for a State allowing non-citizens to return because it was obliged to do so by international law. Furthermore, where there has been a division of a territory into two States, on an ethnic or religious basis, there has been no such 'right of return'. The Muslims who fled India for Pakistan have no 'right of return' to India, the same being true for Hindus who fled from what is now Pakistan to India. The Sudeten Germans have no 'right of return' to the Czech Republic. Benvenisti and Zamir found that 'international practice does not support the claim that the right of return following mass relocation of population is recognized under international law. This observation of state practice is

⁴⁰ 'We must look at what states do in their relations with one another.' Andrew Clapham, *Brierly's Law of Nations* (7th ed. 2012), p. 57.

⁴¹ Defined in James Fox, *Dictionary of International and Comparative Law* (1992) as 'opinion that an act is necessary by rule of law'.

⁴² See Ruth Lapidot, 'The Right of Return in International Law', The Jerusalem Institute for Israel Studies 1993, Background Paper No. 10. (In Hebrew), p. 3.

enhanced by the lack of support in legal literature for the right of refugees to return to the country they have fled'.⁴³

9.3.3 UN General Assembly Resolution 194

Paragraph 11 of 1948 UN General Assembly Resolution 194 states:

Refugees wishing to return to their homes and live at peace with their neighbours should be permitted to do so at the earliest practicable date and that compensation should be paid for the property of those choosing not to return and for loss of or damage to property which under principles of international law or in equity, should be made good by the Government or authorities responsible.⁴⁴

All Arab State members of the UN voted against the Resolution and Israel, which was not a member of the UN at the time, objected to it. Nevertheless, it is now claimed that the Resolution obliges Israel to recognise a right of return. It is also claimed that paragraph 11 of UN General Assembly Resolution 194 reflected customary international law at the time.⁴⁵ It has been argued, 'although UNGA resolutions are non-binding, they are crafted to reflect existing legal norms and principles that were already binding'.⁴⁶ Further, it is argued, that subsequent General Assembly Resolutions have repeatedly referred to Resolution 194 and described Palestine refugee rights as 'inalienable' thus reflecting customary law. Mazzawi writes, 'there is abundant authority for the view that such consistent repetition of the concept of the right of return serves under Article 38(1) of the Statute of the International Court of Justice to convert it into international custom'.⁴⁷ Kattan suggests that 'while this resolution does not provide a binding legal right *per se* it is evidence of

⁴³ Eyal Benvenisti and Eyal Zamir, 'Private Claims to Property Rights in the Future Israeli-Palestinian Settlement', *AJIL* 89 (1995), pp. 295, 325.

⁴⁴ UN General Assembly Resolution 194 (III) of 11 December 1948, GAOR, 3rd session, part I, 1948, Resolutions, pp. 21–24.

⁴⁵ M. Sherif Bassiouni and Eugene M. Fisher, 'The Arab-Israeli Conflict – Real and Apparent Issues: An Insight into Its Future from the Lessons of the Past' in John Norton Moore, ed. *The Arab-Israeli Conflict. Volume I: Readings* (1974), p. 645.

⁴⁶ Noa Tova Shaindlinger, 'Remembering Past(s), Imagining Futures: The Politics of Hope in Palestine', a thesis submitted in conformity with the requirements for the degree of Doctor of Philosophy Department of Near and Middle Eastern Civilizations, University of Toronto, <https://tspace.library.utoronto.ca/handle/1807/92662>.

⁴⁷ Mussa Mazzawi, *Palestine and the Law: Guidelines for the Resolution of the Arab-Israel Conflict* (1997), p. 175; Francesca P. Albanese and Lex Takkenberg, *Palestinian Refugees in International Law* (2nd ed. 2020), p. 348.

the will of the international community in 1948'.⁴⁸ Some Arab spokesmen claim that Israel's acceptance as a member of the United Nations was conditional on acceptance of UNGA Resolution 194 and that Israel agreed to abide by all UN General Assembly Resolutions when it applied for membership.⁴⁹

A response could be that the UN Charter does not make any provisions for conditional membership, and Israel did not make any assurance as regards General Assembly resolutions. Claude comments on this issue that 'the best evidence that Israel had made no such commitments was provided by the speeches of Arab delegates in the plenary meeting at which the resolution was voted; they regarded the admission of Israel as a repudiation of their demand for capitulation on the repatriation issue by the applicant state, and they asserted with bitterness that Israel "had given no definite assurances"'.⁵⁰

UN General Assembly resolutions do not create international law. With the exception of resolutions dealing with budget and internal UN affairs, States are not obliged to comply with resolutions of the UN General Assembly. The UN General Assembly is not a law-making body and neither the UN Charter nor any other legal instrument has empowered it with a law-making capacity.⁵¹ The fact that the UN may repeat or reaffirm a resolution does not empower it with legal force. In Weil's eloquent phrase, 'neither is there any warrant for considering that by dint of repetition, non-normative resolutions can be transmuted into positive law through a sort of incantatory effect'.⁵²

As to the actual text of the Resolution, the word 'right' is not used, the Resolution uses the word 'should' and not 'shall'. In UN documents, the word 'should' is regarded as recommendatory language and is not used where an obligation is set out. "The term "should" is clear on its face: it is

⁴⁸ Victor Kattan, 'The Nationality of Denationalized Palestinians' in Victor Kattan, ed. *The Palestine Question in International Law* (2008), p. 134.

⁴⁹ ST/SG/SER.F/2, 0031 November 178, Chapter VII.

⁵⁰ Inis L. Claude Jr., *National Minorities: An International Problem* (1995), p. 181. See also Nathan Feinberg, *Studies in International Law, with a Special Reference to the Arab-Israel Conflict* (1979), p. 438.

⁵¹ See Krzysztof Skubiszewski, 'The Elaboration of General Multilateral Conventions and of Non-Contractual Instruments Having a Normative Function or Objective, Resolutions of the General Assembly of the United Nations, Definitive Report and Draft Resolution', *Yearbook of the Institute of International Law* 61 (1984 I), p. 311.

⁵² Prosper Weil, 'Towards Relative Normativity in International Law', *AJIL* 77 (1983), pp. 413, 417.

hortatory, not obligatory.⁵³ The reference to international law regards the clause on compensation and not on the issue of 'return'.⁵⁴

The phrase 'wishing to live at peace with their neighbours' would imply that those who return wish to live in a Jewish State as Israeli citizens under Israeli law, an unlikely scenario. It would also seem reasonable to assume that if there is a right of return, the right would apply to individuals who wish to live as citizens of the State to which they wish to return. It is clearly not realistic to suggest that millions of Palestinian Arab refugees feel such strong ties with Israel as a Jewish state that they wish to become loyal Israeli citizens. An Egyptian foreign minister explained that 'in demanding the return of the Palestinian refugees, the Arabs mean their return as masters, not slaves: or, to put it quite clearly – the intention is the extermination of Israel'.⁵⁵ Six years later, the prime minister of Lebanon declared that 'the day on which the Arabs' hope for the return of the refugees to Palestine is realized will be the day of Israel's extermination'.⁵⁶

Quigly, however, argues that since the phrase 'wishing to live in peace' was omitted in later UN General Assembly resolutions on the subject and these later resolutions referred to 'the inalienable right of the Palestinians to return to their homes', thus any ambiguity in Resolution 194 was resolved.⁵⁷

9.3.4 *Is Israel the Successor State to Mandatory Palestine?*

It could be argued that Israel is the successor State to Mandatory Palestine, hence an Arab Palestinian who was a citizen of Palestine should automatically be a citizen of Israel and therefore entitled to return to Israel. The Israel Nationality Law 1952 granted Israeli nationality to all Arab Palestinians who were in Israel-controlled territory at the time of

⁵³ Geoffrey R. Watson, *The Oslo Accords: International Law and the Israel-Palestinian Peace Agreements* (2000), p. 282.

⁵⁴ See Ruth Lapidot, 'Legal Aspects of the Palestinian Refugee Question', *Jerusalem Viewpoints*, Jerusalem Center for Public Affairs no. 485 (2002), p. 3, www.jcpa.org/jl/vp485.htm.

⁵⁵ Egyptian foreign minister, Salah-el-Din, The Egyptian daily newspaper *Al-Misri*, Cairo 11 October 1949, quoted from Feinberg, *Studies in International Law, with a Special Reference to the Arab-Israel Conflict*, p. 506.

⁵⁶ Abdullah el-Yafi, prime minister of Lebanon, the Lebanese daily newspaper *El-Hayat*, Beirut, 29 April 1966, quoted from *ibid*.

⁵⁷ Quigly, 'Displaced Palestinians and a Right of Return', p. 57.

Israel's independence and who had remained in Israel when the law came into force (14 July 1952) or who had entered Israel legally by that date. Some 150,000 Arabs who had been Palestinian citizens of Mandatory Palestine thus automatically acquired Israel citizenship. Quigly and others argue that Israel should have granted nationality not only to those Arabs present in Israel but also to those persons who were not present. Quigly quotes an International Law Commission working group that 'the inference of nationality applies to all nationals of the former state, regardless of where they reside'.⁵⁸ A response could be that Israel has formally declared that it is not the successor State to Mandatory Palestine.⁵⁹ An interesting consequence of claiming that Israel is the successor State might be that, in accordance with the principle of *Uti Possidetis*, Israel should inherit the borders of Mandatory Palestine and the West Bank and the Gaza Strip are, therefore, sovereign Israel territory.

9.3.5 A 'Right of Return' and Self-Determination

Over the years, what was an issue of Palestinian refugees has been turned into an issue of Palestinian political rights. Palestinian demands for a right of return are coupled with their call for self-determination. One can clearly see the change reflected in UN resolutions over time. What was originally portrayed as a claim of refugees to return has become a national Palestinian claim. A leading Arab Palestinian lawyer put it bluntly when he stated that 'the Palestinian Arab refugees have certain inalienable rights including the right of sovereignty over Palestine'.⁶⁰ If seven million people claim to have a right to settle in what is now Israel, this, it could be argued, is an alternative national claim to that of Israel.

If historical Western Palestine were to be divided into two states,⁶¹ Israel and an Arab State of Palestine, then it could be argued that Palestine is the State of the Palestinians to which they can claim a right of return. US President Clinton stated, 'it makes no sense to both create a Palestinian state and have large numbers of Palestinian refugees return to

⁵⁸ Ibid., p. 80. A similar argument was raised by the Jordanian Munther Haddadin quoted in Abdul Salem Majali, Jawad A. Anani and Munther J. Haddadin, *Peacemaking: The Inside Story of the 1994 Jordanian-Israeli Treaty* (2006), p. 273.

⁵⁹ Materials on Succession of States, UN Legislative Series, Observations by Israel, UN Doc. ST/LEG/SER.B/14 (1967), p. 38.

⁶⁰ George J. Tomeh, 'Legal Status of Arab Refugees', p. 679.

⁶¹ The original area of Palestine, as set out in 1922, has already been divided into two States, Israel and Jordan, with the status of the West Bank and Gaza still undecided.

Israel, thereby threatening the foundations of the State of Israel and undermining the logic of peace'.⁶² Kattan, in an article on the Palestinian refugees, writes 'if there were a Palestinian State in the West Bank and the Gaza Strip with East Jerusalem as its capital then the Palestinians will have a State where they can exercise their right to self-determination and statehood'.⁶³ Presumably, such statehood would include a right of return to the Arab part of Palestine, perhaps subject to security considerations. Quigly, however, argues that the view of the UN was 'individual Palestinians had a right of return, apart from the collective rights of the Palestinians as a people'.⁶⁴ Hilal argues that 'the right to self-determination concerns the rights of peoples (a collective body). The right to return adheres to individuals'.⁶⁵

9.4 Mass or Individual Rights

The human rights conventions referred to, insofar as they grant rights, do so to individuals and were not intended to deal with population exchanges such as occurred in the Arab-Israeli conflict. According to Jagerskiold, the right of return or the right to enter one's country in the 1966 International Covenant

is intended to apply to individuals asserting an individual right. There was no intention here to address the claims of masses of people who have been displaced as a by-product of war or by political transfers of territory or population, such as the relocation of ethnic Germans from Eastern Europe during and after the Second World War, the flight of the Palestinians from what became Israel, or the movement of Jews from the Arab countries.⁶⁶

Quigly, however, argues that the language of the human rights treaties dealing with the issue do not contain any 'numerical limitation' or 'exceptions regarding groups'.⁶⁷

⁶² <https://clintonwhitehouse6.archives.gov/2001/01/2001-01-07-remarks-by-the-president-at-the-israel-forum-gala-dinner.html>.

⁶³ Kattan, 'The Nationality of Denationalized Palestinians', p. 149.

⁶⁴ Quigly, 'Displaced Palestinians and a Right of Return', p. 63.

⁶⁵ Leila Hilal, 'Palestinian Negotiation Priorities on Reparations for Refugees' in Rex Brynen and Roula El-Rifai eds. *Compensation to Palestinian Refugees and the Search for Palestinian-Israeli Peace* (2013), p. 24.

⁶⁶ Stig Jagerskiold, 'The Freedom of Movement' in Louis Henkin, ed. *The International Bill of Rights* (1981), p. 180.

⁶⁷ Quigly, 'Displaced Palestinians and a Right of Return', p. 82.

9.5 Resettlement into Arab Countries

Stone points out that resettlement

has been the effective solution for the far greater and more complex refugee problems in Europe after World War II. It is a melancholy fact that this more humane course came to so little in the Middle East over so long a time that, for the Arab States concerned, the refugee problem was more useful than its solution.⁶⁸

One academic study describes how resettlement has been the accepted method of solving refugee problems particularly where the refugees move from one part of their country to another, such as in Cyprus and the Karelians in Finland.⁶⁹ The UN General Assembly, in its 1950 Resolution dealing with UNWRA, explicitly referred to the possibility of 'resettlement' of the Arab Refugees and allocated sums for this purpose.⁷⁰ At first, UNWRA invested sums in economic projects intended to create employment for the refugees; however, the host Arab governments 'feared the political implications of a programme which might appear to the refugees to involve permanent settlement away from Palestine'⁷¹ and 'refugees dug in their heels against resettlement'.⁷² 'The Arab States had no political and little humanitarian interest in resolving the refugee problem. Thus host Arab states perpetuated the refugee status for political purposes.'⁷³ At the insistence of the Arab States, the reference to resettlement was omitted in later resolutions referring to UNWRA.⁷⁴ Quigly argues that the UN General Assembly 'viewed resettlement in Arab states as a complement, not an alternative to repatriation'.⁷⁵ One UNWRA study summarises the issue as follows: 'The refugees were not repatriated because Israel had no interest in permitting them to return, and they were not resettled because Arab states, other than Jordan, had little incentive to incorporate them into their citizenries, and the

⁶⁸ Julius Stone, *Israel and Palestine: Assault on the Law of Nations* (1981), p. 68.

⁶⁹ See Arie M. Kacowicz and Pawel Lutomski eds., *Population Resettlement in International Conflicts: A Comparative Study* (2007).

⁷⁰ UN General Assembly Resolution 394(V) 14 December 1950.

⁷¹ Report of UNWRA Deputy Director Leslie Carver, annex to proposal No. 60, 23 January 1953, 1 York University Refugee Documentation Project Archive, quoted from Benjamin N. Schiff, *Refugees unto the Third Generation: UN Aid to Palestinians* (1995) p. 41 n 82.

⁷² Schiff, *Refugees unto the Third Generation*, p. 46.

⁷³ Ibid., p. 272.

⁷⁴ See, for example, UN General Assembly Resolution A/RES/74/85, 26 December 2019.

⁷⁵ Quigly, 'Displaced Palestinians and a Right of Return', p. 61.

Palestinians developed a powerful nationalism that militated against their integration outside their traditional land.⁷⁶

After the 1967 Six Day War, some 200,000 Arabs fled from the West Bank, which was now under Israeli control, to the East Bank of Jordan. Most of those who fled were refugees from 1948. UNWRA reported, 'the Israelis were making it easy for Arabs to leave for the East Bank but that they saw no signs that they were being forced across'.⁷⁷ This issue, usually referred to as the issue of 'displaced persons', will also have to be settled as part of settling the refugee problem.

9.6 The Issue of Refugees in the Legal Instruments of the Peace Process

There is no reference to a 'right of return' or to UN General Assembly Resolution 194 in any of the documents which were agreed to between the parties. The first agreed framework for a peace settlement was the 1967 UN Security Council Resolution number 242.⁷⁸ The Resolution was not adopted under Chapter VII of the Charter and, therefore, was not binding as such, but all parties to the conflict have subsequently accepted it as a binding framework. Resolution 242 refers to the necessity of 'achieving a just settlement of the refugee problem'. There is no reference to a 'right of return' or to UN General Assembly Resolution 194. Quigly argues, however, that "just settlement" probably referred to what the United Nations has found since 1948 to be a just outcome, namely return for displaced Palestinians'.⁷⁹ Resolution 242 refers to refugees, without limiting the term to Palestinian refugees, thus enabling the issue of compensation for the property of Jews from Arab countries to come within its ambit.

The 1978 Camp David Framework for Peace in the Middle East stated, 'Egypt and Israel will work with each other and with other agreed parties to establish agreed procedures for a prompt and permanent implementation of the resolution of the refugee problem'.⁸⁰ The 1993 'Oslo' Declaration of Principles on Interim Self Government reaffirmed UN

⁷⁶ Schiff, *Refugees unto the Third Generation*, p. 5.

⁷⁷ UNWRA Headquarters Archive, letter to Reddaway (Deputy Director of UNWRA) from Cassels (Deputy Director of UNWRA in Jordan), 20 June 1967. Circulated to Cabinet 22 June 1967, quoted from Schiff, *Refugees unto the Third Generation*, p. 196 n. 32.

⁷⁸ SCOR, 22nd year, Resolutions and Decisions, 1967, p. 5. See Chapter 11.

⁷⁹ Quigly, 'Displaced Palestinians and a Right of Return', p. 62.

⁸⁰ 1138 UNTS 39 (1978). Article A, 4.

Security Council Resolution 242 and stated that the issue of refugees should be dealt with as part of 'permanent status negotiations'.⁸¹ The agreement with the PLO received widespread international support; the secretary of state of the United States and the foreign minister of the Russian Federation signed it as witnesses. The authors of the Israel–PLO agreement shared the Nobel Peace Prize and the agreement was welcomed by a special Resolution of the UN General Assembly.⁸² The 1995 Israeli–Palestinian Interim Agreement on the West Bank and Gaza Strip agreement was signed, as witnesses, by representatives of the United States, the Russian Federation, Egypt, Jordan, Norway and the European Union. There is no reference to a right of return or to UN General Assembly Resolution 194 in any of these agreements. The 1994 Treaty of Peace with Jordan states:

The Parties will seek to resolve the refugee problem, in accordance with international law, in appropriate forums, including the framework of the Multilateral Working Group on Refugees, and in negotiations, in a framework to be agreed, bilateral or otherwise, in conjunction with and at the same time as the permanent status negotiations pertaining to the Territories that came under Israeli military government in 1967.⁸³

The fact that none of these agreed documents refer to a right of return or to UNGA Resolution 194 leads to the conclusion that Israel and the Arab states have agreed that the refugee issue should be resolved by negotiations. An argument can be made that, by making these agreements, the PLO and the Arab States, with the blessing of the world community, implicitly acknowledged the reality that a 'right of return' is not an option in the Arab-Israeli dispute. A contrary argument can be made that the absence of a reference to a 'right of return' does not imply that the demand for such a right has been abandoned. Quigly reaches the conclusion that the UN Security Council and the United States must ensure an 'appropriate outcome' to the Arab refugee issue as 'there is a risk that if the negotiations are left to the parties alone, the outcome will be one that does not meet the Palestinians' legitimate expectations'.⁸⁴

⁸¹ 32 ILM 1525 (1993), Article V(2)(3). A similar clause appears in the 1995 Israeli–Palestinian Interim Agreement on the West Bank and Gaza Strip, 36; ILM 551 (1997) (extract) full text in 33 *Kitvei Amana* No. 1071, pp. 1–400. (Official Israel Treaty Series).

⁸² UN General Assembly Resolution A/RES/48/58 (1993).

⁸³ 34 ILM 43 (1995). Articles 3, 8(b)(c). The text quoted is a composite text from the Articles referred to.

⁸⁴ Quigly, 'Displaced Palestinians and a Right of Return', p. 98.

9.7 Right of Return in the Post–Oslo Peace Process

There have been a number of non-binding proposals that attempt to find language that could satisfy both parties to the dispute. The formula used in the Beilin–Abu Mazen understanding was as follows:

Whereas the Palestinian side considers that the right of the Palestinian refugees to return to their homes is enshrined in international law and natural justice, it recognizes that the prerequisites of the new era of peace and coexistence, as well as the realities that have been created on the ground since 1948, have rendered the implementation of this right impracticable. The Palestinian side, thus, declares its readiness to accept and implement policies and measures that will ensure, insofar as this is possible, the welfare and well-being of these refugees.

Whereas the Israeli side acknowledges the moral and material suffering caused to the Palestinian people as a result of the war of 1947–1949. It further acknowledges the Palestinian refugees' right of return to the Palestinian state and their right to compensation and rehabilitation for moral and material losses.

The PLO considers the implementation of the above a full and final settlement of the refugee issue in all its dimensions. It further undertakes that no additional claims or demands arising from this issue will be made upon the full implementation of this Framework agreement.⁸⁵

The premise of the Beilin–Abu Mazen Understanding is that a right of return will be to a Palestinian State and not to Israel. The Understanding states that although the Palestinians believe 'that the right of the Palestinian refugees to return to their homes is enshrined in international law and natural justice, the realities that have been created on the ground since 1948, have rendered the implementation of this right impracticable'. Israel 'acknowledges the Palestinian refugees' right of return to the Palestinian State and their right to compensation and rehabilitation for moral and material losses'.⁸⁶ Allowing refugees in camps in Arab countries to 'return' to a Palestinian State in the West Bank and Gaza would be allowing their return to what historically was Palestine. Echoes of the Beilin–Abu Mazen Understanding are found in President Clinton's peace

⁸⁵ Yossi Beilin served as minister of justice on behalf of the Israel Labour Party and Abu Mazen as president of the State of Palestine. Parts of the agreement on the refugee issue have been omitted. Israel never officially accepted the plan and the Palestinians have denied that there was an agreement, https://ecf.org.il/media_items/566

⁸⁶ 'A look at the Beilin–Abu Mazen agreement', *Ha'aretz Daily Newspaper* –English Internet Edition, 31 October 1995, www.haaretz.co.il.

plan where he refers to 'the right of return to their homeland where it is clearly established that their homeland means the Palestinian State'.⁸⁷ In 2001, the chief US negotiator for the Middle East pithily summarised the issue: 'The right of return of Palestinians to their State makes perfect sense, the right of return to Israel made no sense if you are going to have a two-state solution.'⁸⁸

The President Clinton's proposal, on the question of the refugees, presented orally to both parties, was as follows:

I believe that Israel is prepared to acknowledge the moral and material suffering caused to the Palestinian people as a result of the 1948 war and the need to assist the international community in addressing the problem. . . . The fundamental gap is on how to handle the concept of the right of return. I know the history of the issue and how hard it will be for the Palestinian leadership to appear to be abandoning the principle.

The Israeli side could not accept any reference to a right of return that would imply a right to immigrate to Israel in defiance of Israel's sovereign policies and admission or that would threaten the character of the state. Any solution must address both needs. The solution will have to be consistent with the two-state approach . . . the state of Palestine as the homeland of the Palestinian people and the state of Israel as the homeland of the Jewish people.

Under the two-state solution, the guiding principle should be that the Palestinian State should be the focal point for the Palestinians who choose to return to the area without ruling out that Israel accept some of these refugees.

I believe that we need to adopt a formulation on the right of return that will make clear that there is no specific right of return to Israel itself but that does not negate the aspiration of Palestinian people to return to the area.

I propose two alternatives

- (1) both sides recognize the right of Palestinian refugees to return to historic Palestine, or
- (2) both sides recognize the right of Palestinian refugees to return to their homeland.

⁸⁷ Benn Aluf, 'US proposal aims to please both sides', *Ha'aretz Daily Newspaper* – English Internet Edition, 28 December 2000. The article states that it is based on notes of the president's proposal, taken by Israel Foreign Minister Ben-Ami, www.haaretz.co.il.

⁸⁸ Ambassador Dennis Ross, former Special Middle East Coordinator, 'Pursuing Peace: Inroads Made and Lessons Learned', Address given at Georgetown University Law Center, Washington, DC, 19 July 2001, www.mideastinsight.org.

The agreement will define the implementation of this general right in a way that is consistent with the two-state solution. It would list the five possible homes for the refugees:

- (1) The State of Palestine
- (2) Areas in Israel being transferred to Palestine in the land swap
- (3) Rehabilitation in host country
- (4) Resettlement in third country
- (5) Admission to Israel

In listing these options, the agreement will make clear that the return to the West Bank, Gaza Strip and area acquired in the land swap would be right [*sic*] to all Palestinian refugees, while rehabilitation in host countries, resettlement in third countries and absorption into Israel will depend upon the policies of those countries.

Israel could indicate in the agreement that it intends to establish a policy so that some [*sic*] the refugees would be absorbed into Israel consistent with Israel sovereign decision.

I believe that priority should be given to the refugee population in Lebanon.

The parties would agree that this implements Resolution 194.⁸⁹

Israel accepted the plan in principle but the Palestinians did not respond in substance.⁹⁰ In formal presentations, Arab representatives demanded an unconditional right of return. They pointed out, however, that not all refugees would choose to return but insisted that the individual refugee make the choice. During a meeting with President Clinton, the Palestinian representative, Nabil Shaat, estimated that 10–20 per cent of the refugees would choose to return. President Clinton responded that, according to that estimate, the number of refugees Israel would have to absorb would be between 400,000 and 800,000.⁹¹

At the September 2000 Taba talks between Israel and the Palestinians, the refugee problem was, perhaps, the major issue. The Israeli proposal during the Taba talks⁹² again echoed the Beilin–Abu Mazen Understanding that the Palestinians would have the right of return to the future Palestinian State together with the further options of being absorbed in the host states where they were located or immigrating to

⁸⁹ Quoted from Ross, *The Missing Peace*, Appendix p. 804.

⁹⁰ *Ibid.*, pp. 753–758.

⁹¹ Gilad Sher, *Just Beyond Reach: The Israeli-Palestinian Peace Negotiations 1999–2001* (2001), p. 216 (in Hebrew).

⁹² *Ibid.*, p. 430.

third states willing to absorb them. A further proposal was that Israel would agree to accept an as yet unarticulated number of refugees on the humanitarian basis of family reunification. An international fund would be set up to help cover the cost of resettlement and rehabilitation. The final settlement would be considered as implementation of all relevant international resolutions. A settlement of claims would also deal with the question of the property of Jews who fled Arab countries. No agreement was reached on these issues.

The Saudi-initiated Arab League peace plan of 28 March 2002 refers to 'achievement of a just solution to the Palestinian refugee problem to be agreed upon in accordance with UN General Assembly Resolution 194'.⁹³ This text, by using the word 'agreed', presumably attempts to soften the earlier Arab position that Resolution 194 was mandatory.⁹⁴ Israel's apprehension is that accepting the wording of the Arab League proposal would oblige Israel to negotiate in good faith in accordance with the substance of UN Resolution 194, a demand Israel has rejected for reasons set out above. Fifty years ago, Fulbright commented 'for the majority of refugees, repatriation [to Israel] would probably be neither feasible nor desired'.⁹⁵

A possible formula, which apparently has never been entertained by the parties, would be for Israel to agree to accept a right of return for those Arab refugees who actually fled in 1948 but not for their descendants. Presumably, the number wanting and able to return would not be beyond Israel's absorption capability.

9.8 Compensation for Abandoned Property of Palestinian Refugees

The Palestinian Arab refugees left behind, in what is now Israel, large amounts of property. The Palestine Conciliation Commission estimated the total value of urban immovable property abandoned by the Palestinian refugees to be about 30 million Palestinian pounds, which at that time (1951) was equivalent to \$84 million.⁹⁶ Another Palestinian

⁹³ Arab League, Arab Gateway, Arab Peace Initiative, 2002, www.al-bab.com/arab/docs/league/peace02.htm.

⁹⁴ An earlier draft of the plan called for the solution to be 'in conformity with UN General Assembly Resolution 194'. Ibid.

⁹⁵ J. William Fulbright, 'Old Myths and New Realities' in John Norton Moore, ed. *The Arab-Israeli Conflict. Volume II: Readings* (1974), pp. 1038, 1062.

⁹⁶ 'Progress Report of the United Nations Conciliation Commission for Palestine', UN GAOR, 6th Sess., Supp. No. 18, Ann. A, UN Doc. A/1985 (1951), paras. 16–19.

estimate is that the value was nearly 230 million Palestinian pounds.⁹⁷ Most of the property was used by Israel to settle Jews who fled from Arab states. Benvenisti and Zamir point out that this is normal international procedure and that during population transfers in India, Pakistan and cases in Europe, which they enumerate, 'immovable property left by expellees was seized by the Governments, which then used it to settle the incoming refugees'.⁹⁸ They add that in no case of massive relocation 'have the refugees regained the property they left behind'.⁹⁹ There are, however, examples of States paying compensation for such property,¹⁰⁰ and Israeli negotiators have agreed to pay compensation for the property Arab refugees left in what is now Israel. Clearly, so long as a state of war or armed conflict continues, Israel is entitled to freeze the right to such property. However, when a final settlement of the conflict is reached, the refugees will be entitled to receive compensation for property they possessed. Fishchbach comments:

Ironically, the growth of a Palestinian national movement and its renewed focus on the unresolved questions of 1948 also affected the property question negatively. The Palestinian leadership in the PLO struggled for inclusion in the circle of combatants and denounced talk of compensation as defeatist. Chastened by defeat, the PLO also adopted the land-for-peace formula starting in 1974, by which its efforts were increasingly focused on creating the Palestinian state, not on discussing property questions.¹⁰¹

According to Brynen and El-Rifaiss, 'many refugees grew fearful that any talk of compensation was intended to divert refugees from asserting their right of return to 1948 areas'.¹⁰² The terms and conditions for such

⁹⁷ Michael R. Fischbach, 'United Nations Conciliation Commission for Palestine's Record on Palestinian Refugee Property Losses' in Rex Brynen and Roula El-Rifai, eds., *Compensation to Palestinian Refugees and the Search for Palestinian-Israeli Peace* (2013), p. 82.

⁹⁸ Eyal Benvenisti and Eyal Zamir, 'Private Claims to Property Rights in the Future Israeli-Palestinian Settlement', *AJIL* 89 (1995), pp. 295, 322. On the issue in general, see Hans van Houtte, Bart Delmartino and Iasson Yi, *Post-War Restoration of Property Rights under International Law Volume I* (2008).

⁹⁹ Benvenisti and Zamir, 'Private Claims to Property Rights in the Future Israeli-Palestinian Settlement', p. 324.

¹⁰⁰ See examples in Stephen P. Ladas, *The Exchange of Minorities: Bulgaria, Greece and Turkey* (1932).

¹⁰¹ Michael R. Fischbach, *The Peace Process and Palestinian Refugee Claims: Addressing Claims for Property Compensation and Restitution* (2006), p. 83.

¹⁰² Rex Brynen and Roula El-Rifai, eds., *Compensation to Palestinian Refugees and the Search for Palestinian-Israeli Peace* (2013), p. 3.

compensation will have to be agreed upon. Legal issues that will arise include the question of evaluating the property as of 1948 or now: 'Should abandoned property include only privately owned property, registered or otherwise accounted for, or should it also include socially controlled land held collectively or communally without resort to government land registries?' And is 'grazing land, a common threshing floor, or a house of worship [is] "worth" anything in concrete monetary terms? What to do with refugees who were tenant farmers who owned no land themselves.'¹⁰³ Fischbach adds that there is a danger that 'the bulk of property compensation would be paid to wealthy landowning refugees, with nothing going to those refugees who could least afford to build new lives in exile'.¹⁰⁴

9.9 Compensation to Jews Who Fled from Arab Countries

Some 700,000 Jews fled Arab countries in the years 1948–1949.¹⁰⁵ The Jews fled mainly because of anti-Jewish riots and persecution.¹⁰⁶ It can be argued that this, in fact, served as an exchange of population as the number of Jews who fled Arab countries corresponds to the number of Palestinian refugees. Kattan comments on this argument that, as opposed to the Greek–Turkish exchange of population, 'no such treaty was ever concluded between Israel and the Arab states in 1948'.¹⁰⁷ The Jewish 'refugees' have been successfully absorbed by Israel and now form an integral part of the fabric of Israeli society. They do not regard themselves as refugees nor are they regarded as such. Needless to say, there is no talk of their 'right to return to Arab countries'. On immigrating to Israel, they were often forced to leave their property behind and in many cases, such as in Iraq, special laws were passed depriving them of all rights to their property.¹⁰⁸ It is Israel's position that when discussing issues of compensation, the property rights of the Jews who fled Arab countries

¹⁰³ Fischbach, *The Peace Process and Palestinian Refugee Claims*, p. 20.

¹⁰⁴ *Ibid.*, p. 50.

¹⁰⁵ See generally M. M. Roumani, *The Case of the Jews from Arab Countries: A Neglected Issue* (1983).

¹⁰⁶ See Norman Stillman, *The Jews of Arab Lands in Modern Times* (1999), p. 147; Martin Gilbert, *Israel – A History* (2008), p. 154.

¹⁰⁷ Kattan, 'The Nationality of Denationalized Palestinians', p. 133.

¹⁰⁸ See Carole Basri, 'The Jewish Refugees from Arab Countries: An Examination of Legal Rights – A Case Study of the Human Rights Violations of Iraqi Jews', *Fordham International Law Journal* 26, no. 3 (2002), Article 6, p. 656.

be taken into account. One estimate is that the amount of compensation due is \$250 billion.¹⁰⁹ The United States has accepted Israel's position that the issue of rights of 'Jewish refugees who fled the Arab countries' be negotiated together with the issue of the Arab refugees.¹¹⁰ This raises the legal question of whether Israel is entitled to offset any payments due to Arab Palestinian refugees with payments due by Arab States to Jewish refugees who fled to Israel. Since it was not the Palestinian Arabs who caused the exodus of Jews from Arab countries, there would not appear to be legal grounds for offsetting their claims. Brynen comments, 'it is not clear why the Palestinians should be held responsible for the actions of Iraq, Egypt, Yemen, Libya or other Arab countries'.¹¹¹ Israel apparently does not demand offsetting the claims, one reason maybe that the total registered Jewish claims are smaller than the Arab claims.¹¹² However, international practice is that such issues are usually settled on an agreed mutual basis and it would seem that the issue can only be solved by multilateral talks with all the parties concerned, including potential donor States.¹¹³ The December 2000 Clinton parameters proposed 'an international commission' to deal with all compensation issues.¹¹⁴

9.10 Compensation for the Suffering of the Refugees

International law stipulates that 'the breach of an engagement involves an obligation to make reparations in an adequate form'.¹¹⁵ A non-binding International Law Association resolution declared, 'the State that turns a person into a refugee commits an internationally wrongful act, which

¹⁰⁹ www.haaretz.com/israel-news/.premium-weaponizing-the-mizrahim-these-jews-claims-could-derail-the-u-s-peace-plan-1.7139413?lts=1600680144452.

¹¹⁰ See 'Suggestions for the Resumption of the Geneva Peace Conference' quoted from Moshe Dayan, *Breakthrough: A Personal Account of the Egypt-Israel Peace Negotiations* (1981), p. 71.

¹¹¹ Rex Brynen, 'Palestinian Refugee Compensation: Connections and Complexities' in Rex Brynen and Roula El-Rifai, eds. *Compensation to Palestinian Refugees and the Search for Palestinian-Israeli Peace* (2013), p. 273.

¹¹² Michael R. Fischbasch, 'Linking Palestinian Compensation Claims with Jewish Property Claims against Arab Countries' in Rex Brynen and Roula El-Rifai, eds. *Compensation to Palestinian Refugees and the Search for Palestinian-Israeli Peace* (2013), p. 252.

¹¹³ See the Canadian led Refugee Working Group of the Middle East Multilateral Peace Negotiations <https://prn.mcgill.ca/research/papers/brytan.htm>

¹¹⁴ https://ecf.org.il/media_items/568

The phrase, however, is not reported as such by Dennis Ross. Ross, *The Missing Peace*, Appendix p. 804.

¹¹⁵ *The Factory at Chorzów* (Jurisdiction) 1927 P.C.I.J., Series A, No. 9, 21.

creates the obligation to make good the wrong done'.¹¹⁶ Palestinian negotiators claim that Israel unlawfully created the Palestinian refugee problem and demand that Israel compensate the refugees for their suffering. Such a demand is beyond the demand of compensation for property. Israel, on the other hand, sees the invasion by Arab armed forces as the primary cause of the Palestinian refugee problem and is not willing to accept responsibility or the consequent obligation to compensate. As Benvenisti and Zamir point out:

Claims for reparations are rarely pursued. Since such claims are based on fault, the other side must be persuaded to concede its aggression or this issue must be litigated for the claim to succeed. In the Israeli-Palestinian context, it is also not likely that reparations will be set, or that responsibility for the outbreak of hostilities will be determined, thereby influencing the outcome of the private property claims. This observation is supported by the Egypt-Israel and Israel-Jordan peace agreements and, indeed, the DOP itself. All three instruments refrain from addressing these issues.¹¹⁷

Clearly, neither side in the Arab-Israeli conflict declares itself as the aggressor. The Beilin–Abu Mazen Understanding deals with the issue of compensation for the refugees by stating that Israel 'acknowledges their right to compensation and rehabilitation for moral and material losses'. The proposal was that an international fund be set up to help resettlement of the Palestinian Arab refugees and that Israel participate in such a fund.

9.11 Concluding Remarks

Rosenne commented on the Arab refugee problem: 'There is very little that the law can say on this.'¹¹⁸ Nevertheless, the issue does involve international law. On the basic question of who is responsible for creating the Arab refugee problem, there are two opposing positions as to who violated international law to create the refugee problem. The Arab claim is that the refugees were illegally expelled by Israel or fled from fear of

¹¹⁶ ILA 65th Conference (1992) 'Cairo Declaration of Principles of International Law on Compensation to Refugees'. AJIL 87 (1993), p. 157.

¹¹⁷ Benvenisti and Zamir, 'Private Claims to Property Rights in the Future Israeli-Palestinian Settlement', pp. 319, 320.

¹¹⁸ Shabtai Rosenne, 'Directions for a Middle East Settlement – Some Underlying Problems' in John Norton Moore, ed. *The Arab-Israeli Conflict. Volume II: Readings* (1974), pp. 777, 799.

illegal Israeli actions. The Israeli position is that the refugees fled because they were caught in an armed conflict caused by the aggression of Arab armed attempts to prevent the creation of a Jewish state. This issue is tied to the claim that Israel should compensate the refugees for creating the refugee problem.

On the question of a 'right of return', the Arab position is that such a right exists in international law, and although many refugees may not wish to return, they have the right to do so. The argument that not all Palestinians would necessarily avail themselves of such a right does not negate the controversy whether such a right exists. Lapidoth summarises the Israel legal position under international law as being that 'neither under the general international conventions, nor under the major UN resolutions, nor under the relevant agreements between the parties, do the Palestinian refugees have a right to return to Israel'.¹¹⁹ There does not appear to be any legal precedent or the claim that descendants of refugees also have a right of return.

In accordance with international law, the refugees are entitled to be compensated for property they left in Israel. The Jews who fled Arab States are also entitled to such compensation; Israel's position is that such mutual claims will have to be negotiated in a multilateral forum.

¹¹⁹ Ruth Lapidoth, 'Israel and the Palestinians: Some Legal Issues', *Die Friedens-Warte, Journal of International Peace and Organization* 76, nos. 2-3. (2001), pp. 211, 238.

The 1967 Six Day War

10.1 1949–1967 and the 1956 Suez Crisis

The period between 1949 and June 1967 was marked by a series of military clashes between Israel and her neighbours Egypt, Jordan and Syria. The most violent of them was the 1956 Sinai Campaign, when Israel seized the whole of the Sinai Peninsula from Egypt. Israel justified its incursion into Sinai as a measure to prevent terrorist ‘*Fedayeen*’ attacks from Egyptian held Gaza Strip and as an attempt to open the Strait of Tiran, a strait that had been closed to Israeli shipping by Egypt. The Israeli operation was clandestinely coordinated with the French and British Suez Campaign.¹ The UN General Assembly resolved that the Israeli attack was a violation of the 1949 Egypt–Israel Armistice Agreement.² A month later, Israel was forced to withdraw from Sinai as a result of pressure by the United States. No agreements were reached with Egypt; however, the UN installed a peacekeeping force (UNEF) in Sinai and Israel received an assurance from the United States as to freedom of passage through the Tiran straits. Units of UNEF were posted in Sharm El Sheikh on the Strait of Tiran in order to ensure freedom of passage through the strait.³

10.2 The Outbreak of the 1967 War

On 5 June 1967, the Israeli air force attacked Egyptian air force bases essentially crippling the Egyptian air force. The UN Charter prohibits the

¹ Codenamed ‘Operation Musketeer’.

² UN General Assembly Resolution 997 (ES-I) 2 November 1956, UN Doc. A/3354 (1956).

³ Aide Mémoire handed to Israel Ambassador Abba Eban on 11 February 1957, by Secretary of State Dulles, J. N Moore, ed. *The Arab-Israeli Conflict. Vol. III: Documents* (1974), p. 637, <https://mfa.gov.il/mfa/foreignpolicy/mfadocuments/yearbook1/pages/26%20statement%20to%20the%20general%20assembly%20by%20foreign%20mi.aspx>. The legal issue associated with the Straits of Tiran and the Suez Canal are dealt with in Chapter 22.

use of force in international relations except with the approval of the UN Security Council or in self-defence.⁴ Israel clearly did not have approval of the UN Security Council; hence, the Israeli action would be legal only if it was an act of self-defence. A State that fires the first shot is not necessarily an aggressor. The UN definition of aggression makes this clear by stating that firing the first shot is only *prima facie* evidence of aggression; for it is aggression only if it is in violation of the UN Charter. 'The First use of armed force by a State in contravention of the Charter shall constitute *prima facie* evidence of an act of aggression.'⁵ This definition of aggression clearly leaves open the possibility of a lawful first use of force. The onus, however, is on the State that first used force, in this case Israel, to prove that its use of force was legal as an act of self-defence within the meaning of the UN Charter.⁶ Israel claimed, at the time, that it was acting in response to Egyptian armoured columns moving in an offensive thrust against Israel's borders, Egyptian planes taking off from airfields in Sinai and striking out towards Israel and that Egyptian artillery in the Gaza strip shelled Israel villages. If true, then clearly Israel was acting in self-defence, but the Israeli claims were apparently false and were not relied upon later by Israel.⁷ Dayan writes that in briefing the press, 'I did not reply directly to the [who fired] the 'first shot' question, but since they had already heard my views on the importance of initiative and surprise in battle, they did not need to do much guessing'.⁸

10.3 Pre-emptive Self-Defence

Article 51 of the UN Charter affirms the right of a State to act in self-defence:

Nothing in the present Charter shall impair the inherent right of individual or collective self-defence if an armed attack occurs against a Member of the United Nations, until the Security Council has taken measures necessary to maintain international peace and security.⁹

⁴ Article 2(4) UN Charter.

⁵ Article 2, UN General Assembly Resolution 3314(XXIX) (1974).

⁶ *Case Concerning Oil Platforms (Iran v. United States)*, ICJ Reports 2003, 161,189.

⁷ UNEF confirmed that Egypt had in fact shelled Israeli villages, but this was only after the Israel attack on Egyptian air bases. Indarjit Rikhye, *The Sinai Blunder: Withdrawal of the United Nations Emergency Force Leading to the Six Day War of June 1967* (1980), p. 145.

⁸ Moshe Dayan, *Story of My Life* (1976), p. 284.

⁹ Article 51, UN Charter.

Pre-emptive self-defence¹⁰ is when there has been no armed attack and a State uses force to prevent another State from being able to attack it. An example is the Israeli attack on the Iraqi nuclear reactor Osiris in 1981. Israel attacked the nuclear reactor in order to prevent Iraq from being able to produce nuclear weapons. A strong argument can be made for the rationale behind pre-emptive self-defence in cases of nuclear weapons and other weapons of mass destruction since the results of their use can be catastrophic. However, as of yet, international law does not recognise pre-emptive self-defence as being permitted under Article 51 of the Charter.¹¹ The language used in Article 51, on the face of it, does not allow a State to use force pre-emptively in order to prevent a possible attack, nor does it allow a State to use force as a response only to a threat.¹² According to the language of Article 51, there must be an actual use of force. In the Egyptian–Israeli context, once the bulk of the Egyptian army moved into Sinai, close to the border with Israel, it posed an existential risk to Israel. The Israeli army is composed mainly of reservists, the Egyptian army of regular forces. Israel would have had either to retain a permanent call up of reserves, thus crippling its economy, or take the risk that an Egyptian surprise attack would leave it unprotected. Nevertheless, international law, to date, does not recognise the legality of pre-emptive self-defence.¹³ Joyner describes this as a ‘gap between law and reality’.¹⁴ Some jurists argue that the phrase in Article 51, ‘inherent right’, implies that existing rights of self-defence continue to be valid and that in the past, pre-emptive self-defence was

¹⁰ Various sources use the phrases ‘pre-emptive’ and ‘anticipatory’ giving them different meanings. See Ashley S. Deeks, ‘Taming the Doctrine of Pre-Emption’ in Marc Weller, ed. *The Oxford Handbook of the Use of Force in International Law* (2015), pp. 661, 662.

¹¹ See Robbie Sabel, ‘The Legality of an Attack on Iranian Nuclear Facilities’, *Tel Aviv University Institute for National Security Studies*, Insight No. 345 (15 June 2012), www.inss.org.il/publications.php?cat=25&incat=&read=6732; A. D. Sofaer, ‘On the Necessity of Pre-emption’, *EJIL* 14 (2003), pp. 209, 221. Sofaer, however, appears to raise doubts about the legality of a US ‘preventive’ attack against Iranian nuclear facilities unless the program presented ‘an imminent threat’. Abraham D. Sofaer, *Taking on Iran: Strength, Diplomacy and the Iranian Threat* (2nd ed. 2012), p. 82.

¹² See Yoram Dinstein, *War Aggression and Self-Defence* (6th ed. 2017), pp. 222–228.

¹³ The UN Security Council condemned the Israeli action against the Iraqi nuclear reactor and ordered Israel to pay compensation to Iraq. UN Security Council Resolution, UN Doc. S/RES/487 (1981), 19 June 1981.

¹⁴ Daniel H. Joyner, ‘The Implications of the Proliferation of Weapons of Mass Destruction for the Prohibition of the Use of Force’ in Marc Weller, ed. *The Oxford Handbook of the Use of Force in International Law* (2015), pp. 1034, 1055.

recognised as legal.¹⁵ A UN body set up to examine the legality of pre-emptive self-defence, however, came to the conclusion that pre-emptive self-defence is only permitted if it has been approved by the UN Security Council.¹⁶ Thus, if the Israeli attack on the Egyptian Air Force in 1967 was solely in order to prevent a possible future Egyptian attack, it was not legal. Israel did not claim that it was acting in pre-emptive or anticipatory self-defence, although Joyner claims it was an act of pre-emptive use of force.¹⁷ Israel based its claim on self-defence as such.

10.4 Anticipatory Self-Defence

In the same manner that an individual does not have to wait until he is actually shot before taking action against somebody aiming a rifle at him, a State doesn't have to wait to be attacked before acting in self-defence. Dinstein writes, 'it is inconceivable that the defending State should have to sustain and absorb a devastating, perhaps overwhelming, strike merely to prove a legal point'.¹⁸ An armed attack by air clearly begins before the first bombs land on their targets. Bowett writes, 'no state can be expected to await an initial attack which, in the present state of armaments, may well destroy the state's capacity for further resistance and so jeopardise its very existence'.¹⁹ Aust comments in a similar vein: 'No state is obliged to wait until the enemy missiles actually strike.'²⁰ Stone's description is 'Article 51 does not compel a State to remain inert, like a "sitting duck" before even the direst and most overwhelming peril'.²¹ Yet there are wide differences of view as to how much earlier the attack can be said to

¹⁵ This argument is based on the theory that the *Caroline* case (described in R. Y. Jennings, 'The Caroline and McLeod Cases', AJIL 32 [1938], pp. 82–89), was an example of pre-emptive self-defence. Yoram Dinstein, and others, dispute this. Dinstein, *War Aggression and Self-Defence*, pp. 296–297.

¹⁶ Report of High Level Panel on Threats, Challenges and Change, Addressed to the Secretary General (2004), UN Doc. A/59/565.

¹⁷ Joyner, 'The Implications of the Proliferation of Weapons of Mass Destruction for the Prohibition of the Use of Force', pp. 1034, 1039.

¹⁸ Yoram Dinstein, "Para-War" and Peace in the Middle East' in J. N. Moore, ed. *The Arab-Israeli Conflict. Vol. II: Readings* (1974), p. 161.

¹⁹ D. W. Bowett, *Self Defence in International Law* (1958), p. 118.

²⁰ Anthony Aust, *Handbook of International Law* (2005), p. 228.

²¹ Julius Stone, 'The Middle East under Cease Fire' in J. N. Moore, ed. *The Arab-Israeli Conflict. Vol. II: Readings* (1974), p. 73.

begin.²² Dinstein proposes that the criterion be that 'the other side has committed itself to an armed attack in an ostensibly irrevocable way'.²³ Greenwood writes, 'there is, however, a strong case that international law still recognizes a right of anticipatory self-defence in circumstances in which an armed attack is imminent'.²⁴ The High Level Panel established by the UN Secretary-General took a similar approach in its report, in which it stated that 'a threatened State, according to long established international law, can take military action as long as the threatened attack is imminent, no other means would deflect it and the action is proportionate'.²⁵ The usual criterion for allowing self-defence is that of imminence of attack, yet there is no agreed formula to define when an attack is imminent and it has to be examined on a case-by-case basis. A Chatham House study concluded that 'the criterion of imminence requires that it is believed that any further delay in countering the intended attack will result in the inability of the defending State effectively to defend itself against the attack'.²⁶ The UN 'Palmer' report on the Turkish Flotilla incident states:

The founding case in this regard relates to the Caroline incident of 1837 and stands for the proposition that self-defence is confined to cases where there is 'a necessity of self-defence, instant, overwhelming, leaving no choice of means, and no moment for deliberation'. This formulation has been widely accepted since. The test embraces the concept that an imminent armed attack allows some element of anticipation.²⁷

10.4.1 *Did Egypt Carry Out the Beginning of an Armed Attack?*

While Israel fired the first shot, it can be argued that the accumulation of Egypt's actions amounted to an armed attack against Israel. Dinstein's

²² Christopher Greenwood, 'Self-Defence' in *Max Planck Encyclopedias of International Law*, para. 42. <https://opil.ouplaw.com/view/10.1093/law:epil/9780199231690/law-9780199231690-e401?rskey=pL9Pas&result=1&prd=MPIL>.

²³ Dinstein, *War Aggression and Self-Defence*, p. 233.

²⁴ Greenwood, 'Self-Defence', para. 45.

²⁵ A More Secure World: Our Shared Responsibility, Report of High-level Panel on Threats, Challenges and Change, established by the UN Secretary-General, UN Doc. A/59/565, 2 December 2004, para. 188.

²⁶ Elizabeth Wilmshurst, The Chatham House Principles of International Law on the Use of Force in Self-Defence, October 2005, para. 51, www.chathamhouse.org/sites/default/files/publications/research/2005-10-01-use-force-states-self-defence-wilmshurst.pdf.

²⁷ Report of the Secretary-General's Panel of Inquiry on the 31 May 2010 Flotilla Incident, <https://unispal.un.org/pdfs/GazaFlotillaPanelReport.pdf>.

evaluation is that it is 'true no single Egyptian step can be subsumed per se under the heading of armed attack, but the *series* of actions undertaken at that time must be analyzed in the light of their cumulative effect'.²⁸ Dinstein explains:

While Israel was the first to open fire, a careful examination of the events surrounding the outbreak of the hostilities (assuming it was conducted in good faith, at the time of the action) would lead to the conclusion that the Israeli campaign amounted to an interceptive self-defence, in response to an incipient armed attack by Egypt (later joined by Jordan and Syria). True, no single Egyptian step, evaluated alone, may have qualified by itself as an armed attack, but when all the measures taken by Egypt (especially the closure of the Straits of Tiran, the peremptory ejection of the United Nations Emergency Force from the Sinai Peninsula and the Gaza Strip, the unprecedented build-up of Egyptian forces along Israel's borders; and constant sabre-rattling statements about the impending fighting) were assessed in the aggregate, it seemed to be crystal-clear that an Egyptian armed attack was at an early stage, and the sole question was not whether full-scale hostilities would materialize but when.²⁹

To this list could be added the fact that Jordan and Egypt signed a mutual defence treaty whereby the Jordanian Army was placed under Egyptian command. Egypt increased its forces in Sinai from 35,000 to 80,000.³⁰ An example of the 'sabre-rattling' that Dinstein describes is the Order of the Day of the Egyptian Commander General Mortaji on June 3: 'This is the day we have been waiting for – to restore the plundered land to its rightful owners. I have been asked, when will the time come for the Jihad? The time is now.'³¹ In his speech before the Central Council of Arab Trade Unions on 26 May 1967, Nasser stated:

The Arab people want to fight. We have been waiting for the suitable day when we shall be completely ready, since if we enter a battle with Israel we should be confident of victory and should take strong measures. We do not speak idly. We have lately felt that our strength is sufficient and that if we enter the battle with Israel we shall, with God's help, be victorious. Therefore, we have now decided to take real steps. The United Nations Emergency Force stays as long as we wish and until we are ready. I have said at one time that within half an hour, we can say to UNEF: 'Go'. And

²⁸ Dinstein, "Para-War" and Peace in the Middle East', p. 161.

²⁹ Dinstein, *War Aggression and Self-Defence*, p. 212.

³⁰ David Ben-Gurion, *Israel: A Personal History* (1972), p. 759.

³¹ *Ibid.*, p. 771.

this is what has really happened. The battle will be a full-scale one and our basic aim will be to destroy Israel.³²

On Egyptian television, on 1 June, the commander of the Egyptian Air Force told his audience that ‘the Egyptian forces spread from Rafah to Sharm el Sheikh are ready for the order to begin the struggle to which we have looked forward for so long’.³³ The prime minister of Iraq gave a speech stating ‘this is the day of the battle to revenge your martyred brethren who fell in 1948. It is the day to wash away the stigma. We shall, God willing, meet in Tel Aviv and Haifa’.³⁴ Wright explains, ‘it would appear that the well-authenticated acts of Egypt especially its insistence that “a state of war” existed and its policy to terminate the existence of Israel accompanied by the closure of the Straits of Tiran and extensive mobilization on the Israel frontier could be regarded as amounting to an armed attack on Israel’. Wright goes on to state that, on the other hand, Israel’s ‘massive air and land attacks initiated the war on June 5’.³⁵

Quigley disputes the assertion that Israel was acting in self-defence, writing that the Egyptian military dispositions in Sinai were defensive by nature, and Egypt’s military preparations were to deter Israel from attacking Syria, and Israel was aware of this.³⁶ The American intelligence estimates were that the Egyptian army was not poised to attack Israel at their own initiative. Dayan quotes Eban’s evaluation of the American judgement that ‘while Egypt would probably take military action against Israel, an *immediate* attack was not expected’.³⁷ Quigley writes, ‘Israel-Palestine peace efforts are hampered by the persistence of the view that Israel acted in lawful self-defence in 1967’.³⁸

³² Quoted from Gideon Raphael at Security Council, UN Doc. S/PV 1343, 29 May 1967, para. 184.

³³ Quoted from Gideon Raphael at Security Council, UN Doc. S/PV 1346, 3 June 1967, 1967, para. 18.

³⁴ Quoted from Charles W. Yost, ‘The Arab-Israeli War: How It Began’ in J. N. Moore, ed. *The Arab-Israeli Conflict. Vol. II: Readings* (1974), p. 18. Charles Yost was US Ambassador to the UN at the time.

³⁵ Quincy Wright, ‘The Middle East Crisis: The Closing the Strait of Tiran as an Armed Attack’ in J. N. Moore, ed. *Arab-Israeli Conflict. Vol. II: Readings* (1974), p. 131.

³⁶ John Quigley, *The Six-Day War and Israeli Self-Defense: Questioning the Legal Basis for Preventive War* (2013), pp. 13, 14.

³⁷ Dayan, *Story of My Life*, p. 275. Emphasis in the original.

³⁸ Quigley, *The Six-Day War and Israeli Self-Defense*, p. i.

10.4.2 *Closing the Strait of Tiran as an Armed Attack*

Above and beyond the accumulation of other acts and statements, it can be argued that the action of Egypt in closing the Strait of Tiran to Israeli shipping and Israeli-bound shipping was, of itself, an armed attack even though they did not actually fire at ships. Eban explained to De Gaulle, in a meeting in Paris, 'a State could be attacked by many methods apart from gunfire. Civil law recognized no distinction between assault through strangulation and assault through shooting. Nor did international law'.³⁹ Rostow writes, 'when the Egyptian troops manned the guns controlling the Straits and announced that the waterway was closed to Israeli shipping, the first shot in the Six Day War had been fired'.⁴⁰ It has been argued, against this theory, that there was very little Israeli shipping that actually utilised the Straits. Most of Israel's oil imports, however, came through the Strait, albeit on foreign-flagged vessels. Quigley states that there was 'uncertainty on the Israeli side about its assertion that Egypt's shipping restrictions were cause for war against Egypt'.⁴¹ Quigley quotes reports that passage through the Straits of Tiran was not really vital to Israel. He adds, however, 'in the mid-1960s the bulk of Israel's oil did come from Iran via [The Straits of Tiran to] Eilat and Nasser told the Soviet Ambassador and UN Secretary General "he would indeed stop oil tankers seeking to enter the Strait of Tiran"'.⁴² Quigley also raises a number of issues to contradict the claim that Israel was entitled to go to war in order to allow shipping through the Strait of Tiran. One claim is that Israel had no shipping rights in the Gulf, as Eilat, the Israeli port on the Gulf, was occupied by Israel in violation of a 1948 ceasefire. A second claim is that the Straits of Tiran are not an international Strait but purely Egyptian territorial waters.⁴³ Quigley also raises the claim that Egypt and Israel were still at war and Egypt had belligerent rights. A response could be that if Egypt had the right to take belligerent steps, then Israel also had such a right. Quigley also argues that even if Israel did have a right of passage through the Straits, it cannot use force to obtain it and that going to war is not a proportional reaction to closing the Straits.⁴⁴ A response

³⁹ Abba Eban, *An Autobiography* (1977), p. 342.

⁴⁰ Eugene Rostow, *UN Security Council Resolution 242: The Building Block of Peacemaking* (1992), p. 13.

⁴¹ Quigley, *The Six-Day War and Israeli Self-Defense*, p. 69.

⁴² *Ibid.*, pp. 22, 30.

⁴³ The question of the status of the Tiran Straits is dealt with in Chapter 22.

⁴⁴ Quigley, *The Six-Day War and Israeli Self-Defense*, pp. 46–58.

could be that blockading the Straits by Egypt was the first use of force. The only way to remove the Egyptian forces blockading the Straits was by defeating the Egyptian army in Sinai, and Israel did not move into Egyptian territory beyond Sinai, although presumably Israel had the military capability of doing so.⁴⁵ US President Johnson gave his opinion:

A third lesson from this last month is that maritime rights must be respected. Our nation has long been committed to free maritime passage through international waterways; and we, along with other nations, were taking the necessary steps to implement this principle when hostilities exploded. If a single act of folly was more responsible for this explosion than any other, I think it was the arbitrary and dangerous announced decision that the Strait of Tiran would be closed. The right of innocent maritime passage must be preserved for all nations.⁴⁶

Gill, who reaches the conclusion that the Israeli attack was ‘an example of a reasonable and justified recourse to anticipatory self-defense’, nevertheless is of the opinion that the blockade of the Strait of Tiran was not, in of itself, an armed attack.⁴⁷

Ben-Gurion writes, ‘Nasser knew very well that closing the Straits was tantamount to declaring war against Israel and that was his intention’. ‘Two submarines, one destroyer and four missile boats set out from their Mediterranean base in order to blockade Israeli shipping in the Red Sea. On 20 May, an Egyptian force consisting of a paratroop battalion and an infantry brigade reached Sharm el-Sheikh and long-range Soviet-made 130mm guns were emplaced there.’⁴⁸ Dayan notes, ‘Egypt had moved more than half her armed strength into Sinai’. ‘Nasser knew well that his aggressive moves – particularly closing the Straits of Tiran – would be viewed as an act of war by Israel’. Egypt began enforcing the blockade and ‘two German ships were stopped at the Straits of Tiran, checked, and only after it was found that their destination was the Jordanian port of

⁴⁵ Stone, ‘The Middle East under Cease Fire’, p. 57.

⁴⁶ US President Johnson on 19 June, in an address at the National Foreign Policy Conference of Educators in Washington, www.mfa.gov.il/mfa/foreignpolicy/mfadocuments/yearbook1/pages/26%20address%20by%20president%20johnson-%2019%20june%201967.aspx.

⁴⁷ Terry D. Gill, ‘The Temporal Dimensions of Self-Defense: Anticipation, Pre-emption and Immediacy’ in Michael N. Schmitt and Jelena Pejic, eds. *International Law and Armed Conflict: Exploring the Faultlines: Essays in Honour of Yoram Dinstein* (2007), pp. 138, 139.

⁴⁸ Ben-Gurion, *Israel*, pp. 758, 771.

Aqaba, not Israel, were they allowed to proceed'.⁴⁹ Quandt reports that Israel had informed the United States in 1957 that 'such action would be considered a *casus belli*' and the United States 'had recognized that if force were used to close the strait, Israel would be within her rights under Article 51 of the UN Charter to respond with force'.⁵⁰

10.5 The UN and Defining Who Was the Aggressor in the Six Days War

The Soviet Union introduced a draft resolution in the Security Council that stated, *inter alia*, that the Security Council 'vigorously condemns Israel's aggressive activities'.⁵¹ The draft did not achieve the necessary nine affirmative votes and thus there was no need for a US veto. The Soviet Union presented a similar draft to the UN General Assembly, which stated:

Noting that Israel, in gross violation of the United Nations Charter and the universally accepted principles of international law, has committed a premeditated and previously prepared aggression against the United Arab Republic, Syria and Jordan.⁵²

Although there is usually an automatic anti-Israeli majority in the UN General Assembly, nevertheless, the Soviet draft was defeated. Stone comments that the question whether Israel acted in self-defence 'would have to be regarded as resolved in favour of the State of Israel by the rejection by the majorities in the Security Council and the General Assembly of all resolutions charging aggression by Israel'.⁵³ A number of leading international jurists reached a similar conclusion to that of Stone.⁵⁴ Quigely, in his book on the War, reviews the arguments for against the legality of Israel's actions and concludes that Israel was the aggressor. He writes, 'the flawed perception of the June 1967 war serves to perpetuate conflict in the Middle East. It also serves to promote the expansion of the concept of self-defense and thereby to erode the

⁴⁹ Dayan, *Story of My Life*, pp. 244, 248.

⁵⁰ William B. Quandt, *Decades of Decisions: American Policy toward the Arab-Israeli Conflict, 1967–1976* (1977), pp. 41, 44.

⁵¹ UN Doc. S/7951 Rev.1, 8 June 1967.

⁵² UN Doc. L.519 (1967), A/PV. 1526, 19 June 1967.

⁵³ Stone, 'The Middle East under Cease Fire', p. 64.

⁵⁴ Malcolm Shaw, *International Law* (8th ed. 2017), p. 866; Geoffrey R. Watson, *The Oslo Accords: International Law and the Israeli–Palestinian Peace Agreements* (2000), p. 30.

prohibition against use of force'.⁵⁵ Moore, however, writes, 'the most persuasive assessment seems to be that the Israeli actions in the War were lawful defense actions'.⁵⁶

10.6 Jordan, Iraq and Syria

After the Israeli strike on Egyptian airfields, the Jordanian army, which was under Egyptian command, initiated shelling of West Jerusalem.⁵⁷ The Syrian army initiated limited shelling of Israeli villages and attempted to capture the Israeli kibbutz Dan, in the north of the Galilee panhandle. Iraqi aircraft attacked Israeli military and civilian targets. Jordan, Iraq and Syria claimed that their actions were legal as they were responding to Egyptian requests for help in accordance with the right of collective self-defence.⁵⁸ A State is entitled to come to the aid of another State that was attacked and requests such aid. 'The requirement of a request by the State which is the victim of the alleged attack is additional to the requirement that such a State should have declared itself to have been attacked.'⁵⁹ If Egypt was the victim of Israeli aggression then the actions of Jordan, Iraq and Syria were legal. If, however, Egypt was not acting in lawful self-defence then the actions of Jordan, Iraq and Syria, in coming to the aid of Egypt, were an unlawful use of force.

10.7 The Removal of UNEF and the Role of Peacekeeping Forces

Following the 1956 Suez and Sinai Campaigns, a United Nations peacekeeping force, United Nations Emergency Force (UNEF) was stationed in Sinai, in Gaza, at Sharm el-Sheikh and along the Egypt-Israel border.⁶⁰ UNEF was a peacekeeping force, not a Chapter VII enforcement, and as

⁵⁵ Quigley, *The Six-Day War and Israeli Self-Defense*, p. 191.

⁵⁶ John Norton Moore, 'The Arab-Israeli Conflict and the Obligation to Pursue Peaceful Settlement of International Disputes', *University of Kansas Law Review* 19 (1971), pp. 403, 425.

⁵⁷ 'Jordanian Forces Launched an Offensive into Israel', www.kinghussein.gov.jo/his_periods3.html.

⁵⁸ Allan Gerson, *Israel, the West Bank and International Law* (1978), p. 71: The Syrian delegate to the UN Security Council, UN Doc. S/PV.1353, 9 June 1967, p. 12.

⁵⁹ *Case Concerning Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States of America)* Merits Judgment of 27 June 1986, para. 199.

⁶⁰ UN General Assembly Resolution 1001 (ES-I), 7 November 1956. The stationing of UNEF at Sharm el-Sheikh came at a later stage, as part of Israel's conditions for withdrawing its troops from there.

regards the stationing of such a force, the UN Secretary General reported, 'consent of the parties concerned is required under generally recognized international law. The General Assembly could not request the Force to be stationed or operate on the territory of a given country without the consent of the Government of that country'.⁶¹ On 16 May 1967, Egypt demanded the removal of UNEF from the Egyptian-Israeli border (but not from Gaza and Sharm el-Sheikh). UN Secretary General U Thant responded that UNEF could not abandon some of its positions and remain in others. Consequently, on 17 May, Nasser ordered all UNEF forces out of Sinai and two days later they were withdrawn including from Gaza and Sharm el-Sheikh. This action aroused controversy as Egypt and the UN had agreed in an aide-mémoire that 'the government of Egypt declares that, when exercising its sovereign rights on any matter concerning the presence and functioning of UNEF, it will be guided, in good faith, by its acceptance of General Assembly resolution 1000 (ES-I) of 5 November 1956'.⁶² The UN Secretary General gave his opinion regarding this aide-mémoire:

The consequence of such a bilateral declaration is that, were either side to act unilaterally in refusing continued presence or deciding on withdrawal, and were the other side to find that such action was contrary to a good-faith interpretation of the purposes of the operation, an exchange of views would be called for towards harmonizing the positions. This does not imply any infringement of the sovereign right of the host Government, nor any restriction of the right of the United Nations to decide on the termination of its own operation whenever it might see fit to do so. But it does mean a mutual recognition of the fact that the operation, being based on collaboration between the host Government and the United Nations, should be carried on in forms natural to such collaboration, and especially so with regard to the questions of presence and maintenance.⁶³

Bailey comments that the aide-mémoire 'had not been issued as a UN document and its existence was not known beyond a small circle'.⁶⁴ He writes that the UN Secretary General U Thant 'had no legal basis for challenging Egypt's right to withdraw consent for the presence of the UN

⁶¹ Report of the UN Secretary General, UN Doc. A/3302 (1956), 6 November 1956, paras. 4, 9.

⁶² UN Doc. A/3375, 20 November 1956.

⁶³ General Assembly – Thirteenth Session – Annexes, UN Doc. A/3943, Summary study of the Experience derived from the Establishment and Operation of the Force: Report of the Secretary-General, 9 October 1958, para. 158.

⁶⁴ Sydney D. Bailey, *The Making of Resolution 242* (1985), p. 117.

force'.⁶⁵ Elaraby's view of the agreed aide-mémoire was that 'it certainly would have been uncontroversial and of benefit if U Thant had requested the UAR to clarify its intent'.⁶⁶ Lall comments on the withdrawal of UNEF:

Egypt's action was an admission of default in its obligations under the Armistice Agreement. If it felt that Israel was about to attack an Arab country, then Egypt's obligations required it to ask for remedial action through the United Nations. A demand for withdrawal of the Force in order to battle effectively with the adversary was in direct opposition to the whole series of actions comprising the creation of the Force.⁶⁷

Eban writes, regarding the withdrawal of UNEF, 'what had for ten years appeared to be a stable international reality turned out, within two hours, to be as unsubstantial as a spider's web'.⁶⁸ Elaraby makes the point that the Egyptian request was at first related only to withdrawing UNEF from positions along the Armistice line and from Sharm el Sheikh. In Elaraby's opinion, Secretary General U. Thant's readiness to withdraw the Force without prior consideration by the General Assembly is perhaps the cause of all the criticism heaped on him.

10.8 Miscalculations

The American judgement, at the time, was that Egypt would probably take military action against Israel but an immediate attack was not expected.⁶⁹ There was, however, a very real possibility that although Nasser did not initially intend imminently to attack Israel, he might have been carried away by his own rhetoric or, as Disraeli described Gladstone, 'inebriated with the exuberance of his own verbosity'.⁷⁰ Shapiro comments that 'it is irrelevant whether an imminent Egyptian attack was calmly premeditated or the inevitable (and possibly

⁶⁵ Ibid., p. 2.

⁶⁶ Nabil Elaraby, 'United Nations Peacekeeping by Consent: A Case Study of the Withdrawal of the United Nations Emergency Force', *New York University Journal of International Law and Politics* 1 (1968), pp. 149, 172. Later, Elaraby was Egyptian Ambassador to the UN.

⁶⁷ Arthur Lall, *The UN and the Middle East Crisis, 1967* (1968), p. 19. Lall was Indian Ambassador to the UN at the time.

⁶⁸ See Eban, *An Autobiography*, p. 323.

⁶⁹ Dayan, *Story of My Life*, p. 275. Emphasis in the original.

⁷⁰ Benjamin Disraeli, Speech, 27 July 1878, *Stevenson's Book of Quotations: Classical and Modern, Selected and Arranged by Burton Stevenson* (10th ed. 1967), p. 779.

unforeseen) product of a chain of events, or a brinkmanship situation, unwittingly triggered off by Egypt. The good faith and reasonableness of the initial decision to act in self-defence must be examined in terms of the conditions prevailing at the time the decision was taken, not with the wisdom of hindsight'.⁷¹ In May 1967, Hans Tabor, the Danish Ambassador to the UN presciently analysed the situation: 'There has been a military build-up along the borders of Israel and the United Arab Republic. The slightest miscalculation, the slightest misunderstandings of one or the other side of the opponent's intentions could lead to large scale hostilities.'⁷² Eban, in a speech to the UN Security Council, explained:

On Saturday, 13 May – just two weeks ago – the streets of Cairo reverberated with the sound of tanks and the cries of agitated crowds whipped up by cheerleaders chanting: 'We want war with Israel'. We in Israel looked on this spectacle with detachment, thinking that this was just one more outburst of chauvinistic frenzy, which is such a common feature of the Arab military dictatorship regimes. But the tanks and the marching columns did not return to barracks. They moved forward into Sinai as the spearhead of a massive military concentration along the southern borders of Israel.⁷³

10.9 Concluding Remarks

It is not clear whether Egypt did in fact intend to invade Israel in June 1967. Egypt, however, mobilised its forces and moved them into Sinai near the border with Israel, placed the Jordanian army under Egyptian command, coordinated its military plans with other Arab States, demanded the removal of UNEF and closed the Strait of Tiran. These actions, combined with bellicose statements, it can be argued, gave Israel legitimate reason to apprehend that an attack was imminent. It might well be that the closing of the Strait of Tiran, was, in itself, an armed attack. Israel's use of force was legitimate if it had, at the time, a reasonable belief that an Egyptian attack had taken place or was imminent. According to modern international law, Israel's use of force was not legitimate if it was a pre-emptive strike to prevent the possibility of an

⁷¹ Amos Shapiro, 'The Six-Day War and the Right of Self-Defence' in J. N. Moore, ed. *The Arab-Israeli Conflict. Vol. II: Readings* (1974), pp. 205, 216.

⁷² UN Doc. S/PV.1341, 24 May 1967, para. 69.

⁷³ UN Doc. S/PV 1343, 29 May 1967, para. 158.

Egyptian attack. Neither the UN Security Council nor the UN General Assembly took a position as to who was the aggressor in the Six Day War.

As a result of the June 1967 Six Day War, 'the region's strategic geography had been virtually turned upside down'⁷⁴ and led to changes in the area that will be examined in the following chapters.

⁷⁴ David Schoenbaum, *The United States and Israel* (1993), p. 159.

UN Security Council Resolution 242

On 22 November 1967, five months after the June '67 Six Day War, the UN Security Council unanimously adopted Resolution 242. The Resolution was adopted after intensive negotiations between the members of the Council and consultation with Israel and the Arab States. The text of the Resolution reads

The Security Council,

Expressing its continuing concern with the grave situation in the Middle East,

Emphasizing the inadmissibility of the acquisition of territory by war and the need to work for a just and lasting peace in which every State in the area can live in security,

Emphasizing further that all Member States in their acceptance of the Charter of the United Nations have undertaken a commitment to act in accordance with Article 2 of the Charter,

- (1) *Affirms* that the fulfilment of Charter principles requires the establishment of a just and lasting peace in the Middle East which should include the application of both the following principles:
 - (i) Withdrawal of Israel armed forces from territories occupied in the recent conflict;
 - (ii) Termination of all claims or states of belligerency and respect for and acknowledgment of the sovereignty, territorial integrity and political independence of every State in the area and their right to live in peace within secure and recognized boundaries free from threats or acts of force;
- (2) *Affirms further* the necessity
 - (i) For guaranteeing freedom of navigation through international waterways in the area;
 - (ii) For achieving a just settlement of the refugee problem;
 - (iii) For guaranteeing the territorial inviolability and political independence of every State in the area, through measures including the establishment of demilitarized zones;
- (iv) *Requests* the Secretary-General to designate a Special Representative to proceed to the Middle East to establish and maintain contacts with

the States concerned in order to promote agreement and assist efforts to achieve a peaceful and accepted settlement in accordance with the provisions and principles in this resolution;

- (v) *Requests* the Secretary-General to report to the Security Council on the progress of the efforts of the Special Representative as soon as possible.¹

11.1 Is UNSC Resolution 242 Binding?

The UN Charter stipulates that ‘the Members of the United Nations agree to accept and carry out the decisions of the Security Council in accordance with the present Charter’.² The ICJ has ruled that decisions under Chapter VI can also be binding;³ however, the generally accepted understanding of States is that binding decisions are only those adopted under Chapter VII of the Charter.⁴ Resolution 242 was not adopted under Chapter VII and the Resolution, furthermore, refrains from using the word ‘decides’ or ‘decision’.⁵ The official UN *Repertoire* of Security Council practice lists Resolution 242 as a Chapter VI Resolution.⁶ The Resolution, when adopted, was not therefore binding on the parties.

All the parties to the Arab–Israeli conflict, however, have subsequently accepted Resolution 242⁷ and it has therefore become binding consensually. Resolution 242, moreover, is referred to in all agreements reached since then between Israel and her neighbours, including the ‘Oslo’

¹ UN Doc. S/RES/242 (1967), 22 November 1967.

² Article 25 UN Charter.

³ ICJ Advisory Opinion 1971, *Legal Consequences for States of the Continued Presence of South Africa in Namibia (South West Africa) notwithstanding Security Council Resolution 276* (1970), para. 113.

⁴ Anthony Aust, *Handbook of International Law* (2005), p. 214: ‘Most Council resolutions contain only exhortations or recommendations, and are informally referred to as “Chapter VI resolutions”, since under that chapter the Council cannot impose legally binding measures. That can only be done under Chapter VII, or Chapter VIII when the Council authorises enforcement measures by regional bodies.’

⁵ For statements by delegations to the UN Security Council that Resolution 242 was negotiated within the framework of Chapter VI of the Charter, see Amos Shapira, ‘The Security Council Resolution of November 22, 1967 – Its Legal Nature and Implications’ in J. N. Moore, ed. *The Arab-Israeli Conflict. Vol. II: Readings* (1974), pp. 566–578.

⁶ *Repertoire of the Practice of the Security Council*, Supplement 1966–1968, pp. 183, 18; Art. 36, *Repertory*, Suppl. 4, vol. I (1966–1969).

⁷ For details of when the States announced their acceptance of Resolution 242, see Sydney D. Bailey, *The Making of Resolution 242* (1985), pp. 178, 179. Syria accepted the resolution subject to its own interpretation, ‘Al Assad Notes Progress on Revolution Anniversary’, *FBIS* (9 March 1972), pp. 1–15.

Agreements between Israel and the PLO.⁸ Resolution 242, thus, is accepted as the agreed framework for future settlement of the conflict and, consequently, much attention and analysis has been devoted to the wording of the Resolution.

11.2 Defining Who Was the Aggressor in the Six Day War

The first operative paragraph of a draft resolution proposed to the UN Security Council by the Soviet Union condemned 'Israel's aggressive activities'.⁹ Only four States voted in favour and the resolution did not obtain the necessary majority. Lall makes the point that, out of the fifteen member States, the remaining eleven States, including four permanent members abstained in the vote. They abstained in order to emphasise that the draft failed not because of vetoes cast but for failure to obtain a majority.¹⁰ Gill writes that the fact that Resolution 242 did not condemn Israel's action 'would seem to be an implicit acknowledgment of the legality of Israel's action'.¹¹ Arthur Goldberg writes 'Israel was not condemned as the aggressor because of the widely shared conviction that President Nasser's actions – particularly the eviction of the U.N. peacekeeping forces, the movement of Egyptian troops into the Sinai, and the closing of the Straits of Tiran – provoked the war'.¹² The UN General Assembly also refrained from defining Israel as the aggressor. Quigley, however, comments, 'the Security Council skirted the issue of liability'.¹³

⁸ Declaration of Principles on Interim Self-Government Arrangements, September 13, 1993, https://web.archive.org/web/20021115183950/http://knesset.gov.il/process/docs/oslo_eng.htm.

⁹ UN Doc. S/7951/Rev.2, 13 June 1967.

¹⁰ Arthur Lall, *The UN and the Middle East Crisis* (1968), p. 103.

¹¹ Terry Gill, 'The Temporal Dimensions of Self-Defense: Anticipation, Preemption, Prevention and Immediacy' in Michael Schmitt and Jelena Pejic, eds. *International Law and Armed Conflict: Exploring the Faultlines: Essays in Honour of Yoram Dinstein* (2007), pp. 113, 136, 137.

¹² Arthur Goldberg, 'Resolution 242 after Twenty Years' in The National Committee on American Foreign Policy, eds. *U.N. Resolution 242: Origin, Meaning, and Significance* (April 2002), p. 5, ncafp.org/articles/02%20U%20N%20%20Resolution242%206-02.pdf. Arthur J. Goldberg was a justice of the Supreme Court of the United States and US ambassador to the United Nations 1965–1968.

¹³ John Quigley, *The Six-Day War and Israeli Self-Defense: Questioning the Legal Basis for Preventive War* (2013), pp. 112.

11.3 'The Preamble' to the Resolution

The preamble contains the phrase 'inadmissibility of acquisition of territory by war'. This phrase reflects modern international law. In the past, the victor in a war could annex enemy territory, but it is no longer recognised as a legitimate method of acquiring sovereignty.

Quigley writes:

The phrase 'the inadmissibility of the acquisition of territory by war' was written into a preamble clause, rather than an operative clause, where it would have carried more weight. That phrase, in any event, related not to the initiation of hostilities but to whether Israel might claim sovereignty in the territories it occupied. A state occupying territory in warfare gains no sovereignty, even if it acted in self-defence. The phrase was inserted to foreclose any possible sovereignty claim.¹⁴

McHugo emphasises the 'strength of the word inadmissibility' in the Resolution and that 'the abolition of conquest extends to a prohibition of the acquisition of any territory by a state in actions of self defence'. The vexed question of 'who attacked whom' is therefore irrelevant.¹⁵ During the Security Council debate, Eban made the point that 'if territorial dispositions based on military considerations are 'inadmissible' then the inadmissibility applies to territories occupied by Egypt and Jordan in defiance of cease-fire and truce resolutions in May 1948'.¹⁶ During the 1978 Camp David talks, the Egyptians wanted the phrase regarding 'inadmissibility' to appear in the framework document as, in their opinion, inclusion of the phrase 'should mean that Israel would have to give up the West Bank and Gaza eventually'.¹⁷

The preamble phrase refrains from stating that 'occupation' of territory by war is inadmissible. Mere occupation of a territory during an armed conflict does not grant sovereignty, it is not, however, illegal. Occupation of enemy territory in time of armed conflict is legal and members of the Council were unwilling to define it as an illegal act. A draft resolution proposed to the Council had in fact stated, 'occupation

¹⁴ Ibid., p. 111.

¹⁵ John McHugo, 'Resolution 242: A Legal Reappraisal of the Right Wing Israeli Interpretation of the Withdrawal Phrase with Reference to the Conflict Between Israel and the Palestinians', *ICLQ* 51 (October 2002), pp. 851, 857, reprinted in Victor Kattan, ed., *The Palestine Question in International Law* (2008), p. 364.

¹⁶ Abba Eban, UN Doc. S/PV.1375, p. 28.

¹⁷ William B. Quandt, *Camp David: Peacemaking and Politics* (1986), p. 242.

or acquisition of territory by military conquest is inadmissible',¹⁸ the draft resolution was not adopted. The preamble also makes a reference to Article 2 of the Charter which prohibits the use of force in international relations and calls upon States to settle their international disputes by peaceful means.

Wood, writing on Security Council Resolution 242, makes a general caveat as to preambles to Security Council Resolutions, 'they can give guidance to their objects and purpose, but they need to be treated with caution since they tend to be used as a dumping ground for proposals that are not acceptable in the operative paragraphs. And there is no conscious effort to ensure that the object and purpose of each operative provision is reflected in the preamble'.¹⁹

11.4 The Withdrawal from Territories Clause

The Resolution uses the phrase 'withdrawal from territories' and there is a continuing debate as to whether complying with this requires Israel withdrawal from all the territories to the 4 June 1967 line.²⁰ Arguments supporting the interpretation that the Resolution called for withdrawal from all the territories place reliance on the preambular phrase of the Resolution, 'emphasizing the inadmissibility of the acquisition of territory by war'.²¹ A further argument is that, in the UN, all official languages have the same validity and the French version of the Resolution has the definite article and reads 'Retrait des forces armées israéliennes des territoires occupés'. The French delegate to the UN stated at the time that the French translation was 'une interprétation indiscutable' of the phrase in English.²² Boutros-Ghali writes, 'Resolution 242 has been

¹⁸ Draft resolution submitted by India, Mali and Nigeria, UN Doc. S/8227, 7 November 1967.

¹⁹ Michael C. Wood, 'The Interpretation of Security Council Resolution 242', *Max Planck Yearbook of United Nations Law* (1998), p. 81. Michael Wood served as the Legal Advisor to the British Foreign Office, www.mpil.de/files/pdf2/mpunyb_wood_2.pdf.

²⁰ The phrases 'Green Line' and '1949 Armistice Line' are synonymous with the phrase 'June 4 line' as regards the West Bank.

²¹ See, for example, McHugo, *Resolution 242*, p. 875, reprinted in Kattan *The Palestine Question in International Law*, p. 381.

²² UN Doc. S/PV.1382, 22 November 1967, paras. 110–111. Tabory hints that one of the explanations to the agreement of the members of the Council to the English version of the Resolution could be that the definite article 'the' being absent in the Russian language and not always necessary in English. Mala Tabory, *Multilingualism in International Law and Institutions* (1980), p. 135.

applied according to the French, Spanish, and Russian texts. The fact that there is a slight ambiguity in the English text makes no difference'.²³ Mazzawi argues that the only binding interpretation of the Resolution should be based on 'the presumed intentions of the members of the Security Council' and 'the principles of the United Nations Charter' and other UN Resolutions.²⁴ On this basis, Maszzawi deduces that the Resolution requires withdrawal from all the territories, quoting a speech by US Secretary of State William Rogers, that 'any changes in the pre-existing lines should not reflect the weight of conquest and should be confined to insubstantial alterations required for mutual security'.²⁵ McHugo argues, 'the representatives of ten of the fifteen voting members made a point of stating on the record that they considered that the Resolution provided that Israel had no right to acquire any of the territories occupied in the Six Day War. And that it followed from this that the requirement to withdraw extended to all these territories'.²⁶ The Indian delegate, when explaining his vote on the Resolution, stated, 'it is our understanding that the draft resolution, if approved by the Council, will commit it to the application of the principle of total withdrawal of Israeli forces from all the territories'.²⁷ Riad, the Egyptian Foreign Minister, writes that Caradon had reassured the Arab delegations that 'Israel was to withdraw on all fronts' and that he, Riad, understood this to mean, 'withdrawal would be total'.²⁸ McHugo argues that 'the absence of the word "all" does not imply that "some" was intended'. He gives the example that common sense would imply that a sign saying 'dogs must be kept on the lead near ponds in the park' would apply to all dogs even though the word 'all' is not on the sign.²⁹ Bailey sums up the controversy by stating, 'it can be argued, that whatever the resolution says in the separate paragraphs, the resolution as a whole can only mean total withdrawal except for some minor rectifications as the parties may agree

²³ Boutros Boutros-Ghali, *Egypt's Road to Jerusalem: A Diplomat's Story of the Struggle for Peace in the Middle East* (1997), p. 295.

²⁴ Mussa Mazzawi, *Palestine and the Law: Guidelines for the Resolution of the Arab-Israel Conflict* (1997), pp. 201, 202.

²⁵ US Department of State, *Bulletin*, 62, no. 5 (January 1970), pp. 7–11.

²⁶ McHugo, *Resolution 242*, p. 870, reprinted in Kattan, *The Palestine Question in International Law* (2008), p. 376.

²⁷ UN Doc. S/PV. 1382, 22 November 1967, para. 52.

²⁸ Mahmoud Riad, *The Struggle for Peace in the Middle East* (1981), pp. 66–71.

²⁹ McHugo, *Resolution 242*, pp. 851, 858, 859 reprinted in Kattan, *The Palestine Question in International Law*, pp. 364, 365.

on'.³⁰ Lall is of the opinion that the phrase 'from territories' 'only implied full-scale withdrawal' and did not call for it explicitly.³¹

Arguments that the Resolution does not call for full withdrawal rely mainly on the literal text of the Resolution. The Resolution was drafted and negotiated in the English language and the French version was a translation of the negotiated text. Wood comments on drafting resolutions in the Security Council, 'in practice, the negotiations, including informal consultations, of the whole will have concentrated on the English language text'. Wood adds that it would be unrealistic to ignore the fact that 'some versions are mere translations of the version or versions in which the draft was negotiated'.³² Draft resolutions in the UN Security Council that were not adopted did explicitly call for Israel to 'remove all its troops from the territory of those States and withdraw them behind the armistice lines'.³³ In the UN General Assembly, there were also drafts that attempted to call for withdrawal from 'all the territories'. A draft by the Soviet Union demanded that Israel 'should immediately and unconditionally remove all its troops from the territory of those States [UAR, Jordan and Syria] and withdraw them to positions behind the armistice demarcation lines'. This draft resolution was not adopted.³⁴ A draft resolution submitted by Argentine, and other Latin American countries, stated that it 'urgently requests Israel to withdraw all its forces from all the territories occupied by it as a result of the recent conflict', this draft was also not adopted.³⁵ A draft Resolution of Afghanistan and seventeen other States 'calls upon Israel to withdraw immediately all its forces to the positions they held prior to 5 June 1967, the draft was not adopted'.³⁶ The British Foreign Secretary informed the House of Commons, 'the omission of the word "all" before the word "territories" is deliberate'.³⁷ Hargrove, the senior legal advisor to the US Mission to the UN in 1967, writes that 'the omission of "the" was intended on our part, as I understood it at the time, and it was understood at all times, to leave open the possibility of modifications in the

³⁰ Bailey, *The Making of Resolution 242*, p. 155.

³¹ Lall, *The UN and the Middle East Crisis*, p. 257.

³² Wood, 'The Interpretation of Security Council Resolution 242', pp. 81, 88.

³³ UN Doc. S/7951/Rev.2, 13 June 1967; A/L/519, 19 June 1967.

³⁴ A/L/519, 19 June 1967.

³⁵ UN Doc. A/L.523, 30 June 1967.

³⁶ UN Doc. A/L.522/Rev. 3, 3 July 1967.

³⁷ Michael Stewart, Hansard, Fifth Series, 9 December 1969, vol. 793, 261.

lines which were occupied as of June 4, 1967 in the final settlement'.³⁸ Goldberg writes

The unwillingness of a majority of the members of the Security Council to support the Soviet resolution for a withdrawal of Israeli forces to the positions they held before June 5, 1967, was based on the conviction that the withdrawal of troops should be made in the context of a peace settlement that would ensure secure boundaries for Israel, replacing the violated and provisional armistice lines. There is lacking a declaration requiring Israel to withdraw from the (or all the) territories occupied by it on and after June 5, 1967. Instead, the resolution stipulates withdrawal from occupied territories without defining the extent of withdrawal. And it can be inferred from the incorporation of the words secure and recognized boundaries that the territorial adjustments to be made by the parties in their peace settlements could encompass less than a complete withdrawal of Israeli forces from occupied territories.³⁹

Lall writes that the Arab States were unhappy with the phrase used, as 'they insisted that the wording read either that Israel forces would be withdrawn from "all the territories" instead of "territories" occupied by Israel, or that Israel would "withdraw to the positions of 4 June 1967"'. They asked Caradon, the British Ambassador who was drafting the text, "Could he not use the formulation 'all the territories' instead of 'territories'". Caradon's response was that his draft represented a delicate balance'.⁴⁰ Caradon writes, 'if we had put in "the" or "all the" that could only have meant that we wished to see the 1967 boundaries perpetuated in the form of a permanent frontier. This I was certainly not prepared to recommend'.⁴¹ Brown, the British foreign minister writes that if the draft had called for withdrawal from 'the' territories or 'all the territories' it would not have been adopted.⁴² Goldberg, who was the US delegate to the Security Council at the time, writes, 'there is lacking a declaration requiring Israel to withdraw from *the* or *all the* territories. This is not to say that the Resolution contemplates a complete redrawing of the map of

³⁸ Lawrence Hargrove, US Congress, House of Representatives, Hearings before the Subcommittee on the Middle East of the Committee on Foreign Affairs, April 1971, quoted from Eugene Rostow, *UN Security Council Resolution 242: The Building Block of Peacemaking* (1992), p. 18.

³⁹ Goldberg, 'Resolution 242 After Twenty Years', pp. 5, 8.

⁴⁰ Lall, *The UN and the Middle East Crisis*, pp. 253, 254, 257.

⁴¹ Hugh Foot Baron Caradon, *U.N. Security Council Resolution 242: A Case Study in Diplomatic Ambiguity* (1981), pp. 9–13. Lord Caradon was the principal author of the Resolution.

⁴² George Brown, *In My Way* (1971), p. 233.

the Middle East but it also does not insist upon only 'minor border rectifications'.⁴³ Rostow confirms, 'repeated attempts to amend this sentence by inserting the word "the" failed in the Security Council. It is therefore not legally possible to assert that the provision requires Israeli withdrawal from all the territories'.⁴⁴ Bailey writes, 'the Arabs and their friends made strong efforts to have the word "the" inserted before territories in the English version believing that the reference to withdrawal from 'territories' could be interpreted to mean partial withdrawal'.⁴⁵

Some delegates accepted the text, but in explaining their vote gave it their interpretation, as did the delegate of India; Lord Caradon responded, 'the draft resolution does not belong to one side or the other or to any one delegation; it belongs to us all. I am sure that it will be recognized by us all that it is only the resolution that will bind us, and we regard its wording as clear'. 'On these matters each delegation rightly speaks only for itself'.⁴⁶ The US delegate stated, 'the voting of course takes place not on the individual or discrete views and policies of various members but on the draft resolution'.⁴⁷ Eban's response for Israel was 'for us, the resolution says what it says. It does not say that which it has specifically and consciously avoided saying'.⁴⁸ As to the discrepancy between the English and French versions, Lapidoth writes:

It is a well-established rule in international law that multilingual texts of equal authority in the various languages should be interpreted by 'accordant la primauté au texte original' or the 'basic language'. One should remember that English was not only officially a 'working language' in the Council, but also in practice the language of most of the deliberations. Indeed, English was used by ten members of the Council, while French was used by three, and Russian and Spanish by one each.⁴⁹

⁴³ Arthur J. Goldberg, *U.N. Security Council Resolution 242: A Case Study in Diplomatic Ambiguity* (1981), pp. 22, 23. Emphasis in the original.

⁴⁴ Eugene V. Rostow, 'Proceedings of the American Society of International Law', *AJIL* 64, no. 4 (September 1970), pp. 64–71.

⁴⁵ Sydney D. Bailey, *The Making of Resolution 242* (1985), p. 153. Bailey bases this on Rostow.

⁴⁶ UN Doc. S/PV. 1382, 22 November 1967, para. 61.

⁴⁷ *Ibid.*, para. 64.

⁴⁸ *Ibid.*, para. 93.

⁴⁹ Ruth Lapidoth, *Israel and the Palestinians: Some Legal Issues* (2003), p. 41. See authorities referred to there.

11.5 'Territories Occupied in the Recent Conflict'

The Resolution calls upon Israel to withdraw its armed forces from 'territories occupied in the recent conflict'. There is no dispute that this phrase refers to territories that Israel occupied in the June 1967 Six Day War. Even if one were to accept the interpretation that the phrase refers to all the territories, then the maximum extent of the demand is to withdraw to the 1949 Armistice line in exchange for the end of belligerency and recognition. Watson writes that Resolution 242 'implicitly superseded the territorial formula in the [1947] Partition Resolution, since it called only for Israeli withdrawal from territories occupied in the 1967 War, not withdrawal to the borders envisioned by the Partition Resolution'.⁵⁰ This interpretation is disputed by McHugo, who argues that a distinction should be made between withdrawal of armed forces and recognition of sovereignty. McHugo argues that the preamble phrase in the Resolution regarding 'inadmissibility of the acquisition of territory by war is of general application and is not limited to territories "occupied in the recent conflict"'.⁵¹

During the talks leading to the 1978 Camp David accords, Israel made the case that since there was no demand in Resolution 242 to withdraw from all the territories, implementation of the Resolution did not necessarily include the West Bank and Gaza.⁵² During the 1978 Camp David Negotiations, Israel objected at first to including a reference to Resolution 242 in the operative part of the Accords that dealt with the West Bank.⁵³ Quandt writes, 'the Israeli refusal to include the language from 242 on the inadmissibility of the acquisition of territory by force was finessed by referring generally to 242 in all its parts in the preamble and then appending the entire text of the resolution to the framework document'.⁵⁴ According to Quandt, 'the draft would say that the principles of 242 would apply to "the negotiations" without spelling what that

⁵⁰ Geoffrey R. Watson, *The Oslo Accords: International Law and the Israeli-Palestinian Peace Agreements* (2000), p. 24.

⁵¹ McHugo, *Resolution 242*, pp. 878, 879, reprinted in Kattan, *The Palestine Question in International Law*, pp. 384, 385.

⁵² Cyrus Vance, *Hard Choices: Critical Years in American Foreign Policy* (1983), p. 206, quoting Moshe Dayan, Israel Foreign Minister.

⁵³ Ibid.

⁵⁴ Quandt, *Camp David*, p. 233. It was the English language version of UNSC Resolution 242 that was attached. This may be of significance in regard to the dispute regarding the absence of the definite article 'the' in relation to the phrase 'withdrawal from territories' in the English language version.

meant in reality. Egypt and the United States could claim that it meant 242 did apply to the West Bank and Gaza, but Israel would maintain that it applied only to the peace treaty [with Jordan].⁵⁵

11.6 Secure and Recognised Boundaries

The Resolution refers to the right of all States in the area to 'live in peace within secure and recognized boundaries'. It has been argued that the 1949 Armistice lines were neither secure nor recognised, hence Israel has a right to demand new boundaries. Elaraby has responded that it does not mean 'new' secure and recognised boundaries but secure and recognised 'existing' boundaries.⁵⁶

11.7 Refugees

The Resolution calls 'for achieving a just settlement of the refugee problem'. There is no reference as to what would be a 'just settlement'. The anodyne phrase used allows the Arab States to advance the claim that a just settlement entails a right of return to Israel for all the Arab refugees and their descendants. It also, however, allows Israel to advance the claim that resettlement in other countries and compensation for property is a just settlement. Furthermore, there is no reference to 'Arab' refugees, thus allowing Israel to argue that compensation for the property left by Jews in Arab States should also be part of a just settlement. Goldberg has pointed out that 'the words "Palestinian" or "Arab" were deliberately left out of the Resolution to indicate that, in addition to the claims of the Palestinian refugees, the claims of the Jewish refugees from Arab lands need also be addressed. This language presumably refers both to Arab and Jewish refugees, for about an equal number of each abandoned their homes as a result of the several wars'.⁵⁷

⁵⁵ Ibid., p. 244.

⁵⁶ Nabil Elaraby, *UN Security Council Resolution 242: The Building Block of Peacemaking* (1992), p. 42.

⁵⁷ Goldberg, 'Resolution 242 after Twenty Years', pp. 10, 11. The Soviet draft, UN Doc. S/8253, which was not adopted, referred explicitly to 'Palestinian' refugees.

11.8 Freedom of Navigation

The US delegate to the Security Council stated, at the time, that the reference to freedom of navigation was to both the Strait of Tiran and the Suez Canal⁵⁸ and there does not appear to be any record of a delegate disputing this. The language used ‘guaranteeing freedom of navigation through international waterways’ would appear to reflect the view of the Council that this was an existing right under international law, although it does not explicitly state it.

11.9 Palestinians?

There is no reference in Resolution 242 to the creation of a Palestinian state or even to the Palestinians themselves. Lord Caradon explained that ‘we all took it for granted that the occupied territory would be restored to Jordan’.⁵⁹ The PLO complained that the Resolution ‘obliterated the national right of our people and dealt with the cause of our people as a problem of refugees’.⁶⁰ Boutros-Ghali writes that, in 1979, he suggested ‘a revision of United Nations Security Council resolution 242 so that the Palestinians were not referred to solely as refugees, but as a people with a right to self-determination’.⁶¹ Israel objected to any change in the Resolution and Egypt abandoned its initiative. Nevertheless, the PLO, some twenty-five years later, accepted Resolution 242, seeing themselves as the successors to Jordan in the West Bank and to Egypt in the Gaza Strip.

11.10 Jerusalem

Arthur Goldberg points out that ‘another notable and purposeful omission from Resolution 242 is any specific reference to the status of Jerusalem and the reaffirmation of past U.N. resolutions calling for the

⁵⁸ UN Doc. S/PV.1373, 15 November 1967, para. 68. See discussion of this issue in Chapter 22.

⁵⁹ Caradon, *U.N. Security Council Resolution 242*, p. 13.

⁶⁰ Palestine Liberation Organisation, Political Program, 9 June 1974, quoted in Itamar Rabinovich and Jehuda Reinharz eds., *Israel in the Middle East: Documents and Readings on Society, Politics and Foreign Relations* (2nd ed. 2008), p. 345.

⁶¹ Boutros-Ghali, *Egypt's Road to Jerusalem*, p. 259.

internationalization of the city. Resolution 242 thus realistically recognizes the desuetude of the internationalization resolutions'.⁶²

11.11 Concluding Remarks

UN Security Council Resolution 242, adopted after the June 1967 Six Day War, was a non-binding recommendation for settling the Arab-Israel conflict. The Resolution was carefully negotiated, over a period of some five months, and eventually approved unanimously by the members of the Security Council. Israel and the Arab States were consulted throughout the negotiating process. Subsequently, Israel and the Arab States agreed to accept the recommendations. Syria and the PLO at first refused to accept it but, some twenty-five years later, they also agreed to accept it, and thus it became the accepted framework for ending the Arab-Israel conflict. It could be argued that it was only the ambiguous and neutral phrasing of the Resolution that enabled its unanimous adoption and approval. Nevertheless, it was the first time Israel and the Arab States agreed on a formula for ending the conflict.

The preamble of the Resolution states that acquisition of territory by war is inadmissible and that the conflict must be settled by peaceful means. The operative parts of the Resolution call for Israel to withdraw from territories occupied in the Six Day War, for the Arab States to end the state of war with Israel, for freedom of navigation in international waterways and for a just settlement of the refugee problem.

The phrasing used in the clause about Israel withdrawal is 'from territories'. There is a continuous disagreement as to whether this implies withdrawal from all the territories occupied or that the issue of borders is subject to negotiation between the parties. By accepting the Resolution, the Arab States apparently abandoned any legal basis for demanding Israel withdrawal from beyond territories occupied in the Six Day War.

⁶² Goldberg, 'Resolution 242 after Twenty Years', p. 11.

Camp David 1978

On the day of Yom Kippur 1973, the Jewish 'Day of Atonement', the armies of Egypt and Syria carried out a surprise attack on Israeli held territories in Sinai and the Golan Heights. It is probable that the intention was to attempt to recapture territory lost to Israel in the 1967 Six Day War. Nevertheless, international law does not sanction use of force for such purposes, as it is not an act of self-defence. The UN Security Council and UN General Assembly, however, did not criticise Egypt or Syria for committing an illegal use of force. The 1973 Yom Kippur War served as a catalyst for renewed efforts to settle the Arab-Israel conflict. In December 1973, the United States and the Soviet Union convened a Peace Conference in Geneva.

12.1 The Palestinian Role

There was no Palestinian participation in the Geneva Conference but it was clear to Israel that there would be a demand for such participation. For the first few years after the June Six Day War, Israel, and largely, the rest of the world, regarded the issue of the status of the West Bank as a dispute between Israel and the Kingdom of Jordan. It was only the increasing political influence of the PLO in the early 1970s that caused Israel and the UN to move attention from Jordan to the Palestinians. In 1974, the PLO was granted observer status in the UN¹ and the UN General Assembly passed a resolution that

Reaffirms the inalienable rights of the Palestinian people in Palestine, including:

- (a) The right to self-determination without external interference;
- (b) The right to national independence and sovereignty.²

¹ UN Doc. A/RES/3237 (XXIX), 22 November 1974.

² Ibid.

At the 1973 Geneva Conference, Gromyko, representing the Soviet Union, stated 'it goes without saying that the Palestinian problem cannot be considered and decided without the participation of representatives of the Arab people of Palestine'. Kissinger, speaking for the United States, referred to the 'legitimate interests of the Palestinians' without elaborating. Fahmy, for Egypt, said 'the exercise by the Palestinians of the right to self-determination was essentials for peace in the area'. El-Rifai for Jordan did not refer to self-determination but stated, 'the legitimate rights of the Arab people of Palestine must be fulfilled in accordance with the resolutions of the United Nations, and the Palestinian refugees must exercise their right of repatriation and/or compensation in accordance with law and justice'. Eban, on behalf of Israel, said, 'the specific identity of the Palestinian and Jordanian Arabs will be able to find expression in the neighbouring State – I hope, in peaceful co-operation with Israel'.³ A year later, in preparation for the possible reconvening of the Geneva Conference, Israel and the United States signed a memorandum of agreement that stated the following:

The United States will continue to adhere to its present policy with respect to the Palestine Liberation Organization, whereby it will not recognize or negotiate with the Palestine Liberation Organization so long as the Palestine Liberation Organization does not recognize Israel's right to exist and does not accept Security Council Resolutions 242 and 338.⁴

In 1977, the United States, together with the Soviet Union, tried to reconvene the 1973 Geneva Conference. Brzezinski writes that the United States felt that the 'Geneva [conference] should not be used for negotiations as such but should be held to legitimize any agreements previously reached by the parties through U.S. efforts'.⁵ Egyptian Foreign Minister Fahmy writes, 'the central obstacle to the convening of the Geneva Conference was the problem of PLO representation'.⁶ The United States attempted, unsuccessfully, at the time, to persuade the PLO to recognise Israel's right to exist and to accept UN Security

³ <https://mfa.gov.il/mfa/foreignpolicy/mfadocuments/yearbook1/pages/21%20addresses%20at%20the%20opening%20meeting%20of%20the%20geneva.aspx>.

⁴ Memorandum of Agreement Between the Governments of Israel and the United States, The Geneva Peace Conference, 1 September 1975, www.fordlibrarymuseum.gov/library/document/0331/1553991.pdf.

⁵ Zbigniew Brzezinski *Power and Principle: Memoirs of the National Security Adviser 1977–1981* (1983), p. 87.

⁶ Ismail Fahmy, *Negotiating for Peace in the Middle East* (1983), p. 191.

Council Resolution 242 so as to enable it to attend the Geneva Peace Conference.

In a speech of March 1977, at Clinton Massachusetts, President Carter said, 'there has to be a homeland provided for the Palestinian refugees who have suffered for many, many years'.⁷ Brzezinski writes that he informed the Israeli Ambassador at the time that 'in my judgment the word "homeland" had no special political connotation'.⁸ Later, at a news conference on 1 October 1977, President Carter spoke about the PLO role:

It is obvious to me that there can be no Middle Eastern peace settlement without adequate Palestinian representation. The Arab countries maintain that the PLO is the only legitimate representative of the Palestinian interests. The Israelis say they won't deal with the Palestinians, certainly not the well-known PLO members, because they have been identified in the past as committed to the destruction of the nation of Israel.⁹

A joint US and USSR statement of 1 October 1977 on the Middle East included the following:

The United States and the Soviet Union believe that, within the framework of a comprehensive settlement of the Middle East problem, all specific questions of the settlement should be resolved including such key issues as withdrawal of Israeli Armed Forces from territories occupied in the 1967 conflict; the resolution of the Palestinian question, insuring the legitimate rights of the Palestinian people with participation in its work of the representatives of all parties involved in the conflict, including those of the Palestinian people.¹⁰

Neither Egypt nor Israel was consulted about the joint US and USSR statement, and it was vehemently criticised by Israel. Apparently, it was the joint statement, with the spectre of the US bringing the Soviet Union back into the Middle East, which was one of the factors that led President Sadat of Egypt to make his breakthrough visit to Jerusalem. As regards the Palestinian issue, in his speech at the Knesset, Sadat reiterated the

⁷ www.presidency.ucsb.edu/documents/clinton-massachusetts-remarks-and-question-and-answer-session-the-clinton-town-meeting.

⁸ Brzezinski, *Power and Principle*, p. 91.

⁹ <https://mfa.gov.il/mfa/foreignpolicy/mfadocuments/yearbook3/pages/50%20joint%20us-soviet%20statement%20on%20the%20middle%20east-%201.aspx>.

¹⁰ Quoted from William B. Quandt, *Camp David: Peacemaking and Politics* (1986), Appendix B, p. 343.

Egyptian position that 'it is no use to refrain from recognizing the Palestinian People and their rights to statehood and rights of return'.¹¹

12.2 Begin's Self Rule Plan

Sadat's visit to Israel and the support the PLO was receiving were among the factors that motivated Israel Prime Minister Begin to formulate an Israeli proposal on the Palestinian issue. The personal background of Begin influenced the drafting of the Plan. Begin believed in Israel's rights in the whole of the Land of Israel (Western Palestine) but he was also a fervent believer in individual human rights and in democratic government. He was aware that military administration was, per se, not democratic. Begin also had a firm belief in the importance of international law. Boutros-Ghali writes, with unconcealed amusement, how Begin tried to convince him of Israel's rights in the West Bank by quoting from 'a book of international law by Professor L. F. L. Oppenheim'.¹² The Begin proposal was, basically, for Palestinian autonomy in the West Bank. Lapidoth defines autonomy as 'an arrangement aimed at granting to a group that differs from the majority of the population in the state, but that constitutes the majority in a specific region, a means by which it can express its distinct identity'.¹³ Lapidoth, and the many sources she quotes, all assume that an autonomous area is part of an existing State. Salient elements of Begin's proposed Palestinian self-rule plan were the following:

The administration of the military government in Judea, Samaria and the Gaza district will be abolished.

In Judea, Samaria and the Gaza district administrative autonomy of the residents, by and for them, will be established.

The public order in the areas of Judea, Samaria and the Gaza District Administrative Council will sit in Bethlehem.

Security and public order will be the responsibility of the Israeli authorities.

A resident of the areas of Judea, Samaria and the Gaza district who requests Israeli citizenship will be granted such citizenship in accordance with the citizenship law of the state.

¹¹ Address of Egyptian President Anwar Sadat to the Knesset, 20 November 1977, www.knesset.gov.il/description/eng/doc/Speech_sadat_1977_eng.htm.

¹² Boutros Boutros-Ghali, *Egypt's Road to Jerusalem: A Diplomat's Story of the Struggle for Peace in the Middle East* (1997), p. 53.

¹³ Ruth Lapidoth, *Autonomy: Flexible Solutions to Ethnic Conflicts* (1997), p. 33.

Residents of Israel will be entitled to acquire land and settle in the areas of Judea, Samaria and the Gaza district.

Arabs, residents of Judea, Samaria and the Gaza district, who, in accordance with the free option granted them, become Israeli citizens, will be entitled to acquire land and settle in Israel.¹⁴

Israel stands by its right and its claim of sovereignty to Judea, Samaria and the Gaza district. In the knowledge that other claims exist, it proposes, for the sake of the agreement and the peace, that the question of sovereignty in these areas be left open.

These principles will be subject to review after a five-year period.¹⁵

During the 1978 Camp David talks, Begin emphasised to Carter that 'autonomy doesn't mean sovereignty'.¹⁶ Begin added, 'the Israeli military governor, however would retain ultimate authority and in theory could revoke powers delegated to the [Palestinian] Administrative Council'.¹⁷ 'The position of Israel is that the Palestinian Arabs residing in Judea, Samaria and the Gaza district should enjoy self-rule'.¹⁸ Thus, it could be inferred that the intention was that West Bank would be an autonomous part of Israel.¹⁹ Brzezinski writes that in a meeting with Begin, 'I urged him not to use the word "autonomy" which is usually used for a district or region which is part of your country but has a special status, but something different, as for example "self-rule"'.²⁰ Begin mitigated the possible connotations of using the term 'autonomy' in that he also proposed that the arrangements would be subject to review after five years and that 'the question of sovereignty in these areas be left open'.

¹⁴ Quandt comments that, originally, the right was to be applied to all Arab residents in the West Bank but Begin later qualified it by restricting the rights to Arabs who had acquired Israel citizenship. Quandt, *Camp David*, p. 156.

¹⁵ Statement to the Knesset by Prime Minister Begin presenting Israel's peace plan 28 December 1977, <https://mfa.gov.il/mfa/foreignpolicy/mfadocuments/yearbook3/pages/103%20statement%20to%20the%20knesset%20by%20prime%20minister%20beg.aspx>, https://fs.knesset.gov.il/9/Plenum/9_ptm_253935.pdf. Begin drafted the plan with the help of then Attorney General Aharon Barak, who, on the international law aspect of it, consulted with Meir Rosenne the legal advisor to the Foreign Ministry. The author was also present at that meeting.

¹⁶ Jimmy Carter, *Keeping Faith: Memoirs of a President* (1982), p. 377.

¹⁷ Quandt, *Camp David*, p. 156.

¹⁸ Quoted from Statement to the Knesset by Prime Minister Begin presenting Israel's peace plan 28 December 1977, <https://mfa.gov.il/mfa/foreignpolicy/mfadocuments/yearbook3/pages/103%20statement%20to%20the%20knesset%20by%20prime%20minister%20beg.aspx>.

¹⁹ This was Dayan's impression. Moshe Dayan, *Breakthrough: A Personal Account of the Egypt-Israel Peace Negotiations* (1981), p. 303.

²⁰ Brzezinski, *Power and Principle*, p. 120.

At a 1978 meeting, Israel Attorney General Barak, told President Carter that the autonomy plan 'was compatible with [UNSC Resolution] 242 including its article on withdrawal and that was Israel's proposal as the method whereby this Resolution was to be fulfilled'.²¹ The plan raised controversy in Israel itself and Weizman points out that 'what was meant to be the first step to annexation could equally be the mandate for a Palestinian state in the future'.²² Begin presented the plan to President Carter on 16 December 1977, the President's response was that the plan 'was not acceptable', however, it was 'a step in the right direction'.²³ Quandt reports that in internal US discussions, Brzezinski commented that although the plan could resemble the South African Bantustans, 'there was "the possibility of building on the proposal to develop the idea of a transitional arrangement"'.²⁴ At a meeting of President Carter with Begin in March 1978, Brzezinski commented that the self-rule plan could be seen as 'a continuation of your [Israel] military and political control over the West Bank and Gaza'. President Carter said, 'It keeps Israel in indefinite control of the West Bank'.²⁵ Vance reports Carter as telling Sadat, 'we did not endorse the Begin self-rule plan as proposed and were thinking of reshaping it to serve as a key element of an interim arrangement at the end of which the Palestinians would have a voice in their own future'.²⁶ Vance also writes that it 'fell far short of what we believed to be necessary' but it 'was a significant development. Begin implicitly conceded that there was a Palestinian problem that the Palestinian Arabs should participate in governing themselves'.²⁷ In an internal memo, Brzezinski wrote that the United States should demand modifications to the Begin plan:

These modifications require an Israeli acceptance of the principle of withdrawal; a moratorium on organized settlement activity, in contrast to the rights of individuals to acquire land on a reciprocal basis; a visible termination of the military occupation at the outset of the five-year period; devolution of authority for the new regime from an agreement

²¹ Dayan, *Breakthrough*, p. 124.

²² Ezer Weizman, *The Battle for Peace* (1981), p. 191.

²³ Carter, *Keeping Faith*, p. 299.

²⁴ *Ibid.*

²⁵ Quoted from Yehuda Avner, *The Prime Ministers: An Intimate Narrative of Israeli Leadership* (2010), pp. 477, 478.

²⁶ Cyrus Vance, *Hard Choices: Critical Years in American Foreign Policy* (1983), p. 204.

²⁷ *Ibid.*, p. 199.

among Israel, Egypt, and Jordan; and genuine self-government for the Palestinian.²⁸

In his memoirs, Brzezinski writes: 'At this stage we could not resolve the conflicting Israeli and Palestinian aspirations, and that a transitional arrangement was the best way of breaking the logjam.'²⁹ During the Camp David talks, Carter commented, 'Begin's proposal for home rule on the West Bank does provide a basis for resolution of problems during a transition period'.³⁰

The issue of the West Bank was raised with Sadat at a meeting with Begin in Ismailia, on 25 December 1977, where Begin set out his self-rule plan but there was no detailed discussion and in the final communique tersely said, 'the position of Egypt is that a Palestinian state should be established in the West Bank and the Gaza Strip'. Boutros-Ghali comments, 'to me, his vision involved a kind of amputated Palestinian entity, one that would create the perception of self-rule but leave practical control in Israeli hands'.³¹ Sadat reported to President Carter that the meeting 'was a complete failure'.³²

12.3 Camp David 1978

In September 1978, President Carter convened a summit meeting at Camp David, Maryland, between President Sadat of Egypt and Prime Minister Begin of Israel. Jordan was invited but declined to attend. Since the PLO, at that time, had not accepted UN Security Council Resolution 242 or recognised Israel's right to exist, they were not invited and there was no Palestinian representation at the meetings. After intensive negotiations, the Camp David Accords were signed on the 17 September 1978 by the two leaders and President Carter signed as a witness. The Accords drafted an outline of a peace treaty between Egypt and Israel and set out a framework for an interim status for the West Bank and Gaza. The outline for the Egypt-Israel peace agreement was later successfully negotiated as the 1979 Egypt-Israel Peace Treaty.

²⁸ Memorandum from the president's assistant for National Security Affairs (Brzezinski) to President Carter, Washington, DC, 31 August 1978, [United States] *Foreign Relations*, 1977-1980, vol. IX, p. 60.

²⁹ Brzezinski *Power and Principle*, p. 115.

³⁰ Carter, *Keeping Faith*, p. 363.

³¹ Boutros-Ghali, *Egypt's Road to Jerusalem*, p. 45.

³² Carter, *Keeping Faith*, p. 300.

As regards the West Bank and Gaza, the Camp David accords adopted, from the Begin plan, the idea of autonomy for the inhabitants of the West Bank and Gaza as a five-year interim arrangement while leaving open the issue of what the final status would be.

12.3.1 *The Preamble*

The Egyptians wanted to include in the preamble to the agreement the phrase '*Emphasizing* the inadmissibility of the acquisition of territory by war' which appears in the preamble to Resolution 242. Israel objected to this inclusion, arguing that it was just picking one phrase out of the text of the Resolution. Israel also argued that the phrase appeared only in the preamble and not in the operative part of Resolution 242. The compromise language agreed to for the preamble was as follows:

The agreed basis for a peaceful settlement of the conflict between Israel and its neighbors is United Nations Security Council Resolution 242, in all its parts.

The phrase 'in all its parts' was apparently intended to imply that it included the preamble to the Resolution, with its reference to 'inadmissibility of the acquisition of territory by war'.³³ Begin confirmed to Carter that 'all its parts includes the preamble'.³⁴ Brzezinski confirms this, writing, 'Resolution 242 in all its parts which means that Israel must explicitly accept the principle of withdrawal on all fronts'.³⁵

12.3.2 *Autonomy*

The operational text of the Camp David Accords stipulates:

There should be transitional arrangements for the West Bank and Gaza for a period not exceeding five years. In order to provide full autonomy to the inhabitants, under these arrangements the Israeli military government and its civilian administration will be withdrawn as soon as a self-governing authority has been freely elected by the inhabitants of these areas to replace the existing military government.³⁶

³³ Dayan, *Breakthrough*, p. 166.

³⁴ Brzezinski *Power and Principle*, p. 260.

³⁵ *Ibid.*, p. 115.

³⁶ 'Camp David Accords', *ILM* 17, no. 6 (November 1978), pp. 1463–1474. There were lengthy negotiations as to fixing a timetable and target date for the negotiations.

In a joint letter regarding the West Bank and Gaza, signed simultaneously with the signing of the Egypt–Israel Peace Treaty, Egypt and Israel agreed to the following:

The purpose of the negotiations shall be to agree, prior to the elections, on the modalities for establishing the elected self-governing authority (administrative council), define its powers and responsibilities and agree upon other related issues. In the event Jordan decides not to take part in the negotiations, the negotiations will be held by Israel and Egypt. They also agree that the objective of the negotiations is the establishment of the self-governing authority in the West Bank and Gaza in order to provide full autonomy to the inhabitants.³⁷

Egypt and Israel, with the participation of the United States, attempted to negotiate an autonomy agreement. The United States summarised the initial Israel position during the autonomy talks as comprising four points:

- (1) The self-governing authority of the Arab inhabitants in Judea, Samaria and the Gaza district, will be an Administrative Council freely elected by the aforementioned inhabitants;
- (2) The number of the members of the Administrative Council will be determined by and correspond to, the number and actual and practical functions to be fulfilled by the Council members;
- (3) Israeli citizens, inhabitants of Judea, Samaria and the Gaza district will be under the jurisdiction of Israel.
- (4) External and internal security, including the fight against terrorism, conspiracy to commit acts of violence and subversion, will be the responsibility of the Israeli authorities.³⁸

The negotiations on the attempts to implement the autonomy plan continued, intermittently, until August 1982, but without reaching agreement. Among the issues involving international law were the source of authority, scope of jurisdiction, the issue of self-determination, the powers and responsibilities of the Council, elections, Palestinian participation in the negotiations and the final status of the West Bank and Gaza.

³⁷ 1136 UNTS 196.

³⁸ Memorandum of Conversation, Washington, DC, 15 April 1980, 10:31 a.m.–12:07 p.m. SUBJECT: Summary of the President's First Meeting with Israeli Prime Minister Menachem Begin, *Foreign Relations, 1977–1980*, vol. IX, p. 116.

12.3.3 *Source of Authority*

The Begin plan did not make any explicit reference as to what the source of authority for the Palestinian administration would be, but it could be inferred that it was the Israeli military governor. According to Vance, in a meeting with President Carter in December 1977, Begin explained, 'the powers of the self-governing authority, or administrative council would derive from the Israeli military government in the West Bank, which could revoke any power delegated to the council'.³⁹ To counter such a possible inference, the US proposed, in an internal memo, to state explicitly that 'authority for the interim arrangement will derive from agreement among Israel, Jordan and Egypt'.⁴⁰ During the Camp David negotiations, the United States proposed that 'this transitional arrangement should derive its authority from an agreement concluded among Israel, Jordan, and Egypt'.⁴¹ This text was not adopted. The question of the source of authority of the self-governing authority was left open.

12.3.4 *Self-Determination*

The Camp David Accords stipulated the following:

These new arrangements should give due consideration both to the principle of self-government by the inhabitants of these territories and to the legitimate security concerns of the parties involved.

The solution from the negotiations must also recognize the legitimate rights of the Palestinian people and their just requirements. In this way, the Palestinians will participate in the determination of their own future through

- (1) The negotiations among Egypt, Israel, Jordan and the representatives of the inhabitants of the West Bank and Gaza to agree on the final status of the West Bank and Gaza and other outstanding issues by the end of the transitional period.
- (2) Submitting their agreement to a vote by the elected representatives of the inhabitants of the West Bank and Gaza.
- (3) Providing for the elected representatives of the inhabitants of the West Bank and Gaza to decide how they shall govern themselves consistent with the provisions of their agreement.

³⁹ Vance, *Hard Choices*, p. 199.

⁴⁰ US nine-point plan 3 February 1978, quoted from Quandt, *Camp David*, p. 171.

⁴¹ Draft Text Prepared by the Assistant Secretary of State for Near Eastern and South Asian Affairs (Saunders)1, undated, A FRAMEWORK FOR PEACE IN THE MIDDLE EAST AGREED AT CAMP DAVID, United States, *Foreign Relations, 1977-1980*, vol. IX, p. 149.

- (4) Participating, as stated above, in the work of the committee negotiating the peace treaty between Israel and Jordan.⁴²

The Begin plan did not contain any reference to the issue of self-determination. In a statement at Aswan in Egypt, on 4 January 1978, President Carter stated his view that a resolution on the Palestinian problem ‘must recognize the legitimate rights of the Palestinian people and enable the Palestinians to participate in the determination of their own future’.⁴³ Vance writes, ‘this formulation was meant to come close to support for Palestinian self-determination without using the phrase itself, which had become, in Israeli minds, a code word for an independent Palestinian State’.⁴⁴ Brzezinski comments that the phrase ‘the Palestinians will participate in the determination of their own future’, ‘was designed to assure the Palestinians that the United States was heeding their desire for political self-determination but that it was also mindful of the Israeli interest in making certain that Palestinian self-determination did not endanger Israel’s security’.⁴⁵ The phraseology of the Aswan statement was incorporated in the 1978 Camp David Accords. Carter writes that at one stage ‘I agreed to find a synonym for “self-government” (Sadat thought the word sounded too much like Begin’s “self-rule”) and came up with “how the Palestinians shall govern themselves”’.⁴⁶

In a meeting with United States diplomat Saunders, ‘Begin noted that all the Arabs, including Sadat, are interpreting the phrase “legitimate rights” as meaning an independent Palestinian state. He would never have agreed to this interpretation at Camp David, Begin asserted, and would never have incorporated the phrase into the Camp David Accords without the inclusion of the word “also” which reserves Israel’s rights as an integral part of the Camp David Accords language’.⁴⁷ Weizman recorded the process of Begin’s acceptance of the phrase ‘legitimate rights’: ‘The origin of the word is the Latin *lex* denoting “law”, Begin explained to his delegation. ‘With the development of language, this

⁴² ‘Camp David Accords’, pp. 1463–1474.

⁴³ www.nytimes.com/1978/01/05/archives/text-of-statements-by-sadat-and-carter-following-meeting-at-aswan.html.

⁴⁴ Vance, *Hard Choices*, p. 201.

⁴⁵ Brzezinski, *Power and Principle*, p. 239.

⁴⁶ Carter, *Keeping Faith*, pp. 395, 396.

⁴⁷ Telegram from the Consulate General in Jerusalem to the Department of State and the Embassy in Israel Jerusalem, 21 October 1978, 1008Z 2886. From Saunders. SUBJECT: October 20 Meeting With Prime Minister Begin, *Foreign Relations, 1977–1980*, vol. IX, p. 338.

turned into the English word “legitimate”. What is the meaning of “legitimate rights”? If it is a right – that means it is legitimate. Can a right be illegitimate? Weizman adds, ‘by such verbal acrobatics Begin managed to come to terms with reality’.⁴⁸ Dayan mentions that in a message to King Hussein explaining Camp David, President Carter had used the term that the Palestinians would be entitled to fulfil their legitimate ‘aspirations’ ‘whereas the [Camp David] agreement used the more limiting term “legitimate rights” – a limitation arrived at only after a great deal of discussion at Camp David’.⁴⁹ The signed Camp David Accords do not use the actual phrase ‘self-determination’ but ‘legitimate rights of a people’ was interpreted by the International Court of Justice as encompassing the right of self-determination.⁵⁰

12.3.5 *Scope of Jurisdiction*

Neither in the Begin plan nor in the Camp David Accords is there a geographical definition of the area of the West Bank nor were any maps attached to the Plan or the Accords. Vance comments that, in his opinion, nevertheless, ‘Begin accepted the 1967 borders, except in Jerusalem, to define the area of their [the inhabitants of the West Bank] authority’.⁵¹ The Begin plan envisaged that autonomy was to be given to the inhabitants but not to the territory. During the negotiations of Camp David, Begin insisted that the language reflect the fact that the Arab inhabitants of the West Bank were being offered autonomy but that the West Bank as such was not to be an autonomous area. As Begin explained to Carter:

These are two worlds apart. If the self-governing authority provides full autonomy to the West Bank, this means that the territory has full autonomy, and Israel will have no right to be there. But we do have that right, because this is the Land of Israel. We suggest that the inhabitants have full autonomy and this is the way it is written in the Camp David Agreements. It should be this way in the draft letter.⁵²

⁴⁸ Weizman, *The Battle for Peace*, p. 373.

⁴⁹ Dayan, *Breakthrough*, p. 202.

⁵⁰ *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, Advisory Opinion (2004), ICJ Reports 136, [118].

⁵¹ Vance, *Hard Choices*, p. 200.

⁵² Memorandum of Conversation 1, Washington, DC, 2 March 1979, SUBJECT: Summary of President’s Meeting with Prime Minister Begin, *Foreign Relations, 1977–1980*, vol. IX, p. 632.

12.3.6 Elections

The parties made some progress on the issue of holding elections for the self-governing authority, Egypt and Israel agreed that there would be universal suffrage. (Under Jordanian rule women did not have the right to vote.) It was agreed that only permanent residents of the West Bank and Gaza would participate in the voting but not Palestinians from outside the areas. It was also agreed that there be a presence of observers from third-party States, although there was no agreement as to titling them as supervisors. The obstacle, however, was the question of participation in the elections of residents of East Jerusalem. The Egyptian position was that East Jerusalem was an integral part of the West Bank. The Israeli negotiators refused to accept that the Arab residents of East Jerusalem would be allowed to vote, claiming that East Jerusalem was Israeli territory and the self-governing council would have no authority there. Vance writes that the United States position at the time was as follows: 'We would support proposals that would permit the Arab inhabitants of East Jerusalem to vote in the elections for the self-governing authority, but we believed it unlikely that the powers of the self-governing authority could be extended to East Jerusalem during the transition period.'⁵³ At Camp David, the United States proposed that the Arab residents of East Jerusalem be allowed to cast 'absentee ballots'.⁵⁴ Israel rejected the proposal. A Jordanian diplomat writes that 'Jordan had, in 1982, objected to a Palestinian proposal that Palestinians in refugee camps in Jordan participate in elections for a proposed 'Palestinian Interim Self Governing Authority'.⁵⁵ Linowitz, the US mediator, summarised his assessment of the talks on elections:

The parties are agreed that there must be free elections based on the principles of peaceful assembly, free expression and secret ballot, bearing in mind the need to preserve law and order. Free electoral campaigning will be guaranteed in accordance with the agreement on election modalities which has now been virtually completed. A system for apportioning representation will be determined in the course of the negotiations once the issue of participation by Palestinian inhabitants of Jerusalem is resolved. The election would be organized, conducted and supervised by a Central Electoral Commission, composed of authorized Israeli civilian

⁵³ Vance, *Hard Choices*, p. 231.

⁵⁴ This was later adopted in the implementation of the 'Oslo' Agreements. See Chapter 16.

⁵⁵ Haddadin, quoted in Abdul Salem Majali, Jawad A. Anani and Munther J. Haddadin, *Peacemaking: The Inside Story of the 1994 Jordanian-Israeli Treaty* (2006), p. 103.

personnel and local Palestinian Arabs agreed upon by the autonomy negotiators, together with other civilians – individual and institutional – as agreed upon by the negotiators. There will be free access for international media and for such experts as may be agreed upon by the parties.⁵⁶

12.3.7 Powers and Responsibilities of the Self-Governing Authority

The Camp David Accords stipulated:

The parties will negotiate an agreement which will define the powers and responsibilities of the self-governing authority to be exercised in the West Bank and Gaza.⁵⁷

Egypt's position was that unless the powers and responsibilities of the autonomous authorities were 'defined in advance, the elections would be seen as a fraud'.⁵⁸ During the negotiations, Israel proposed a detailed list of those powers and responsibilities that were to be transferred from the military government to the autonomy authorities. The Egyptian position was that all powers and responsibilities should be transferred other than those that were explicitly to be excluded. No agreement was reached. Linowitz, summarised the issue as follows:

The parties thus far in the negotiating process have agreed upon at least the following areas and functions with respect to which the SGA (AC) [Self Governing Authority Administrative Council] would exercise responsibility: Administration of Justice Agriculture Budget Civil Service Commerce Culture Ecology Education Finance Health Housing and Construction Industry Internal Communication and Posts Internal Transportation Labor Local Police and Prisons Manpower Municipal Affairs Nature Preserves and Parks Public Works, Religious Affairs Refugee Rehabilitation Social Welfare Taxation Tourism. Other areas and functions in which the SGA (AC) would exercise responsibility are under discussion and negotiation. The parties anticipate that the SGA (AC) would have the powers necessary and appropriate to the exercise of its responsibilities with respect to the defined areas and functions. These would include the power to formulate policies; to supervise implementation of the laws and regulations relating to them; to decide upon the budget and determine the means of financing it; to employ staff; to sue and be sued; and to enter into contracts.

⁵⁶ Report Prepared by the President's Special Representative for Middle East Peace Negotiations (Linowitz) undated PROGRESS IN THE AUTONOMY NEGOTIATIONS 1. Election of Self-Governing Authority, *Foreign Relations, 1977–1980*, vol. IX, p. 1368.

⁵⁷ 'Camp David Accords', pp. 1463–1474.

⁵⁸ Quandt, *Camp David*, p. 278.

As to water, final arrangements will be determined in the course of the final status negotiations. For the transitional period, Israel has proposed that new developments and uses of water should be worked out jointly between the SGA (AC) and Israel. For its part, Egypt has believed that the SGA (AC) must control its own water resources but has recognized that development of water resources which underlie both Israel and the territories will require substantial coordination between the two. Both parties appear to favor the establishment of a regional body representing the various peoples of the area in order to develop and use the water resources for the benefit of all those peoples. In connection with security, it is agreed that the inhabitants of both the territories and Israel require assured internal security and public order during the transitional period. Accordingly, it is recognized that the strong local police force, to be constituted by the SGA (AC), must help provide such security. Specific arrangements for liaison between the local police and Israeli security authorities on such security issues, as called for in the Camp David Framework, will be worked out in the course of the negotiations and will be implemented in such a way as to ensure that security is preserved. To assure external security, and in the absence of Jordanian participation as envisioned in the Camp David Framework, the responsibilities for external security set forth in the Framework must be borne by Israel. The precise arrangements remain to be specified and further discussion will be required on how to enable Israel to fulfill fully its responsibilities while minimizing the impact on the inhabitants. The parties plan the establishment of a Continuing Committee with Egypt, Israel and the SGA (AC) as members (Jordan has, of course, the option of joining under the provisions of the Framework), and with the United States also invited to participate. The Committee would decide by agreement on the modalities of admission of persons displaced in 1967, together with measures necessary to prevent disruption and disorder. The Committee would also deal with other matters of common concern, such as economic cooperation. The Committee would operate on the basis of unanimity unless otherwise agreed by the parties⁵⁹

12.3.8 *Future Palestinian Participation*

The Camp David accords stipulate:

The delegations of Egypt and Jordan may include Palestinians from the West Bank and Gaza or other Palestinians as mutually agreed⁶⁰

⁵⁹ Report Prepared by the President's Special Representative for Middle East Peace Negotiations (Linowitz) undated Progress in the Autonomy Negotiations 1. Election of Self-Governing Authority, *Foreign Relations, 1977-1980*, vol. IX, p. 1368.

⁶⁰ 'Camp David Accords', pp. 1463-1474.

A disagreement arose as to whether the phrase 'as mutually agreed', thus requiring Israel approval, applied to all Palestinians or only to Palestinians from outside the West Bank and Gaza. The American interpretation was that Israel approval was only required for Palestinians from outside the West Bank. As Vance explained to King Hussein, 'they would not include Palestinians from outside unless by mutual agreement'.⁶¹

12.3.9 *Final Status Issues*

Israel negotiators held that the issue of the final status of the West Bank and Gaza could not be solved at that time. On this issue, the parties held diametrically contradictory positions. Quandt summarised the Egyptian position as insisting 'on some language that would commit Israel to eventual withdrawal from the West Bank and Gaza and to some form of Palestinian self-determination'.⁶² Apparently, Egypt was not enthusiastic about the idea of a completely independent Palestinian State. Weizman quotes a conversation with Sadat where he asks Sadat who will rule in Judea, Samaria and Gaza, and Sadat replies: 'If Jordan enters into the negotiations – Jordan, the representatives of the local population, and you. Weizman presses, "From that, I understand there won't be a Palestinian state" Sadat responds "Right"'.⁶³ Israel wanted to leave open the question of the final status, presumably hoping that the area would eventually be an autonomous part of Israel. The only possible compromise was to delay a decision on the final status; the Camp David Accords, consequently, make no mention of what the final status of the territories will be. US Secretary of State Vance summarised the US objectives at Camp David: 'Sovereignty and borders are issues that cannot be resolved at this stage, and will require the participation of the Jordanians and the Palestinians'.⁶⁴ Quandt, by implication, criticises the agreement, as 'Israel had made no commitment to eventual withdrawal from the West Bank and Gaza, nothing was said about Jerusalem; and settlements in the West

⁶¹ Memorandum of Conversation 1, Secretary Vance, King Hussein, 20 September 1978, *Foreign Relations, 1977–1980*, vol. IX, p. 218.

⁶² Quandt, *Camp David*, p. 237.

⁶³ Weizman, *The Battle for Peace*, p. 296.

⁶⁴ Quandt, *Camp David*, p. 216.

Bank and Gaza were nowhere mentioned. The magic words “withdrawal from occupied territory” and “self-determination” were not there’.⁶⁵ Elaraby writes, ‘Camp David did break the negotiation deadlock and established a process for future negotiations; however, it either included ambiguous or insufficient provisions related to the aforementioned pillars of peace, Palestinian self-determination and the withdrawal of Israeli forces, or ignored critical issues, such as the status of Jerusalem’.⁶⁶ Jordan objected to the Camp David Agreements and Jordanian Crown Prince Hassan explained the objection ‘principally because the formula devised pushed the Palestine question aside and aimed at a partial peace between Israel and Egypt. The conclusion of a partial peace has meant the neutralization of Egypt and has, as a consequence, shifted the strategic balance in Israel’s favour’.⁶⁷ As Ziad Abu-Amr wrote, some fifteen years later, ‘the primary Palestinian concern is to make sure that the interim solution will not become a final solution to the Palestinian problem’.⁶⁸

12.3.10 *Linkage between the Egypt–Israel Draft Treaty and the Issue of the West Bank and Gaza*

It was clear to all participants at Camp David that Egypt was not prepared to sign a peace treaty with Israel unless there was also an agreed proposal to deal with the status of the Palestinians in the West Bank and Gaza. Nevertheless, there is no reference in the Camp David Accords linking the Egypt–Israel draft treaty with the proposed agreement on the West Bank and Gaza. Brzezinski summarises that at Camp David, the issue of linkage between an Egyptian–Israeli settlement and the West Bank–Gaza negotiations ‘was not resolved’.⁶⁹ It was to be a central issue in negotiating the Egypt–Israel peace treaty.

12.4 Jerusalem and West Bank Settlements

Begin was unwilling to have any reference in the Agreement to the status of Jerusalem. Sadat insisted on a reference to Arab Jerusalem. The

⁶⁵ Ibid., pp. 255, 261.

⁶⁶ Nabil el Araby, ‘No-Peace Solution’, *The Cairo Review of Global Affairs* (Winter 2019), www.thecaireview.com/essays/no-peace-solution/.

⁶⁷ Hassan Bin Talal, Crown Prince of Jordan, *Search for Peace* (1984), p. 108.

⁶⁸ Ziad Abu-Amr, ‘Palestinian–Israeli Negotiations: A Palestinian Perspective’ in Steven L. Spiegel, ed. *The Arab-Israeli Search for Peace* (1992), p. 32.

⁶⁹ Brzezinski, *Power and Principle*, p. 283.

compromise was that Begin wrote a letter to President Carter in which he stated that, according to Israel law, 'Jerusalem is one city, indivisible, the Capital of the State of Israel'. Sadat sent a separate letter to President Carter in which he stated, 'Arab Jerusalem is an integral part of the West Bank. Arab Jerusalem should be under Arab sovereignty'. President Carter responded, 'the position of the United States on Jerusalem remains as stated by Ambassador Goldberg in the United Nations General Assembly on July 14, 1967 and subsequently in the United Nations Security Council on July 1, 1969'.⁷⁰

There was an oral agreement between Begin and Carter on a freeze of building new settlements in the West Bank, however, a disagreement arose as to the length of time agreed for the freeze.⁷¹

12.5 Implementing the Camp David Autonomy Plan

Egypt and Israel attempted to negotiate the implementation of the autonomy plan envisaged in the Camp David Accords. The negotiations were without Palestinian or Jordanian participation and no agreement was reached. In private conversations, the Egyptian delegation conceded that if the Palestinians would have participated it might have been possible to reach a compromise but Egypt was not in a position to make any concessions on behalf of the Palestinians.⁷² Vance gives his view that agreement was not possible 'without constant top-level American participation' and that 'Israel's refusal to declare a moratorium on the creation of new settlements' and the 'terrorist actions of the PLO' and PLO 'unwillingness to recognize the right of Israel to exist' were all factors.⁷³

Nevertheless, in the Camp David Accords the principle had been established that the status of the West Bank and Gaza needed to be negotiated between Israel, the Palestinians and the neighbouring States. The idea of a transitional period of self-government was implemented, later, when Israel directly negotiated with the Palestinians in the 'Oslo' agreements.⁷⁴

⁷⁰ 'Letters Attached to Camp David Accords', *ILM* 17, no. 6 (November 1978), pp. 1463–1474. See Chapter 24.

⁷¹ See Chapter 20.

⁷² In conversation with the author.

⁷³ Vance, *Hard Choices*, p. 254.

⁷⁴ See Chapter 16.

12.6 Concluding Remarks

The proposal to create a transitional regime of autonomy for the Arab population of the West Bank was initiated by Israel Prime Minister Begin. Through US mediation, the idea of autonomy was adopted by Egypt and Israel at Camp David as a program of full autonomy to the Arab inhabitants. The Camp David Accords proposed withdrawing the Israeli military administration from the West Bank and Gaza and replacing it, for a transitional period of five years, with an elected council. The issue of the final status, after the termination of the five-year period, was left open to negotiation. The Accords referred to 'the legitimate rights of the Palestinian people and their just requirements'. This phrase could be understood as referring to a right of self-determination but it was not stated explicitly.

Egypt and Israel failed to agree on the implementation of the autonomy plan. The issues that prevented agreement were participation of East Jerusalem Arabs in the elections for the Council and the powers and responsibilities that were to be transferred to the elected council. The main elements of the Camp David Accords were, later, adopted by the Israel-PLO 'Oslo' agreements.

1979 Egypt–Israel Peace Treaty

The 1973 Geneva Conference itself served only for the delivery of polemical speeches, but it also provided Egypt with international support for the ensuing direct negotiations with Israel.¹ The first agreement reached as a part of this process was the 1974 Separation of Forces Agreement, which was a military ceasefire agreement signed only by military officers. The agreement contained only one clause that went beyond a purely military agreement: ‘This agreement is not regarded by Egypt and Israel as a final peace agreement. It constitutes a first step toward a final, just and durable peace according to the provisions of Security Council Resolution 338 and within the framework of the Geneva Conference.’²

The second agreement reached, was the 1975 Interim Agreement between Egypt and Israel. This agreement was a mixture of a military ceasefire agreement combined with political elements. The political aspect was emphasised in that the agreement stated that it was made on behalf of the two governments and was signed by the heads of the two governments. Among the political clauses of the Interim Agreement were the following:

Article I

The conflict between them and in the Middle East shall not be resolved by military force but by peaceful means.

The Agreement concluded by the parties on 18 January 1974, within the framework of the Geneva Peace Conference, constituted a first step towards a just and durable peace according to the provisions of Security Council Resolution 338 of 22 October 1973. They are determined to reach a final and just peace settlement by means of negotiations called for by

¹ In May 1974, Syria also negotiated a Disengagement of Forces Agreement with Israel under the auspices of the 1973 Geneva Conference.

² Article ‘D’, Israel–Egypt Separation of Forces Agreement, UN Doc. S/11198, 18 January 1974.

Security Council Resolution 338, this Agreement being a significant step towards that end.

Article II

The parties hereby undertake not to resort to the threat or use of force or military blockade against each other.

Article VII

Non-military cargoes destined for or coming from Israel shall be permitted through the Suez Canal.

Article VIII

This Agreement is regarded by the parties as a significant step toward a just and lasting peace. It is not a final peace agreement. The parties shall continue their efforts to negotiate a final peace agreement within the framework of the Geneva peace conference in accordance with Security Council Resolution 338.³

Kissinger comments on this agreement that it created 'de facto non-belligerence' and that it 'became the decisive step towards Israeli peace agreements with Egypt and later with Jordan'.⁴ Zartman makes an interesting caveat, he writes, 'stages, like the phases of the Sinai withdrawal between 1974 and 1979, must be unstable and designed to "fall forward", leading to the next step and eventually to a stable comprehensive settlement. Thus, preliminary stages should not be tenable in the long run'.⁵ I believe the two initial agreements complied with Zartman's warning.

The outline of the Egypt-Israel Peace Treaty was negotiated at the 1978 Camp David summit⁶ on the basis of a US draft;⁷ the full treaty was finalised at the ensuing 1979 Washington talks and finally, by shuttle diplomacy of President Carter. The major political issue was the

³ Interim Agreement between Israel and Egypt, September 1975, UN Doc. S/11818/Add.1, 2 September 1975.

⁴ Henry Kissinger, *Years of Renewal* (1999), pp. 454, 457.

⁵ I. William Zartman, 'The Negotiating Process in the Middle East' in Steven L. Spiegel ed. *The Arab-Israeli Search for Peace* (1992), p. 69.

⁶ See Chapter 12.

⁷ 'The President said that the United States had drafted a standard form of a peace treaty to use as a model in the discussions. This will provide a starting point.' Memorandum of Conversation 1, Washington, DC, 11 October 1978, SUBJECT: Summary of President's Meeting with Egyptian Delegation PARTICIPANTS: President Jimmy Carter, Dr. Zbigniew Brzezinski, Alfred Atherton, Harold Saunders, William Quandt, Kamal Hassan Ali, *Foreign Relations, 1977-1980*, vol. IX, p. 288.

withdrawal of Israel from the Sinai Peninsula in exchange for Egypt entering a full peace treaty with Israel. At first the Egyptian position had been that the agreement would be a non-belligerency agreement and the United States endorsed this wording. Israel objected that on legal grounds this wording would not end the state of war.⁸ Among the issues of international law involved were the following:

- the delimitation of the border between Egypt and Israel
- navigation in international waterways⁹
- appointment of 'resident' ambassadors
- the linkage between the Peace Treaty and autonomy on the West Bank
- Security Council endorsement
- the relationship between the Peace Treaty and previous Egyptian commitments to the Arab League
- peacekeeping force
- permanence of security arrangements
- mutual claims
- dispute settlement

13.1 The Delimitation of the Border between Egypt and Israel

Article II of the Egypt–Israel Peace Treaty states:

The permanent boundary between Egypt and Israel is the recognized international boundary between Egypt and the former mandated territory of Palestine, as shown on the map at Annex II, without prejudice to the issue of the status of the Gaza Strip. The Parties recognize this boundary as inviolable. Each will respect the territorial integrity of the other, including their territorial waters and airspace.¹⁰

By adopting the Mandatory boundary, Egypt and Israel were, implicitly, applying the international law rule of *uti possidetis*, which entails 'respect for the territorial boundaries at the moment when independence is achieved',¹¹ a principle that 'reflects the fundamental international

⁸ See Martin Indyk, *Master of the Game: Henry Kissinger and the Art of Middle East Diplomacy* (2021), pp. 451.

⁹ The legal issues involved regarding freedom of navigation are dealt with in Chapter 22.

¹⁰ Article II Egypt–Israel Peace Treaty 1136 UNTS 100; 1138 UNTS 59.

¹¹ *Burkina Faso v. Republic of Mali*, ICJ Reports 1986, p. 566.

objective in the stability of boundaries'.¹² The Mandatory boundary had, in turn, adopted the 1906 administrative separating line between Egypt, under British administration, and the Vilayet of Hejaz and Governorate of Jerusalem (Palestine) under Ottoman rule.¹³ Interestingly, the Syrian foreign minister declared, in 1979, 'Sinai is not Egyptian land, but part of Palestine'.¹⁴

A question arose as to what prevails in the case of a discrepancy between the written description of the boundary and the boundary as drawn on the map. There is, apparently, no clear international law rule on the subject. Since the treaty used the rather weak phrase 'as shown on the map', and the map was a large-scale map, Egypt and Israel searched the ground for boundary markers, researched documents showing the Mandatory boundary and largely ignored the map attached to the Peace Treaty.

In accordance with the Mandatory boundary, the Gaza Strip was on the Palestinian side of the border and thus ostensibly now in Israeli territory. Egypt was willing to acknowledge that the Strip was not in Egyptian territory, however, it was not willing to accept that it was Israeli territory. The Egyptian position was that the Strip was to be part of a future Palestinian State or entity. As a result, the parties agreed to add the phrase 'without prejudice to the issue of the status of the Gaza Strip'. Egypt had wanted to mark the border between Egypt and the Gaza Strip on the map with a broken line rather than a solid line, as on the remainder of the border. Israel objected, fearing that it would imply that Egypt had rights in the Strip.¹⁵ Egypt conceded on this issue and the border between Egypt and the Strip is marked on the map in an identical fashion to the marking of the rest of the border. During the negotiations on the Peace Treaty, Egypt wanted to have Egyptian police stationed in the Gaza Strip. Dayan's reaction was that 'the Gaza District lay on the Israeli side of that frontier, and therefore any discussion of that piece of

¹² Anthony Aust, *Handbook of International Law* (2005), p. 41.

¹³ Agreement signed and exchanged at Rafeh, 1 October 1906, between the commissioners of the Turkish Sultanate and the commissioners of the Egyptian Khedivate, concerning the fixing of a separating administrative line between the Vilayet of Hejaz and Governorate of Jerusalem and the Sinai Peninsula, *British and Foreign State Papers 1905-6*. The line was denoted as an administrative line as both Egypt and Palestine were part of the Ottoman Empire.

¹⁴ Quoted from Boutros Boutros-Ghali, *Egypt's Road to Jerusalem: A Diplomat's story of the Struggle for Peace in the Middle East* (1997), p. 274.

¹⁵ Conversation between the author and the late Meir Rosenne.

territory belonged to the negotiations on autonomy'.¹⁶ Consequently, there was no further reference in the Peace Treaty to any special status attributable to the Gaza Strip.

13.2 'Resident' Ambassadors

International law allows the appointment of non-resident ambassadors. At a late stage in the negotiations, Israel therefore insisted on adding the word 'resident' to the letter on exchanging ambassadors.¹⁷ When presenting the text of the Peace Treaty to Israel's Knesset, Prime Minister Begin remarked:

At Camp David I, one of the members of the Egyptian delegation got clever, and in one of the discussions he remarked, 'In fact, we could appoint our ambassador to Cyprus as ambassador to Israel'. This was really clever, and it gave grounds to demand that the treaty state 'Ambassador resident'. And the first article of Annex III states that 'upon completion of the interim withdrawal, Egypt and Israel will exchange resident Ambassadors'. That was what we agreed to.¹⁸

13.3 Linkage between the Peace Treaty and Autonomy on the West Bank and Comprehensive Peace in the Middle East

Article VI (2) of the Egypt Israel Peace treaty reads as follows:

The Parties undertake to fulfill in good faith their obligations under this Treaty, without regard to action or inaction of any other party and independently of any instrument external to this Treaty.

The background to this clause was that it was important for Egypt to be seen by the Arab world as having not abandoned the cause of the Palestinians. Egypt did not want to be seen as having made an agreement that only served Egyptian interests. Carter writes, quoting Sadat, 'I must

¹⁶ Moshe Dayan, *Breakthrough: A Personal Account of the Egypt-Israel Peace Negotiations* (1981), p. 209.

¹⁷ 1961 Vienna Convention on Diplomatic Relations, 500 UNTS 95, Article 5 1. 'The sending State may, after it has given due notification to the receiving States concerned, accredit a head of mission or assign any member of the diplomatic staff, as the case may be, to more than one State, unless there is express objection by any of the receiving States.'

¹⁸ Menachem Begin Administration: Statement to Knesset on the Israel-Egypt Peace Treaty (20 March 1979), www.jewishvirtuallibrary.org/prime-minister-begin-statement-to-knesset-on-the-israel-egypt-peace-treaty-march-1979.

have also a resolution of the West Bank and Gaza. I cannot do the Sinai alone'.¹⁹ Boutros-Ghali, however, writes that Sadat's one goal 'was to regain Egyptian Land – the return of the Sinai to the motherland. All other issues were secondary and could wait until the first priority was achieved'.²⁰ Israel was apprehensive that tying the Egypt–Israel agreement to progress with Palestinian autonomy, or with progress on comprehensive peace in the Middle East, out of fear this would make the Egypt–Israel agreement hostage to the Palestinians or to Syria. The Israeli position was that these were two separate issues, not to be tied to each other. A principal issue of disagreement in the Camp David talks had been the question of linkage between the Palestinian issue and a future Egyptian–Israel peace agreement. Israel objected to such linkage, while Egypt wanted to link them and hoped that an Egyptian–Israel agreement 'could be presented within a framework of general principles that would apply to the other fronts of the conflict'.²¹ Quandt comments, 'the linkage issue was to bedevil the talks at Camp David and the subsequent negotiations of the peace treaty'.²² The issue of possible linkage between the Peace Treaty and autonomy on the West Bank was one of the two major international law issues involved in drafting the Treaty.

Israel repeatedly informed the Egyptian side that it remained committed to advancing Palestinian autonomy as set out in the Camp David Accords but that it should not be tied to the Egypt–Israel treaty. The preamble to the Peace Treaty states:

Reaffirming their adherence to the 'Framework for Peace in the Middle East Agreed at Camp David', dated September 17, 1978.

Noting that the aforementioned Framework as appropriate is intended to constitute a basis for peace not only between Egypt and Israel but also between Israel and each of its other Arab neighbors which is prepared to negotiate peace with it on this basis.²³

A preamble to a treaty does not contain operative clauses. Aust writes that, in addition to describing the background and object of a treaty, a preamble may refer 'to a matter which a negotiating state could not get included in the body of the treaty. It can be a most convenient place to

¹⁹ Jimmy Carter, *Keeping Faith: Memoirs of a President* (1982), p. 361.

²⁰ Boutros-Ghali, *Egypt's Road to Jerusalem*, p. 46.

²¹ From William B. Quandt, *Camp David: Peacemaking and Politics* (1986), p. 178.

²² *Ibid.*, p. 207.

²³ Second and third preambular paragraphs, Egypt–Israel Peace Treaty, 1136 UNTS 100; 1138 UNTS 59.

put the leftovers of hopeless clauses, both large and small, lost during the negotiating process'.²⁴ Israel agreed to refer to the Camp David Accords in the preamble but there is no explicit reference to the Camp David Accords, to autonomy or to the Palestinians in the operative text of the Peace Treaty. In order to try and formally decouple the two issues, the Egypt-Israel Treaty stated the following, at the initiative of Israel:

Article VI

The Parties undertake to fulfill in good faith their obligations under this Treaty, without regard to action or inaction of any other party and independently of any instrument external to this Treaty.²⁵

During the negotiations, the United States proposed adding the following text: 'The directives of Article VI shall not be interpreted contrary to the fact that this treaty is being signed in the context of a comprehensive peace settlement in accordance with the Framework for Peace agreed on in Camp David.'²⁶ The US proposal was not accepted by Israel. In December 1978, Egypt proposed an interpretative note stating, 'the provisions of Paragraph 2 of Article VI of this Treaty shall not be construed in contradiction with the fact that this Treaty is concluded in the context of a comprehensive peace settlement in accordance with the provisions of the Framework for Peace in the Middle East agreed at Camp David'.²⁷ Israel rejected the Egyptian proposal.

At a meeting of President Carter with the Israeli delegation, the following discussion on the issue took place between the President and Israel Attorney General Barak and Israel Foreign Ministry Legal Adviser Rosenne:

Barak: The Israeli commitment to the framework agreement is a fact, but that it should not be mentioned in the treaty itself. If it were, it could be seen as the foundation stone for the Egyptian-Israeli treaty, and could call into question the viability of the treaty if the broader framework were not to be implemented. The President said that this was not a new concept.

²⁴ Anthony Aust, *Modern Treaty Law and Practice* (2nd ed. 2007), p. 425.

²⁵ Article VI(2) of the Egypt-Israel Peace Treaty, 1136 UNTS 100; 1138 UNTS 59. Begin explained to the Israeli Knesset that the Article was intended to prevent Syria trying to sabotage the agreement however the underlying reason was to prevent the agreement being tied to the Palestinian autonomy talks.

²⁶ Menachem Begin Administration: Statement to Knesset on the Israel-Egypt Peace Treaty (20 March 1979).

²⁷ White Paper Prepared in the Department of State, undated EGYPTIAN-ISRAELI PEACE NEGOTIATIONS Where They Stand on 17 December, *Foreign Relations, 1977-1980*, vol. IX, p. 549.

The Sinai framework itself was predicated on the acceptance of the general framework. Barak said that Israel's problem was that any mention of the general framework as the basis for the Egyptian-Israeli treaty would seem to make the Egypt-Israel treaty conditional upon the implementation of the broader framework. If this is mentioned, somewhere in the treaty there must be a sentence that the treaty stands on its own. If that is included, then Israel does not care how much reference is made to the broader framework. Rosenne suggested language which would make the treaty completely separate from the broader framework agreement. Barak said that this would balance off any reference to the general framework. If this were included, the Egyptians could even add language in the preamble referring to the comprehensive peace. But if this sentence were not in the treaty, then no reference could be made to the broader framework. The President said that he did not believe that Sadat could agree to the Israeli language. He insists that there is some tie between the Egyptian-Israeli treaty and the comprehensive peace. The Sinai agreement was meant to be part of a general framework. This is why he was able to agree to it at Camp David. He needs to be able to make some specific reference to the broader framework. It seems to the President that the Israelis were moving backwards. Barak said that whatever connection existed between the two frameworks still remained, but out of the framework agreement on Sinai there was not going to be a specific treaty, and it should stand on its own. It is a contract between two parties. Rosenne said that the United States had made reference to the treaty standing on its own. The Israelis do not want to point to a separate peace with Egypt, but in legal terms the Egypt-Israel treaty should not be dependent upon anything else. Israel will still adhere to the broader framework agreement, but Israel needs some guarantee that the language in the preamble will not pose any conditions.²⁸

At the signing of the Peace Treaty, Egypt and Israel also signed a joint letter to President Carter in which they undertook to 'start negotiations within a month' on implementation of the autonomy plan in the Camp David Accords and

set for themselves the goal of completing the negotiations within one year. The self-governing authority referred to in the 'Framework for Peace in the Middle East' will be established and inaugurated within one month after it has been elected, at which time the transitional period of five years will begin. The Israel military government and its civilian administration will be withdrawn, to be replaced by the self-governing authority, as

²⁸ Memorandum of Conversation 1, Washington, DC, 20 October 1978, SUBJECT: Summary of President's Meeting with the Israeli Delegation, *Foreign Relations, 1977-1980*, vol. IX, p. 328.

specified in the 'Framework for Peace in the Middle East'. A withdrawal of Israeli armed forces will then take place and there will be a redeployment of the remaining Israeli forces into specified security locations. They also agree that the objective of the negotiations is the establishment of the self-governing authority in the West Bank and Gaza in order to provide full autonomy to the inhabitants.²⁹

Sultan comments, 'the legal view accepted by both parties is that the obligations outlined in the letters are an integral part of the treaty itself'.³⁰ However, it would be more correct to state that it was Egypt that regarded the letter as an integral part of the Peace Treaty. Boutros-Ghali explains that the joint letter on autonomy was also a treaty and 'the two treaties were linked in that the signatories were the same; the legal bases, which were the Camp David agreements and UN Security Council Resolution 242, were the same; and the guarantor in both treaties was the United States'.³¹ Israel, however, regarded the letter on autonomy as binding but an undertaking separate from that of the Peace Treaty.

The United States finally drafted an 'Agreed Minutes' on the issue:

Article VI (2)

The provisions of Article VI shall not be construed in contradiction to the provisions of the framework for peace in the Middle East agreed at Camp David. The foregoing is not to be construed as contravening the provisions of Article VI (2) of the Treaty, which reads as follows: 'The Parties undertake to fulfil in good faith their obligations under this Treaty, without regard to action of any other Party and independently of any instrument external to this Treaty'.

This agreed minute, with its inbuilt contradiction, served as a face-saving device to enable the parties to sign the Peace Treaty. When presenting the Peace Treaty and the joint letter to Israel's Knesset, Prime Minister Begin informed the Knesset that he insisted that following the words 'self-governing authority' it should be added in, parentheses, 'administrative council' as it was in Camp David. Begin's reasoning was that he wanted to emphasise that they were not a sovereign or legislative body. Begin also informed the Knesset that he had insisted the text use the Camp David

²⁹ 1136 UNTS 100.

³⁰ David Sultan, *Between Cairo and Jerusalem: The Normalization between Arab States and Israel—The Egyptian Case* (2007). David Sultan was an Israeli Ambassador to Egypt.

³¹ Boutros-Ghali, *Egypt's Road to Jerusalem*, p. 196.

formula of full autonomy 'to the inhabitants' and not to the 'West Bank and Gaza' as the United States and Egypt had proposed.³²

Since Egypt wished the autonomy arrangements to be linked integrally to the Egypt-Israel Peace Treaty, Egypt registered the joint letter on autonomy and the 1978 Camp David Accord with the UN Secretariat as attachments to the Peace Treaty. Israel did not do so.³³ The phrase 'as appropriate' was added by Israel in the preamble to express its position that although it was withdrawing from all Egyptian territory, this formula was not necessarily appropriate to other possible future arrangements.

13.4 Security Council Endorsement

A US draft for Camp David had proposed that the parties 'seek and accept guarantees for the provisions of the treaty by the United States, the Soviet Union and the United Nations Security Council'.³⁴ The Camp David Accords, as finalised, stipulated, 'the United Nations Security Council shall be requested to endorse the peace treaties and ensure that their provisions shall not be violated. The permanent members of the Security Council shall be requested to underwrite the peace treaties and ensure respect for their provisions'.³⁵

Neither Egypt nor Israel was enthusiastic about involving the Soviet Union, and for its part, the Soviet Union later objected to Security Council involvement in what was essentially a US diplomatic achievement.³⁶ Furthermore, there does not appear to be any clear international law definition of what is involved in 'endorsing' or 'underwriting' a treaty. The Egypt-Israel Peace treaty does not contain such a clause and, instead, it is signed by the president of the United States as a 'witness' thereby achieving endorsement without implying any legal consequences.

³² Menachem Begin Administration: Statement to Knesset on the Israel-Egypt Peace Treaty (20 March 1979).

³³ 1136 UNTS 100; 1138 UNTS 59.

³⁴ Ismail Fahmy, *Negotiating for Peace in the Middle East* (1983), pp. 230, 231. According to Fahmy, the United States also proposed a clause that Israel would join the Nuclear Non Proliferation Treaty.

³⁵ Article C(6) A Framework for Peace in the Middle East, Agreed at Camp David.

³⁶ The Soviet Union refused to endorse sending a United Nations peacekeeping force to supervise the Peace Treaty.

13.5 The Relationship between the Peace Treaty and Previous Egyptian Commitments to the Arab League

Article VI (5) of the Egypt Israel Peace Treaty reads as follows:

Subject to Article 103 of the United Nations Charter³⁷ in the event of a conflict between the obligation of the Parties under the present Treaty and any of their other obligations, the obligations under this Treaty will be binding and implemented.³⁸

The background to this clause, inserted at the initiative of Israel, was that Egypt was a party to the Arab League Defence pact whereby members of the League undertook to come to the aid of a State member of the League that was the victim of armed aggression.³⁹ The right of self-defence in international law allows a State to come to the aid of another State that has been the victim of aggression and requests such aid. The Arab League Defence pact was a public document that Israel was aware of before signing the Peace Agreement. Israel was apprehensive that, in case of a future armed conflict between Israel and a neighbouring Arab state, Egypt, acting in accordance with the Arab League Pact, could attack Israel on the pretense that it was aiding another Arab State that had been attacked by Israel. The Israeli apprehension was that Egypt could then claim that, as Israel was aware of the Egyptian commitment to other Arab States before signing the Peace Treaty, it had acquiesced in such future Egyptian behaviour. During the negotiations, jurists Barak and Rosenne from the Israeli delegation consulted with three international law experts from Yale University – Rostow, McDougal and Lipson – who confirmed to them that the Israeli apprehension was well founded.⁴⁰ Begin explained to Carter, ‘if we do not say that the Israeli–Egyptian treaty must prevail, then we are acknowledging the validity of those other

³⁷ Article 103 of the UN Charter: ‘In the event of a conflict between the obligations of the Members of the United Nations under the present Charter and their obligations under any other international agreement, their obligations under the present Charter shall prevail.’

³⁸ 1136 UNTS 100; 1138 UNTS 59.

³⁹ Treaty of Joint Defense and Economic Cooperation Between the States of the Arab League, 17 June 1950, Art. 2. https://avalon.law.yale.edu/20th_century/arabjoin.asp.

⁴⁰ Quandt, *Camp David*, p. 274; Memorandum of Conversation 1, Washington, DC, 20 October 1978, Summary of President’s Meeting with the Israeli Delegation, *Foreign Relations, 1977–1980*, vol. IX, p. 324.

obligations'.⁴¹ At a later meeting with Carter, Israel legal advisor Rosenne explained, 'we should really have demanded that she [Egypt] disengage herself from these treaties but this was not possible for political reasons'.⁴² A further Israeli concern, as expressed by Dayan, was that 'Syria and Jordan would claim that our [Israeli] occupation of the West Bank and the Golan Heights was an act of aggression, so that if they attacked us, it would be a defensive war and Egypt could go to their help'.⁴³

The draft treaty proposed by Israel inserted Article 41, whereby, 'in a conflict between the obligations of the parties under the present treaty and their obligations under any international agreements, the Israeli-Egyptian treaty would always prevail'. The Article, as adopted, later became Article 6(5). Fahmy writes: 'The real aim of Article 41 [To the Israeli draft Treaty of Peace] was to nullify Egypt's commitments and obligations as stipulated in the Joint Arab Defence Treaty'.⁴⁴

In presenting the Treaty to the Israeli Knesset, after it had been signed, Prime Minister Begin explained:

Article 6(5) is a question of war and peace. We are signing a peace treaty with Egypt. But Egypt is signatory to dozens of agreements with Arab states. The Egyptian-Iraqi agreement states that its aim is 'the liberation of Palestine' – and I need not explain to the members of the Knesset that these words have but one meaning: the annihilation of the State of Israel. For only then can what they call 'the liberation of Palestine' be achieved.⁴⁵

Egypt was unhappy with Article 6(5). Quandt attributes to Sadat that 'he found it intolerable to say in public that commitments to Israel counted for more than commitments to Arab States. For example, if Israel carried out aggression against an Arab state allied to Egypt, Sadat did not feel it would be a violation of the treaty if he went to the aid of that state'.⁴⁶ Egypt proposed omitting the Article and suggested a text stating that 'the parties undertake not to enter into any obligation or take any action in conflict with this treaty and that it was willing to accept a U.S. legal

⁴¹ Memorandum of Conversation, Washington, DC, 2 March 1979, SUBJECT: Summary of President's Meeting with Prime Minister Begin, *Foreign Relations, 1977-1980*, vol. IX, p. 629.

⁴² Dayan, *Breakthrough*, p. 212.

⁴³ *Ibid.*, p. 257.

⁴⁴ Fahmy, *Negotiating for Peace in the Middle East*, p. 228.

⁴⁵ Menachem Begin Administration: Statement to Knesset on the Israel-Egypt Peace Treaty (20 March 1979).

⁴⁶ Quandt, *Camp David*, p. 269.

opinion on the issue'.⁴⁷ The suggested legal opinion would state the following:

The obligations which Egypt assumes under the proposed Treaty text would not prevent Egypt from legally coming to the assistance of any state with which it has a collective security or mutual defense agreement in the event that state is the victim of armed attack by a third state. Egypt was willing to accept that Egypt would have no duty or right to assist an Arab country in initiating an attack on Israel.⁴⁸

Dayan writes that it was agreed with Secretary of State Vance that the United States would give its legal opinion that 'Israel's presence in these territories did not constitute a military attack or an act of aggression which justified military action against her'.⁴⁹ The American delegation suggested trying to define aggression but the Egyptian response was that 'Egypt alone, sovereign and independent, would define aggression under the prevailing circumstances and conditions and would be free to decide who was the aggressor'.⁵⁰ Because of Egyptian objection, this US legal opinion was 'abandoned'.⁵¹ The United States proposal to deal with this issue was to insert the following clause:

Each party ensures to and agrees with the other, in recognition of the parties' commitments to each other in this treaty, that there will be no conflict between its obligations under this treaty and any of its other obligations, including those under any other international agreement, whenever made. Each party also assures the other that it will respect its obligations under the United Nations Charter in its dealings with all states.⁵²

Subsequently, the United States drafted a legal opinion that 'nothing would prevent Egypt from honoring its commitments under other treaties in the event of armed attack against one of its allies',⁵³ or as Vance put

⁴⁷ Sadat to Carter, Telegram from the Embassy in Egypt to the Department of State, Cairo, 29 November 1978, *Foreign Relations, 1977-1980*, vol. IX, p. 502.

⁴⁸ White Paper Prepared in the Department of State, undated EGYPTIAN-ISRAELI PEACE NEGOTIATIONS Where They Stand on 17 December, *Foreign Relations, 1977-1980*, vol. IX, p. 549.

⁴⁹ Dayan, *Breakthrough*, p. 257.

⁵⁰ Boutros-Ghali, *Egypt's Road to Jerusalem*, p. 178.

⁵¹ Dayan, *Breakthrough*, p. 258.

⁵² 19 October 1978, US revision of draft treaty text, Telegram from the Department of State to the Consulate General in Jerusalem and the Embassies in Egypt and Israel, *Foreign Relations, 1977-1980*, vol. IX, p. 320.

⁵³ Quandt, *Camp David*, p. 287.

it, 'Egypt would not be debarred by the treaty from coming to the aid of an ally who was the victim of an armed attack'.⁵⁴ This legal opinion was later withdrawn at Israel's request.⁵⁵

At Egyptian initiative, Article 6(1) was also adopted. Article 6(1) reads:

This Treaty does not affect and shall not be interpreted as affecting in any way the rights and obligations of the Parties under the Charter of the United Nations.

Boutros-Ghali writes:

The text contained Article 6, which stated that the Egypt-Israel treaty would take precedence over all of Egypt's other international agreements. This, I felt, was disastrous; it would entirely separate Egypt from its obligations to the Arab world. I had the answer to the problem, I explained to anyone who would listen: Article 51 of the United Nations Charter provided every nation with the right of self-defense, individually or collectively, and no one should complain if we mentioned this in the text. Doing so would enable Egypt to give silent preference to the Arab Collective Security Pact, signed in 1950, which was based on the right of collective self-defense provided in the Charter.⁵⁶

In drafting this clause, the Egyptian intention was to have on record in the Peace Treaty, that by implication, the right of self-defence, as set out in the UN Charter⁵⁷ was not affected by the Treaty. In a meeting with the Egyptian delegation, US diplomat Aaron said, 'the reference to the U.N. Charter was meant to protect Egypt's right to collective self-defense. The Egyptian legal adviser, El-Erian acknowledged that this was helpful. The United States legal adviser Hansell added that in the event of Israeli aggression, the reference to the U.N. Charter would allow Egypt to respect its commitment under the mutual defense pacts'.⁵⁸ President Carter informed the Egyptian vice president that, 'when the treaty is signed, Sadat can say that his obligation to defend other Arabs from an

⁵⁴ Vance, *Hard Choices*, p. 241.

⁵⁵ Letter from Herbert J. Hansell, the legal advisor, US Department of State, 26 March 1979, addressed to Meir Rosenne, Israel Ministry of Foreign Affairs in R. Sabel, ed. *Basic Documents on the Peace Negotiations. Volume 2: Israel Ministry of Foreign Affairs* (June 1980), p. 77.

⁵⁶ Boutros-Ghali, *Egypt's Road to Jerusalem*, p. 176.

⁵⁷ Article 51 of the UN Charter.

⁵⁸ Memorandum of Conversation 1, Washington, DC, 21 October 1978, SUBJECT: Summary of President's Meeting with Egyptian Delegation, *Foreign Relations, 1977-1980*, vol. IX, p. 349.

Israeli attack is still binding. He can say this. He can even quote me that this is the U.S. interpretation'.⁵⁹

Boutros-Ghali writes, in regard to Egypt's obligations to the Arab League, of the relevance 'the theory of *rebus sic stantibus*, that is, that continuing validity of a treaty requires that "things remain as they are". So, in international law, when circumstances change, you can rightfully ask for revision of the requirements of the earlier agreement'.⁶⁰ To this author, the argument seems doubtful if the State involved, in this case Egypt, caused the change of circumstances of its own volition.

In an attempt to try to placate both parties, the United States drafted an ambiguous Agreed Minutes:

It is agreed by the Parties that there is no assertion that this Treaty prevails over other Treaties or agreements or that other Treaties or agreements prevail over this Treaty. The foregoing is not to be construed as contravening the provisions of Article VI (5) of the Treaty, which reads as follows: 'Subject to Article 103 of the United Nations Charter, in the event of a conflict between the obligations of the Parties under the present Treaty and any of their other obligations, the obligation under this Treaty will be binding and implemented'.⁶¹

This text was intensively negotiated, discussion centering on whether to use a phrase such as 'does not derogate' 'has no priority' or 'is not inconsistent'.⁶² Quandt comments, 'of such are diplomatic compromises made, six months of negotiations to reach agreement with Begin on two contradictory statements in the same interpretation'.⁶³

13.6 Peacekeeping Force

It was important for Israel that there be an international force monitoring the limitation of forces in Sinai and the original intention was that it be a UN force.

⁵⁹ Memorandum of Conversation 1, Washington, DC, 16 November 1978, SUBJECT: President's Meeting with Vice President Mubarak, *Foreign Relations, 1977-1980*, vol. IX, p. 479.

⁶⁰ Boutros-Ghali, *Egypt's Road to Jerusalem*, p. 207.

⁶¹ Agreed Minutes to Articles I, IV, V and VI and Annex I and III of Treaty of Peace. *The Department of State Bulletin* 79, nos. 2022-2027.

⁶² Quandt, *Camp David*, p. 304.

⁶³ *Ibid.*, p. 300. Vance makes a similar comment. Vance, *Hard Choices*, p. 244.

Article IV of the Peace Treaty states:

The Parties agree to the stationing of United Nations personnel in areas described in Annex I. The Parties agree not to request withdrawal of the United Nations personnel and that these personnel will not be removed unless such removal is approved by the Security Council of the United Nations, with the affirmative vote of the five Permanent Members, unless the Parties otherwise agree.⁶⁴

Article VI of Annex I to the Egypt Israel Peace Treaty states:

United Nations Operations

The Parties will request the United Nations to provide forces and observers to supervise the implementation of this Annex and employ their best efforts to prevent any violation of its terms.

The Parties shall agree on the nations from which the United Nations forces and observers will be drawn. They will be drawn from nations other than those which are permanent members of the United Nations Security Council.

The previous UN force, UNEF, had been withdrawn precipitously by the UN Secretary General in 1967 at the request of Egypt. Its withdrawal was one of the catalysts leading to the outbreak of the June 1967 Six Day War. In order to prevent a recurrence of such a withdrawal, the Peace Treaty stated, at Israel's initiative, that the Force 'will not be removed unless such removal is approved by the Security Council of the United Nations, with the affirmative vote of the five Permanent Members, unless the Parties otherwise agree'. It is doubtful whether this clause would have had any practical effect since peacekeeping forces can only operate in the territory of a State with the permission of that State. If Egypt, in violation of the agreement, would have requested the withdrawal of the proposed force, that force would have had to comply, as did UNEF in 1967. Furthermore, UN Security Council decisions do not require 'the affirmative vote of the five Permanent Members', and there is no way Egypt and Israel can change UN Security Council procedure.

Egypt and Israel were aware that the UN might not be willing to supply a peacekeeping force. Hence in an Agreed Minutes, they stipulated 'with respect to the provisions of paragraph 8, Article VI, of Annex 1, if no agreement is reached between the Parties, they will accept or support a U.S. proposal concerning the composition of the United

⁶⁴ <https://mfa.gov.il/mfa/foreignpolicy/peace/guide/pages/israel-egypt%20peace%20treaty.aspx>.

Nations force and observers'. A letter from Carter to Begin, signed at the same time as the Treaty of Peace was signed, states:

The United States believes that the Treaty provision for permanent stationing of United Nations personnel in the designated limited force zone can and should be implemented by the United Nations Security Council. The United States will exert its utmost efforts to obtain the requisite action by the Security Council. If the Security Council fails to establish and maintain the arrangements called for in the Treaty, the President will be prepared to take those steps necessary to ensure the establishment and maintenance of an acceptable alternative multinational force.⁶⁵

Because of the objection of the Soviet Union, the UN did not agree to provide a peacekeeping force and United States agreed to initiate a 'Multi National Force and Observers' (MFO) peacekeeping force to carry out the functions assigned to a UN force by the Egypt-Israel Peace Treaty.⁶⁶ The MFO was set up Egypt, Israel and the United States⁶⁷ and is financed by the three States. As Tabory writes:

The procedure leading to the agreement with France [Which contributed forces] which was followed *mutatis mutandis* for other States, was as follows: There was an exchange of letters between the French Foreign Minister and a US citizen [The Director General of the MFO] nominated by the Egyptian and Israeli Governments, without the US being mentioned. Since France questioned the Director General's judicial capacity to negotiate and conclude a treaty, she requested that the parties issue Mr. Hunt [The Director General] a 'letter of habitation'. France was satisfied with Egyptian and Israeli letters thus empowering the Director-General.⁶⁸

In addition to the United States, a number of other States have volunteered forces that participate in the MFO. Like UN peacekeeping forces, the MFO can only function for so long as both Egypt and Israel agree that it does so. It has no powers of enforcement and is not a fighting force.

⁶⁵ Letter from President Carter to Prime Minister Begin about the Deployment of a UN or an Alternate Multinational Force, 26 March 1979.

<https://mfa.gov.il/MFA/ForeignPolicy/Peace/Guide/Pages/Israel-Egypt%20Peace%20Treaty%20-%20Letters.aspx>.

⁶⁶ US Public Law 97-132.

⁶⁷ 'Egypt-Israel: Protocol Establishing the Sinai Multinational Force and Observers', ILM 20, no. 5 (September 1981), pp. 1190-1197.

⁶⁸ Mala Tabory, *The Multinational Force and Observers in the Sinai: Organization, Structure and Function* (1986), p. 37.

13.7 Permanence of Security Arrangements

The parties to a treaty can amend the treaty, by mutual agreement, however, Article IV of the Egypt–Israel Peace Treaty, which deals with the security arrangements, has an explicit clause on this issue:

Article IV (4), The security arrangements provided for in paragraphs 1 and 2 of this Article may at the request of either party be reviewed and amended by mutual agreement of the Parties⁶⁹.

The United States noted in an internal memo, ‘the Egyptians wanted a provision in the treaty for review after five years, which in their mind would be linked to the five-year period for a transitional regime in the West Bank and Gaza. For the same reason that Egypt likes this idea, the Israelis don’t. The Israelis have countered with language providing that the parties can open discussions about “amendments” to the treaty “at any time”’.⁷⁰ Egypt’s principal objection to permanence was to the security arrangements. These arrangements consisted of limitation of forces and armaments in different regions of Sinai and international supervision of these arrangements. The Egyptian delegation narrowed its request for possible changes so that it would deal only with the security arrangements. Egypt proposed that ‘Paragraph 4 of Article IV shall be construed to mean that review provided for in that Article shall be undertaken promptly on the request of either Party, and that an amendment can be made only with the mutual agreement of the two Parties’.⁷¹ Israel was unhappy with this clause but accepted it. It was, however, an example of the application of the law of unforeseen consequences. Some twenty years later, Egypt requested Israeli permission to increase its forces in Sinai in order to combat Al Qaida terrorists. Members of the Israeli Knesset argued that it would entail a change in the Treaty, and as the Treaty had been ratified with Knesset approval, any change in the Treaty would also require such approval. The Israeli government was reluctant to approach the Knesset on this issue and responded that Article IV(4) of the Treaty allowed for changes in the

⁶⁹ 1136 UNTS 100; 1138 UNTS 59.

⁷⁰ Memorandum From Ambassador-at-Large Alfred L. Atherton, Jr. to President Carter, Washington, DC, 16 October 1978, SUBJECT: Status of Egypt–Israel Negotiations, *Foreign Relations, 1977–1980*, vol. IX, p. 302.

⁷¹ White Paper Prepared in the Department of State, undated EGYPTIAN–ISRAELI PEACE NEGOTIATIONS Where They Stand on 17 December, *Foreign Relations, 1977–1980*, vol. IX.

security arrangements, with mutual approval, hence, there was no change in the Treaty and Knesset approval was not required.⁷²

13.8 Claims

Article VIII of the Egypt–Israel Peace Treaty states:

The Parties agree to establish a claims commission for the mutual settlement of all financial claims.⁷³

The background to this clause was that Egypt had demanded, before Camp David, that Israel compensate Egypt for exploiting oil resources from Sinai and that a clause in the peace treaty be included as follows:

Israel undertakes to pay full and prompt compensation for the damage which resulted from the operations of its armed forces against the civilian population and installations, as well its exploitation of natural resources in occupied territories.⁷⁴

Israel promptly responded by issuing a counterclaim. In a conversation between President Carter and Dayan, ‘the President then raised the question of claims. Sadat had said, in his and Begin’s presence, that he would have a claim for the oil that Israel had extracted. The President said his own inclination was to try to get both sides not to make any claims against the other. Negotiations over claims could be a festering sore. If we could get Sadat to agree not to press claims, the President hoped Israel would also agree’.⁷⁵

Both parties subsequently agreed to set up a claims commission for the mutual settlement of all financial claims. This commission has never been convened.

⁷² See Moshe Hirsch, ‘Treaty-Making Power: Approval the Israel–Egypt Philadelphia Accord by the Knesset’, *Isr. L. Rev.* 39 (2006), p. 229.

⁷³ 1136 UNTS 100; 1138 UNTS 59.

⁷⁴ Egyptian Proposal at Camp David for the Framework for the Comprehensive Peace Settlement of the Middle East Problem, Article 8; Quandt, *Camp David*, Appendix D, p. 359.

⁷⁵ Memorandum of Conversation 1, Washington, DC, 10 October 1978, PARTICIPANTS AMERICAN SIDE: Jimmy Carter, President Walter Mondale, Vice President Cyrus Vance, Secretary of State Zbigniew Brzezinski, National Security Council Advisor to the President Alfred L. Atherton, Ambassador at Large; ISRAELI SIDE: Moshe Dayan, Foreign Minister Ezer Weizman, Defense Minister *Foreign Relations, 1977–1980*, vol. IX, p. 286.

13.9 Dispute Settlement

Article VII of the Egypt–Israel Peace Treaty states:

- (1) Disputes arising out of the application or interpretation of this Treaty shall be resolved by negotiations.
- (2) Any such disputes which cannot be settled by negotiations shall be resolved by conciliation or submitted to arbitration.⁷⁶

Egypt had proposed at Camp David that ‘the Parties also undertake to accept the compulsory jurisdiction of the International Court of Justice (ICJ) with respect to all disputes emanating from the application or the interpretation of their contractual arrangements’.⁷⁷ During negotiations on this issue, Egypt argued that Israel had already accepted the jurisdiction of the ICJ under Article 36(2) of the Statute of the Court ‘the optional clause’.⁷⁸ As the United States mentioned to Egypt, the Israeli acceptance of the optional clause jurisdiction had, however, been subject to a reservation:

This Declaration does not apply to:

- (c) Any dispute between the State of Israel and any other State whether or not a member of the United Nations which does not recognize Israel or which refuses to establish or to maintain normal diplomatic

⁷⁶ 1136 UNTS 100; 1138 UNTS 59.

⁷⁷ Egyptian Proposal at Camp David for the Framework for the Comprehensive Peace Settlement of the Middle East Problem, Article 8; Quandt, *Camp David, Peacemaking and Politics*, Appendix D, p. 358.

⁷⁸ Article 36(2) of the Statute of the International Court of Justice:

- (2) The states parties to the present Statute may at any time declare that they recognize as compulsory ipso facto and without special agreement, in relation to any other state accepting the same obligation, the jurisdiction of the Court in all legal disputes concerning:
 - (a) the interpretation of a treaty;
 - (b) any question of international law;
 - (c) the existence of any fact which, if established, would constitute a breach of an international obligation;
 - (d) the nature or extent of the reparation to be made for the breach of an international obligation.
- (3) The declarations referred to above may be made unconditionally or on condition of reciprocity on the part of several or certain states, or for a certain time.
- (4) Such declarations shall be deposited with the Secretary-General of the United Nations, who shall transmit copies, thereof to the parties to the Statute and to the Registrar of the Court. <https://www.icj-cij.org/en/statute>

- relations with Israel and the absence or breach of normal relations precedes the dispute and exists independently of that dispute;
- (d) Disputes arising out of events occurring between 15 May 1948 and 20 July 1949;
 - (e) Without prejudice to the operation of subparagraph (d) above, disputes arising out of, or having reference to, any hostilities, war, state of war, breach of the peace, breach of armistice agreement or belligerent or military occupation (whether such war shall have been declared or not, and whether any state of belligerency shall have been recognized or not) in which the Government of Israel are or have been or may be involved at any time.⁷⁹

Israel rejected the Egyptian proposal. Israel is wary of submitting disputes to the ICJ since the judges of the Court were appointed by the UN General Assembly and the General Assembly has an automatic anti-Israeli majority. In October 1978, the United States therefore proposed the following:

- (3) Any such disputes which cannot be settled by negotiations shall be submitted to an arbitration commission at the request of either government.

An internal US record of the discussion on this issue recorded that

Barak then turned to Article VII on arbitration. The Prime Minister wants to reopen this issue, and now favors an arbitration commission of four members, two from each party. If each party agrees that a deadlock has been reached in the talks, by agreement they would name a fifth. The President said that he could agree to language as follows: 'If the parties agree there is a deadlock, they will select a fifth member on the Arbitration Commission.'⁸⁰

At a meeting with the Egyptian delegation,

El-Erian referred to Article 33 of the U.N. Charter and encouraged that conciliation be referred to as one step in settling disputes. The President again said that a quick move to binding arbitration would cause him some problems. He would like to have some in-between step. El-Erian suggested a slight change in Article VII, paragraph 2. The four-member

⁷⁹ 302 UNTS 1956. In 1985, Israel withdrew its acceptance of jurisdiction under Article 36 (2).

⁸⁰ Memorandum of Conversation 1, Washington, DC, 20 October 1978, 7:30–10:40 p.m. SUBJECT: Summary of President's Meeting with the Israeli Delegation, *Foreign Relations, 1977–1980*, vol. IX, p. 334.

commission should be for conciliation, not arbitration. The President said that this sounded all right to him, but they should try to work out three stages.⁸¹

During the Taba dispute,⁸² a disagreement arose between Egypt and Israel over the interpretation of the clause, 'any such disputes which cannot be settled by negotiations shall be resolved by conciliation or submitted to arbitration'. Israel argued that since the parties had not succeeded in settling the Taba dispute by negotiations, they then had the choice of going to conciliation or arbitration and Israel chose conciliation. Egypt argued that since there was no possibility of settling the issue by conciliation, therefore the parties automatically had to adopt arbitration. Egypt also argued that only arbitration would provide a binding legal outcome. Finally, Egypt and Israel agreed on a convoluted formula which obliged the parties to commence arbitration, suspend the arbitration for conciliation and if conciliation failed then to continue with the arbitration.⁸³

13.10 Concluding Remarks

The negotiations over the Egypt–Israel Peace Treaty raised fundamental legal issues of conflict between different treaties and the right to collective self-defence. International law was unable to give unambiguous answers to these issues. However, international law was extremely useful where it was applied to the issues of stability of boundaries, freedom of navigation, diplomatic relations and the legal change from a state of war to peace.

Nevertheless, parties comply with their obligations in treaties when they see it in their national interest to do so; this is also true of Egyptian–Israel relations. The two parties have maintained the peace for over forty years not because of the legal wording of the Peace Treaty, but because it is in their national interests. To the best knowledge of the author, the parties have never had resource to the language of the Peace Treaty,

⁸¹ Memorandum of Conversation 1, Washington, DC, 21 October 1978, 6:50–8:20 a.m. SUBJECT: Summary of President's Meeting with Egyptian Delegation, *Foreign Relations, 1977–1980*, vol. IX, p. 348

⁸² See Chapter 14.

⁸³ 'Arbitration Compromis, Case Concerning the Location of Boundary Markers in Taba between Egypt and Israel', 29 September 1988, *Reports of International Arbitral Awards*, vol. XX, pp. 1–118, Article IX. https://legal.un.org/riaa/cases/vol_xx/1-118.pdf.

except as regards the changes in the security arrangements and settling the Taba dispute. It was Israel Attorney General Barak who told Vance that 'the Peace Treaty would be respected or violated as a result of political developments and not of this or that interpretation of the significance of a word'.⁸⁴ Quandt writes, 'in reality, of course, whatever was written on paper would not guarantee what would happen in some future conflict'.⁸⁵

Nevertheless, it was important for both sides to try and ensure legal language that represented their interests, and the Peace Treaty can be seen as an extremely successful example of legal draftsmanship. Boutros-Ghali writes that that he consulted with Abdallah el-Arian who was 'Egypt's judge at the International Court of justice, who declared that the contractual obligations resulting from the Egypt-Israel peace treaty were in conformity with international law'.⁸⁶ The language of the treaty was copied, nearly verbatim, in successive peace treaties that Israel signed with other Arab States.⁸⁷ Begin and Sadat received the Nobel Peace prize, a leading textbook on treaty law chose a picture of the signing ceremony with Begin, Carter and Sadat as the photo on its cover,⁸⁸ a compliment to the treaty drafting of Egypt and Israel, done with the help of the United States.

⁸⁴ Dayan, *Breakthrough*, p. 241.

⁸⁵ Quandt, *Camp David, Peacemaking and Politics*, p. 269.

⁸⁶ Boutros-Ghali, *Egypt's Road to Jerusalem*, p. 197.

⁸⁷ To date Jordan, Bahrein and the United Arab Emirates.

⁸⁸ Aust, *Modern Treaty Law and Practice*.

Taba Arbitration

14.1 The Dispute

The Egypt–Israel 1979 Peace Treaty stipulated that the boundary between the two States was ‘the recognized international boundary between Egypt and the former mandated territory of Palestine’. Egypt and Israel formed a joint team to demarcate the border with border pillars. The team based their demarcation on existing border pillars and the description of the border as it was originally delimited in 1906.¹ A disagreement arose between the Egyptian and Israeli surveyors as to the correct location of parts of the Mandatory border near the Gulf of Aqaba at Wadi Taba. Egypt’s claim relied on existing pillars² and Israel relied on the 1906 agreement between Britain, as the administrator of Egypt, and the Ottoman Empire that ruled Palestine.³ The crux of the issue in the Taba Arbitration was how the border had been marked in

¹ Haim Srebro, *The Boundaries of Israel Today* (2012), p. 126, produced by the Survey of Israel (2012).

² Memorial of the Arab Republic of Egypt. Pt. I–V (Vol. 1), VI–VII (Vol. 2), map atlas + annexes (3 vols.), 1987 [2]. Counter-Memorial of the Arab Republic of Egypt. [Text] + Documentary annexes, 1987 [3]. Rejoinder of the Arab Republic of Egypt. [Text] + Documentary annexes, 1988. Law library Hebrew University Jerusalem Catalogue Number 341.222 (62:E1)/EGY.

³ ‘Agreement signed and exchanged at Rafeh, 1st October 1906, between the Commissioners of the Turkish Sultanate and the Commissioners of the Egyptian Khedivate, concerning the fixing of a separating administrative line between the Vilayet of Hejaz and Governorate of Jerusalem and the Sinai Peninsula’, *British and Foreign State Papers 1905–6*. The line was denoted as an administrative line as both Egypt and Palestine were part of the Ottoman Empire. Memorial of Israel, text, annexes + maps, 13 May 1987 [2]. Counter-Memorial of Israel, text + annexes, 12 October 1987 [3]. rejoinder of Israel, text + annexes, 1 February 1988. Law library Hebrew University Jerusalem, Catalogue Number 41.222 (62:E1)/EGY.

1906 and whether there had been a demarcation of the boundary in which the parties had agreed to deviate from the boundary delimited in 1906.

14.2 Dispute Settlement Mechanism

The parties were unable to resolve the dispute by negotiations⁴ and had recourse to the dispute settlement mechanism of the Treaty of Peace. Article VII(2) of the Egypt–Israel Treaty of Peace stipulated, ‘any such disputes which cannot be settled by negotiations shall be resolved by conciliation or submitted to arbitration’.

14.3 Conciliation

Conciliation is a method for the settlement of international disputes according to which a conciliation commission set up by the parties attempts to define the terms of a settlement which they think is likely to be accepted by the parties. Egypt wanted to go directly to arbitration and Israel wanted to go to conciliation. The compromise was to commence a process of arbitration, suspend it for an attempt by conciliation by one of the arbitrators and then continue with the arbitration. The attempt at conciliation failed and the parties agreed to proceed with the arbitration.

14.4 Arbitration

Arbitration is employed when what is wanted is a binding decision based on international law. Arbitration requires the parties themselves to set up the machinery to handle a dispute between them. The parties appoint the arbitrators, define the question to be proposed to the arbitrators and stipulate the procedure of the arbitration. The arbitration agreement (*Compromis*) will usually stipulate that the parties will abide by the decision of the arbitrators, moreover, customary law demands that parties comply with such a decision. There is no appeal from a decision of arbitrators unless the parties arrange for such an appeal.

⁴ On the attempts to reach a solution by negotiations, see Robbie Sabel, ‘The Attempts to Negotiate a Compromise Solution to the Taba Dispute’, *Bar-Ilan Law Studies* 14, no. 2 (1998), p. 507 (In Hebrew).

14.5 The Taba Arbitration Agreement

The language of the *Compromis* in the Taba Arbitration⁵ was based to a large extent on the model arbitration *Compromis* of the Permanent Court of Arbitration in The Hague.⁶ When drafting the *Compromis*, there was disagreement between Egypt and Israel as to the question to be posed to the arbitrators. In arbitration, the arbitrators can only decide on the question posed to them, any divergence can be *ultra vires* to their mandate. Egypt wanted the question to refer only to location of existing pillars and Israel wanted it to refer only to the legal boundary delimited in 1906. The agreed compromise was that the question posed to the arbitrators be a combination of both. Egypt and Israel could also not agree on the names of the three neutral arbitrators. This problem was solved by each side presenting to a mediator, appointed by the United States, successive lists of potential arbitrators. Only if the same name appeared on lists prepared by both sides was the name disclosed.⁷ The *Compromis* contained an unusual clause, demanded by Egypt, that the arbitrators could only decide on a site for the final pillar proposed by one of the parties and thus not able to make a compromise finding. As is usual in arbitration, the *Compromis* included details as to procedure and the stipulation that the parties will abide by the decision of the arbitrators and that such a decision would be final.

14.6 The Decision of the Arbitrators

The majority award of the Tribunal held that it would decide the location of the pillars ‘as it was demarcated, consolidated, and commonly understood during the period of the Mandate’ which was ‘the critical period’. As to the site advanced by Egypt, the Award admitted the following:

There is no evidence with respect to the erection of this pillar in 1907 nor with regard to its existence in the following years. However, throughout the critical period until a time after 1967 there was a boundary pillar at the location which, during this whole period, was considered to be a

⁵ [Egypt–Israel] Arbitration *Compromis*, Case concerning the location of boundary markers in Taba between Egypt and Israel, 11 September 1986. ‘Award of the Egypt Israel Arbitration Tribunal’, ILM 27 (1988), pp. 1427, 1432–1433.

⁶ Website of the Permanent Court of Arbitration, The Hague, <https://pca-cpa.org/en/home>. The author was the agent for Israel in the arbitration.

⁷ The arbitrators that were jointly selected were Gunnar Lagegren, Pierre Bellet and Dietrich Schindler. Egypt appointed Hamed Sultan and Israel appointed Ruth Lapidoth.

boundary pillar. Where the States concerned have, over a period of more than fifty years, identified a marker as a boundary pillar and acted upon that basis, it is no longer open to one of the parties or to third states to challenge that long held assumption on the basis of an alleged error. The principle of the stability of boundaries requires that boundary markers, long accepted as such by the States concerned, should be respected and not open to challenge indefinitely on the basis of error.⁸

The arbitrators approved the site of a pillar proposed by Egypt but the site of the pillar was not on the actual seacoast. The arbitrators expressed their opinion as to where the border most probably should reach the coast, at a place called the 'Parker' Pillar at Taba,⁹ but it was a site that neither party to the arbitration had proposed, and the arbitrators could not adopt it because of the limitations of the *Compromis*.

14.7 Dissenting Opinion

The dissenting opinion of Ruth Lapidoth, the arbitrator appointed by Israel, held that that 'Egypt and Great Britain adopted the boundary line of the 1906 Agreement, without reference to any changes on the ground which may have occurred subsequent to that Agreement'. According to Lapidoth, 'the majority erroneously attributes stability to boundary markers whereas the principle of stability and permanence applies not to markers but to boundaries lawfully established and recognized'.¹⁰ Professor Weil of the Sorbonne, reached the conclusion that the dissenting opinion of Ruth Lapidoth was correct in law. In Weil's opinion, it is not the 'situation on the ground during the Mandate or in any earlier or later period which should have been held as the decisive element in the definition of the concept of the recognized international boundary but the legal title, that is, the Agreement of 1906'.¹¹ E. Lauterpacht, who was lead counsel for Israel, in a commentary on the Arbitration decision wrote that, regretfully, Egypt failed to produce

⁸ 'Award of the Egypt-Israel Arbitration Tribunal', pp. 1427, 1432–1433.

⁹ Ibid. There was confusion as to the location of this pillar, see W. Michael Reisman and Christina Parajon Skinner, *Fraudulent Evidence before Public International Tribunals: The Dirty Stories of International Law* (2014), pp. 127–163.

¹⁰ 'Dissenting Opinion of Ruth Lapidoth – Award of the Egypt–Israel Arbitration Tribunal', ILM 27 (1988), pp. 1427, 1432–1433.

¹¹ Prosper Weil 'Some Observations on the Arbitral Award in the Taba Case', Isr. L. Rev. 23 (1989), pp. 1, 11.

documents that could have been expected to have been in their possession and that were highly pertinent to important issues.

14.8 The Boundary as Agreed between Egypt and Israel

The site proposed by Egypt was not on the actual coastline. Since, according to the *Compromis*, the arbitrators could only choose a location advanced by a party, the final pillar on the seashore was not determined by the arbitration. After the arbitration was concluded, the parties negotiated the location of the final pillar. Surveyors from Egypt and Israel recorded the marking of the location of the agreed marker on the shore of the Gulf of Aqaba. The legal advisor of the US State Department, Abraham D. Sofaer, signed as a witness.¹² The parties also reached an agreement concerning easing access of Israeli citizens to the Taba area and to Southern Sinai.

14.9 The Claim of *non-licet*

In the Taba Arbitration, the *Compromis* stipulated that the Tribunal could not adopt a location other than one proposed by one of the parties. Counsel for Israel, E. Lauterpacht, argued that since the Tribunal reached the conclusion that the final pillar on the seacoast was not at one of the sites proposed by the parties, the arbitrators should have reached a result of *non licet*, namely, that it was not permitted to reach a decision.¹³ *Non licet* is where a court or tribunal is not able to reach a decision because it lacks authority to do so.¹⁴ The Tribunal, however, did not accept the Israel claim of *non-licet*, declaring that the parties wanted to resolve fully and finally the dispute between them. In this spirit, the Award used a very unusual interpretation of the language of the *Compromis* in order to enable themselves not to reach a situation of *non licet*. Weil states that the Tribunal used fragile reasoning to avoid a situation of *non licet*.¹⁵ Bowett

¹² Haim Srebro, 'The Egypt-Israel Agreement on the Location of the Final Marker on the Gulf of Aqaba, 26 February 1989', in *The Boundaries of Israel Today 2012*, Produced by the Survey of Israel (2012), p. 126.

¹³ 'Award of the Egypt Israel Arbitration Tribunal', para. 239.

¹⁴ Elihu Lauterpacht, 'The Taba Case: Some Recollections and Reflections', *Isr. L. Rev.* 23 (1989), pp. 443, 458.

¹⁵ Weil, 'Some Observations on the Arbitral Award in the Taba Case', pp. 1, 23.

comments that a finding of *non licet* would have left the dispute unsettled.¹⁶

The minority opinion of Lapidoth was that when a Tribunal is confronted with a limited choice by a *Compromis* 'it cannot artificially increase its powers of discretion by disregarding its limitations'.¹⁷ Lapidoth writes, however, that although she disagreed with the conclusion of the majority opinion, nevertheless, a decision of the arbitrators not to reach any decision on the final pillar would 'have been frustrating for the Tribunal'.¹⁸

14.10 Critical Date in the Taba Arbitration

In the Taba Award, the majority opinion decided that the 'critical date' was the period of the British Mandate. A critical date is the time when the rights of disputing parties have crystallised and are not affected by subsequent acts. As regards boundaries of new States, the usual critical date will be the date of independence. The arbitrators decided that Britain, during the critical period of the British Mandate, had agreed or acquiesced with the demarcation even if it deviated from the 1906 delimitation. Bowett praises the Tribunal for adopting a critical period and not one particular date.¹⁹ Bowett commends the arbitration panel for providing an award based on 'a technical interpretive approach' with the result that the parties would comply with the award but reaches the conclusion that the award 'does not add very much to the body of legal principle relating to territorial boundary disputes'.²⁰ Shehab emphasises that State behaviour is only relevant as regards the critical period.²¹ Lapidoth, in her article, disputes the claim that behavior during a critical period could change the legally defined boundary unless the parties concerned can have clearly intended such a change.²²

¹⁶ D. W. Bowett, 'The Taba Award of 29 September 1988', *Isr. L. Rev.* 23 (1989), pp. 429, 439.

¹⁷ 'Dissenting Opinion of Ruth Lapidoth – Award of the Egypt–Israel Arbitration Tribunal', pp. 1427, para. 162.

¹⁸ Ruth Lapidoth, 'Some Reflections on the Taba Award', *German Yearbook of International Law* 35 (1992), pp. 224, 241.

¹⁹ Bowett, 'The Taba Award of 29 September 1988', p. 429.

²⁰ *Ibid.*

²¹ Moufid Shehab, 'Subsequent Conduct and "Taba" Dispute', *Revue Egyptienne de Droit International* 44 (1988), p. 1.

²² Lapidoth, 'Some Reflections on the Taba Award', p. 24.

14.11 The Principle of *uti possidetis* and Stability of Boundaries

The Egypt–Israel Peace Treaty adopted the boundary that existed between Egypt and British Mandated Palestine. This was a clear, though unstated, application of the international law principle of *uti possidetis*. The principle is that a new State inherits the boundaries of the previous State or entity. This doctrine evolved as new States achieved independence from colonial powers. Jennings and Watts write, ‘boundaries must be as they were in law at the declaration of independence’.²³ This principle was applied first in Latin America and later in Africa. It was also applied with the breakup of the Soviet block and is now a settled principle of international law.²⁴ Both the majority award and the minority opinion stressed the importance of the principle of the stability of boundaries. The majority, however, concluded that in the Taba case this stability should reflect the situation on the ground as shown by the presence of boundary pillars that were also marked on maps. The minority opinion was that the principle of stability of boundaries should reflect the stability of the legal boundary established by the parties in a treaty. This boundary should be respected unless the parties had agreed to change it and in the Taba case, according to the minority opinion, it had not been proven that the parties had agreed to such a change.

14.12 Acquiescence and Estoppel

In the Taba Award, the majority concluded that that even if the site of the pillar proposed by Egypt had not been placed in accordance with the 1906 Agreement, nevertheless, the site had been recognised by the parties concerned as forming part of the boundary line during the critical period. The arbitrators based themselves, inter alia, on the fact that Turkey did not complain about the location and the parties had agreed to it by their conduct. According to the majority opinion, both Egypt and Great Britain treated it as a boundary pillar. In international law, acquiescence or absence of protest can sometimes be seen to imply that a State concerned accepts the situation. Estoppel is usually seen as a procedural

²³ Robert, Jennings and Arthur, Watts, *Oppenheim’s International Law. Volume 1: Peace* (9th ed. 1969), p. 669.

²⁴ *Burkina Faso and Mali Frontier Dispute Case*, ICJ Reports, 1986, para. 23.

bar to making a claim that negates a previous position taken by the State involved.²⁵

14.13 Delimitation and Demarcation of Boundaries

A central issue in the Taba Arbitration was the relationship between delimitation of boundaries and demarcation of boundaries. A delimitation refers to legally defining a boundary, it is usually done in a treaty. Demarcation refers to the actual laying down of a boundary line on the ground, normally done by the means of placing boundary pillars. A demarcation as such should not change the delimitation of the boundary unless the parties to the delimitation agree to such a change. The issue in the Taba Arbitration was whether there had been a demarcation of the boundary in which the parties agreed to deviate from the boundary delimited in 1906. The issue was complicated by the fact that the 1906 delimitation was done with the Ottomans representing Palestine and Britain representing Egypt. The Taba Arbitration was between the independent Republic of Egypt and Israel. Until the 1979 Peace Treaty between Egypt and Israel, the two parties had been at war and the dividing line between them had been an Armistice Demarcation Line, a line that is temporary by its nature. A question therefore arose as to whether Israel had agreed to border pillars being an agreed demarcation that deviated from the 1906 delimitation. The arbitrators resolved this issue by deciding that the period of the British Mandate was the critical period and that Britain had agreed or acquiesced with the demarcation even if it deviated from the 1906 delimitation.

14.14 Concluding Remarks

The Award of the arbitrators in the Taba case has been subject to criticism on the grounds that the arbitrators based their decision on existing markers on the ground and refrained from examining when the markers had been placed and by whom and whether their siting

²⁵ In the *Eritrea/Ethiopia Boundary Commission Decision on Delimitation, 2002*, para. 3.10, http://legal.un.org/riaa/cases/vol_XXV/83-195.pdf. The arbitrators examined the issue of subsequent conduct, acquiescence and estoppel and quoted, with apparent approval, the majority decision of the Taba tribunal which reached the conclusion that subsequent conduct of the parties had changed one of the terms of the 1906 Agreement.

was in accordance with the legal boundary. Nevertheless, it was a landmark case in that for the first, and so far only time, Israel and a neighbouring Arab State settled a border dispute by means of an international arbitration. States usually go to arbitration only on matters that they do not consider to be of fundamental importance and losing would not have far-reaching consequences. This is true of the Taba dispute, which involved a dispute of some 250 metres of shoreline. Professor Lapidoth summarises that for political and perhaps even psychological reasons the two parties attributed to this dispute much more weight than was objectively reasonable.²⁶

²⁶ Lapidoth, 'Some Reflections on the Taba Award', pp. 224, 248.

The Legality of Israeli Exploitation of Oil from Sinai

15.1 The Laws of Belligerent Occupation Applicable to Oil Exploration

Israel occupied the Sinai Peninsula for some twelve years from 1967 until 1979. During this period, Israel pumped oil from oil wells that had been operated under Egyptian rule and, in addition, explored for new oilfields and exploited them. Under Egyptian law, the oil fields in Sinai were State owned and some had been leased to non-Egyptian corporations. The issue arose whether the exploitation by Israel was legal in international law and whether Egypt was entitled to compensation by Israel for the exploitation.

International law regarded the Sinai Peninsula as Egyptian territory under Israeli belligerent occupation. Belligerent occupation of enemy territory is lawful in times of armed conflict but does not bestow sovereignty on the occupier. Since the occupying State does not acquire sovereignty over the occupied territory, international law regards the occupying State only as the administrator of the territory.

15.2 Exploitation of Existing Oil Fields

As an administrator, the occupying State is entitled to the income from the occupied territory that was due to the sovereign state. For example, the occupying State is entitled to collect taxes that were payable to the sovereign state, but is not entitled to impose new taxes.¹ The occupier is entitled to use property owned by the previous sovereign and is entitled to the income from such State property but the occupier does not become the owner of such property. The 1907 Hague Rules are considered to be

¹ Convention (IV) respecting the Laws and Customs of War on Land and Its Annex: Regulations concerning the Laws and Customs of War on Land. The Hague, 18 October 1907. Art. 48, www.icrc.org/ihl.nsf/FULL/195?OpenDocument.

customary international law and Dinstein writes, 'a century after their final revision, Hague Regulations 42 through 56 continue to form the keystone of the law of belligerent occupation'.²

The relevant Article of the 1907 Hague regulations states:

Art. 55. The occupying State shall be regarded only as administrator and usufructuary of public buildings, real estate, forests, and agricultural estates belonging to the hostile State, and situated in the occupied country. It must safeguard the capital of these properties, and administer them in accordance with the rules of usufruct.³

The phrase 'usufruct' used in Article 55 of the Hague rules has been defined as 'a right to use the fruits of another's property for a period without damaging it or diminishing it, although the property might naturally deteriorate over time'.⁴ Article 55 has been consensually interpreted as allowing the occupier to exploit State owned mineral resources including oil. The US Military Manual stipulates:

The Occupying Power shall be regarded only as administrator and usufructuary of public buildings, real estate, forests, and agricultural estates belonging to the hostile State, and situated in the occupied territory. It must safeguard the capital of these properties, and administer them in accordance with the rules of usufruct. The term usufruct means literally 'to use the fruit'. As administrator or usufructuary, the Occupying Power should not exercise its rights in such a wasteful and negligent manner as seriously to impair the property's value. The Occupying Power may, however, lease or utilize public lands or buildings, sell the crops, cut and sell timber, and *work the mines*. The term of a lease or contract should not extend beyond the conclusion of the war.⁵

The British military Manual likewise refers to the right of the occupying State to 'work mines'.⁶ Greenspan writes, 'as fruits of the public land [The occupier] may sell its crops, cut and sell its timber and work its mines. Such exploitation must not exceed what is usual or necessary and must

² Yoram Dinstein, *The International Law of Belligerent Occupation* (2009), p. 6.

³ Convention (IV) respecting the Laws and Customs of War on Land and its annex: Regulations concerning the Laws and Customs of War on Land. The Hague, 18 October 1907, www.icrc.org/ihl.nsf/FULL/195?OpenDocument.

⁴ *Black's Law Dictionary* (9th ed. 2009).

⁵ *United States Department of Defence Law of War Manual* (June 2015 updated December 2016), sections 11.18, 5.2. Emphasis added. <https://dod.defense.gov/Portals/1/Documents/pubs/DoD%20Law%20of%20War%20Manual%20-%20June%202015%20Updated%20Dec%202016.pdf?ver=2016-12-13->

⁶ *UK Manual of the Law of Armed Conflict* (2004), p. 303.

not be abusive'.⁷ Two authors comment, regarding Israeli exploitation of oil fields in Sinai, 'the sophisticated legal analyses emerging from that Israeli occupation resulted in thoroughly considered views, all of which endorsed the belligerent occupant's right to exploit oil fields, to one degree or another'.⁸

15.3 Leasing Oil Wells

The occupier is also allowed to grant concessions for the minerals. Stone comments, 'though the [Hague rule 55] permits the Occupant to let or utilize public land and buildings, sell crops on public land, cut and sell timber and work mines, such contract or lease must not extend beyond the termination of the war'.⁹ Von Glahn writes, 'it would seem reasonable to assume, however, that an occupant in principle ought to be free to grant concessions for the exploitation of the usufruct of public real or immovable property, with the obvious reservation that no such concession could exceed the duration of the belligerent occupation'.¹⁰ The US Army Manual on Belligerent Occupation states that the occupant 'may make contracts' for the exploitation of immovable state property for the period of the occupation.¹¹ Gerson writes, 'the "fruits" of public land-crops, timber, and minerals-may be exploited and sold'.¹²

15.4 Reasonable Utilisation

Exploitation of publicly owned mineral resources however must be in a manner that a reasonable State would exploit its own resources. The rule would therefore prohibit resource stripping or any other form of over exploitation that could be considered unreasonable. Greenspan writes, 'as

⁷ M. Greenspan, *The Modern Law of Land Warfare* (1959), p. 288.

⁸ R. Dobie Langenkamp and Rex J. Zedalis, 'What Happens to the Iraqi Oil? Thoughts on Some Significant, Unexamined International Legal Questions regarding Occupation of Oil Fields', *EJIL*, 14, no. 3 (2003), pp. 417, 420.

⁹ J. Stone, *Legal Control of International Conflict* (1954), p. 714.

¹⁰ Gerhald von Glahn, *The Occupation of Enemy Territory - A Commentary on the Law and Practice of Belligerent Occupation* (1957), p. 209.

¹¹ US Judge Advocate General, School, Text No. 7, *The Law of Belligerent Occupation* (1944), p. 220, www.loc.gov/rr/frd/Military_Law/pdf/law-of-belligerent-occupation_11.pdf.

¹² Allan Gerson, 'Off Shore Oil Exploration by a Belligerent Occupant: The Gulf of Suez Dispute', *AJIL* 71 (1977), pp. 725, 730. Gerson, an academic US attorney served in the past as the legal advisor to the US delegation to the UN.

fruits of the public land [The occupier] may sell its crops, cut and sell its timber and work its mines. Such exploitation must not exceed what is usual or necessary and must not be abusive'.¹³ McDougal and Feliciano write, 'the occupant may not wantonly dissipate or destroy the public resources'.¹⁴ Gerson writes, 'it has been widely held that the "fruits" of public land-crops, timber, and minerals-may be exploited and sold providing their production neither depletes nor wantonly dissipates existing resources, but rather is consistent with sound ecological considerations. What contemporary international law seeks to prevent in regard to mineral exploitation is, in the terminology of the Nuremberg Tribunal, the crime of "spoliation" wanton, premeditated, and systematic destruction or plunder of the economic substance of occupied territory'. Gerson summarises this issue by stating, 'contemporary international law forbids exploitation of natural resources, including oil, only where the practice is marked by wanton dissipation of such resources'.¹⁵ There does not appear to be a claim that Israel dissipated the oil fields in a wanton manner.

15.5 Exploration and Utilisation of New Oil Fields

Israel explored, discovered and utilised oilfields in Sinai and offshore Sinai that had not been utilised previously by Egypt. Although there is near unanimity about the right of an occupying State to reasonably exploit existing oil fields, the issue of whether an occupying state has the right to explore for and to exploit new oil fields is controversial. Dinstein writes, 'the paramount issue in this context is whether the Occupying Power can prospect for petroleum in the occupied territory'.¹⁶ Von Glahn gives his view as follows:

However, considerable disagreement still prevails about the right of an occupant to grant new concessions in enemy territory. Normally only the legitimate sovereign would seem to have the power to grant concessions, yet conditions in the territory make it desirable to have the occupant grant new concessions in the interest of the native population.¹⁷

¹³ Greenspan, *The Modern Law of Land Warfare*, p. 288.

¹⁴ Myres S. McDougal and Florentino P. Feliciano, *Law and Minimum World Public Order: The Legal Regulation of International Coercion* (1961), p. 812.

¹⁵ Gerson, 'Off Shore Oil Exploration by a Belligerent Occupant', pp. 730, 731.

¹⁶ Dinstein, *The International Law of Belligerent Occupation*, p. 216.

¹⁷ von Glahn, *The Occupation of Enemy Territory*, pp. 177, 209.

The US Department of State was of the opinion that Israel was not entitled to exploit new oil fields that had not been previously been exploited by Egypt, the sovereign State.¹⁸ The legal advisor to the Department of State explained: 'A rule holding out the prospect of acquiring unrestricted access to and use of resources and raw materials, would constitute an incentive to territorial occupation by a country needing raw materials, and a disincentive to withdrawal.'¹⁹ Cummings, a former deputy legal advisor to the Department of State, wrote, 'the law of occupation proscribes the establishment of wells in areas where oil was not being extracted prior to the period of occupation. Israel can have no legal rights under the law of belligerent occupation to establish oil wells in the West Bank if oil is discovered there'.²⁰ Levie comments on Cummings:

During Israel's military occupation of the Sinai she pumped oil from sources in that area. The question arose as to whether this action violated the present article, among others. See Cummings, *Oil Resources, passim*, in which the author concludes that while Israel could pump oil, she could do so only for the needs of the occupation army and that she could not open new wells in the occupied territory of the West Bank. Unfortunately, neither with respect to this problem nor the one with respect to the German Lands has there been an authoritative decision.²¹

Gerson elaborates the State Department reasoning:

The rationale for a countervailing [State Department] rule is that exploitation of natural resources by an occupying power, even where prudent in nature and non-depletive, ineluctably leads to the creation of vested interests for continued occupation. This, in turn, hampers peace efforts, which would normally look to relinquishment of occupied territory in exchange for the resumption of peaceful relations. It was feared that Israel's drilling activity was counterproductive to the search for peace because given the capital investment inherent in oil exploration, such activity signals, wittingly or not, a determination not to yield this area in exchange for Arab normalization of relations with Israel.²²

¹⁸ M. Leigh, 'Department of State Memorandum of Law on Israel's Right to Develop New Oil Fields in Sinai and the Gulf of Suez', ILM 16 (1977), pp. 733, 742. Monroe Leigh was the Legal Advisor to the US Department of State.

¹⁹ Ibid.

²⁰ E. R. Cummings, 'Oil Resources in Occupied Arab Territories under the Laws of Belligerent Occupation', *Journal of International Law and Economics*, 9 (1974), pp. 533, 593.

²¹ Howard S. Levie, *The Code of International Armed Conflict*, vol. 2 (1986), p. 767.

²² Gerson, 'Off Shore Oil Exploration by a Belligerent Occupant', pp. 730, 733.

This motive is emphasised by other authorities who write, 'for a distinct, yet somewhat related, argument offered by the United States in the context of its objection to Israel's efforts to exploit oil fields in the Gulf of Suez, see Department of State Memorandum that provide incentives for occupation, or disincentives for termination of such, should be avoided'.²³ Three academicians who had acted as counsel to Standard Oil Company of Indiana reached the conclusion that 'the extraction of state owned oil from occupied territory by means of new wells constitutes an impermissible taking of the capitol of property protected by Article 55'.²⁴ Dufresne writes:

Usufructuary powers are patrimonial powers of a limited ambit: They usually entail the power to use and to collect the fruits generated by the property, and the correlative obligation to preserve the capital thereof. This is an impossible combination in relation to non-renewable resources. The ability to use the proceeds of exploitation inevitably entails the consumption of the capital. In such a situation, it seems most reasonable to apply a principle of continuity and allow for exploitation to continue at the pre-occupation level. The second limit is that the principle of continuity covers exploitation schemes existing at the beginning of the usufruct, thus limiting the occupier's capacity to develop the full potential of the territory.²⁵

Arai-Takahashi writes that the majority of publicists 'take the view that the occupying powers are forbidden both from exploiting a mine at a rate more rapid than the previous level of production and from opening mines that were not in use prior to occupation'. The author, however, adds that 'exploitation of oil in state practice has been one of the most contentious issues for the interpretation of Article 55 of the Hague regulations'.²⁶

As regards the development by Israel of new oil fields in the Sinai, the Israeli government position was that 'Article 55 makes no exception as to new oil fields. Article 55 contains no prohibition as to the opening of new

²³ Langenakam and Zedalis, 'What Happens to the Iraqi Oil?', p. 417, 425.

²⁴ Brice M. Claggett, and O. Thomas Johnson Jr., 'May Israel as a Belligerent Occupant lawfully Exploit Previously Unexploited Oil Resources of the Gulf of Suez', AJIL (1978), pp. 558, 575.

²⁵ Robert Dufresne, 'Reflections and Extrapolations on the ICJ's approach to Illegal Resource Exploitation in the "Armed Activities" Case', N.Y.U. J. Int'l. Law & Pol., 40, Special Issue (2008), pp. 171, 200.

²⁶ Yutaka Arai-Takahashi, *The Law of Occupation, Continuity and Change of International Humanitarian Law and Its Interaction with International Human Rights Law* (2009), pp. 210, 211.

oil fields and that furthermore prospecting for oil, if successful, enhances the value of the land on it being eventually restored to its sovereign'.²⁷ Gerson reached the conclusion that the exploitation of previously unexploited oil fields is lawful,²⁸ and in a more detailed opinion, Gerson writes:

Neither the British nor the American military manual distinguished between the use of existing and new mines in the context of Article 55 and, further, that no case in international law made such a distinction. In regard to the problem of giving substance to such a standard. At the least an occupying power engaging in a degree of exploitation not greater than the extent of exploitation that the ousted party would have engaged in could not be deemed to have engaged in wanton dissipation.²⁹

In 1972 the UN General Assembly resolved that the Assembly:

Affirms the Principle of the sovereignty of the population of the occupied territories over their national wealth and resources;

Requests the Secretary-General to render all necessary facilities to the Special committee including those required for its visits to the occupied territories with a view to investigating Israeli policies and practices affecting the human rights of the population of the occupied territories, especially:

(c) The exploitation and the looting of the resources of the occupied territories.³⁰

General Assembly Resolutions are political statements. They are not binding on the member States of the UN and they do not, in of themselves, create international law. The International Court of Justice dealt with a similar issue in the case of the *Democratic Republic of Congo v. Uganda*. The Court found Uganda liable for the exploitation of natural resources by members of its military while occupying parts of the Congo. The Court ruled that 'whenever members of the UPDF [the Ugandan military] were involved in the looting, plundering and exploitation of

²⁷ Meir Rosenne, 'Development of Oil Resources in Sinai' in Meir Shamgar ed. *Military Government in the Territories Administered by Israel 1967–1980, the Legal Aspects* (1982), pp. 335, 338, 343, 350.

²⁸ Gerson, 'Off Shore Oil Exploration by a Belligerent Occupant', p. 733.

²⁹ Allan Gerson, 'Territories Occupied by Israel: Settlements and Exploration of Oil Resources', *Proceedings of the American Society of International Law*, 72 (1978), p. 138.

³⁰ UN General Assembly Resolution A/RES/3005/ (XXVII), 15 December 1972, <http://unispal.un.org/UNISPAL.NSF/0/901F9C7E2B8107ED0525680B0050F708>.

natural resources in the territory of the DRC, they acted in violation of the *jus in bello*, which prohibits the commission of such acts by a foreign army in the territory where it is present'.³¹ The Court, however, did not analyse the situation based on Article 55 of the Hague Regulations or base it on the right of the occupier to utilise state property. The Court furthermore refrained from basing itself on UN General Assembly resolutions concerning 'permanent sovereignty over natural resources'. The Court ruled that 'there is nothing in these General Assembly resolutions which suggest that they are applicable to the specific situation of looting, pillage and exploitation of certain natural resources by members of the army of a state militarily intervening in another state'.³² Dufresne writes that the relevance of the ICJ *Armed Activities* case to the Palestinian territories could be 'the duty to prevent private acts of looting and plundering'³³ and that the Court 'does not clarify the extent of possible lawful exploitation of resources'.³⁴ After quoting various views, Dinstein concludes: 'The better view, in the opinion of the present writer, is that exploration for resources by an occupant normally cannot be considered a prohibited activity.'³⁵

15.6 Concluding Remarks

There would appear to be no controversy that Israel as a belligerent occupier of Sinai was entitled to exploit existing State-owned oil wells if it was a reasonable use. There does not seem to have been a claim that Israeli use of the wells was wanton or unreasonable.

However, there is controversy over the legality of exploring for and exploiting new oil wells. The objection of the US Department of State to the legality of such exploitation was based, apparently, on the apprehension that it would encourage the longevity of occupation.

³¹ *Armed Activities on the Territory of the Congo, Democratic Republic of the Congo v. Uganda* 2005 I.C.J. 116 (19 December), para. 245.

³² *Ibid.*

³³ Dufresne, 'Reflections and Extrapolation on the ICJ's approach to Illegal Resource Exploitation in the "Armed Activities" Case', p. 197.

³⁴ *Ibid.*, p. 198.

³⁵ Dinstein, *The International Law of Belligerent Occupation*, p. 216.

The issue of new oil wells has not been the subject of any authoritative legal decision and it could be argued that, as a general principle, the onus would be on those wishing to pronounce it as an illegal action.

As part of the Egypt–Israel Treaty of Peace, ‘the Parties agree to establish a claims commission for the mutual settlement of all financial claims’. This commission has never met and no claims have been submitted to it.

The Oslo Accords

16.1 The Road to Oslo

In October 1991, the United States and the Soviet Union co-sponsored an international Middle East peace conference in Madrid. The intention was to have a multi-party international conference that would then break into bilateral negotiating tracks. The invitation stipulated the following:

The United States and the Soviet Union are prepared to assist the parties to achieve a just, lasting and comprehensive peace settlement through direct negotiations along two tracks between Israel and the Arab states and between Israel and the Palestinians, based on United Nations Security Council Resolution 242 and 338. The conference will have no power to impose solutions on the parties or veto agreements reached by them. It will have no authority to make decisions for the parties and no ability to vote on issues or results. The conference can reconvene only with the consent of all the parties.¹

The United States sent separate letters of assurance to Israel, Lebanon, the Palestinians and Syria, a major issue being the question of Palestinian representation. It was agreed that the Palestinians would participate as part of a joint Jordanian–Palestinian delegation. One of Israel's prior conditions to attending the conference was that the UN General Assembly revoke its 1975 Resolution defining Zionism as a form of racism.² The UN General Assembly subsequently revoked the Resolution,³ apparently the only time the Assembly has ever formally revoked one of its own resolutions.

The Madrid Conference convened for an opening session and then broke up into bilateral and multilateral groups. The bilateral groups met in Washington, in the US State Department building. There was no

¹ *Journal of Palestine Studies* XI, no. 2 (Winter 1992), pp. 117–149.

² UN Doc. A/RES/3379 (XXX), 10 November 1975.

³ UN Doc. A/RES/46/86, 16 December 1991.

progress in the Israel–Syrian and Lebanese talks. In the Israel–Jordan talks, agreement was reached on a joint agenda and framework for agreement on water issues.⁴ In the Israel–Palestinian talks, both sides proposed frameworks for Palestinian interim self-government, but the parties did not reach any agreement. Rabinovich comments, ‘the conference room in the State Department building was as much an arena for debate and vindication as a site for potential peacemaking’.⁵

16.2 The Oslo Accords

Meanwhile, Israeli academicians had been holding unofficial talks with PLO representatives in Oslo. As a result of the impasse in the Washington talks, Israel decided to send official representatives to the talks in Oslo and an agreement was reached on a Declaration of Principles on Interim Self-Government Arrangements (DOP).⁶ The DOP was signed, in Washington, by Arafat as head of the PLO and by Peres, Israel foreign minister. The parties signed a number of implementation agreements⁷ that were subsumed in the very detailed Interim Agreement, of September 1995.⁸ The agreements are collectively known as the ‘Oslo Accords’.⁹ In 1997, a specific agreement concerning the city of Hebron was signed. The city of Hebron was divided into an area where Jews had settled, which would be under Israel responsibility and the rest

⁴ Abdul Salem Majali, Jawad A. Anani and Munther J. Haddadin, *Peacemaking: The Inside Story of the 1994 Jordanian-Israeli Treaty* (2006), Appendix 3, p. 329.

⁵ Itamar Rabinowitch, *The Brink of Peace: The Israel-Syrian Negotiations* (1998), p. 41. The remark was made in the context of the Israel–Syria–Lebanon talks.

⁶ Declaration of Principles on Interim Self-Government Arrangements 13 September 1993, 32 ILM 1525 (1993).

⁷ Agreement on The Gaza Strip and The Jericho Area, 4 May 1994, Agreement on the Preparatory Transfer of Powers and Responsibilities, 29 August 1994, Protocol on Further Transfer of Powers and Responsibilities, 27 August 1995, <https://mfa.gov.il/mfa/foreignpolicy/peace/guide/pages/agreement%20on%20gaza%20strip%20and%20jericho%20area.aspx>.

⁸ Israeli-Palestinian Interim Agreement on the West Bank and Gaza Strip, 1995, 36 ILM 551 (1997).

⁹ After the 1995 Interim Agreement, several implementation documents were signed: the 1997 Protocol Concerning the Redeployment in Hebron, the 1998 Wye River Memorandum, the 1999 Sharm el-Sheikh Memorandum and the 1999 Protocol Concerning Safe Passage between the West Bank and the Gaza Strip. They mainly dealt with the modalities and the timetable for the implementation of the earlier commitments, undertaken by the 1993 Declaration of Principles and the 1995 Interim Agreement.

of the city which would be considered as Area 'A' under the responsibility of the Palestinian Authority.¹⁰

The substance of the Oslo accords was that there be an interim five-year period of self-government in the West Bank and Gaza, during which negotiations would be held to determine the final status of these territories. This idea was a continuation of the proposals made at Camp David in 1978 and the post-Madrid Washington talks. As in these previous negotiations, there was no reference to what the final status would be, nor was there a promise of self-determination. The phrase used was 'the legitimate rights of the Palestinian people'.¹¹ This is the same phrase as used in Camp David. Malanczuk comments, 'while this may be interpreted as an indirect reference to the right of the Palestinian people to self-determination, it is known that the views of the parties on the meaning of this is quite divergent'.¹² The Oslo Accords envisaged autonomy during the interim period, however, the word 'autonomy' was not used since it denotes being an autonomous part of an existing State. Other major deviations from Camp David were that the Oslo Accords clearly refer to the territorial jurisdiction of the Palestinian Authority, whereas Israel interpreted the Camp David agreement as allowing for personal and not territorial jurisdiction. There was no mention of Jerusalem in the Camp David agreement, whereas the Oslo Accords allow for negotiations on Jerusalem as apart of final status talks.¹³

The 1995 Interim Agreement divided West Bank territory into three categories, Areas 'A', 'B' and 'C'. Area 'A' consisting of Palestinian towns, Area 'B' consisting of Palestinian villages. In these two areas, the jurisdiction of the Palestinian Authority covers 'all civil powers and responsibilities'. In Area 'C', where all Israeli settlements and military installations were situated, powers and responsibilities were to be 'gradually transferred to Palestinian jurisdiction'.¹⁴ Israel maintained security presence and responsibilities in areas 'B' and 'C'. In all three areas, Israel retained responsibility for 'defence against external threats' and 'overall security of Israelis and Settlements' and 'will have all the powers to take

¹⁰ Protocol Concerning the Redeployment in Hebron, 36 ILM 653 (1997).

¹¹ Article III(3) DOP.

¹² Peter Malanczuk, 'Some Basic Aspects of the Agreements between Israel and the PLO from the Perspective of International Law', *EJIL* 7 (1996), pp. 485, 493.

¹³ See Chapter 23, on Jerusalem.

¹⁴ Israeli-Palestinian Interim Agreement on the West Bank and the Gaza Strip 36 (3) ILM 551 (1997), Chapter 2, Article XI.

the steps necessary to meet this responsibility'.¹⁵ There was to be a 'further redeployment' of Israeli armed forces¹⁶; however, negotiations did not reach agreement on this further redeployment nor on the proposed gradual transfer of powers and responsibilities in Area 'C'.

16.3 Are the Oslo Accords Binding under International Law?

A question arises as to whether the Oslo Accords are binding under international law. The original DOP was between 'the Government of the State of Israel and the P.L.O team (in the Jordanian Palestinian delegation to the Middle East Peace Conference) (the "Palestinian Delegation")'. This formula was used since, at the time it was drafted, Israel and the PLO did not yet recognise each other. However, three days before the signing, Arafat had sent a letter to Israel Prime Minister Rabin stating, 'the PLO recognizes the right of Israel to exist in peace and security'. Rabin replied, 'Israel has decided to recognize the PLO as the representative of the Palestinian people'. This exchange of letters enabled the signature, on the last page of the DOP, to be made 'for the P.L.O'.

The Israeli government regards the Oslo Accords as binding. They were presented to the Knesset for approval and the Knesset, subsequently, passed legislation implementing parts of the Accords.¹⁷ The Israeli Courts have dealt with the Accords as binding.¹⁸ Although the Declaration of Principles does not appear in the Treaty Series published by the Israeli government, the Interim Agreement was registered in the internal Israeli list of treaties.¹⁹ Arafat declared that the Accords were 'the peace of *al-hodabiya*', that is, an agreement made in times of war for tactical reasons which can then be broken as soon as possible²⁰; nevertheless, the PLO, the Palestinian Authority and the 'State of Palestine' also treat the Accords as binding.²¹

¹⁵ Ibid., Article XII.

¹⁶ Ibid., Article X.

¹⁷ *Laws of the State of Israel* (In Hebrew), vol. 1497, p. 85; vol. 1556, p. 34; vol. 1642, p. 22; vol. 1842, p. 398.

¹⁸ *State of Israel v. Jihad Ben Awad Shihada Criminal Case* (Tel Aviv) 1140/05 (In Hebrew).

¹⁹ *Kitvei Amana* (Israel's publication of treaties), vol. 33, no. 1071, pp. 1–400.

²⁰ www.washingtonpost.com/archive/opinions/1994/05/26/arafats-loose-lips/ff4735a8-fe5f-4172-87fa-a77b4261c820.

²¹ www.nad.ps/en/search/search_results/Oslo?page=5.

16.3.1 *Are the Oslo Accords a Treaty?*

Blum argues, ‘under the terms that governed the convening of the Madrid conference, and all deliberations that emanated from it, the Palestinian team had no independent status of its own and was considered as part of the Jordanian delegation’.²² Watson writes, I believe correctly, that at the time of signing, ‘it seems unlikely that the PLO was a “State” because it lacked a government truly in control of its territory’.²³ Most treaties are between States, and the basic international text on treaties, *The Vienna Convention on the Law of Treaties* (The 1969 Vienna Convention) declares, ‘the present Convention applies to treaties between States’.²⁴ Watson concludes, again I believe correctly, that ‘it seems unlikely that the Declaration was a “treaty” in the narrow sense of the Vienna Convention’.²⁵ Aust writes, ‘a number of bilateral instruments between Israel and the Palestine Liberation Organisation have been concluded which cannot be regarded as treaties’.²⁶ The Oslo Accords were not subject to ratification, and Israel did not register the accords with the UN Secretariat, an obligation that applies to all treaties.²⁷

The 1969 Vienna Convention, however, also has a disclaimer that the Convention does not affect the legal force of agreements between States and ‘other subjects of international law’.²⁸ The title ‘Declaration of Principles’ does not in itself determine whether it is a treaty as the Vienna Convention defines a treaty as ‘whatever its particular designation’.²⁹ The DOP uses the phrase ‘This Declaration of Principles will enter into force one month after its signing’,³⁰ language that clearly denotes the intention of the parties to create binding commitments. The agreements contain references to international law and the dispute settlement clause is one used in international treaties. Watson argues, ‘a national liberation movement has the capacity to enter into binding

²² Yehuda Z. Blum, ‘From Camp David to Oslo’, *Israel L. Rev.*, 28 (1994), p. 211, 213.

²³ Geoffrey R. Watson, *The Oslo Accords: International Law and the Israeli-Palestinian Peace Agreements* (2000), p. 63.

²⁴ Article 1, 1969 Vienna Convention on the Law of Treaties 1155 UNTS 331.

²⁵ Watson, *The Oslo Accords*, p. 63.

²⁶ Anthony Aust, *Modern Treaty Law and Practice* (2nd ed. 2007), p. 62.

²⁷ Article 102 UN Charter requires members of the UN to register every treaty and international agreement with the UN.

²⁸ Article 3, 1969 Vienna Convention on the Law of Treaties 1155 UNTS 331.

²⁹ *Ibid.*, Article 2(1)(a).

³⁰ Article XVII(1) of the DOP.

international agreements with states' and 'it appears that the Oslo Accords are legally binding international agreements'.³¹ In support of this position, Watson relies on a variety of recent precedents where States signed international agreements with former colonies prior to their achieving full independence, including the 1962 Evian agreement between France and the Front de Libération Nationale establishing an independent Algeria. Malanczuk holds that the PLO, 'although it does not exercise effective territorial jurisdiction, is a partial subject of international law with the legal capacity to maintain diplomatic relations with states and international organizations recognizing it and to conclude treaties. As a partial subject of international law, the PLO is not equal to a state, but that does not affect the validity of a treaty it concludes with a state'.³² Bell holds that 'nonstate signatories' can be 'subjects of international law-based on international law's recognition of such groups, in particular through humanitarian law'.³³ Judge Elaraby, in his separate opinion in the *Wall Case*, lists the Oslo Accords as 'contractual and legally binding on Israel'.³⁴

As to the Arafat-Rabin exchange of letters, Lapidoth comments, 'from the legal point of view, these texts could perhaps be considered as an agreement concluded by exchange of letters, but, more plausibly, as two legally binding unilateral declarations'.³⁵ Malanczuk holds that this exchange of letters constitutes 'a binding international agreement in itself'.³⁶

The precedents relied upon by Watson and others are, however, all cases where the non-State party had elements of control over a territory. At the time of the signing of the DOP, the PLO had no control over any territory, and it would seem therefore doubtful that the DOP, although binding, could be regarded as an international treaty.

³¹ Watson, *The Oslo Accords*, p. 101.

³² Malanczuk, 'Some Basic Aspects of the Agreements between Israel and the PLO from the Perspective of International Law', pp. 485, 489.

³³ Christine Bell, *On the Law of Peace: Peace Agreements and the Lex Pacificatoria* (2008), p. 130.

³⁴ *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, Advisory Opinion 2004, ICJ Reports 131, Separate Opinion of Judge Elaraby, para. 2.4.

³⁵ Ruth Lapidoth, *Israel and the Palestinians: Some Legal Issues* (2003), p. 23.

³⁶ Malanczuk, 'Some Basic Aspects of the Agreements between Israel and the PLO from the Perspective of International Law', pp. 485, 492.

16.3.2 *Are the Oslo Accords Binding Unilateral Declarations?*

This author believes that, although the Accords may not be a treaty, nevertheless, under international law, Israel is legally bound to comply with the Accords. States can be under a legal obligation to comply with undertakings made to a sub-State entity. The obligation being unilateral but conditional on the compliance by the sub-State entity with its commitments as defined by the agreement.³⁷ The State would thus have made a commitment binding under international law.³⁸ The sub-State entity, in this case the PLO, however, would not artificially be made an entity of international law, and international law would not apply to its undertakings. Should it not comply with its undertakings, however, such noncompliance would absolve the State party from the obligation to comply with its unilateral, but conditional, undertaking. Mazzawi writes, ‘the Declaration has been endorsed and ratified by the relevant governing or democratically responsible bodies on both sides. Nevertheless, it is not in its present form a treaty in international law since one of the parties – the PLO – does not possess international personality. The Declaration is what international lawyers call a “unilateral act”’.³⁹ Watson, however, is of the opinion that ‘the notion that the accords are a binding exchange of unilateral declarations seems inconsistent with the intention of the parties, which was to bind each other by mutual agreement’.⁴⁰

16.4 Source of Authority of the Palestine Authority

A key international law issue is what was the source of authority for the powers and responsibilities entrusted to the Palestinian Authority created by the Oslo Accords? During the Washington talks, the Palestinians wanted authority to be transferred and not delegated to them from Israel. Saab Ereikat is quoted as saying, ‘if Israel delegates authorities or responsibilities to us, it can then, likewise, retract them’.⁴¹ The Interim

³⁷ See Robbie Sabel, Book Review, ‘The Oslo Accords: International Law and the Israeli-Palestinian Peace Agreements’, *AJIL*, 95 (2001), p. 249.

³⁸ *Nuclear Tests Case*, ICJ Reports, 1974, pp. 253, 267, 457, 472; *Legal Status of Eastern Greenland* (1933) PCIJ, Series A/B, No. 53 (1933), pp. 151, 192–194. See ILC Guiding Principles applicable to unilateral declarations of States capable of creating legal obligations, with commentaries thereto 2006, UN Doc. A/61/10.

³⁹ Musa E. Mazzawi, *Palestine and the Law: Guidelines for the Resolution of the Arab-Israel Conflict* (1997), p. 1.

⁴⁰ Watson, *The Oslo Accords*, p. 80.

⁴¹ Majali, Anani and Haddadin, *Peacemaking*, p. 112.

Agreement stipulates, 'Israel shall transfer powers and responsibilities as specified in this Agreement from the Israeli military government and its Civil Administration to the Council in accordance with this Agreement. Israel shall continue to exercise powers and responsibilities not so transferred'.⁴² The Gaza-Jericho Agreement provides that 'Israel shall transfer authority as specified in this Agreement from the Israeli military government and its Civil Administration to the Palestinian Authority, hereby established, in accordance with Article V of this Agreement, except for the authority that Israel shall continue to exercise as specified in this Agreement'.⁴³ Singer, who was the legal advisor to the Israeli negotiating team, concludes, 'the nature of the regime established in the West Bank and the Gaza Strip for the duration of the transitional period is that of a Palestinian autonomy under the supreme authority of the Israeli military government'. Although the military government is withdrawn from its former location, it 'continues to exist elsewhere as the source of authority for the Palestinian Council'.⁴⁴ Ferraro writes:

'vertical sharing of authority' must contain within it the notion of subordination, which always characterizes the relationship between the Occupying Power and the occupied territorial sovereign and which reflects the view that no authority can be exercised other than that imposed or permitted by the foreign forces.⁴⁵

However, in the Palestinian towns (Area 'A'), Israel has no control except for security of Israelis. Benvenisti writes in regard to Gaza and Jericho, which were the first areas vacated by Israel, that Israel does not control civil life and 'these areas are therefore not "occupied" in the sense of the international law of occupation'. Benvenisti adds that the autonomy of the Palestinian Authority 'is based on an agreement between the two contenders, which eludes the question of sovereignty by artificially maintaining the framework of the Israeli military occupation'.⁴⁶ Cotran

⁴² Article I(1) Israeli-Palestinian Interim Agreement on the West Bank and Gaza Strip, 1995

⁴³ Agreement on The Gaza Strip and The Jericho Area, 4 May 1994, Article III(1), <https://mfa.gov.il/mfa/foreignpolicy/peace/guide/pages/agreement%20on%20gaza%20strip%20and%20jericho%20area.aspx>.

⁴⁴ Joel Singer, 'The West Bank and Gaza Strip; Phase Two', *Justice* 7 (December 1995), p. 8.

⁴⁵ Tristan Ferraro, 'Determining the Beginning and End of Occupation under International and humanitarian Law', *International Review Red Cross*, 94 (2012) (No page numbers in online version).

⁴⁶ Eyal Benvenisti, 'The Status of the Palestinian Authority' in Eugene Cotran and Chibli Mallat eds. *The Arab-Israeli Accords: Legal Perspectives* (1996), pp. 57, 60.

argues, in the same publication as Benvenisti, 'it is well established in international law that sovereignty remains residual in the people who fall under occupation, i.e. the Palestinians through the PLO'.⁴⁷ This view is reflected in the Palestinian 'Basic Law' which declares 'the people are the source of power'.⁴⁸

A legal approach favoured by this author is that the Oslo Accords are the source of authority for the powers of the Palestinian Council. The Oslo Accords were between Israel and the PLO representing the Palestinian people. The military government devolving itself of powers carried out the implementation, but in doing so, it was implementing an agreement that was binding on the Israel government. Shaw writes, 'the Palestinian Authority could be regarded as possessing some form of limited international personality. Such personality, however, derived from the agreements between Israel and the PLO'.⁴⁹ So long as the Oslo Accords were in force, Israel was not free to 'retract' them, as Ereikat had feared.

16.5 Criticism of the Oslo Accords

Said writes that the Oslo Accords, 'far from ending, the Israeli occupation was simply repackaged' and Arafat was treated by Israel in the same way that the British and French treated African chiefs in nineteenth-century Africa.⁵⁰ In a separate article, Said writes, 'by accepting that questions of land and sovereignty are being postponed till "final status negotiations", the Palestinians have in effect discounted their unilateral and internationally acknowledged claim to the West Bank and Gaza: these have now become "disputed territories". Thus with Palestinian assistance Israel has been awarded at least an equal claim to them'.⁵¹ Chomsky writes that the 'administration put into the hands of a corrupt and brutal Palestinian authority, playing the role of indigenous collaborators under

⁴⁷ Eugene Cotran, 'Some Legal Aspects of the Declaration of Principles: A Palestinian View' in Eugene Cotran and Chibli Mallat eds. *The Arab-Israeli Accords: Legal Perspectives* (1996), p. 73.

⁴⁸ Basic Law of the Palestinian National Authority, Article 2, [www.venice.coe.int/webforms/documents/default.aspx?pdffile=CDL\(2009\)008-e](http://www.venice.coe.int/webforms/documents/default.aspx?pdffile=CDL(2009)008-e).

⁴⁹ Malcolm Shaw, *International Law* (9th ed. 2017), p. 216.

⁵⁰ Edward W. Said, *The End of the Peace Process: Oslo and After* (2000) pp. xv, 110.

⁵¹ Edward W. Said, 'The Morning After', *The London Review of Books*, 15, no. 20 (1993), n. p.

imperial rule such as the Black leadership of South Africa's Bantustans'.⁵² Boyle described the Oslo process as 'akin to the Bantustans that the apartheid Afrikaner regime had established for the Black People in the Republic of South Africa'.⁵³ One writer states, 'in the name of security: Israel sets up Apartheid zones'.⁵⁴ An Israeli political scientist argues that the Oslo Accords were doomed to failure as it avoided the key issues: 'The Palestinians did not recognize Zionism as a legitimate national movement, while Israel did not formally commit to the principle that the Palestinians had a right to statehood'.⁵⁵ It can also be argued that UN Security Council Resolution 242, accepted by all the parties, refers to 'the inadmissibility of the acquisition of territory by war'. Thus, any territorial compromise would be a violation of this principle. It can also be argued that the Oslo Accords do not contain an explicit reference to a Palestinian right of self-determination and they should have had such a reference since, as the argument goes, the right of self-determination is now a rule of *jus cogens*.

A further criticism has been made that the Palestinians did not have sufficient legal expertise, Abu Mazen writes, 'we did not review the texts with a legal consultant for fear of leaks'.⁵⁶

It can also be argued that the Oslo Accords were invalid *ab initio* as they violated the IVth Geneva Convention:

No special agreement shall adversely affect the situation of protected persons, as defined by the present Convention, nor restrict the rights which it confers upon them.⁵⁷

Protected persons who are in occupied territory shall not be deprived, in any case or in any manner whatsoever, of the benefits of the present Convention by any change introduced, as the result of the occupation of a territory, into the institutions or government of the said territory, nor by

⁵² Noam Chomsky, Mid-East Realities, 28 October 2000, www.hartford-hwp.com/archives/51a/index-j.html.

⁵³ Francis A. Boyle, 'The al Aqsa Intifada and International law', 17 December 2000, www.hartford-hwp.com/archives/51a/091.html.

⁵⁴ Sara Flounders, 'Occupied Palestine', *Workers World*, (6 June 2002), www.hartford-hwp.com/archives/51a/089.html.

⁵⁵ Jonathan Rynhold. 'The Failure of the Oslo Process: Inherently Flawed or Flawed Implementation?', *Mideast Security and Policy Studies*, Bar Ilan University, 76 (March 2008), p. 10.

⁵⁶ Mahmoud Abbas (Abu Mazen), *Through Secret Channels: The Road to Oslo: Senior PLO Leader Abu Mazen's Revealing Story of the Negotiations with Israel* (1995), p. 162.

⁵⁷ Article 7 of the IVth 1949 Geneva Convention.

any agreement concluded between the authorities of the occupied territories and the Occupying Power.⁵⁸

The ICRC commentary on this Article is as follows:

The sense of the expression ‘restrict the rights,’ then becomes clear: the States may not by special agreement restrict, i.e. derogate from their obligations under the Conventions. On the other hand, nothing prevents them from undertaking further and wider obligations in favour of protected persons. Obligations under the Geneva Convention must, in fact, be considered as representing a minimum.⁵⁹

16.6 Response to Criticism of the Oslo Accords

A response to this claim of invalidity could be that the Oslo Accords grant the population greater rights than they had under Israeli military government. Judge Kovács in his dissenting opinion in the ICC states:

It is not easy to state that an instrument aiming to set up a limited self-government for the purpose of developing and enlarging competences, and affecting about 90% of the population living in the given territory, could be considered as aiming to derogate from rights conferred under the Geneva Conventions and in particular the Geneva Convention IV.⁶⁰

Furthermore, the Oslo Accords were not signed by ‘protected persons in occupied territory’. The PLO, representing the Palestinian people as a whole, signed them and, at the time, the headquarters of the PLO was in Tunis and not in the West Bank or Gaza. The Palestinians, by agreeing to the Oslo Accords, have not conceded any of their claims to achieving an independent State in the West Bank and Gaza. They have not even waived their right to claim a ‘right of return’. All Palestinian claims can be raised as part of the negotiations on final status. The only concession the PLO made was of recognising Israel, a recognition of reality.

The Oslo Accords gained its protagonists three Nobel Peace Prizes and the support, in democratic elections, of the majority of the population of

⁵⁸ Article 47 of the IVth 1949 Geneva Convention.

⁵⁹ ICRC Commentary on the 1949 IVth Geneva Convention, <https://ihl-databases.icrc.org/applic/ihl/ihl.nsf/9861b8c2f0e83ed3c1256403003fb8c5/4090f1326bff167bc12563cd0051ba21>.

⁶⁰ *Decision on the ‘Prosecution request pursuant to article 19(3) for a ruling on the Court’s territorial jurisdiction in Palestine’* Judge Péter Kovács’ Partly Dissenting Opinion, ICC-01/18-143-Anx1 05-02-2021 1/163 EC PT, para. 347.

Israel and of the Palestinians in the West Bank. The Israel–Palestinian Oslo Declaration of Principles⁶¹ was signed, as an act of support, by the United States and by the Russian Federation. The Interim 1995 Israel Palestinian Agreement⁶² was signed, as an act of support, by representatives of the United States, the Russian Federation, Egypt, Jordan, the European Union and Norway. The United Nations General Assembly has endorsed these Israel–Palestinian agreements⁶³; the International Court of Justice has even mentioned them with approval.⁶⁴ Majali writes, ‘although King Hussein was angry that Jordan had not been informed of the Oslo talks’, Prime Minister Majali ‘thought the Oslo Accord was a big gain for the Palestinians. In the first place, Israel recognized the existence of the Palestinian people. Furthermore, this implied recognition of their unity as manifested by its recognition of the PLO’.⁶⁵

Parties to an agreement are at liberty to diverge from customary law provided they do not violate a tenant of *jus cogens*. Even if the right of self-determination is a rule of *jus cogens*, and this is a matter of controversy,⁶⁶ the people involved, in this case the Palestinians, are entitled to defer creating a State or agree to establish an entity other than a State.

As to the claim that the Palestinian side had no legal representation, Abu Mazen writes, ‘the DOP documents were reviewed by our legal consultant, Taher Shash just before they were initialed’.⁶⁷ Furthermore, during the detailed negotiations on the Interim Agreement, the

⁶¹ 1993 Declaration of Principles on Interim Self Government Arrangements, www.mfa.gov.il/MFA/Peace+Process/Guide+to+the+Peace+Process/Declaration+of+Principles.htm.

⁶² 1995 Israeli-Palestinian Interim Agreement on the West Bank and Gaza Strip, www.mfa.gov.il/MFA/Peace+Process/Guide+to+the+Peace+Process/Agreement+on+Gaza+Strip+and+Jericho+Area.htm.

⁶³ ‘Noting the Agreements Reached between the Government of Israel and the Palestine Liberation Organization in the Context of the Middle East Peace Process’ (ES-10114 adopted by the General Assembly of the United Nation on 8 December 2003).

⁶⁴ ‘The Court is conscious that the ‘Roadmap’, which was endorsed by the Security Council ... constitutes negotiating framework for the resolution of the Israeli-Palestinian conflict.’ ‘A number of agreements have been signed since 1993 between Israel and the Palestine Liberation Organization imposing various obligations on each Party.’ ICJ Advisory Opinion, Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory, 9 July 2004.

⁶⁵ Majali, Anani and Haddadin, *Peacemaking*, p. 234.

⁶⁶ See Saul Mathew, ‘The Normative Status of Self-determination in International Law: A Formula for Uncertainty in the Scope and Contents of the Right?’, *Human Rights Law Review*, No. 4 (2011), pp. 609–644.

⁶⁷ Abbas, *Through Secret Channels*, p. 162.

Palestinian negotiators were supported by a full team of experienced lawyers.

There has also been criticism of the Accords from the Israeli side. Former Israeli Prime Minister Barak has claimed that the Oslo Accords did not provide sufficient security arrangements for Israel, and Israel right wing elements have even accused the Israeli negotiators of treason and called for them to be brought to trial for signing the Oslo Accords.

16.7 Are the Oslo Accords Still Binding?

Some agreements have a clause limiting the duration of the agreement or allowing the parties to withdraw from it. The Oslo Accords have neither such clauses. It could also be argued that the Oslo Accords are no longer valid since the five-year interim period is long past. However, both Israel and the Palestinians have acquiesced in the considerable extension of the interim period, originally set as five years.

A further issue which could have led to the agreement no longer being valid is that there have been material breaches of the Accords. A material breach of an agreement 'entitles the other [party] to invoke the breach as a ground for terminating the treaty'.⁶⁸ The Palestinians claim that Israel has violated the Accords by building new settlements, thus changing the demographic character of the territory and making an agreed final status arrangement unlikely. Palestinians further claim that Israel has not undertaken 'further redeployment' whereby parts of Area 'C' were to be transferred to Areas 'A' or 'B'⁶⁹ and has not permitted 'Safe Passage' between the West Bank and Gaza.⁷⁰ Israel claims that the Palestinians have violated the Accords by not preventing terrorism and encouraging terror acts by making payments to the families of terrorists. The PLO has attempted to smuggle arms including a shipment of fifty tons of arms and munitions intercepted by Israel on the ship, the *Karin A*. Israel further claims that the Palestinians have violated a basic tenant of the interim period by declaring statehood and conducting foreign relations.⁷¹ At first, foreign relations were conducted by the PLO, whereas, the restrictions of

⁶⁸ Article 60(1), 1969 Vienna Convention on the Law of Treaties, 1155 UNTS 331.

⁶⁹ Article XI, 1995 Israeli-Palestinian Interim Agreement on the West Bank and Gaza Strip, www.mfa.gov.il/MFA/Peace+Process/Guide+to+the+Peace+Process/Agreement+on+Gaza+Strip+and+Jericho+Area.htm.

⁷⁰ Ibid., Article XXIX.

⁷¹ Ibid., Articles XXI(8), IX(5). 'Neither side shall initiate or take any step that will change the status of the West Bank and the Gaza Strip pending the outcome of the permanent

the Oslo Accords applied to the Palestinian Authority, set up by the Accords. There has been a subsequent coalescence between the PLO and the Palestinian Authority, both headed by the same person. The foreign relations of 'Palestine' have included becoming parties to multilateral international treaties and attempts to becoming a member State of the UN.

Although both parties claim that the other party has violated the Accords, neither party has officially renounced the Accords, although the Palestinians have 'sailed very close to the wind' on this issue.⁷²

The 1969 Vienna Convention stipulates that 'a fundamental change of circumstances' may be invoked as 'a ground for terminating or withdrawing from a treaty'.⁷³ The Israeli unilateral withdrawal from the Gaza Strip and the replacement in the Strip of the Palestinian Authority by Hamas could well have been claimed to be such a fundamental change; however, neither party to the Accords has raised such a claim. There has been, in fact, a suspension of the application of the Accords in the Gaza Strip to which both parties to the Accords have acquiesced.

Notwithstanding all the criticism and counter claims of violations, both Israel and the Palestinian Authority continue to implement the Oslo Accords.

16.8 Concluding Remarks

The Oslo Accords have been subject to intense criticism. However, for the first time, the Arab Palestinians had their own, freely elected, administration, albeit subject to restrictions. Israel agreed to negotiate the final status of the West Bank and Gaza with this Palestinian administration as an equal partner. The word 'autonomy', implying that the area is part of an existing State, was used in the 1978 Camp David Accords but was omitted from the Oslo Accords. Jerusalem and Israeli settlements were

status negotiations.' 'The Council will not have powers and responsibilities in the sphere of foreign relations.'

⁷² Annex A to the The State of Palestine's response to the Pre-Trial Chamber's Order Requesting Additional Information, Annex A Statement delivered by H. E. Mahmoud Abbas, President of the State of Palestine 19 May 2020, ICC-01/18-135-AnxA 05-06-2020 1/3 NM PT.

⁷³ Article 62, 1969 Vienna Convention on the Law of Treaties 1155 UNTS 331.

excluded from the jurisdiction of the Palestinian Authority but it was agreed that their status would be part of the negotiations on the final status of the West Bank. The Accords had very broad international support and, although there are mutual claims that the Accords have been violated, neither part has formally abrogated them.

Israel–Jordan

Israel and Jordan signed an armistice agreement in 1949¹ that was in force until the 1967 Six Day War. After the Six Day War, the parties agreed to a ceasefire between them, but there was no written agreement. Despite being formally at war, there was cooperation on water and other issues and clandestine meetings between the heads of State. Open negotiations between Israel and Jordan commenced in Washington during the 1993–1994 post–Madrid Conference talks.

17.1 Negotiating the Israel–Jordan Peace Treaty

The Israeli and Jordanian negotiating teams in the post–Madrid Conference talks reached a framework of an agreement, announced in Washington July 1994 as the ‘Washington Declaration’.² The Jordanians insisted that the phrase in the Declaration be ‘ending the State of belligerency’, the phrase used in UN Security Council Resolution 242. Israel wanted to use the phrase ‘ending the State of War’ which had been used in the Egypt Israel Treaty of Peace. The compromise was that the Washington Declaration referred to ending the State of belligerency but King Hussein announced, in his subsequent speech, that the state of war between Jordan and Israel was ended.³ The peace agreement was signed in the Arava near Eilat/Aqaba in October 1994. The text of the Israel–Jordan Peace Treaty follows very closely the text of the 1979 Egypt–Israel

¹ See Chapter 8.

² Washington Declaration, signed in the presence of the US president, on 25 July 1994 announcing the end of belligerency between Israel and Jordan. <https://mfa.gov.il/mfa/foreignpolicy/peace/guide/pages/the%20washington%20declaration.aspx>.

³ Elyakim Rubinstein, ‘The Peace between Israel and Jordan: An Anatomy of Negotiations’ in *Ministry for Foreign Affairs: The First Fifty Years* (2002), p. 200 (In Hebrew).

Peace Treaty; however, there were a number of legal issues that were particular to the treaty with Jordan.⁴

17.2 Border in the Arava Valley

The Israel–Jordan treaty description of the border with Israel is ‘the international boundary between Israel and Jordan is delimited with reference to the boundary definition under the Mandate’.⁵ The phrase ‘with reference’ was used because of uncertainty as to the exact location of parts of the Mandatory border.⁶ Part of the Mandatory border between Palestine and Trans-Jordan was described as going ‘up the center of Wadi Araba’. This line had never been demarcated and the phrase ‘the center of Wadi Araba’ was not all that helpful, Srebro writes:

The width of Wadi Araba varies between 7.5 km and 25 km. It is doubtful whether one can define the center of such a valley even with the use of modern technologies. The unclear definition led to the British administration in 1923 to adopt a practical interpretation referring to the lowest points (the *thalweg*) as the center of the valley. But, due to lack of geographic and topographical data, this interpretation could not be translated into a definite delimitation.⁷

Majali writes, ‘the Israelis went out of their way to prove that the center of Wadi Araba was not the line of lowest points in the wadi (*thalweg*) line but rather was the median between the highest points on the adjacent escarpments to the east and the west of the wadi’. Majali adds that Jordan contested this but ‘the Israeli presentation was more impressive’.⁸ Srebro summarises that as a result of negotiations, ‘the final agreement adopted most of the traditional [center of the valley] line with certain flexibility’.⁹ The parties eventually reached a compromise based on exchanges of territory.¹⁰

⁴ The issue of water is dealt with in Chapter 26. The issue of holy sites in Jerusalem is dealt with in Chapter 23.

⁵ Article 3(1) 1994 Israel–Jordan Treaty of Peace 2042 UNTS 35325.

⁶ The Mandatory border was approved by the League of Nations 23 September 1922.

⁷ Haim Srebro, ed., *International Boundary Making*, FIG International Federation of Surveyors, Publication No. 59 (2013), pp. 71, 73.

⁸ Abdul Salem Majali, Jawad A. Anani and Munther J. Haddadin, *Peacemaking: The Inside Story of the 1994 Jordanian–Israeli Treaty* (2006) p. 271.

⁹ Srebro, *International Boundary Making*, p. 76.

¹⁰ Rubinstein, ‘The Peace between Israel and Jordan’, p. 194.

17.3 Jordan River as a Border

Part of the Mandatory border was the thalweg of the River Jordan and the lower part of the Yarmuk River. The Jordan River, however, changes its course by meandering, and the description of the boundary, in this case, following classical international law, is as follows:

Jordan and Yarmouk Rivers:

- (1) The boundary line shall follow the middle of the main course of the flow of the Jordan and Yarmouk Rivers.
- (2) The boundary line shall follow natural changes (accretion or erosion) in the course of the rivers unless otherwise agreed. Artificial changes in or of the course of the rivers shall not affect the location of the boundary unless otherwise agreed. No artificial changes may be made except by agreement between both Parties.
- (3) In the event of a future sudden natural change in or of the course of the rivers (avulsion or cutting of new bed) the Joint Boundary Commission shall meet as soon as possible, to decide on necessary measures which may include physical restoration of the prior location of the river course.¹¹

17.4 The Border between the Kingdom of Jordan and the West Bank

During the period of the British Mandate, the West Bank was part of Mandatory Palestine. Jordan agreed to adopt the Mandatory border but was unwilling that, by doing so, it could be interpreted that it agreed that the West Bank was part of Israeli territory. The Egypt–Israel peace negotiations had faced a similar dilemma regarding the status of the Gaza Strip. In the case of Egypt, the dilemma was solved using the formula: ‘Without prejudice to the issue of the status of the Gaza Strip.’¹² The Jordanians wanted their reservation to include the status of Jerusalem; however, the Israeli delegation was unwilling to accept a reservation explicitly including a reference to Jerusalem. The Jordanians therefore proposed this text: ‘Without prejudice to the status of any territory under Israeli military control.’ The Jordanians later requested to amend the wording, since, although East Jerusalem came under Israeli military control in 1967, it was no longer under ‘military control’ as it

¹¹ Annex I(a), 1994 Israel–Jordan Treaty of Peace 2042 UNTS 35325.

¹² Article II, Egypt–Israel Treaty of Peace.

had been incorporated into Israel territory. The phrase finally agreed to was this: 'Without prejudice to the status of any territories that came under Israeli military government control in 1967.'¹³

17.5 The 'Leases'

Over decades, Israeli farmers had cultivated lands in the Zofar/Al-Ghamr areas of the Negev that were on the Jordanian side of the border, as delimited in the peace negotiations. In the Naharayim/Baqura area in the North, west of the River Jordan, there were lands that were privately owned by the Israel Electricity Company. Part of the land had been under Israel control since 1949, in accordance with the Israel–Jordan 1949 Armistice Agreement. Jordan agreed to a 'special regime' for these areas whereby Israeli farmers could continue to cultivate the land and would be personally subject only to Israeli law. The agreement was temporary, for twenty-five years, to be 'renewed automatically for the same periods, unless one year prior notice of termination is given by either Party'.¹⁴ These agreements about 'special regimes' were, in fact, international leases. The Jordanians, however, were unhappy with the word lease and Jordan negotiator Haddadin explained, 'the deal was not a lease; it was a Jordanian permission for the Israeli farmers to keep utilizing that plot for 25 years, renewable by mutual consent'.¹⁵ Haddadin did not try to explain the difference between the two terms. Rabin also declared, 'this is not a leasing arrangement but rather an arrangement that will allow for the continuation of current activity as well as for the development of joint projects with Jordan'.¹⁶ In October 2018, Jordan announced that it was not going to extend the agreement regarding the 'special regime'.¹⁷

¹³ Article 3 (2), 1994 Israel–Jordan Treaty of Peace 2042 UNTS 35325. The author conducted these negotiations on behalf of Israel.

¹⁴ Annex I(c) 1994 Israel–Jordan Treaty of Peace 2042 UNTS 35325.

¹⁵ Quoted from Majali, Anani and Haddadin, *Peacemaking*, p. 299.

¹⁶ Address by Prime Minister Yitzhak Rabin during the Knesset debate on the approval of the peace treaty between Jordan and Israel, Jerusalem, 25 October 1994, www.un.org/unispal/wp-content/uploads/1995/10/Developments_Peace-process-review_-October-1994-October-1995.pdf.

¹⁷ www.taghribnews.com/en/news/370716/jordan-announces-end-to-treaty-leasing-border-land-israel.

17.6 Jordan and the Palestinians

The Kingdom of Jordan has always objected strenuously to the theory, espoused by Stone and others, including former Israel Prime Minister Sharon, that Jordan was in fact an Arab Palestinian State. Stone writes:

There is an already existing Arab state in Palestine through which this [Palestinian] people can fulfill itself. The territory of present Jordan was cut out of the Palestine in which establishment of a national home for the Jewish people was originally promised, constituting two thirds of its area. Jordan is a Palestinian Arab state not only in that sense, but because more than sixty percent of its population are 'Palestinian Arabs' in the strictest sense.¹⁸

More than half of the population of Jordan are Palestinians¹⁹ and Jordan was apprehensive that Israel would cause a further movement of Palestinians from the West Bank into Jordan. This is the background to the clause in the Treaty, which states: 'They further believe that within their control, involuntary movements of persons in such a way as to adversely prejudice the security of either Party should not be permitted.'²⁰

In rejection of this theory, Scobbie reaches the conclusion that as a result of the separation of Trans-Jordan from Palestine in 1922, the territory of Jordan is 'irrelevant' to the issue of Palestinian self-determination.²¹ By signing a treaty of peace with the Hashemite Kingdom of Jordan, Israel has apparently demonstrated that it has not adopted Stone's proposition.

17.7 Nuclear Weapons

During the Egypt–Israel peace negotiations, Egypt had demanded that Israel accede to the Nuclear Non-Proliferation Treaty (NPT).²² Israel refused to do so, its position being that it supports nuclear disarmament and supports the NPT but the Middle East requires a different regime. Israel makes the point that both Iraq and Iran acceded to the NPT but,

¹⁸ Julius Stone, 'Self-Determination and the Palestinian Arabs' in Irwing Howe and Carl Gershman eds. *Israel, the Arabs & the Middle East* (1972), p. 222.

¹⁹ www.cidcm.umd.edu/mar/assessment.asp?groupId=66302.

²⁰ Article 2(6) 1994 Israel–Jordan Treaty of Peace 2042 UNTS 35325.

²¹ Ian Scobbie with Sarah Hibbin, *The Israel-Palestine Conflict in International Law: Territorial Issues* (2009), p. 6. Scobbie reaches his conclusion based on Crawford.

²² 1968 Treaty on the Non-Proliferation of Nuclear Weapons (NPT) 729 UNTS 161.

nevertheless, took steps to develop nuclear weapons. The supervision of the IAEA was not sufficient to prevent rogue states from developing nuclear weapons. The Islamic State of Pakistan has a nuclear arsenal and has conducted nuclear tests. Therefore, according to the Israeli view, what is necessary in the Middle East is a regional regime where all the States are at peace with each other renounce all weapons of mass destruction including chemical weapons and agree to mutual supervision. The clause in the Israel–Jordan Treaty reflects this position:

The Parties undertake to work as a matter of priority and as soon as possible in the context of the Multilateral Working Group on Arms Control and Regional Security, and jointly, towards the creation of a Middle East free from weapons of mass destruction, both conventional and non-conventional, in the context of a comprehensive, lasting and stable peace, characterized by the renunciation of the use of force, reconciliation and goodwill.²³

It is apparently the only international binding commitment undertaken by Israel on this issue and can be seen as an achievement of Jordanian diplomacy. On Israel's position as to the claims that it possesses nuclear weapons, Peres comments, 'it's enough that there is the suspicion; the suspicion is a deterrent. So why should we go further than that? The suspicion is strong enough'.²⁴

17.8 Concluding Remarks

The Israel–Jordan peace treaty is an example of the role precedent can play in international law. Although precedents are not binding, nevertheless, major parts of the Israel–Jordan treaty are copied verbatim from the Egypt–Israel treaty. This was done for a variety of reasons. Jordan was a far smaller and weaker State than Egypt, and it was convenient for Jordan to rely on text that had been agreed upon by the stronger brother Arab State. Diplomats and international lawyers are, mostly, a conservative group and are happy to follow a beaten path. The Egypt–Israel treaty had been signed fifteen years before the treaty with Jordan and had proved itself as viable. An example of this viability is the settlement of disputes clause.²⁵ The clause in the Egypt–Israel treaty had an element of

²³ Article 7(b) 1994 Israel–Jordan Treaty of Peace 2042 UNTS 35325.

²⁴ Shimon Peres and Robert Little, *For the Future of Israel* (1998), p. 60.

²⁵ Article VII of the Egypt–Israel Treaty, Article 29 of the Israel–Jordan Treaty.

ambiguity,²⁶ and Jordan suggested changing it. The Jordanian negotiators agreed to accept the text of the clause in the treaty with Egypt after the Israel negotiators pointed out that the clause in the treaty with Egypt had enabled the parties to successfully submit the Taba dispute to arbitration.

²⁶ See Chapter 14 on the Taba dispute.

Post Oslo Developments

18.1 Lebanon, Wye River, Sharm el-Sheikh and Taba Negotiations

Since the conclusion of the 1993–1995 Oslo Accords, there have been a number of developments with international law ramifications. In 1996, Israel and Lebanon reached a cease fire ‘understanding’.¹ In another development, the US secretary of state confirmed to Israel Prime Minister Peres that the United States understands that ‘if Hizbollah or any other group in Lebanon launches attacks on Israeli forces in Lebanon, Israel retains the right in response to take appropriate self-defence measures against the armed groups responsible for the attack’.² Israel and Lebanon also agreed to set up an international monitoring group composed of military representatives of the United States, France, Syria, Lebanon and Israel to monitor violations of the ceasefire. However, such a determination needed to be made unanimously.³

In 1998, Arafat and Netanyahu signed the ‘Wye River Memorandum’,⁴ whereby they agreed to take further steps to implement the Oslo Accords. According to the Memorandum, Israel was to transfer parts of the area under its control (Area ‘C’) to areas under Palestinian control (Areas ‘A’ and ‘B’) and facilitate ‘Safe Passage’ from the Gaza Strip to the West Bank. The Palestinians were to act against terrorism, prevent incitement and amend the Palestinian National Charter. Both sides agreed not to ‘initiate or take any steps that will change the status of the West Bank and

¹ 1996 Israel Lebanon Cease Fire Understanding, <https://mfa.gov.il/mfa/foreignpolicy/peace/guide/pages/israel-lebanon%20ceasefire%20understanding.aspx>.

² Letter written by US Secretary of State Warren Christopher to Prime Minister Peres, 30 April 1996, <https://mfa.gov.il/MFA/ForeignPolicy/Terrorism/Hizbullah/Pages/CHRISTOPHER%20LETTER%20TO%20PRIME%20MINISTER%20PERES%20-%202030-Ap.aspx>.

³ The Monitoring Group Established by the 26 April 1996 Understanding, www.washingtoninstitute.org/policy-analysis/israel-lebanon-monitoring-group-operational-review.

⁴ Wye River Memorandum, <https://peacemaker.un.org/israelopt-wyerivermemorandum98>.

Gaza' during the interim period. The Memorandum was, to a large extent, not implemented.

In September 1999, Israel and the PLO signed the 'Sharm el-Sheikh Memorandum',⁵ where they agreed to 'resume the Permanent Status negotiations in an accelerated manner'. In July 2000, a summit meeting was held between Barak and Arafat at Camp David in the presence of President Clinton. The parties did not reach an agreement at this summit, but President Clinton later presented to both sides his 'parameters' of a possible solution to the conflict.⁶ In January 2001, Israel and the PLO conducted negotiations, at Taba, on final status arrangements. No expert on international law was present and no agreement was reached. An unofficial summary by the EU representative reported that the parties were negotiating seriously and, inter alia, had agreed that 'the June 4 1967 lines would be the basis for the borders between Israel and the State of Palestine'.⁷ Sher, the Israeli delegate, comments that the EU representative based his summary on a briefing by the Palestinians and was not present during the negotiations.⁸ In 2002, the UN Security Council affirmed 'a vision of a region where two States, Israel and Palestine, live side by side within secure and recognized boundaries'.⁹

18.2 2002 Arab League Peace Plan

In March 2002, the Arab League adopted a Saudi-initiated peace plan.¹⁰ Salient elements of this plan included a call for Israel to affirm:

I – Full Israeli withdrawal from all the territories occupied since 1967, including the Syrian Golan Heights, to the June 4, 1967 lines as well as the remaining occupied Lebanese territories in the south of Lebanon.

⁵ Sharm el Sheikh Memorandum on Implementation Timeline of Outstanding Commitments of Agreements Signed and the Resumption of Permanent Status Negotiations, <https://peacemaker.un.org/israelopt-sharmel Sheikhmemorandum99>.

⁶ President Clinton Parameters as Presented by Him to the Israeli and Palestinian Negotiators on 23 December 2000. Dennis Ross, *The Missing Peace: The Inside Story of the Fight for Middle East Peace* (2004), Appendix, p. 801.

⁷ Moratinos' 'Non-Paper' on Taba negotiations, Taba, January 2001, www.un.org/unispal/document/auto-insert-200101.

⁸ Gilead Sher, *Just beyond Reach: The Israeli-Palestinian Peace Negotiations 1999–2001* (2001), p. 412 (In Hebrew).

⁹ UN Security Council Resolution 1397, 13 March 2002.

¹⁰ www.un.org/unispal/document/auto-insert-181223/.

II – Achievement of a just solution to the Palestinian refugee problem to be agreed upon in accordance with UN General Assembly Resolution 194.

III – The acceptance of the establishment of a sovereign independent Palestinian state on the Palestinian territories occupied since June 4, 1967 in the West Bank and Gaza Strip, with East Jerusalem as its capital.

Consequently, the Arab countries affirm the following:

I – Consider the Arab-Israeli conflict ended, and enter into a peace agreement with Israel, and provide security for all the states of the region.

II– Establish normal relations with Israel in the context of this comprehensive peace.

III - Assures the rejection of all forms of Palestinian patriation which conflict with the special circumstances of the Arab host countries.

Decisions of the Arab League represent an Arab consensus, and this plan represented a sea change in the Arab position as regards reaching a peaceful solution to the conflict. The Plan demanded, however, that Israel accept the Arab interpretation of UN Security Council 242, whereby Israel had to withdraw from all the territories to the 4 June 1967 line including from East Jerusalem. As regards the solution to the Arab refugee problem, the language ‘to be agreed upon in accordance with UN General Assembly Resolution 194’ implies that Resolution 194 would be the basis for negotiations, a demand unacceptable to Israel.

In 2003, the ‘Quartet’ consisting of the United States, European Union, United Nations and Russia proposed a road map to a permanent two-state solution to the Israeli–Palestinian conflict.¹¹ Israel agreed to accept the roadmap; however, the Israeli cabinet added reservations, which included demands that the final settlement must include a reference to ‘Israel’s right to exist as a Jewish State and to the waiver of any right of return for Palestinian refugees to the State of Israel’. A further reservation was that ‘the end of the process will lead to the end of all claims and not only the end of the conflict’.¹²

At their meeting in Annapolis in 2007, Israel Prime Minister Olmert and President of the Palestinian Authority Arafat reaffirmed their

¹¹ Road Map to a permanent two-State solution to the Israeli-Palestinian conflict – Quartet Letter dated 7 May 2003 from the Secretary General addressed to the President of the Security Council, UN Doc. S/2003/529, 7 May 2003.

¹² Israel’s Response to the Road Map, 25 May 2003, <https://unispal.un.org/DPA/DPR/unispal.nsf/0/4F988718F9B98BD985257536007F1EC5>.

commitment to implement the two-state solution envisaged by the Quartet 'road map'.¹³

In 2020, Israel signed peace treaties with the United Arab Emirates and Bahrain (The 'Abraham' accords). These States have no common border with Israel and had not taken part in hostilities. Thus, the agreements did not raise significant legal issues. President Mahmoud Abbas of the Palestinian Authority denounced the normalisation agreements as 'a violation of the Arab Peace Initiative, and the terms of reference of a comprehensive, lasting and just solution in accordance with international law'.¹⁴ Singer writes:

The most significant aspect of the normalization agreements that those four Arab countries signed with Israel as part of the Abraham Accords, therefore, is that the UAE, Bahrain, Sudan, and Morocco have now agreed to come out of the closet and bring those relations with Israel to light, without waiting for an Israeli–Palestinian peace agreement to be concluded. Yet, even though the new agreements should have more properly been designated as normalization agreements, the Israel–UAE and Israel–Bahrain agreements were drafted as peace treaties, apparently in order to elevate their political impact¹⁵

18.3 Concluding Remarks

The 2002 Arab League Peace Plan calls for recognition of Israel and normalisation of relations. This represents a welcome sea-change in the Arab consensus regarding the conflict. It is made conditional, however, on Israel affirming undertakings concerning borders and Palestinian refugees that are unacceptable to Israel. The agreements reached with Arab Gulf States are an extremely positive development. They represent increasing Arab acceptance of Israel as an existing State in the Middle East. There has, however, been, as yet, no progress in negotiating with the Palestinians concerning the final status of the West Bank and Gaza.

¹³ Joint Understanding Read by President Bush at Annapolis Conference, 27 November 2007, <https://georgewbush-whitehouse.archives.gov/news/releases/2007/11/20071127.html>.

¹⁴ Statement of H. E. President Mahmoud Abbas President of the State of Palestine UN General Assembly General Debate of the 75th Session 25 September 2020, https://estatements.unmeetings.org/estatements/10.0010/20200925/3Yf6QppA2NrI/TNW70VITvwUN_en.pdf.

¹⁵ Joel Singer, 'The Abraham Accords: Normalization Agreements Signed by Israel with the U.A.E., Bahrain, Sudan, and Morocco', ILM 60, no. 3 (June 2021), pp. 448–463.

The Status of the ‘West Bank’ (Judea and Samaria) and the Gaza Strip

The territory known as the West Bank is the central and eastern area of Palestine, with an area of some 5,800 square kilometers.¹ During the period of the British Mandate, 1922–1948, the overwhelming majority of the population were Arabs, but there were some Jewish villages² and one town with a Jewish community.³ The Old City of Jerusalem had a Jewish quarter.⁴ During the period of Jordanian administration, 1948–1967, there was no Jewish population in the area. Since 1967, the Jewish population has grown, as has the Arab population. The estimate for July 2021 was that in the West Bank there were 2,949,246 Arab Palestinians and approximately 432,000 Israeli settlers.⁵

19.1 The Title ‘West Bank’

The title given to an area in dispute often has political connotations. During the period of the British Mandate over Palestine, the British authorities referred to the territory as administrative area of Samaria and Jerusalem.⁶ The 1947 UN Partition Plan refers to it as the ‘hill country of Samaria and Judea’.⁷ The name West Bank was given to the area by the Jordanian authorities after the area was incorporated into the Hashemite Kingdom of Trans-Jordan in 1950.⁸ This was done in order to

¹ www.cia.gov/library/publications/the-world-factbook/geos/we.html.

² Etzyon block villages, Bet Haarava, Neve Yaakov and Kalia.

³ Hebron, until 1929.

⁴ East Jerusalem had a Jewish population who were expelled by the Jordanians in 1948.

⁵ Not including East Jerusalem, www.globes.co.il/news/article.aspx?did=1001278963.

⁶ Article 11 of Palestine Order-in-Council 1922 and Administrative Divisions Proclamation of 1 June 1924 as amended by the Proclamation of 1 July 1939, supplement No. 2 of the *Palestine Gazette Extraordinary*, No. 900, vol. II, p. 487. The area of Samaria is referred to in Edwin Samuel (Second Viscount Samuel), *A Lifetime in Jerusalem* (1970), p. 131.

⁷ https://ecf.org.il/media_items/49.

⁸ Later the name was changed to the Hashemite Kingdom of Jordan.

differentiate it from the area of the Hashemite Kingdom east of the Jordan River. After Israel seized control in 1967, the UN General Assembly faced the dilemma as to how to designate the territories. Most States, including the Arab States, had not recognised Jordanian sovereignty over the West Bank, and the UN refrained from using a phrase such as 'Occupied Jordanian Territory'. From 1967 until 1976, the UN General Assembly resolved the dilemma by referring to occupied 'Arab' territories and often simply as 'Occupied Territories'. From 1976 onwards, the increased political influence of the PLO at the UN led to a change. From 1977, the reference becomes 'Palestinian and Other Arab Territories'.⁹ In 1979, the UN Security Council adopted similar language.¹⁰ The UN now tends to use the title 'Occupied Palestinian Territory'.¹¹ The Israeli authorities at first referred to the area as 'Occupied West Bank',¹² though then immediately began using the term 'Judea and Samaria', or in non-official documents, 'administered Territories' or simply 'The Territories'.¹³

19.2 The Borders of the West Bank

During the period of the British Mandate, the West Bank was an integral part of Palestine and there was no border between it and other areas of Western Palestine, although there were lines separating the administrative areas of Samaria and Jerusalem. The 1947 UN Partition Plan included the West Bank in the Arab State and recommended a border between the proposed Arab State and the proposed Jewish State. The 1949 Armistice Demarcation Line (ADL)¹⁴ between Israel and Jordan, in the area of the West Bank, to a large extent followed the line proposed by the Partition Plan, except for Jerusalem which was divided between Israel and Jordan. The Israel-Jordan Armistice Agreement

⁹ UNGA Resolution 5(XXXII) of 28 October 1977.

¹⁰ UN Security Council Resolution 446 (1979) 22 March 1979.

¹¹ See for example, UN Doc. A/74/468, 2 October 2019.

¹² Proclamation No. 1 Concerning the Takeover of the Administration by the Israel Defense Forces, followed by Proclamation No. 2 Concerning Administrative and Judiciary Procedures (West Bank Area) (5727-1967).

¹³ See Meir Shamgar, 'Legal Concepts and Problems of the Israeli Military Government: The Initial Stage' in Meir Shamgar, ed. *Military Government in the Territories Administered by Israel 1967-1980: The Legal Aspects* (1982), pp. 13-60.

¹⁴ The terms 'ADL', 'Green Line', '1949 Armistice Line' and 'Pre June 1967 Line' in the area of the West Bank are synonymous.

stipulated, 'the Armistice Demarcation Lines are agreed upon by the Parties without prejudice to future territorial settlements or boundary lines or to claims of either party relating thereto'.¹⁵ Neither Israel nor Jordan ever designated the ADL as their international border. Despite its status as a temporary Demarcation Line, during the period 1948–1967, the ADL served as the de facto international boundary between Israel and the Hashemite Kingdom of Jordan. There was a border crossing at the Mandelbaum Gate in Jerusalem serving mainly UN personnel, foreign diplomats and certain third-party nationals. Although the ADL was never officially demarcated on the ground during this period, there were barbed wire fences and markers in some places, placed either unilaterally by Israel or as a result of unofficial Jordanian Israeli understandings.

After Israel took control of the West Bank from Jordan in 1967, the borders of the West Bank and Gaza were not delineated in official Israeli public documents. Although it ceased to be marked on official Israeli maps, the ADL served to delimit the jurisdiction of the Israel Military Administration in the West Bank (Judea and Samaria) with two exceptions. The first exception was that East Jerusalem, which had been part of the West Bank under Jordan, was united with West Jerusalem. The Israeli legislation referred to applying 'Israeli law and administration' to East Jerusalem.¹⁶ Israeli courts interpreted this as incorporating East Jerusalem into sovereign Israeli territory.¹⁷ The second exception was that the small salient of Latrun on the Jerusalem–Tel Aviv highway, which previously had been a 'no-mans-land' between Jordan and Israel, was administratively incorporated into Israel.¹⁸

¹⁵ 1949 Hashemite Jordan Kingdom–Israel General Armistice Agreement, 656 UNTS 304, Article VI, para. 9.

¹⁶ Law and Administration Ordinance (Amendment No. 11) Law, 5727-1967 'The law, jurisdiction, and administration of the state shall extend to any area of Eretz Yisrael designated by the government by order.' By virtue of this section, on 28 June 1967, the government issued the Law and Administration Order (No. 1), 5727-1967, Regulation Files 2064 dated June 28, 1967, at p. 2690, which declared that the territory of Eretz Yisrael as described in the schedule to the Order, is 'territory in which the law, jurisdiction, and administration of the State apply'. The territory described in this schedule was East Jerusalem.

¹⁷ *Abulun Hanzalis v. Tribunal of the Greek Orthodox Church et al*, H.C.17/68 1969 (1) P.D., p. 260; *Mahmad Abdallah Awad Ruidi and Zeev Shimshon Maches v. Military Court of Hebron District et al*, H.C.283/69 1970 (2) P.D., p. 419.

¹⁸ The Attorney General informed an Israeli Court that Israeli law applied to the area.

In 1995, Israel and the PLO signed the Israeli–Palestinian Interim Agreement.¹⁹ The maps attached to the 1995 agreement referred to the area of the West Bank but did not show a dividing line between Israel and the West Bank; by implication it was the 1949 ADL, with the exception of Jerusalem and Latrun, but this was not set out explicitly. The 1995 Agreement states, 'the two sides view the West Bank and the Gaza Strip as a single territorial unit, the integrity and status of which will be preserved during the interim period'.²⁰ Singer writes that there was a requirement that the 'extent of West Bank and Gaza Strip territory over which the [Palestinian] Council has jurisdiction be defined through negotiations'.²¹ There has been no subsequent agreement on this issue. The International Court of Justice, in its advisory opinion in the *Wall Case*, relied on the ADL as the dividing line between 'Palestinian Territories' and sovereign Israeli territory.²²

In the Israel–Jordan Treaty of Peace, there is no reference to the ADL. The Treaty defines the boundary between Israel and Jordan 'with reference to the boundary definition under the Mandate, without prejudice to the status of any territories that came under Israeli military government control in 1967'.²³

19.3 The Legal Status of the West Bank

During the early period of the British Mandate, there was no legal distinction between the West Bank and other areas of Western Palestine. However, very few Jewish settlements were established on the West Bank during the British Mandate. The 1937 Peel Commission recommended that 'at present, and for many years to come, the Mandatory Power should not attempt to facilitate the close settlement of the Jews in the hill districts generally'.²⁴ This recommendation was

¹⁹ Israeli–Palestinian Interim Agreement on the West Bank and the Gaza Strip, 28 September 1995, Map No. 1, 36(3) ILM 551 (1997).

²⁰ 1995 Israeli–Palestinian Interim Agreement on the West Bank and Gaza Strip, Article XI (1).

²¹ Joel Singer. 'The Oslo Peace Process: A View from Within' in Amos Shapira and Mala Tabory, eds. *New Political Entities in Public and International Law with Special Reference to the Palestinian Entity* (1999), p. 28.

²² ICJ Reports, 2004, Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory, p. 101.

²³ Treaty of Peace between The State of Israel and The Hashemite Kingdom of Jordan, 26 October 1994, Article 3. A part of the definition is omitted. See Chapter 16.

²⁴ 1936–37 [Cmd. 5479] Palestine Royal Commission Report (Royal Commission), Chapter IX.

implemented when the British Mandatory authorities decided, in 1939, to prohibit any purchase by Jews of land in the West Bank. The 1939 British 'White Paper' stated: 'There is now in certain areas no room for further transfers of Arab land, the High Commissioner will be given general powers to prohibit and regulate transfers of land.'²⁵ Consequently, the High Commissioner issued orders that Jews would be forbidden from purchasing land in the hills of the West Bank.²⁶

The 1947 UN Partition Plan envisaged partitioning Palestine into two States, one Arab and one Jewish, with an economic union between them and that the West Bank would be part of the Arab State.²⁷ The local Palestinian Arab community and the Arab States rejected the Partition Plan.

In the 1948 War, the Jordanian Arab Legion entered the West Bank and after the War continued to remain in control. The 1949 Israel–Jordan Armistice Agreement signified Israel acquiescence to Jordanian control of the West Bank, although the official Israel position was that 'the question of the Arab territories west of the Jordan [River] remains open.'²⁸ In December 1948, a conference of Arab "notables" convened in Jericho and approved incorporating the West Bank into Jordan'.²⁹ The Arab States did not recognise the legality of Jordanian sovereignty in the West Bank;³⁰ only two States, Britain and Pakistan,

²⁵ British White Paper of 1939, https://avalon.law.yale.edu/20th_century/brwh1939.asp.

²⁶ Ibid. In February 1940, the Mandatory government promulgated land transfers regulations under which the country was divided into three zones. In the largest of these zones, all transfers of land to persons other than Palestinian Arabs were prohibited, except, where certain specific conditions obtain, with the permission of the High Commissioner. In the second zone, Palestinian Arabs were forbidden to transfer their land except to another Palestinian Arab or with the specific approval of the High Commissioner. No restrictions were placed upon the transfer of land in a third and smaller zone, including a considerable part of the coastal plain. Transfer Regulations, 1940, *Palestine Gazette, Extraordinary*, No. 988, 28 February 1940, Supplement II 327.

²⁷ UNGA Resolution 181(II), 29 November 1947.

²⁸ Statement of Israel Foreign Minister Moshe Sharett in the Knesset, *Divrei Haknesset*, vol. 5, p. 1282 (In Hebrew).

²⁹ United States Department of State / Foreign Relations of the United States, 1948. The Near East, South Asia, and Africa (in two parts) (1948), p. 1645. A separate 'All Palestinian Government' was formed in Gaza headed by Haj Amin El Hussein under Egyptian patronage, but it was short lived and Gaza in fact remained under Egyptian Military Administration.

³⁰ See Statement of the Arab League, 14 December 1948, II Whiteman Digest of International Law, p. 1166. Keesing's Contemporary Archives, vol. 8 (1950–1952), p. 10812.

recognised such sovereignty. A Jordanian legal response to this issue was as follows:

The effects of implied recognition are no different from those of explicit recognition, and it is fair to say that the international community at large dealt with Jordan in a way that cannot but be construed as recognizing Jordanian sovereignty in the West Bank. This is a direct result of the lack of reservation to Jordan's entry into the United Nations in 1955, and the hundreds of international agreements that Jordan entered into without a single reservation by others as to their applicability to the West Bank. And in any case, even if your [Israeli] argument about the United Kingdom and Pakistan is entertained, that leaves Jordan with two states on its side more than Israel, whose presence in the West Bank is recognized by no one, implicitly or explicitly.³¹

In 1950, the West Bank was incorporated into Jordan and Jordan granted Jordanian citizenship to the (Arab) inhabitants of the West Bank. The Arab League objected to the Jordanian move and Jordan, to placate the criticism, declared at the time that 'annexation of Arab Palestine was irrevocable although without prejudice to any final settlement of the Palestine question'.³² Gerson suggests that the status of Jordan in the West Bank was that of a 'trustee-occupant' in favour of the Arab Palestinian population.³³ Throughout the period of Jordanian control, 1948–1967, the Jordanian authorities restricted any manifestations of Palestinian nationalism. A leading Palestinian activist, Ashrawi, describes growing up in the West Bank under Jordanian control: 'The word "Palestine" was then taboo, and I remember my father telling me that we were Palestinians and not Jordanians, but cautioning us against saying it out aloud.'³⁴

19.4 Application of Belligerent Occupation Regime

During the June 1967 Six Day War, Israel seized control of the West Bank from Jordan. Israel imposed a military government administration on the areas involved and subjected them to the international law of

³¹ Jordanian legal advisor Awn Al-Khasawneh, in response to the author during talks in Washington 1992 quoted from Abdul Salem Majali, Jawad A. Anani and Munther J. Haddadin, *Peacemaking: The Inside Story of the 1994 Jordanian-Israeli Treaty* (2006), p. 99.

³² Quoted from Keessing's Contemporary Archives, p. 10812.

³³ Allan Gerson, *Israel, the West Bank and International Law* (1978), p. 70.

³⁴ Hanan Ashrawi, *This Side of Peace* (1995), p. 22.

belligerent occupation. Israel did not annex the West Bank, although Boutros-Ghali quotes Sadat that Begin 'had returned once again to his strange theory that legitimate defensive war allows for the annexation of land but offensive war does not'. Boutros-Ghali comments:

Some legal scholars had embraced this notion in the nineteenth century, but the United Nations Charter in 1945 ruled out any acquisition of territory by force. I had explained this to Begin in detail during my visits to Jerusalem in November 1977 and in January 1978, but apparently Begin did not realize that this worn-out theory had no basis in international law. He kept citing Oppenheim's outdated international legal textbook. To me, Begin seemed as rigid as a Central European lawyer from the early decades of the century.³⁵

Boutros-Ghali would appear to be correct in his analysis of modern international law on this issue. Classic international law defines occupied territory as the sovereign territory of a State that is under the military occupation of another State at a time when a state of war exists between them. A required condition is that the 'belligerent occupation' prevents the sovereign state from exercising its authority in said territory. No distinction is made between legal and illegal occupation, international humanitarian law applies equally to the just and to the wicked.³⁶ International law forbids the occupying State from annexing the occupied territory and requires the occupier to set up a military government in the territory. This military government is subject to the restrictions imposed by the laws of occupation of international law.

The laws of occupation are to be found principally in the 1907 Hague Regulations, which have the status of international customary law; the 1949 IVth Geneva Convention, most of which reflects customary law and the 1977 Ist Additional Protocol to the 1949 Geneva Conventions. Many of the rules of the Additional Protocol also reflect customary law; however, the innovative elements of the Additional Protocol have not attained the status of customary law.

The laws of occupation aim to prevent the occupier from annexing the territory and to protect the population of the occupied territory.³⁷ The

³⁵ Boutros Boutros-Ghali, *Egypt's Road to Jerusalem: A Diplomat's Story of the Struggle for Peace in the Middle East* (1997), p. 137.

³⁶ For an apparently different view, see Mary Ellen O'Connell, 'The Occupation of Iraq: What International Law Requires Now', *Jurist*, Guest Columnist, <http://jurist.law.pitt.edu/forum/forumnew107.php>.

³⁷ For a succinct review of the laws of occupation, see Michael N. Schmitt, 'The Law of Belligerent Occupation', www.crimesofwar.org/special/Iraq/news-iraq5.html.

population are not citizens of the occupying State, nor – in light of the existence of a situation of war – can they be protected by the previous sovereign State. If not for the protection that international law grants to residents of occupied territory, they would be given solely to the good graces of the military government of the occupying State.

The Israel Military Government accepted that it was subject to 'restrictions and limitations [that] have been imposed by customary international law and international conventions codifying customary international law which are binding on Israel even if she has not formally adhered to them'.³⁸ These limitations and restrictions included the rule that the military government is not the sovereign of the territory.

Gerson argues that Israel's status in the West Bank was not that of a classical military occupier but that of 'trustee occupant' in favour of the local Arab population.³⁹

19.5 Claims That the IVth Geneva Convention Is Not Applicable to the West Bank

A central legal issue related to Israel's control of the West Bank is the applicability of the IVth 1949 Geneva Convention to the West Bank.⁴⁰ Israel is a party to the Convention; however, Israel did not apply the Convention formally to the West Bank but only undertook to apply the humanitarian provisions of the Convention. Israel was 'apprehensive lest recognition of applicability would lead to the conclusion that the former administration of Judea and Samaria and Gaza had had sovereign rights in these territories, whose reversionary rights have to be respected and safeguarded'.⁴¹ Israel based its position on the language of the IVth Geneva Convention which states, 'the Convention shall apply to all cases of partial or total occupation of the territory of a High Contracting Party'.⁴² Israel believed that neither the West Bank nor the Gaza Strip were territory of a State when Israel occupied them. In a letter to the ICRC from the Israel Military Advocate General's office, in July 1987,

³⁸ Manual for the Military Advocate in Military Government, published by Military Advocate General's Headquarters, quoted from Shamgar, 'Legal Concepts and Problems of the Israeli Military Government', p. 28.

³⁹ Gerson, *Israel, the West Bank and International Law*, p. 81.

⁴⁰ Convention (IV) relative to the Protection of Civilian Persons in Time of War. Geneva, 12 August 1949.

⁴¹ Shamgar, 'Legal Concepts and Problems of the Israeli Military Government', pp. 34, 37.

⁴² IV the Geneva Convention, Article 2 – Application of the Convention.

Israel's position is stated as follows: 'In view of the *sui generis* status of Judea, Samaria and the Gaza District, the *de jure* applicability of the Fourth Geneva Convention to these areas is doubtful. Israel prefers to leave aside the legal question of the status of these areas and has decided, since 1967, to act *de facto* in accordance with the humanitarian provisions of that Convention.'⁴³ Israel has never officially listed what provisions of the Convention it considered to be 'humanitarian', presumably it excluded provisions of the Convention intended to preserve the rights of the previous sovereign. There does not seem to be a record of Israel denying the application of any provision of the Convention on the grounds that it was not a 'humanitarian' provision. Apparently, no State has ever formally applied the IVth Geneva to territory under its control. The laws of occupation, as they were then, were not applied to the allied occupation of Germany after World War II on the grounds that the Reich no longer existed and that therefore there was no previous sovereign whose rights needed protection. During the First Gulf War, the United States and the United Kingdom occupied Iraq. Both States are parties to the IVth Geneva Convention. Both States are, of course, bound by customary international law and, furthermore, customary international law forms part of the law of the land in both the United States and the United Kingdom. Yet notwithstanding this legal background, neither the United States nor the United Kingdom formally stated that they would apply the IVth Geneva Convention to their administration of Iraq, although the opinion of the legal advisors to the US government was that the Convention was applicable in Iraq.⁴⁴ In their joint letter to the UN Security Council, the two States affirmed that they 'will strictly abide by their obligations under international law including those relating to the essential humanitarian needs of the people of Iraq'.⁴⁵ The Security Council, in the preamble to its subsequent decision, designated the United States and the United Kingdom as 'occupying powers' but refrained from using the phrase 'occupying powers' in the operative part of the decision. The operative part of the Resolution calls upon 'all concerned to comply fully with their obligations under international

⁴³ Letter of Col Joel Singer, Head International Law Section, Military Advocate General Corps, Israel Defence Forces, addressed to Mr Michael Amiquet, Delegate General for the Middle East and North Africa, ICRC, Geneva, dated 13 July 1987. A copy of the letter is on file with the author.

⁴⁴ 'Protected Person' Status in Occupied Iraq under the Fourth Geneva Convention', www.justice.gov/file/18871/download.

⁴⁵ UN Doc. S/2003/538, 8 May 2003.

law including in particular the Geneva Conventions of 1949 and the Hague Regulations of 1907'.⁴⁶ The Security Council made reference generally to the Geneva Conventions but refrained from explicitly mentioning the one relevant Convention, namely, the IVth. The general lack of explicit willingness by States to apply the IVth Convention would seem strange as regards a treaty that is regarded as a basic text of international humanitarian law. The reason is to be found, I believe, in the dual nature of the law of occupation. The laws of occupation are intended to safeguard the rights of the previous sovereign as well as making humanitarian provisions for the population. Those provisions intended to safeguard the rights of the previous sovereign include provisions prohibiting changing of local laws and prohibits altering the status of local officials and judges. The explicit aim of the US and UK administration was to change the regime in Iraq, clearly not an aim sanctioned by the laws of occupation.

It might well be that the time has come for all States to re-examine the basic norms of the laws of occupation. The rights of the local population should be preserved irrespective of the status of the previous sovereign. The question of preserving the rights of the previous sovereign should be seen as an issue of permissible modes of acquiring territory and not an issue of humanitarian law.

19.6 Claims That the IVth Geneva Convention Is Applicable to the West Bank

The ICRC disputes the Israeli interpretation as to the applicability of the Convention. The ICRC position is the following:

The unclear status of a territory does not prevent the applicability of the rules of the Fourth Convention, including those relating to occupied territory. For the Fourth Convention to apply, it is sufficient that the State whose armed forces have established effective control over the territory was not itself the rightful sovereign of the place when the conflict broke out or when the invasion meeting no armed resistance took place. Occupation exists as soon as a territory is under the effective control of a State that is not the recognized sovereign of the territory. It

⁴⁶ UN Security Council Resolution 1483 (2003) of 22 May 2003, UN Doc. S/RES/1483 (2003), preamble and operative, para. 5.

does not matter who the territory was taken from. The occupied population may not be denied the protection afforded to it because of disputes between belligerents regarding sovereignty over the territory concerned.⁴⁷

There are numerous resolutions by the UN General Assembly and the UN Security Council that Israel should formally apply the IVth Geneva Convention to the West Bank. The International Court of Justice, in the advisory opinion in the *Wall Case* ruled that ‘the Court accordingly finds that that Convention is applicable in the Palestinian territories which before the conflict lay to the east of the Green Line and which, during that conflict, were occupied by Israel, there being no need for any enquiry into the precise prior status of those territories’.⁴⁸ Roberts writes, ‘every time the armed forces of a country are in control of foreign territory, and find themselves face to face with the inhabitants, some or all of the provisions of the law of occupation are applicable’.⁴⁹

It could be argued that even if the IVth Geneva Convention was legally applicable in 1967, it is no longer so since Israel and Jordan are at peace. Article 6 of the Convention states: ‘In the case of occupied territory, the application of the present Convention shall cease one year after the close of general military operations.’⁵⁰ The Article, however, also contains a reservation that the humanitarian provisions of the Convention shall continue to apply ‘to the extent that such Power exercise the functions of Government in such territory’.⁵¹ Article 6, of course, does not settle the question of whether the IVth Convention was applicable from the outset.

The issue has become less critical since Israel’s withdrawal from the Gaza Strip and transfer to the Palestinian Authority of the administration over most of the Arab population of the West Bank.

⁴⁷ ICRC, *Commentary on the First Geneva Convention: Convention (I) for the Amelioration of the Condition of the Wounded and Sick in Armed Forces in the Field* (2nd ed. 2016), para. 324, <https://ihl-databases.icrc.org/ihl/full/GCI-commentary>.

⁴⁸ ICJ Reports, *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, 9 July 2004, Advisory Opinion, para. 101.

⁴⁹ Adam Roberts, ‘What Is a Military Occupation?’, *BYIL*, 55, no. 1 (1984), pp. 249, 250.

⁵⁰ Article 6, Convention (IV) relative to the Protection of Civilian Persons in Time of War. Geneva, 12 August 1949.

⁵¹ *Ibid.* lists Articles 1–12, 27, 29–34, 47, 49, 51–53, 59, 61–77 and 143 as continuing to apply after the general close of military operations.

19.7 Jordan and the 'Missing Reversioner'

After Israel seized control of the West Bank in June 1967, a legal question arose as to whether Israel was obliged to preserve the rights of Jordan in the West Bank. The argument was made that Jordan had been an occupier of the West Bank and not the sovereign. Blum, who was a principal proponent of this theory, writes, 'the kingdom of Jordan never acquired, from the point of view of international law, the rights of a legitimate sovereign over those parts of former Mandatory Palestine that came under its control in the course of the Palestine hostilities of 1948–9'.⁵² Stone writes that Jordan's position in the West Bank was that of a 'belligerent occupant'.⁵³ Blum's conclusion is that 'where the ousted State never was the legitimate sovereign, those rules of belligerent occupation directed to safeguarding that sovereign's reversionary rights have no application, only that part of the law of occupation applies which is intended to safeguard the *humanitarian* rights of the population'.⁵⁴

Gerson writes:

It would be unwarranted to assume that the unlawfulness of Jordan's entry unto Palestine [in 1948] precluded her from any acquisition of title to areas not controlled by the Jewish state. Jordan, at least ostensibly, entered Arab Palestine on behalf of and as an ally of Palestinian Arab people in their rejection of partition. Nothing precluded her [Jordan] succession to rights of the Palestinian Arabs, insofar as they were voluntarily ceded. Jordan's entry into Palestine in 1948, while an act of aggression against Israel, was not aggression against the indigenous Arab West Bank population. It is questionable, however, whether the decision to merge expressed at the Jericho Conference represented, in fact, the will of the West Bank rather than having been the product of coercion.⁵⁵

Interestingly, Crown Prince Hassan of Jordan writes in 1981, that 'by the time of Israel's military occupation of the West Bank in the War of June 1967, the territorial sovereignty in that area still remained in suspense'.⁵⁶ Scobbie reaches the conclusion that since Israel was willing to negotiate with Jordan over the future of the West Bank, this 'amounts to an

⁵² Yehuda Z. Blum, 'The Missing Reversioner: Reflections on the Status of Judea and Samaria' in J. N. Moore, ed. *The Arab-Israeli Conflict. Vol. II: Readings* (1974), pp. 287, 290.

⁵³ Julius Stone, *The Middle East under Cease Fire* (1967), p. 12.

⁵⁴ Blum, 'The Missing Reversioner', pp. 287, 304 (Emphasis in the original).

⁵⁵ Gerson, *Israel, the West Bank and International Law*, pp. 77, 80.

⁵⁶ Hassan Bin Talal, Crown Prince of Jordan, *Palestinian Self-Determination: A Study of the West Bank and Gaza Strip* (1981), p. 69.

implicit recognition by Israel that Jordan possessed title to the West Bank'.⁵⁷ The issue became moot when, in 1988, Jordan renounced any claim to the West Bank.⁵⁸

19.8 Arab Palestinian Claims to the West Bank

The right of self-determination of peoples was a political principle from the time of the end of the World War I. The right is mentioned in the UN Charter and some claim that it thus became a binding legal principle in 1945. It is, however, not in dispute that it is now recognised not only as a political principle but as a legal right under international law. This right of self-determination of peoples was set out in the 1966 International Covenant on Civil and Political Rights, to which Israel is a party,⁵⁹ and has been affirmed by the International Court of Justice.⁶⁰ The Arab Palestinians regard themselves as a people entitled to self-determination. There is no accepted international legal definition of who is a people, but the Palestinians have received near unanimous acceptance of their status as a people, including by Israel.⁶¹ The 1947 UN Partition Plan recognised the right of self-determination of the Palestinian Arabs and recommended that they set up an independent Arab State in the West Bank, with economic union to a Jewish State.⁶² The majority of the population of the West Bank are Arab Palestinians. Between 1948 and 1967, there were no Jewish residents of the West Bank. The Palestinian population of the West Bank hold, therefore, that they have a right to self-determination and to create an independent Palestine State, if that is the wish of the majority of the population.

19.9 Jewish Claims to the West Bank

Under the Ottoman regime and under the British Mandate, there was no legal distinction between the West Bank and the remainder of Western

⁵⁷ Ian Scobbie with Sarah Hibbin, *The Israel-Palestine Conflict in International Law: Territorial Issues* (2009), p. 104.

⁵⁸ King Hussein, Address to the Nation, Amman, 31 July 1988, www.kinghussein.gov.jo/88_july31.html.

⁵⁹ 1966 International Covenant on Civil and Political Rights, Article 1, 999 UNTS 171.

⁶⁰ *Legal Consequences for States of the Continued Presence of South Africa in Namibia*, ICJ Reports, 1971; *Western Sahara Case*, ICJ Reports, 1975.

⁶¹ The 1978 Camp David Accords, between Egypt and Israel, refer (in the binding English language version) to the 'Palestinian People'.

⁶² See Chapter 5.

Palestine. Jews had lived for centuries in Hebron in the West Bank until they were forced to leave in 1929 because of Arab murderous riots against them. The League of Nations 1922 Mandate for Palestine made no distinction between the West Bank and the rest of the country. The West Bank was included in the area in which the Jewish National Home was to be established. Thus, all the clauses of the 1922 Mandate applied to the West Bank. These clauses included the obligation of the Administration, that 'while ensuring that the rights and position of other sections of the population are not prejudiced, shall encourage, in co-operation with the Jewish agency close settlement by Jews on the land, including State lands and waste lands not required for public purposes'.⁶³ Accordingly, the British Mandate authorities, until 1939, allowed the creation of Jewish settlements on the West Bank. Only in 1939, under Arab pressure, did the British authorities limit the right of Jews to purchase land for settlement in the area later known as the West Bank.

In accordance with Article 80 of the UN Charter, rights of peoples acquired under the 1922 Mandate, are still relevant.

Article 80 of the UN Charter

Except as may be agreed upon in individual trusteeship agreements, made under Articles 77, 79, and 81, placing each territory under the trusteeship system, and until such agreements have been concluded, nothing in this Chapter shall be construed in or of itself to alter in any manner the rights whatsoever of any states or any peoples or the terms of existing international instruments to which Members of the United Nations may respectively be parties.

The Arab population of Palestine rejected the 1947 UN Partition Plan that had recommended that they create an independent Arab State that would have included the West Bank and Gaza areas. When Jordan seized the West Bank, after the 1948 War, it was the first time a legal distinction was made between the West Bank and other parts of Western Palestine. Jordan destroyed all Jewish settlements that had been established in the West Bank and exiled their residents.

Israel's position is, as iterated by Prime Minister Begin in a speech to the Israeli Knesset in 1977, as follows:

Israel stands by its right and its claim of sovereignty to Judea, Samaria and the Gaza district. In the knowledge that other claims exist, it proposes, for

⁶³ Article 6, Palestine Mandate, http://avalon.law.yale.edu/20th_century/palmanda.asp#art6.

the sake of the agreement and the peace, that the question of sovereignty in these areas be left open.⁶⁴

19.10 The Status of the Gaza Strip

During the period of the British Mandate, the Gaza Strip was an integral part of Palestine. In the 1948 War, Egyptian troops occupied the Gaza Strip. In accordance with the 1949 Egypt–Israel Armistice Agreement, it remained under Egyptian control and the Egyptian–Israel ADL served as the border between the Strip and Israel. The Strip remained under Egyptian control until the June 1967 Six Day War. Shamgar writes:

From 1948 till the Sinai campaign, which started on 29 October 1956, and again from March 1957 till June 1967 the Gaza Strip was, under Egyptian military occupation and was ruled by an Egyptian military governor, without any pretense or intent of cession, annexation or incorporation into Egypt in any way whatsoever. On the contrary, the inhabitants of the Gaza Strip were not accorded Egyptian citizenship and those who before 1948 were Palestinian citizens remained such. All needed special permits to enter Egypt, military courts were set up, and curfew was declared according to the British Defence (Emergency) Regulations, 1945, which were part of the law of the Mandate. Moreover, all the laws in force at the termination of the Mandate on 15 May 1948 remained in force and only minor legislative changes were effected by orders of the Military Governor. In short, no general claim was raised by Egypt that the Gaza Strip was anything but territory occupied in consequence of the war of 1948.⁶⁵

When, in 1967, Israel seized control of the Strip, Israel treated the strip as occupied enemy territory. Israel refrained from formally applying the IVth Geneva Convention to the Gaza Strip but, as in the West Bank, applied the humanitarian provisions of the Convention. The Israel settlements that were established in the Gaza Strip were all withdrawn in September 2005 and Israel declared that it no longer had effective control and the area was not under Israel belligerent occupation.⁶⁶

⁶⁴ Statement to the Knesset by Prime Minister Begin presenting Israel's peace plan, 28 December 1977, <https://mfa.gov.il/mfa/foreignpolicy/mfadocuments/yearbook3/pages/103%20statement%20to%20the%20knesset%20by%20prime%20minister%20begin.aspx> https://fs.knesset.gov.il/9/Plenum/9_ptm_253935.pdf.

⁶⁵ Shamgar, 'Legal Concepts and Problems of the Israeli Military Government', p. 35.

⁶⁶ Submission of the Israel Government in HCJ 1026/05 *Physicians for Human rights v. Defence Minister*.

Controversy subsequently arose as to whether the Gaza Strip should continue to be considered as under Israel occupation. The ICRC continues to list Gaza as part of territories occupied by Israel. An Israeli NGO claims that 'Israel continues to control Gaza through an "invisible hand"; control over borders, airspace, territorial waters, population registry, the tax system, supply of goods and others'.⁶⁷ The Israel government has argued that it no longer has effective control in Gaza.

The Israel High Court ruled:

Since September 2005, Israel no longer has effective control over the events in the Gaza strip. The military government that had applied to that area was annulled in a government decision, and Israeli soldiers are not in the area on a permanent basis, nor are they managing affairs there. In such circumstances, the State of Israel does not have a general duty to look after the welfare of the residents of the strip or to maintain public order within the Gaza Strip pursuant to the entirety of the Law of Belligerent Occupation in International Law. Nor does Israel have effective capability, in its present status, to enforce order and manage civilian life in the Gaza Strip.⁶⁸

Shany agrees with the Court's conclusion:

The existence within Gaza of an organized government (the Palestinian Authority and, subsequently, the Hamas) that openly exercises power and authority (which are clearly not sanctioned by Israel) implies that the one of the basic conditions for occupation – the substitution of local authority by a foreign power – is no longer met. In other words, the territory is governed by an effective Palestinian government, not the Israeli government; (b) the existence of locally organized military forces in Gaza means that any attempt by Israel to 'make its authority felt' in Gaza would be met with considerable local resistance.⁶⁹

An expert group convened by the ICRC reported its conclusions as to when an area is to be considered as under occupation:

A majority of participants concluded very quickly that the presence of foreign armed forces in a disputed area was a prerequisite for the establishment of an occupation. The necessity of having troops on the ground

⁶⁷ Sari Bashi and Kenneth Mann *Disengaged Occupiers: The Legal Status of Gaza* (Gisha; Legal Center for Freedom of Movement 2007), p. 18

⁶⁸ H.C.J. 9132/07 *Gaber Al-Bassiouni v. Prime Minister*, Judgment of 30 January 2008, para. 12.

⁶⁹ Yuval Shany, 'The Law Applicable to Non-Occupied Gaza: A Comment on *Bassiouni v. Prime Minister of Israel*', [Hebrew University International Law Research Paper No. 13-09](#), 28 February 2009, p. 7.

was driven home by the clear rejection of the view that occupation could be enforced solely by either naval or air power. In addition, another point was stressed: control of air space did not by itself meet the requirement of 'effective control' for the purposes of IHL. Therefore, only effective control on land would characterize military occupation within the meaning of IHL.⁷⁰

Ferraro explains:

Any attempt to lower the threshold of effective control – particularly by not requiring the physical presence of hostile troops in the occupied territory – will necessarily diminish the importance and extent of the occupant's obligations since, in such instances, it will generally not be in a position to assume them. When foreign forces withdraw from occupied territory (or parts thereof) while retaining key elements of authority or other important governmental functions therein which are typical of those usually taken on by an Occupying Power – it is proposed here that occupation law might continue to apply within the territorial and functional limits of those competences.⁷¹

Israel's response is that, indeed, it controls the movement of persons and goods between Israel and the Gaza Strip, but it does so with border crossings with all its neighbours. Every State controls its own border crossings. The Gaza Strip has a border crossing with Egypt that is controlled by Egypt and not by Israel. Israel supervises the Palestinian Population Registry only as regards residents of Gaza who wish to enter Israel. Israel has no control whatsoever over the internal tax system in the Gaza Strip. Israel has an arrangement with the Palestinian Authority whereby VAT and custom taxes on goods imported via Israel are deducted in Israel and refunded to the Palestinian Authority.⁷² Israel has no role as to goods imported into the Gaza Strip from Egypt.

Hamas, which controls the Gaza Strip, has its own legal system, courts and police and prisons, it also carries out the death penalty. (The last person executed by Israel was the Nazi war criminal Eichmann in 1962.)

⁷⁰ Occupation and Other Forms of Administration of Foreign Territory, Report prepared and edited by Tristan Ferraro, ICRC Expert Meeting, International Committee of the Red Cross, March 2012, p. 17.

⁷¹ Tristan Ferraro, 'Determining the Beginning and End of Occupation under International and Humanitarian Law', *International Review Red Cross*, 92 (2012), p. 1511.

⁷² Protocol on Economic Relations between the Government of the State of Israel and the P.L.O., Representing the Palestinian People, Paris, 29 April 1994, <https://mfa.gov.il/MFA/ForeignPolicy/Peace/Guide/Pages/Gaza-Jericho%20Agreement%20Annex%20IV%20-%20Economic%20Protoco.aspx>.

Hamas has its own armed forces equipped with large numbers of short- and long-range missiles which it fires periodically at Israel. It has a well-trained naval commando unit that has attempted to make raids into Israel from the sea. Israel views the Hamas as a hostile power, and Israel applies a naval blockade to ensure that no munitions are brought into the Strip. Israel also controls the air space, but neither of these two elements constitute occupation. Shany writes that although Gaza may no longer be considered as under Israel occupation, nevertheless, there are still obligations on Israel 'which ensue from the conclusion that Gaza is a non-occupied territory but subject to a state of siege, extra-territorial application international human rights law to the situation in Gaza, and possible post-occupation obligations'.⁷³ Israel continued to supply Gaza with water and electricity even during periods of active hostilities. This was done on humanitarian grounds.

19.11 Application of Human Rights Treaties to the West Bank

Israel is a party to all the major human rights treaties. Israel's formal position, however, is that it is not obliged to apply these treaties to the West Bank. In regard to the 1966 International Covenant on Civil and Political Rights (The Covenant) the Israeli report to the Human Rights Committee noted the following:

Israel continues to maintain that the Covenant applies only to a State territory. In line with basic principles of treaty interpretation, Israel believes that the Convention [Covenant], which is territorially bound, does not apply, nor was it intended to apply, to areas beyond a state's national territory. The Committee's mandate cannot relate to events in the West Bank and the Gaza Strip, inasmuch as they are part and parcel of the context of armed conflict as distinct from a relationship of human rights.⁷⁴

Israel added that, nevertheless, 'its conduct would remain consistent with the Covenant requirements'.⁷⁵ Israel's legal position has been hotly disputed. The Human Rights Committee expressed its view that 'the

⁷³ Shany, 'The Law Applicable to Non-Occupied Gaza', p. 1 (summary).

⁷⁴ Human Rights Committee, State of Israel Implementation of the International Covenant on Economic, Social and Cultural Rights – Second Periodic Report, 3 August 2001, paras. 5–8, UN Doc. E/1990/6/ Add. 32 (2001).

⁷⁵ Human Rights Committee, Fifth Periodic Report Submitted by Israel under Article 40 of the Covenant Pursuant to the Optional Reporting Procedure Due in 2019, CCPR/C/ISR/ 5, 30 October 2019.

provisions of the Covenant apply to the benefit of the population of the occupied territories, for all conduct by the state party's authorities or agents in those territories that affect the enjoyment of rights enshrined in the Covenant'.⁷⁶ Higgins, when a member of the Human Rights Committee, wrote, 'a State party must respect and ensure the rights laid down in the Covenant to anyone within the power or effective control of that State Party, even if not situated within the territory of the State Party'.⁷⁷ The ICJ, in the *Wall Case*, gave its opinion that 'the Court considers that the International Covenant on Civil and Political Rights is applicable in respect of acts done by a State in the exercise of its jurisdiction outside its own territory'.⁷⁸ The European Court of Human Rights reached the conclusion that the European Convention on Human Rights applied to Turkish behaviour in Northern Cyprus as 'it exercises effective control of an area outside its national territory'⁷⁹ and to Russian control of parts of Georgia.⁸⁰ Meron quotes with approval the phrase of the Human Rights Committee: 'It would be unconscionable to so interpret the responsibility under article 2 of the Covenant as to permit a State party to perpetrate violations of the Covenant on the territory of another State, which violations it could not perpetrate on its own territory.' Meron adds, 'narrow territorial interpretation of human rights treaties is anathema to the basic idea of human rights, which is to ensure that a state should respect human rights of persons over whom it exercises jurisdiction'.⁸¹

In a comprehensive article on the subject, Shany and Ben-Naftali reached the conclusion that 'an occupying power bears responsibility for the human rights of the inhabitants of occupied territories under both IHL and IHR law, subject to its potential or actual effective control'. 'While the law of war and humanitarian law provide *lex specialis* in

⁷⁶ Concluding Observations of the HRC: Israel, 21/08/2003, CCPR/CO/78/ISR, para. 11.

⁷⁷ Rosalyn Higgins, Human Rights Committee, General Comment No. 31 on Art. 2 (The Nature of the General Legal Obligation Imposed on States Parties to the Covenant), 29 April 2003, UN Doc. CCPR/C/74/CRP.4/Rev.6. (General Comments)(2004).

⁷⁸ ICJ, *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, Advisory Opinion of 9 July 2004, para. 111.

⁷⁹ *Loizidou v. Turkey*, 310 Eur. Ct. H.R. (Ser. A (1995)) 23.

⁸⁰ *Georgia v. Russia* (II), Merits. App. No. 38263/08, European Court of Human Rights (Grand Chamber), 21 January 2021.

⁸¹ Theodor Meron, 'Extraterritoriality of Human Rights Treaties', *AJIL*, 89, no. 1 (January 1995), pp. 80, 82.

situations of armed conflict and occupation – the shortcoming of one regime could and should be compensated by the other.⁸²

There has been much academic interest as to the question of the applicability of human rights treaties to the West Bank; however, it appears to have little if any practical importance. Israel accepts that customary humanitarian law including basic human rights rules apply wherever its armed forces act. Israel in practice reports to the Human Rights Committee on its activities in the West Bank. The only issue at dispute is, in fact, whether formally the mandate of the Human Rights Committee includes the West Bank.

19.12 Concluding Remarks

The legal status of the West Bank remains one of the core issues of controversy in the Arab-Israeli dispute. The areas of the West Bank and Gaza were an integral part of Palestine under the Ottoman regime and under the British Mandate. After the 1948 War, the Gaza Strip came under Egyptian control and the West Bank under the control of Jordan. At that time, these areas acquired their separate nomenclature and their territorial boundaries. Both areas came under Israeli control after the 1967 War. The Israeli legal position as to the status of these territories was that they were not the territories of a foreign state; hence, legally Israel did not have to apply the IVth Geneva Convention insofar as it applied to occupied territories of enemy States. Nevertheless, Israel undertook to apply the humanitarian provisions of the Convention. Israel unilaterally withdrew its armed forces and civilians from the Gaza Strip.

The majority of the population of the West Bank are Arab Palestinians who, under international law, have a right of self-determination. The 1947 UN Partition Plan recommended that the West Bank be part of an Arab state. The 1922 League of Nations Mandate, however, promised the Jewish people the right to create a Jewish National Home in Palestine, which at the time, included the West Bank. Israel and the PLO have agreed to negotiate the future status of the West Bank. Israel and the PLO agreed, as an interim step, to create a Palestinian Authority with limited

⁸² Orna Ben-Nafatli and Yuval Shany, 'Living in Denial: The Application of Human Rights in the Occupied Territories', *Isr. L. Rev.*, 37, no. 1 (Spring 2003), pp. 100, 103.

powers. The majority of the Arab population of the West Bank are under the jurisdiction of this Palestinian Authority; however, the major part of the territory of the West Bank, including all Israeli settlements remain under Israeli military administration. To date, the parties have not yet managed to agree on what will be the final status of the West Bank.⁸³

⁸³ The issue of Israel settlements is dealt with in Chapter 20.

Israeli Settlements in the West Bank

Intrinsically linked to the question of the legal status of the West Bank is the issue of the legality of Israel settlements. The first Israelis to live in the West Bank, after 1967, did so on their own volition, often against the policy of the Israel government. Over the years, however, the Israeli government has encouraged Israelis to move from Israel into the area of the West Bank and settle on uninhabited lands that were either State lands or wastelands. It is estimated that some 450,000 Israeli nationals now reside in 150 settlements in the West Bank.¹ Some Israelis have settled on uninhabited lands that local Arab Palestinians claimed as their private property. Where such settlements are on privately owned land, the Israeli government regards them as illegal but has not always acted to evict the settlers.

20.1 Arguments That Israeli Settlements in the West Bank Are Illegal

The argument advanced that settlements are illegal is based on the premise that the laws of belligerent occupation apply to the Israeli administration in the West Bank. The laws of belligerent occupation include those set out in the IVth Geneva Convention.² Israel is a party to the IVth Geneva Convention and the Convention is widely considered to be customary law which would bind Israel even if she was not a party. Article 49 of the IVth Geneva Convention states: 'The Occupying Power shall not deport or transfer parts of its own civilian population into the territory it occupies.' The ICRC Commentary on this clause reads as follows:

¹ <http://myesha.org.il/?CategoryID=335&ArticleID=9165> (In Hebrew).

² Convention (IV) relative to the Protection of Civilian Persons in Time of War, Geneva, 12 August 1949.

This clause was adopted after some hesitation, by the XVIIth International Red Cross Conference. It is intended to prevent a practice adopted during the Second World War by certain Powers, which transferred portions of their own population to occupied territory for political and racial reasons or in order, as they claimed, to colonize those territories. Such transfers worsened the economic situation of the native population and endangered their separate existence as a race.³

The ICRC Manual on customary law concludes, ‘State practice establishes this rule as a norm of customary international law applicable in international armed conflicts’.⁴ It can be argued that by encouraging, subsidising and providing security to the settlements, Israel is indirectly transferring part of its own civilian population into the West Bank. The Statute of the International Criminal Court, at the initiative of the Arab States, defines as a war crime, within the jurisdiction of the Court, ‘the transfer, directly or *indirectly*, by the Occupying Power of parts of its own civilian population into the territory it occupies’.⁵ The question of Jordanian sovereignty, it is argued, is irrelevant since Article 49 deals with humanitarian issues.⁶ Benvenisti argues that the ‘purpose of the Article [49] must be to protect the interests of the occupied population – the protected persons – rather than the population of the occupant, and therefore whether or not the settlers move freely to the occupied territory is beside the point’.⁷ It can be further argued that it is the deliberate aim of the Israeli government to transfer population ‘for political reasons’ and ‘to colonize’ the West Bank, as is described in the Commentary of the ICRC.

Some of the settlements have been built on privately owned Arab land, an act that is clearly illegal and is regarded by the Israeli government as illegal. The Israeli government has not condoned such settlements but has often refrained from forcibly evicting the settlers.

It has been argued that even the use of public lands for settlements is an abuse of the obligations of the occupier under the laws of occupation

³ <https://ihl-databases.icrc.org/applic/ihl/ihl.nsf/Comment.xsp?action=openDocument&documentId=523BA38706C71588C12563CD0042C407>.

⁴ Jean-Marie Henckaerts and Louise Doswald-Beck, *International Committee of the Red Cross, Customary International Humanitarian Law* (2009), vol. I: Rules, Rule 130.

⁵ Article 8(b)(viii) of the 1998 Rome Statute of the International Criminal Court, 37 ILM (1998) 999. Emphasis added.

⁶ Article 6, *Convention (IV) relative to the Protection of Civilian Persons in Time of War*, Geneva, 12 August 1949, lists humanitarian clauses that continue to apply after the general close of military operations. Article 49 is included in the list.

⁷ Eyal Benvenisti, *The International Law of Occupation* (2nd ed. 2012), p. 240.

since 'the occupying State shall be regarded only as the administrator and usufructuary of public buildings, real estate'.⁸

Meron, the legal advisor to the Israel Ministry of Foreign Affairs in a 1967 confidential legal opinion, reached the conclusion that settlements would be illegal.⁹ The Israeli Courts have not ruled on the question of the legality of settlements. Kretzmer and Ronen comment, 'it has become the accepted position of the Court that the legality of the settlement policy of the government is non-justiciable',¹⁰ they summarise the settlement issue as follows:

According to the international law of belligerent occupation, the political status quo of occupied territories must be maintained so that their ultimate fate can be determined by political negotiation. In contrast, the political aim of settlements is to create facts that will predetermine the outcome of any negotiations by making Israeli withdrawal from the settled parts of the Territories politically unfeasible.¹¹

The majority of States consider that the settlements are illegal. The UN Security Council resolved, in 2016:

The establishment by Israel of settlements in the Palestinian territory occupied since 1967, including East Jerusalem, has no legal validity and constitutes a flagrant violation under international law and a major obstacle to the achievement of the two-State solution and a just, lasting and comprehensive peace.¹²

The US view, in the past, was also that the settlements were illegal.¹³ In 1978, the State Department legal adviser, Hansell, gave his opinion that 'the establishment of civilian settlements in those territories is inconsistent with international law'.¹⁴ The International Court of Justice in the

⁸ Convention (IV) Respecting the Laws and Customs of War on Land, 1907, Annex, Article 55; Adam Roberts and Richard Guelff, *Documents on the Laws of War* (3rd ed. 2000), p. 82.

⁹ Internal legal opinion of Theodor Meron 14 September 1967. www.soas.ac.uk/lawpeace/mideast/resources.

¹⁰ David Kretzmer and Yaël Ronen, *The Occupation of Justice: The Supreme Court of Israel and the Occupied Territories* (2nd ed. 2021), p. 179.

¹¹ *Ibid.*, p. 36.

¹² UN Security Council Resolution 2334, UN Doc. S/RES/2334 (2016).

¹³ Statement of US Secretary of State Dean Rusk, 8 April 1968, Jewish Virtual Library, quoted from Martin Blecher, *Israeli Settlements: Land Politics beyond the Geneva Convention* (2018), p. 118 n. 10.

¹⁴ US Congress, House of Representatives (95th Congress, 1st Session), Committee on International Relations, Committee Print, *Israeli Settlements in the Occupied*

Wall Case also reached the conclusion that ‘the Israeli settlements in the Occupied Palestinian Territory (including East Jerusalem) have been established in breach of international law’.¹⁵

20.2 Arguments That Israeli Settlements in the West Bank Are Legal

The Israeli government position is that the IVth Geneva Convention (The Convention)¹⁶ does not apply to the West Bank, as it is not the occupied territory of another State. The idea that the occupier must safeguard the rights of the previous sovereign is central to the laws of occupation. Benvenisti writes, ‘from the principle of the inalienability of sovereignty over a territory spring the constraints that international law imposes on the occupant’.¹⁷ There is in the West Bank no former sovereign whose rights must be maintained. The area was under Jordanian control for twenty years, but Jordan was not a legitimate sovereign in the West Bank. Since 1988, Jordan has renounced any claim to the West Bank, in favour of the Arab Palestinians. There may be a Palestinian State in the West Bank in the future, but Israel certainly did not occupy a Palestinian State in 1967. The West Bank is a part of Mandatory Palestine whose sovereignty has not yet been resolved. The status of the West Bank needs to be resolved by negotiations between the Arab Palestinian population and Israel.

Even if the Convention is considered to be applicable, Article 49 of the Convention does not prevent Israeli citizens from living there, as can citizens of other States. Israel neither transfers or deports its citizens to the West Bank but allows them to move there voluntarily and provides them with the support it provides for all its citizens. Eugene V. Rostow, a former dean of Yale Law School and under secretary of state writes:

The Jewish settlers in the West Bank are most emphatically volunteers. They have not been ‘deported’ or ‘transferred’ to the area by the Government of Israel, and their movement involves none of the atrocious

Territories, Hearings before the Subcommittees on International Organizations and on Europe and the Middle East (1978), appendix, pp. 167–172.

¹⁵ *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, Advisory Opinion, I.C.J. Reports 2004, p. 136, para. 120.

¹⁶ [Convention \(IV\) Relative to the Protection of Civilian Persons in Time of War](#), Geneva, 12 August 1949.

¹⁷ Benvenisti, *The International Law of Occupation*, pp. 5, 6.

purposes or harmful effects on the existing population it is the goal of the Geneva Convention to prevent.¹⁸

It is not a logical interpretation of international law that would allow citizens of all States to live in the West Bank but for it to be a war crime to allow Israeli citizens to do so. The Statute of the International Criminal Court, at the initiative of the Arab States, did define as a war crime, 'the transfer, directly or *indirectly*, by the Occupying Power of parts of its own civilian population into the territory it occupies'.¹⁹ The phrase *indirect* does not, however, appear in the IVth Geneva Convention nor in the 1977 Protocol I to the Geneva Conventions. It is not part of customary law and has no binding status for Israel. Furthermore, under the Convention, Article 49 is not included in the list of 'grave crimes' for which individuals should be prosecuted.²⁰ Article 49 was added to the list of grave crimes in the 1977 Protocol I, at the instigation of Arab States.²¹ Israel is not a party to Protocol I. That the Convention itself does not list transfer of population as a grave crime may be explained by the fact that allowing the movement of population into an occupied territory is perhaps the only violation of the Convention that does not refer to behaviour that is intrinsically criminal. Its legality, or not, depends only on the political question of who is sovereign of the territory involved.

Jews lived for centuries in Hebron in the West Bank until they were forced to leave in 1929 because of Arab murderous riots against them. The Jews who returned now to Hebron in fact returned to Jewish owned property.

The League of Nations 1922 Mandate for Palestine included the West Bank in the area in which the Jewish National Home was to be established. Accordingly, the British Mandate authorities allowed the creation of Jewish settlements in the West Bank. Only in 1939, under Arab pressure, did the British Authorities limit the right of Jews to purchase land for settlement in the West Bank. These Jewish settlements, established in the West Bank during the British Mandate, were destroyed by

¹⁸ AJIL, 84 (1990), p. 719.

¹⁹ Article 8(b)(viii) of the 1998 Rome Statute of the International Criminal Court, 37 ILM (1998) 999 (Emphasis added).

²⁰ Articles 146, 147, Convention (IV) Relative to the Protection of Civilian Persons in Time of War, Geneva, 12 August 1949.

²¹ Article 85(4)(a) Protocol Additional to the Geneva Conventions of 12 August 1949 and Relating to the Protection of Victims of International Armed Conflicts (Protocol I) of 8 June 1977.

Jordan when it seized control of the West Bank in 1948. Some of the settlers in fact returned to settlements from which they had been expelled by Jordan in 1948.²²

The 1922 League of Nations Mandate called for ‘close settlement by Jews on the land, including State lands and wastelands not required for public purposes’.²³ The overwhelming number of settlements have been on such State land and wasteland. Israel government policy prohibits the establishment of settlements on privately Arab owned land unless the land was sold voluntarily, and the sale was done in good faith. Those settlements that have been created by settlers on privately owned Arab, that were not sold in such a manner, are considered illegal settlements by the Israeli government. Where possible, the government has evicted such settlers.²⁴

N. Rostow writes that Article 49 of the Convention is not relevant to Israeli settlements as it was drafted in response to ‘the Nazi experience and is directed at transfer of large populations into occupied territory intended to colonize territories so as to endanger the economic situation or separate existence of the existing population’.²⁵ Baker writes:

Historically, during the period of the Second World War, over 40 million people were subjected to forced migration, evacuation, displacement, and expulsion, including 15 million Germans, five million Soviet citizens, and millions of Poles, Czechs, Ukrainians and Hungarians. The vast numbers of people affected and the aims and purposes behind such a population movement speak for themselves. Realistically, there is nothing to link such circumstances to Israel’s settlement policy.²⁶

No settlement on the West Bank has been created on the site of an inhabited Arab village, and no Arab Palestinian has been evicted or lost his habitation because of the creation of a settlement. Kontorovich points

²² Notably settlements in the Gush Etzion Block near Bethlehem.

²³ Article 6 Palestine Mandate, http://avalon.law.yale.edu/20th_century/palmanda.asp#art6.

²⁴ The leading case where this was decided was the *Allon Moreh* case HCJ 390/79 *Dweikat v. Government of Israel* (Judgment of October 22, 1979). In certain cases, it has not been possible to evict settlers who purchased property in good faith through transactions that later proved to be illegal. In such cases, the Arab owners are compensated for the full value of the property.

²⁵ Nicholas Rostow, ‘Are the Settlements Illegal?’, *American Interest*, 5, no. 4 (1 March 2010), n.p.

²⁶ Alan Baker, ‘International Humanitarian Law, ICRC and Israel’s Status in the Territories’, *International Review of the Red Cross*, 94, no. 888 (Winter 2012), p. 1517.

out that Article 49 does not appear to have been invoked by the international community in any other analogous situation.²⁷

Under any interpretation of Article 49, the individual settlers are not committing an offence. The Article deals with the behaviour of the State concerned and does not apply criminality to the individuals settling in the West Bank.

The 'Oslo' Accords signed between the Palestine Liberation Organisation (PLO) and Israel stipulated that, during the interim period, Israeli settlements would not be within the jurisdiction of the Palestinian Authority but their status would be negotiated as a final status issue.²⁸ Thus, the PLO was aware of the settlements, and there was no stipulation about removing them or prohibiting the creation of new settlements. Furthermore, the agreement concerning the Gaza Strip and Jericho area explicitly states the following:

The Palestinian side shall take all measures necessary to prevent such hostile acts directed against the Settlements, the infrastructure serving them and the Military Installation Area, and the Israeli side shall take all measures necessary to prevent such hostile acts emanating from the Settlements and directed against Palestinians.²⁹

It can be argued that international condemnation of settlements has been on political grounds and without examining the legal issues. In 1981, President Reagan changed previous US government policy and announced that in his opinion the settlements were not illegal.³⁰ The Reagan administration continued to declare that the settlements were an obstacle to the peace process but refrained thereafter from stating an opinion as to their legality. At a press conference on 18 November 2019, US Secretary of State Mike Pompeo announced a change in US policy regarding the legality of the Israeli settlements, emphasising that it

²⁷ Eugene Kontorovich, 'Unsettled: A Global Study of Settlements In Occupied Territories', *Journal of Legal Analysis*, 9, no. 2 (Winter 2017), pp. 285–350, <https://doi.org/10.1093/jla/lax004>.

²⁸ Declaration of Principles on Interim Self-Government Arrangements, 32 ILM 1525 (1993), Articles IV, V(3).

²⁹ Article XVIII, Israeli–Palestinian Interim Agreement on the West Bank and Gaza Strip, 1995.

Agreement on the Gaza Strip and the Jericho Area May 4, 1994, Article III(1), <https://mfa.gov.il/mfa/foreignpolicy/peace/guide/pages/agreement%20on%20gaza%20strip%20and%20jericho%20area.aspx>.

³⁰ Quoted in a *New York Times* article, www.nytimes.com/1983/08/25/us/state-department-about-the-west-bank-and-the-emperor-s-clothes.html.

constitutes a reversal of the Obama administration approach. The new policy holds that 'the establishment of Israeli civilian settlements in the West Bank is not, per se, inconsistent with international law', the reference to an obstacle to peace was eliminated.³¹

20.3 Separate Legal System and Separate Roads for Settlers

Israel has not applied Israeli law to the West Bank, and the applicable law in the West Bank remains Jordanian law with the addition of military regulations issued by the military commander. Nevertheless, Israeli settlers are personally subject to Israeli law. The rationale for this is that the ties of the Israeli settlers are with Israeli society. Their educational, social, fiscal and legal ties are all intrinsically Israeli. For example, it would not be reasonable for the Israeli settlers to be exempt from Israeli tax regulations and compulsory army service or subject to the Jordanian educational system with Arabic the language of instruction.

The two separate legal systems allow the local Arab population to continue with the existing Jordanian Arab legal system. In accordance with international law, temporary military administration is the norm to be applied to territories that are not under the sovereignty of a State. Since the 'Oslo' agreements,³² the vast majority of the Arab population in the West Bank are under the jurisdiction the Palestinian Authority and no longer under Israeli administration. Any attempt to apply Israeli law to the few local Palestinians who are still under Israeli military administration would presumably be denounced as annexation and be met by vehement world opposition. Israel is damned if it does and damned if it does not.

Israel has built a network of roads in the West Bank that connect the Israeli settlements without going through Arab villages. Prime Minister Rabin, in 1995, explained this policy: 'Bypass roads will be built, whose purpose will be to enable Israeli residents to move about without having to pass through Palestinian population centres in places which will be transferred to the responsibility of the Palestinian Authority.'³³ Some of these roads are closed to local Palestinian traffic. The building of these

³¹ <https://il.usembassy.gov/secretary-pompeo-comments-on-israeli-civilian-settlement-activity/>.

³² See Chapter 16.

³³ Speech by Prime Minister Yitzhak Rabin at the Knesset on ratifying the Interim Agreement, Jerusalem, 5 October 1995, www.un.org/unispal/wp-content/uploads/1995/10/Developments_Peace-process-review_-October-1994-October-1995.pdf.

roads has been harshly criticised on the grounds that it is 'a racially-segregated, militarily-controlled road system'. It will 'prejudice the outcome of the Permanent Status Negotiations because they structurally divide the Palestinian areas and connect the Israeli settlements, ensuring the permanence of the settlements'. They 'impede the economy of the Palestinians' and 'restrict Palestinian movement'.³⁴ The Israeli justification for building these roads is that they are to ensure the safety of the settlers from terrorist attacks, and there have been many such attacks. Separate roads can prevent friction between traffic to the settlements and the local Arab population. Israel argues that there is no element of 'racial segregation' but only a security measure and, for instance, Arab citizens of Israel are free to use these roads. It is questionable how many of them do so in fact.

20.4 Concluding Remarks

The issue of settlements in the West Bank is controversial in the international community as well as within Israeli society. Although it is debatable whether they are illegal under international law, it is, however, clear that continued settlement activity is making it harder to achieve agreement on a separate independent Palestinian State or entity in the West Bank.

Presumably, the issue of Israeli settlements will only be resolved if Israel and the Arab Palestinians in the West Bank can agree on a boundary between them. If such a boundary is fixed, any Israeli settlement on the Palestinian side can only continue to exist with the agreement of the Palestinians. The issue is one of boundaries between Israel and a future Palestinian entity or State. It is not an Apartheid system of a minority controlling a majority but a border dispute that, hopefully, will be negotiated peacefully in the future.

³⁴ Samira Shah, 'On the Road to Apartheid: The Bypass Road Network in the West Bank', quoted in Victor Kattan, ed. *The Palestine Question in International Law* (2008) pp. 472, 490, 401.

Controversial Elements of Military Administration

21.1 The Right of an 'Occupied' People to Use Force against the Occupier

The reality is that in the Middle East, as elsewhere in the world, a State is unlikely to voluntarily cede control of territory in which it has an interest. If Britain had not faced armed opposition in Kenya, Cyprus and Palestine, it is possible that they might still be controlling those territories. If Israel had not faced armed opposition in the Gaza Strip, it is possible that Israeli Prime Minister Sharon would not have instituted unilateral Israeli disengagement from the Strip. Shwisher writes:

From the Palestinian perspective, the right to resist a belligerent occupation is guaranteed under the Fourth Geneva Convention's non-derogable First Additional Protocol. According to their view—a view shared by many in the international community—customary international law precludes an occupying or occupied power from signing away these rights under any circumstances. Thus, though Oslo might have suggested otherwise, as far as many Palestinians were concerned, the right to resist occupation was never Arafat's to surrender.¹

In response, it can be argued that the First Protocol to the Geneva Conventions applies the laws of war to people fighting against 'alien-occupation' but nowhere does it grant a right to use force, and neither the United States nor Israel is party to the Protocol. The UN Charter only permits use of force in self-defence. Even if there were such a right, clearly the people involved, in this case the PLO as representative of the Palestinian people, can agree to stop fighting. International law prohibits the use of force by States in international relations except in cases of self-defence or with the authorisation of the UN Security Council.² This rule

¹ Clayton E. Swisher, *The Truth about Camp David: The Untold Story about the Collapse of the Middle East Peace Process* (2004), p. 142.

² Article (4)2 of the Charter. It is nowadays accepted that the rule reflects customary law.

applies, however, explicitly to States. Classic international law did not attempt to legitimise or regulate the use of force by non-State actors but limited itself to applying minimum rules of humanitarian law in internal armed conflicts.³ Dinstein writes, 'there is a widespread conviction that the civilian population in an occupied territory has a right to forcibly resist the Occupying Power. This is a misconception. International law, as such, does not penalize these acts. But it refrains from shielding perpetrators from the sanctions imposed on them by the security legislation of the Occupying Power'.⁴ Notwithstanding this, in 1982, the UN General Assembly would seem to have approved Palestinians' use of force against Israel. The UN General Assembly resolved:

*Considering that the denial of the inalienable rights of the Palestinian people to self-determination, sovereignty, independence and return to Palestine and the repeated acts of aggression by Israel against the peoples of the region constitute a serious threat to international peace and security, Reaffirms the legitimacy of the struggle of peoples for independence, territorial integrity, national unity and liberation from colonial and foreign domination and foreign occupation by all available means, including armed struggle.*⁵

Melanaczuk makes the point that by signing the Oslo Accords,⁶

the PLO, in renouncing terrorism and the use of force (between which a definite line is not always easily drawn) the PLO has rendered moot the controversial issue of the extent to which international law and the principle of self-determination permits and the intervention by third states in support of such wars. The PLO has agreed to pursue its goal of independent statehood through peaceful negotiations and thereby renounced, with legally binding effect, any right it may or may not have had to use the methods it employed in the past.⁷

The 1977 Protocol I to the 1949 Geneva Conventions categorised as international armed conflicts those 'armed conflicts in which peoples

³ The *Martens* clause, Common Article 3 to the 1949 Geneva Conventions and 1977 Protocol II to the 1949 Geneva Conventions.

⁴ Yoram Dinstein, *The International Law of Belligerent Occupation* (2009), pp. 94, 95.

⁵ UN Doc. A/RES/37/433, December 1982: 'Importance of the universal realization of the right of peoples to self-determination and of the speedy granting of independence to colonial countries and peoples for the effective guarantee and observance of human rights' (Emphasis added).

⁶ See Chapter 15.

⁷ Peter Malanczuk, 'Some Basic Aspects of the Agreements between Israel and the PLO from the Perspective of International Law', *EJIL* 7 (1996), pp. 485, 492.

are fighting against colonial domination and alien occupation and against racist régimes in the exercise of their right of self-determination'.⁸ Protocol I also grants POW status to such persons fighting for self-determination, if they fulfil certain conditions.⁹ The phrase 'alien occupation' was intended to apply to the West Bank and Gaza under Israeli rule. Israel is not a party to Protocol I. The ICRC refrains from stating that granting POW status to such persons is a customary rule, a statement they make as regards most of the other rules in Protocol I.¹⁰ No State is on record as granting POW status to such irregular combatants.

Residents of the West Bank and Gaza who, as an act of resistance to Israel, use violence against Israeli armed forces or civilians are subjected to criminal proceedings and not granted POW status. There does not appear to have been any significant claim that this is a violation of international law. Israeli practice, like that of other States, makes no distinction whether such an attack was directed at civilians or combatants. It might be argued that such a distinction should be made in the future, but neither international law nor State practice, at present, makes such a distinction.

21.2 Security Measures in Occupied Territories

Israel refrained from applying the death penalty although it was part of Jordanian law and had been applied both by the British Mandate authorities and by the Jordanian government. A number of security measures that Israel applied to the West Bank and Gaza, however, aroused controversy as to whether they were violations of the laws of belligerent occupation.

21.2.1 *Demolition of Houses*

This very controversial measure is applied by Israel in the West Bank as an administrative penalty.¹¹ The IVth Geneva Convention prohibits

⁸ Protocol Additional to the Geneva Conventions of 12 August 1949 and Relating to the Protection of Victims of International Armed Conflicts (Protocol I), of 8 June 1977, Article 1(4).

⁹ Ibid., Articles 43 and 44.

¹⁰ Jean-Marie Henckaerts and Louise Doswald-Beck, *International Committee of the Red Cross, Customary International Humanitarian Law* (2009), vol. I, Rules, Rule 106: Resistance and liberation movements.

¹¹ The demolitions are in accordance with Section 119(a) of the 1945 Defence Emergency Regulations (as amended).

destruction of property 'except where such destruction is rendered absolutely necessary by military operations'.¹² The measure is applied in cases where violence was used, usually by the use of firearms and explosives, and where there was 'a link' between the building and the commission of the offence. It is used 'only in very exceptional circumstances as dictated by compelling security requirements'¹³ and generally only where terrorist acts have resulted in the murder of innocent people.¹⁴ The demolitions are legally authorised as part of British Mandatory Law that remained in force after 1948 in Israel, Jordan and the Gaza Strip. Israeli military experts claim that it is an effective deterrent against acts of terrorism, and it does not contravene the Convention since it is a matter of military necessity to deter acts of terrorism. Dinstein disputes this and argues that military necessity only refers to combat situations, 'in the post-combat stage, the law governing the situation undergoes a profound transformation, and a house surviving combat is no longer susceptible to deliberate destruction'.¹⁵ It could be argued that in addition to the prohibition against destruction of property, destruction of houses is prohibited as it is an act of collective punishment against the family of the perpetrator. In order to avoid punishing such an innocent family, the military commanders, where possible, order to destroy or seal only the actual rooms used by the perpetrator. If harm to the residence of the family is unavoidable, the commanders must take into consideration whether the family participated, in any way, in the criminal act. In a 2020 decision, the Israeli Supreme Court sitting as a High Court of Justice reaffirmed that when there is a likelihood of adverse effect on the family, the commander must evaluate whether the family was in any way a party to the offence or acquiesced in it. In the particular case, the Court found that the family was not party to the offence, and the Court forbade the destruction of the house.¹⁶ In a later 2020 decision, the High Court

¹² Article 53, Convention (IV) relative to the Protection of Civilian Persons in Time of War, Geneva, 12 August 1949.

¹³ David Yahav, Uzi Amit-Kohn and Caroline B. Glick, eds. *Israel, the 'Intifada' and the Rule of Law* (1993), p. 142.

¹⁴ *The Rule of Law in the Areas Administered by Israel*, Israel National Section of the International Commission of Jurists (1981), p. 70.

¹⁵ Yoram Dinstei, *The International Law of Belligerent Occupation* (2009), p. 205.

¹⁶ *Abu Bechar et al v. The Military Commander of the West Bank and the Minister of Defence*, HCJ 4853/20 majority decision of 21.7.2020. A request for a rehearing was denied on the grounds that no new legal principle was involved. *Commander of Judea and Samaria and Minister of Defence v. Abu Bechar et al*, S.C. 5924/20, decision of 8.10.20.

decided that the importance of deterrence takes precedence over the fact that the family of the perpetrator will be affected even though they were not complicit in the criminal act.¹⁷

21.2.2 *Deportation and Curfew*

Article 49 of the Convention stipulates:

Individual or mass forcible transfers, as well as deportations of protected persons from occupied territory to the territory of the Occupying Power or to that of any other country, occupied or not, are prohibited, regardless of their motive.

The Emergency Regulations allow the military commander to deport individuals for reasons of security.¹⁸ The Israeli High Court of Justice, in a majority opinion, held that Article 49 of the Convention prohibits mass population deportation and not the deportation of a few individuals, where those individuals pose a threat to the security of the area. Justice Bach, in a dissenting opinion, stated that the language of Article 49 was unambiguous, and it prohibited individual deportations not only mass deportations.¹⁹ A further High Court ruling was that deportees are entitled to a prior hearing before deportation.²⁰ In the past, sparing use was made of this regulation, and there have been no deportations in more than twenty years.

If, in an occupied territory, a curfew is imposed as a collective punishment it contravenes the Hague Regulations and the IVth Geneva Convention.²¹ Dinstein, however, writes, ‘as long as a curfew is directly associated with the exigencies of a specific security situation, there is nothing legally wrong with it’.²²

¹⁷ *Davikat et al v. The Military Commander of the West Bank and the Minister of Defence*, HCJ 6826/20 majority decision of 12 October 2020.

¹⁸ Regulation 112 of the 1945 Defence Emergency Regulations (as amended). They are part of British Mandatory Law that remained in force after 1948 in Israel, Jordan and the Gaza Strip.

¹⁹ H.C.J 785/87, 27/88 *Affu et al v. The Commander of the IDF Forces in the West Bank*, 42 (2) P.D. (1988).

²⁰ HCJ 5973/92 *The Association for Civil Rights in Israel v. The Minister of Defence et al.*

²¹ Regulation 50, Hague Regulations Respecting the Laws and Customs of War on Land, Annexed to Hague Convention IV, 1907; Adam Roberts and Richard Guelff, *Documents on the Laws of War* (3rd ed. 2000), p. 81; Article 33, [Convention \(IV\) relative to the Protection of Civilian Persons in Time of War, Geneva, 12 August 1949](#).

²² Yoram Dinstein, *The International Law of Belligerent Occupation* (2009), p. 155.

21.2.3 *Administrative Detention*

Administrative detention is used where there is clear evidence that a suspect has committed a violent crime or intends to commit such a crime but cannot be brought to trial because the evidence relies on intelligence that cannot be revealed to the suspect. The Geneva Convention allows the occupying power to subject residents of an occupied territory to administrative detention if it is necessary 'for imperative reasons of security'. Such detention 'shall be subject to periodical review, if possible, every six months by a competent body'.²³ Under the Israeli military administration, a legally qualified military judge hears appeals against administrative detention. Such review is mandatory in all cases in which detention was ordered for a period exceeding six months. In the review, the onus is on the military government to prove that the detention is still necessary,²⁴ and the judge has access to all the evidence including intelligence material.²⁵

21.3 Separation Barrier (Wall)

Israel built a barrier separating the West Bank from Israel. The first contiguous section was completed in 2003. Parts of the barrier go through the territory of the West Bank. Where the route of the barrier diverges from the 1949 Armistice Line, it was, in most cases, in order to incorporate Israeli settlements and East Jerusalem on the Israeli side of the barrier. The barrier, for the most part, consists of a fence, but in urban areas, it is a wall. The barrier contains sensors that can detect movement but does not contain any measures to physically harm persons crossing it. The UN General Assembly requested an advisory opinion from the ICJ on the question of the 'Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory'. The Court gave its opinion, inter alia, that the construction of the barrier on the territory of the West Bank, violated the human rights of the local population and was illegal. The Court was of the opinion that the right of self-defence, in accordance with Article 51 of the Charter, arises only in the case of an attack by a foreign State. The Court held that Israel could

²³ Article 78, Convention (IV) relative to the Protection of Civilian Persons in Time of War, Geneva, 12 August 1949.

²⁴ Israel HCJ 466/86, *Abu Bakr v. Judge of the Military Court in Shechem*, 40 (34) PD 843, 853.

²⁵ Israel HCJ 4400/98 *Braham v. Legally Qualified Judge et al*, PD 337, 341, 342.

not justify the barrier as an act of self-defence since terrorist acts, which it was intended to prevent, emanated from within the occupied territory and not from the territory of a foreign State.²⁶ Scobbie and Hibbin support the opinion of the Court and write that once Geneva Convention IV is applicable, 'the time when self-defense could be invoked has passed: the resort to force has already occurred, and the situation is now governed by the different regime'.²⁷ The decision of the Court has been subject to considerable criticism, particularly on the grounds that it limits the right of self-defence and that the Court did not attempt to address the issue of Israel's security.²⁸ The Court ignored the possibility that in an occupied territory the security situation may be such that a State has to act in self-defence and that such actions can even trigger the legal regime of armed conflict. In a subsequent case in the Israeli High Court, the Court examined the route of the barrier on the basis of proportionality, reaching the conclusion that in parts of the route, the harm to the population was disproportionate to the security advantage. The Court, accordingly, ordered parts of the barrier to be moved, and the Israeli government complied with the order.²⁹ The barrier has considerably reduced the ability of terrorists to move vehicles with explosives into Israeli territory.

21.4 Concluding Remarks

Military administration is the norm international law applies to territories that are not under the sovereignty of a State. Nevertheless, military government, by its nature, denies the local population the democratic right to choose their own form of government, and it is, therefore, intrinsically a temporary situation. Some 90 per cent of the Arab population on the West Bank are now under the jurisdiction of the Palestinian Authority but, nevertheless, the fact that there are still parts of the West

²⁶ *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, Advisory Opinion, ICJ Reports, 2004, para. 139.

²⁷ Ian Scobbie with Sarah Hibbin, *The Israel-Palestine Conflict in International Law: Territorial Issues* (2009), p. 108.

²⁸ See, for example, Yoram Dinstein, *The International Law of Belligerent Occupation* (2009), p. 254.

²⁹ HCJ 7957/04, *Mara'abe et al v. Prime Minister of Israel et al*, English translation, 45 ILM 202 (2006).

Bank under Israeli military administration, some sixty years after the June 1967 War, is anomalous. It should be hoped that a solution will be found that allows the remaining 10 per cent of the local Arab population full democratic rights. Such a solution will need to be negotiated between Israel and the Palestinians.

Freedom of Navigation through International Waterways in the Region

22.1 Freedom of Navigation through the Suez Canal

22.1.1 The Legal Background to Right of Navigation through the Canal

The Suez Canal connects the Mediterranean with the Red Sea. Its length is some 193 kilometers and throughout its entire length it goes through Egyptian territory. In accordance with international law, 'canals are in principle subject to the territorial sovereignty and jurisdiction of the state or states which they separate or traverse'.¹ Such canals are considered internal waters with no rights of navigation to foreign vessels unless the territorial State agrees to a special regime. In the case of the Suez Canal, Turkey, which at the time ruled Egypt, agreed in the 1888 Constantinople Convention to apply a special regime to the Suez Canal. The clauses of the Constantinople Convention relevant to freedom of passage are as follows:

Article 1

The Suez Maritime Canal shall always be free and of commerce or of war, without distinction of flag. Consequently, the High Contracting Parties agree not in any way to interfere with the free use of the Canal, in time of war as in time of peace. The Canal shall never be subjected to the exercise of the right of blockade.

Article 4

The Maritime Canal remaining open in time of war as a free passage, even to ships of war of belligerents, according to the terms of Article I of the present Treaty, the High Contracting Parties agree that no right of war, no act of hostility, nor any act having for its object to obstruct the free navigating of the Canal, shall be committed in the Canal and its ports, even though the Ottoman Empire should be one of the belligerent Powers.

¹ James Crawford, *Brownlie's Principles of Public International Law* (9th ed. 2019), p. 325.

Article 9

The Egyptian Government shall, within the limit of its powers resulting from the Firmans, and under the conditions provided for in the present Treaty, take the necessary measures for insuring the execution of the said Treaty.

Article 10

Similarly, the provisions of Articles 4, 5, 7 and 8, shall not interfere with the measures which His Majesty the Sultan and His Highness the Khedive, in the name of His Imperial Majesty, and within the limits of the Firmans granted, might find it necessary to take for securing by their own forces the defense of Egypt and the maintenance of public order.

Article 11

The measures which shall be taken in the cases provided for by Article 9 and 10 of the present Treaty shall not interfere with the free use of the Canal.²

From 1923 until 1954, Britain, as the *de facto* sovereign of the Suez Canal, succeeded to the rights and obligations Turkey had under the Constantinople agreement.³ In a 1954 agreement, Egypt and Great Britain agreed to the following:

The two Contracting Governments recognise that the Suez Maritime Canal, which is an integral part of Egypt, is a waterway economically, commercially and strategically of international importance, and express the determination to uphold the Convention guaranteeing the freedom of navigation of the Canal signed at Constantinople on the 29th of October, 1888.⁴

On 26 July 1956, Egypt nationalised the Suez Canal Company but did not repudiate the international status of the Canal. Subsequently, Britain and France introduced a Security Council resolution:

- (1) There should be free and open transit through the Canal without discrimination, overt or covert -this covers both political and technical aspects;

² Convention Respecting the Free Navigation of the Suez Canal, 29 October 188. The parties to the Convention were Turkey, Great Britain, Austria-Hungary, France, Germany, Holland, Italy, Spain and Russia. AJIL, 3, no. S2 (Supplement Official Documents, April 1909), pp. 123–127.

³ The treaty of Lausanne 1923. The Treaty of Alliance between Egypt and Great Britain 1936.

⁴ Egypt and United Kingdom of Great Britain and Northern Ireland: Agreement (with annexes and appendices). Signed at Cairo, on 19 October 1954 No. 2833 UNTS 210, pp. 3–61, Article 8.

- (2) The sovereignty of Egypt should be respected;
- (3) The operation of the Canal should be insulated from the politics of any country.⁵

After the 1956 Suez crisis, where Britain and France seized the Canal and then withdrew, Egypt made a public unilateral declaration, which contained the following provisions:

Reaffirmation of Convention

It remains the unaltered policy and firm purpose of the Government of Egypt to respect the terms and the spirit of the Constantinople Convention of 1888 and the rights and obligations arising therefrom. The Government of Egypt will continue to respect, observe and implement them.

Freedom of Navigation, Tolls, and Development of the Canal

The Government of Egypt are more particularly determined:

To afford and maintain free and uninterrupted navigation for all nations within the limits of and in accordance with the provisions of the Constantinople Convention of 1888.

This Declaration, with the obligations therein, constitutes an international instrument and. will be deposited and. registered with the Secretariat of the United Nations.⁶

Egypt further accepted 'as compulsory ipso facto, on condition of reciprocity and without special agreement, the jurisdiction of the International Court of Justice in all legal disputes that may arise under the said paragraph 9 (b) of the above Declaration, dated April 24, 1957,⁷ with effect as from that date'.⁸

22.1.2 Egyptian Legal Justifications for Preventing Israeli Use of the Canal

From 1948 onwards, Egypt, by a series of decrees and decisions of Egyptian prize courts, prevented Israeli ships and, in some cases, Israeli bound cargoes from using the Suez Canal. Egypt claimed that the state of

⁵ Situation Created by the Unilateral Action of the Egyptian Government in Bringing to an end the System of International Operation of the Suez Canal, which was Confirmed and Completed by the Suez Canal Convention of 1888, UN Doc. 8/3675, 13 October 1956.

⁶ UN Doc. A/3576, 24 April 1957.

⁷ Paragraph 9(b) dealt with disputes or disagreements arising out of the 1888 Convention or the Egyptian Declaration.

⁸ Declaration to ICJ 18 July 1957, www.icj-cij.org/en/declarations/eg.

war with Israel continued despite the 1949 Armistice Agreement and thus Egypt had rights of belligerency, including the right of visit, search and seizure of enemy shipping. Egypt claimed that there was no clause in the 1949 Armistice Agreement that allowed Israel use of the Canal. The Egyptian delegate to the Security Council explained in 1954:

The question of the existence of Egypt's right of visit and of search was therefore raised even before the armistice negotiations were started. The fact that the Armistice Agreement is silent on this point, although it is fairly common practice to include a provision on this subject in armistice agreements, shows, as indeed the Mixed Armistice commission has confirmed, that the armistice agreement of classical type concluded between Egypt and Israel expressed the joint will of the signatories and left them free to exercise their legitimate right of visit and search.⁹

As to the question of whether the practice violated the Constantinople Convention, Egypt justified this practice by claiming that they were entitled to take steps to maintain the security of the Canal. Khadduri writes, regarding the 1888 Convention, 'no surrender of any sovereign rights was ever contemplated. Israel attacked Egypt, had not respected the neutrality of the Canal as it carried out her military operations to its very eastern bank thus Egypt would be empowered to close the Canal in self-defence, no less by general law than by the very provisions of the Convention of 1888'.¹⁰ Egypt also argued that technically and juridically Egyptian practices were not a 'blockade' but visit, search and seizure.¹¹ Khadduri adds that the 'Six Point' UN Security Council Resolution of 13 October 1956 which called for 'free and open transit through the Canal' also called for 'respect for Egypt's Sovereignty' which means that Egypt should not be denied the right of self-defence.¹² The Egyptian delegate to the UN explained to the Security Council in January 1955:

The Egyptian Government is entitled, in exceptional circumstances, to take measures prohibited to other States to ensure its own security and that of the Canal. These exceptions have been provided for Egypt, the territorial sovereign. Although the text of the article [Article 11] seems to set no limits on the free use of the Canal, Egypt could not reasonably be required to permit the free use of the Canal by enemy shipping, since the

⁹ UN Doc. S.Pv.661, para. 64.

¹⁰ Majid Khadduri, 'Closure of the Suez Canal to Israeli Shipping', *Law and Contemporary Problems* 33 (Winter 1968), pp. 147, 148, 154.

¹¹ UN Doc. S/PV.658, 5 February 1954, para. 163.

¹² Khadduri, 'Closure of the Suez Canal to Israeli Shipping', pp. 147, 148, 154,

security of the Canal would be threatened together with that of Egypt. Under the Convention of Constantinople, no formal obligation is imposed on Egypt to grant free passage to enemy shipping. In view of the serious consequences it might entail, such an obligation would have had to be expressly included in the Convention, which is not the case. In those circumstances, is Egypt not entitled to invoke the right of self-defense, since it fears that the security of the Canal and its own security are endangered?

Examples to illustrate this point. We pointed out that a mine could be laid and a ship deliberately sunk. This could be done, even without the knowledge of the Israel Government by Israeli extremists or terrorists, who can easily infiltrate into Egyptian territory and commit acts of espionage and sabotage. In the interests of the maritime Powers, we are anxious to prevent obstruction or damage to the Canal.

The Suez Canal lies in Egyptian territory; it is an integral part of Egypt and is subject to Egyptian sovereignty. The fact that the ports of Suez and Port Said are ports of access to the Canal does not alter the fact that they are Egyptian ports, under Egyptian sovereignty, and that the area of the territorial sea along their coasts is also under Egyptian sovereignty.¹³

22.1.3 *Israeli Legal Claims for Right to Use the Canal*

The Israeli position was that Egypt had no right to commit acts of belligerency. Bloomfield reflects this Israeli position when he writes, 'Egypt and Israel are both member states of the United Nations and by virtue of their membership are not and cannot be in a state of war with each other'.¹⁴ A further Israeli position was that the 1949 Egypt-Israel Armistice Agreement ended the state of war, if there was one. This Israeli position would not appear to have been correct law, as armistice agreements do not end a state of war. Gross writes that claiming belligerent rights is in violation of the UN Charter and adds, perhaps more convincingly, that as a general rule armistice agreements do not end the state of war but that the Egypt-Israel Armistice Agreement 'has been interpreted authoritatively as prohibiting belligerent acts of visit, search and seizure'.¹⁵ According to Gross, 'even assuming the correctness of the Egyptian contention namely, that a state of war continues to exist,

¹³ UN Doc. S/PV 688 13 January 1955, paras. 89, 90, 96.

¹⁴ L. M. Bloomfield, *Egypt, Israel and the Gulf of Aqaba in International Law* (1957), p. 53.

¹⁵ Leo Gross, 'Passage through the Suez Canal of Israel-Bound Cargo and Israel Ships', *AJIL*, 51 (1957), pp. 530, 546, 549, 567.

Israeli ships have a right of passage through the Canal'. Gross bases his statement on the clause in the Constantinople Convention that Egyptian measures should 'not interfere with the free use of the Canal'.¹⁶ Gross also relies on the Corfu judgment, ruling that Albania could issue regulations for passage in the Straits but not prohibit such passage.¹⁷ He writes, 'Egypt is authorized to take "reasonable and necessary" measures but these measures must not interfere with the "free use" of the Canal, adding that the Egyptian practice in the Canal in regard to its claim that it was only visit, search and seizure was, in fact, more akin to 'blockade'.¹⁸

22.1.4 *The Role of the UN as Regards Navigation in the Canal*

In 1950, Israel submitted a draft proposal to the UN Security Council that called upon Egypt 'to abandon blockade practice and to restore the free movement of shipping through the Suez Canal'.¹⁹ Israel relied on an interpretation by Bunche, the UN mediator who had informed the UN Security Council in 1949 that 'there should be free movement for legitimate shipping, and no vestiges of the wartime blockade should be allowed to remain as they are inconsistent with both the letter and the spirit of the Armistice Agreements'.²⁰ The chief of staff of the UN Truce Supervision Organization, General Riley, reached the conclusion that it was not clear that the blockade was a violation of the 1949 Armistice Agreement and the Mixed Armistice Commission was, therefore, not authorised to deal with the issue. The chief of staff added, however, that

it is quite clear to me that action taken by Egyptian Authorities in interfering with passage of goods destined for Israel through the Suez Canal must be considered an 'aggressive action' and 'interference with the passage of goods destined for Israel is a hostile act'. entirely contrary to the spirit of the General Armistice Agreement and does, in fact, jeopardize its effective functioning.

It was certainly never contemplated at Rhodes that what, is, in effect, an act of blockade or at least an act undertaken in the spirit of a blockade and

¹⁶ Ibid.

¹⁷ *Corfu Channel Case (United Kingdom v. Albania)* [1949], ICJ Reports 4, at 29.

¹⁸ Gross, 'Passage through the Suez Canal of Israeli-Bound Cargo and Israeli Ships', pp. 530, 537, 542.

¹⁹ UN Doc. S/1900, 13 November 1950.

²⁰ Ralph Bunche, Security Council, Official Records, Fourth Year, 433rd meeting, No. 36, 4 August 1949, p. 6.

having the partial effect of one, would be continued by one of the parties to the General Armistice Agreement more than two years after it had been signed.²¹

In 1951, the UN Security Council adopted a resolution, stating in the preamble, that 'since the armistice regime, which has been in existence for nearly two and a half years, is of a permanent character, neither party can reasonably assert that it is actively a belligerent or requires to exercise the right of visit, search and seizure for any legitimate purpose of self-defence'. The operative part called for Egypt

to terminate the restrictions on the passage of international commercial shipping and goods through the Suez Canal wherever bound and to cease all interference with such shipping beyond that essential to the safety of shipping in the Canal itself and to the observance of the international conventions in force.²²

In 1954, Israel submitted a complaint that Egypt was not complying with the 1951 Security Council Resolution.²³ The Egyptian delegate to the Security Council reacted, surprisingly candidly for a diplomat, that 'Egypt is taking action which is perhaps not in conformity with the Security Council's decision of 1 September 1951', explaining that 'the Council, in adopting that resolution, had based it on considerations other than the essentially legal aspects of the case'.²⁴ New Zealand consequently submitted a draft resolution to the Security Council which called upon Egypt to comply with the 1951 Security Council Resolution.²⁵ The resolution was vetoed by the Soviet Union.

Israel received Western support for its right to navigation, particularly from the maritime nations;²⁶ however, Egypt continued to bar Israeli

²¹ Cablegram dated 12 June 1951, from the Chief of Staff of the Truce Supervision Organization, addressed to the Secretary General, transmitting a Report to the Security Council, S/2194, 13 June 1951.

²² Security Council Resolution S/2322, 1 September 1951.

²³ UN Doc. S/3168 and Add. 1, 28 January 1954.

²⁴ The Egyptian delegate to the UN Security Council, UN Doc. S/PV.659, 15 February 1954, paras. 65, 135.

²⁵ New Zealand Draft Resolution, UN Doc. S/3188, Corr. I, 19 March 1954.

²⁶ For example, 'so far as free passage of ships through the Canal is concerned, we have always held that under the 1888 Convention there was freedom for all shipping of all nations, including Israel, through the Suez Canal'. Earl Home, House of Lords Hansard HL Deb 14 May 1957, vol. 203, cc 633–642. The representative of the United States to the UN told the Security Council on 4 January 1955: 'We cannot fail to state our view that Egyptian restrictions on ships passing through the Suez Canal, whether bound to or from Israel, or whether flying the Israel or some other flag, are inconsistent with the spirit and

shipping and goods, basing its actions on the right of preserving the safety of the Canal.

22.1.5 *The Canal Post 1967*

During the June 1967 War, Israel troops reached the east bank of the Canal and Egypt scuttled ships in the Canal blocking its use. After the 1973 'Yom Kippur' War, the parties signed a disengagement of forces agreement of 1974²⁷ and Egypt, with international help, began clearing the Canal. The 1975 Interim Agreement between Egypt and Israel stipulated that 'non-military cargoes destined for or coming from Israel shall be permitted through the Suez Canal'.²⁸ The 1979 Treaty of Peace between Egypt and Israel on this issue reads as follows:

Ships of Israel, and cargoes destined for or coming from Israel, shall enjoy the right of free passage through the Suez Canal and its approaches through the Gulf of Suez and the Mediterranean Sea on the basis of the Constantinople Convention of 1888, applying to all nations, Israeli nationals, vessels and cargoes, as well as persons, vessels and cargoes destined for or coming from Israel, shall be accorded non-discriminatory treatment in all matters connected with usage of the canal.²⁹

This clause was drafted by Israel; it spells out explicitly that the 1888 Constantinople Convention allows Israeli ships and cargoes to use the Canal. Israel was also apprehensive that Israeli ships would be denied access to the Canal through Egyptian waters, hence the language 'and its approaches through the Gulf of Suez and the Mediterranean Sea'. Israel was also apprehensive that Egypt might apply discriminatory charges on the pretext that special security measures were needed. Hence, the language of 'non-discriminatory treatment in all matters connected with

intent of the Egyptian-Israeli General Armistice Agreement, contrary to the Security Council resolution of 1 September 1951, and a retrogression from the stated objectives to which both sides committed themselves in signing the armistice agreement.' UN Doc S/PV.687, para. 681.

²⁷ Egyptian-Israel Agreement on Disengagement of Forces in Pursuance of the Geneva Peace Conference, 18 January 1974, UN Doc. S/11198 (1974).

²⁸ Interim Agreement between Israel and Egypt, 4 September 1975, Article VII, https://ecf.org.il/media_items/599.

²⁹ Peace Treaty between Israel and Egypt, 26 March 1979, Article V(1), <https://mfa.gov.il/mfa/foreignpolicy/peace/guide/pages/israel-egypt%20peace%20treaty.aspx>.

usage of the canal'. Subsequent to the entry into force of the Egypt–Israel Peace Treaty, there has been no interference with passage of Israeli ships through the Canal.³⁰

22.2 Navigation through the Strait of Tiran and the Gulf of Aqaba

The Gulf of Aqaba (Referred to by Israel as the Gulf of Eilat) is about 150 km long and its width varies between 26 and 51 km.³¹ The littoral States are Egypt, Israel, Jordan and Saudi Arabia. The Israeli port city of Eilat and the Jordanian port city of Aqaba are situated on the northern shore of the Gulf. Aqaba is Jordan's sole seaport. The Gulf is Israel's main maritime access to the Far East and to East Africa.

The Strait of Tiran is the only access from the Red Sea to the Gulf of Aqaba, it is some eight kilometers wide and is bordered by Egypt and Saudi Arabia. The Strait of Tiran is thus within the territorial seas of Egypt and Saudi Arabia. There are two small islands, Sanafir and Tiran, at the entrance to the Strait, adjacent to the Saudi shore. From 1957, with the agreement of Saudi Arabia, the two islands were under Egyptian administration.³² There was an Israeli military presence on the islands from 1967 until 1979; however, in 2017, the islands were returned to Saudi Arabian control.³³

³⁰ The Egypt–Israel Peace Treaty entered into force 25 April 1979.

³¹ Ruth Lapidot-Eschelbacher, *International Straits of the World: The Red Sea and the Gulf of Aden* (1982), p. 119.

³² The two islands were included in Area 'C' where Egypt agreed to limit its forces, in accordance with Egypt–Israel Treaty of Peace, Annex 1, Article II, 18 ILM 362 (1979).

³³ Egypt responded to Saudi demand of the islands: 'We in Egypt have no opposition or reservation with regard to the sovereignty of the kingdom over those two islands except what may contravene Egypt's regional and international commitments that prohibit the presence of military forces on them.' 'In stating its position on the two islands, the government of Arab Republic of Egypt concentrates its attention on the necessity of not breaching Egypt's regional and international commitments, Reply letter, dated March 4, 1990, from the Egyptian deputy prime minister and foreign minister to Prince Saud al-Faisal, Saudi foreign minister, dated March 4, 1990, 1. In accordance with the international agreements it had concluded with respect to establishing peace in the region stipulating that no military forces would be placed on the islands where only civil police equipped with small lightly armed vessels patrol internal waters in the area. In addition, a multinational force is stationed in the area.' Quoted from Askar H. Enazy, 'The Legal Status of Tiran and Sanafir Islands', King Faisal Center for Research and Islamic Studies, Dirasat 22, Rajab 1348, April 2017, p. 55.

El Baradei designates the Gulf as an 'inland sea',³⁴ but Lapidoth writes that she prefers 'to use the term "bay" since the expression "inland sea" may easily be confounded with internal waters or internal seas'.³⁵ Passage through the Strait has been a cause of friction and dispute in the context of the Arab-Israeli conflict. From 1948 to 1956, Egypt closed the Strait to Israeli shipping and cargo.³⁶ After the 1956 Sinai Campaign, Israel received assurances from the United States that the Strait would be open to Israeli shipping and the Strait was subsequently opened to all shipping including Israeli shipping. A unit of UNEF was stationed at Sharm El Sheikh, at the entrance to the Strait, to ensure freedom of navigation through the Strait.

22.2.1 *The Closing by Egypt of the Strait of Tiran*

On 22 May 1967, President Nasser of Egypt announced that 'under no circumstances will we allow the Israeli flag to pass through the Aqaba Gulf, 'ships trying to force a passage would be fired on'.³⁷ Egypt also demanded that UNEF immediately vacate Egyptian territory, including the units stationed at Sharm El Sheikh and the UN complied with the demand. Great Britain and the United States contemplated sending a multi-national naval force through the Straits but 'the US military chiefs and the Pentagon stressed the logistic and other technical difficulties if Egypt should resist with force'.³⁸

22.2.2 *Egyptian Legal Justifications for Closing the Strait*

The Egyptian ambassador to the UN, El-Kony, declared that the Gulf of Aqaba has always been an inland waterway 'subject to absolute Arab sovereignty'.³⁹ The Egyptian ambassador also based his argument on the claim that since armistice agreements do not end a state of war, Egypt has

³⁴ Mohamed El Baradei, 'The Egyptian-Israeli Peace Treaty and Access to the Gulf of Aqaba: A New Legal Regime', AJIL 76 (1982), p. 533.

³⁵ Ruth Lapidoth, 'The Strait of Tiran, the Gulf of Aqaba, and the 1979 Treaty of Peace between Egypt and Israel', AJIL 77 (1983), p. 86.

³⁶ For details of incidents, see I. M. Bloomfield, *Egypt, Israel and the Gulf of Aqaba in International Law* (1957), pp. 11–15.

³⁷ Quoted from Fuad A. Jabber, ed., *International Documents on Palestine* (1967), pp. 538–541.

³⁸ Sydney D. Bailey, *The Making of Resolution 242* (1985), p. 3.

³⁹ UN Doc S/PV 1343, 29 May 1967, para. 78.

the right under the laws of war 'to impose restrictions on navigation in the Straits of Tiran with respect to shipping to an enemy'.⁴⁰ In 1954, the Egyptian delegate to the Security Council explained Egypt's position:

The principles of international law affirm that gulfs, even international gulfs, are subject to the jurisdiction and sovereignty of the coastal States. In that respect they are accorded the same treatment as national and territorial waters, except, of course, where such gulfs are subject to the provisions of special international conventions, which is not the case with the Gulf of Aqaba.⁴¹

Lall comments that Nasser, 'in regard to Israel based his position on a concept of belligerency'.⁴² The Egyptian ambassador to the UN also claimed, in 1967, that Israel was not a legitimate littoral State on the Gulf of Aqaba:

The Israel armed forces on 10 March 1949 usurped and occupied the village of Umm Reshresh [Eilat],⁴³ along with a stretch of about five miles overlooking the Gulf of Aqaba. This occurred four months after the Security Council decision calling on all parties concerned to desist from further military actions and territorial accretion. This illegal act was perpetrated two weeks after the signing of the Egyptian-Israeli General Armistice Agreement on 24 February 1949.⁴⁴

A further Egyptian contention was that the Strait of Tiran was not an international Strait as defined by international law. According to the Egyptian claim, all of the Gulf of Aqaba was territorial seas of the littoral States,⁴⁵ there was no area of high seas in the Gulf and the Strait did not therefore connect 'one part of the High Seas with another part' as was required by international law.

The Egyptian position was that although according to the 1958 Convention on the Territorial Sea (1958 Convention), Tiran was considered a strait as it connected one part of the high seas and 'the territorial sea of a foreign State',⁴⁶ the 1958 Convention was an

⁴⁰ Ibid., para. 91.

⁴¹ UN Doc S/PV.661, 12 March 1954, para. 101.

⁴² Arthur Lall, *The UN and the Middle East Crisis, 1967* (1968), p. 26.

⁴³ There was a police station in Um Raeshresh not a village.

⁴⁴ UN Doc S/PV 1343, 29 May 1967, para. 82.

⁴⁵ From 1948 to 1958, Egypt and Saudi Arabia claimed territorial sea of six nautical miles. Since 1958, both Egypt and Saudi Arabia have claimed territorial seas of twelve nautical miles.

⁴⁶ 1958 Convention on the Territorial Sea and the Contiguous Zone, Article 16(4). United Nations, Treaty Series, vol. 516, p. 205, entered into force 10 September 1964.

innovation, the Convention did not reflect customary law⁴⁷ and Egypt was not a party to the Convention. A further argument was that the 1958 Convention dealt only with Straits and did not grant passage through the Gulf itself, which constituted Egyptian or Saudi territorial waters.⁴⁸

22.2.3 *Israeli Position on Freedom of Navigation in the Strait*

Israel contended that the right to freedom of navigation through the Strait of Tiran was based on the following considerations. Customary international law provided for 'non-suspendable innocent passage' in Straits, and the objective test as to innocence was 'the behaviour of the ship at the time of passage'.⁴⁹ The 1958 Convention states:

There shall be no suspension of the innocent passage of foreign ships through straits which are used for international navigation between one part of the high seas and another part of the high seas or the territorial sea of a foreign State.⁵⁰

This wording embodies the generally accepted rule of international law governing straits. The phrase 'or the territorial sea of a foreign State' covers the case of Tiran and reflects customary law.⁵¹ Lapidoth argues further that the 1958 Convention rule 'is but the confirmation in different form of the customary rule on freedom of access to bays bordered by several states'.⁵²

It can also be argued that, at the time, the Strait connected high seas with high seas. In 1951, the limit of the territorial sea was generally accepted as three nautical miles;⁵³ by 1960, a majority of States

⁴⁷ When signing the Convention, Tunisia made the reservation that 'the Government of the Tunisian Republic does not consider itself bound by the provisions of article 16, paragraph 4 of this Convention'. This Article deals with passage through straits.

⁴⁸ El Baradei, 'The Egyptian-Israeli Peace Treaty and Access to the Gulf of Aqaba', p. 545 n. 67.

⁴⁹ Lapidoth, 'The Strait of Tiran, the Gulf of Aqaba, and the 1979 Treaty of Peace between Egypt and Israel', p. 95.

⁵⁰ Article 16(4), The UN 1958 Convention on the Territorial Sea and Contiguous Zone 1958, 516 UNTS 205.

⁵¹ Shabtai Rosenne, 'Directions for a Middle East Settlement' in J. N. Moore, ed. *The Arab-Israeli Conflict* (1974), vol. II, p. 797.

⁵² Ruth Lapidoth-Eschelbacher, *International Straits of the World: The Red Sea and the Gulf of Aden* (1982), p. 176.

⁵³ C. John Colombos, *Higgins and Colombos on the International Law of the Sea* (2nd ed. 1951), p. 77.

supported increasing the limit to six nautical miles, which still left part of the Gulf as high seas.⁵⁴ During the period 1948–1967, a part of the Gulf was therefore considered as high seas and thus the Strait connected two parts of the high seas.

The UN General Assembly has declared that ‘the blockade of the ports or coasts of a State by the armed forces of another State’ is an act of aggression.⁵⁵ Egypt argued that it was at war with Israel and hence had belligerent rights. Lall comments that Nasser ‘is basically cognizant of the fact that the Gulf does constitute a waterway for international navigation and that there is a basic right in international law of peaceful navigation to the ports of nations on its littoral. It follows that in regard to Israel he based his position on a concept of belligerency’.⁵⁶

A response to the belligerency argument could be that after the signing of the 1949 Armistice Agreement, the parties could no longer claim belligerent rights. Bloomfield states, in relation to the Gulf of Aqaba, ‘modern armistice agreements, although primarily intended to accomplish a cessation of hostilities as such, practically operate by their very comprehensive nature, to terminate wars between the parties’.⁵⁷ Fitzmaurice writes, ‘under modern conditions, armistices, tend more and more to assume the character of a preliminary peace treaty’.⁵⁸ The UN mediator, Bunche, reported to the UN Security Council in 1949 that ‘there should be free movement for legitimate shipping, and no vestiges of the wartime blockade should be allowed to remain as they are inconsistent with both the letter and the spirit of the Armistice Agreements’.⁵⁹ The UN Security Council, in relation to passage through the Suez Canal, resolved in 1951 that ‘since the armistice regime, which has been in existence for nearly two and a half years, is of a permanent character, neither party can reasonably assert that it is actively a belligerent or requires to exercise the right of visit, search and seizure for any legitimate purpose of self-defence’.⁶⁰ Gross makes the point that the Egyptians may

⁵⁴ Canadian proposal submitted to the 1960 Second Geneva Conference on the Law of the Sea, UN Doc. A/CONF.19/C.1/L.4.

⁵⁵ ‘Definition of Aggression’, UN General Assembly Resolution 3314 (XXIX), Annex, Article 1(3).

⁵⁶ Lall, *The UN and the Middle East Crisis*, 1967, p. 26.

⁵⁷ I. M. Bloomfield, *Egypt, Israel and the Gulf of Aqaba in International Law* (1957), p. 31.

⁵⁸ G. G. Fitzmaurice, ‘The Juridical Clauses of the Peace Treaties’, II. *Recueil des cours*, 73 (1948), pp. 255, 259.

⁵⁹ Bunche, Security Council, Official Records, p. 6.

⁶⁰ UN Doc. S/RES/95 (1951) S/2322, 1 September 1951.

have been correct in claiming that, as a general rule, armistice agreements do not end the state of war. Gross adds, however, that the Egypt–Israel Armistice Agreement ‘has been interpreted authoritatively as prohibiting belligerent acts of visit, search and seizure’ and that if Egypt could carry out warlike actions, ‘Israel would have the legal right to commit acts of war – by land, sea and air-against Egypt as if the Armistice agreement did not exist’.⁶¹

It can be further argued that even if Egypt could claim belligerent rights in regular territorial waters, it could not do so if the territorial waters are part of an international strait, as in Tiran. An Article justifying Egyptian closure of the Suez Canal to Israeli shipping makes this distinction: ‘Straits as “natural” waterways provided by nature, have existed from time immemorial and, therefore, the free passage enjoyed by all nations must be distinguished from free passage through canals which have been artificially constructed.’⁶²

The declaration by Egypt that they were going to use force to block the Strait and were making military preparations to do so was in itself a grave violation of the Egypt–Israel Armistice Agreement. In 1954, Israel issued a complaint to the Security Council against ‘interference by Egypt with shipping proceeding to the Israeli Port of Elath on the Gulf of Aqaba’.⁶³ Subsequently, New Zealand, referring to the 1951 Security Council resolution on the Suez Canal, submitted a draft Resolution to the Council calling upon Egypt, *inter alia*, to cease such interference. The draft, however, was vetoed by the Soviet Union.⁶⁴

The Egyptian claim was also that Eilat was not legally part of Israeli sovereign territory and thus Israel was not a littoral State on the Gulf of Aqaba. A response could be that the area of Eilat was part of Mandatory Palestine and had never been Egyptian or Jordanian territory and there had never been an Egyptian presence there. Furthermore, it had been allocated to the Jewish State in the UN 1947 Partition Plan. The fact that there were no Israeli forces there when the Armistice was signed with Egypt is not relevant to questions of sovereignty. The map attached to the Armistice Agreements with Egypt show Eilat as being in Israeli territory.

⁶¹ Gross, ‘Passage through the Suez Canal of Israel-Bound Cargo and Israel Ships’, pp. 530, 537, 544, 546. The paper by Gross deals with the Suez Canal; however, in a footnote Gross notes that the arguments in his paper ‘are equally applicable’ to ‘the question of passage through the Straits of Tiran and the Gulf of Aqaba’, p. 532 n. 11.

⁶² Khadduri, ‘Closure of the Suez Canal to Israeli Shipping’, pp. 152, 153.

⁶³ UN Doc. S/3168, 28 January 1954.

⁶⁴ UN Doc. S/3188, Corr. I, 19 March 1954.

In 1950, Egypt submitted a complaint to the Egypt–Israel Mixed Armistice Commission complaining that Israeli troops entering Eilat (Um Rashrash) was a violation of the Egypt–Israel Armistice Agreement. The Commission rejected the complaint, reaching the conclusion that there was no violation of the Armistice Agreement. Rosenne comments, ‘Egypt did not pursue the question of Aqaba and Um Rashrash any further and thus left the status of the area, including that of Um Rashrash, outside the scope of the Israel–Egyptian armistice agreement, recognizing it to be within the area covered by the Israel–Jordan agreement’.⁶⁵

During debates in the UN General Assembly, maybe for their own national reasons as maritime nations, there was widespread international support for Israel’s claim to a right of freedom of navigation in the Gulf of Aqaba and the Strait of Tiran.⁶⁶

22.2.4 *The Strait of Tiran in Security Council Resolution 242*

UN Security Council Resolution 242 affirmed the necessity of ‘guaranteeing freedom of navigation through international waterways in the area’. During the debate in the Security Council, the US Ambassador, Goldberg, stated at the time that the reference was to both the Strait of Tiran and the Suez Canal,⁶⁷ and there does not appear to be any record of a delegate disputing this. The earlier Soviet draft for Resolution 242 referred to ‘innocent passage’ and not to ‘freedom of navigation’ and added the phrase ‘in accordance with international agreements’.⁶⁸ Innocent passage is more limited than freedom of navigation. Noyes writes, in regard to innocent passage, ‘one particular step a coastal State may take to safeguard its security is suspension’.⁶⁹ The phrase ‘in accordance with international agreements’ could be used to qualify it even

⁶⁵ Decision of the Egypt–Israel Mixed Armistice Commission, 8 February 1950; Rosenne, ‘Directions for a Middle East Settlement’, p. 796 n. 4.

⁶⁶ See, for example, Representative of Australia, UN Doc. A/PV.638, 17 January 1957, pp. 18–20, 26, 27; Representatives of China and Denmark, UN Doc. A/PV.641, January 18, 1957, p. 66; Representatives of Argentina, Philippines, France, United States, A/PV.666, 1 March 1957, pp. 1275–1282.

⁶⁷ UN Doc. S/PV.1373, 15 November 1967, para. 68. See discussion of this issue in Chapter 11.

⁶⁸ UN Doc. S/8253, 20 November 1967.

⁶⁹ John E. Noyes ‘Juridical Character of the Territorial Seas’ in Donald R. Rothwell, Alex G. Oude Elferink, Karen N. Scott and Tim Stephens, eds. *The Oxford Handbook of the Law of the Sea* (2015), p. 100.

further. A restrictive phrase was also used in the draft proposed by India, Mali and Nigeria which qualified freedom of navigation with the phrase 'in accordance with international law'.⁷⁰ The final wording, adopted unanimously by the Security Council, was 'freedom of navigation' without any qualification.

22.2.5 *The Strait of Tiran Post 1967*

During the June 1967 Six Day War, Israel occupied the whole of Sinai including the Egyptian coast on the Gulf of Aqaba and Sharm el-Sheikh on the Strait of Tiran. The Israeli presence at Sharm el-Sheikh continued until 1979 and assured Israel of freedom of navigation through the Strait. During the opening stages of the 1978 Camp David talks, the Egyptian delegation proposed that Israel enjoy only the right of 'innocent passage' through the Strait of Tiran.⁷¹ In the 1978 Egypt-Israel Camp David Accords, Egypt and Israel agreed, however, that the Gulf of Aqaba and the Strait of Tiran were 'international waterways to be open to all nations for unimpeded and non-suspendable freedom of navigation'.⁷² The Egypt-Israel 1979 Peace Treaty (1979 Peace Treaty) incorporated this wording and added that 'the parties will respect each other's right to navigation and overflight for access to either country through the Strait of Tiran and the Gulf of Aqaba'.⁷³ The second phrase was added at the request of Egypt and may have been intended to emphasise that 'freedom of navigation' was granted only for access purposes and did not turn the Gulf into high seas. The US delegation reported in an internal note, 'the Egyptians are resisting this language because they do not want to frame their commitment in terms of a general principle which could weaken their position to bar Soviet or other vessels from unimpeded passage in these waterways'.⁷⁴ The US representative suggested that the phrase 'for access to either country' be included as a way of indicating that the free passage was for ships going to or from Israel or Egypt. This would preclude Soviets coming in and maneuvering in the Gulf of Aqaba.

⁷⁰ UN Doc. S/8227, 7 November 1967.

⁷¹ Ezer Weizman, *The Battle for Peace* (1981), p. 352.

⁷² 17 ILM (1978), p. 1470.

⁷³ 18 ILM (1979), p. 365. Article V. The terms of the Egypt-Israel Peace Treaty are dealt with in Chapter 13.

⁷⁴ Telegram from the Department of State to Secretary of State (Warren Christopher) to Secretary Vance in Pretoria 1, Washington, 16 October 1978, Subject Progress Report on Egypt-Israel Peace Talks October 13. *Foreign Relations, 1977-1980*, vol. IX, p. 298.

'The President suggested that the parties accept this and the Israelis agreed.'⁷⁵ ElBaradei postulates that the purpose of the additional phrase was to make clear that the parties would respect freedom of navigation 'irrespective of the acceptance of that regime by other coastal states'.⁷⁶

El Baradei argues that the phrase used in the 1979 Peace Treaty indeed goes beyond 'innocent passage' through territorial waters but 'falls short of the freedom of navigation and overflight applicable in the high seas'. In El Baradei's view, the right of navigation does not include activities that are permissible on the high seas such as 'the conduct of military maneuvers and the carrying out of research and survey activities'.⁷⁷ Israel has, apparently, not claimed that it has a right of military maneuvers or research. Lapidoth holds that the 1979 Peace Treaty grants more than transit passage, it grants 'a very liberal regime of freedom of navigation and overflight'.⁷⁸

The parties signed an agreed minutes concerning the navigation clause which states:

The second sentence of paragraph 2 of Article V shall not be construed as limiting the first sentence of that paragraph. The foregoing is not to be construed as contravening the second sentence of paragraph 2 of Article V, which reads as follows: 'The Parties will respect each other's right to navigation and overflight for access to either country through the Strait of Tiran and the Gulf of Aqaba'.⁷⁹

In the opinion of this author, the Agreed Minutes do not help in elucidating the relationship between the two sentences of Article V of the 1979 Peace Treaty.

As part of the arrangements of the 1979 Peace Treaty, an international force of observers⁸⁰ is stationed at Sharm el Sheikh with the task of 'ensuring freedom of navigation through the Strait of Tiran in accord-

⁷⁵ Memorandum of Conversation 1, Washington, DC, 20 October 1978, SUBJECT Summary of President's Meeting with the Israeli Delegation *Foreign Relations, 1977-1980*, vol. IX, p. 334.

⁷⁶ Mohamed El Baradei, 'The Egyptian-Israeli Peace Treaty and Access to the Gulf of Aqaba: A New Legal Regime', *AJIL*, 76 (1982), p. 552.

⁷⁷ *Ibid.*, p. 551.

⁷⁸ Lapidoth, 'The Strait of Tiran, the Gulf of Aqaba, and the 1979 Treaty of Peace between Egypt and Israel', p. 107.

⁷⁹ Agreed Minutes to the 1979 Egypt-Israel Treaty of Peace, Article V, 18 ILM 392 (1979).

⁸⁰ Multinational Force and Observers (MFO). See Chapter 13 on Egypt-Israel Peace Treaty.

ance with Article V of the Treaty of Peace⁸¹ and, subsequently, Israel withdrew from Sinai including from Sharm el-Sheikh. Since 1979, there has been no interference with Israeli shipping through the Strait. The Treaty of Peace with Jordan uses the identical language concerning the Gulf of Aqaba and the Strait of Tiran as Article V of the Egypt–Israel 1979 Peace Treaty.⁸² Saudi Arabia has no such agreement with Israel but has never interfered with Israeli shipping in the Gulf or in the Strait of Tiran.

22.2.6 The 1982 Law of the Sea Convention and Passage through Straits

The 1982 Law of the Sea Convention (1982 Convention) distinguishes between two types of straits. In straits connecting two parts of the high seas, ‘all ships and aircraft enjoy the right of transit passage, which shall not be impeded’. ‘Transit passage means the exercise in accordance with this Part of the freedom of navigation and overflight solely for the purpose of continuous and expeditious transit of the strait between one part of the high seas or an exclusive economic zone and another part of the high seas or an exclusive economic zone.’⁸³ The other type of strait is one that connects ‘between a part of the high seas or an exclusive economic zone and the territorial sea of a foreign State’. In such straits, shipping enjoys only ‘the right of non suspendable innocent passage’.⁸⁴

The Strait of Tiran would appear to be in the latter category and thus enjoy only the right of non-suspendable innocent passage. Lapidoth postulates, however, that since some consider bays enclosed by the territory of more than one State to be high seas, then Tiran, in fact, connects two high seas and it can be argued that, based on the 1982 Convention, navigation should be based on ‘transit passage’.⁸⁵

Another clause of the 1982 Convention provides the following:

This Convention shall not alter the rights and obligations of States Parties which arise from other agreements compatible with this Convention and

⁸¹ Egypt–Israel Treaty of Peace, Annex I, Article VI, para. 2.

⁸² Treaty of Peace between The State of Israel and The Hashemite Kingdom of Jordan 1994, 2042 UNTS 35325, Article 14(3).

⁸³ Article 38 of the 1982 Law of the Sea Convention. Israel is not a party to the Convention.

⁸⁴ Article 45 of the 1982 Law of the Sea Convention.

⁸⁵ Lapidoth, ‘The Strait of Tiran, the Gulf of Aqaba, and the 1979 Treaty of Peace between Egypt and Israel’, p. 97.

which do not affect the enjoyment by other States Parties of their rights or the performance of their obligations under this Convention.⁸⁶

This clause would appear to cover the arrangements for navigation set out in the Egypt–Israel and Israel–Jordan Peace Treaties, which provide greater freedom of navigation than that set out in the 1982 Convention and is clearly compatible with it.⁸⁷

22.2.7 *Compatibility of the Egypt–Israel Peace Treaty with the Law of the Sea Convention*

The Egyptian legal adviser El-Erian writes that the 1982 Convention, which had not yet been finalised at the time, raised two issues for Egypt. ‘Egypt could accept for itself the status of the Strait of Tiran as an international waterway, but Egypt could not speak for the other riparian states. Egypt’s position should not appear to commit them or prejudice the question as it will be dealt with in the law of the sea conference.’⁸⁸

The United States is on record that ‘the [1979] treaty of peace is fully compatible with the [1982] Law of the Sea Convention and will continue to prevail’.⁸⁹ Egypt accessed the 1982 Convention in 1983 and attached a declaration:

The provisions of the 1979 Peace Treaty between Egypt and Israel concerning passage through the Strait of Tiran and the Gulf of Aqaba come within the framework of the general régime of waters forming straits referred to in part III of the Convention, wherein it is stipulated that the general régime shall not affect the legal status of waters forming straits and shall include certain obligations with regard to security and the maintenance of order in the State bordering the strait.⁹⁰

⁸⁶ Article 311 of the 1982 Law of the Sea Convention.

⁸⁷ Reisman reaches this conclusion based on the draft Law of the Sea Convention, W. Michael Reisman, ‘The Regime of Straits and National Security: An Appraisal of International Lawmaking’, *AJIL* 74 (1980), p. 48.

⁸⁸ Memorandum of Conversation, Washington, DC, 21 October 1978, SUBJECT Summary of President’s Meeting with Egyptian Delegation, *Foreign Relations, 1977–1980*, vol. IX, p. 347.

⁸⁹ Statement by Assistant Secretary of State James Malone, 125 Congressional Record S4089 (Daily edition 27 April 1982).

⁹⁰ Declaration of Egypt on ratification of the 1982 Law of the Sea Convention, 26 August 1983, https://treaties.un.org/Pages/ViewDetailsIII.aspx?src=TREATY&mtdsg_no=XXI &chapter=21&Temp=mtdsg3&clang=_en#EndDec.

This declaration also clearly asserts the compatibility of the 1979 Treaty of Peace with the 1982 Convention. Housen-Couriel comments, however, on this declaration that it 'emphasizes the right of the coastal state to exercise its sovereignty in the Strait area, as provided for in Article 34 (1) of the 1982 Convention'. It 'may allow for interference with freedom of navigation through the Strait and in the Gulf for considerations of security'.⁹¹ Enazy comments, 'upon ratification, it [Egypt] made several declarations. On the passage through the Gulf of Aqaba, Egypt reaffirmed its recognition of the international character of the Straits of Tiran with implicit claim to title to, at least, its western waters'.⁹²

22.3 Concluding Remarks

The legal discourse as to Israel's right to use the Suez Canal centred on the issue of belligerency. Egypt argued that the 1949 Armistice Agreement with Israel did not end the state of war and, hence, Egypt was entitled to take acts of belligerency not prohibited by the Armistice Agreement. According to Egypt, the 1888 Constantinople Agreement allowed Egypt to take steps to defend the Canal, and prohibiting Israeli shipping was such a step.

Israel argued, perhaps not convincingly, that the Armistice Agreement ended the state of war. It further argued that the Armistice Agreement prohibited all acts of belligerency. The UN Security Council supported Israel's position. The Egypt-Israel Peace Treaty has resolved the issue of Israel navigation through the Canal.

The configuration of the Strait of Tiran differs from most other international straits in that it, it was argued, it connects high seas with an enclosed gulf. Israel's claim to the right of freedom of navigation through the Strait, nevertheless, received widespread international support. This international support was a reflection of the support in principle of maritime States for the right of freedom of navigation through international straits. The Egyptian claim that they had belligerent rights against Israeli shipping in Egyptian territorial waters conflicted in this case with the status of Tiran as an international Strait. The 1982 Law of the Sea Convention, possibly, gives shipping through

⁹¹ Deborah A. Housen-Couriel, 'The Status of the Gulf of Aqaba and Strait of Tiran Complex under International Law' in Deborah Sandler, Emad Adly and Mahmoud A. Al-Khoshman, eds. *Protecting the Gulf of Aqaba* (1993), p. 56.

⁹² Enazy, 'The Legal Status of Tiran and Sanafir Islands', p. 48.

the Strait the right of 'transit passage' and certainly the right of 'non-suspendable innocent passage'. The issue has been finally settled in the 1979 Egypt–Israel Peace Treaty that stipulates that the Gulf of Aqaba and the Strait of Tiran are 'international waterways to be open to all nations for unimpeded and non-suspendable freedom of navigation'. The 1982 Law of the Sea Convention recognises the validity of such agreements.

Israel–Syria

In the period 1949–1967, the relations between Israel and Syria were based on the 1949 Armistice Agreement and the main international law issues concerned the legal status of demilitarised zones¹ and riparian rights between upstream and downstream States.²

23.1 Legal Issues Involved in Attempts to Reach a Peace Treaty with Syria

Israel captured the Golan Heights from Syria during the 1967 Six Day War and, in 1967, the Israeli cabinet decided to try and reach a peace agreement with Syria to be based on ‘the international border and Israel’s security needs’.³ In 1994, Israeli Prime Minister Rabin set out Israel’s demands as to the Golan Heights:

Our intention is to reach the signing of a full peace treaty with Syria. In order to do so, we have to reach agreement with Syria on four components simultaneously, as a package deal – a case of all or nothing. The first component: What will the peace border laid out in the peace treaty be? As of today, there is no agreement between us and the Syrians on the location of this border. The second component is the timetable for the implementation of the elements of the peace treaty. The third component involves testing full normalization after the initial stage, which will involve a very limited withdrawal that will not necessitate the uprooting of settlements on the Golan. The intention is to test full normalization over a period of three years, in which we will hold on to most of the Golan. The word normalization means everything; it is life itself. This is the peace of which we dreamed, peace as it is practiced daily: an Israeli Embassy in Damascus, a Syrian Embassy in Israel, an Egged [Israeli bus company]

¹ See ‘Demilitarised Zones’ in Chapter 8.

² See Chapter 27.

³ Meeting of Israel Cabinet 19 June 1967, Israel State Archives 10/8164 Aleph, pp. 1–5 (In Hebrew). Abba Eban, *An Autobiography* (1977), p. 436.

bus travelling to Aleppo, Israeli tourists in Homs, Israeli ships at Tartus, El Al planes landing and commercial and cultural ties – everything and in both directions. Last but not least, the fourth component – the most important one in any peace treaty with Syria – is security, the security arrangements.⁴

Not mentioned, but also on Israel's agenda, was securing the water sources of the Jordan River watercourse.

23.2 Aftermath of the 1973 Yom Kippur War

After the 1973 'Yom Kippur' War, Israel and Syria signed a disengagement agreement.⁵ The Agreement was basically an armistice agreement with detailed arrangements concerning areas of limited armaments, a UN buffer zone and supervision by UN forces.⁶ The Agreement also stated, 'this agreement is not a peace agreement. It is a step toward a just and durable peace on the basis of Security Council Resolution 338 dated October 22, 1973'.⁷ Syria refused to sign the agreement, and it was signed by an Egyptian officer on behalf of Syria.⁸

23.3 The Syrian Position as Regards a Peace Treaty with Israel

Syrian President Hafez Assad declared in 1994, 'I stressed to President Clinton the readiness of Syria to commit itself to the objective requirements of peace through the establishment of peaceful, normal relations

⁴ Policy statement by Prime Minister Yitzhak Rabin before the Knesset, Jerusalem, 3 October 1994, www.un.org/unispal/wp-content/uploads/1995/10/Developments_Peace-process-review_-October-1994-October-1995.pdf.

⁵ Israel Syria Separation of Forces Agreement, 31 May 1974, <https://mfa.gov.il/mfa/foreignpolicy/peace/guide/pages/israel-syria%20separation%20of%20forces%20agreement%20-%201974.aspx>.

⁶ Protocol Concerning the United Nations Disengagement Observer Force, Israel Syria Separation of Forces Agreement, 31 May 1974, <https://mfa.gov.il/mfa/foreignpolicy/peace/guide/pages/israel-syria%20separation%20of%20forces%20agreement%20-%201974.aspx>.

⁷ Article 8, Israel Syria Separation of Forces Agreement, 31 May 1974, <https://mfa.gov.il/mfa/foreignpolicy/peace/guide/pages/israel-syria%20separation%20of%20forces%20agreement%20-%201974.aspx>.

⁸ Itamar Rabinovitch, *The Brink of Peace; The Israel-Syrian Negotiations* (1998), p. 28.

with Israel in return for Israel's full withdrawal from the Golan to the line of 4 June 1967 and from the south of Lebanon'.⁹

23.4 The Issue of the Borders

Britain, on behalf of Palestine, and France, on behalf of Syria and Lebanon, delineated the border between Syria and Mandatory Palestine in a 1920 agreement, which placed half of Lake Tiberias in Syria and parts of the Golan Heights in Palestine.¹⁰ This agreement was subsequently modified in a 1923 agreement whereby the whole of Lake Tiberias was to be in Palestine while the Golan Heights were allocated to Syria.¹¹

During the negotiations with Israel, Syria refused to recognise the legality of the 1923 border, claiming it was forced on Syria by the two colonial powers. Rabinovich writes of 'Asad's long-standing campaign and tirade against the illegitimacy of the political order and boundaries imposed on the region by the colonial British and French authorities in the aftermath of World War I'.¹²

Syria insisted on a withdrawal to the 4 June 1967 line, basing their claim on the language of UN Security Council resolution 242 which called for 'withdrawal of Israel armed forces from territories occupied in the recent conflict' and in the French version 'des territoires'.¹³ Syria stressed that during the period 1949–1967, Syrian forces had a presence beyond the international border, notably in the El-Hamma enclave and on the shore of Lake Tiberias, although the international boundary was set ten metres east of the shoreline. Ross writes that the Syrian foreign minister admitted, however, you 'cannot find the June 4 line in any map in any book'. Ross adds, 'there were of course plenty of maps that showed the 1923 line and the armistice line of 1948'.¹⁴ Swisher writes, however,

⁹ Remarks by President al-Assad at a news conference, Damascus, 27 October 1994, www.un.org/unispal/wp-content/uploads/1995/10/Developments_Peace-process-review_-October-1994-October-1995.pdf.

¹⁰ Franco-British Agreement on Mandatory Borders (1920), <https://ecf.org.il/issues/issue/262>.

¹¹ Agreement Between Majesty's Government and the French Government Respecting the Boundary between Syria and Palestine from the Mediterranean to El Hamme, 7 March 1923, 22 LNTS 364.

¹² Rabinovich, *The Brink of Peace*, p. 142.

¹³ UN Security Council Resolution 242, 22 November 1967.

¹⁴ Dennis Ross, *The Missing Peace: The Inside Story of the Fight for Middle East Peace* (2004), p. 543. The reference should have been to 1949 and not 1948.

‘in the Syrian view, it [the 4 June 1967 line] is a line that was precisely drafted by UN truce officials and clearly demarcated’ and the statement made by the Syrian Foreign Minister ‘was harmlessly attempting to overcome Barak’s obstinacy during a discussion on the June 4, 1967 withdrawal’.¹⁵

Israel’s position was that full withdrawal meant that it must be to the 1923 international boundary. The unstated premise was the application of the rule of *usi possidetis*, namely, that new States, in this case Syria and Israel, inherit former colonial boundaries, unless they agree to changes. Ross confirms that Rabin’s position was that full withdrawal ‘had always meant to the international border, not the June 4, 1967 lines’.¹⁶ Savir, however, writes that the United States had conveyed to the Syrians Israel’s willingness for a full withdrawal ‘which implied pulling back to the June 4, 1967 line’.¹⁷ The Israeli position regarding the validity of the 1923 boundary could be buttressed by the fact that the 1949 Israel–Syrian Armistice Agreement referred to the international boundary, ‘where the existing truce lines run along the international boundary between Syria and Palestine, the Armistice Demarcation Line shall follow the boundary line’.¹⁸ The UN Secretary General also reported, in 2000, ‘Israel has not yet entered into formal negotiations with Syria but it is clear that the former Mandatory boundary will also play a part in such negotiations’.¹⁹ During the talks with the Syrian foreign minister, Barak wanted the talks to be about delineation and not demarcation, as explained by Rubinstein: ‘Demarcation suggested that the border was already agreed, while delineation suggested that it had yet to be worked out.’²⁰ Lauder presented to Clinton what he claimed was a ten-point draft peace treaty agreed to by Assad. One of the points was that ‘Israel would withdraw from the Syrian

¹⁵ Clayton E. Swisher, *The Truth about Camp David: The Untold Story about the Collapse of the Middle East Peace Process* (2004), pp. 66, 85.

¹⁶ Ross, *The Missing Peace*, p. 146.

¹⁷ Uri Savir, *The Process: 1,100 Days that Changed the Middle East* (1998), p. 268. Savir was Israel’s chief negotiator of the peace process.

¹⁸ Israel and Syria General Armistice Agreement, 20 July 1949, Article V(3)(5), https://peacemaker.un.org/sites/peacemaker.un.org/files/IL%20SY_490720_Israeli-Syrian%20General%20Armistice%20Agreement.pdf.

¹⁹ Report of the UN Secretary General on UNIFIL, 20 July 2000, UN Doc. S/2000/718 (2000). Letter of UN Secretary General to the President of the UN Security Council, 24 July 2000, UN Doc. S/2000/731 (2000).

²⁰ Ross, *The Missing Peace*, p. 543.

lands taken in 1967 to a commonly agreed border based on the international line of 1923'. Assad denied that he had agreed to it.²¹

23.5 The Legal Status of Proposals Made during the Negotiations

A legal dispute arose during the negotiations as to the status of proposals made by Israel during the negotiations. Israel had informed the US Secretary of State that Israel was willing to withdraw fully from the Golan Heights under certain conditions. 'Rabin conveyed to the Secretary the famous "pocket" or deposit.'²² 'Rabin was very careful to emphasize to the Secretary that he was engaging in a hypothetical exercise.'²³ In Rabin's opinion, what he told the US Secretary of State should have been kept 'as a deposit while it [the United States] was trying to bring about a deal'.²⁴ The United States informed Syria of this Israeli position. Rabinovich describes the Rabin proposal as 'a hypothetical possibility provided the Syrians meet a series of conditions which in fact – they had not' and that the legal issue was as follows:

Syria argued that the negotiations should be resumed 'at the point at which they had been interrupted' and that important binding agreements had been made in the course of the negotiations, Israel's position was that the negotiations should be resumed 'without prior conditions', and that nothing of a binding nature had been agreed between the two countries.²⁵

In a press conference, President Assad described the Syrian understanding that an 'agreement was reached between Syria and Israel on the Israeli withdrawal from the Golan up to 4 June 1967 lines' and negotiations then continued on the elements of peace.²⁶ Dennis Ross also informed Rabin that in the opinion of the US Secretary of State 'agreement had actually been reached'.²⁷ The Israeli position, however, was that the 'pocket' offer was made subject to a number of conditions and no agreement was reached on these conditions.

²¹ Ibid., p. 514. Ronald Lauder, a business executive, served as an unofficial contact between Israel and Syria.

²² Aaron David Miller, *The Much Too Promised Land: America's Elusive Search for Arab-Israel Peace* (2008), p. 254.

²³ Rabinovich, *The Brink of Peace*, p. 113.

²⁴ Ibid., p. 130.

²⁵ Ibid., pp. 4, 7.

²⁶ 'Syria's Al Assad Discusses Resumption of Peace Talks', Foreign Broadcast Information Service, October 1, 1996.

²⁷ Rabinovich, *The Brink of Peace*, p. 125.

23.6 Concluding Remarks

Two major international legal issues that arose during the Israel–Syria negotiations were the issue of borders and the status of offers made during the negotiations.

As regards borders, the rule of *uti possidetis*, that new States inherit colonial era borders, is now a rule of customary international law. The rule has played a part in Arab–Israel negotiations. The borders agreed to by Israel with Egypt, Jordan and (unofficially) with Lebanon have all adopted the Mandatory-era borders. The Palestine–Syrian border agreed to by Britain and France in 1923 received approval of the League of Nations; and Syria, at the very least, acquiesced to the border when it achieved independence. Thus, a strong argument can be made that it should have been the basis of the negotiations with Israel. However, there is no legal impediment to Syria trying to change it by agreement with Israel.

As to the status of offers made during negotiations, the ‘pocket’ of withdrawal offered by Rabin would only have become binding if the two States had reached agreement and no agreement was reached. The ‘pocket’ offer was made subject to a number of conditions and no agreement was reached on these conditions. It can be argued, however, that, although not legally binding, as a matter of good faith, offers made during negotiations should not be withdrawn so long as they are being negotiated.

Jerusalem

‘The sources of Muslim, Christian and Jewish attachment to Jerusalem are deep and complex.’¹ The Jewish, Christian and Muslim religions have always regarded it as a holy city. It was the capital of the biblical Jewish State of Judea with its Jewish temples; Jewish worshippers have always prayed in the direction of Jerusalem. It contains the ‘Western Wall, the last remnant of the Second Jewish Temple’.² It was the site of the trial, crucifixion and burial of Jesus and the church of the Holy Sepulcher has been at its present site since Byzantine times. Jerusalem was the capital of the Christian Crusader Kingdom, and Jews and Muslims were banned from the city. When Britain fought the Ottoman Empire during the World War I, the possible capture of Jerusalem was seen by the British as a potential glittering prize. The presence of the Christian holy places was a consideration in British policy; Allenby’s December 1917 capture of Jerusalem was termed a Christmas present to the British people.

Jerusalem is termed Al Quds, ‘Holy’ in Islam, it is considered the third holiest city in Islam, after Mecca and Medina. It holds the Muslim shrine of the Dome of the Rock and the Al Aksa Mosque. A depiction of the Dome of the Rock has been adopted as an emblem of Islam by Muslims in many places in the Middle East.

Notwithstanding its religious importance to Islam, however, ‘the city never served as capital of a sovereign Muslim State’,³ and the Ottoman Empire considered Jerusalem to be a minor provincial city.

¹ Mohammed S. Dajani Daoudi, ‘Jerusalem; The City of Dreams, Hopes and Peace’ in Zeina M. Barakat, Ashraf M. Dajani et al., eds. *Jerusalem from the Lens of Wasatia* (2011), p. 28.

² ‘The Status of Jerusalem’, prepared for, and under the guidance of, the Committee on the Exercise of the Inalienable Rights of the Palestinian People UNITED NATIONS New York, 1997. A very useful resource book, on legal aspects of Jerusalem is Ruth Lapidot and Moshe Hirsch, eds., *The Jerusalem Question and Its Resolution: Selected Documents* (1994), www.un.org/unispal/document/the-status-of-jerusalem.

³ Munther S. Dajani, ‘Muslim Attachment to Jerusalem (Al Quds Al-Sharif)’ in Zeina M. Barakat, Ashraf M. Dajani et al., *Jerusalem From the Lens of Wasatia* (2011), p. 47.

24.1 Jerusalem 1917–1947

The 1917 Balfour Declaration and the 1920 San Remo Resolution, both of which refer to a 'Jewish National home', make no reference to Jerusalem. The 1922 Mandate has an explicit clause dealing with the holy places, although Jerusalem is not mentioned. Britain made Jerusalem the seat of government during the period of the Mandate and the office and residence of the British High Commissioner were in Jerusalem. During the period of the British Mandate, the Hebrew University; the Jewish 'national institution', the Jewish Agency; the World Zionist Organisation and the Jewish National Fund were all situated in Jerusalem. The Palestinian leader and Mufti Hajj Amin Husayni made Jerusalem his headquarters.

The 1937 Peel Commission which recommended partitioning Palestine into Jewish and Arab States, excluded Jerusalem from either proposed State because of the

overriding necessity of keeping the sanctity of Jerusalem and Bethlehem inviolate and of ensuring free and safe access to them for all the world. A new Mandate, therefore, should be framed with the execution of this trust as its primary purpose. The policy of the Balfour Declaration would not apply; and no question would arise of balancing Arab against Jewish claims or vice versa. All the inhabitants of the territory would stand on an equal footing.⁴

24.2 Jerusalem and the 1947 UN Partition Plan

The 1947 UN Partition Resolution recommended dividing Western Palestine into two States, one Arab and one Jewish with economic union between them. The proposal was that Jerusalem be a *corpus separatum* under temporary UN administration and not be included in either the Arab or Jewish States. The UN Report's explanation for recommending special status to Jerusalem was as follows:

Jerusalem is a Holy City for three faiths. Their shrines are side by side; some are sacred to two faiths. Hundreds of millions of Christians, Moslems and Jews throughout the world want peace, and especially religious peace, to reign in Jerusalem; they want the sacred character of

⁴ 1936–37 [Cmd. 5479] Palestine Royal Commission Report (Royal Commission) Chapter XXII(2).

its Holy Places to be preserved and access to them guaranteed to pilgrims from abroad.

Religious peace in Jerusalem is necessary for the maintenance of peace in the Arab and in the Jewish States. Disturbances in the Holy City would have far-reaching consequences, extending perhaps beyond the frontiers of Palestine.

The International Trusteeship System is proposed as the most suitable instrument for meeting the special problems presented by Jerusalem, for the reason that the Trusteeship Council, as a principal organ of the United Nations, affords a convenient and effective means of ensuring both the desired international supervision and the political, economic and social well-being of the population of Jerusalem.⁵

Salient clauses of the operative recommendation include the following:

The City of Jerusalem shall be established as a *corpus separatum* under a special international regime and shall be administered by the United Nations. The Trusteeship Council shall be designated to discharge the responsibilities of the Administering Authority on behalf of the United Nations.⁶

It shall remain in force in the first instance for a period of ten years, unless the Trusteeship Council finds it necessary to undertake a re-examination of these provisions at an earlier date. After the expiration of this period the whole scheme shall be subject to examination by the Trusteeship Council in the light of experience acquired with its functioning. The residents the City shall be then free to express by means of a referendum their wishes as to possible modifications of regime of the City.⁷

The protection of the Holy Places, religious buildings and sites located in the City of Jerusalem shall be a special concern of the Governor.⁸

The Jewish authorities in Palestine (the Yishuv) accepted the UN Partition Plan, including the plan for Jerusalem, albeit reluctantly. The Arab population of Palestine and the neighbouring Arab States rejected the Partition Plan. The UN appointed a governor of the Jerusalem District, but because of the civil unrest in Palestine and the lack of cooperation by the British Mandatory authorities, he did not take up office, and the separate status of Jerusalem was not implemented. In 1948, after Israel declared independence, the UN General Assembly again

⁵ UN Doc./A/RES/181 (II) 29 November 1947, Part III.

⁶ Ibid., Part III(A).

⁷ Ibid., Part III(D).

⁸ Ibid., Part III =(C).

called for the internationalisation of Jerusalem.⁹ Both Israel and Jordan rejected the idea of internationalisation. Israel was willing to accept internationalisation of the holy places in Jerusalem,¹⁰ Jordan made no such commitment. In December 1949, the UN General Assembly again called for the internationalisation of Jerusalem.¹¹ 'United Nations efforts to secure the internationalization of Jerusalem faded after 1950.'¹² The UN General Assembly did not pass any further resolutions calling for internationalisation of Jerusalem, although the UN Trusteeship Council continued its planning for internationalisation.¹³

A political explanation for the lack of further UN General Assembly activity on the issue maybe that, with the increased membership of the UN, the Catholic States, with their interest in the Christian holy sites, ceased to be a dominant factor in the General Assembly. Gurfinkiel writes, 'at the time, "internationalization" was a code word for the continuation of, specifically, a *Christian* presence in both Jerusalem and the Holy Land'.¹⁴ Peres writes, 'when they [The Vatican] speak about the internationalization of Jerusalem, they are referring to a world that no longer exists. What was called Europe in the old days was the continent of Christianity'.¹⁵ Joseph comments, 'the British abandoned all support for the internationalization proposal as soon as their ally, King Abdullah, was securely in control of the Old City'.¹⁶ The US position, in 1948, was stated as follows: 'Jerusalem should be an international enclave along lines recommended by the General Assembly resolution of November 29th, or the Trusteeship Council resolution of April and May, the US would consider as acceptable any other arrangement satisfactory to Israel

⁹ UN Resolution 1941 III, 11 December 1948.

¹⁰ Speech by Abba Eban, to the UN General Assembly 5 May 1949, UN Doc. A/818, pp. 230–236. At the time, they were under Jordanian administration, which might explain Israeli magnanimity.

¹¹ UN General Assembly Resolution No. 303 (IV), UN Doc. GAOR, 4th Session (20 September–10 December 1949), p. 25.

¹² 'The Status of Jerusalem', prepared for, and under the guidance of the Committee on the Exercise of the Inalienable Rights of the Palestinian People, The status of Jerusalem – CEIRPP, DPR study (1981) – DPR publication, www.un.org/unispal/document/auto-insert-195301.

¹³ UN Doc. GAOR, 5th Session, 1950 Supp. 9 (A/12186), Annex 2, pp. 19–27.

¹⁴ Michel Gurfinkiel, 'The Mirage of an International Jerusalem', *Mosaic*, 8 July 2019, n.p.

¹⁵ Shimon Peres and Robert Little, *For the Future of Israel* (1998), p. 155.

¹⁶ Dov Joseph, *The Faithful City: The Siege of Jerusalem, 1948* (1960), pp. 334, 335. Dov Joseph was the Military Governor of Jerusalem in 1948.

and the Arab States, provided the safety of, and access to, the Holy Places is guaranteed.¹⁷

UN General Assembly resolutions are not binding, unless accepted as such by the relevant parties. Israel, Jordan and, later, the PLO have all rejected the proposal for internationalisation of Jerusalem; thus, although the UN recommendation has had political consequences, it remains, legally, a non-binding resolution.

24.3 West Jerusalem 1948–1967

The Israel Declaration of Independence, 15 May 1948, made no reference to Jerusalem. The reason was, apparently, that the drafters were apprehensive that declaring Jerusalem as the capital of Israel would be seen as an act of open provocation and defiance against the recommendation of the UN General Assembly that Jerusalem should be under UN administration. On 2 August 1948, Israeli law was applied to those parts of Jerusalem held by Israel.¹⁸ In September 1948, the Supreme Court of Israel was established in Jerusalem. In February 1949, the Knesset assembled in Jerusalem and the President (Chaim Weizmann) took the oath of office in Jerusalem. Ben Gurion explained, in December 1949, ‘At the height of the war, when Jerusalem was under siege, we were compelled temporarily to fix the seat of Government in the *Kiryat*, next to Tel Aviv, however, the State of Israel has had, and will always have, only one capital-eternal Jerusalem’.¹⁹ On 23 January 1950, the Israeli Knesset proclaimed Jerusalem as the capital of Israel and began moving government offices into the city.²⁰

Although the UN General Assembly has not repeated its 1948 call for internationalisation of Jerusalem, nevertheless, there have been repercussions to that resolution. Consulates who were present in Jerusalem during the British Mandate continued to function but refused to recognise Israeli jurisdiction over West Jerusalem or Jordanian jurisdiction over East Jerusalem. Consequently, heads of the Consulates do not

¹⁷ US aide-mémoire of September 6, 1948, quoted from James G. McDonald, First United States Ambassador to Israel, *My Mission in Israel 1948–1951* (1951), p. 54.

¹⁸ IDF Proclamation No. 1, 2 August 1948, *Official Gazette*, No. 12, p. 66, signed by David Ben Gurion. The Declaration was declared retroactive from 15 May 1948.

¹⁹ Speech by Ben Gurion in the Knesset, 13 December 1949, *Divrei Haknesset* (Records of Knesset Proceedings), vol. 4 (2nd Session), pp. 82, 83.

²⁰ *Divrei Haknesset* (Records of Knesset Proceedings), vol. 4 (2nd Session), p. 603.

request accreditation (*exequatur*) from the Israeli Foreign Ministry.²¹ During the Jordanian administration of East Jerusalem, the Consulates behaved in a similar fashion with the Jordanian authorities

For the first few years after 1948, foreign ambassadors refrained from having official meetings with Israeli officials in Jerusalem. When, in 1949, the Knesset held its first meeting in Jerusalem, the US ambassador received instructions from Washington: 'No one from the United States Embassy or Consulate could be authorised to attend meeting Constituent Assembly if held [in] Jerusalem. The [State] Department could not in any way indicate approval of holding the Assembly in Jerusalem.' The ambassador adds, 'During the whole of the period, [1948–1951] I was still under strict instructions not to go to Jerusalem for any official purpose'. The British and French representatives also refused to attend, but the Soviet Union representative did attend.²² On 4 May 1952, Israel decided to move the Foreign Office from Tel Aviv to Jerusalem, despite protests from the United States.²³ In 1954, the US ambassador presented, for the first time, his credentials to the president in Jerusalem, the United States declaring, 'it implies no change in our attitude regarding Jerusalem'.²⁴ The official British position was that 'His Majesty's Government are unable to recognise the sovereignty of Israel over that part of Jerusalem which she occupies, though, pending a final determination of the status of the area, they recognise that Israel exercises *de facto* authority in it'.²⁵ In a 1962 decision, a British Court decided that, although Britain did not recognise Israeli sovereignty, the United Kingdom–Israel extradition treaty applied to West Jerusalem:

At the date of this [extradition] agreement Israel had for 10 years and had throughout been recognised by Her Majesty's Government as exercising *de facto* authority and control in Jerusalem and plainly at the date of the agreement exercised jurisdiction over that area. Moreover, there has never been and is not today any question of competing sovereignty in the area.

²¹ This is a requirement of Article 12 1963 Vienna Convention on Consular Relations, 596 UNTS 261. The eight countries that have consulates are Belgium, France, Greece, Italy, Spain, Sweden, Turkey, and United Kingdom of Great Britain and Northern Ireland. The United States closed its consulate in 2020 and incorporated its functions into its embassy in Jerusalem.

²² McDonald, *My Mission in Israel 1948–1951*, pp. 139, 223.

²³ Quoted in M. Whiteman, ed. *Digest of United States Practice in International Law*, vol. 2 (1963), p. 594.

²⁴ *Ibid.*, p. 2255.

²⁵ Statement by the Minister of State, House of Commons, 27 April 1950, quoted from Whiteman, *Digest of United States Practice in International Law*, pp. 1164–1168.

No other state is recognised as having *de jure* sovereignty. Again Jerusalem is the capital, the seat of government, the seat of the High Court of Israel.²⁶

Most States still retain their embassies in Tel Aviv. Nevertheless, as regards West Jerusalem, all foreign ambassadors, including those of Egypt and Jordan, have presented their credentials to the president in (West) Jerusalem. All of Israel's treaties have been signed in (West) Jerusalem and all State visits, including the presidents of the United States, Russia, Egypt and China have made State visits to (West) Jerusalem. The 2002 Arab League Peace Initiative, which represents the consensus of all the Arab states and the PLO, demands from Israel 'the acceptance of the establishment of a Sovereign Independent Palestinian State on the Palestinian territories occupied since the 4th of June 1967 in the West Bank and Gaza strip, with East Jerusalem as its capital'.²⁷ The 'Initiative' thus was clearly not making any claim to West Jerusalem.²⁸ For the last sixty years, the UN General Assembly has not made any negative reference to Israeli sovereignty over West Jerusalem and has effectively abandoned its 1947 call for internationalising Jerusalem. The advisory opinion of the International Court of Justice, in the 'Wall' case, gave its opinion that 'all these territories (including East Jerusalem) remain occupied territories',²⁹ thus implying recognition of Israeli sovereignty over West Jerusalem. In December 2017, the United States announced that it was moving its embassy to Jerusalem and that 'Jerusalem is Israel's capital'.³⁰ The embassy building is on the Israeli side of the 1949 Armistice Line. However, two weeks after the decision was announced, 128 of the 193 member states of the General Assembly approved a resolution drafted by Turkey and Yemen demanding that 'all states comply with Security Council resolutions regarding the Holy City

²⁶ *Reg. v. Governor of Brixton Prison, ex parte Schtraks*. [1962] 2 All E.R. 176. The judgment was confirmed in the House of Lords, *Schtraks v. Government of Israel and Others*. House of Lords [1962] 3 All ER 529.

²⁷ Beirut Declaration on Saudi Peace Initiative, Israeli MFA, 28 March 2002, www.mfa.gov.il/mfa/foreignpolicy/peace/guide/pages/beirut%20declaration%20on%20saudi%20peace%20initiative%20-%202028-.aspx.

²⁸ Beirut Declaration on Saudi Peace Initiative, 28 March 2002, UN Doc. A/56/1026, S/2002/932, 15 August 2002.

²⁹ *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, I.C.J. Advisory Opinion (9 July 2004), para. 85, www.icj-cij.org/files/case-related/131/131-20040709-ADV-01-00-EN.pdf.

³⁰ White House Press Release, Statement by President Trump on Jerusalem, 6 December 2017, www.whitehouse.gov/briefings-statements/statement-president-trump-jerusalem.

of Jerusalem and do not recognize any actions or measures contrary to those resolutions'.³¹

As a matter of international law, it could be well argued that West Jerusalem is Israeli sovereign territory by virtue of prescription, that is, as 'acquisition of sovereignty by way of continuous and peaceful display of State authority'.³²

24.4 East Jerusalem 1948–1967

The Israel–Jordan Armistice Agreement of 1949³³ reflected the division of the city into a western sector controlled by Israel and the eastern sector, including the Old City, controlled by Jordan (which also controlled the West Bank). Mount Scopus, where the Hebrew University and Hadassah Hospital were situated, was agreed to be a demilitarised Israel enclave surrounded by Jordanian-held territory.³⁴ Jordan formally incorporated the West Bank, including East Jerusalem, into the Kingdom of Jordan.³⁵ The British government, in a statement made in Parliament, declared: 'His Majesty's Government wish to state that, pending a final determination of the status of this area, they are unable to recognise Jordan sovereignty over any part of it [Jerusalem]. They do, however, recognise that Jordan exercises *de facto* authority in the part occupied by her'.³⁶

Israel never formally recognised Jordanian sovereignty over East Jerusalem but in practice acquiesced in it, as did the United Nations. There was a border crossing, the 'Mandelbaum Gate', where diplomats, UN officials and certain foreign nationals crossed from one side to the other.

³¹ UN Doc. A/RES/ES-10/19, 22 December 2017.

³² *The Island of Palmas Case (or Miangas) United States of America v. The Netherlands* (1928), p. 35, <https://pcacases.com/web/sendAttach/714>.

³³ Hashemite Kingdom of Jordan-Israel General Armistice Agreement, 3 April 1949, 42 UNTS 304.

³⁴ Agreement between Jordan and Israel on the demilitarization of the Mount Scopus Area in Jerusalem, 7 July 1948, UN Doc. S/3015, 25 May 1953, Annex.

³⁵ Resolution of the Council of Ministers of Transjordan, 7 December 1948, quoted in Whiteman, *Digest of United States Practice in International Law*, pp. 1164–1168.

³⁶ Statement by the Minister of State, House of Commons, 27 April 1950, quoted from Whiteman, *Digest of United States Practice in International Law*, pp. 164–168.

24.5 East Jerusalem Subsequent to 1967

As a result of the 1967 Six Day War,³⁷ Israel occupied the whole of the West Bank and East Jerusalem. On 27 June 1967, Israel passed legislation applying Israeli law jurisdiction and administration to East Jerusalem³⁸ and legislation regarding the protection of the Holy Places.³⁹ A number of Israeli High Court decisions ruled that, by virtue of that legislation, Israel had incorporated East Jerusalem into sovereign Israel territory.⁴⁰ Permanent residents of East Jerusalem were granted, automatically, the status of domicile in Israel. This policy has caused controversy as, it was reported, some 8,000 Palestinian Jerusalemites lost their residency status because they were not physically present in Jerusalem at the time of the Israeli census in 1967. A person cannot have two domiciles, and the Israeli authorities have rescinded the Israeli domicile of those East Jerusalem residents who have acquired a domicile outside Jerusalem. A stay abroad of more than seven years or establishment of residence abroad may, therefore, result in loss of the right to reside in Jerusalem. East Jerusalem residents were not granted Israeli citizenship but are entitled to apply for it, if they fulfil certain conditions.⁴¹ Very few have applied, and there are claims that the Israeli authorities have created bureaucratic difficulties to those applying. Arab residents of East Jerusalem born after 1967 are entitled to apply for Israeli citizenship without having to fulfil the regular conditions required.⁴² Arab schools in East Jerusalem continued to apply the Jordanian school syllabus and later the school syllabus of the Palestinian Authority. The Israeli authorities also allowed the Moslem Waqf to continue to administer the Harem al Sharif (Temple Mount). Although Israel does not apply the law of belligerent occupation to East Jerusalem, 'it has allowed the International Committee of the Red Cross (ICRC), which has a special

³⁷ See Chapter 10.

³⁸ Law and Administration Ordinance (Amendment No. 11) Law 5727-1967; Municipal Ordinance (Amendment No. 6) Law, 5727-1967; Laws of the State of Israel, vol. 21, 5272-1966/67, pp. 75, 76. The boundaries of Jerusalem, as legislated, were considerably larger than the municipal boundaries of Jerusalem under Jordanian administration.

³⁹ *Protection of Holy Place Law*, 5727-1967, Laws of the State of Israel, vol. 21, 5272-1966/67, p. 76.

⁴⁰ *Abulun Hanzalis v. Tribunal of the Greek Orthodox Church et al*, H.C.17/68 1969 (1) P.D., p. 260; *Mahmad Abdallah Awad Ruidi and Zeev Shimshon Maches v. Military Court of Hebron District et al*, H.C.283/69 1970 (2) P.D., p. 419.

⁴¹ Israel: Nationality Law, 5712-1952, as amended.

⁴² *Ibid.*, Article 4(a).

status under the Convention, to carry out humanitarian activities on an ad hoc basis, including in the East Jerusalem area'.⁴³ In July 1980, Israel Knesset adopted the Basic Law; Jerusalem Capital of Israel which stipulated that 'Jerusalem, complete and united, is the capital of Israel'.⁴⁴ This law did not essentially change the legal situation, although by adopting it as a 'Basic law', the Knesset attached to it special significance in internal Israeli law.

24.6 International Condemnation of Israel's Position on East Jerusalem

In 1967, the UN General Assembly passed a resolution that it 'considers that these [Israel's] measures are invalid and calls upon Israel to rescind them'.⁴⁵ In 1968, the UN Security Council passed a similar resolution, and in a subsequent 1969 resolution, the Council resolved 'that in the event of a negative response or no response from Israel, the Security Council shall reconvene without delay to consider what further action should be taken in this matter'.⁴⁶ In 1971, the UN Security Council again called on Israel 'to rescind all previous measures and actions and to take no further steps in the occupied section of Jerusalem which may purport to change the status of the City'.⁴⁷ In 1980, the UN Security Council reaffirmed its position as to the illegality of Israeli actions in (East) Jerusalem. The Security Council added a threat that 'in the event of non-compliance by Israel with the present resolution, to examine practical ways and means in accordance with relevant provisions of the Charter of the United Nations to secure the full implementation of the present resolution'.⁴⁸ As a response to the 1980 Israeli Law, the UN

⁴³ 'The Status of Jerusalem', prepared for, and under the guidance of, the Committee on the Exercise of the Inalienable Rights of the Palestinian People United Nations New York, 1997, p. 24.

⁴⁴ Basic Law: Jerusalem Capital of Israel, Laws of the State of Israel, vol. 34, 5740-1979/80, p. 209. An amendment to the law prescribes the need for a special majority in the Knesset to transfer any Israeli jurisdiction in Jerusalem to a foreign State or body.

⁴⁵ UN Doc. GAOR, 5th Emergency Special Sess. 1967, Resolutions, Supp. 1 (A/6978), p. 4. Reconfirmed in Resolution 2254 (ES-V), UN Doc. A/6978, p. 4.

⁴⁶ UN Security Council Resolution 252 (1968), UN Doc. SCOR, 23rd Year, 1968, Resolutions, pp. 9-10; UN Security Council Resolution 267 (1969), UN Doc. SCOR, 24th Year, 1969, Resolutions, pp. 3-4.

⁴⁷ UN Security Council Resolution 297 (1971), UN Doc. SCOR, 26th Year, 1971, Resolutions, p. 6.

⁴⁸ UN Security Council Resolution 476 (1980), UN Doc. SCOR, 35th Year, Resolutions, p. 13, S/RES/476 (1980), 30 June 1980.

Security Council declared the law illegal and called upon 'those States that have diplomatic missions at Jerusalem to withdraw such missions from the Holy City'.⁴⁹ This Resolution, although not adopted under Chapter VII of the UN Charter, nevertheless used the word 'decides'. The word 'decides' enabled those States that wished to do so to interpret the Resolution as mandatory under Article 25 of the Charter.⁵⁰ Most States that had embassies in Jerusalem consequently transferred them to Tel Aviv.

The US position on the status of East Jerusalem has had various nuances. In 1967, the US Ambassador to the UN, Goldberg, declared in the UN General Assembly:

With regard to the specific measures taken by the Government of Israel on 28 June, I wish to make it clear that the United States does not accept or recognize these measures as altering the status of Jerusalem. My Government does not recognize that the administrative measures taken by the Government of Israel on 28 June can be regarded as the last word on the matter, and we regret that they were taken. We insist that the measures taken cannot be considered as other than interim and provisional, and not as prejudging the final and permanent status of Jerusalem.⁵¹

In 1969, the then US ambassador to the UN, Yost, declared the following in the Security Council:

The United States considers that the part of Jerusalem that came under the control of Israel in the June 1967 war, like other areas occupied by Israel, is occupied territory and hence subject to the provisions of international law governing the rights and obligations of an occupying Power.⁵²

In 1980, the UN Security Council resolved, 'the Fourth Geneva Convention relative to the Protection of Civilian Persons in Time of War of 12 August 1949 is applicable to the Arab territories occupied by

⁴⁹ UN Security Council Resolution 478 (1980), UN Doc. SCOR, 35th Year, Resolutions, p. 14, S/RES/478 (1980), 20 August 1980.

⁵⁰ Article 25, UN Charter, 'The Members of the United Nations agree to accept and carry out the decisions of the Security Council in accordance with the present Charter.'

⁵¹ Statement of Ambassador Arthur Goldberg to the UN General Assembly, 14 July 1967, UN Doc. GAOR, 5th Emergency Session (Plenary Meeting), 1554th Meeting, 14 July 1967, A/PV.1554, 14 July 1967, para. 100.

⁵² UN Doc. S/PV/1483, 1 July 1969, para. 97.

Israel since 1967, including Jerusalem'.⁵³ President Carter subsequently stated that the United States had voted in favour as a result of a communication error and the US position on Jerusalem was 'Jerusalem should be undivided'.⁵⁴ The position of the European Council in 1980 was that 'they will not accept any unilateral initiative designed to change the status of Jerusalem'.⁵⁵

When, in 2017, the United States moved its embassy from Tel Aviv to Jerusalem, no mention was made as to a distinction between West Jerusalem and East Jerusalem, however, as President Trump stated:

We are not taking a position on any final status issues, including the specific boundaries of the Israeli sovereignty in Jerusalem, or the resolution of contested borders. Those questions are up to the parties involved. The United States would support a two-state solution if agreed to by both sides.⁵⁶

The Trump Declaration did not refer to a 'united Jerusalem', apparently leaving it to the parties to determine the ultimate status. In a response to being recognised by the United States, Kosovo announced that it was also contemplating moving its embassy to Jerusalem. The spokesman for the European Union responded, 'there is no EU member state with an embassy in Jerusalem. Any diplomatic steps that could call into question the EU's common position on Jerusalem are a matter of serious concern and regret'.⁵⁷

24.7 Responses to International Criticism Regarding Israel's Position on East Jerusalem

E. Lauterpacht comments on the UN General Assembly Resolution condemning the application of Israel law that the Resolution 'was completely irreconcilable with the idea of internationalization, the Resolution appears to concede the acceptability of the previous occupation of each of

⁵³ UN Security Council Resolution 465 (1980), UN Doc. SCOR, 35th Year, Resolutions, p. 5, S/RES/465 (1980), 1 March 1980.

⁵⁴ www.jewishvirtuallibrary.org/president-carter-statement-on-u-s-vote-in-the-u-n-on-the-israeli-settlements-and-the-status-of-jerusalem-march-1980.

⁵⁵ The Venice Declaration on the Middle East, adopted by the European Council, 13 June 1980, *Bulletin of the European Communities*, 6-1980, and p. 10.

⁵⁶ White House Press Release, Statement by President Trump on Jerusalem, 6 December 2017, www.whitehouse.gov/briefings-statements/statement-president-trump-jerusalem.

⁵⁷ Lorne Cook, 'EU Warns Serbia, Kosovo over Israel Embassy Move', Associated Press (7 September 2020), <https://apnews.com/article/61cac994c0b1e7a3221ef8ea74d4f9f1>.

the two part of the City by Israel and Jordan respectively'.⁵⁸ Lauterpacht argues that since, in 1967, Israel was acting in self-defence, and even the UN General Assembly refrained from declaring Israel as an aggressor, the various UN resolutions were based on an incorrect legal premise. The incorrect premise was that any 'territorial change as a result of the use of force is impermissible'. According to Lauterpacht, the correct premise is '*ex injuria jus non oritur*, out of a wrong no right can arise, territorial change cannot properly take place as a result of the *unlawful* use of force'. Therefore, according to Lauterpacht, the territorial changes arising from the 1967 war are not, per se, illegal.⁵⁹ Lapidoth is also of the opinion that 'in 1967 Israel took the eastern parts [of Jerusalem] in an act of self-defense and thus had a right to acquire sovereignty in that part as well'.⁶⁰ Israeli Foreign Minister Eban responded to the UN Resolution:

If the 'status of the city' referred to in the Resolution means the situation existing before 5 June 1967, the renewal of that 'status' would involve the restoration of a military demarcation line and other barriers cutting through the centre of the city, the cancellation of free access to their Holy Places for Jews and Israeli Moslems, which has prevailed only since 7 June 1967, and the re-imposition of a ban on residence or visit by anyone of Jewish faith in the Old City. Moreover, in order to restore the previous status Israel would have to demolish the synagogues and other sites destroyed by the Jordanian authorities and restored since then, and to close the cultural, humanitarian and -educational institutions on Mount Scopus which have been re-opened since June 1967. Thus the restoration of the previous status would involve rescinding the unity, peace and sanctity of Jerusalem today in order to restore the divisions, conflict and sacrilege which made the period 1948–1967 one of the darkest ages in Jerusalem's long history.⁶¹

Israel law has been applied to East Jerusalem for over fifty years. Israel law makes no distinction in status between West and East Jerusalem and regards the city as united, although there are special administrative provisions for the educational curriculum of Palestinians in East

⁵⁸ Elihu Lauterpacht, *Jerusalem and the Holy Places* (1968), p. 35.

⁵⁹ Ibid., p. 51 (Emphasis in the original).

⁶⁰ Ruth Lapidoth, *Israel and the Palestinians: Some Legal Issues* (2003), p. 29.

⁶¹ Letter from Israel Foreign Minister Eban to Secretary General U Thant, concerning Security Council Resolution 298, 15 November 1971, <https://mfa.gov.il/MFA/ForeignPolicy/MFADocuments/Yearbook1/Pages/20%20Letter%20from%20Foreign%20Minister%20Eban%20to%20Secretary-.aspx>.

Jerusalem and for the activities of Palestinian non-political institutions.⁶² The former division of Jerusalem was based on the 1949 Armistice Demarcation Line between Israel and Jordan (the Green Line). The ADL cut across the city dividing streets, suburbs, water and sewage lines and even houses. This armistice agreement has been defunct for over fifty years. On the ground, unless one is equipped with an old topographic map, it is impossible to know exactly where the Green Line was. There is, however, no international acquiescence to Israeli sovereignty in East Jerusalem and it would not be correct to deduce that 'prescription' applies to Israeli jurisdiction in East Jerusalem.

24.8 Holy Places in Jerusalem

The 1922 League of Nations Mandate for Palestine included specific provisions regarding the Holy Places but without specifying what the Holy Places were.⁶³ There is no agreed list of the Holy Places in Jerusalem.⁶⁴ The Ottoman authorities granted 'historical status quo' for a small number of Christian Holy Places.⁶⁵ During the British Mandate, a senior British official compiled a list of Holy Places subject to the status quo, but it was not regarded as authoritative or comprehensive.⁶⁶ A UN document of 1949 listed thirty Holy Places in Jerusalem.⁶⁷ One can perhaps assume that the Church of the Holy Sepulchre, the Dome of the Rock, the Al Aksa Mosque and the Western Wall would be included by all in such a list.⁶⁸ As a result of the 1948 war, East Jerusalem, with all the major Holy Places, was under Jordanian administration from 1948 till 1967. In May 1948, King Abdullah of Jordan sent a cable to the Pope

⁶² Letter from Foreign Minister Peres to Norwegian Foreign Minister Holst on Jerusalem, 11 October 1993.

⁶³ Articles 13, 14, 15 of the League of Nations Mandate for Palestine, http://avalon.law.yale.edu/20th_century/palmanda.asp#art25.

⁶⁴ See, in general, Enrico Molinaro, *The Holy Places of Jerusalem in Middle East Peace Agreements: The Conflict between Global and State Identities* (2009).

⁶⁵ Ottoman *firman* of 1852 quoted in L. G. A. Cust, *The Status Quo in the Holy Places* (1929).

⁶⁶ Cust, *The Status Quo in the Holy Places*.

⁶⁷ UN Doc. T/L. 49, of 7 March 1950.

⁶⁸ Israeli Law recognises the Western Wall as a Jewish Holy Place. Regulations for the Preservation of Jewish Holy Places, Collection of Regulations 4252, 16.7.1981, p. 1212. See Shmuel Berkovitz, *The Temple Mount and the Western Wall in Israeli Law* (2001), p. 20.

assuring him that the Christian sanctuaries would be protected.⁶⁹ The 1949 Armistice Agreement between Israel and Jordan stipulated that a special committee should formulate agreed plans for 'free access to the Holy Places',⁷⁰ this clause was not implemented.

After the 1967 Six Day War, all the holy sites in Jerusalem came under Israeli administration. The Israel Knesset adopted the Protection of Holy Place Law which provided that 'the Holy Places shall be protected from desecration and any other violation and from anything likely to violate the freedom of access of the members of the different religions to the places sacred to them or their feelings with regard to those places'.⁷¹ No list of the Holy Places was annexed to the law. In 1993, Israel signed an agreement with the Holy See, whereby 'the State of Israel affirms its continuing commitment to maintain and respect the "Status quo" in the Christian Holy Places to which it applies and the respective rights of the Christian communities there under'.⁷² In 1994, Israel signed a treaty of peace with Jordan that stipulated, 'Israel respects the present special role of the Hashemite Kingdom of Jordan in Muslim Holy shrines in Jerusalem. When negotiations on the permanent status will take place, Israel will give high priority to the Jordanian historic role in these shrines'.⁷³

In 2000, the PLO also signed an agreement with the Holy See, whereby 'the regime of the "Status Quo" will be maintained and observed in those Christian Holy Places where it applies'.⁷⁴ A 2013 agreement between King Abdullah of Jordan and Mahmoud Abbas, as president of the State of Palestine, recognised King Abdullah as 'the Custodian of the Holy Sites in Jerusalem, and recognised that the State of Palestine shall have the right to exercise sovereignty over all parts of its territory, including

⁶⁹ Quoted from Molinaro, *The Holy Places of Jerusalem in Middle East Peace Agreements*, p. 91.

⁷⁰ Article VIII(2) 1949 Israel–Jordan Armistice Agreement.

⁷¹ Protection of Holy Place Law, 5727-1967, Laws of the State of Israel, vol. 21, 5272-1966/67, p. 76, Article 1.

⁷² Fundamental Agreement between the Holy See and the State of Israel 30 December 1993, Article 4, 33 ILM, p. 153.

⁷³ Treaty of Peace between The Hashemite Kingdom of Jordan and The State of Israel, 26 October 1994, Article 9(2), www.kinghussein.gov.jo/peacetreaty.html.

⁷⁴ Basic Agreement between the Holy See and the Palestine Liberation Organization, 15 February 2000, Article 4, www.vatican.va/roman_curia/secretariat_state/2000/documents/rc_seg-st_20000215_santa-sede-olp_en.html.

Jerusalem'.⁷⁵ Lapidoth comments that because of the language of the agreement, 'the entire city could be considered a Holy Place of Islam, The definition of the Temple Mount (Haram al-Sharif) as outlined in the agreement is so broad that it even includes the Western Wall'.⁷⁶

A recurring issue regarding the holy places is what body can represent the different faiths. Israel and the PLO have signed agreements with the Holy See but that would seem to apply only to the Roman Catholic Church. Israel and the PLO have signed agreements with Jordan as to the Muslim holy sites but again it is not clear whether Jordan is authorised to represent all Muslims. Israeli policy has been to attempt to reach agreements on special status for the Christian and Islam holy sites.⁷⁷ The problem of the jurisdiction and status of Holy Places is particularly acute when a site is regarded as holy by more than one religion. This problem is very relevant for the Harem el Sharif (Temple Mount).

24.9 Jerusalem and the 1978 Camp David Negotiations

Carter writes in his memoirs of the Camp David talks:

We did a lot of work on the Jerusalem paragraph. It referred to Jerusalem as the city of peace, holy to Judaism, Christianity, and Islam, and stated that all persons would have free access to it, free exercise of worship, and the right to visit and travel to the holy places without distinction or discrimination. We agreed that Jerusalem would never again be a divided city, that the holy places of each faith should be under the administration and full authority of their representatives, that a municipal council drawn from the inhabitants should supervise essential functions in the city, and so forth. We were delighted when both Begin and Sadat approved the text. Sadat said he could accept the entire Jerusalem proposal if there was a provision for the flag of Islam to fly over Islamic holy places, but acknowledged that Begin would be reluctant to agree to this because of its symbolism of sovereignty.⁷⁸

⁷⁵ Jordan-PLO Agreement on the Jerusalem Holy Sites – English (2013). https://ecf.org.il/media_items/1507.

⁷⁶ Ruth Lapidoth, 'A Recent Agreement on the Holy Places in Jerusalem', *The Israel Journal of Foreign Affairs*, 7, no. 3 (2013/5774), pp. 63, 64.

⁷⁷ See Yehuda Zvi Blum, 'The Juridical Status of Jerusalem', Jerusalem Papers on Peace Problems, Leonard Davis Institute for International Relations, Hebrew University of Jerusalem, 2 February 1974, pp. 3032.

⁷⁸ Jimmy Carter, *Keeping Faith: Memoirs of a President* (1982), pp. 388, 389.

Eventually the entire paragraph on Jerusalem was omitted. Vance, in his autobiography writes:

We believed that whatever solution emerged from future negotiations, should leave the city physically undivided, provide for free access to the holy places of the three faiths; and assure the basic rights of all the city's inhabitants. We would support proposals that would permit the Arab inhabitants of East Jerusalem to vote in the elections for the self-governing authority, but we believed it unlikely that the powers of the self-governing authority could be extended to East Jerusalem during the transition period.⁷⁹

The issue of Jerusalem arose during the Egypt–Israel negotiations held to implement the Camp David Accord on autonomy in the West Bank and Gaza. The initial Egyptian proposal was that the seat of the Palestinian autonomy authority be in Jerusalem.⁸⁰ During the subsequent negotiations, Egypt insisted that Arab Palestinians, residents of East Jerusalem, participate in the elections to the Palestinian Authority. The Israeli position was that the unified Jerusalem was under Israeli jurisdiction and hence not part of the West Bank. No agreement was reached.

24.10 Jerusalem and the Oslo Agreements

During the Oslo negotiations, the initial Israeli position was that Jerusalem was not on the agenda. The Palestinian position was that 'Jerusalem cannot be ignored or left for the final stage without any mention of it now'.⁸¹ In the 1993 Declaration of Principles, signed between Israel and the PLO (DOP), it was agreed to defer all seemingly intractable issues in dispute until the proposed 'final status' talks. Among the issues so deferred was 'Jerusalem'.⁸² Deferring negotiations on Jerusalem also resulted in the Palestinian Authority not having jurisdiction over Jerusalem in the interim period. This was as a result of the clause in the agreement which stipulated that 'jurisdiction of the [Palestinian] Council will cover West Bank and Gaza Strip territory, except for issues that will be negotiated in the permanent status

⁷⁹ Cyrus Vance, *Hard Choices: Critical Years in American Foreign Policy* (1983), p. 231.

⁸⁰ Kamal Hasan Ali, *Warriors and Peacemakers* (1986) (Hebrew translation, 1993), p. 349.

⁸¹ Mahmoud Abbas (Abu Mazen), *Through Secret Channels: The Road to Oslo: Senior PLO Leader Abu Mazen's Revealing Story of the Negotiations with Israel* (1995), pp. 162, 163.

⁸² 1993 Declaration of Principles on Interim Self-Government Arrangements, 32 ILM 1525 (1993). Article V(3).

negotiations'.⁸³ On the basis of this clause, the Israeli authorities have sought to curb activities by the PLO and the Palestinian Authority in East Jerusalem. Several offices linked to the Palestinian Authority have been closed, and legal proceedings were initiated against Orient House, the Palestinian centre housing various Palestinian organisations. Palestinians have opposed those measures,⁸⁴ invoking a letter, dated 11 October 1993, by Israeli Foreign Minister Peres to Norwegian Foreign Minister Hols. The Peres letter states:

I wish to confirm that the Palestinian institutions of east Jerusalem and the interests and wellbeing of the Palestinians of East Jerusalem are of great importance and will be preserved. Therefore, all the Palestinian institutions of East Jerusalem, including the economic, social, educational, cultural, and the holy Christian and Moslem places, are performing an essential task for the Palestinian population. Needless to say, we will not hamper their activity; on the contrary, the fulfilment of this important mission is to be encouraged.⁸⁵

According to the DOP, the issue of Jerusalem will be negotiated in the final status talks, not just East Jerusalem. Presumably, the parties had only East Jerusalem in mind since the Palestinians make no claim to West Jerusalem and there are no significant holy sites in West Jerusalem. It would have been difficult for the Israeli negotiators to agree to use the phrase 'East Jerusalem' since Israel regards the City as one united city. Nevertheless, the drafting opens up the possibility of a demand that negotiations deal with the future of the city as a whole.

During the autonomy talks following Camp David, Egypt demanded that Arab Palestinian residents of East Jerusalem be allowed to participate in elections for the West Bank Self Governing Authority. Israel refused to allow such participation and rejected a US proposal that they vote by absentee ballot. In the Oslo Accords, however, it was agreed that Palestinians of Jerusalem who live there would have the right to participate in the election process for the Interim Self-Government Authority (the Council) for the West Bank and the Gaza Strip through such

⁸³ Ibid., Article IV.

⁸⁴ www.pchrgaza.org/en/efforts-to-create-jewish-majority-in-occupied-east-jerusalem-pchr-con-demns-iof-closure-of-palestinian-official-institutions-and-calls-upon-in.

⁸⁵ Letter from Foreign Minister Peres to Foreign Minister Holst, on Jerusalem, 11 October 1993. <https://mfa.gov.il/mfa/foreignpolicy/mfadocuments/yearbook9/pages/117%20letter%20from%20foreign%20minister%20peres%20to%20foreign.aspx>.

absentee ballots.⁸⁶ Ballot boxes, shaped as letterboxes, were consequently placed in East Jerusalem postal offices.

24.11 Concluding Remarks

There are two distinct issues in attempting to arrive at a settlement concerning the status of Jerusalem: Holy Places and territorial jurisdiction.

As regards Holy Places, both Israel and the PLO, apparently, are willing to accept special arrangements for international religious bodies in the holy sites. Israel has allowed the Jordanian-controlled Muslim Waqf to continue to administer the Haram al Sharif (Temple Mount) and have undertaken to 'give high priority to the Jordanian historic role in these shrines'. Israel has also signed an agreement with the Vatican regarding Catholic sites. The PLO has signed a similar agreement with the Vatican. The PLO also signed an agreement with Jordan recognising King Abdullah as 'Custodian of the Holy Sites in Jerusalem'. These agreements would not bind other Christian denominations or other Muslim States. They do not provide a solution to the difficult issue of sites regarded as holy by more than one religion, particularly the Temple Mount.

The other major issue concerns territorial jurisdiction. In accordance with international law, an international organisation cannot be sovereign of territory, but it can administer it. The UN could therefore legally administer Jerusalem; and the UN has administered territory in South West Africa (Namibia) and Kosovo. All the parties concerned – Israel, Jordan and the Palestinians – object to internationalisation and the record of attempts to have internationalised cities such as Danzig and Trieste is not encouraging.

Jerusalem is the capital of Israel, and Israel regards Jerusalem as a united city. The Palestinians demand that East Jerusalem be the capital of a Palestinian State, and they have considerable international support for their demand. Any attempt to resolve this issue has to consider whether the city should be divided and should the division be a physical barrier. If there is no physical barrier, then should there be another physical barrier between Israel and a Palestinian State or entity. There have been

⁸⁶ Israeli-Palestinian Interim Arrangement on the West Bank and the Gaza Strip, 28 September 1995, Annex II, Article VI, 36(3) ILM 551 (1997).

proposals to treat Jerusalem as an ‘open city’,⁸⁷ but as Lapidoth points out, the meaning of the phrase is not clear: ‘Probably in the context of Jerusalem it means freedom of access.’⁸⁸ However, that would still require detailed agreement as to security and border checks.

Heller and Nusseibeh write that many observers believe that ‘Jerusalem will prove to be the most difficult issue to be addressed in negotiations’.⁸⁹ As to possible solutions, there appears to be no international call for physically dividing the city again. The US Congress has passed a law calling for the city to be undivided.⁹⁰ The experience of Jerusalem in the years 1948–1967, when a wall and a ‘no-man’s land’ divided the two parts of the city, is not an appealing precedent. There have been many proposals for solutions. Proposals include functional division and suspending the issue of sovereignty, treating the Old City within the walls as a separate issue or dividing the city according to the demography of the different suburbs.⁹¹ Each proposal raises difficulties. It appears that international law may help buttress solutions but, unfortunately, international law holds no magic answer or golden key.

⁸⁷ For example, the 2000 proposal by Faisal Hussein (*Los Angeles Times*, 3 July 2000).

⁸⁸ Ruth Lapidoth, ‘Should Jerusalem Be an “Open City”’, *Israel Journal of Foreign Affairs*, 2, no. 1 (2008/5768), p. 91, 93.

⁸⁹ Mark A. Heller and Sari Nusseibeh, *No Trumpets, No Drums: A Two-State Settlement of the Israeli-Palestinian Conflict* (1991), p. 114.

⁹⁰ Jerusalem Embassy Act of 1995, Public Law 104-45, 104th Congress (1) Jerusalem should remain an undivided city in which the rights of every ethnic and religious group are protected, www.congress.gov/104/plaws/publ45/PLAW-104publ45.pdf.

⁹¹ See, for example, Moshe Hirsch, Deborah Housen-Couriel and Ruth Lapidoth, *Whither Jerusalem? Proposals and Petitions Concerning the Future of Jerusalem* (1995); The Clinton Parameters on Israeli Palestinian Peace, www.usip.org/sites/default/files/Peace%20Puzzle/10_Clinton%20Parameters.pdf.

Controversial Laws of War Issues

Since the 1973 Yom Kippur War, Israel's military confrontations have been mainly with irregular forces of non-State organisations such as Hezbollah and Hamas. These confrontations, at times, have taken the form of intensive military conflict, and they have raised issues of the laws of war. The laws of war, or in the more modern terminology, international humanitarian law in times of armed conflict, were drafted at a time when most conflicts were between States. States are obliged to respect the laws of war unilaterally: 'The bulk of this body of law lays down absolute obligations, namely obligations that are unconditional or in other words not based on reciprocity.'¹ Nevertheless, the expectation of reciprocity was always an implied incentive for States to follow the law. This does not exist in relation to non-State actors that deliberately target civilians. As Dowty writes, 'non-State actors are usually impervious to sanctions or outside influence, nor do they recognize international law'.² Civilian deaths, caused by irregular forces, are often excused by explaining that the irregular forces do not possess accurate weapons and that because of their inferior force, they are not capable of combating armed forces. Hence, it is claimed, it is legitimate for them to attack the soft underbelly of their enemy, namely, civilians. Israel, as other democratic states, has been faced with the question as to what military measures can be legally applied against irregular forces deliberately targeting civilians, exploiting the fact that the regular army of a democratic State will be complying with the laws of war.³ The UN Security Council has recognised that States have a right of self-defence against terrorism, a right that

¹ *Prosecutor v. Kuprekić*, Case No. IT-95-16-T, Judgment, ¶ 517 (Int'l Crim. Trib. for the Former Yugoslavia Jan. 14, 2001) (criminal tribunal commenting on humanitarian law).

² Alan Dowty, *Israel/Palestine* (4th ed. 2017), p. 183.

³ See Jefferson D. Reynolds, 'Collateral Damage on the 21st Century Battlefield', *A.F. L. Rev.* 1, 56(2005), pp. 79: '[A] state's ... compliance with [laws of armed conflict] is essential to the effective execution of an adversary's strategy to exploit it.'). Mark Osiel, *The End of Reciprocity: Terror, Torture and the Law of War* (2009), p. 36: 'There may be a

includes the use of armed force.⁴ At what point the right of self-defence kicks in would seem to be dependent on the scale and intensity of the hostilities.⁵

Classic laws of war emphasised the different rules applying to international as opposed to internal conflicts. Except for the issue of a right to prisoner of war status, the modern laws of war have largely eliminated such differences.⁶ The Israeli legal position has been to avoid academic analysis of the distinction between international and non-international armed conflicts and to apply the laws of international armed conflict to all cases where Israeli armed forces are engaged in military operations outside the borders of the State.⁷

25.1 The Law Applicable to Military Activities in the West Bank

The International Court of Justice, in the *Wall* case, decided, by majority decision, that Israel had no right of self-defence against terrorists operating from the territories under control of the Palestinian Authority. The Court decided that it would not even examine whether Israel's security barrier was a legitimate act of self-defence against acts of terrorism. The Court based its decision on its interpretation of Article 51 of the UN Charter, which recognises the 'inherent right of individual or collective self-defence if an armed attack occurs against a Member of the United Nations'. The Court interpreted Article 51 as requiring that an attack must emanate from a foreign state, although there is no mention in the

difference between ordinary armed conflicts, in which reciprocity enforces legal norms, and extraordinary wars, in which it cannot.'

⁴ See UN Security Council Resolution 1368, UN Doc. S/RES/1368 (12 September 2001) (recognising the right to self-defence while condemning the terrorist attacks of 9/11/01); UN Security Council Resolution 1373, UN Doc. S/RES/1373 (28 September 2001) (reaffirming the right to self-defence while deciding states should take steps necessary to prevent the financing of terrorism).

⁵ See Gregory E. Maggs, 'Assessing the Legality of Counterterrorism Measures without Characterizing Them as Law Enforcement or Military Action', George Washington Law School Public Law Research Paper, 7, Paper No. 257 (2006) (noting that for a state's response to qualify as self-defence, an 'armed attack' must have occurred), http://papers.ssrn.com/sol3/papers.cfm?abstract_id=965433##.

⁶ *Prosecutor v. Tadic*, Case No. IT-94-1, ICTY, App. C. (2 October 1995).

⁷ *Israel HCJ 769/02 Public Committee against Torture v. Government of Israel*, *Judgments of the Israel Supreme Court; Fighting Terrorism within the Law*, vol. 3, 2006–2009 (2009).

UN Charter of such a requirement. The Court consequently determined that 'Article 51 of the Charter has no relevance in this case'.⁸ Its conclusion was that Israel had no right of self-defence whatsoever against terrorist acts emanating from territories under the control of the Palestinian Authority. The British, Dutch and US judges on the Court did not concur with this ruling.⁹ Other States have not followed this dictum of the Court. One academic writer notes, 'State practice strongly suggests that the international community has recognized a right to use force in self-defence targeting non-state actors in foreign territory to the extent that the foreign state cannot be relied on to prevent or suppress terrorist activities'.¹⁰ A strong case can be made that, even if a territory is under military occupation, States always retain the right to act in self-defence, subject to the accepted limitations of the laws of war.

Israel applies the laws of belligerent occupation to those areas of the West Bank under Israeli military administration. However, in certain cases, a situation in an occupied territory can escalate to armed conflict. In such a case, it would seem that the laws of war should apply. The ICRC holds the following:

The threshold for determining the existence of a non-international armed conflict within the meaning of Article 3 common to the four Geneva Conventions was considered a workable test for determining when the 'conduct-of-hostilities' model would apply – to instances of force being used by the occupying power against organized armed groups not formally belonging to the occupied State.¹¹

Such a situation arose in the West Bank in 2002, during the second intifada, particularly during the fighting in the West Bank city of Jenin. The Israeli High Court of Justice ruled that 'the law that governs the armed conflict between Israel and the terrorist organizations in the

⁸ ICJ Advisory Opinion, *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, 9 July 2004, para. 139.

⁹ Separate opinions of Judges Higgins, Buergenthal and Owada, ICJ Advisory Opinion, *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, 9 July 2004.

¹⁰ Kimberly N. Trapp, 'Back to Basics: Necessity, Proportionality and the Right of Self-Defence Against Non-State Terrorist Actors', ICLQ, 56 (2007), pp. 141, 156.

¹¹ Occupation and Other Forms of Administration of Foreign Territory, Report prepared and edited by Tristan Ferraro, ICRC Expert Meeting, International Committee of the Red Cross, March 2012, p. 15.

territories is the international law that relates to an armed conflict or dispute'.¹²

25.2 Targeted Killing

One of the measures undertaken by Israel to combat terrorism in Gaza and the West Bank was targeted killings, a policy where the Israeli Defence Forces targeted persons who were planning, or about to undertake, terrorist attacks. This policy has been criticised on the grounds that the terrorists were denied due process and should have been arrested and brought to trial since they were civilians; Israel had no right of 'self-defence' in territories it occupied but only rights of policing and law enforcement. It has been further argued that even if the laws of war apply, then the civilian 'terrorists' only lose their civilian immunity when they take a direct part in hostilities. The Israeli High Court of Justice examined the legality of the policy, based on the laws of war, and reached the conclusion that the terrorists should be regarded as civilians who are taking an active part in hostilities and thus lose their civilian immunity and are legitimate targets. The Court further stated that in occupied territories a terrorist should not be attacked 'if it is possible to act against him by means of a less harmful measure. Therefore if it is possible to arrest, interrogate and prosecute a terrorist who is taking a direct part in hostilities, these steps should be followed'. The Court also added that care must be taken to avoid disproportionate harm to innocent civilians.¹³

Falk has suggested an interesting thought that 'perhaps thought can be given to techniques for the assassination of the enemy's leaders or its elite rather than recourse to a characteristic nation-to-nation response'.¹⁴

25.3 Israeli Combatants, Dressed as Civilians, during Law Enforcement in the West Bank

In order to facilitate arresting persons in the West Bank suspected of terrorism, Israel makes use of soldiers and police dressed as Arab civilians. Israeli soldiers and police, from specially trained units, dress as

¹² Israel HCJ 769/02, *The Public Committee Against Torture v. Government of Israel* *Judgments of the Israel Supreme Court; Fighting Terrorism within the Law*, vol. 3 200-2009 (2009).

¹³ Ibid.

¹⁴ Richard Falk, *Legal Order in a Violent World* (1968), p. 424.

civilian Palestinian Arabs, using vehicles with Palestinian number plates in order to enter Arab villages and towns without arousing suspicion. In most countries, in internal law-enforcement situations, use of such undercover techniques is common practice. Police throughout the world use undercover units. There is no rule of international law which prohibits such action in law enforcement situations, the actions are covered by the laws of belligerent occupation and human rights laws apply as *lex generalis*. 'From the beginning of the Israeli belligerent occupation of the West Bank and Gaza strip in June 1967, the military administration in these areas conducted its activities under the law-enforcement paradigm.'¹⁵

Certain situations in an occupied territory can, however, escalate to armed conflict and, in such a case, the laws of war apply. According to the laws of war, it is considered perfidious and a violation of the laws of war for soldiers to enter into combat intending to kill or wound an enemy while dressed as civilians. 'The central element of the definition of perfidy is the deliberate claim to legal protection for hostile purposes.'¹⁶ By doing so, they are feigning protection as civilians under the laws of war.

There is one recorded instance of Israel using soldiers in combat in such disguise; this was the April 1973 raid on PLO personnel in Beirut, code named 'Spring of Youth'. In this raid, Israeli commandos dressed as civilians entered a building in Beirut and killed top PLO personnel. This was clearly in violation of the laws of war.¹⁷

According to the 1977 Protocol I of the Geneva Conventions, in an international armed conflict, it is also prohibited to use soldiers disguised as civilians in order to 'capture' an adversary.¹⁸ Rosenzweig points out that the rule forbidding such capture is not part of customary law and only applies to States party to Protocol I.¹⁹ The US Law of War Manual

¹⁵ Ido Rosenzweig, *Combatants Dressed as Civilians? The Case of the Israeli Mista'arvim under International Law*, Israel Democracy Institute, Policy Paper 8 E (September 2014), p. 59.

¹⁶ ICRC Commentary on the Additional Protocols of 8 June 1977 to the Geneva Conventions of 12 August 1949, p. 435, www.icrc.org/en/publication/0421-commentary-additional-protocols-8-june-1977-geneva-conventions-12-august-1949.

¹⁷ The UN Security Council condemned the Israeli raid (UN Security Council Resolution 332 [1973] 21 April 1973); however, there was no reference to a violation of the laws of war by wearing civilian clothes.

¹⁸ Article 37 (1) Protocol Additional to the Geneva Conventions of 12 August 1949 and Relating to the Protection of Victims of Armed Conflict (Protocol I) of 8 June 1977.

¹⁹ Rosenzweig, *Combatants Dressed as Civilians?*, p. 10.

states: 'The Department of Defense has not interpreted customary international law to prohibit U.S. forces from seeking to capture by resort to perfidy.'²⁰ Even in combat situations, there is no prohibition in international law for a State to carry out espionage and intelligence gathering in enemy territory using soldiers dressed as civilians, although, on capture, such soldiers are not entitled to POW status.²¹

25.4 Providing Fuel and Electricity to Gaza

In the *Bassiouni* case, the Israeli High Court ruled that Gaza was no longer under Israel occupation and the laws of occupation did not apply. The Court nevertheless ruled that, for humanitarian reasons, Israel should continue to supply Gaza with electricity and fuel notwithstanding the hostilities between Israel and Hamas²² Shany believes that the reasoning of the Court was that

although Israel no longer effectively controls Gaza, Israel's position of overwhelming physical dominance over Gaza, coupled with the historical links of dependence, were probably central to the balancing formula applied by the Court – Israel would assume obligations that go beyond the requirements of IHL in situations of siege, but that fall short of the requirements applicable in situations of occupation. This is the 'basic humanitarian needs' standard.²³

25.5 The 2010 Flotilla to Gaza

Israel imposed a naval blockade on the Gaza Strip. In May 2010, Israel seized control of the *Mavi Marmara*, a Turkish-owned ship registered in the Comoros Islands. The ship was seized by Israeli naval commandos while it was attempting to reach Gaza. Passengers on board the ship attacked the commandos using pipes, knives and axes. Nine passengers were killed, many were injured and seven commandos were injured. Israel appointed an internal commission of enquiry into the incident and cooperated with a commission of enquiry set up by the Secretary

²⁰ United States Department of Defense, Law of War Manual, June 2015, Article 5.22.2.1.

²¹ *Ex parte Quirin*, 317 US 1, 37 (1942).

²² Israel H.C.J. 9132/07 *Gaber Al-Bassiouni v. Prime Minister*, Judgment of 30 January 2008, para. 12.

²³ Yuval Shany, 'The Law Applicable to Non-Occupied Gaza: A Comment on *Bassiouni v. Prime Minister of Israel*', Hebrew University International Law Research Paper No. 13.

General of the UN. Both the internal Israeli commission and the UN commission concluded that the naval blockade was legal because of the hostilities between Hamas and Israel. The UN Report states, 'the naval blockade was imposed as a legitimate security measure in order to prevent weapons from entering Gaza by sea and its implementation complied with the requirements of international law'. The Report, however, added that Israel used 'excessive and unreasonable force'.²⁴ Israel agreed to pay *ex gratia* payments to the families. A complaint was made to the International Criminal Court by Comoros but the prosecutor of the Court declined to investigate the case stating, 'there was no reasonable basis to believe crimes under article 8(2)(b)(i) of the Statute (unlawful attacks on civilians) had been committed'.²⁵

25.6 Civilian Casualties

It has been claimed that civilian casualties resulting from Israeli military actions in Gaza against Hamas are proof that Israel committed war crimes.²⁶ Some international organisations tend to presume that any civilian death in an armed conflict is a violation of law; many civilian deaths automatically lead to a conclusion that there was a grave violation. Berkowitz writes, I believe correctly, 'civilian casualties and damage to civilian infrastructure in warfare are not, in themselves, unlawful or evidence of "criminality"'.²⁷ In Gaza, Hamas deliberately placed military objects such as rockets close to civilian objects and in some cases inside schools and in a hospital. This placed a heavy burden on Israeli commanders to decide in each case, in real time, whether the anticipated civil casualties would be excessive or disproportionate in relation to the military advantage. Military commanders were also entitled to take into consideration their own anticipated casualties, civilian and military, from

²⁴ Report of the Secretary-General's Panel of Inquiry on the 31 May 2010 Flotilla Incident, September 2011, www.un.org/unispal/document/auto-insert-205969.

²⁵ Situation on Registered Vessels of the Union of the Comoros, the Hellenic Republic of Greece and the Kingdom Of Cambodia, ICC-01/13.

²⁶ 'The Goldstone Report', [Report of the United Nations Fact Finding Mission on the Gaza Conflict](http://www.un.org/News/Press/docs/2009/09/090928.unhrc.factfinding.mission.gaza.conflict.shtml), 28 February 2009, A/HRC/12/48, 15 September 2009. The Chairman, Goldstone, subsequently retracted the major charge of the report and he stated 'civilians were not intentionally targeted as a matter of policy', *Washington Post*, opinion page 1 April 2011, www.washingtonpost.com/opinions/reconsidering-the-goldstone-report-on-israel-and-war-crimes/2011/04/01/AFg111JC_story.html.

²⁷ Peter Berkowitz, *Israel and the Struggle over the International Laws of War* (2012), p. 24.

the consequences of not taking action against Hamas rockets. If a reasonable military commander would have reached the conclusion that anticipated civilian casualties would not be excessive in relation to the military advantage, then ensuing civilian casualties would not constitute a violation of the laws of war.

25.7 Proportionality

The law of armed conflict recognises the requirement of proportionality in two contexts. First, it is prohibited to attack a military target if it will cause civilian casualties that are excessive in relation to the military advantage to be obtained.²⁸ Second, measures of self-defence, not part of an armed conflict, must be proportionate to the threat.²⁹ However, Israel has been criticised for using, during armed conflict, disproportionate force against enemy combatants and military objectives. This unfounded criticism would seem to imply that in actual combat a state must not use weapons that are not proportionate to the weapons used by terrorist groups. The laws of war have no such rule. On the contrary, the goal of combat is to overwhelm the enemy, all armies try to concentrate superior forces and arms against enemy positions and forces. If an enemy fires with rifles, there is no rule of law that prohibits returning fire using heavier weapons. This universal military practice, however, does not prevent Israel from being accused of using 'disproportionate' force in actual combat situations.

25.8 Pre-emptive Self-Defence

Article 51 of the UN Charter authorises the use of force in international relations in self-defence against an armed attack. The phrase 'an armed attack' is generally recognised to include the beginning of an armed attack and all commentators agree that a State does not have to wait for bombs to actually fall on it before acting in self-defence.³⁰ An issue in dispute, however, is whether a State can act pre-emptively in order to prevent a potential enemy from having the capability to attack. Murphy describes pre-emptive self-defence as 'the use of armed coercion by a

²⁸ Article 51(5)(b) of 1977 Additional Protocol I to the Geneva Conventions of 12 August 1949 and Relating to the Protection of Victims of International Armed Conflicts.

²⁹ The Caroline Case; J. Moore, *Digest of International Law*, vol. 2 (1906), p. 412.

³⁰ See Yoram Dinstein, *War, Aggression and Self-Defence* (6th ed. 2017), pp. 229–235.

state to prevent another state (or non-state actor) from pursuing a particular course of action that is not yet directly threatening, but which, if permitted to continue, could result at some future point in an act of armed coercion against the first state'.³¹

As regards weapons of mass destruction, the United States has stated its policy as follows:

The United States has long maintained the option of preemptive actions to counter a sufficient threat to our national security. The greater the threat, the greater is the risk of inaction – and the more compelling the case for taking anticipatory action to defend ourselves, even if uncertainty remains as to the time and place of the enemy's attack. To forestall or prevent such hostile acts by our adversaries, the United States will, if necessary, act preemptively.³²

Israel has twice acted pre-emptively against Arab States attempting to build nuclear weapons. In June 1981, Israel bombed an Iraqi nuclear reactor that, it believed, was going to be used to produce plutonium for a nuclear bomb. The UN Security Council condemned the Israeli action.³³ In September 2007, Israel bombed a Syrian nuclear site being built by North Korea and funded by Iran. Israel did not admit, at the time, to carrying out the attack, and Syria refrained from acknowledging that the attack had been against a nuclear facility. As a result of the Israeli and Syrian silence at the time, the issue was not brought to the attention of the UN Security Council.

A strong argument can be made as to the necessity of preventing terrorist groups or rogue States from possessing nuclear weapons. Nevertheless, at present, international law does not recognise the legality of pre-emptive self-defence.

25.9 Concluding Remarks

The counter claims of the parties as to violations of the laws of war play a central part in the attempts of the parties to win over international public opinion. If an act is seen to be a violation of the laws of war, it will lose international support. Even governments who politically support a policy

³¹ Sean D. Murphy, 'The Doctrine of Preemptive Self-Defense', *Villanova Law Review*, 50, no. 3 (2005), p. 704.

³² The National Security Strategy, September 2002 (The Bush Doctrine) <https://georgewebush-whitehouse.archives.gov/nsc/nss/2002/print/nss5.html>.

³³ UN Security Council Resolution 487 (1981) of 19 June 1981.

of one of the parties will refrain from expressing support if it entails a violation of the laws of war. In addition to the public relations aspect, international criminal law is increasingly relevant. In accordance with the principle of universal jurisdiction, any country can prosecute a suspected war criminal even if there is no nexus between the offence and the State concerned. This principle has been used in attempts to bring charges against Israeli politicians and military commanders in a number of European States. To date, no prosecutions have taken place and the judicial authorities have tended to see these attempts as a political abuse of legal proceedings.

The International Criminal Court has jurisdiction to try war criminals if the State involved is unwilling or unable to investigate or prosecute the case.³⁴ Palestine has claimed that Israel committed grave war crimes in the territory of Palestine and thus the Court has jurisdiction. Israel disputes the claim and also disputes the jurisdiction of the Court. The Court is investigating the issue and also whether Hamas has committed grave war crimes. The issues have not yet been resolved.³⁵

³⁴ Article 17(a), (b) Rome Statute of the International Criminal Court.

³⁵ As of June 2021.

Is Palestine a State?

26.1 Definition of Statehood

A State has been defined as ‘a community which consists of a territory and a population subject to an organized political authority; that such a state is characterized by sovereignty’.¹ The 1933 Montevideo Convention provides that in order to qualify as a State an entity has to have a permanent population, a defined territory, a government and capacity to enter into relations with other States.² Shaw describes this definition as ‘the most widely accepted formulation of the criteria of statehood in international law’.³

26.2 Palestine during the British Mandate

During the British Mandate, Palestine had its own government, police, currency and laws. Quigley espouses the view that Palestine was a State during the period of the British Mandate but, although a State, Palestine was not yet independent and ‘independence would follow at the termination of the Mandate’.⁴ It would seem, however, difficult to characterise it as a State under international law. The San Remo Resolution ‘omitted reference to any provisional recognition of Palestine as an independent State’.⁵ Palestine was governed by a High Commissioner appointed by Britain. Khalidi writes, ‘in Palestine, the British High Commissioner was

¹ Definition used by the Arbitration Committee for Former Yugoslavia, quoted in A. Pellet, ‘The Opinions of the Badinter Arbitration Committee: A Second Breath for the Self-Determination of Peoples’, *EJIL*, 3 (1992), pp. 178, 182, 239.

² Convention on Rights and Duties of States, 26 December 1933, 165 LNTS 19.

³ Malcolm Shaw, *International Law* (9th ed. 2017), p. 182.

⁴ John Quigley, *The Statehood of Palestine: International Law in the Middle East Conflict* (2010), pp. 27, 28.

⁵ *Ibid.*, p. 30.

the highest, indeed the sole source of authority in the land'.⁶ The laws of Palestine were promulgated by Great Britain. The basic 'constitution' of Palestine was the Palestine Order in Council of 10 August 1922 and its amendments, and they were promulgated in London on the basis of the British Foreign Jurisdiction Act of 1890. The Palestine Supreme Court ruled, in 1937, that the British sovereign had full powers to legislate for Palestine and his orders could not be challenged on grounds that they violated the terms of the 1922 Mandate.⁷ It would seem, however, difficult to characterize Palestine as a State under international law. Palestine was governed by a High Commissioner appointed by Great Britain. In London, the affairs of Palestine, including its daily running were the responsibility of the Colonial Secretary and the Colonial Office.⁸ The foreign policy of Palestine was conducted by Britain. There was no local Palestinian parliament or legislative body and the flag of Palestine was the British Union Jack. The 1920 Treaty of Sèvres provisionally recognised Syria and Mesopotamia as 'independent States' but the provision on Palestine refrained from referring to Palestine as an independent State.⁹ Stein points out that the Mandate for Syria refers to 'the progressive development of Syria and the Lebanon as independent States' and the identical phrase appears in the final draft Mandate for Mesopotamia but, 'in the Mandate for Palestine no corresponding provision is to be found'.¹⁰ Quigley summarises his supposition by stating that Palestine, although a State, was not yet independent and 'independence would follow at the termination of the Mandate'.¹¹ Kattan also reaches the conclusion that 'during the British mandate (1922–1948) Palestine was not a sovereign nation'.¹²

⁶ Rashid Khalidi, 'The Palestinians and 1948' in Eugene L. Rogan and Avi Shlaim, eds. *The War for Palestine: Rewriting the History of 1948* (2nd ed. 2007), p. 19.

⁷ Case No. 31, Palestine Annual Digest, 1935–1937.

⁸ Shabtai Rosenne, 'Revisiting Some Legal Aspects of the Transition from Mandate to Independence, December 1947–15 May 1948' in Alfred E. Kellerman, Kurt Siehr and Talia Einhorn, eds. *Israel among the Nations: International and Comparative Law Perspectives on Israel's 50th Anniversary* (1998), p. 313.

⁹ Articles 94 and 95 of the Sèvres Treaty.

¹⁰ Leonard Stein, 'The Problem of Self Government' in Leon Simon and Leonard Stein, eds. *Awakening Palestine* (1923), p. 233.

¹¹ Quigley, *The Statehood of Palestine*, p. 28.

¹² Victor Kattan, 'The Nationality of Denationalized Palestinians' in Victor Kattan, ed. *The Palestine Question in International Law* (2008), p. 122.

26.3 Post Mandate Period

After the end of the Mandate, and the signing of the 1949 Jordan–Israel Armistice Agreement, the West Bank was incorporated into the Kingdom of Jordan, and there was no claim that it was an independent State. This Jordanian control continued until the 1967 Six Day War. After June 1967, the West Bank and Gaza came under Israeli military administration and the PLO claimed to be acting as the representative of all Palestinians, including those in the West Bank and Gaza. In November 1988, the Palestine National Council declared the establishment of the State of Palestine.¹³ The UN General Assembly subsequently adopted a Resolution that ‘acknowledges the proclamation of the State of Palestine by the Palestine National Council’,¹⁴ and a considerable number of States recognised Palestine as a State. The General Assembly also resolved to designate the Palestinian delegation as ‘Palestine’.¹⁵ At the time, the PLO was headquartered in Tunis and had no control over any part of the West Bank or Gaza. Although States in *statu nascendi* can be accepted as States, Crawford points out that it applies to those political communities ‘controlling a certain area of territory’.¹⁶ It would seem that the 1988 Declaration was more of a symbolic claim to statehood rather than an act establishing an actual State.

26.4 The Oslo Accords

The Oslo Accords do not refer to the possibility of the creation of a Palestinian State and left open the question of what would be the final status of the West Bank and Gaza. In accordance with the Oslo Accords, the Palestinian Authority was granted ‘all civil powers and responsibilities’ in the Arab populated areas of the West Bank.¹⁷ However, the Interim agreement stipulated the following:

In accordance with the Declaration of Principles, the Palestinian Authority will not have powers and responsibilities in the sphere of foreign relations, which sphere includes the establishment abroad of

¹³ Text in letter to UN, UN Doc. A/43/827 S/20278, 18 November 1988.

¹⁴ UN General Assembly Resolution 43/177 of 15 December 1988.

¹⁵ Resolution 3237 (XXIX), 2296th plenary meeting. [Observer status for the Palestine Liberation Organization](#), A/RES/3237(XXIX) 22 November 1974.

¹⁶ James Crawford, *Brownlie's Principles of Public International Law* (9th ed. 2019), p. 125.

¹⁷ Israeli-Palestinian Interim Agreement on the West Bank and the Gaza Strip 36 (3) ILM 551 (1997), Chapter 2, Article XI.

embassies, consulates or other types of foreign missions and posts or permitting their establishment in the Gaza Strip or the Jericho Area, the appointment of or admission of diplomatic and consular staff, and the exercise of diplomatic functions.¹⁸

A 2003 'Roadmap', proposed by the United States, Russia, the EU and the UN, called for the 'creation of an independent Palestinian State with provisional borders'.¹⁹ The creation of the independent Palestinian State was to be achieved as a result of negotiations between Israel and the Palestinians on the final status. Israel accepted the Roadmap with reservation, but no reservations were made on the objective in principle of creating a Palestinian State.²⁰

26.5 Does Palestine Fulfil the Montevideo Criteria?

The Palestinian Authority, created by the Oslo Accords, titles itself the 'State of Palestine'. There is room to examine whether the State of Palestine fulfils the criteria of the Montevideo formula.

26.6 A Permanent Population

It is not clear at what time the Palestinians were first regarded by themselves and by the international community as a separate people. There is no reference to Palestinians in the Hussein–McMahon correspondence, and Julius Stone comments that the correspondence 'referred constantly to the "Arab Nation" as the single undifferentiated claimant on the Arab side'.²¹ There is no reference to them as a people in the 1922 League of Nations Mandate for Palestine. There have been, however, elements of a separate Palestinian nationalism since the beginning of the twentieth century and the Palestinians are nowadays recognised, universally, as a separate people. One can conclude that the criterion of having a permanent population exists, as there is a clear permanent community of Arab Palestinians in the West Bank and Gaza.

¹⁸ Ibid., Chapter 1, Article IX(5)(a).

¹⁹ Roadmap for Peace in the Middle East: Israeli/Palestinian Reciprocal Action, Quartet Support, <https://2001-2009.state.gov/r/pa/ei/rls/22520.htm>.

²⁰ Government of Israel's Reservations to the Road Map – Hebrew Text (2003), https://ecf.org.il/media_items/816.

²¹ Julius Stone, *Israel and Palestine: Assault on the Law of Nations* (1981), p. 13.

26.6.1 *Defined Territory*

The issue of defined territory is more problematic. The existence of a dispute about borders does not necessarily mean that a State has no defined territory. Israel did not define its borders when it declared independence in 1948 or when it applied for membership in the UN. When Arab states objected to Israel's application for membership, the US representative Jessup, famously responded:

Both reason and history demonstrate that the concept of territory does not necessarily include precise delamination of the boundaries of that territory. There must be some portion of the earth's surface which its people inhabit and over which its Government exercises authority.²²

The Palestinian application for UN membership makes no reference to the borders of the Palestinian State.²³ The official website of the 'State of Palestine' declares

The 1967 border, which is defined as the 1949 Armistice Line along with all legal modifications thereto up to 4 June 1967, is the internationally recognized border between Israel and the occupied State of Palestine. A basic principle of international law is that no state may acquire territory by force. Israel has no valid claim to any part of the territory it occupied in 1967. The international community does not recognise Israeli sovereignty over any part of the occupied State of Palestine, including East Jerusalem.²⁴

In an accompanying letter to the UN Secretary General, Abbas as 'President of the State of Palestine and Chairman of the Executive Committee of the Palestine Liberation Organization' writes that the vast majority of the international community has accorded recognition to the State of Palestine 'on the basis of the 4 June 1967 borders, with East Jerusalem as its capital'. The letter thus notes that the international community supports the 1967 line but again makes no statement as to what the Palestinians themselves see as their border. The Palestinian submission for membership refers to only two supporting documents, the 1947 Partition Plan²⁵ and the 1988 Palestinian Declaration of

²² Security Council, Official Records, 383rd Meeting, 2 December 1948, p. 41.

²³ Application of Palestine for admission to membership in the United Nations, UN Doc. A/66/371, S/2011/592, 23 September 2011.

²⁴ State of Palestine, Palestine Liberation Organisation Negotiations Affairs Department, www.nad.ps/en/our-position/borders.

²⁵ The letter ignores the fact that the 1947 Partition Plan excluded Jerusalem from both the Jewish and Arab States and that Article 19 of the Palestinian National Charter declares

Independence. The 1988 Declaration was deliberately vague in reference to borders, stating that ‘the establishment of the State of Palestine on our Palestinian territory’.²⁶

The Oslo Accords define the boundary of the Gaza areas and of Palestinian controlled areas ‘A’ and ‘B’ within the West Bank. However, the outer borders of the West Bank, between Israel and the West Bank and between Jordan and the West Bank are not defined.

Hamas, which acts as the de facto government of the Gaza Strip, holds that it ‘works toward raising the banner of Allah on every inch of Palestine. The Islamic Resistance Movement [firmly] believes that the land of Palestine is an Islamic Waqf [Trust] upon all Muslim generations till the day of Resurrection. It is not right to give it up nor any part of it. There is no solution to the Palestinian Problem except by Jihad’.²⁷

Most of the territory claimed to be part of the State of Palestine, namely, Area ‘C’ of the West Bank and East Jerusalem is not controlled by the Palestinian Authority and has never been controlled by them. This situation, together with Hamas control of Gaza and the fact that the extent of territory claimed by the State of Palestine has been left vague, makes this issue of whether the State of Palestine possesses defined territory a problematic question.

26.6.2 *Effective Government*

The Palestinian Authority, as the State of Palestine, has the usual organs of a State. It has a president, an executive cabinet and a judiciary. It sets its own budget and collects its own taxes. It has a national flag and anthem. It has a constitution that declares ‘Islam is the official religion in Palestine. Arabic shall be the official language’.²⁸ It has its own police, armed militias and security services. It has full civil and security powers in the Palestinian towns (Area ‘A’) and full civil powers in the Palestinian villages (Area ‘B’). However, in Area ‘C’, which encompasses most of the territory of the West Bank, Israel has full control. In the whole of the

that the 1947 Partition Resolution was legally invalid. Quoted from Walter Laqueur and Dan Schueftan, eds. *The Israel-Arab Reader: A Documentary History of the Middle East Conflict* (8th ed. 2016), p. 119.

²⁶ Text in UN Doc. A/43/827 S/20278, 18 November 1988.

²⁷ Charter of the Islamic Resistance Movement (Hamas) of Palestine. Muhammad Maqdsi, *Journal of Palestine Studies*, 22, no. 4 (Summer 1993), pp. 122–134.

²⁸ Basic Law of The Palestinian National Authority, Article 4 1, [www.venice.coe.int/webforms/documents/default.aspx?pdffile=CDL\(2009\)008-e](http://www.venice.coe.int/webforms/documents/default.aspx?pdffile=CDL(2009)008-e).

West Bank, Israel controls the airspace, security of Israelis and travel outside the area. The Palestinian Authority has no effective control of the Gaza Strip which is administered by Hamas. It is therefore controversial as to whether the 'State of Palestine' fulfils the criterion of having an effective government.

26.6.3 *Capacity to Enter into Relations with Other States*

The Oslo Accords prohibit both parties from changing the status of the West Bank and the Gaza Strip pending the outcome of permanent status negotiations. The Accords also prohibit the Palestinian Authority from conducting foreign relations.²⁹ Nevertheless, the Palestine Authority styles itself as the State of Palestine. Some 138 States have recognised Palestine as a State,³⁰ many of which maintain representative delegations, some at the level of embassies. Palestine is a full member of a number of international organisations including the International Criminal Court and has observer status at the UN. Palestine is a party to a large number of international treaties. The conclusion is that Palestine has the capacity to enter into relations with other States.

26.7 Recognition

Recognition by other States is not listed as a criterion in the Montevideo Convention but it is presumably subsumed in the requirement of an entity being able to conduct foreign relations. States will not exchange ambassadors with a State that they do not recognise. There are those however, who argue that widespread recognition can in of itself establish an entity as a State even if the entity does not fulfil all the Montevideo criteria. This reflects the constitutive theory whereby it is recognition by other States that is conclusive evidence of Statehood. Wählisch writes, 'the question of whether Palestine is a state is eventually contingent upon the will to let Palestine be a state'.³¹ Crawford however, comments, 'an entity

²⁹ Israeli-Palestinian Interim Agreement on the West Bank and Gaza Strip, 36(3) ILM 551 (1997); Chapter 1, Article IX(5)(a); Article XI, 1995; Articles XXI(8), IX(5). 'Neither side shall initiate or take any step that will change the status of the West Bank and the Gaza Strip pending the outcome of the permanent status negotiations.' 'The Council will not have powers and responsibilities in the sphere of foreign relations.'

³⁰ As of July 2021.

³¹ Martin Wählisch, 'Beyond a Seat in the United Nations: Palestine's U.N. Membership and International Law', *Harvard International Law Journal, Online*, 35 (June 2012), p. 260.

is not a State because it is recognized; it is recognized because it is a State'.³²

26.8 Illegality of the Unilateral Declaration of Statehood

An additional contemporary criterion for statehood requires that an entity seeking recognition demonstrate that it has not been established as the result of illegality.³³ The Oslo Accords stipulate that neither party will unilaterally change the status of the West Bank and Gaza. Becker opines that, 'even if the Palestinian entity were to meet those [Montevideo] criteria, the illegality associated with its current unilateral claim to statehood demands that recognition be withheld'.³⁴

26.9 Palestine and International Organisations

In the year 2002, the UN Security Council passed a resolution calling for a two-State solution to the Israel-Palestinian conflict.³⁵ In 2003, the Security Council endorsed the Quartet Roadmap that set out the steps to be taken to achieve a two-State solution.³⁶ In September 2011, the PLO submitted an application to become a State member of the UN,³⁷ the application was considered by the UN Security Council that was unable to reach a decision on recommending membership. Consequently, Palestine was not accepted as a member State. In 2012, the UN General Assembly resolved to grant Palestine the 'Status of a non-member observer State'.³⁸ The Secretary General of the UN subsequently reported, 'Palestine has been treated as a non-member observer State by the Secretariat since the adoption of the resolution'.³⁹ The language of the General Assembly Resolution was that it granted Palestine 'the Status' of an Observer State. The language used differs from that used when the

³² James Crawford, *The Creation of States in International Law* (2nd ed. 2007), p. 93.

³³ See generally, European Community: Guidelines on the Recognition of New States in Eastern Europe and in the Soviet Union, 16 December 1991, 31 I.L.M. 1486.

³⁴ Tal Becker, *International Recognition of a Unilaterally Declared Palestinian State: Legal and Policy Dilemmas*, Jerusalem Center for Public Affairs (2000), p. 18.

³⁵ UN Doc. S/RES/1397 (2002).

³⁶ UN Doc. S/RES/1515 (2003).

³⁷ UN Doc. A/66/371, S/2011/592, 23 September 2011.

³⁸ UNGA Resolution 67/18, 29 November 2012.

³⁹ Report of the Secretary-General, Status of Palestine in the United Nations, A/67/738, 8 March 2013.

UN General Assembly granted observer status to the Vatican. In regard to the Vatican, the phrase used was the following: 'Acknowledges that the Holy See, in its capacity as an Observer State.'⁴⁰ Nevertheless, the Resolution of the UN General Assembly has been quoted as the basis on which international organisations agreed to accept Palestine as a full member State.

26.10 Palestine and the International Criminal Court

Palestine was accepted as a State party to the International Criminal Court and subsequently submitted a complaint that Israel had committed grave war crimes in its territory. The Prosecutor requested a legal opinion on the jurisdiction of the Court explaining

Palestine does not have full control over the Occupied Palestinian Territory and its borders are disputed. The West Bank and Gaza are occupied and East Jerusalem has been annexed by Israel. The Palestinian Authority does not govern Gaza. Moreover, the question of Palestine's Statehood under international law does not appear to have been definitively resolved.⁴¹

The Chamber of the International Criminal Court gave its opinion as to whether the Court had jurisdiction over the territory of the State of Palestine, finding

the reference to '[t]he State on the territory of which the conduct in question occurred must, be interpreted as referring to a State Party to the Statute. It does not, however, require a determination as to whether that entity fulfils the prerequisites of statehood under general international law. Such a construction would exceed the object and purpose of the Statute.⁴² Given the complexity and political nature of statehood under general international law, the Rome Statute insulates the Court from making such a determination, relying instead on the accession procedure and the determination made by the United Nations General Assembly. The Court is not constitutionally competent to determine matters of statehood that would bind the international community.⁴³ The United Nations General Assembly '[reaffirmed] the

⁴⁰ UN Doc. A/RES/58/314 of 16 July 2004, emphasis added.

⁴¹ *Prosecution request pursuant to article 19(3) for a ruling on the Court's territorial jurisdiction in Palestine*, para. 5. ICC-01/18-12 22-01-2020 1/112 RH PT.

⁴² *Decision on the 'Prosecution request pursuant to article 19(3) for a ruling on the Court's territorial jurisdiction in Palestine'* No. ICC-01/18 Date: 5 February 2021, para. 106.

⁴³ *Ibid.*, para. 108.

right of the Palestinian people to self-determination and to independence in their State of Palestine on the Palestinian territory occupied since 1967.’ On this basis, the Chamber finds that the Court’s territorial jurisdiction in the Situation in Palestine extends to the territories occupied by Israel since 1967, namely Gaza and the West Bank, including East Jerusalem.⁴⁴

The President of the Chamber, in a partially dissenting opinion, wrote

Participation in an interstate (and even quasi universal) international organization is not in itself irrefutable proof of statehood or of an alleged perception of full-fledged statehood by the Member States having voted in favour of the admission.⁴⁵ Even years after the adoption of Resolution 67/19, the General Assembly still does not consider Palestine’s statehood to be already existing and fully-fledged, but rather as an aim to be achieved⁴⁶ Palestine has not yet achieved a full-fledged and sovereign State status.⁴⁷

26.11 Concluding Remarks

The Palestinian Authority defines itself as the State of Palestine and has the outward organs of an independent State. The State of Palestine conducts foreign relations, albeit the Oslo accords prohibited the Palestinian authority from doing so. Some States will not recognise another State if it was created as a result of an illegal action. This may be relevant to the consideration of whether Palestine should be recognised as a State. It is a subject of controversy as to whether the State of Palestine has a sufficiently effective government and defined territory to be considered a State in accordance with classical international law definitions. It can be argued that the large number of States and international organisations that recognise and treat Palestine as a State overcomes such deficiencies. The issue of whether Palestine is, at present, a State remains controversial.

⁴⁴ Ibid., paras. 116, 118.

⁴⁵ Ibid., Judge Péter Kovács’ Partly Dissenting Opinion, para. 218.

⁴⁶ Ibid., para. 252.

⁴⁷ Ibid., para. 303.

Water Resources

Israel and Neighbours

27.1 International Law on Shared Water Resources

Israel, Jordan and the Palestinian territories suffer from a shortage of fresh water. In the past, fears were expressed that this shortage would lead to conflict between them. Despite the doomsayers who prophesied that water would be the source of military conflicts between Israel and her neighbours, experience has shown that, in the past, water issues have been, in the main, a catalyst for cooperation rather than for hostilities. Concerning the Jordan River basin, one expert has written, 'although the importance of water might appear to generate conflict, it has in fact made cooperation more likely than conflict. Despite more than sixty years of low-level conflict and five full-scale wars between Israel and its neighbours, tacit cooperation over water has been an almost unbroken pattern in the Jordan valley, particularly between Israel and Jordan'.¹

As in other issues, each party buttressed its claims on international law, International law on the subject of shared water resources² does not, however, provide a fixed formula and is predicated on neighbouring

¹ Joseph W. Dellapenna, 'Designing the Legal Structures of Water Management Needed to Fulfil the Israeli-Palestinian Declaration of Principles', *The Palestine Yearbook of International Law* 7 (1992/1994), pp. 71, 100.

² The main sources of international law on shared water resources are the 1997 UN Convention on the Law on the Non-Navigational Uses of International Watercourses, UN Doc. A/51/869; 'The ILA Helsinki Rules on the Uses of the Waters of International Rivers'; 'Final Report on the Helsinki Rules on the Law of International Rivers', Report of the Forty-Seventh Conference of the International Law Association 484 (1966); ILA Berlin Rules, The International Law Association, Report of the Seventy-First Conference Berlin (2004).

Jordan, Lebanon, Palestine and Syria are parties to the 1997 Convention. Israel is not. When ratifying the 1997 Convention, Syria added a reservation that 'the acceptance by the Syrian Arab Republic of this Convention and its ratification by the Government shall not under any circumstances be taken to imply recognition of Israel and shall not lead to its entering into relations therewith that are governed by its provisions'.

States reaching bilateral or multilateral agreements; it is up to the parties themselves to negotiate mutually satisfactory arrangements. International law does, nevertheless, provide basic tenets on shared watercourses: 'The duty of every State not to cause harm to other riparian States in its use of an international watercourse and the principle entitling each state to an equitable and reasonable utilisation of the waters of an international watercourse.'³ These general tenets are reflected in a number of international law rules as to utilisation of international water resources. A State must give due notice regarding any water project likely to affect another State; States must attempt to reach agreement on such projects, although they do not enjoy veto rights over another State's project; upstream States must take into account the interests of downstream States; a State may not use its territory to cause appreciable harm to the water resources of another State and there must be an equitable distribution of shared water resources. Factors to be taken into account relevant to what is equitable include the following:

- (a) geographic, hydrographic, hydrological, climatic, ecological and other factors of a natural character;
- (b) the social and economic needs of the watercourse States concerned;
- (c) the population dependent on the watercourse in each watercourse State;
- (d) the effects of the use or uses of the watercourse in one watercourse State on other watercourse States;
- (e) existing and potential uses of the watercourse;
- (f) conservation, protection, development and economy of use of the water resources of the watercourse and the costs of measures taken to that effect;
- (g) the availability of alternatives, of comparable value, to a particular planned or existing use.⁴

Equitable utilisation is 'to be determined through consideration of all relevant factors in each particular case'.⁵ There is no hierarchy of priority

³ Attila Tanzi and Maurizio Arcari, *The United Nations Convention on the Law of International Watercourses: A Framework for Sharing* (2001), p. 15.

⁴ Article 6, 1997 UN Convention on the Law on the Non-Navigational Uses of International Watercourses, UN Doc. A/51/869.

⁵ 1997 UN Convention on the Law on the Non-Navigational Uses of International Watercourses, UN Doc. A/51/869; ILA Berlin Rules, The International Law Association, Report of the Seventy-First Conference Berlin (2004).

in listing the various uses of water, except that special regard is to be given for 'the requirements of vital human needs'.⁶

In many cases, the principle of 'no appreciable harm' is likely to conflict with the demands of a State to receive an equitable share of a common water resource, as it might mean reducing existing uses of one of the States. There is no agreed formula for solving such a dilemma.⁷ The commentary to the ILA Berlin rules on this issue states that 'the interrelation of these obligations must be worked out in each case individually'.⁸ Tanzi and Arcari comment that the concrete balance between the two principles 'is left primarily to the agreement of the interested parties'.⁹ Benvenisti and Gvirtzman also make the point that 'the goal is to find a proper balance between the protection of existing uses and the initiation of new uses'.¹⁰

A position advanced by Arab states was that 'the waters in a catchment area should not be diverted outside that area unless the requirements of all those who use, or genuinely intend to use, the waters within the area have been satisfied'.¹¹ However, the restriction on 'out of basin use' is not reflected in customary law.¹²

Until the 1960s, international water law was based to a large extent only on the question of the rights of riparian States to surface water in shared rivers and springs. Groundwater issues were rarely taken into account; however, modern international law includes aquifers in the definition of an international watercourse.

⁶ Article 10(2), 1997 UN Convention on the Law on the Non-Navigational Uses of International Watercourses, UN Doc. A/51/869.

⁷ The 1991 and 1994 ILC drafts on the subject gave primacy to the 'no harm' rule. The 1997 Convention gave a predominant role to 'equitable distribution' and the 2004 Berlin Rules grant the two principles equal status.

⁸ ILA Berlin Rules, The International Law Association, Report of the Seventy-First Conference Berlin (2004), Commentary on Article 12, p. 362.

⁹ Tanzi and Arcari, *The United Nations Convention on the Law of International Watercourses*, p. 178.

¹⁰ Eyal Benvenisti and Haim Gvirtzman, 'Harnessing International Law to Determine Israeli-Palestinian Water Rights: The Mountain Aquifer', *Natural Resources Journal*, 33 (Summer 1993), pp. 543, 544.

¹¹ Sir M. and Partners, 'Report on the Proposed Extension of Irrigation in the Jordan Valley (1951)' quoted in American Friends of the Middle East, *The Jordan Water Problem: An Analysis and Summary of Available Documents* (1964), p. 90.

¹² There is no such stipulation in the ILA Helsinki Rules (1966), the various ILC drafts, the UN Convention (1997) or the ILA Berlin Rules (2004).

27.2 Watercourses Shared between Israel and Its Neighbours

Israel and its immediate neighbours suffer from water shortage and uncertainty of regular water supply, the main reason being the irregular, unequal, often violent yearly regime of rains. A major source of water for the region is the River Jordan Basin. The Jordan River is the result of the confluence of the Banias, Hasbani and Dan streams. The Dan spring is in Israeli territory, the Banias spring is in the Syrian Golan Heights under Israeli administration and the Hasbani spring is in Lebanese territory.

The upper Jordan River, which is in Israeli territory, flows into Lake Tiberias (Lake Kinneret or Sea of Galilee) which is in Israeli territory. From Lake Tiberias, the lower Jordan River flows out into the Dead Sea. The lower Jordan River forms the border between Israel and Jordan and between Jordan and the West Bank. Thus, Israel and Jordan are riparians on the lower Jordan River, and the Palestinian Authority, also, claims riparian rights on the waters of the river.

The waters of the Yarmuk River, which are mostly winter floodwaters, flow into the lower Jordan River below Lake Tiberias. Parts of the Yarmuk River form the border between Syria, Jordan and Israel. Thus, all three States are riparian on the Yarmuk River. A shared mountain aquifer underlies the North–South mountain ridge. It carries high-quality water with relatively rapid rates of flow from intakes mainly located on the West Bank. It drains to the Mediterranean through springs in Israel.¹³

27.3 The Role of Water-Related Issues in Defining the Boundaries between Palestine, Syria and Lebanon

In May 1916, during the World War I, the Sykes–Picot Agreement, concluded by Britain and France, provided for the division of the Ottoman Empire into areas under British and French influence. The agreement included a sketch of the proposed borders drawn on a very large-scale map – but these borders apparently did not take into account questions of water rights. However, when it became clear, from 1918 onwards, that Britain was to administer Palestine, the issue of water

¹³ David B. Brooks and Julie Trottier with Gidon Bromberg, Nader Al Khatib and Munqeth Mehyar and comments and critiques by Nadav Shelef and Hillel Shuval, *A Modern Agreement to Share Water between Israelis and Palestinians: The Foeme Proposal* (November 2010), p. 14, https://old.ecopeaceme.org/wp-content/uploads/2020/11/12990739030%5E%5EModel_Water_Agreement_Map.pdf.

resources played prominently in British considerations. Since, at the time, water rights were dependent on whether a State was physically a riparian, the location of borders in physical relation to springs and rivers was of cardinal importance. At an internal British meeting, convened by Prime Minister Lloyd George in September 1919, views were expressed as to the 'great importance of including the head-waters of the Jordan in Palestine', Lloyd George commented that Lake Tiberias 'was essential for the irrigation and development of Palestine'.¹⁴ In the 1920 negotiations with France, the British position was stated to be that 'His Majesty's Government are not prepared to conclude any arrangements which do not contain due provision for the future utilization by Palestine of the waters of the Yarmuk and the Litany [Rivers], which may well prove vital to the economic development of the country and the creation of a national home for the Jews'.¹⁵ One writer summarises these discussions as a 'British-Zionist battle for the water for Palestine's irrigation plans, against a fight over French prestige in regard to their holding of territories in the face of the retreat from the Sykes-Picot agreement'.¹⁶ The major sources of the Jordan River, the Dan and Banias springs, were to be in Palestine. Nevertheless, the agreement reached in 1920 between France and Britain placed Syria as a riparian on the upper Jordan River and divided Lake Tiberias between Palestine and Syria.¹⁷ The French government agreed to 'give its representative the most liberal instructions for the employment of the surplus of those waters for the benefit of Palestine'.¹⁸ A 1923 boundary commission, appointed in accordance with the 1920 Anglo-French agreement, made substantial changes to the boundaries set out in the agreement. The changes were largely based on the decision not to divide lands owned by influential local Bedouin sheikhs. The boundary was placed parallel and east of the Jordan River;

¹⁴ PRO.CAB 21/153, as cited in Doreen Ingrams, *Palestine Papers 1917-1922 Seeds of Conflict* (1973), p. 76.

¹⁵ Earl Curzon, British Foreign Secretary, to Mr Vansittart, cable of 9 November 1920, quoted in Patricia Toye, ed., *Palestine Boundaries 1833-1947*, vol. 3: Palestine-Syria II, Palestine-Transjordan, Archive Editions (1989), p. 109.

¹⁶ Gideon Biger, *The Boundaries of Modern Palestine, 1840-1947* (2004), p. 132.

¹⁷ The whole of the Yarmuk valley was to be in French controlled territory, and the border was to pass 'from Semakh [Zemah] across the Lake of Tiberias. . . it will then follow the course of this river [the Jordan] upstream'. Franco-British Convention of 23 December 1920 on Certain Points Connected with the Mandates for Syria and the Lebanon Palestine and Mesopotamia, Article 1. AJIL 16, no. 3 (Supplement: Official Documents, July 1922), pp. 122-126.

¹⁸ Ibid.

thus, the whole of the river north of Lake Tiberias was within Palestine. The boundary with Syria in the northern part of Lake Tiberias was to be '10 metres from the edge of Lake Tiberias, following any alteration of level consequent on the raising of its waters owing to the construction of a dam on the Jordan south of Lake Tiberias'.¹⁹ This boundary left the entire Lake Tiberias within Palestine, while inhabitants of Syria were to retain traditional fishing and navigation rights there. According to the Commission, the Banias spring was to be in Syria, although the agreement stipulated that 'the British government shall be free to reopen the question of readjusting the frontier between Banias and Metullah on such terms as may be agreed between the two Mandatory Powers with a view to making the north road between these two villages the final frontier'.²⁰ This clause was apparently intended to allow the British government to reopen the question of the Banias spring; however, the British refrained, subsequently, from raising the issue.²¹ The work of the boundary commission regarding the Jordan basin was approved by Britain and France and was registered with the League of Nations, together with the 1920 convention.²² A later, 1926, agreement between Britain and France reaffirmed Syrian fishing and navigation rights in Lake Tiberias and stipulated that 'all rights derived from local laws or customs concerning the use of the waters, streams, canals and lakes for the purpose of irrigation or supply of water to the inhabitants shall remain as at present'.²³

27.4 The Role of Water-Related Issues in Defining the Boundaries between Palestine and Transjordan

Questions of water rights appeared to have played only a minor part, if any, in the 1922 boundary demarcation between Palestine and

¹⁹ Final Report on the Demarcation of the Frontier between the Great Lebanon and Syria on the one Side, and Palestine on the Other Side, from the Mediterranean Sea to El Hamme (in the Lower Valley of the Yarmuk) in Pursuance of Articles 1 and 2 of the Convention of Paris of December 23, 1920, penultimate paragraph, quoted in Toye, *Palestine Boundaries 1833–1947*, p. 442.

²⁰ *Ibid.*, p. 443.

²¹ Biger, *The Boundaries of Modern Palestine, 1840–1947*, p. 147.

²² In an exchange of notes on 7 March 1923, Resolution of the Council of the League of Nations, 22 May 1935.

²³ Agreement of Good Neighbourly Relations Concluded between the British and French Governments on Behalf of the Territories of Palestine, on the One Part, and on Behalf of Syria and Great Lebanon, on the Other Part, 1926, <http://gis.nacse.org/tfdd/tfdddocs/82ENG.pdf>.

Transjordan. At that time, both territories were under British Mandate and, presumably, the British did not foresee water disputes. Winston Churchill, however, queried the British high commissioner for Palestine as to 'which bank of the Jordan constitutes the boundary'. The high commissioner replied, 'Transjordanian would probably raise strong objections if a boundary other than center of the Jordan were adopted'.²⁴ The boundary was subsequently declared to be 'up the center of the Wady Araba, Dead Sea and River Jordan to its junction with the River Yarmuk; thence up the center of that river to the Syrian frontier'. This boundary was approved by the League of Nations.²⁵

27.5 Political Boundaries and Water Issues after 1947

The border proposed in the 1947 UN Partition Plan between the Jewish State and Syria and Transjordan followed the Mandatory borders in the north of the country.²⁶ The proposed Jewish State was awarded the same control of water resources that were possessed by Mandatory Palestine.²⁷ Apparently, water issues did not play a significant part in the 1949 negotiation of the Jordan-Israel armistice line.

They did play more of a role in the Israel-Syria armistice negotiations. Syria attempted to obtain access to Lake Tiberias, and one Israeli expert writes that during the 1949 armistice talks, the lake 'was a cardinal issue'.²⁸ The 1923 international boundary between Palestine and Syria was drawn fifty metres east of the Jordan River, and ten metres east of Lake Tiberias thus Syria was not a riparian on the Jordan River or on Lake Tiberias. The Israel-Syrian armistice line provided, however, that at some places the armistice line would be along the Jordan River itself. Although no Syrian troops were allowed in the area between the armistice line and the international boundary, and despite the fact that the

²⁴ Exchange of cables, 28 and 30 August 1922 between secretary of state for the Colonies to high commissioner for Palestine, quoted in Tøye, *Palestine Boundaries 1833-1947*, pp. 745-746.

²⁵ Decision of the Council of the League of Nations, 16 September 1922.

²⁶ UNGA Resolution 181(II), 29 November 1947.

²⁷ Water expert James Hays wrote, 'fortunately, those who had been responsible for working out the details of the United Nations partition plan were familiar with the basic aspects of the Lowdermilk-Hays project and took it largely into account in drawing the boundaries of the new states'. James B. Hays, *TVA on the Jordan: Proposals for Irrigation and Hydro-Electric Development in Palestine* (1948).

²⁸ Aryeh Shalev, *The Israel-Syria Armistice Regime* (1993), p. 183.

armistice line was not a territorial settlement, 'Syria claimed riparian rights wherever it had access to the water, i.e., on certain parts between its formation at the confluence of the Dan, Hasbani and Baniyas'.²⁹ As regards Lake Tiberias, the armistice line followed the international boundary set at a distance of ten metres from the water line, although between 1949 and 1967, Syrian troops were in reality at the water's edge. During the period 1953–1967, Syrian boats fished the waters off the northeast coast of the lake. The Syrian justification for such fishing rights was based on the terms of the 1923 agreement, although Syria refrained from formally acknowledging its validity, and the 1949 Armistice Agreement made no reference to such rights.

27.6 The 'Johnston Plan'

In 1953, US President Eisenhower appointed Special Envoy Eric Johnston to mediate a comprehensive plan for utilising the waters of the Jordan River basin. Johnston continued negotiations with the parties until the end of 1955, when he presented his Unified Plan.³⁰ 'It was proposed, in the final plan, that distribution be so arranged that neither side would have physical control over it.'³¹ The basis of the plan was that Israel could use all the waters of the Jordan River with specified allocations to Jordan and Jordan could use all the waters of the Yarmuk River with a specified allocation to Israel. The plans envisaged diverting the waters of the Yarmuk, allocated to Jordan, to an East Ghor canal and a West Ghor canal. The West Ghor canal was intended to provide water for the West Bank, at the time under Jordanian administration. There were also agreed arrangements for Lebanon and Syria for whom the Jordan Basin was not a major source of water. Lake Tiberias was to be used by Israel for its own storage of Jordan waters and the Kingdom of Jordan was to build a dam at Maqarin to store Yarmuk waters. Benvenisti comments that this system of assigning each State 'exclusive control over some of the tributaries of the watercourse' is useful where riparians cannot cooperate and 'Israel and Jordan reached a similar informal arrangement for the Jordan River, which has withstood periods of severe

²⁹ Jitzchak P. Alster, 'Water in the Peace Process: Israel–Syria–Palestinians', *Justice: The International Association of Jewish Lawyers and Jurists*, 10 (September 1996), p. 5.

³⁰ There were minor discrepancies between the version of the plan presented to Israel and the version presented to the Arab States.

³¹ Georgiana Stevens, 'The Jordan River Valley' in *International Conciliation* (1956), p. 506.

military confrontation'.³² There were no restrictions on transferring water allocations to outside the basin. Water was allocated to the States based on quantities, not percentages, while the plan also designated the recipients of any residual waters beyond the specified allocation. The allocations were made based on quantities required for agriculture. Under the plan that evolved, 'approximately 60 percent of the water of the Jordan River system was to be allocated to Lebanon, Syria and Jordan, and the remaining forty percent to Israel'.³³ The plan did not make any reference to international law criteria.

The technical experts of Israel, Jordan, Lebanon and Syria agreed upon every important detail of the plan.³⁴ The Jordanian prime minister writes, 'the American envoy, Ambassador Eric Johnston, had succeeded in, having the parties agree, on the technical level, to a unified plan for the development of the Jordan valley, with water-sharing, a prime component of it'.³⁵ Nevertheless, the Arab League decided not to approve the plan and referred it back to its Technical Committee for 'further consideration until an agreement safeguarding Arab interests would be reached',³⁶ in effect deferring it *sine die*. According to Lowi, 'it is probably correct to say that withholding recognition of the State of Israel was the immediate reason for the non-committal response of the Arab Political Committee to the Revised Unified [Johnston] plan in October 1955'.³⁷

A joint paper by Israeli and Palestinian experts comments:

These negotiations and the ensuing Johnston Plan treated water in a narrow, quantitative manner. Water, a mobile resource, was to be divided up in the same way as land, an immobile resource. The political problem concerning water was therefore defined as if it were a pie to be shared between two parties, and the political problem was limited to determining

³² Eyal Benvenisti, 'Collective Action in the Utilization of Shared Freshwater: The Challenge of International Water Resources Law', *AJIL*, 90 (1996), pp. 384, 396.

³³ Report by President Eisenhower to Congress, 1955, on the Johnston negotiations, Department of State Publication 3618, July 1956, quoted in *Peace Process*, vols. 1–2; VII: 8.

³⁴ Eric Johnston, 'A Key to the Future of the Middle East', *New York Times Magazine*, 19 October 1958, quoted in *Peace Process*, Regional Projects, vols. 1–2; VII: 10, Israel Ministry of Foreign Affairs 1998.

³⁵ Abdul Salem Majali, Jawad A. Anani and Munther J. Haddadin, *Peacemaking: The Inside Story of the 1994 Jordanian–Israeli Treaty* (2006), p. 93.

³⁶ Arab League Resolution 11 October 1955, quoted in American Friends of the Middle East, *The Jordan Water Problem*, p. 50.

³⁷ Miriam R. Lowi, *Water and Power: The Politics of a Scarce Resource in the Jordan River Basin* (1995), p. 108.

how big each portion would be. This approach paved the way for water negotiations throughout the rest of the 20th century up to and including the Oslo agreements.³⁸

27.6.1 *The Legal Status of the Johnston Plan*

The Johnston Plan did not explicitly deal with legal rights, nor did it set out the legal basis for its proposed allocations. The US Department of State, however, commented that the allocations were based on the principle of 'equitable distribution' between the riparians.³⁹ Israel and Jordan have treated the allocations in the Johnston Plan as the basis for their respective allocations of Jordan River basin water. 'In fact, the Johnston Plan became the de facto discussion point and yardstick for all subsequent efforts at developing the Jordan waters.'⁴⁰ Despite this recognition, the plan was not a binding international agreement. The parties to the negotiations were presented texts that differed slightly, so there was no consensus *ad idem* to a common text. Neither side ratified a text, nor was it registered with the UN Secretariat in accordance with Article 102 of the UN Charter. Furthermore, Syria and Lebanon, which were parties to the negotiations, refrained from declaring that they would abide by the terms of the plan. Nevertheless, in view of the fact that Israel and Jordan each unilaterally declared that they would abide by the allocations of the Johnston Plan,⁴¹ it could well be argued that these declarations serve as binding unilateral undertakings.⁴² McCaffrey and Dellapenna have posited even further that the allocations of the Johnston Plan could be considered a binding regional convention.⁴³

³⁸ Brooks et al., *A Modern Agreement to Share Water between Israelis and Palestinians*, p. 9.

³⁹ Marjorie Whiteman, ed., *Digest of United States Practice in International Law*, vol. 3, State Department, Washington, DC (1963–1971), p. 1017.

⁴⁰ Lowi, *Water and Power*, p. 105.

⁴¹ See, for example, the declaration by Israeli Prime Minister Levi Eshkol, 20 January 1964, 321st Knesset Session, Knesset Records, vol. 38, p. 813.

⁴² The legally binding nature of such a unilateral declaration was recognised by the International Court of Justice in the *Nuclear Tests Case (Australia v. France)*, ICJ Reports, 1974, pp. 253, 267.

⁴³ Stephen C. McCaffrey, *The Law of International Watercourses* (3rd ed. 2019), p. 360; Joseph W. Dellapenna, 'Water in the Jordan Valley: The Potentials and Limits of Law', *Palestine Yearbook of International Law*, V (1989), p. 43.

27.7 Water Projects That Have Been Implemented

Despite the absence of any agreed-upon unified plan for the basin, Israel, Jordan and Syria and, to a lesser extent, Lebanon proceeded to carry out their water diversion projects. In the case of Israel and Jordan, the projects were, overall, within the parameters set out in the Johnston Plan. As regards Syria, the Jordanian prime minister comments, 'Jordan yielded to Syrian conditions and replaced its Yarmouk Treaty with Syria in 1987. The new treaty upset the allocations stipulated in the Unified Plan giving Syria double its share under Johnston's allocations'.⁴⁴

27.7.1 *The Israeli National Water Carrier*

From the early 1950s, Israel began planning to divert water from the Jordan River to the southern areas of Israel. In 1953, Israel commenced diversion works. Syria objected to the work, claiming that it was being carried out in an area that had been demilitarised by the Israel-Syria Armistice Agreement; the Syrian legal position being that the zone was not sovereign Israeli territory and Israel had no right to undertake engineering activities there. The Israeli legal position was that the territory was under its sovereignty but subject to the demilitarisation regime agreed to in the 1949 Armistice Agreement with Syria. The UN Security Council, without determining the legal position as to sovereignty, called upon Israel to cease its diversion works and Israel complied. Israel then changed its plans and proceeded on the basis of pumping the water from Lake Tiberias, which would serve as the storage area. The Israeli National Water Carrier, which began operating in the spring of 1964, pumps water from Lake Tiberias and distributes it throughout Israel by way of links with regional water schemes. The Israeli legal position has been that the amount of water it diverts from the lake is within the quantities envisaged in the Johnston Plan.⁴⁵ In recent years, Israel has drastically reduced pumping water from the Lake and relies more on desalinating seawater from the Mediterranean.

⁴⁴ Majali, Anani and Haddadin, *Peacemaking*, p. 93.

⁴⁵ Declaration by Israel Prime Minister Eshkol, 20 January 1964, Knesset Records, vol. 38, p. 813.

27.7.2 *The Jordanian East Ghor Canal*

In 1958, the Jordanian government commenced work on the East Ghor canal project (the King Abdullah East Ghor Canal) to divert waters of the Yarmuk to the Jordan Valley. The river waters are diverted into an open channel, which runs parallel to the Jordan River on its eastern bank. The canal is some 110 km long and is the principal source of irrigation water for the Jordan Valley lands.

27.7.3 *De Facto Jordanian–Israeli Understandings on Uses of the Yarmuk River*

From the late 1970s, Israel and Jordan held meetings on the use of Yarmuk waters.⁴⁶ These semi-confidential talks were held in the presence of officers from the UN Truce Supervision Organization (UNTSO).⁴⁷ The talks continued until the signing of the Israel–Jordan peace treaty in 1994 and, in line with the Johnston Plan, centred on the issue of how much water Israel was entitled to receive from the Yarmuk River during the dry summer season.⁴⁸

27.8 The Arab Diversion Plan

In 1954, the Arab League approved a plan to divert the headwaters of the Jordan River. The League decision was a response to Israel's plan for a national water carrier to bring water from Lake Tiberias to the Negev in the South of Israel.⁴⁹ The Arab League plan was 'for the diversion of Arab headwaters of the Jordan, the Hasbani and the Banias, to render them inaccessible to Israel'.⁵⁰ The plan would have 'cut by 35 percent the

⁴⁶ Aaron Wolf and John Ross, 'The Impact of Scarce Water Resources on the Arab–Israeli Conflict', *Natural Resources Journal*, 32 (1992), p. 935.

⁴⁷ During this period, Jordan maintained that the Israel–Jordan 1949 Armistice Agreement was still in force and that contacts with Israel should be made by way of UNTSO officers, whose duty was to monitor the Armistice Agreement. The Israeli position was that the Armistice Agreement was no longer in force. Nevertheless, Israel acquiesced in the presence of UNTSO officers at the talks.

⁴⁸ The author chaired the Israel team of negotiators.

⁴⁹ 'UNWRA Special Reports on Jordan', Bulletin No. 14, UNWRA Beirut (1956), p. 95, quoted in American Friends of the Middle East, *The Jordan Water Problem*, p. 69.

⁵⁰ McCaffrey, *The Law of International Watercourses*, p. 363.

installed capacity of the Israel Carrier'.⁵¹ Israel viewed the plan as a 'spite' plan intended to deprive Israel of most of the waters of the Jordan without putting them to any beneficial use. Syria and Lebanon commenced work on the diversion plan in 1965, but this work was interrupted by Israeli military action in July 1966 and not resumed. There was apparently no international condemnation of Israeli military action presumably because the Arab diversion plan was seen as vindictive.

27.9 Palestinian Riparian Rights?

The Johnston plan envisaged that the West Bank, which at the time was under Jordanian rule, would receive an allocation of water from the Jordan River via a canal on the west bank (Ghor) of the Jordan River. Jordan 'failed to build the West Ghor canal in the West Bank before 1967'.⁵² As a consequence of the 1967 war, Jordan lost control of the West Bank, and since then there has been no progress on the plan for a West Ghor canal. The Jordanian Minister of Water development, Hadadin, writes 'Jordan did not deliver any water to the West Bank because the share of the West Bank was to come from Lake Tiberias which has been under Israel control all along. The Palestinian share would be delivered to the King Abdallah Canal from Lake Tiberias and Jordan, in turn, would deliver it to the West Bank through a siphon under the Jordan River. So you see the share of the West Bank under the plan is still in Israeli hands'.⁵³ A memorandum of a meeting between President Carter and King Hussein quotes King Hussein as follows:

It is an old story, the idea that some water would go to the West Bank from the Jordan River. He is a little worried about the possibility that Israel wants to discuss the future of the West Bank, and then Jordan will have to talk about their taking water from the Jordan River for the West Bank. Therefore, this is difficult. Jordan needs to limit the talks now to Israel's and Jordan's share of the water, without prejudicing the future water supply to the West Bank.⁵⁴

⁵¹ Aaron Wolf, *Hydro Politics along the Jordan River* (1995), quoting a US CIA Report and other sources.

⁵² Sharif S. Elmusa, 'Negotiating Water: Israel and the Palestinians', A Final Status Issues Paper, Institute for Palestine Studies (Washington, DC, 1995) p. 21.

⁵³ Munther Hadadin in Majali, Anani and Haddadin, *Peacemaking*, p. 108.

⁵⁴ Memorandum of Conversation 1, Washington, DC, 18 June 1980, 10:36 a.m.–12:09 p.m. Subject, Summary of the President's Second Meeting with King Hussein of Jordan, *Foreign Relations, 1977–1980*, vol. IX, pp. 1275, 1276.

The Palestinian position is that the Palestinian Authority itself has riparian rights in the Jordan River basin. Abouali writes, complaining, 'the Palestinian share of the Jordan River is pumped into the [Israel] National water Carrier'.⁵⁵ Nachmani writes that 'Israel's position is that Palestinians must now demand their share from Jordan or, more specifically, from Jordan's share of the Yarmuk [River] rather than from Israel (which reportedly uses no more than the Johnston allocation from both rivers [Jordan River and Yarmuk]'.⁵⁶ In the Oslo Accords, Israel recognised the existence of Palestinian riparian rights in the West Bank. The Accords state that such rights 'will be negotiated in the permanent status negotiations'. No argument appears to have been made denying, in principle, that the Palestinian Authority has riparian rights, although the wording does not refer explicitly to the waters of the Jordan River basin. Presumably if, in the future, Israel recognises a Palestinian State which borders the lower Jordan River, the Palestinian riparian rights in the Jordan River basin will be an issue to be negotiated.

Two other water resource issues in dispute between Israel and the Palestinian Authority are the issues of utilisation of the Western aquifer and water for Israel settlements in the West Bank.

27.9.1 *The Western Aquifer*

The Western aquifer is mainly under West Bank territory but it flows west and emerges in springs in Israel territory. The aquifer provides some one-third of Israel's water needs (not taking into account desalination). Israel's legal position is that this is the natural flow 'before pumping started, almost all groundwater of the Mountain Aquifer reached natural outlets, namely springs'⁵⁷ these springs are in Israeli territory and any attempt to restrict the flow would cause Israel appreciable harm. Elmusa writes, 'Israel has been inclined to view prior use as paramount in any future negotiations on water rights, but Elmusa adds that prior use is 'but

⁵⁵ Gamal Abouali, 'Natural Resources under Occupation: The Status of Palestinian Water under International Law', *Pace International Law Review* 10 (Fall 1998), p. 480.

⁵⁶ Amikam Nachmani, 'Water Jitters in the Middle East', *Studies in Conflict & Terrorism*, 20, no. 1 (January–March 1997), pp. 67, 79.

⁵⁷ Benvenisti and Gvirtzman, 'Harnessing International Law to Determine Israeli–Palestinian Water Rights', pp. 543, 557.

one factor to be weighed against others'.⁵⁸ The Palestinian legal position is that since most of the western aquifer is within the West Bank, this factor should be given a predominant role in determining equitable utilisation of the aquifer.⁵⁹ Benvenisti and Gvirtzman, however, conclude that there 'exists no evidence that waters should be allocated, for example, according to the contribution of each state to the basin's water'.⁶⁰ Abouali argues that since under Jordanian law wells and water were considered private property, Israel, as the military occupier, is only allowed to use such water for military purposes.⁶¹ Baim points out, however, that Israel placed restrictions on exploitation of wells in the West Bank to avoid over exploitation, as 'the water resources in the West Bank are largely interdependent with Israeli water resources'. Baim continues that since the Interim Agreement, the number of Palestinian wells has 'increased dramatically but the Palestinian Authority leaves the wells largely unregulated'.⁶²

27.9.2 *Water for Israeli Settlements*

Palestinian claims are that Israel settlements in the West Bank are illegal in accordance with the IVth 1949 Geneva Convention and that Israel exploits local water resources to provide water for the 'illegal' settlements. Israel denies the illegality of the settlements⁶³ and states that the water for Israeli settlements is piped in from Israeli sources and the settlements do not utilise any local water sources that could affect Palestinian water resources. McCaffrey 'casts doubt on Israel's claim'.⁶⁴

27.9.3 *Israel-PLO Oslo 1995 Interim Agreement*

The Israel-PLO Oslo 1993 Declaration of Principles refers to cooperation in the field of water, including a Water Development Program prepared

⁵⁸ Elmusa, 'Negotiating Water', p. 36.

⁵⁹ See J. Dillman, 'Water Rights in the Occupied Territories', *Journal of Palestine Studies* (1989), pp. 46, 57.

⁶⁰ Benvenisti and Gvirtzman, 'Harnessing International Law to Determine Israeli-Palestinian Water Rights', pp. 543, 548.

⁶¹ Abouali, 'Natural Resources under Occupation', p. 470.

⁶² Karen A. Baim, 'Come Hell or High Water: A Water Regime for the Jordan River Basin', *Washington University Law Quarterly*, 75 (Summer 1997), pp. 919, 929.

⁶³ See Chapter 20.

⁶⁴ McCaffrey, *The Law of International Watercourses*, p. 368.

by experts from both sides, which will also specify the mode of cooperation in the management of water resources in the West Bank and Gaza Strip. The Declaration includes proposals for studies and plans on water rights of each party, as well as on the equitable utilisation of joint water resources for implementation in and beyond the interim period. Among the factors likely to be stressed by the parties in any future Israel–Palestinian negotiations in trying to determine an equitable solution are ‘natural features’, ‘prior use’ and factors of ‘population, social and economic needs and available alternatives’.

The Interim Agreement ‘sets out water allocation standards, focusing on water needs rather than on water rights’.⁶⁵ The 1995 Israel–PLO Interim Agreement set up a permanent Israel–Palestinian Joint Water Committee (JWC) whose functions included ‘consolidated management of water resources’. The Agreement stated the principle that ‘Israel recognizes the Palestinian water rights in the West Bank. These will be negotiated in the permanent status negotiations and settled in the permanent status agreement relating to the various water resources’. The parties agreed on maintaining existing quantities of utilisation from the resources, taking into account the quantities of additional water for the Palestinians from the Eastern Aquifer and other agreed sources in the West Bank. The parties also agreed as to the quantities of water for the future needs of the Palestinians in the West Bank. Abouali writes that although the estimate ‘is indeed significant in comparison to current Palestinian consumption levels, however the water quota does little to ameliorate the wide disparities in per capita water consumption between Palestinian consumers and Israeli and settler consumers’.⁶⁶ Israel also agreed to supply additional water to the Palestinians, and the Palestinians were to develop further sources ‘from the Eastern Aquifer and other agreed sources in the West Bank’.⁶⁷ The Agreement contains a clause that recognises the necessity ‘to meet the immediate needs of the Palestinians in fresh water for domestic use’, thus reflecting the international law rule on the issue.⁶⁸ The parties also agreed on average

⁶⁵ Tanzi and Arcari, *The United Nations Convention on the Law of International Watercourses*, p. 307.

⁶⁶ Abouali, ‘Natural Resources under Occupation’, p. 566.

⁶⁷ Declaration of Principles on Interim Self-Government Arrangements, Israel–PLO Annex III, Article 1. Israeli–Palestinian Interim Agreement on the West Bank and the Gaza Strip 1995, Appendix 1, Annex III, Article 40(1), 40(3) (a), 40(6), 7(b)(6).

⁶⁸ Article 10 (2) UN Convention on the Law on the Non-Navigational Uses of International Watercourses, UN Doc. A/51/869. Annex III, Appendix 1, Article 40(7) Israeli–

annual estimates for 'the existing extractions, utilization and estimated potential of the Eastern, North-Eastern and Western Aquifers'.⁶⁹ Abouali writes that although the Interim Agreement contains 'advances in rectifying past injustices, they are marginal and inadequate since they contain an Israeli veto on all developments affecting water and sewage resources'.⁷⁰ Tanzi and Arcari, however, give 'special mention' to the Israel-PLO water agreement as 'even more in line than other international agreements with the basic principles of the UN International Watercourse Convention'.⁷¹

27.10 Israel-Jordan Peace Treaty

Water issues played a major role in the negotiations on the Israel-Jordan Peace Treaty. In the 1992 Israel-Jordan Washington talks that preceded the Peace Treaty, the Jordanians proposed that the agenda read, 'securing the rightful shares of the riparians in the Yarmuk and Jordan Rivers'. Israel objected to this phrase, which, in Israel's opinion, might be interpreted as accepting Jordanian riparian rights in the whole of the Jordan basin including Lake Tiberias and the upper Jordan River.⁷² After intensive negotiations, the text agreed to was 'securing the rightful water shares of the two sides in the Yarmuk and Jordan Rivers'.⁷³ Alster writes, 'the arrangements between the two countries relate only to the waters of the Jordan River south of Lake Tiberias'.⁷⁴ The Israel-Jordan Peace Treaty states:

Article 6

With the view to achieving a comprehensive and lasting settlement of all the water problems between them:

- (1) The Parties agree mutually to recognize the rightful allocations of both of them in Jordan River and Yarmuk River waters and Araba/

Palestinian Interim Agreement on the West Bank and the Gaza Strip 1995, 36(3) ILM 551 (1997).

⁶⁹ Declaration of Principles on Interim Self-Government Arrangements, Israel-PLO Annex III, Article 1. Israeli-Palestinian Interim Agreement on the West Bank and the Gaza Strip 1995, Appendix 1, Annex III, Article 40(20)(g)(3).

⁷⁰ Abouali, 'Natural Resources Under Occupation', p. 560.

⁷¹ Tanzi and Arcari, *The United Nations Convention on the Law of International Watercourses*, pp. 306, 307.

⁷² The author was legal adviser to the Israel negotiating team.

⁷³ Majali, Anani and Haddadin, *Peacemaking*, p. 94.

⁷⁴ Alster, 'Water in the Peace Process' p. 15.

Arava ground water in accordance with the agreed acceptable principles, quantities and quality as set out in Annex II.

- (2) The Parties . . . jointly undertake to ensure that the management and development of their water resources do not, in any way, harm the water resources of the other.⁷⁵

Annex II to the peace treaty, which deals with water issues, stipulates the quantities to be allocated to Israel from the Yarmuk River and to Jordan from the Jordan River. Israel and Jordan also agreed to develop plans for the utilisation of the waters of the lower Jordan River and to 'cooperate in finding sources for the supply to Jordan of an additional specified quantity of water of drinkable standards'.⁷⁶ A disagreement arose over the interpretation of this provision, but it was apparently resolved at a 1997 meeting between King Hussein and Prime Minister Benjamin Netanyahu, whereby Israel agreed, as 'an interim measure', to supply Jordan with additional water from Lake Tiberias.⁷⁷ Libiszewski comments that the weakness of this treaty is that 'the settlement remains bilateral and thus conditional upon behaviour of the other riparians (especially Syria), with whom water agreements are still lacking'.⁷⁸ Telerant writes, however, 'the concept of equitable apportionment, as articulated in the Helsinki Rules and the [ILC] Draft Articles, significantly influenced the Peace Treaty'.⁷⁹ Telerant adds that the Treaty emphasises the no appreciable harm rule and quotes the Treaty provision that 'Jordan is entitled to an annual quantity equivalent to that of Israel, provided however, that Jordan's use will not harm the quantity or quality of the above Israeli uses'.⁸⁰

⁷⁵ 1994 Peace Treaty between the State of Israel and the Hashemite Kingdom of Jordan, Article VI.

⁷⁶ Ibid., Annex II, Art. I(3).

⁷⁷ Exchange of letters, 20 May 1997 between Crown Prince el Hassan bin Talal of the Kingdom of Jordan and Ariel Sharon, Israeli Minister of National Infrastructures. Text supplied to author by Israel Ministry of Infrastructures.

⁷⁸ Stephan Libiszewski, 'Water Disputes in the Jordan River Basin Region and Their Role in the Resolution of the Arab–Israeli Conflict', ENCOP Occasional Paper No. 13, Center for Security Policy and Conflict Research/Swiss Peace Foundation, Zurich/ Berneat 1995, p. 76.

⁷⁹ Niva Telerant, 'Comment: Riparian Rights under International Law: A Study of the Israeli–Jordanian Peace Treaty', *Loyola of Los Angeles International and Comparative Law Journal*, 18 (December 1995), pp. 175, 199.

⁸⁰ Annex II, Article 2(c) Israel–Jordan Treaty of Peace.

27.11 Water Issues in the Future Negotiations between Israel and Syria

The relevance of the divergence between the Armistice Line and the International Boundary in relation to water issues came to be stressed during the attempted peace process with Syria where the 'need to preserve the Jordan and Hasbani Rivers on the Israeli side of the border' was manifested. '[Prime Minister Yitzhak] Rabin no doubt feared that an actual presence on the lake [Kinneret] would give the Syrians a share of Israel's only natural freshwater reservoir.'⁸¹ Rabin apparently agreed to provide US Secretary of State Warren Christopher with a conditional agreement to withdraw to the June 1967 boundary, the condition being that Israel's other demands on the Golan Heights be met; subsequent Israeli negotiators have not categorically denied nor refuted this.⁸² Among Israel's conditions were control of a strip of land on the eastern shore of the Kinneret wide enough to allow Israeli traffic.⁸³

Ross reports that in order to reach an agreement between Syria and Israel that included withdrawal on the Golan Heights, Barak needed to know 'if the Syrians would accept a border that touched neither the northeast quarter of the Sea of Galilee nor the Jordan River north of it'.⁸⁴

The Syrian position is that the 1923 boundary is not binding, as it was a boundary imposed on Syria by the former colonial powers Britain and France.⁸⁵ A counterargument could be made that under the rules of *uti possidetis juris*, former colonial boundaries remain in force unless changed by agreement. Although no explicit reference has been made by any of the parties, to the rule of *uti possidetis*, the peace treaties with Egypt and Jordan adopted the former Mandatory boundaries, as did the UN determination of the Israel–Lebanon boundary.⁸⁶

⁸¹ Dennis Ross, *The Missing Peace: The Inside Story of the Fight for Middle East Peace* (2004), pp. 114, 146.

⁸² *Ibid.*, pp. 551–557.

⁸³ Aaron David Miller, *The Much Too Promised Land: America's Elusive Search for Arab–Israeli Peace* (2008), p. 256.

⁸⁴ Ross, *The Missing Peace*, p. 321.

⁸⁵ Note from the Syrian Ministry of Foreign Affairs to the British Legation Damascus, 12 November 1946, quoted in Toye, *Palestine Boundaries 1833–1947*, p. 608.

⁸⁶ Report of the UN Secretary General on UNIFIL, 20 July 2000, UN Doc. S/2000/718 (2000).

27.12 The Role of International Law and the Jordan Basin

Bourne states that the ‘contradictory arguments’ made by the riparians to the Jordan River basin was one of the reasons that led the Institute of International Law and the International Law Association to study and formulate customary law on the subject.⁸⁷ In addition, the involvement of the United States and, later, the World Bank as facilitators and financiers meant that any project had to have international legitimacy.⁸⁸ Civic writes, nevertheless, ‘throughout the history of the many plans and negotiated understandings and agreements concerning the Jordan River basin, there has been a dearth of explicit references to international law. One explanation for this is that ‘neither classical nor modern international law principles of transboundary water sharing have been fully embraced by this region, due in part to its distinct cultural heritage and highly volatile and complex political and security issues’.⁸⁹ McCaffrey also writes, ‘it must be concluded that international law has played only a minor role in the relations between the countries riparian to the Jordan River system since Israel became a state in 1948’.⁹⁰ Daibes writes, ‘to date, international law has had a limited role in resolving the water conflict between Israel and Palestine’.⁹¹ Regarding the Israel–Jordan Peace Treaty, Israeli negotiator Reisner writes, ‘from the onset of the negotiations it was evident that any attempt to resolve the Israel–Jordanian water problem through strict reliance on such legal

⁸⁷ Charles Bourne, ‘Conflicting Views on the Basic Principles of International Water Law’ in Slavko Bogdanovic, ed., *Legal Aspects of Sustainable Water Resources Management* 9–19, *Regional Conference on Water Law* (2002) Yugoslavia Association for Water Law, Teslic, Bosnia and Herzegovina, p. 14.

⁸⁸ World Bank Operational Directive O.D. 7.50 (1 March 2012), <https://ppfdocuments.azureedge.net/2660.pdf>, sets out the Bank’s international law criteria for approving international waterway projects. See also *The World Bank Policy for Projects on International Waterways An Historical and Legal Analysis*, Salman M. A. Salman Lead Counsel Legal Vice Presidency The World Bank (2009).

⁸⁹ Melanne Andromedea Civic, ‘A New Conceptual Framework for Jordan River Basin Management: A Proposal for a Trusteeship Commission’, *Colorado Journal of International Environmental Law & Policy*, 9 (1998), p. 267.

⁹⁰ Stephen C. McCaffrey, ‘Water, Politics and International Law’ in Peter H. Gleick, ed. *Water in Crisis: A Guide to the World’s Fresh Water Resources* (1993), p. 93.

⁹¹ Fadia Daibes, ‘A Progressive Multidisciplinary Approach for Resolving the Palestinian–Israel Conflict over the Shared Transboundary Groundwater: What Lessons Learned from International Law?’, *University of Denver Water Law Review*, 8, no. 1 (Fall 2004), pp. 94, 127.

terminology would be doomed to failure, due to the fact that, in the final analysis, water disputes can only be resolved by the specific determination of quantities and quality of water to be allocated and not by means of general concepts'.⁹²

27.13 Concluding Remarks

The location of water resources played a role in determining the post-World War I Palestine–Syrian border and presumably will play a part in future negotiations with Syria. Although Syria and Lebanon are upstream riparians on the Jordan basin, the two countries have alternative water resources and are therefore less dependent on the Jordan basin for their water supply. For Israel, Jordan and the Palestinians, however, the Jordan basin offers a primary source of water.

Libiszewski writes, I believe correctly, 'no general legal rule of binding character exists which regulates the non-navigational use of shared water'.⁹³ International law has played little part in the actual negotiations, although the parties have relied on the general guidelines. The Johnston Plan served as a basis of understanding between Jordan and Israel but without explicit references to international law. The Israel–Jordan peace treaty and the bilateral interim arrangements reached between Israel and the Palestinians deal with allocations of specified quantities of water and not with legal principles. Future negotiations between Israel and the Palestinians will have to find a compromise between two basic tenets of international law, the rule of not causing appreciable harm to existing uses and the inherently contradictory rule of equitable allocations.

⁹² Daniel Reisner, 'Peace on the Jordan', *Justice: The International Association of Jewish Lawyers and Jurists*, 4 (1995), pp. 9.

⁹³ Stephan Libiszewski, 'Towards Resolution? Water Diplomacy in the Current Middle East Peace Process' in *Water disputes in the Jordan Basin Region and their Role in the Resolution of the Arab-Israel Conflict*, Center for Security Studies and Conflict Research, Swiss Institute of Technology, Swiss Peace Foundation, ENCOP Occasional Paper No. 13 (August 1995), Article 5.1.

Implications for Future Negotiations

In the preceding chapters, I have attempted to show that, in the last hundred years or so, international law has been relevant to the Arab-Israeli conflict. Although it is a political conflict, all parties to the conflict want their positions to be regarded as legal under international law. Legitimacy is a political asset as regards both the other party and vis-à-vis third parties. The language of international relations is, largely, the language of international law. This is particularly true regarding the United Nations and other international organisations. Israel and the Palestinians are engaged in an intensive campaign to persuade world public opinion of the legitimacy of their respective cases. Legal precedents, although not binding, play a highly useful role in assisting the parties to reach agreement. The same is true for the dispute settlement mechanisms of international law. The object of negotiations is to reach agreement. International agreements are a creature of international law. It will be lawyers, applying the rules of international law, who will determine the validity and context of such agreements.

International law began to play a part in the Middle East during the World War I. The 1916 Sykes-Picot Agreement, the correspondence between Hussein Sherif of Mecca and British High Commissioner McMahon, the 1917 Balfour Declaration and the 1920 San Remo Resolution have been widely studied for their status and validity in international law.

The 1922 Mandate of the League of Nations granted international recognition to 'the historical connection of the Jewish people with Palestine and to the grounds for reconstituting their national home in that country, while not prejudicing the civil and religious rights of existing non-Jewish communities in Palestine'. In dispute is whether this 1922 Mandate violated the right of self-determination of the Palestinian Arabs. The dispute involves the issues of whether the Palestinian Arabs were a separate people at the time of World War I and whether the principle of self-determination was a legal principle at that time. The

1922 Mandate granted the Jewish people the right to settle in the whole of western Palestine and there is a question whether this right, granted by the 1922 Mandate, is still relevant.

The 1947 UN General Assembly Partition Plan for Palestine was not binding in international law. Nevertheless, the 1948 Israeli Declaration of Independence relied on the Partition Plan as evidence that international law recognised the right of the Jewish people to declare an independent State. The 1948 war is regarded by Israel as its War of Independence in which it managed to repel simultaneous attacks by all the five neighbouring Arab States. The Arab population of Palestine regard the 1948 war as a catastrophe, *al Nakba*, that caused the exodus of some 700,000 Arabs from the areas held by Israel. A legal issue in dispute is whether the objection of the Arabs of Palestine to partition allowed them to use force and whether the intervention of the neighbouring Arab States was a legitimate exercise of the right of collective self-defence. The 1949 Armistice Agreements, signed between Israel and the neighbouring Arab States, terminated open hostilities and set out demarcation lines. Armistice Demarcation Lines are normally temporary, but the 1949 Armistice Demarcation line between Israel and the West Bank and Gaza has achieved a certain *de facto* status and is considered by most States as a basis for negotiating a future border between Israel and the Palestinians. The institution of demilitarised zones in the Armistice Agreements proved to be problematic as it led to disagreements regarding sovereignty and civilian control of these areas.

On the question of responsibility, under international law, for creating the Arab refugee problem there are two opposing positions. The Arab claim is that the refugees were illegally expelled by Israel or fled from fear of illegal Israeli actions. The Israeli position is that the refugees fled because they were caught in an armed conflict caused by the aggression of Arab armed attempts to prevent the creation of a Jewish state. On the question of a 'right of return', the Arab position is that such a right exists in international law and although many refugees may not wish to return, they have the right to do so. The Israeli legal position is that these refugees are not and have never been Israeli nationals and hence have no right to return to Israel. Israel argues that this is even more valid as regards descendants of refugees who have never lived in Palestine. When discussing paying compensation for Arab refugee property in Israel, a legal question arises as to compensation for the property left in Arab countries by the 700,000 Jews who fled from Arab countries to Israel.

In 1967, Israel attacked the Egyptian Air Force while it was still on the ground; Israel claimed it was acting in self-defence. Neither the UN Security Council nor the UN General Assembly took a position as to who was the aggressor. According to modern international law, Israel's use of force was legitimate if it was an act of self-defence, but a pre-emptive strike, to prevent the possibility of an Egyptian attack, would not be legal. It is not clear whether Egypt did intend to invade Israel, but it can be argued that Egyptian actions, combined with bellicose statements, gave Israel legitimate reason at the time to apprehend that an attack was imminent.

UN Security Council Resolution 242, adopted after the June 1967 Six Day War, was a non-binding recommendation for settling the Arab-Israeli conflict. Subsequently, Israel, the Arab States and the PLO agreed to accept the recommendations. The preamble of the Resolution states that acquisition of territory by war is inadmissible and that the conflict must be settled by peaceful means. The phrasing used in the English language version of the clause about Israel withdrawal is 'from territories'. There is a continuous disagreement as to whether this implies withdrawal from all the territories occupied or that the issue of borders is subject to negotiation between the parties.

The 1978 Camp David Accords outlined the framework for an Egyptian-Israel Treaty of Peace and autonomy for Arab Palestinians in the West Bank and Gaza. The ensuing negotiations over the Egypt-Israel Peace Treaty raised fundamental legal issues of conflict between Egyptian undertakings to the Arab League and its obligations to Israel under the Peace Treaty. International law was unable to give unambiguous answers to these issues.

Israel and Egypt submitted to arbitration a dispute concerning the route of the border at Taba, near Eilat. The arbitrators in the Taba case based their decision mainly on existing markers on the ground and refrained from examining when the markers had been placed and by whom and whether their siting was in accordance with the legal boundary. During Israel's occupation of the Sinai Peninsula, Israel exploited existing oil wells. There would appear to be no controversy that Israel, as a belligerent occupier of Sinai, was entitled to exploit existing State-owned oil wells. However, there is controversy over the legality of exploring for and exploiting new oil wells.

The legal status of the West Bank remains one of the core issues of controversy in the Arab-Israeli dispute. The West Bank was a part of Palestine where the League of Nations instructed Britain to 'secure a

national home for the Jewish people' and called for 'close settlement by Jews on the land, including State lands and waste lands not required for public purposes'. The overwhelming majority of the population of the West Bank are, however, Arab Palestinians who are entitled under international law to a right of self-determination. The 1977 Begin plan, the 1978 Camp David Accords and the 1993–1995 Oslo Agreements all were based on the principle of creating a transitional regime of autonomy for the Arab population of the West Bank. The issue of the final status of the territory, after the termination of a five-year transitional period, was left open to negotiation. The Accords referred to 'the legitimate rights of the Palestinian people and their just requirements'. This phrase could be understood as referring to a right of self-determination, but it was not stated explicitly. Israel and the PLO signed the 1993–1995 Oslo Accords. It is debatable whether, at the time, the PLO could be party to an international treaty. Israel, however, regards itself as bound by the Oslo Accords. Closely related to the status of the West Bank is the issue of the legality of Israel settlements. The controversy revolves around the legal interpretation of Article 49 of the IVth Geneva Convention.

Other issues involving international law include navigation through international waterways. The legal discourse as to Israel's right to use the Suez Canal centred on the issue of belligerency. Egypt argued that the 1949 Armistice Agreement with Israel did not end the state of war and, hence, Egypt was entitled to carry out acts of belligerency not prohibited by the Armistice Agreement. According to Egypt, the 1888 Constantinople Agreement allowed Egypt to take steps to defend the Canal and prohibiting Israeli shipping was such a step. Israel argued, perhaps not convincingly, that the Armistice Agreement ended the state of war. It further argued that the Armistice Agreement prohibited all acts of belligerency. The Egypt–Israel Treaty of Peace has resolved the issue of Israel navigation through the Canal. The Strait of Tiran connects the Gulf of Aqaba (Eilat) with the Red Sea. The Strait is bordered by Egypt and Saudi Arabia. The configuration of the Strait of Tiran differs from most other international straits, in that it connects high seas with an enclosed sea and not with another part of the high seas. The Egyptian claim that they had belligerent rights against Israeli shipping in Egyptian territorial waters conflicted, in this case, with the status of Tiran as an international Strait. The 1982 Law of the Sea Convention, possibly, gave shipping through the Strait the right of 'transit passage' and certainly the right of 'non-suspendable innocent passage'. The issue has been finally resolved in the 1979 Egypt–Israel Peace Treaty that stipulated that the

Gulf of Aqaba and the Strait of Tiran are 'international waterways to be open to all nations for unimpeded and non-suspendable freedom of navigation'. The 1982 Law of the Sea Convention recognises the validity of such agreements.

Two major international legal issues that arose during the Israel–Syria negotiations were the issue of borders and the status of offers made during the negotiations. As regards borders, the principle of *uti possidetis* is that new States inherit colonial era borders, unless there is agreement among the neighbouring States to change the border. It is now a rule of customary international law. The Palestine–Syrian border, agreed to by Britain and France in 1923, received approval of the League of Nations, and Syria, at the very least, acquiesced to the border when it achieved independence. Syria claims it was a border dictated by the colonial interests of Britain and France and does not bind Syria. Syria claims that Israel is bound by an offer it made during the negotiations. The Israeli position is that an offer made during negotiations, when no agreement was reached, is not binding. It can be argued that, although not legally binding, as a matter of good faith, offers made during negotiations should not be withdrawn so long as they are being negotiated.

The counter claims of the parties as to violations of the laws of war play a central part in the attempts of the parties to win over international public opinion. In addition to the public relations aspect, international criminal law is increasingly relevant. In accordance with the principal of universal jurisdiction, any country can prosecute a suspected war criminal even if there is no nexus between the offence and the State concerned. The International Criminal Court has jurisdiction to try war criminals if the State involved is unwilling or unable to investigate or prosecute the case. Palestine has claimed that Israel committed war crimes in the territory of Palestine and thus the Court has jurisdiction. Israel disputes the claim and the jurisdiction of the Court. The issue has not yet been resolved.

The Palestinian Authority defines itself as the State of Palestine and has the outward signs of an independent State. The State of Palestine conducts foreign relations, albeit the Oslo Accords prohibited the Palestinian Authority from doing so. It is a subject of controversy as to whether it has a sufficiently effective government and defined territory to be considered a State in accordance with classical international law definitions. It can be argued that the large number of States and international organisations that recognise and treat Palestine as a State overcomes such deficiencies. This reflects the constitutive theory whereby

it is recognition by other States that is conclusive evidence of Statehood. The issue of whether Palestine is at present a State remains controversial.

The location of water resources played a role in determining the post-World War I Palestine-Syrian border and presumably will play a part in future negotiations with Syria. The Israel-Jordan Peace Treaty and the bilateral interim arrangements reached between Israel and the Palestinians deal with allocations of specified quantities of water and not with legal principles. Future negotiations between Israel and the Palestinians concerning water resources will have to find a compromise between two basic tenets of international law: the rule of not causing appreciable harm to existing uses and the inherently contradictory rule of equitable allocations.

Despite the fact that Israel has reached normalisation agreements with an increasing number of Arab States, there has been little progress on the Israel-Palestinian dispute. Israel believes that only direct negotiations between the parties can lead to successful agreements. Egypt and Jordan had been in bitter military conflicts with Israel, yet the agreements reached, with these States, in direct negotiations, have stood the test of time. Israel holds that, in accordance with international law, parties can reach any agreement that is not in violation of a rule of *jus cogens*. The Palestinians, however, see themselves as the weaker party. They therefore demand that any agreement between the parties must reflect 'international legitimacy' and that the relevant United Nations resolutions reflect such legitimacy. To reach agreement on the final status of the West Bank and Gaza both sides will have to make painful compromises. It is ironic that although international law has played a useful and positive part in all stages of the Arab-Israel conflict, these different interpretations of what is international law, in fact, are hindering the possibility of settling Israel-Palestinian issues.

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Introductory Note

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